

FLOOR AMENDMENT

HOUSE OF REPRESENTATIVES

State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB4129 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____

Amendment submitted by: Scott Fetgatter

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

HOUSE BILL NO. 4129

By: Fetgatter

FLOOR SUBSTITUTE

An Act relating to public finance; enacting the Office of Management and Enterprise Services Efficiency Act of 2026; designating the Chief Operating Officer the supervisor and director of the Office of Management and Enterprise Services; requiring Chief Information Officer to supervise information technology services; providing for duties of the Chief Financial Officer with respect to annual budget; organizing the Office of Management and Enterprise Services into five units; organizing the Office of Management and Enterprise Services into component units for Administration, Capital Assets Management, Central Purchasing, Human Capital Management, and Risk Assessment and Compliance; transferring duties related to reporting and analyzing of state revenues, assistance to the State Board of Equalization, and assistance related to the preparation of the annual Executive Budget to the Chief Financial Officer; providing for appointment of the Chief Operating Officer; requiring advice and consent of Oklahoma State Senate; prescribing qualifications; authorizing removal for good cause shown; providing for authority of certain persons to act pending confirmation; providing procedures for removal of Chief Operating Officer; providing for appointment of the Chief Financial Officer; requiring advice and consent of Oklahoma State Senate; prescribing qualifications; authorizing removal for good cause shown; providing for authority of certain persons to act pending confirmation; providing procedures for removal of Chief Financial

Officer; prescribing duties of the Office of Management and Enterprise Services; modifying references with respect to the Director of the Office of Management and Enterprise Services; modifying references with respect the Chief Financial Officer; providing for authority of Director of the Office of Management and Enterprise Services to act during certain period of time; specifying duties of the Chief Operating Officer and the Chief Financial Officer; requiring report related to information technology; requiring report related to real property management; providing for duties and responsibilities of the Chief Information Officer; eliminating the Information Services Division of the Office of Management and Enterprise Services; creating the Office of Strategic Technology Solutions; prescribing duties for the Office of Strategic Technology Solutions; modifying statutory references; amending 62 O.S. 2021, Sections 34.2, as amended by Section 1, Chapter 86, O.S.L. 2025, 34.3, 34.3.1, 34.5, 34.6, as amended by Section 2, Chapter 14, 2nd Extraordinary Session, O.S.L. 2022, 34.7, 34.9, 34.10, as amended by Section 1, Chapter 39, O.S.L. 2024, 34.11.1, as last amended by Section 1, Chapter 193, O.S.L. 2024, 34.11, Section 1, Chapter 36, 1st Extraordinary Session, O.S.L. 2023, 34.22, 34.27, 34.28, 34.34, 34.35, 34.36, as amended by Section 2, Chapter 199, O.S.L. 2025, 34.36.1, 34.40, 34.41, 34.42, as last amended by Section 3, Chapter 199, O.S.L. 2025, 34.43, 34.44, 34.47, 34.49, 34.50, 34.51, 34.52, 34.53, as amended by Section 1, Chapter 84, O.S.L. 2025, 34.54, 34.55, 34.56, 34.58, 34.62, 34.63, 34.64, 34.65, 34.66, 34.67, 34.68, 34.69, 34.70, as amended by Section 1, Chapter 167, O.S.L. 2023, 34.71, 34.72, 34.74, 34.75, 34.77, 34.78, 34.80, 34.81, 34.82, 34.83, 34.87, as amended by Section 1, Chapter 409, O.S.L. 2024, 34.90, 34.91, 34.92, 34.102 34.203, and 34.204, (62 O.S. Supp. 2025, Sections 34.2, 34.6, 34.10, 34.11, 34.11.1, 34.11.1.2, 34.36, 34.42, 34.53, 34.70 and 34.87), which relate to the Office of Management and Enterprise Services, the Director of the Office of Management and Enterprise Services and the Chief Information Officer; providing for applicability of certain amendments with respect to the Director of the Office of Management and Enterprise Services, the Chief Operating Officer and the Chief Financial Officer; amending 1 O.S. 2021,

Section 26; amending 2 O.S. 2021, Sections 2-12, 2-26, 3-410, 5-3.3, 5-11, 5-122, 6-405, 7-416, 10-9.6, 10-9.24, Section 2, Chapter 391, O.S.L. 2022, 16-8, as amended by Section 3, Chapter 198, O.S.L. 2024, 16-11, 16-83, 18-40, 18-42, 18-407, Section 6, Chapter 297, O.S.L. 2023, Section 16, Chapter 297, O.S.L. 2023, and Section 22, Chapter 297, O.S.L. 2023 (2 O.S. Supp. 2025, Sections 11-12, 16-8, 4006, 4016, and 4022); amending 3 O.S. 2021, Sections 84, as last amended by Section 1, Chapter 274, O.S.L. 2025, 91, as amended by Section 9, Chapter 126, O.S.L. 2023, 375, 401, as amended by Section 17, Chapter 126, O.S.L. 2023, Section 16, Chapter 365, O.S.L. 2023, Section 4, Chapter 203, O.S.L. 2022, as amended by Section 20, Chapter 126, O.S.L. 2023, Section 1, Chapter 126, O.S.L. 2024, Section 3, Chapter 125, O.S.L. 2024, as amended by Section 3, Chapter 154, O.S.L. 2025, and 74 O.S. 2021, Section 5208.1, as amended by Section 6, Chapter 274, O.S.L. 2025, and as renumbered by Section 25, Chapter 274, O.S.L. 2025 (3 O.S. Supp. 2025, Sections 84, 91, 401, 403, 414, 415, 503, and 518); amending 3A O.S. 2021, Sections 204.1B, 204.1C, 208.3a, 281, 605, as amended by Section 3, Chapter 20, O.S.L. 2025, 616, as amended by Section 5, Chapter 20, O.S.L. 2025, 713, as last amended by Section 5, Chapter 443, O.S.L. 2024, and 733, as amended by Section 4, Chapter 332, O.S.L. 2023 (3A O.S. Supp. 2025, Sections 605, 616, 713, and 733) ; amending 6 O.S. 2021, Sections 201.1 and 211.1; amending 7 O.S. 2021, Section 22, ; amending 10 O.S. 2021, Sections 410.1, 440, 601.6b, as amended by Section 5, Chapter 347, O.S.L. 2024, 601.10, 601.14, as amended by Section 6, Chapter 347, O.S.L. 2024, and 601.67 (10 O.S. Supp. 2025, Sections 601.6b and 601.14); amending 10A O.S. 2021, Sections 1-9-103, 1-9-103a, 1-9-109, Section 1, Chapter 339, O.S.L. 2024, 2-7-202, as last amended by Section 5, Chapter 291, O.S.L. 2023, 2-7-306, 2-7-401, 2-7-616, 2-7-618, and 2-10-102, as amended by Section 11, Chapter 347, O.S.L. 2024 (10A O.S. Supp. 2025, Sections 1-9-112a, 2-7-202, and 2-10-102); amending Sections 4, Chapter 254, O.S.L. 2022, 24-115, Section 2, Chapter 240, O.S.L. 2022, 49-100.3, 49-100.5, 49-100.8, 50-103.1, 50-105.3, and 51-104a (11 O.S. Supp. 2025, Sections 17-107A and 37-501); amending 12 O.S. 2021, Section 921.1; amending 14A O.S. 2021, Section 6-301; amending 15 O.S. 2021, Section 775B.7;

amending 17 O.S. 2021, Sections 39, 57, 180.7,
180.10, as amended by Section 1, Chapter 211, O.S.L.
2025, 180.11, 306, 315, and 328 (17 O.S. Supp. 2025,
Section 180.10); amending 18 O.S. 2021, Sections
552.20 and 552.21; amending 19 O.S. 2021, Sections
215.28, 215.30, 215.40, 220, 547.2, 746.1, 901.58,
1501, as last amended by Section 1, Chapter 85,
O.S.L. 2025, and 1505, as last amended by Section 2,
Chapter 85, O.S.L. 2025 (19 O.S. Supp. 2025, Sections
1501 and 1505); amending 20 O.S. 2021, Sections 4,
61, 1104, 1227, 1304, 1307, 1310.1, 1310.2, 1310.3,
1315, 1316, 1662, and 1663; amending Sections 13,
Chapter 366, O.S.L. 2024, as amended by Section 6,
Chapter 187, O.S.L. 2025, 142.17, 142.32, Section 1,
Chapter 376, O.S.L. 2023, Section 1, Chapter 37,
O.S.L. 2025, 1290.14, as amended by Section 1,
Chapter 156, O.S.L. 2024, and 1379.1 (21 O.S. Supp.
2025, Sections 20M, 748.3, 1289.31, and 1290.14);
amending 22 O.S. 2021, Sections 1368, 1369, and
1370.1; amending 25 O.S. 2021, Sections 82.1 and
90.19; amending 26 O.S. 2021, Sections 2-118, 3-107,
3-107.1, 3-107.2, Section 1, Chapter 432, O.S.L.
2025, 6-120, and 8-111 (26 O.S. Supp. 2025, Section
3-107.3); amending 27A O.S. 2021, Sections 1-2-103,
1-2-104, 2-3-401, 2-3-403, Section 1, Chapter 438,
O.S.L. 2024, 2-7-304, and 2-11-610 (27A O.S. Supp.
2025, Section 2-3-404); amending 28 O.S. 2021,
Section 86, as amended by Section 1, Chapter 16, 1st
Extraordinary Session, O.S.L. 2023 (28 O.S. Supp.
2025, Section 86); amending 29 O.S. 2021, Section 3-
103, as amended by Section 1, Chapter 6, O.S.L. 2024
(29 O.S. Supp. 2025, Section 3-103); 29 O.S. 2021,
Section 3-302, 3-310, 3-313, 4-132, and 4-134;
amending 36 O.S. 2021, Section 307.3 and 307.5;
Section 1, Chapter 6, O.S.L. 2022, as amended by
Section 1, Chapter 67, O.S.L. 2022 (36 O.S. Supp.
2025, Section 307.6); Section 4, Chapter 293, O.S.L.
2024 (36 O.S. Supp. 2025, Section 974); Section 6,
Chapter 293, O.S.L. 2024 (36 O.S. Supp. 2025, Section
976); Section 2, Chapter 219, O.S.L. 2025 (36 O.S.
Supp. 2025, Section 4606.1); Section 5, Chapter 151,
O.S.L. 2022 (36 O.S. Supp. 2025, Section 6060.44); 36
O.S. 2021, Section 6802; Section 5, Chapter 306,
O.S.L. 2024 (36 O.S. Supp. 2025, Section 6966.2); and
36 O.S. 2021, Section 7202. 37A O.S. 2021, Section 1-
105, as amended by Section 1, Chapter 205, O.S.L.
2024 (37A O.S. Supp. 2025, Section 1-105); 37A O.S.

2021, Sections 5-128 and 5-129; amending 40 O.S.
2021, Section 4-508, as amended by Section 22,
Chapter 360, O.S.L. 2022 (40 O.S. Supp. 2025, Section
4-508); 40 O.S. 2021, Sections 4-901, 6-101, and 6-
201; 40 O.S. 2021, Section 6-202, as amended by
Section 5, Chapter 346, O.S.L. 2023 (40 O.S. Supp.
2025, Section 6-202); 40 O.S. 2021, Section 6-204, as
amended by Section 6, Chapter 346, O.S.L. 2023 (40
O.S. Supp. 2025, Section 6-204); 40 O.S. 2021,
Sections 141.19, 141.20, 142.1, and 142.14; Section
1, Chapter 182, O.S.L. 2025 (40 O.S. Supp. 2025,
Section 365); 40 O.S. 2021, Section 800.1, as amended
by Section 1, Chapter 401, O.S.L. 2022 (40 O.S. Supp.
2025, Section 800.1); Section 3, Chapter 408, O.S.L.
2025 (40 O.S. Supp. 2025, Section 906); amending
Section 1, Chapter 28, 1st Extraordinary Session,
O.S.L. 2023 (43A O.S. Supp. 2025, Section 1-110.1);
43A O.S. 2021, Sections 2-104 and 2-107; 43A O.S.
2021, Section 2-111, as last amended by Section 1,
Chapter 377, O.S.L. 2023 (43A O.S. Supp. 2025,
Section 2-111); 43A O.S. 2021, Sections 2-302, 2-303,
2-306, 2-310, and 2-311; 57 O.S. 2021, Section 631,
as amended by Section 1, Chapter 201, O.S.L. 2023,
and as renumbered by Section 5, Chapter 201, O.S.L.
2023 (43A O.S. Supp. 2025, Section 2-312.1); 43A O.S.
2021, Sections 3-102, 3-103, and 3-105; 43A O.S.
2021, Section 3-107, as amended by Section 2, Chapter
125, O.S.L. 2022 (43A O.S. Supp. 2025, Section 3-
107); 43A O.S. 2021, Section 3-107b, 3-453 and 3-460;
amending 44 O.S. 2021, Sections 28, 209, and 233.7;
Section 1, Chapter 74, O.S.L. 2022, as amended by
Section 5, Chapter 344, O.S.L. 2025 (44 O.S. Supp.
2025, Section 233.10a); Section 1, Chapter 361,
O.S.L. 2022 (44 O.S. Supp. 2025, Section 233.14); 44
O.S. 2021, Section 235.1; Section 19, Chapter 344,
O.S.L. 2025 (44 O.S. Supp. 2025, Section 272);
Section 1, Chapter 452, O.S.L. 2025 (44 O.S. Supp.
2025, Section 301A); Section 1, Chapter 453, O.S.L.
2025 (44 O.S. Supp. 2025, Section 301B); 44 O.S.
2021, Sections 4314, 4315, 4322, 4331, and 4335;
amending 45 O.S. 2021, Section 938.1; amending 47
O.S. 2021, Sections 2-101 and 2-104; 47 O.S. 2021,
Section 2-105, as amended by Section 1, Chapter 301,
O.S.L. 2022 (47 O.S. Supp. 2025, Section 2-105); 47
O.S. 2021, Section 2-105.7; 47 O.S. 2021, Section 2-
108.1, as amended by Section 1, Chapter 197, O.S.L.
2025 (47 O.S. Supp. 2025, Section 2-108.1); 47 O.S.

2021, Sections 2-122, 2-124, 2-142, 2-143, 2-144.1,
and 2-145; 47 O.S. 2021, Section 2-146, as amended by
Section 1, Chapter 370, O.S.L. 2022 (47 O.S. Supp.
2025, Section 2-146); 47 O.S. 2021, Sections 2-303,
2-307, and 2-310.1; Section 1, Chapter 282, O.S.L.
2022, as amended by Section 2, Chapter 47, 1st
Extraordinary Session, O.S.L. 2023 (47 O.S. Supp.
2025, Section 3-101); Section 6, Chapter 282, O.S.L.
2022, as last amended by Section 32, Chapter 452,
O.S.L. 2024 (47 O.S. Supp. 2025, Section 3-106); 47
O.S. 2021, Sections 7-625, 7-627, 158.2, 162, 163,
165, 166, 169, 170, 171, 172, 173, 180, 577, 582, as
last amended by Section 4, Chapter 236, O.S.L. 2024,
Section 587, as amended by Section 6, Chapter 107,
O.S.L. 2022, Section 759, as last amended by Section
14, Chapter 330, O.S.L. 2025, Section 1104.3, as
amended by Section 10, Chapter 171, O.S.L. 2025,
Section 1104.4, as amended by Section 11, Chapter
171, O.S.L. 2025, Section 1104.5, as amended by
Section 12, Chapter 171, O.S.L. 2025, Section 1104.7,
as amended by Section 14, Chapter 171, O.S.L. 2025,
Section 1104.8, as amended by Section 15, Chapter
171, O.S.L. 2025, Section 1104.9, as amended by
Section 16, Chapter 171, O.S.L. 2025, Section
1104.10, as amended by Section 17, Chapter 171,
O.S.L. , Section 1104.11, as amended by Section 18,
Chapter 171, O.S.L. 2025, Section 1104.12, as amended
by Section 19, Chapter 171, O.S.L. 2025, Section
1104.13, as amended by Section 20, Chapter 171,
O.S.L. 2025, Section 1104.14, as amended by Section
21, Chapter 171, O.S.L. 2025, Section 1104.15, as
amended by Section 22, Chapter 171, O.S.L. 2025,
Section 1104.16, as amended by Section 23, Chapter
171, O.S.L. 2025, Section 1104.17, as amended by
Section 24, Chapter 171, O.S.L. 2025, Section
1104.18, as amended by Section 25, Chapter 171,
O.S.L. 2025, Section 1104.19, as amended by Section
26, Chapter 171, O.S.L. 2025, Section 1104.20, as
amended by Section 27, Chapter 171, O.S.L. 2025,
Section 1104.21, as amended by Section 28, Chapter
171, O.S.L. 2025, Section 1104.22, as amended by
Section 29, Chapter 171, O.S.L. 2025, Section
1104.23, as amended by Section 30, Chapter 171,
O.S.L. 2025, Section 1104.24, as amended by Section
31, Chapter 171, O.S.L. 2025, Section 1104.25, as
amended by Section 32, Chapter 171, O.S.L. 2025,
Section 1104.26, as amended by Section 33, Chapter

171, O.S.L. 2025, Section 1104.27, as amended by
Section 34, Chapter 171, O.S.L. 2025, Section
1104.28, as amended by Section 35, Chapter 171,
O.S.L. 2025, Section 1104.29, as amended by Section
36, Chapter 171, O.S.L. 2025, Section 1104.30, as
amended by Section 37, Chapter 171, O.S.L. 2025,
Section 1104.31, as amended by Section 38, Chapter
171, O.S.L. 2025, Section 1104.32, as amended by
Section 39, Chapter 171, O.S.L. 2025, Section 1,
Chapter 397, O.S.L. 2022, as amended by Section 40,
Chapter 171, O.S.L. 2025, Section 1105A, as last
amended by Section 16, Chapter 330, O.S.L. 2025 (47
O.S. Supp. 2025, Sections 582, 587, 759, 1104.3,
1104.4, 1104.51104.7, 1104.8, 1104.9, 1104.10,
1104.11, 1104.12, 1104.13, 1104.14, 1104.15, 1104.16.
1104.17, 1104.18, 1104.19, 1104.20, 1104.21, 1104.22,
1104.23, 1104.24, 1104.25, 1104.26, 1104.27, 1104.28,
1104.29, 1104.30, 1104.31, 1104.32, 1104.33, and
1105A), Section 1115.1, Section 1132.2, Section
1143.1, as amended by Section 181, Chapter 282,
O.S.L. 2022 (47 O.S. Supp. 2025, Section 1143.1),
Section 1166, Section 1167, as last amended by
Section 57, Chapter 171, O.S.L. 2025 (47 O.S. Supp.
2025, Section 1167); amending 51 O.S. 2021, Section
1168, Section 156, as amended by Section 2, Chapter
183, O.S.L. 2022 (51 O.S. Supp. 2025, Section 156),
Section 159, Section 162, Section 163; amending 52
O.S. 2021, Section 132, Section 139, as amended by
Section 12, Chapter 247, O.S.L. 2025 (52 O.S. Supp.
2025, Section 139), Section 140, Section 206, Section
211, Section 288.5B, Section 288.7, Section 310, as
amended by Section 2, Chapter 367, O.S.L. 2023 (52
O.S. Supp. 2025, Section 310), Section 317.1, Section
420.11, Section 420.26; amending 53 O.S. 2021,
Section 1.10, Section 1.10a, Section 1.12, Section
7.4, Section 45.1, Section 47, Section 47.4A, Section
175, Section 232, Section 3, Chapter 358, O.S.L. 2023
(53 O.S. Supp. 2025, Section 503); amending 56 O.S.
2021, Section 26.17, Section 59.1, Section 189a,
Section 198.11b; amending 56 O.S. 2021, Sections 202,
213, 224, 226, 229, 230.70, 260, 329.1, 1003, Section
23, Chapter 395, O.S.L. 2022, 1011.13, Section 1,
Chapter 422, O.S.L. 2024, 2002, as amended by Section
1, Chapter 214, O.S.L. 2025, 2004 and 3002 (56 O.S.
Supp. 2025, Sections 1010.8A, 1026.1 and 2002);
amending 57 O.S. 2021, Sections 509, as last amended
by Section 2, Chapter 467, O.S.L. 2025, Section 1,

Chapter 467, O.S.L. 2025, 510, as amended by Section 1, Chapter 202, O.S.L. 2022, 510.6A, as amended by Section 6, Chapter 291, O.S.L. 2023, 510.8C, 510A, 513.1, 521.1, 521.2, 537.1, 541, 549.1, 557, 557.2, 561, 561.1, 561.2, 561.4 and 613 (57 O.S. Supp. 2025, Sections 509, 509A, 510 and 510.6A); amending 59 O.S. 2021, Sections 154, 161.20, 199.15, 328.42, 396.1C, 567.4, 587, as amended by Section 1, Chapter 331, O.S.L. 2025, Section 7, Chapter 168, O.S.L. 2025, 644, as amended by Section 23, Chapter 168, O.S.L. 2025, 698.28, 858-205, 858-601, 858-626, 858-730, 1000.4a, as last amended by Section 1, Chapter 48, O.S.L. 2025, 1000.28, 1018, 1042, 1113, 1150, 1151.20, 1360, 1455, as amended by Section 1, Chapter 87, O.S.L. 2023, 1694, 1800.14, 1800.15, 1820.3, 1820.6, 1820.7, 1820.8, 1820.9, 1820.10, 1820.11, 1820.12, 1820.13, 1820.14, 1820.16, 1820.17, 1820.18, 1820.19, 1820.20, 1850.13, 1883, 1918, 1925.17, 1946, 2058, 2095.20, as amended by Section 16, Chapter 218, O.S.L. 2024, 3024 and 3118 (59 O.S. Supp. 2025, Sections 587, 628.1, 644, 1000.4a, 1455 and 2095.20); amending 60 O.S. 2021, Sections 383, 384, 385, 386, 387, 389 and 668.2; amending 61 O.S. 2021, Sections 11, as amended by Section 4, Chapter 238, O.S.L. 2022, 12, as amended by Section 5, Chapter 238, O.S.L. 2022, 60, as last amended by Section 123, Chapter 452, O.S.L. 2024, 61, as amended by Section 7, Chapter 238, O.S.L. 2022, 62, as amended by Section 8, Chapter 238, O.S.L. 2022, 62.2, as amended by Section 9, Chapter 238, O.S.L. 2022, 65, as amended by Section 11, Chapter 238, O.S.L. 2022, 103, as last amended by Section 1, Chapter 361, O.S.L. 2025, 103.7, as amended by Section 15, Chapter 238, O.S.L. 2022, 107, as amended by Section 19, Chapter 238, O.S.L. 2022, 119.1, as amended by Section 25, Chapter 238, O.S.L. 2022, 121, as amended by Section 26, Chapter 238, O.S.L. 2022, 125, 130, 139, as amended by Section 1, Chapter 455, O.S.L. 2025, 202, as last amended by Section 125, Chapter 452, O.S.L. 2024, 202.1, 204, as amended by Section 29, Chapter 238, O.S.L. 2022, 205, 207.2, as amended by Section 30, Chapter 238, O.S.L. 2022, 208, as amended by Section 31, Chapter 238, O.S.L. 2022, 208.2, as amended by Section 33, Chapter 238, O.S.L. 2022, 209, as amended by Section 34, Chapter 238, O.S.L. 2022, 210, as amended by Section 35, Chapter 238, O.S.L. 2022, 211, as amended by Section 36, Chapter 238,

O.S.L. 2022 and 212, as amended by Section 37,
Chapter 238, O.S.L. 2022 (61 O.S. Supp. 2025,
Sections 11, 12, 60, 61, 62, 62.2, 65, 103, 103.7,
107, 119.1, 121, 139, 202, 204, 207.2, 208, 208.2,
209, 210, 211 and 212); amending 61 O.S. 2021,
Section 213, 61 O.S. 2021, Section 306, 61 O.S. 2021,
Section 307, 61 O.S. 2021, Section 308, as amended by
Section 38, Chapter 238, O.S.L. 2022 (61 O.S. Supp.
2025, Section 308), 61 O.S. 2021, Section 309, as
amended by Section 39, Chapter 238, O.S.L. 2022 (61
O.S. Supp. 2025, Section 309), 61 O.S. 2021, Section
310, 61 O.S. 2021, Section 313, 61 O.S. 2021, Section
314, 61 O.S. 2021, Section 317, as amended by Section
43, Chapter 238, O.S.L. 2022 (61 O.S. Supp. 2025,
Section 317), 61 O.S. 2021, Section 318, 61 O.S.
2021, Section 322, 61 O.S. 2021, Section 323, as
amended by Section 44, Chapter 238, O.S.L. 2022 (61
O.S. Supp. 2025, Section 323), 61 O.S. 2021, Section
324, as amended by Section 45, Chapter 238, O.S.L.
2022 (61 O.S. Supp. 2025, Section 324), 61 O.S. 2021,
Section 325, 61 O.S. 2021, Section 326, as amended by
Section 46, Chapter 238, O.S.L. 2022 (61 O.S. Supp.
2025, Section 326), 61 O.S. 2021, Section 327, as
amended by Section 47, Chapter 238, O.S.L. 2022 (61
O.S. Supp. 2025, Section 327), 61 O.S. 2021, Section
327.1, as amended by Section 48, Chapter 238, O.S.L.
2022 (61 O.S. Supp. 2025, Section 327.1), 61 O.S.
2021, Section 327.3, 61 O.S. 2021, Section 328, 61
O.S. 2021, Section 330.1, as amended by Section 49,
Chapter 238, O.S.L. 2022 (61 O.S. Supp. 2025, Section
330.1); amending 62 O.S. 2021, Section 34.2, as
amended by Section 1, Chapter 86, O.S.L. 2025 (62
O.S. Supp. 2025, Section 34.2), 62 O.S. 2021, Section
34.3, 62 O.S. 2021, Section 34.3.1, 62 O.S. 2021,
Section 34.4, 62 O.S. 2021, Section 34.5, 62 O.S.
2021, Section 34.6, 62 O.S. 2021, Section 34.7, 62
O.S. 2021, Section 34.8, 62 O.S. 2021, Section 34.9,
62 O.S. 2021, Section 34.10, as amended by Section 1,
Chapter 99, O.S.L. 2024 (62 O.S. Supp. 2025, Section
34.10), 62 O.S. 2021, Section 34.11, 62 O.S. 2021,
Section 34.11.1, as amended by Section 1, Chapter
193, O.S.L. 2024 (62 O.S. Supp. 2025, Section
34.11.1), Section 1, Chapter 36, 1st Extraordinary
Session, O.S.L. 2023 (62 O.S. Supp. 2025, Section
34.11.1.2), 62 O.S. 2021, Section 34.11.7, 62 O.S.
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407, O.S.L. 2022 (70 O.S. Supp. 2025, Section 697.10), 70 O.S. 2021, Section 697.11, as amended by Section 25, Chapter 407, O.S.L. 2022 (70 O.S. Supp. 2025, Section 697.11), 70 O.S. 2021, Section 697.17, as amended by Section 29, Chapter 407, O.S.L. 2022 (70 O.S. Supp. 2025, Section 697.17), 70 O.S. 2021, Section 697.18, as amended by Section 30, Chapter 407, O.S.L. 2022 (70 O.S. Supp. 2025, Section 697.18), 70 O.S. 2021, Section 697.19, as amended by Section 31, Chapter 407, O.S.L. 2022 (70 O.S. Supp. 2025, Section 697.19), 70 O.S. 2021, Section 697.21, as amended by Section 33, Chapter 407, O.S.L. 2022 (70 O.S. Supp. 2025, Section 697.21), Section 2, Chapter 407, O.S.L. 2022 (70 O.S. Supp. 2025, Section 697.21b), Section 2, Chapter 493, O.S.L. 2025 (70 O.S. Supp. 2025, Section 698.5), 70 O.S. 2021, Section 1210.402, Section 1, Chapter 411, O.S.L. 2024, as amended by Section 4, Chapter 297, O.S.L. 2025 (70 O.S. Supp. 2025, Section 1210.508I), Section 7, Chapter 492, O.S.L. 2025 (70 O.S. Supp. 2025, Section 1210.906), 70 O.S. 2021, Section 3205, 70 O.S. 2021, Section 3210, 70 O.S. 2021, Section 3213, 70 O.S. 2021, Section 3213.1, as amended by Section 2, Chapter 312, O.S.L. 2025 (70 O.S. Supp. 2025, Section 3213.1), Section 2, Chapter 24, O.S.L. 2022 (70 O.S. Supp. 2025, Section 3232), 70 O.S. 2021, Section 3311.3, 70 O.S. 2021, Section 3311.6, 70 O.S. 2021, Section 3311.7, 70 O.S. 2021, Section 3311.8, 70 O.S. 2021, Section 3311.13, 70 O.S. 2021, Section 3407.3, 70 O.S. 2021, Section 3426, 70 O.S. 2021, Section 3431, 70 O.S. 2021, Section 3509, 70 O.S. 2021, Section 3903, 70 O.S. 2021, Section 3905, 70 O.S. 2021, Section 3953.1, as amended by Section 4, Chapter 330, O.S.L. 2024 (70 O.S. Supp. 2025, Section 3953.1), Section 2, Chapter 122, O.S.L. 2023 (70 O.S. Supp. 2025, Section 4103.1), 70 O.S. 2021, Section 4663, as amended by Section 1, Chapter 230, O.S.L. 2024 (70 O.S. Supp. 2025, Section 4663), 70 O.S. 2021, Section 4713, Section 8, Chapter 75, O.S.L. 2025 (70 O.S. Supp. 2025, Section 9108); amending 71 O.S. 2021, Section 1-601, as last amended by Section 1, Chapter 225, O.S.L. 2023 (71 O.S. Supp. 2025, Section 1-601), 71 O.S. 2021, Section 1-612, as amended by Section 41, Chapter 77, O.S.L. 2022 (71 O.S. Supp. 2025, Section 1-612); amending Section 1, Chapter 79, O.S.L. 2022 (72 O.S. Supp. 2025, Section 35), 72 O.S. 2021, Section 48, 72 O.S. 2021, Section

63.11a, 72 O.S. 2021, Section 63.16, 72 O.S. 2021, Section 63.19, 72 O.S. 2021, Section 65.1, 72 O.S. 2021, Section 67.13, 72 O.S. 2021, Section 221.5, as amended by Section 14, Chapter 83, O.S.L. 2022 (72 O.S. Supp. 2025, Section 221.5), 72 O.S. 2021, Section 222, as amended by Section 2, Chapter 42, O.S.L. 2024 (72 O.S. Supp. 2025, Section 222), 72 O.S. 2021, Section 223, 72 O.S. 2021, Section 240, as last amended by Section 5, Chapter 42, O.S.L. 2024 (72 O.S. Supp. 2025, Section 240), 72 O.S. 2021, Section 403, 72 O.S. 2021, Section 404, 72 O.S. 2021, Section 411; amending 73 O.S. 2021, Section 15, 73 O.S. 2021, Section 15.1, 73 O.S. 2021, Section 15.3, as amended by Section 1, Chapter 383, O.S.L. 2025 (73 O.S. Supp. 2025, Section 15.3), 73 O.S. 2021, Section 15.4, 73 O.S. 2021, Section 19, 73 O.S. 2021, Section 22, 73 O.S. 2021, Section 24, 73 O.S. 2021, Section 26, 73 O.S. 2021, Section 62.2, 73 O.S. 2021, Section 83.1, as last amended by Section 1, Chapter 16, O.S.L. 2025 (73 O.S. Supp. 2025, Section 83.1), 73 O.S. 2021, Section 83.10, 73 O.S. 2021, Section 83.14, 73 O.S. 2021, Section 92, 73 O.S. 2021, Section 96, 73 O.S. 2021, Section 97, 73 O.S. 2021, Section 99.15, 73 O.S. 2021, Section 163, 73 O.S. 2021, Section 163.3, 73 O.S. 2021, Section 168.7, 73 O.S. 2021, Section 168.8, 73 O.S. 2021, Section 173, as amended by Section 2, Chapter 429, O.S.L. 2024 (73 O.S. Supp. 2025, Section 173), 73 O.S. 2021, Section 179, 73 O.S. 2021, Section 180, 73 O.S. 2021, Section 181, 73 O.S. 2021, Section 184, Section 1, Chapter 7, 1st Extraordinary Session, O.S.L. 2023 (73 O.S. Supp. 2025, Section 187A-5), Section 1, Chapter 10, 1st Extraordinary Session, O.S.L. 2023 (73 O.S. Supp. 2025, Section 187A-6), Section 2, Chapter 1, 1st Extraordinary Session, O.S.L. 2023, as amended by Section 1, Chapter 393, O.S.L. 2024 (73 O.S. Supp. 2025, Section 187B), Section 3, Chapter 441, O.S.L. 2024, as amended by Section 2, Chapter 439, O.S.L. 2025 (73 O.S. Supp. 2025, Section 188A), Section 2, Chapter 441, O.S.L. 2024, as amended by Section 3, Chapter 439, O.S.L. 2025 (73 O.S. Supp. 2025, Section 188B); amending 73 O.S. 2021, Sections 206, 209, Sections 301, as amended by Section 19, Chapter 83, O.S.L. 2022 (73 O.S. Supp. 2025, Section 301), 301.1, 304.2, 321, 336, 345, 346, Section 2, Chapter 311, O.S.L. 2024 (73 O.S. Supp. 2025, Section 402), Section 1, Chapter 269, O.S.L. 2025 (73 O.S. Supp.

2025, Section 403); amending 74 O.S. 2021, Section 9.33, Section 18c, as amended by Section 5, Chapter 199, O.S.L. 2025 (74 O.S. Supp. 2025, Section 18c), Section 181, Section 1, Chapter 312, O.S.L. 2024 (74 O.S. Supp. 2025, Section 18q-1), Sections 19.1, 19.3, Section 20, as amended by Section 1, Chapter 138, O.S.L. 2022 (74 O.S. Supp. 2025, Section 20), Section 2, Chapter 394, O.S.L. 2024 (74 O.S. Supp. 2025, Section 20k-1B), Section 30.2, Section 51.1a, as last amended by Section 2, Chapter 257, O.S.L. 2024 (74 O.S. Supp. 2025, Section 51.1a), Section 51.2, as last amended by Section 3, Chapter 257, O.S.L. 2024 (74 O.S. Supp. 2025, Section 51.2), Section 51.2c, as last amended by Section 6, Chapter 257, O.S.L. 2024 (74 O.S. Supp. 2025, Section 51.2c), Sections 61.2, 61.3, 61.4, Section 61.8, as amended by Section 1, Chapter 194, O.S.L. 2025 (74 O.S. Supp. 2025, Section 61.8), Section 1, Chapter 290, O.S.L. 2025 (74 O.S. Supp. 2025, Section 61.9), Sections 62.2, 62.3, as amended by Section 1, Chapter 384, O.S.L. 2025 (74 O.S. Supp. 2025, Section 62.3), 62.6, 62.7, Section 63, as amended by Section 7, Chapter 199, O.S.L. 2025 (74 O.S. Supp. 2025, Section 63), 63.1, 63.1a, 63.2, 63.3, 63.4, 63.5, 63.6, 66, Section 71, as amended by Section 306, Chapter 486, O.S.L. 2025 (74 O.S. Supp. 2025, Section 71), 72, 74.1, 75a, 76, 76a, 76b, 76c, 77c, 77d, Section 78, as amended by Section 1, Chapter 351, O.S.L. 2023 (74 O.S. Supp. 2025, Section 78), Section 78a, as amended by Section 8, Chapter 199, O.S.L. 2025 (74 O.S. Supp. 2025, Section 78a), Section 78b, as amended by Section 9, Chapter 199, O.S.L. 2025 (74 O.S. Supp. 2025, Section 78b), 78c, 78e, 78f, 80.1, Section 85.3, as amended by Section 1, Chapter 136, O.S.L. 2024 (74 O.S. Supp. 2025, Section 85.3), Section 85.5, as amended by Section 1, Chapter 102, O.S.L. 2024 (74 O.S. Supp. 2025, Section 85.5), 85.5.1, 85.5a, Section 85.7, as last amended by Section 1, Chapter 339, O.S.L. 2023 (74 O.S. Supp. 2025, Section 85.7), 85.22, 85.33, 85.33A, 85.41A, 85.44D.1, 85.44E, 85.45b, 85.45e, 85.45f, 85.45g, Section 85.45h, as amended by Section 581, Chapter 486, O.S.L. 2025 (74 O.S. Supp. 2025, Section 85.45h), 85.45j.11, 85.45k, 85.45l, 85.45s, 85.47a, 85.47b, 85.47c, 85.47d, 85.47f, 85.47g, 85.47i, 85.51, 85.52, 85.53, 85.54, 85.55a, 85.56, 85.57, Section 85.58A, as amended by Section 4, Chapter 245, O.S.L. 2024 (74 O.S. Supp. 2025, Section 85.58A),

Section 85.58B, as amended by Section 1, Chapter 212, O.S.L. 2025 (74 O.S. Supp. 2025, Section 85.58B), 85.58D, Section 85.58G, Section 85.58H, as amended by Section 240, Chapter 282, O.S.L. 2022 (74 O.S. Supp. 2025, Section 85.58H), 85.58J, Section 85.58K, as amended by Section 1, Chapter 163, O.S.L. 2024 (74 O.S. Supp. 2025, Section 85.58K), 85.58L, 85.58M, 85.58N, 85.58P, 85.58Q, 85.58T, 85.58V, 85.60, Section 380, as amended by Section 1, Chapter 256, O.S.L. 2024, and as renumbered by Section 3, Chapter 256, O.S.L. 2024 (74 O.S. Supp. 2025, Section 85.70), Section 2, Chapter 256, O.S.L. 2024 (74 O.S. Supp. 2025, Section 85.71), 90.1, 94, 95; amending 74 O.S. 2021, Section 110.1, 74 O.S. 2021, Section 110.2, 74 O.S. 2021, Section 110.3, Section 1, Chapter 24, 1st Extraordinary Session, O.S.L. 2023 (74 O.S. Supp. 2025, Section 110.5), 74 O.S. 2021, Section 111, 74 O.S. 2021, Section 114, 74 O.S. 2021, Section 121, 74 O.S. 2021, Section 123F, 74 O.S. 2021, Section 130, 74 O.S. 2021, Section 130.4, 74 O.S. 2021, Section 130.9, 74 O.S. 2021, Section 130.25, 74 O.S. 2021, Section 150.2, as amended by Section 1, Chapter 240, O.S.L. 2023 (74 O.S. Supp. 2025, Section 150.2), 74 O.S. 2021, Section 150.6a, 74 O.S. 2021, Section 150.19a, Section 1, Chapter 38, 1st Extraordinary Session, O.S.L. 2023 (74 O.S. Supp. 2025, Section 150.19b), 74 O.S. 2021, Section 150.25, 74 O.S. 2021, Section 150.32, 74 O.S. 2021, Section 150.35, 74 O.S. 2021, Section 152.5, 74 O.S. 2021, Section 166.5, 74 O.S. 2021, Section 166.7, 74 O.S. 2021, Section 166.9, 74 O.S. 2021, Section 168, 74 O.S. 2021, Section 212A, 74 O.S. 2021, Section 213.2, 74 O.S. 2021, Section 227.9, 74 O.S. 2021, Section 291.2, 74 O.S. 2021, Section 292.12, 74 O.S. 2021, Section 324.2, 74 O.S. 2021, Section 324.20b, as amended by Section 4, Chapter 311, O.S.L. 2022 (74 O.S. Supp. 2025, Section 324.20b), 74 O.S. 2021, Section 325.4, 74 O.S. 2021, Section 452.10, 74 O.S. 2021, Section 452.12, 74 O.S. 2021, Section 500.2, as amended by Section 1, Chapter 63, O.S.L. 2022 (74 O.S. Supp. 2025, Section 500.2), 74 O.S. 2021, Section 500.6A, 74 O.S. 2021, Section 500.9, as amended by Section 5, Chapter 63, O.S.L. 2022 (74 O.S. Supp. 2025, Section 500.9), 74 O.S. 2021, Section 500.14, 74 O.S. 2021, Section 500.16, as amended by Section 8, Chapter 63, O.S.L. 2022 (74 O.S. Supp. 2025, Section 500.16), 74 O.S. 2021, Section 500.15, as amended by Section 7,

Chapter 63, O.S.L. 2022 (74 O.S. Supp. 2025, Section 500.15), 74 O.S. 2021, Section 500.16A, 74 O.S. 2021, Section 500.18, as last amended by Section 1, Chapter 325, O.S.L. 2022 (74 O.S. Supp. 2025, Section 500.18), 74 O.S. 2021, Section 500.54, 74 O.S. 2021, Section 588, 74 O.S. 2021, Section 588.1, 74 O.S. 2021, Section 589, 74 O.S. 2021, Section 589.1, 74 O.S. 2021, Section 666, 74 O.S. 2021, Section 669.1, 74 O.S. 2021, Section 840-1.3, as amended by Section 2, Chapter 243, O.S.L. 2022 (74 O.S. Supp. 2025, Section 840-1.3), 74 O.S. 2021, Section 840-1.6, as amended by Section 3, Chapter 243, O.S.L. 2022 (74 O.S. Supp. 2025, Section 840-1.6), 74 O.S. 2021, Section 840-1.6A, as amended by Section 4, Chapter 243, O.S.L. 2022 (74 O.S. Supp. 2025, Section 840-1.6A), 74 O.S. 2021, Section 840-1.20, as amended by Section 7, Chapter 243, O.S.L. 2022 (74 O.S. Supp. 2025, Section 840-1.20), 74 O.S. 2021, Section 840-2.7, 74 O.S. 2021, Section 840-2.10, 74 O.S. 2021, Section 840-2.10a, as amended by Section 9, Chapter 243, O.S.L. 2022 (74 O.S. Supp. 2025, Section 840-2.10a), 74 O.S. 2021, Section 840-2.13, as amended by Section 10, Chapter 243, O.S.L. 2022 (74 O.S. Supp. 2025, Section 840-2.13), 74 O.S. 2021, Section 840-2.14, as amended by Section 11, Chapter 243, O.S.L. 2022 (74 O.S. Supp. 2025, Section 840-2.14), 74 O.S. 2021, Section 840-2.15, 74 O.S. 2021, Section 840-2.17, as amended by Section 13, Chapter 243, O.S.L. 2022 (74 O.S. Supp. 2025, Section 840-2.17), 74 O.S. 2021, Section 840-2.18, as last amended by Section 1, Chapter 18, 1st Extraordinary Session, O.S.L. 2023 (74 O.S. Supp. 2025, Section 840-2.18), 74 O.S. 2021, Section 840-2.19, as amended by Section 15, Chapter 243, O.S.L. 2022 (74 O.S. Supp. 2025, Section 840-2.19), 74 O.S. 2021, Section 840-2.20, as last amended by Section 172, Chapter 452, O.S.L. 2024 (74 O.S. Supp. 2025, Section 840-2.20), 74 O.S. 2021, Section 840-2.20A, 74 O.S. 2021, Section 840-2.20C, Section 1, Chapter 32, 1st Extraordinary Session, O.S.L. 2023 (74 O.S. Supp. 2025, Section 840-2.20D), 74 O.S. 2021, Section 840-2.21, as amended by Section 17, Chapter 243, O.S.L. 2022 (74 O.S. Supp. 2025, Section 840-2.21), 74 O.S. 2021, Section 840-2.22, 74 O.S. 2021, Section 840-2.23, as amended by Section 18, Chapter 243, O.S.L. 2022 (74 O.S. Supp. 2025, Section 840-2.23), 74 O.S. 2021, Section 840-2.26, 74 O.S. 2021, Section 840-2.27C, as last amended by

Section 1, Chapter 341, O.S.L. 2024 (74 O.S. Supp. 2025, Section 840-2.27C), 74 O.S. 2021, Section 840-2.27D, as last amended by Section 2, Chapter 341, O.S.L. 2024 (74 O.S. Supp. 2025, Section 840-2.27D), 74 O.S. 2021, Section 840-2.27E, 74 O.S. 2021, Section 840-3.1, 74 O.S. 2021, Section 840-3.1A, 74 O.S. 2021, Section 840-4.6, as amended by Section 2, Chapter 244, O.S.L. 2022 (74 O.S. Supp. 2025, Section 840-4.6), 74 O.S. 2021, Section 840-4.17, 74 O.S. 2021, Section 842, 74 O.S. 2021, Section 845, 74 O.S. 2021, Section 865, 74 O.S. 2021, Section 905, 74 O.S. 2021, Section 907, 74 O.S. 2021, Section 913, as amended by Section 3, Chapter 146, O.S.L. 2023 (74 O.S. Supp. 2025, Section 913), 74 O.S. 2021, Section 920, 74 O.S. 2021, Section 935.6, 74 O.S. 2021, Section 941, 74 O.S. 2021, Section 943, 74 O.S. 2021, Section 1222A, 74 O.S. 2021, Section 1224, 74 O.S. 2021, Section 1226.2, 74 O.S. 2021, Section 1226.4A, 74 O.S. 2021, Section 1226.17, 74 O.S. 2021, Section 1226.18, 74 O.S. 2021, Section 1226.19, 74 O.S. 2021, Section 1226.21, 74 O.S. 2021, Section 1303, 74 O.S. 2021, Section 1304.1, as last amended by Section 1, Chapter 379, O.S.L. 2025 (74 O.S. Supp. 2025, Section 1304.1), 74 O.S. 2021, Section 1314.3, as amended by Section 20, Chapter 379, O.S.L. 2025 (74 O.S. Supp. 2025, Section 1314.3), 74 O.S. 2021, Section 1316.1, as amended by Section 24, Chapter 379, O.S.L. 2025 (74 O.S. Supp. 2025, Section 1316.1), 74 O.S. 2021, Section 1321V2, as last amended by Section 29, Chapter 379, O.S.L. 2025 (74 O.S. Supp. 2025, Section 1321V2), 74 O.S. 2021, Section 1343, 74 O.S. 2021, Section 1366, 74 O.S. 2021, Section 1372, 74 O.S. 2021, Section 1373, 74 O.S. 2021, Section 1374, 74 O.S. 2021, Section 1375, 74 O.S. 2021, Section 1604, 74 O.S. 2021, Section 1701, 74 O.S. 2021, Section 1705, 74 O.S. 2021, Section 1707, 74 O.S. 2021, Section 1735.3, 74 O.S. 2021, Section 1811.4A, 74 O.S. 2021, Section 1811.4C, as amended by Section 1, Chapter 75, O.S.L. 2023 (74 O.S. Supp. 2025, Section 1811.4C), 74 O.S. 2021, Section 2215, 74 O.S. 2021, Section 2216; amending 74 O.S. 2021, Section 2229.1B, 74 O.S. 2021, Section 2243, 74 O.S. 2021, Section 2251, 74 O.S. 2021, Section 2252, 74 O.S. 2021, Section 2253, 74 O.S. 2021, Section 2254, 74 O.S. 2021, Section 2254.1, 74 O.S. 2021, Section 2254.2, 74 O.S. 2021, Section 2255, Section 1, Chapter 425, O.S.L. 2024, as amended by Section 1, Chapter 245,

O.S.L. 2025 (74 O.S. Supp. 2025, Section 2294.1), 74 O.S. 2021, Section 3001, as amended by Section 1, Chapter 252, O.S.L. 2022 (74 O.S. Supp. 2025, Section 3001), Section 2, Chapter 252, O.S.L. 2022 (74 O.S. Supp. 2025, Section 3001.1), 74 O.S. 2021, Section 3003, as amended by Section 3, Chapter 252, O.S.L. 2022 (74 O.S. Supp. 2025, Section 3003), 74 O.S. 2021, Section 3004, as amended by Section 4, Chapter 252, O.S.L. 2022 (74 O.S. Supp. 2025, Section 3004), 74 O.S. 2021, Section 3004.1, as amended by Section 5, Chapter 252, O.S.L. 2022 (74 O.S. Supp. 2025, Section 3004.1), 74 O.S. 2021, Section 3004.2, as amended by Section 6, Chapter 252, O.S.L. 2022 (74 O.S. Supp. 2025, Section 3004.2), 74 O.S. 2021, Section 3005, as amended by Section 7, Chapter 252, O.S.L. 2022 (74 O.S. Supp. 2025, Section 3005), 74 O.S. 2021, Section 3006, as amended by Section 8, Chapter 252, O.S.L. 2022 (74 O.S. Supp. 2025, Section 3006), 74 O.S. 2021, Section 3007, as amended by Section 9, Chapter 252, O.S.L. 2022 (74 O.S. Supp. 2025, Section 3007), 74 O.S. 2021, Section 3008, as amended by Section 10, Chapter 252, O.S.L. 2022 (74 O.S. Supp. 2025, Section 3008), 74 O.S. 2021, Section 3009, as amended by Section 11, Chapter 252, O.S.L. 2022 (74 O.S. Supp. 2025, Section 3009), 74 O.S. 2021, Section 3119, 74 O.S. 2021, Section 3200.2, 74 O.S. 2021, Section 3601.2, 74 O.S. 2021, Section 3605, 74 O.S. 2021, Section 3909, 74 O.S. 2021, Section 3920, 74 O.S. 2021, Section 4103, 74 O.S. 2021, Section 4105, 74 O.S. 2021, Section 4109, 74 O.S. 2021, Section 4115A, 74 O.S. 2021, Section 4121, 74 O.S. 2021, Section 4190, 74 O.S. 2021, Section 4191, 74 O.S. 2021, Section 4192, 74 O.S. 2021, Section 4258, 74 O.S. 2021, Section 4258.1, as amended by Section 1, Chapter 477, O.S.L. 2025 (74 O.S. Supp. 2025, Section 4258.1), 74 O.S. 2021, Section 4258.2, Section 1, Chapter 424, O.S.L. 2024 (74 O.S. Supp. 2025, Section 4258.3), 74 O.S. 2021, Section 5001, 74 O.S. 2021, Section 5012, 74 O.S. 2021, Section 5013, 74 O.S. 2021, Section 5013.3, 74 O.S. 2021, Section 5020.1, 74 O.S. 2021, Section 5028, as amended by Section 5, Chapter 375, O.S.L. 2024 (74 O.S. Supp. 2025, Section 5028), 74 O.S. 2021, Section 5030, 74 O.S. 2021, Section 5060.11, 74 O.S. 2021, Section 5060.21, 74 O.S. 2021, Section 5060.24, 74 O.S. 2021, Section 5060.30, Section 1, Chapter 21, 1st Extraordinary Session, O.S.L. 2023

(74 O.S. Supp. 2025, Section 5060.45), 74 O.S. 2021, Section 5063.17, 74 O.S. 2021, Section 5064.8, 74 O.S. 2021, Section 5066.6, 74 O.S. 2021, Section 5085.11, as amended by Section 5, Chapter 155, O.S.L. 2025 (74 O.S. Supp. 2025, Section 5085.11), 74 O.S. 2021, Section 5152, 74 O.S. 2021, Section 5154, 74 O.S. 2021, Section 5155, 74 O.S. 2021, Section 5156, 74 O.S. 2021, Section 5158, 74 O.S. 2021, Section 6201, 74 O.S. 2021, Section 6202, 74 O.S. 2021, Section 6203, 74 O.S. 2021, Section 6204, 74 O.S. 2021, Section 7005, as amended by Section 1, Chapter 70, O.S.L. 2023 (74 O.S. Supp. 2025, Section 7005), 74 O.S. 2021, Section 8207, 74 O.S. 2021, Section 8402, 74 O.S. 2021, Section 8403, 74 O.S. 2021, Section 9030.3, 74 O.S. 2021, Section 9030.6, 74 O.S. 2021, Section 9030.7, 74 O.S. 2021, Section 9030.8, Section 2, Chapter 165, O.S.L. 2022, as amended by Section 2, Chapter 397, O.S.L. 2025 (74 O.S. Supp. 2025, Section 9102), Section 3, Chapter 229, O.S.L. 2022 (74 O.S. Supp. 2025, Section 9202), Section 5, Chapter 229, O.S.L. 2022, as amended by Section 1, Chapter 336, O.S.L. 2023 (74 O.S. Supp. 2025, Section 9204), Section 8, Chapter 229, O.S.L. 2022, as amended by Section 1, Chapter 208, O.S.L. 2023 (74 O.S. Supp. 2025, Section 9207), 17 O.S. 2021, Section 139.203, as amended by Section 11, Chapter 229, O.S.L. 2022, and as renumbered by Section 14, Chapter 229, O.S.L. 2022 (74 O.S. Supp. 2025, Section 9210); amending Section 26, Chapter 243, O.S.L. 2022 (75 O.S. Supp. 2025, Section 311.2); amending 80 O.S. 2021, Sections 34.2, 34.3, and 34.6; amending 82 O.S. 2021, Section 866, 82 O.S. 2021, Section 896.1, 82 O.S. 2021, Section 1020.16, 82 O.S. 2021, Section 1085.2, as last amended by Section 3, Chapter 164, O.S.L. 2023 (82 O.S. Supp. 2025, Section 1085.2), 82 O.S. 2021, Section 1085.7A, 82 O.S. 2021, Section 1085.7C, 82 O.S. 2021, Section 1085.93, as amended by Section 3, Chapter 138, O.S.L. 2023 (82 O.S. Supp. 2025, Section 1085.93), 82 O.S. 2021, Section 1087.6, 82 O.S. 2021, Section 1141, as amended by Section 1, Chapter 351, O.S.L. 2024 (82 O.S. Supp. 2025, Section 1141), 82 O.S. 2021, Section 1501-205.1, as amended by Section 1, Chapter 88, O.S.L. 2022 (82 O.S. Supp. 2025, Section 1501-205.1), 82 O.S. 2021, Section 1501-205.2, 82 O.S. 2021, Section 1801.4; amending 85A O.S. 2021, Section 19, 85A O.S. 2021, Section 28.1, 85A O.S. 2021, Section 31, 85A O.S. 2021,

Section 50, 85A O.S. 2021, Section 124, 85A O.S. 2021, Section 400, as amended by Section 3, Chapter 279, O.S.L. 2024 (85A O.S. Supp. 2025, Section 400), 85A O.S. 2021, Section 401, as amended by Section 4, Chapter 279, O.S.L. 2024 (85A O.S. Supp. 2025, Section 401), 85A O.S. 2021, Section 401.1, as amended by Section 5, Chapter 279, O.S.L. 2024 (85A O.S. Supp. 2025, Section 401.1); modifying references related to the Director of the Office of Management and Enterprise Services; providing for noncodification; providing for codification; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

This act shall be known and may be cited as the "Office of Management and Enterprise Services Efficiency Act of 2026".

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 34.5.1 of Title 62, unless there is created a duplication in numbering, reads as follows:

A. The Office of Management and Enterprise Services shall be supervised and directed by the Chief Operating Officer.

B. The Chief Operating Officer of the Office of Management and Enterprise Services shall organize the Office into functional units as follows:

1. Administration;
2. Capital Assets Management;

3. Central Purchasing;

4. Human Capital Management; and

5. Risk Assessment and Compliance.

SECTION 3. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 34.11.1-A of Title 62, unless there is created a duplication in numbering, reads as follows:

The functions of the Office of Management and Enterprise Services related to information technology shall be supervised by the Chief Information Officer.

SECTION 4. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 34.34.1 of Title 62, unless there is created a duplication in numbering, reads as follows:

A. The Chief Financial Officer shall perform the duties and responsibilities previously assigned to the Office of Management and Enterprise Services with reporting and analyzing state revenue information and to assist in the presentation and analysis of state revenue information as part of the duties of the State Board of Equalization with respect to the appropriation of public funds pursuant to Section 23 of Article X of the Oklahoma Constitution.

B. Upon request by the Governor, the Chief Financial Officer shall provide such assistance as may be required for the preparation of the annual Executive Budget.

SECTION 5. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 34.5.2A of Title 62, unless there is created a duplication in numbering, reads as follows:

A. The Governor shall appoint, with the advice and consent of the Senate, a Chief Operating Officer (COO) of the State of Oklahoma.

B. The COO shall have a four-year degree in public administration, business management or a related field, and not less than eight (8) years' experience, with progressive responsibility and management, in public budget administration, or in a related position involving administrative or operational responsibility, or any equivalent combination of experience and training.

C. The COO shall be selected with special reference to his or her training, experience, capacity and interest in the activities embraced within Title 74 of the Oklahoma Statutes and other applicable provisions of law. The COO's knowledge, experience, and demonstrated abilities should encompass each of the following:

1. A comprehensive knowledge of the principles and practices of public administration and organizational management, and a working knowledge of governmental accounting;

2. An extensive knowledge of the organization and operations of state departments, agencies and institutions, and of principles of public organization and administration;

3. Demonstrated success in managing the operations of a government entity or large organization, and in the maintenance of effective working relationships with all state officials concerned with state operations; and

4. The ability to organize and present clearly oral and written reports of findings and recommendations.

D. The Governor may remove the Chief Operating Officer for good cause shown.

E. Any person appointed to the position of Chief Operating Officer pursuant to the provisions of this section shall have full authority to take any actions authorized or required by law pending the confirmation of the person by the Oklahoma State Senate.

F. The Legislature may remove the Chief Operating Officer upon the vote of two-thirds (2/3) of the members elected to and constituting each chamber. If a measure is used for the removal, it shall be in the form of a concurrent resolution and shall not be presented to the Governor.

SECTION 6. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 34.5.2B of Title 62, unless there is created a duplication in numbering, reads as follows:

A. The Governor shall appoint, with the advice and consent of the Senate, a Chief Financial Officer of the State of Oklahoma.

B. The Chief Financial Officer shall have a four-year degree in accounting, finance, public administration or a related field, and

not less than five (5) years experience, with progressive responsibility and management, in a related position involving administrative or financial responsibility, or any equivalent combination of experience or training.

C. The Chief Financial Officer shall be selected with special reference to his or her training, experience, capacity and interest in the activities embraced within the provisions of the State Finance Act and other applicable provisions of law. The Chief Financial Officer's knowledge, experience, and demonstrated abilities should encompass each of the following:

1. A comprehensive knowledge of the principles and practices of public budgeting and governmental accounting, and a working knowledge of statistical methods;

2. An extensive knowledge of the organization and operations of state departments, agencies and institutions, and of statutes and regulations governing state budgeting and accounting;

3. An extensive knowledge of principles of public organization and administration;

4. Administrative ability in the direction of staff analyses of state budgetary and other operations, and in the maintenance of effective working relationships with all state officials concerned with budget administration; and

5. The ability to organize and present clearly oral and written reports of findings and recommendations.

1 D. The Governor may remove the Chief Financial Officer for good
2 cause shown.

3 E. Any person appointed to the position of Chief Financial
4 Officer pursuant to the provisions of this section shall have full
5 authority to take any actions authorized or required by law pending
6 the confirmation of the person by the Oklahoma State Senate.

7 F. The Legislature may remove the Chief Financial Officer upon
8 the vote of two-thirds (2/3) of the members elected to and
9 constituting each chamber. If a measure is used for the removal, it
10 shall be in the form of a concurrent resolution and shall not be
11 presented to the Governor.

12 SECTION 7. AMENDATORY 62 O.S. 2021, Section 34.2, as
13 amended by Section 1, Chapter 86, O.S.L. 2025 (62 O.S. Supp. 2025,
14 Section 34.2), is amended to read as follows:

15 Section 34.2. A. Agencies responsible for the collection of
16 monies deposited to the credit of the General Revenue Fund and each
17 of the Special Revenue Funds shall be subject to the provisions of
18 this act. Upon request of the ~~Director of the Office of Management~~
19 ~~and Enterprise Services~~ Chief Financial Officer, these agencies
20 shall provide the ~~Director of the Office of Management and~~
21 ~~Enterprise Services~~ Chief Financial Officer an itemized estimate of
22 funds expected to accrue to the General Revenue Fund and each of the
23 Special Revenue Funds for the ensuing fiscal year in the manner and
24 form established by the ~~Director~~ Chief Financial Officer, in

1 accordance with the duties assigned to the State Board of
2 Equalization in Section 23 of Article X of the Oklahoma
3 Constitution. Each of these agencies shall also provide to the
4 ~~Director~~ Chief Financial Officer, as requested, a written
5 explanation of the methodology and relevant assumptions used in
6 developing the current and future revenue estimates submitted, a
7 statement of:

- 8 1. The prior year's actual revenue collections;
- 9 2. A projection of the current year's revenue collections; and
- 10 3. Estimated revenue collections for the ensuing fiscal year.

11 No expenditure shall be made from any General Revenue Fund or
12 Special Revenue Fund until such fund has been assigned to an agency
13 by law or by the ~~Director of the Office of Management and Enterprise~~
14 ~~Services~~ Chief Financial Officer.

15 B. In addition to providing the information listed above, the
16 Oklahoma Tax Commission shall also provide to the ~~Director of the~~
17 ~~Office of Management and Enterprise Services~~ Chief Financial Officer
18 a comprehensive economic report no later than two (2) weeks prior to
19 each of the meetings of the State Board of Equalization pursuant to
20 paragraphs 1 and 3 of Section 23 of Article X of the Constitution of
21 the State of Oklahoma. Each report shall include a summary of
22 recent national and state economic performance and a forecast of
23 national and state economic performance for the current fiscal year
24 and the ensuing fiscal year. These reports shall be considered a

basis upon which the itemized revenue estimates of the Commission are developed. The report shall include an analysis of the relative accuracy of the economic forecasts on which the previous and current fiscal years' revenue estimates were based.

C. The Tax Commission shall also provide all estimates, explanations, statements, projections, reports and other documents required by this section to the President Pro Tempore of the Senate, members of the Senate Appropriations and Finance Committees, the Speaker of the House of Representatives and members of the House Appropriations and Budget Committee at the same time that such documents are provided to the ~~Director of the Office of Management and Enterprise Services~~ Chief Financial Officer.

SECTION 8. AMENDATORY 62 O.S. 2021, Section 34.3, is amended to read as follows:

Section 34.3. A. There is hereby created in the Executive Department, the Office of Management and Enterprise Services.

B. The Office of Management and Enterprise Services shall manage the centralized administrative services provided to support the operations of state agencies, including:

1. Printing and interagency mail;
2. Construction, property, and facilities;
3. Real estate and leasing;
4. Fleet;
5. Surplus property;

- 1 6. Assistance to and resources for agencies in making purchases
- 2 and suppliers seeking to do business with the state;
- 3 7. Employee benefits;
- 4 8. Human resources and professional development;
- 5 9. Risk management;
- 6 10. Compliance with procurement laws and state, federal, and
- 7 local government regulations; and
- 8 11. State records.

9 C. The term "state agency" or "agency", when used in the
10 Oklahoma State Finance Act, shall mean any agency, board, bureau,
11 commission, or other entity organized within the executive
12 department of state government.

13 ~~C.~~ D. The term "authorization", when used in the Oklahoma State
14 Finance Act, shall mean the legislative authorization for an agency
15 to expend a certain amount of money from a specified fund or funds
16 during a specified period of time.

17 SECTION 9. AMENDATORY 62 O.S. 2021, Section 34.3.1, is
18 amended to read as follows:

19 Section 34.3.1. A. The Department of Central Services, Office
20 of Personnel Management, Oklahoma State Employees Benefits Council
21 and the State and Education Employees Group Insurance Board are
22 consolidated into the Office of Management and Enterprise Services.
23 The ~~Director~~ Chief Operating Officer of the Office of Management and
24 Enterprise Services shall assume all executive-level

responsibilities for each agency and shall function as and possess the powers of the agency ~~director~~ Chief Operating Officer for each consolidated agency as enumerated by existing statute. For the purposes of this section the term "consolidated agencies" shall mean the Department of Central Services, Office of Personnel Management, Oklahoma State Employees Benefits Council and the State and Education Employees Group Insurance Board. Any funds appropriated to, in the possession of or allocated to any of the consolidated agencies shall be deemed to be funds of the Office of Management and Enterprise Services.

B. Upon request of the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services, the personnel of the consolidated agencies shall deliver to the Office of Management and Enterprise Services all books, papers, records and property of the consolidated agencies.

C. All functions, powers, duties and obligations previously assigned to each of the consolidated agencies are hereby transferred to the Office of Management and Enterprise Services.

D. All rules, regulations, acts, orders, determinations and decisions of the consolidated agencies pertaining to the functions and powers herein transferred and assigned to the Office of Management and Enterprise Services, in force at the time of such transfer, assignment, assumption or devolution shall continue in force and effect as rules, regulations, acts, orders, determinations

1 and decisions of the consolidated agencies until duly modified or
2 abrogated by the appropriate body or until otherwise provided by
3 law.

4 SECTION 10. AMENDATORY 62 O.S. 2021, Section 34.5, is
5 amended to read as follows:

6 Section 34.5. The A. Except as provided by Section 5 of this
7 act and by the provisions of this section, the Governor shall
8 appoint a Director of the Office of Management and Enterprise
9 Services, by and with the consent of the Senate, who shall hold
10 office at the pleasure of the Governor and shall continue to serve
11 until a successor is duly appointed and is qualified.

12 B. The provisions of subsection A of this section shall
13 continue in force and effect until the Governor appoints a Chief
14 Operating Officer pursuant to the provisions of Section 5 of this
15 act. On and after the effective date of such appointment, the
16 person appointed to the position of Chief Operating Officer shall
17 have all authority to take such actions as may be required or
18 authorized by law in order to fulfill the duties of the position of
19 Chief Operating Officer whether or not confirmed by the Oklahoma
20 State Senate. Any other person appointed to the position of Chief
21 Operating Officer shall also have the same authority whether or not
22 confirmed by the Oklahoma State Senate.

23 SECTION 11. AMENDATORY 62 O.S. 2021, Section 34.6, as
24 amended by Section 2, Chapter 14, 2nd Extraordinary Session, O.S.L.

2022 (62 O.S. Supp. 2025, Section 34.6), is amended to read as follows:

Section 34.6. A. The ~~Director of the Office of Management and Enterprise Services~~ Chief Financial Officer shall have the power and duty under the direction of the Governor to:

~~1. Prepare the budget document and assist in the drafting of legislation to make it effective;~~

~~2.~~ Make field surveys and studies of governmental agencies, looking toward economy and greater efficiency;

~~3.~~ 2. Make allotments to control expenditures;

~~4.~~ 3. Authorize transfers of appropriation authorized by law;

~~5.~~ 4. Study accounting and other reports rendered by the Division of Central Accounting and Reporting;

~~6.~~ 5. Enter into agreements with the United States Secretary of the Treasury for the purpose of implementing federal law;

~~7.~~ 6. Aid the Governor in the economical management of state affairs; and

~~8.~~ 7. Adopt such rules and regulations concerning the exercise of powers and duties as the ~~Director~~ Chief Financial Officer shall deem appropriate, in accordance with the Administrative Procedures Act.

B. In addition to other duties, the ~~Director of the Office of Management and Enterprise Services~~ Chief Financial Officer shall, upon request, advise and consult with members of the Legislature and

1 legislative committees concerning revenue and expenditures of state
2 agencies.

3 C. ~~The Director of the Office of Management and Enterprise~~
4 ~~Services~~ Chief Financial Officer shall publish daily reports of all
5 expenditures of funds from the Coronavirus Aid, Relief, and Economic
6 Security (CARES) Act on the Oklahoma Checkbook page on the state
7 website.

8 D. ~~The Director of the Office of Management and Enterprise~~
9 ~~Services~~ Chief Financial Officer shall report weekly on the status
10 of all grant agreements, as provided for in Section ~~4~~ 255.1 of this
11 ~~act~~ title.

12 E. ~~The Director of the Office of Management and Enterprise~~
13 ~~Services~~ Chief Financial Officer shall report quarterly to the
14 chairs of the Joint Committee on Pandemic Relief Funding and make
15 available to the public on the state's website, a quarterly report
16 of all expenditures of federal funds drawn down from the American
17 Rescue Plan Act 2021 (ARPA), Public Law 117-2.

18 F. ~~The Director of the Office of Management and Enterprise~~
19 ~~Services~~ Chief Financial Officer shall provide technical assistance
20 to agencies seeking to comply with state law and federal guidelines
21 as a recipient of federal funds. Technical assistance shall
22 include, but not be limited to, procurement and competitive bidding
23 requirements assistance, capital expenditure assistance, model
24 templates, model agreements, grants management software or other

advice, recommended reporting, and accounting of federal funds, to all state agencies who request technical assistance.

SECTION 12. AMENDATORY 62 O.S. 2021, Section 34.7, is amended to read as follows:

Section 34.7. ~~The Director of the Office of Management and Enterprise Services~~ Chief Financial Officer, with the approval of the Governor, shall employ and make the appointment of such experts and assistants as may be necessary to execute the purposes of the Oklahoma State Finance Act. No appointments to positions shall be made in excess of those positions authorized by the Legislature for ~~the Division of the Budget,~~ the Division of Central Accounting and Reporting ~~and the Information Services Division.~~

SECTION 13. AMENDATORY 62 O.S. 2021, Section 34.9, is amended to read as follows:

Section 34.9. ~~The Director~~ Chief Operating Officer of the Office of Management and Enterprise Services is hereby authorized and directed to classify funds in the State Treasury and to prescribe the manner of issuance of checks or warrants against each class of funds to accomplish the purpose for which each such fund was created. The State Treasurer shall be, and is, required to keep fund accounts in accordance with such classification. ~~The Director of the Office of Management and Enterprise Services~~ Chief Financial Officer shall group funds of a similar nature in a series of classes. Accounting entities otherwise designated as funds, by

1 other provisions of law, may be retained, deactivated, merged with
2 other such entities or identified as accounts within funds as the
3 ~~Director of the Office of Management and Enterprise Services~~ Chief
4 Financial Officer determines to be appropriate for purposes of the
5 modernization and maintenance of the fund structure of the state.

6 SECTION 14. AMENDATORY 62 O.S. 2021, Section 34.10, as
7 amended by Section 1, Chapter 99, O.S.L. 2024 (62 O.S. Supp. 2025,
8 Section 34.10), is amended to read as follows:

9 Section 34.10. The ~~Director of the Office of Management and~~
10 ~~Enterprise Services~~ Chief Financial Officer shall cause to be
11 prepared an annual comprehensive financial report, in accordance
12 with generally accepted accounting principles for governments, and
13 shall further have the general purpose financial statements included
14 in the annual comprehensive financial report audited in accordance
15 with generally accepted auditing standards. The ~~Director~~ Chief
16 Financial Officer is hereby authorized to establish procedures and
17 guidelines which are consistent with those issued by the Government
18 Accounting Standards Board, and which shall be followed by state
19 agencies, colleges and universities and other entities who are
20 included in the report, for purposes of establishing consistent
21 application of accounting principles and to ensure the timeliness of
22 the report.

SECTION 15. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 34.11.1-A of Title 62, unless there is created a duplication in numbering, reads as follows:

Not later than twelve (12) months from the effective date of this act, the Chief Information Officer shall submit a report to the Governor, the Speaker of the Oklahoma House of Representatives and the President Pro Tempore of the Oklahoma State Senate containing:

1. An inventory of all existing legacy systems across state agencies and an assessment that includes the age of the system and criticality of system functionality;

2. An inventory of all contracted technology services and software, to include ownership status, vendor name, annual budgeted project development costs, annual maintenance costs, and expected end of service term; and

3. A strategic plan that includes progressive action items over a three-year period, beginning on the July 1 date immediately following the effective date of this act, to accomplish the following:

- a. assessment of the technology needs of individual state agencies, including the agency's key business functions and potential technology solutions to improve efficiency, reduce risk, and improve delivery of service,

- b. assessment of agencies with similar business functions,
- c. prioritization of state developed or direct ownership of software solutions and support,
- d. training programs for state employees to become the primary support for the state's technology tools, and
- e. development of Information Technology resource plans for state agencies for budget planning.

SECTION 16. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 34.5.1A of Title 62, unless there is created a duplication in numbering, reads as follows:

Not later than twelve (12) months from the appointment of the Chief Operating Officer, the Chief Operating Officer shall make a report to the Governor, the Speaker of the Oklahoma House of Representatives and the President Pro Tempore of the Oklahoma State Senate of the following:

1. An inventory of all leased space and annual lease costs, by property; and
2. A strategic plan that includes progressive action items over a three-year period ending the third complete fiscal year following the appointment of the Chief Operating Officer to accomplish the goals of:

- 1 a. maximizing utilization of state-owned buildings,
2 whether owned by the Office of Management and
3 Enterprise Services or state agencies, and
4 b. minimizing the state's expenditures on leased space.

5 SECTION 17. AMENDATORY 62 O.S. 2021, Section 34.11.1, as
6 amended by Section 1, Chapter 193, O.S.L. 2024 (62 O.S. Supp. 2025,
7 Section 34.11.1), is amended to read as follows:

8 Section 34.11.1. A. There is hereby created the position of
9 Chief Information Officer who shall be appointed by the Governor.
10 The Chief Information Officer, ~~in addition to having~~ shall have
11 authority over the ~~Information Services Division of the Office of~~
12 ~~Management and Enterprise Services, shall also serve as Secretary of~~
13 ~~Information Technology and Telecommunications or successor cabinet~~
14 ~~position and shall have jurisdictional areas of responsibility~~
15 ~~related to information technology and telecommunications systems of~~
16 ~~all state agencies as provided for in state law~~ Office of Strategic
17 Technology Solutions. The salary of the Chief Information Officer
18 shall not be less than One Hundred Thirty Thousand Dollars
19 (\$130,000.00) or more than One Hundred Sixty Thousand Dollars
20 (\$160,000.00).

21 B. There is hereby created the Office of Strategic Technology
22 Solutions. Any funds appropriated to and in possession of the
23 Information Division of the Office of Management and Enterprise
24 Services shall be deemed to be funds of the Office of Strategic

1 Technology Solutions. The personnel, records and property of the
2 Information Services Division of the Office of Management and
3 Enterprise Services shall be transferred to the Office of Strategic
4 Technology Solutions. The primary responsibilities of this office
5 and the Chief Information Officer shall be to develop technology
6 solutions for and with state agencies, manage state spending on
7 technology, provide information technology support services to
8 agencies, and ensure standardized cybersecurity standards across
9 state government.

10 C. Any person appointed to the position of Chief Information
11 Officer shall meet the following eligibility requirements:

12 1. A baccalaureate degree in Computer Information Systems,
13 Information Systems or Technology Management, Business
14 Administration, Finance, or other similar degree;

15 2. A minimum of ten (10) years of professional experience with
16 responsibilities for management and support of information systems
17 and information technology, including seven (7) years of direct
18 management of a major information technology operation;

19 3. Familiarity with local and wide-area network design,
20 implementation, and operation;

21 4. Experience with data and voice convergence service
22 offerings;

23 5. Experience in developing technology budgets;
24

6. Experience in developing requests for proposal and administering the bid process;

7. Experience managing professional staff, teams, and consultants;

8. Knowledge of telecommunications operations;

9. Ability to develop and set strategic direction for information technology and telecommunications and to manage daily development and operations functions;

10. An effective communicator who is able to build consensus;

11. Ability to analyze and resolve complex issues, both logical and interpersonal;

12. Effective verbal and written communications skills and effective presentation skills, geared toward coordination and education;

13. Ability to negotiate and defuse conflict; and

14. A self-motivator, independent, cooperative, flexible and creative.

~~C. D. The salary and any other expenses for the Chief Information Officer shall be budgeted as a separate line item through the Office of Management and Enterprise Services. The operating expenses of the Information Services Division shall be set by the Chief Information Officer and shall be budgeted as a separate line item through the Office of Management and Enterprise Services. The Office of Management and Enterprise Services shall provide~~

~~adequate office space, equipment and support necessary to enable the Chief Information Officer to carry out the information technology and telecommunications duties and responsibilities of the Chief Information Officer and the Information Services Division to the Office of Strategic Technology Solutions as a standalone agency.~~

~~D.~~ E. 1. Within twelve (12) months of appointment, the ~~first~~ Chief Information Officer shall complete an assessment, which shall be modified annually pursuant to Section 35.5 of this title, of the ~~implementation of the transfer,~~ coordination, and modernization of all information technology and telecommunication systems of all state agencies in the state as provided for in the Oklahoma Information Services Act. The assessment shall include the information technology and telecommunications systems of all institutions within The Oklahoma State System of Higher Education, the Oklahoma State Regents for Higher Education and the telecommunications network known as OneNet as assembled and submitted by the Oklahoma Higher Education Chief Information Officer, as designated by the Oklahoma State Regents for Higher Education.

2. Within twelve (12) months of appointment, the ~~first~~ Chief Information Officer shall issue a report setting out a plan of action which will include the following:

- a. define the shared service model organization structure and the reporting relationship of the recommended organization,
- b. the implementation of an information technology and telecommunications shared services model that defines the statewide infrastructure environment needed by most state agencies that is not specific to individual agencies and the shared applications that are utilized across multiple agencies,
- c. define the services that shall be in the shared services model under the control of the ~~Information Services Division of the Office of Management and Enterprise Services~~ Strategic Technology Solutions,
- d. define the roadmap to implement the proposed shared services model. The roadmap shall include recommendations on the transfer, coordination, and modernization of all information technology and telecommunication systems of all the state agencies in the state,
- e. recommendations on the reallocation of information technology and telecommunication resources and personnel,

- 1 f. a cost benefit analysis to support the recommendations
2 on the reallocation of information technology and
3 telecommunication resources and personnel,
4 g. a calculation of the net savings realized through the
5 reallocation and consolidation of information
6 technology and telecommunication resources and
7 personnel after compensating for the cost of
8 contracting with a private consultant as authorized in
9 paragraph 4 of this subsection, implementing the plan
10 of action, and ongoing costs of the ~~Information~~
11 ~~Services Division of the Office of Management and~~
12 ~~Enterprise Services~~ Strategic Technology Solutions,
13 and
14 h. the information required in subsection B of Section
15 35.5 of this title.

16 3. The plan of action report shall be presented to the
17 Governor, Speaker of the Oklahoma House of Representatives, and the
18 President Pro Tempore of the Oklahoma State Senate.

19 ~~4. The Chief Information Officer may contract with a private~~
20 ~~consultant or consultants to assist in the assessment and~~
21 ~~development of the plan of action report as required in this~~
22 ~~subsection.~~

23 ~~E.~~ F. The Chief Information Officer shall be authorized to
24 employ personnel, fix the duties and compensation of the personnel,

not otherwise prescribed by law, and otherwise direct the work of the personnel in performing the function and accomplishing the purposes of the ~~Information Services Division of the Office of Management and Enterprise Services~~ Strategic Technology Solutions.

F. G. The ~~Information Services Division of the Office of Management and Enterprise Services~~ Strategic Technology Solutions shall be responsible for the following duties:

1. Formulate and implement the information technology strategy for all state agencies;

2. Define, design, and implement a shared services statewide infrastructure and application environment for information technology and telecommunications for all state agencies;

3. Direct the development and operation of a scalable telecommunications infrastructure that supports data and voice communications reliability, integrity, and security;

4. Supervise the applications development process for those applications that are utilized across multiple agencies;

5. Provide direction for the professional development of information technology staff of state agencies and oversee the professional development of the staff of the ~~Information Services Division of the Office of Management and Enterprise Services~~ Strategic Technology Solutions;

6. Evaluate all technology and telecommunication investment choices for all state agencies;

1 7. Create a plan to ensure alignment of current systems, tools,
2 and processes with the strategic information technology plan for all
3 state agencies;

4 8. Set direction and provide oversight for the support and
5 continuous upgrading of the current information technology and
6 telecommunication infrastructure in the state in support of enhanced
7 reliability, user service levels, and security;

8 9. Direct the development, implementation, and management of
9 appropriate standards, policies and procedures to ensure the success
10 of state information technology and telecommunication initiatives;

11 10. Recruit, hire and transfer the required technical staff in
12 the ~~Information Services Division of the~~ Office of Management and
13 Enterprise Services to support the technology services ~~provided by~~
14 ~~the Division~~ and the execution of the strategic information
15 technology plan;

16 11. Establish, maintain, and enforce information technology and
17 telecommunication standards;

18 12. Delegate, coordinate, and review all work to ensure quality
19 and efficient operation of the ~~Information Services Division of the~~
20 Office of Management and Enterprise Services Strategic Technology
21 Solutions;

22 13. Create and implement a communication plan that disseminates
23 pertinent information to state agencies on standards, policies,
24 procedures, service levels, project status, and other important

1 information to customers of the ~~Information Services Division of the~~
2 Office of ~~Management and Enterprise Services~~ Strategic Technology
3 Solutions and provide for agency feedback and performance evaluation
4 by customers of the Division;

5 14. Develop and implement training programs for state agencies
6 using the shared services of the ~~Information Services Division of~~
7 ~~the Office of Management and Enterprise Services~~ Strategic
8 Technology Solutions and recommend training programs to state
9 agencies on information technology and telecommunication systems,
10 products and procedures;

11 15. Provide counseling, performance evaluation, training,
12 motivation, discipline, and assign duties for employees of the
13 ~~Information Services Division of the Office of Management and~~
14 ~~Enterprise Services~~ Strategic Technology Solutions;

15 16. For all state agencies, approve the purchasing of all
16 information technology and telecommunication services and approve
17 the purchase of any information technology and telecommunication
18 product except the following:

- 19 a. a purchase less than or equal to Five Thousand Dollars
20 (\$5,000.00) if such product is purchased using a state
21 purchase card and the product is listed on either the
22 Approved Hardware or Approved Software list located on
23 the Office of ~~Management and Enterprise Services~~
24 Strategic Technology Solutions website, or

b. a purchase over Five Thousand Dollars (\$5,000.00) and less than or equal to Twenty-five Thousand Dollars (\$25,000.00) if such product is purchased using a state purchase card, the product is listed on an information technology or telecommunications statewide contract, and the product is listed on either the Approved Hardware or Approved Software list located on the Office of ~~Management and Enterprise Services~~ Strategic Technology Solutions website;

17. Develop and enforce an overall infrastructure architecture strategy and associated roadmaps for desktop, network, server, storage, and statewide management systems for state agencies;

18. Effectively manage the design, implementation and support of complex, highly available infrastructure to ensure optimal performance, on-time delivery of features, and new products, and scalable growth;

19. Define and implement a governance model for requesting services and monitoring service level metrics for all shared services; and

20. Create the budget for the ~~Information Services Division of the Office of Management and Enterprise Services~~ Strategic Technology Solutions to be submitted to the Legislature each year.

~~G. H.~~ The State Governmental Technology Applications Review Board shall provide ongoing oversight of the implementation of the

plan of action required in subsection ~~D~~ E of this section. Any proposed amendments to the plan of action shall be approved by the Board prior to adoption.

~~H.~~ I. 1. The Chief Information Officer shall act as the Information Technology and Telecommunications Purchasing Director for all state agencies and shall be responsible for the procurement of all information technology and telecommunication software, hardware, equipment, peripheral devices, maintenance, consulting services, high technology systems, and other related information technology, data processing, telecommunication and related peripherals and services for all state agencies. The Chief Information Officer shall establish, implement, and enforce policies and procedures for the procurement of information technology and telecommunication software, hardware, equipment, peripheral devices, maintenance, consulting services, high technology systems, and other related information technology, data processing, telecommunication and related peripherals and services by purchase, lease-purchase, lease with option to purchase, lease and rental for all state agencies. The procurement policies and procedures established by the Chief Information Officer shall be consistent with The Oklahoma Central Purchasing Act.

2. The Chief Information Officer, or any employee or agent of the Chief Information Officer acting within the scope of delegated authority, shall have the same power and authority regarding the

procurement of all information technology and telecommunication products and services as outlined in paragraph 1 of this subsection for all state agencies as the State Purchasing Director has for all acquisitions used or consumed by state agencies as established in The Oklahoma Central Purchasing Act. Such authority shall, consistent with the authority granted to the State Purchasing Director pursuant to Section 85.10 of Title 74 of the Oklahoma Statutes, include the power to designate financial or proprietary information submitted by a bidder confidential and reject all requests to disclose the information so designated, if the Chief Information Officer requires the bidder to submit the financial or proprietary information with a bid, proposal, or quotation.

~~I. J. The Information Services Division of the Office of Management and Enterprise Services~~ Strategic Technology Solutions and the Chief Information Officer shall be subject to the Oklahoma Central Purchasing Act for the approval and purchase of all equipment, products, and services and shall also be subject to the requirements of the Public Competitive Bidding Act of 1974, the Oklahoma Lighting Energy Conservation Act and the Public Building Construction and Planning Act. The Chief Information Officer shall be authorized to delegate all or some of the procurement of information technology and telecommunication products and services and construction of facilities and telecommunication networks to another state entity if the Chief Information Officer determines it

1 to be cost-effective and in the best interest of the state. The
2 Chief Information Officer shall have authority to designate
3 information technology and telecommunication contracts as statewide
4 contracts and mandatory statewide contracts pursuant to Section 85.5
5 of Title 74 of the Oklahoma Statutes and to negotiate consolidation
6 contracts, enterprise agreements and high technology systems
7 contracts. Any contract entered into by a state agency for which
8 the Chief Information Officer has not acted as the Information
9 Technology and Telecommunications Purchasing Director as required in
10 this subsection or subsection ~~H~~ I of this section, shall be deemed
11 to be unenforceable and the Office of ~~Management and Enterprise~~
12 ~~Services~~ Strategic Technology Solutions shall not process any claim
13 associated with the provisions thereof.

14 ~~J~~. K. The Chief Information Officer shall establish, implement,
15 and enforce policies and procedure for the development and
16 procurement of an interoperable radio communications system for
17 state agencies. The Chief Information Officer shall work with local
18 governmental entities in developing the interoperable radio
19 communications system.

20 ~~K~~. L. The Chief Information Officer shall develop and implement
21 a plan to utilize open source technology and products for the
22 information technology and telecommunication systems of all state
23 agencies.

1 ~~L.~~ M. All state agencies and authorities of this state and all
2 officers and employees of those entities shall work and cooperate
3 with and lend assistance to the Chief Information Officer and the
4 ~~Information Services Division of the Office of Management and~~
5 ~~Enterprise Services~~ Strategic Technology Solutions and provide any
6 and all information requested by the Chief Information Officer.

7 ~~M.~~ N. The Chief Information Officer shall prepare an annual
8 report detailing the ongoing net saving attributable to the
9 reallocation and consolidation of information technology and
10 telecommunication resources and personnel and shall submit the
11 report to the Governor, the Speaker of the Oklahoma House of
12 Representatives, and the President Pro Tempore of the Oklahoma State
13 Senate.

14 ~~N.~~ O. For purposes of the Oklahoma Information Services Act,
15 unless otherwise provided for, "state agencies" shall include any
16 office, officer, bureau, board, commission, counsel, unit, division,
17 body, authority or institution of the executive branch of state
18 government, whether elected or appointed; provided, except with
19 respect to the provisions of subsection ~~D~~ E of this section, the
20 term "state agencies" shall not include institutions within The
21 Oklahoma State System of Higher Education, the Oklahoma State
22 Regents for Higher Education and the telecommunications network
23 known as OneNet.

24 ~~O.~~ P. As used in this section:

1 1. "High technology system" means advanced technological
2 equipment, software, communication lines, and services for the
3 processing, storing, and retrieval of information by a state agency;

4 2. "Consolidation contract" means a contract for several state
5 or public agencies for the purpose of purchasing information
6 technology and telecommunication goods and services; and

7 3. "Enterprise agreement" means an agreement for information
8 technology or telecommunication goods and services with a supplier
9 who manufactures, develops and designs products and provides
10 services that are used by one or more state agencies.

11 SECTION 18. AMENDATORY 62 O.S. 2021, Section 34.11, is
12 amended to read as follows:

13 Section 34.11. The Division of Central Accounting and Reporting
14 shall operate under the supervision of the Chief Financial Officer,
15 and be responsible for accounting and auditing duties and the
16 auditing and settlement of purchase orders, contracts, claims,
17 payrolls, and other obligations.

18 The Division of Central Accounting and Reporting shall prepare
19 uniform budget and accounting classifications for all state agencies
20 and shall implement appropriate accounting methods and systems in
21 state agencies. The Division of Central Accounting and Reporting
22 shall:

23 1. Settle all claims payable by this state;
24

2. Verify distribution of all taxes and other dues collected for local governments;

3. Superintend the recovery of all debts due state government;

4. Keep the central budget and proprietary accounts of the state government;

5. Prepare and issue financial and accounting reports, at least quarterly;

6. Prescribe all forms, systems, and procedure for administering accounting for the several departments and establishments;

7. At the request of a state agency, assist in establishing standards, policies and procedures that ensure a strong and effective system of internal controls and regular monitoring of them;

8. Certify each and every requisition by a duly accredited disbursing officer for an advance of funds from the State Treasury to the ~~Director of the Office of Management and Enterprise Services~~ Chief Financial Officer for approval; and

9. Establish a pre-audit system of settling claims for the entire government of this state and for state agencies in which vouchers supporting proposed payments are submitted to the Office of Management and Enterprise Services for audit and settlement.

SECTION 19. AMENDATORY Section 1, Chapter 36, 1st Extraordinary Session, O.S.L. 2023 (62 O.S. Supp. 2025, Section 34.11.1.2), is amended to read as follows:

Section 34.11.1.2. There is hereby created in the State Treasury a revolving fund for the Office of Management and Enterprise Services to be designated the "Oklahoma Employment Security Commission Information Technology Innovation Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies appropriated to the revolving fund created herein. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Office of Management and Enterprise Services for the purpose of augmenting the information technology infrastructure of the Oklahoma Employment Security Commission. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 20. AMENDATORY 62 O.S. 2021, Section 34.22, is amended to read as follows:

Section 34.22. There is hereby created in the State Treasury a revolving fund for the Office of Management and Enterprise Services to be designated the "Telecommunications Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations,

1 and shall consist of appropriations made by the Legislature and
2 reimbursements for providing telecommunications services as defined
3 in Sections 34.19, 34.20, 34.21 and 34.24 of this title. All monies
4 accruing to such fund are hereby appropriated and may be budgeted
5 and expended by the Office of Management and Enterprise Services for
6 the purpose of providing telecommunications, Internet, and
7 eGovernment services, as referenced in Sections 34.24 and 34.25 of
8 this title, the construction and maintenance of information
9 technology facilities and services, and other related services.
10 Expenditures from said fund shall be made upon warrants issued by
11 the State Treasurer against claims filed as prescribed by law with
12 the ~~Director~~ Chief Operating Officer of the Office of Management and
13 Enterprise Services for approval and payment.

14 SECTION 21. AMENDATORY 62 O.S. 2021, Section 34.27, is
15 amended to read as follows:

16 Section 34.27. A. There is hereby established the State
17 Governmental Technology Applications Review Board. The Board shall
18 be composed of the following members:

19 1. The ~~Director~~ Chief Operating Officer of the Office of
20 Management and Enterprise Services or a designee;

21 2. Four representatives from different state agencies, boards,
22 commissions, or authorities to be appointed by the Governor, at
23 least one of which shall be employed by a law enforcement agency;
24

3. Two members who are not state government employees to be appointed by the Speaker of the House of Representatives; and

4. Two members who are not state government employees to be appointed by the President Pro Tempore of the Senate.

B. Members of the Board shall serve for terms of two (2) years. The Board shall select a chair from among its members.

C. Members of the Board shall not receive compensation for serving on the Board, but shall be reimbursed for travel expenses incurred in the performance of their duties by their respective agencies or appointing authority in accordance with the State Travel Reimbursement Act.

D. Notwithstanding any other section of law, any member of the Board attending a meeting via teleconference shall be counted as being present in person and shall count toward the determination of whether a quorum of the Board is present at the meeting.

E. The Board shall have the duty and responsibility of:

1. Reviewing for approval all convenience fees and merchant fees as defined in Section 34.25 of this title and changes in convenience fees and merchant fees charged by state agencies, boards, commissions, or authorities;

2. Monitoring all portal systems and applications for portal systems created by state agencies, boards, commissions, or authorities, reviewing portal systems applications approved or denied by the ~~Information Services Division of the Office of~~

1 ~~Management and Enterprise Services~~ Office of Strategic Technology
2 Solutions, and making recommendations to the Legislature and

3 Governor to encourage greater use of the open-systems concept as is
4 defined in Section 34.26 of this title;

5 3. Granting an exemption for a specific license or permit to a
6 state agency from the requirements of Section 34.24.1 of this title.
7 The exemption shall be limited in time as warranted by the
8 circumstances. The Board shall grant the exemption only if
9 presented compelling evidence that the issuance of the license or
10 permit requires the provision of information that cannot be provided
11 through an online licensing or permitting process and that the
12 failure of the applicant to provide the information would create a
13 significant risk to the integrity of the license or permit. The
14 exemption provided for in this paragraph shall not apply to license
15 renewals pursuant to the Oklahoma Vehicle License and Registration
16 Act;

17 4. Providing ongoing oversight of implementation of the plan of
18 action developed by the Chief Information Officer pursuant to
19 Section 34.11.1 of this title and approving any amendments to the
20 plan of action;

21 5. Approving charges to state agencies established by the
22 Information Services Division pursuant to Section 35.5 of this title
23 for shared services as defined in Section 35.3 of this title;

6. Functioning in an advisory capacity to the Chief Information Officer; and

7. Approving a plan by which public elementary and secondary schools of the state may recover the cost of instructional technology resources issued by the schools.

SECTION 22. AMENDATORY 62 O.S. 2021, Section 34.28, is amended to read as follows:

Section 34.28. A. ~~The Information Services Division of the Office of Management and Enterprise Services~~ Strategic Technology Solutions shall work to assure state compliance regarding accessibility of information technology for individuals with disabilities based on the provisions of Section 508 of the Workforce Investment Act of 1998.

B. When developing, procuring, maintaining or using information technology, or when administering contracts or grants that include the procurement, development, upgrading, or replacement of information technology each state agency shall ensure, unless an undue burden would be imposed on the agency, that the information technology allows employees, program participants, and members of the general public access to use of information and data that is comparable to the access by individuals without disabilities.

C. To assure accessibility, the ~~Information Services Division~~ Office of Strategic Technology Solutions shall:

1 1. Adopt accessibility standards that address all technical
2 standard categories of Section 508 of the Workforce Investment Act
3 of 1998 to be used by each state agency in the procurement of
4 information technology, and in the development and implementation of
5 custom-designed information technology systems, Web sites, and other
6 emerging information technology systems;

7 2. Adopt an accessibility clause which shall be included in all
8 contracts for the procurement of information technology by or for
9 the use of state agencies;

10 3. Establish and implement a review procedure to be used to
11 evaluate the accessibility of custom-designed information technology
12 systems proposed by a state agency prior to expenditure of state
13 funds;

14 4. Review and evaluate accessibility of information technology
15 commonly purchased by state agencies, and provide accessibility
16 reports on such products to those responsible for purchasing
17 decisions;

18 5. Provide in partnership with Oklahoma Able Tech, the state
19 assistive technology program located at Oklahoma State University,
20 training and technical assistance for state agencies to assure
21 procurement of information technology that meets adopted
22 accessibility standards;

23 6. Consult with the State Department of Rehabilitation Services
24 and individuals with disabilities in accessibility reviews of

information technology and in the delivery of training and technical assistance;

7. Establish complaint procedures, consistent with Section 508 of the Workforce Development Act of 1998, to be used by an individual who alleges that a state agency fails to comply with the provisions of this section;

8. Work with and seek advice from the Electronic and Information Technology Accessibility Advisory Council, created in Section 34.30 of this title in developing accessibility standards and complaint procedures as required in this section; and

9. Require state agencies to submit evidence of assurance of compliance with state standards on accessibility of information technology for individuals with disabilities developed in accordance with this section.

D. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services shall promulgate rules, as necessary, to implement the provisions of this section.

SECTION 23. AMENDATORY 62 O.S. 2021, Section 34.34, is amended to read as follows:

Section 34.34. It shall be the duty of the ~~Director~~ Chief Financial Officer of the Office of Management and Enterprise Services, after making a complete detailed study of each state agency, to prepare the budget under the supervision and direction of the Governor.

1 SECTION 24. AMENDATORY 62 O.S. 2021, Section 34.35, is
2 amended to read as follows:

3 Section 34.35. Each state agency shall immediately furnish the
4 ~~Director~~ Chief Financial Officer of the Office of Management and
5 Enterprise Services any information concerning their respective
6 affairs or activities, upon request and in such form as directed.

7 SECTION 25. AMENDATORY 62 O.S. 2021, Section 34.36, as
8 amended by Section 2, Chapter 199, O.S.L. 2025 (62 O.S. Supp. 2025,
9 Section 34.36), is amended to read as follows:

10 Section 34.36. A. On the first day of October preceding each
11 regular session of the Legislature, each state agency, including
12 those created or established pursuant to constitutional provisions,
13 shall report to the ~~Director of the Office of Management and~~
14 ~~Enterprise Services~~ Chief Financial Officer and the Chair and Vice
15 Chair of the Legislative Oversight Committee on State Budget
16 Performance an itemized request showing the amount needed for the
17 ensuing fiscal year beginning with the first day of July.

18 B. The forms which must be used in making these reports shall
19 be approved by the ~~Director of the Office of Management and~~
20 ~~Enterprise Services~~ Chief Financial Officer and the Legislative
21 Oversight Committee on State Budget Performance.

22 C. The forms shall be uniform, and shall clearly designate the
23 information to be given.
24

D. The information provided shall include, but not be limited to:

1. A budget analysis of existing and proposed programs utilizing performance-informed budgeting techniques. Such analysis shall be included as a part of the estimate of funds needed;

2. A statement listing any other state, federal or local agencies which administer a similar or cooperating program and an outline of the interaction among such agencies;

3. A statement of the statutory authority for the missions and quantified objectives of each program;

4. A description of the groups of people served by each program in the agency;

5. A quantification of the need for the program;

6. A description of the tactics which are intended to accomplish each objective;

7. A list of quantifiable program outcomes which measure the efficiency and effectiveness of each program;

8. A ranking of these programs by priority;

9. Actual program expenditures for the current fiscal year and prior fiscal years and the number of personnel required to accomplish each program;

10. Revenues expected to be generated by each program, if any;

11. With respect to appropriated state agencies, a detailed listing of all employees and resources dedicated to the provision of

1 financial services including but not limited to procurement,
2 payroll, accounts receivable and accounts payable. The provisions
3 of this paragraph shall not be applicable to the Oklahoma State
4 Regents for Higher Education or to any institutions within The
5 Oklahoma State System of Higher Education; and

6 12. A certification that following the effective date of this
7 act and prior to July 1, 2011, no expenditure shall have been made
8 or funds encumbered for the purchase, lease, lease-purchase or
9 rental of any computers, software, telecom, information technology
10 hardware, firmware or information technology services, including
11 support services without the prior written approval of the State
12 Comptroller or his or her designee.

13 E. These appropriated agencies shall make an itemized estimate
14 of needs for the ensuing fiscal year and the following two (2)
15 fiscal years and request for funds for the ensuing fiscal year and
16 an estimate of the revenues from all sources to be received by the
17 agency during the ensuing fiscal year and the following two (2)
18 fiscal years.

19 F. ~~The Director of the Office of Management and Enterprise~~
20 ~~Services~~ Chief Financial Officer shall submit to the Governor and
21 the Legislative Oversight Committee on State Budget Performance no
22 later than the fifth day of October a complete list of all spending
23 agencies which have failed to submit budgets by October 1.

1 G. The reports required by this section shall include an
2 itemized listing of outstanding capital lease debt and estimated
3 capital lease needs for the ensuing fiscal year and the following
4 two (2) fiscal years, and shall be provided on forms prescribed by
5 the ~~Director of the Office of Management and Enterprise Services~~
6 Chief Financial Officer.

7 H. For the purposes of this section, "capital lease" means a
8 lease-purchase agreement which provides an option for the State of
9 Oklahoma or its agencies to purchase property, including personal
10 and real property, which is the subject thereof and/or a lease
11 agreement that provides an option for the State of Oklahoma or its
12 agencies to lease such property, which is the subject thereof, at a
13 nominal annual amount, after a period in which leased property is
14 rented at fair market value.

15 I. Not later than January 1, the ~~Director~~ Chief Operating
16 Officer of the Office of Management and Enterprise Services shall
17 publish a shared services cost-performance assessment report
18 documenting the amount of each state agency's cost for providing
19 shared services. The lowest ranking state agencies shall enter into
20 a contract with the Office of Management and Enterprise Services for
21 the provision of shared financial services, provided that the
22 ~~Director~~ Chief Operating Officer of the Office of Management and
23 Enterprise Services determines that implementation of such a
24 contract would be feasible and documents that the contractual

1 agreement will result in cost savings or efficiencies to the state.
2 Contracts required by this subsection shall be entered into at the
3 start of the next fiscal year. When a state agency is contracted
4 with the Office of Management and Enterprise Services for the
5 provision of shared financial services, the agency may discontinue
6 using shared services when documentation showing that the agency can
7 provide the services at a lower cost to the state is provided to and
8 approved by the ~~Director~~ Chief Operating Officer of the Office of
9 Management and Enterprise Services. As used in this subsection,
10 "shared services" means process, resource utilization or action as
11 defined by administrative rule. On a yearly basis the ~~Director~~
12 Chief Operating Officer of the Office of Management and Enterprise
13 Services shall compile and publish a report documenting the cost
14 savings resulting from shared services contracts. The provisions of
15 this subsection shall not be applicable to the Oklahoma State
16 Regents for Higher Education or to any institutions within The
17 Oklahoma State System of Higher Education.

18 SECTION 26. AMENDATORY 62 O.S. 2021, Section 34.36.1, is
19 amended to read as follows:

20 Section 34.36.1. A. Each state agency that is required to
21 provide an itemized budget request pursuant to the provisions of
22 Section 34.36 of Title 62 of the Oklahoma Statutes shall provide to
23 the ~~Director of the Office of Management and Enterprise Services~~
24 Chief Financial Officer a written report, in a form approved by the

1 ~~Director~~ Chief Financial Officer, containing the following
2 information:

- 3 1. The amount of federal funds received by the agency;
- 4 2. The source or sources of federal funds received by the
5 agency;
- 6 3. A description of any action required to be taken by the
7 agency as a condition for the receipt or continued receipt of
8 federal funds; and
- 9 4. A description of any action prohibited to be taken by the
10 agency as a condition for the receipt or continued receipt of
11 federal funds.

12 B. The report shall be submitted with the budget information
13 required by Section 34.36 of Title 62 of the Oklahoma Statutes by
14 the date required by that section.

15 C. ~~The Director of the Office of Management and Enterprise~~
16 ~~Services~~ Chief Financial Officer shall post the information
17 contained in each agency's report on the website created pursuant to
18 Section 46 of Title 62 of the Oklahoma Statutes.

19 SECTION 27. AMENDATORY 62 O.S. 2021, Section 34.40, is
20 amended to read as follows:

21 Section 34.40. A. When lump sum appropriations are made for
22 personal services, or for maintenance and operations, or for
23 maintenance and operations including personal services, no monies so
24 appropriated shall be available for payments for such expenses until

1 a schedule of positions and salaries and the amounts to be available
2 for the expenses shall have been approved by the ~~Director of the~~
3 ~~Office of Management and Enterprise Services~~ Chief Financial Officer
4 and posted to the state accounting system. The provisions of this
5 subsection shall not apply to such appropriations for the
6 Legislature or judiciary, for expenses of holding elections, or for
7 temporary services or day labor.

8 B. Any such approved schedule of positions and salaries may be
9 amended with the approval of the ~~Director of the Office of~~
10 ~~Management and Enterprise Services~~ Chief Financial Officer.

11 C. The request officer for each agency shall show the
12 classification of the expenditures for their agency, and such
13 classification shall follow the uniform budget and accounting
14 classifications adopted for similar spending agencies, except for
15 items peculiar to certain departments or institutions.

16 D. The ~~Director of the Office of Management and Enterprise~~
17 ~~Services~~ Chief Financial Officer shall not have authority to fix the
18 amount of any agency salary or eliminate any position listed on such
19 schedule. However, the ~~Director~~ Chief Financial Officer shall not
20 approve the schedule of positions and salaries when the total amount
21 of funds requested to be allotted fails to reserve a sufficient
22 balance to finance the operations of the agency for the remainder of
23 that fiscal year, considering any possible failure in the revenue
24 estimated to be collected for that fiscal year.

1 E. ~~The Director of the Office of Management and Enterprise~~
2 ~~Services~~ Chief Financial Officer shall not have the authority to
3 curtail the operation of any particular part of the program, but
4 shall order a reduction in the total program only where insufficient
5 revenues are anticipated to carry on the program for the period
6 concerned.

7 SECTION 28. AMENDATORY 62 O.S. 2021, Section 34.41, is
8 amended to read as follows:

9 Section 34.41. Appropriations shall not be available for
10 contractual or expenditure purposes until allotted as provided in
11 the Oklahoma State Finance Act. Appropriations made by the
12 Legislature to each state agency are hereby declared to be maximum,
13 conditional and proportionate appropriations. The purpose of this
14 section is to make appropriations payable in full in the amounts
15 named only in the event that the estimated budget resources within
16 each state fund during each fiscal year are sufficient to pay all of
17 the appropriations for such fiscal year in full. It is also the
18 purpose of this provision to ensure that there shall be no overdraft
19 or deficit created in the several funds of the state at the end of
20 any fiscal year, and the ~~Director of the Office of Management and~~
21 ~~Enterprise Services~~ Chief Financial Officer is directed and required
22 so to administer the Oklahoma State Finance Act to prevent such
23 overdraft or deficit.
24

SECTION 29. AMENDATORY 62 O.S. 2021, Section 34.42, as last amended by Section 3, Chapter 199, O.S.L. 2025 (62 O.S. Supp. 2025, Section 34.42), is amended to read as follows:

Section 34.42. A. On or before the first day of June in each year, or as soon thereafter as possible, all agencies shall file agency budgets with the ~~Director of the Office of Management and Enterprise Services~~ Chief Financial Officer. Copies of all agency budgets shall also be made available electronically to the staff of the Joint Legislative Committee on Budget and Program Oversight.

B. The required instructions, content and format of agency budgets shall be developed by the staff of the Budget Division of the Office of Management and Enterprise Services.

C. 1. The agency budget shall include a description of all funds available to the agency for expenditure and set out allotments requested by the agency by quarter and the entire fiscal year.

2. The agency budget shall be accompanied by an organizational chart of the agency, a statement of agency mission and program objectives.

3. The agency budget shall delineate agency spending by such categories and with at least as much detail as is specified in the legislative appropriation and as prescribed by the ~~Director of the Office of Management and Enterprise Services~~ Chief Financial Officer.

1 4. Agency budgets shall be signed by the executive officer of
2 each agency.

3 5. The executive officer shall certify that the agency is in
4 complete compliance with the requirements of Section 34.11.3 of this
5 title and Section 3-114 of Title 65 of the Oklahoma Statutes.

6 D. A "request officer" shall be designated by each state agency
7 for the purpose of making program and allotment requests.

8 E. Executive officers of agencies shall cooperate with the
9 Office of Management and Enterprise Services staff and Joint
10 Committee staff in developing program budgeting categories.

11 F. All funds available or expected to be made available to any
12 agency, including nonfiscal appropriations, shall not be available
13 for expenditure until the request officer of the agency has complied
14 with the applicable provisions of the Oklahoma State Finance Act and
15 has received approval of such request for funds from the ~~Director of~~
16 ~~the Office of Management and Enterprise Services~~ Chief Financial
17 Officer.

18 SECTION 30. AMENDATORY 62 O.S. 2021, Section 34.43, is
19 amended to read as follows:

20 Section 34.43. A. All agencies of the state shall submit to
21 the ~~Director of the Office of Management and Enterprise Services~~
22 Chief Financial Officer in all agency budgets, in addition to other
23 required information, whether such reports relate to past, present
24

or future expenditures, an itemization of the amount attributable to each of the following expenses:

1. The number of persons, total amount of all salaries, the total amount of travel and subsistence expense and the total amount of personnel expense for:

- a. data processing directors,
- b. systems analysts,
- c. programmers,
- d. electronic data processing operators,
- e. punch card machine operators,
- f. data processing control personnel,
- g. data processing clerical personnel, and
- h. other data processing personnel;

2. Rental of data processing equipment;

3. Purchase of data processing equipment;

4. Maintenance of data processing equipment, if not included in rental expense;

5. Data processing supplies;

6. Data processing planning;

7. Data processing conversion from one system to another;

8. Rental and purchase of non-data processing equipment and supplies utilized in a data processing operation;

9. Shipment of data processing equipment;

10. Rental of communication lines for transmission of data processing information;

11. Data processing education;

12. Rental of software packages;

13. Contracting for development of systems; and

14. Other data processing expense.

B. All disbursements made from treasury funds by any state agency for the above-named expenses shall be budgeted to and disbursed from a special allotment account to be created by the ~~Director of the Office of Management and Enterprise Services~~ Chief Financial Officer.

C. This section shall not preclude agencies from programming and expending intra-agency data processing costs for cost allocation purposes.

SECTION 31. AMENDATORY 62 O.S. 2021, Section 34.44, is amended to read as follows:

Section 34.44. In any year in which a Governor-elect assumes office, the budget shall be the budget of the new Governor and shall be submitted to the Legislature by the new Governor. The ~~Division~~ Office of the Budget Chief Financial Officer shall render to the Governor-elect all possible assistance in the preparation of the budget. The Governor and agencies of the state shall furnish the Governor-elect estimates and other budget information, in order that

1 the Governor-elect may discharge effectively his or her budget
2 responsibilities upon assuming office.

3 SECTION 32. AMENDATORY 62 O.S. 2021, Section 34.47, is
4 amended to read as follows:

5 Section 34.47. A. The Division of Central Accounting and
6 Reporting shall allocate all revenues to the credit of any fund in
7 the State Treasury except the Public Building Fund, in accordance
8 with the provisions of Section 23 of Article X of the Oklahoma
9 Constitution.

10 B. ~~The Director of the Office of Management and Enterprise~~
11 ~~Services~~ Chief Financial Officer may require that appropriations for
12 capital expenditures be financed by a separate cash account so that
13 allocations of cash to any agency for purposes of constructing
14 buildings, making improvements, purchasing equipment, or other
15 capital expenditures, may not be used to finance the current
16 operations of the agency.

17 C. Appropriations which are nonfiscal for contractual and
18 expenditure purposes, shall be considered fiscal for revenue
19 purposes, but may be allotted for expenditure at any time within
20 thirty (30) months from date such acts are enacted. Revenue which
21 accrues to the credit of the Public Building Fund in the State
22 Treasury shall be allocated to the appropriations from the Public
23 Building Fund in consecutive order. The Governor shall designate
24 the order of payment of the appropriations from the Public Building

1 Fund. The ~~Director of the Office of Management and Enterprise~~
2 ~~Services~~ Chief Financial Officer shall allocate the collections
3 sufficient to pay the first appropriation designated by the
4 Governor, before the ~~Director~~ Chief Financial Officer allocates any
5 amount to the second and so on, until all appropriations are
6 provided for. The contracting agency receiving such appropriation
7 shall not contract the same until revenue has been allocated as
8 provided in the Oklahoma State Finance Act.

9 SECTION 33. AMENDATORY 62 O.S. 2021, Section 34.49, is
10 amended to read as follows:

11 Section 34.49. A. Appropriations and/or federal funds shall be
12 allotted for each agency as provided by the language of the
13 legislative appropriation and other applicable state law. Items may
14 be allotted on a monthly, quarterly, semiannual or annual basis upon
15 the written request of the agency and the approval of the ~~Director~~
16 ~~of the Office of Management and Enterprise Services~~ Chief Financial
17 Officer.

18 B. The request officer for each agency shall present the
19 proposed classification of the expenditures for that agency in such
20 manner as may be required by the Office of Management and Enterprise
21 Services.

22 C. Each agency shall be required to identify those items that
23 are for capital purposes in keeping with the definition of capital
24 projects promulgated by the Long-Range Capital Planning Commission.

1 Requests for capital appropriations and an agency's original budget
2 request shall be for capital projects that have been submitted to
3 the Long-Range Capital Planning Commission for review.

4 ~~D. The Director of the Office of Management and Enterprise~~
5 ~~Services~~ Chief Financial Officer shall review the requested
6 allotments with respect to the agency budget with each agency. The
7 ~~Director~~ Chief Financial Officer may require the agency to change
8 such allotments before approving them, if it is deemed necessary,
9 reserving a sufficient balance in the appropriation to finance the
10 operations of the agency for the remainder of any fiscal year.

11 E. At the end of any fiscal year, the entire amount
12 appropriated to any agency must be allotted to the agency by the
13 ~~Director of the Office of Management and Enterprise Services~~ Chief
14 Financial Officer, except where the estimated budget resources
15 during any fiscal year are insufficient to pay all of the
16 appropriations of the state in full for such year. The ~~Director of~~
17 ~~the Office of Management and Enterprise Services~~ Chief Financial
18 Officer shall not allot to any agency during any fiscal year, an
19 amount which will be in excess of the amount of revenue collected
20 and allocated to appropriations made to such agency.

21 F. In the event of a failure of revenue, the ~~Director of the~~
22 ~~Office of Management and Enterprise Services~~ Chief Financial Officer
23 shall control the allotment to prevent obligations being incurred in
24 excess of the revenue to be collected. However, within each state

1 fund where a revenue failure occurs, the ~~Director of the Office of~~
2 ~~Management and Enterprise Services~~ Chief Financial Officer shall
3 make all reductions apply to each state agency or special
4 appropriation made by the State Legislature, in the ratio that its
5 total appropriation for that fiscal year bears to the total of all
6 appropriations for that fiscal year, as provided in Section 23 of
7 Article X of the Oklahoma Constitution.

8 G. An allotment may be approved for any item for the entire
9 year or may be approved on a monthly, quarterly, or semiannual
10 basis, but in no case shall the aggregate of such allotments for any
11 agency exceed the total appropriation made available to such agency
12 for the fiscal year to which they apply. Each agency's request for
13 appropriation allotments shall show the amount required to finance
14 each item of the request for the entire year and on a quarterly
15 basis within each fiscal year.

16 H. The ~~Director of the Office of Management and Enterprise~~
17 ~~Services~~ Chief Financial Officer shall review each allotment request
18 for the purpose of determining whether:

19 1. The itemized requests are in accordance with the agency
20 budget;

21 2. The accounting classification is sufficient to reflect the
22 purposes for which the expenditures are to be made;
23
24

1 3. The current financial requirements of the agency justify the
2 monthly or quarterly allotment, reserving a sufficient balance to
3 finance the remaining months or quarters; and

4 4. The realization of the estimated revenues is sufficient to
5 allow the allotments to be made.

6 I. The Legislature shall be exempt from submitting any agency
7 budget or allotment request.

8 SECTION 34. AMENDATORY 62 O.S. 2021, Section 34.50, is
9 amended to read as follows:

10 Section 34.50. A. All agencies of the state which are
11 operating either partially or entirely from revenues derived from
12 sources other than legislative appropriations or authorizations
13 shall file requests for allotments under the same provisions as are
14 required for those agencies that receive direct legislative
15 appropriations which distinctly specify the amount appropriated.

16 B. ~~The Director of the Office of Management and Enterprise~~
17 ~~Services~~ Chief Financial Officer shall approve such requests for
18 allotments pursuant to the language of the legislative appropriation
19 and other applicable state law, if the estimated revenues accruing
20 to such fund are sufficient to finance such allotments within the
21 period for which the items are approved, and if the account
22 classification clearly shows the purposes for which the money is to
23 be expended. However, obligations as they are incurred may not
24 exceed the unencumbered balance of surplus cash on hand in

1 accordance with Section 23 of Article X of the Oklahoma
2 Constitution.

3 C. The ~~Director of the Office of Management and Enterprise~~
4 ~~Services~~ Chief Financial Officer may require a more detailed
5 breakdown of accounts before approving such requests.

6 D. This section shall apply to agencies receiving federal
7 funds, but shall not apply to donated funds, trust funds or funds of
8 an agency relationship.

9 SECTION 35. AMENDATORY 62 O.S. 2021, Section 34.51, is
10 amended to read as follows:

11 Section 34.51. A. If an allotment request is approved by the
12 ~~Director of the Office of Management and Enterprise Services~~ Chief
13 Financial Officer, it shall be transmitted to the request officer of
14 the agency concerned and to the Division of Central Accounting and
15 Reporting.

16 B. Legislative appropriations or authorizations are the legal
17 basis for expending the state's monies. Allotments shall be made
18 against these legislative appropriations or authorizations and shall
19 be entered on the records of the Division of Central Accounting and
20 Reporting in such accounts as may be required by the ~~Director of the~~
21 ~~Office of Management and Enterprise Services~~ Chief Financial
22 Officer.

23 C. The allotments approved by the ~~Director of the Office of~~
24 ~~Management and Enterprise Services~~ Chief Financial Officer shall be

1 the portion of the appropriation set aside to cover encumbrances and
2 expenditures for a designated purpose during a monthly, quarterly,
3 semiannual or annual period.

4 D. The Division of Central Accounting and Reporting shall not
5 approve claims for payment in excess of the amount allotted for each
6 account approved by the ~~Director of the Office of Management and~~
7 ~~Enterprise Services~~ Chief Financial Officer.

8 E. After the first allotments for each agency of the state have
9 been authorized by the ~~Director of the Office of Management and~~
10 ~~Enterprise Services~~ Chief Financial Officer, subsequent allotments
11 may be authorized upon the request of an agency and with the
12 approval of the ~~Director of the Office of Management and Enterprise~~
13 ~~Services~~ Chief Financial Officer.

14 F. The ~~Director of the Office of Management and Enterprise~~
15 ~~Services~~ Chief Financial Officer may authorize new accounts in
16 addition to those requested in the original allotment request, or
17 may increase the amount allotted for a monthly, quarterly,
18 semiannual or annual period. A balance remaining in any of the
19 allotment accounts at the end of any monthly, quarterly, or semi-
20 annual period, shall be available for expenditure the subsequent
21 period; however, subsequent allotment requests and the ~~Director's~~
22 Chief Financial Officer's approval should take into consideration
23 any unencumbered or unexpended balance remaining at the time such
24 subsequent requests are approved.

SECTION 36. AMENDATORY 62 O.S. 2021, Section 34.52, is amended to read as follows:

Section 34.52. A. The administrative head of any agency or the request officer may request that any current item of appropriation, allotment, or budget category be transferred to any other budget category within the same agency.

B. The administrative head shall make a request for budget transfer to the ~~Director of the Office of Management and Enterprise Services~~ Chief Financial Officer in writing and file a revised agency budget.

C. Copies of the request for budget transfer and corresponding agency budget revisions shall also be filed with the Joint Legislative Committee on Budget and Program Oversight as created by Section 34.96 of this title.

D. The ~~Director of the Office of Management and Enterprise Services~~ Chief Financial Officer shall approve the request for transfer unless both the Chair and Vice Chair of the Joint Legislative Committee on Budget and Program Oversight provide written notification to the ~~Director of the Office of Management and Enterprise Services~~ Chief Financial Officer within twelve (12) calendar days of receipt of transfer request that the transfer subverts the intention and objectives of the Legislature in establishing the original appropriation, or unless the transfer does not meet the requirements of this section or Section 34.49 of this

1 title. Notification of noncompliance with legislative intent shall
2 be transmitted to the ~~Director of the Office of Management and~~
3 ~~Enterprise Services~~ Chief Financial Officer within twelve (12)
4 calendar days of receipt of the transfer request. The ~~Director of~~
5 ~~the Office of Management and Enterprise Services~~ Chief Financial
6 Officer shall give written notice of approval or disapproval of each
7 budget transfer to the agency, the Governor and the Chair and Vice
8 Chair of the Joint Legislative Committee on Budget and Program
9 Oversight within eighteen (18) calendar days of receiving the
10 request.

11 E. Transfers shall be subject to the following limitations:

12 1. The amount to be transferred, together with all previous
13 transfers, shall not exceed twenty-five percent (25%) of the total
14 appropriation of the least of the items of appropriation, allotment
15 or agency budget involved in the transfer; and

16 2. If the amount to be transferred, and all previous transfers,
17 is greater than twenty-five percent (25%) of the least items of
18 appropriation, allotment or agency budget involved in the transfer
19 request, the agency may make an application to the ~~Director of the~~
20 ~~Office of Management and Enterprise Services~~ Chief Financial
21 Officer, and the Chair and Vice Chair of the Joint Legislative
22 Committee on Budget and Program Oversight. If the agency obtains
23 written approval from the ~~Director of the Office of Management and~~
24 ~~Enterprise Services~~ Chief Financial Officer and the Chair and Vice

Chair of the Joint Legislative Committee Budget and Program Oversight, an additional fifteen percent (15%) may be transferred.

SECTION 37. AMENDATORY 62 O.S. 2021, Section 34.53, as amended by Section 1, Chapter 84, O.S.L. 2025 (62 O.S. Supp. 2025, Section 34.53), is amended to read as follows:

Section 34.53. A. 1. The Oklahoma State System of Higher Education, established by Article XIII-A of the Oklahoma Constitution, shall operate an allotment system similar to the procedure set out in the Oklahoma State Finance Act for other agencies of the state except that the Oklahoma State Regents for Higher Education shall be substituted for the ~~Director of the Office of Management and Enterprise Services~~ Chief Financial Officer in connection with approving allotment requests of the constituent institutions comprising The Oklahoma State System of Higher Education.

2. The account classification for the State System of Higher Education shall conform as nearly as possible with the classification of accounts recommended by the National Committee on Standard Reports for Institutions of Higher Education.

3. The Board of Regents shall allocate to each institution under its control from the consolidated, or lump sum appropriation made by the Legislature, an amount sufficient to meet the needs and functions of each institution for the entire year.

1 4. The amount allocated to each institution for each fiscal
2 year in accordance with Article XIII-A of the Oklahoma Constitution,
3 shall be made in a lump sum without regard to uniform budget or
4 accounting classifications, but shall not be available for
5 expenditure until subsequently allotted by the Regents in accordance
6 with the uniform budget and accounting classifications recommended
7 by the National Committee on Standard Reports.

8 B. The Oklahoma State Regents for Higher Education may reduce
9 the allocation of funds which could otherwise be made to an
10 institution within The Oklahoma State System of Higher Education in
11 order to make payments for leases within the lease financing program
12 authorized by Section 3206.6a of Title 70 of the Oklahoma Statutes.

13 C. 1. The Regents, with the approval of the ~~Director of the~~
14 ~~Office of Management and Enterprise Services~~ Chief Financial
15 Officer, may allot money to any constituent institution to set up
16 and operate a petty cash fund at such institution. Such petty cash
17 fund shall be reimbursed upon the filing of claims showing the
18 purposes for which the funds were expended.

19 2. The Division of Central Accounting and Reporting shall make
20 cash allocations of revenue in accordance with Section 23 of Article
21 X of the Oklahoma Constitution, to each of the constituent
22 institutions. These cash allocations shall be based on the
23 allocations made by the Regents to each institution from the lump
24 sum legislative appropriations and such allocation shall be the

1 total appropriation for each institution, in lieu of legislative
2 appropriations.

3 3. After these funds have been allocated and allotted as
4 provided in this section, all institutional income shall operate as
5 a continuing nonfiscal appropriation which may be spent for any
6 educational and general purposes for which appropriated funds may be
7 spent. "Institutional income" for such purposes shall mean all
8 income available for educational and general purposes, as defined in
9 the uniform budget and accounting classifications recommended by the
10 National Committee on Standard Reports, and including income defined
11 by law as revolving fund income. Expenditures shall be limited to
12 the extent that obligations as they are incurred may not exceed the
13 unencumbered balance of cash on hand in accordance with Section 23
14 of Article X of the Oklahoma Constitution.

15 D. 1. At least thirty (30) days prior to the beginning of each
16 fiscal year, each of the constituent institutions shall file with
17 the Regents its request for appropriation allotments for each of the
18 purposes for which expenditures are to be made.

19 2. Such requests shall be broken down to conform to the uniform
20 budget or accounting classifications recommended by the National
21 Committee on Standard Reports.

22 3. Each institution's request for appropriation allotments
23 shall show the amount required to finance each item of the request
24 for the entire year and for each quarter or each six-month period

1 within the fiscal year, as required by the ~~Director~~ Chief Financial
2 Officer of the Office of Management and Enterprise Services.

3 E. The Regents, or the official or employee who has been
4 authorized to approve itemized allotment requests, shall consider
5 the allotment requests for the purpose of making a determination
6 whether:

7 1. The current financial requirements of the institution
8 concerned justify the allotment to be made;

9 2. The accounting classification is sufficient to reflect the
10 purpose for which expenditures are to be made and that such
11 classification is in accordance with the budget classifications
12 adopted by the ~~Director of the Office of Management and Enterprise~~
13 ~~Services~~ Chief Financial Officer and the Regents, which shall
14 conform as nearly as possible to the account classification
15 recommended by the National Committee on Standard Reports for
16 Institutions of Higher Education; and

17 3. The realization of estimated revenues determined by the
18 ~~Director of the Office of Management and Enterprise Services~~ Chief
19 Financial Officer is sufficient to allow the commitments to be made.

20 F. 1. In allotting appropriations and other funds, and
21 approving subsequent allotments which may be required by each
22 institution, the Regents shall follow the same general procedure set
23 forth in the Oklahoma State Finance Act for other agencies of the
24

1 state not under the control of the Regents, except as otherwise
2 provided in this section.

3 2. All forms and account classifications shall be mutually
4 agreed upon by the ~~Director of the Office of Management and~~
5 ~~Enterprise Services~~ Chief Financial Officer and the State Regents.

6 3. The Regents shall file approved requests of constituent
7 institutions with the Division of Central Accounting and Reporting
8 and such requests shall be entered on the records of the Office of
9 Management and Enterprise Services in the same manner as is provided
10 in the Oklahoma State Finance Act for other agencies of the state.

11 4. The State Regents and the ~~Director of the Office of~~
12 ~~Management and Enterprise Services~~ Chief Financial Officer shall
13 approve any request from the administrative head of a constituent
14 institution for amendment of the approved schedule of positions and
15 salaries, or transfers between items, so long as the currently
16 approved allotment for such purposes is not exceeded. Each such
17 amendment shall be filed with the Office of Management and
18 Enterprise Services, in such detail as may be required, prior to the
19 date on which the first payroll or other disbursement affected by
20 such amendment or transfer is submitted for payment.

21 G. 1. In the event that the realization of estimated revenues
22 at any time during the fiscal year indicates that the total revenue
23 for that fiscal year to any state fund will be insufficient at the
24 end of the fiscal year to meet the total appropriations from that

1 fund, the ~~Director of the Office of Management and Enterprise~~
2 ~~Services~~ Chief Financial Officer shall notify the Oklahoma State
3 Regents for Higher Education as to the amount of reduction necessary
4 against the consolidated, or lump sum appropriations, made to the
5 Regents.

6 2. The Regents, in making itemized allotments during the fiscal
7 year, may reserve an amount sufficient to meet a reasonable failure
8 of revenue until receipt of notice from the ~~Director of the Office~~
9 ~~of Management and Enterprise Services~~ Chief Financial Officer that
10 the realization of estimated revenues indicates that the total
11 appropriation may be allotted for expenditure. Upon receipt of
12 notice from the ~~Director of the Office of Management and Enterprise~~
13 ~~Services~~ Chief Financial Officer of a necessary reduction in the
14 consolidated, or lump sum appropriation, to meet a failure in
15 revenue, the Oklahoma State Regents for Higher Education shall
16 immediately take action to control the approval of subsequent
17 allotment requests sufficient to make the aggregate reduction in
18 allotments of all constituent institutions under their control equal
19 the amount of reduction ordered against the lump sum appropriation
20 made by the Legislature. Such reductions against the lump sum
21 appropriation shall not exceed the percentage reduction ordered
22 against other agencies of the state in accordance with Section 23 of
23 Article X of the Oklahoma Constitution.

SECTION 38. AMENDATORY 62 O.S. 2021, Section 34.54, is amended to read as follows:

Section 34.54. There is hereby created in the State Treasury a division of the State General Revenue Fund which shall be designated the "General Revenue Cash-flow Reserve Fund". The purpose of the General Revenue Cash-flow Reserve Fund is to make cash available for the July cash allocation and so that, insofar as possible, each monthly cash allocation thereafter can equal one-twelfth (1/12) of the annual appropriation from the General Revenue Fund.

1. Each year the ~~Director of the Office of Management and Enterprise Services~~ Chief Financial Officer may transfer monies from the then current fiscal year General Revenue Fund to the General Revenue Cash-flow Reserve Fund for the succeeding fiscal year when the apportionment to the General Revenue Fund is in excess of amounts required for the allocations necessary to fund appropriations made by the Legislature for the then current fiscal year. The amount to be transferred shall not exceed ten percent (10%) of the amount certified by the State Board of Equalization as available for appropriation from the General Revenue Fund for the next succeeding fiscal year.

2. Any monies transferred to the General Revenue Cash-flow Reserve Fund pursuant to paragraph 1 of this section, shall be transferred by the ~~Director of the Office of Management and Enterprise Services~~ Chief Financial Officer as nonrevenue receipts

1 to the State General Revenue Fund in the amounts necessary to make
2 cash available for the July cash allocation and so that, insofar as
3 possible, each monthly cash allocation thereafter can equal one-
4 twelfth (1/12) of the annual appropriation.

5 3. By the first Monday of each December, the Office of
6 Management and Enterprise Services shall analyze and submit to the
7 State Board of Equalization the amount of monies remaining in the
8 General Revenue Cash-flow Reserve Fund which are not necessary for
9 current year cash-flow needs and are available for legislative
10 appropriation.

11 4. On the second Monday of June of each year, the ~~Director of~~
12 ~~the Office of Management and Enterprise Services~~ Chief Financial
13 Officer shall close the preceding fiscal year General Revenue Cash-
14 flow Reserve Fund by transfer to the then current fiscal year
15 General Revenue Fund.

16 5. Any monies in the prior year General Revenue Cash-flow
17 Reserve Fund which are not necessary for the current year cash-flow
18 needs shall be subject to legislative appropriation.

19 SECTION 39. AMENDATORY 62 O.S. 2021, Section 34.55, is
20 amended to read as follows:

21 Section 34.55. A. The ~~Director of the Office of Management and~~
22 ~~Enterprise Services~~ Chief Financial Officer may transfer monies from
23 any treasury fund to the General Revenue Cash-flow Reserve Fund as
24 required to satisfy monthly allocations scheduled from the General

Revenue Fund for the then current fiscal year. Funds from which any monies are so transferred shall be repaid before any transfers are made from the General Revenue Fund to the General Revenue Cash-flow Reserve Fund for the subsequent fiscal year.

B. ~~The Director of the Office of Management and Enterprise Services~~ Chief Financial Officer may transfer monies to any treasury fund from the General Revenue Cash-flow Reserve Fund as required to satisfy cash-flow requirements of the federal Cash Management Improvement Act. Funds to which any monies are so transferred shall be repaid within the same month. If insufficient funds exist in the General Revenue Cash-flow Reserve Fund for this purpose, the General Revenue Fund for the then current fiscal year may be used with the same repayment stipulations.

SECTION 40. AMENDATORY 62 O.S. 2021, Section 34.56, is amended to read as follows:

Section 34.56. A. There is hereby re-created, to continue until July 1, 2008, in accordance with the provisions of the Oklahoma Sunset Law, a Special Agency Account Board, to consist of the ~~Director of the Office of Management and Enterprise Services~~ Chief Financial Officer, the State Treasurer and the Director of the Legislative Service Bureau. The Board shall have the authority to approve the establishment of agency special accounts in the official depository of the State Treasury. In the case of institutions of higher education, the Special Agency Account Board, acting in

1 conjunction with the Oklahoma State Regents for Higher Education,
2 shall establish special agency accounts as appropriate which shall
3 be consistent with provisions of the Oklahoma State Finance Act, as
4 it relates to institutions in The Oklahoma State System of Higher
5 Education.

6 B. The Board, created by this section, shall adopt procedures
7 including application forms, justification and other pertinent
8 information as to the basis for a state agency application for the
9 establishment of agency special accounts.

10 C. The Board may approve agency special accounts for money
11 received by state agencies for the following purposes:

12 1. Benefit programs for individuals, including, but not limited
13 to, unemployment compensation, workers' compensation and state
14 retirement programs;

15 2. Revenues produced by activities or facilities ancillary to
16 the operation of a state agency which receive no money, directly or
17 indirectly, from or through that state agency, including, but not
18 limited to, revenues from the sales of food at retail level, sales
19 at canteens, sales at student unions, sales at student bookstores,
20 receipts from athletic programs and receipts from housing.

21 Provided, however, that a state institution of higher learning may
22 purchase necessary equipment and instructional supplies and office
23 supplies from a student bookstore, or, subject to authorization by
24 the Oklahoma State Regents for Higher Education, may rent building

space for institutional use in a building operated by an organization or entity whose existence is ancillary to the operation of a state agency, and whose cost was financed in whole or in part with revenue-type bonds; provided, further, that the cost of such office supplies or space rental shall not exceed the cost of similar supplies or rentals available commercially;

3. Gifts, devises and bequests with an agency as beneficiary, unless otherwise provided by statute;

4. Evidence funds for law enforcement agencies;

5. Student loan funds and scholarship funds;

6. Funds held in escrow;

7. Land Commission funds;

8. Funds for which the state agency acts as custodian, including, but not limited to, fees from employee earnings approved by the governing board of the agency, funds of student organizations including student activity fees collected by an educational institution as a separate item in enrollment procedures, professional organizations, patients and inmates;

9. Funds used by the Oklahoma Tax Commission to pay for the filing of liens with the Federal Aviation Administration;

10. Temporary accounts for funds arising from new or amended legislation not otherwise provided for in statute or for other emergency situations. Such accounts are to be utilized only pending legislative action directing custody of such funds;

11. Payment of liability claims against the state;

12. Activities of the various Armory Boards of the Oklahoma Military Department to receive and dispense funds derived by the Armory Boards pursuant to Sections 232.6 and 232.7 of Title 44 of the Oklahoma Statutes; and

13. Payment of expenses incurred in connection with the acceptance of payments made with nationally recognized credit cards.

D. The State Treasurer is authorized to accept deposit of money made directly to agency special accounts approved by the Board. All money received by a state agency, as described in Section 34.57 of this title, shall be deposited in State Treasury funds or accounts and no money shall be deposited in banks or other depositories unless the bank accounts are maintained by the State Treasurer or are for the deposit of authorized petty cash funds.

E. Money deposited in agency special accounts shall be disbursed on vouchers issued by the state agency concerned to accomplish the purpose for which the money was intended.

F. Funds and revenues of the Grand River Dam Authority are exempt from the requirements of this section.

G. Funds and revenues of the Oklahoma Municipal Power Authority are exempt from the requirements of this section.

H. Monies used for investment purposes by the Oklahoma Firefighters Pension and Retirement System, the Oklahoma Police Pension and Retirement System, the Uniform Retirement System for

1 Justices and Judges, the Oklahoma Law Enforcement Retirement System,
2 the Oklahoma Public Employees Retirement System, the Teachers'
3 Retirement System of Oklahoma, the State Insurance Fund, the
4 Oklahoma Employees Insurance and Benefits Board, the Commissioners
5 of the Land Office, and the Oklahoma State Regents for Higher
6 Education for its Endowment Trust Fund are exempt from the
7 requirements of this section, and shall be placed with the
8 respective custodian bank or trust company.

9 SECTION 41. AMENDATORY 62 O.S. 2021, Section 34.58, is
10 amended to read as follows:

11 Section 34.58. A. Each state agency shall furnish to the
12 ~~Director of the Office of Management and Enterprise Services~~ Chief
13 Financial Officer, in such form as the ~~Director~~ Chief Financial
14 Officer shall prescribe, detailed information showing the income,
15 disbursements, and transfers for each agency clearing account and
16 each agency's special account. Income, disbursements and transfers
17 shall be identified in accordance with code designations as provided
18 in the accounting procedures of the Office of Management and
19 Enterprise Services.

20 B. The ~~Director of the Office of Management and Enterprise~~
21 ~~Services~~ Chief Financial Officer may approve any modification in the
22 code designations of income, disbursements and transfers that he or
23 she finds expedient.
24

1 C. The State Treasurer shall not honor vouchers disbursing and
2 transferring monies from agency clearing accounts or special
3 accounts, when he or she has been notified by the ~~Director~~ Chief
4 Operating Officer of the Office of Management and Enterprise
5 Services that an agency is not in compliance with the provisions of
6 subsection A of this section.

7 SECTION 42. AMENDATORY 62 O.S. 2021, Section 34.62, is
8 amended to read as follows:

9 Section 34.62. Encumbrance requirements for payments from funds
10 of the state shall include the following:

11 1. Whenever agencies of this state enter into contracts for, or
12 on behalf of the state for the purchase of tangible or intangible
13 property, or for services or labor, such agreement shall be
14 evidenced by written contracts or purchase orders, and must be
15 transmitted to the ~~Director~~ Chief Operating Officer of the Office of
16 Management and Enterprise Services within a reasonable time from the
17 date of the awarding of the contract or purchase order, as
18 determined by the ~~Director~~ Chief Operating Officer;

19 2. The ~~Director~~ Chief Operating Officer of the Office of
20 Management and Enterprise Services shall charge such contracts or
21 purchase orders against the proper account as an outstanding order
22 until it is liquidated by payment of a claim, or claims, against the
23 contracts or purchase orders, or by cancellation of the contract or
24 purchase order;

1 3. The ~~Director~~ Chief Operating Officer of the Office of
2 Management and Enterprise Services shall have the power to authorize
3 agencies of the state to make acquisitions without the submission of
4 competitive bids or compliance with the state purchase card program
5 as otherwise required by the Oklahoma Central Purchasing Act, for or
6 on behalf of the state whenever the ~~Director~~ Chief Operating Officer
7 determines that it is in the best interests of the state. The
8 administrative head of any agency shall be personally liable for
9 obligations incurred in excess of the authorization granted by the
10 ~~Director~~ Chief Operating Officer;

11 4. The ~~Director~~ Chief Operating Officer of the Office of
12 Management and Enterprise Services shall never authorize payment of
13 claims for any agency of the state unless they are supported by:

- 14 a. contracts or purchase orders of the Office of
15 Management and Enterprise Services,
- 16 b. institutional purchase orders or contracts,
- 17 c. departmental purchase orders or contracts, or
- 18 d. authorizations for purchases granted by the ~~Director~~
19 Chief Operating Officer as provided by paragraph 3 of
20 this section;

21 5. Any invoice or claim dated prior to the date of any of the
22 above-mentioned encumbrance documents shall be rejected by the
23 Office of Management and Enterprise Services;
24

1 6. Any encumbrance document that is outstanding on the records
2 in the Office of Management and Enterprise Services when its funding
3 source or sources lapse shall be canceled, unless another current
4 funding source is assigned; and

5 7. The Commissioners of the Land Office shall be authorized to
6 make payment of fees to its custodial banks, investment consultants
7 and investment managers from the proceeds of total realized
8 investment gains and such payments may be made from a special fund
9 hereby created in the State Treasury for this purpose. Total
10 payments for this purpose in a fiscal year shall not exceed one-half
11 percent (0.5%) of the market value of the funds under the
12 Commissioners' management on June 30 of the previous fiscal year.

13 SECTION 43. AMENDATORY 62 O.S. 2021, Section 34.63, is
14 amended to read as follows:

15 Section 34.63. A. The State Treasurer shall be the disbursing
16 agency of the state and shall draw either checks or warrants payable
17 at the State Treasury, in payment of all claims, including payrolls,
18 against the state which shall be paid out of the Treasury, as
19 follows:

20 1. Each check or warrant shall specify the date of its issue
21 and the name of the person to whom payable; and

22 2. For each check, or warrant, issued by the State Treasurer,
23 there shall be a record which shall specify the gross amount, the
24

1 amount of withholding, if any, and the net amount payable to the
2 payee.

3 B. At the end of each month the State Treasurer shall report to
4 the ~~Director~~ Chief Operating Officer of the Office of Management and
5 Enterprise Services in such form as the ~~Director~~ Chief Operating
6 Officer shall prescribe, all checks or warrants issued during the
7 month.

8 C. Checks or warrants issued by the State Treasurer shall be
9 registered on the records of the State Treasurer in such manner as
10 shall be prescribed by the ~~Director~~ Chief Operating Officer of the
11 Office of Management and Enterprise Services; provided, that each
12 check or warrant shall indicate thereon the fund against which the
13 same shall be charged. The purpose of this section is to permit
14 checks or warrants to be registered in the order in which they are
15 drawn upon the State Treasury.

16 SECTION 44. AMENDATORY 62 O.S. 2021, Section 34.64, is
17 amended to read as follows:

18 Section 34.64. A. Except as otherwise provided in the Oklahoma
19 State Finance Act and except for Automated Clearing House (ACH)
20 debits for transactional fees, procedures for paying claims or
21 payrolls shall include the following:

22 1. All miscellaneous claims and payroll claims for the payment
23 of money from the State Treasury shall be filed with the ~~Director~~
24 Chief Operating Officer of the Office of Management and Enterprise

1 Services for audit and settlement prior to being filed for payment
2 with the State Treasurer;

3 2. The ~~Director~~ Chief Operating Officer of the Office of
4 Management and Enterprise Services may establish alternative
5 procedures for the settlement of claims whenever such procedures are
6 more advantageous so long as they are consistent with the
7 requirements of state law;

8 3. Such alternative procedures shall be at the discretion of
9 the ~~Director~~ Chief Operating Officer of the Office of Management and
10 Enterprise Services and may include, but are not limited to:

- 11 a. a procedure to permit consolidated payment to vendors
12 for claims involving more than one agency of the state
13 when audit and settlement of such claims, as
14 hereinafter provided, can in all respects be
15 accomplished,
- 16 b. procedures based upon valid statistical sampling
17 models for preaudit of claims, against contracts,
18 purchase orders and other commitments before entering
19 such claims against the accounts, and
- 20 c. policies, procedures and performance criteria for the
21 participation of agencies or departments, not
22 authorized by this section, to engage in an
23 alternative system for the settlement of claims; and
24

1 4. The ~~Director~~ Chief Operating Officer of the Office of
2 Management and Enterprise Services may use a numeric or alphanumeric
3 designation to cross-reference claims or payrolls to check warrant
4 numbers, transfer entry or optional settlement mode used in the
5 payment thereof.

6 B. Except for ACH debits for transactional fees, after claims
7 or payrolls or both have been properly audited and recorded against
8 the respective contracts, purchase orders, other commitments and
9 accounts, the Division of Central Accounting and Reporting shall
10 certify such claims or payrolls to the State Treasurer for payment.

11 C. Except for ACH debits for transactional fees, it shall be
12 the responsibility of the Division of Central Accounting and
13 Reporting to determine that:

14 1. All material legal requirements concerning the expenditure
15 of monies involved in each claim or payroll have been complied with;

16 2. Funds have been properly and legally allotted for the
17 payment of the claim or payroll; and

18 3. A sufficient balance exists for the payment of same.

19 D. The ~~Director~~ Chief Operating Officer of the Office of
20 Management and Enterprise Services or bonded employees in the
21 Division of Central Accounting and Reporting authorized by the
22 ~~Director~~ Chief Operating Officer shall certify to the State
23 Treasurer that the claim or payroll has been approved for payment.
24

1 E. 1. The ~~Director~~ Chief Operating Officer of the Office of
2 Management and Enterprise Services shall be authorized to establish
3 necessary agency disbursing funds to efficiently accommodate the
4 cash flow requirements of applicable federal regulations, bond
5 indebtedness and other directives deemed appropriate by the ~~Director~~
6 Chief Operating Officer.

7 2. Agencies operating such disbursing funds are authorized to
8 establish a preaudit and settlement system for claims or payments or
9 both relating to the purposes of the stated directives.

10 3. The State Treasurer shall establish procedures for the state
11 in accordance with Federal Banking and National Automated Clearing
12 House Association standards and agencies shall be required to
13 utilize automated clearing house procedures established by the State
14 Treasurer.

15 4. No individual or entity shall be required to have a bank
16 account unless required by federal law or federal regulation.

17 5. Agencies shall be further required to present these
18 transactions to the Office of Management and Enterprise Services in
19 a summarized format and shall include any accounting information
20 necessary as determined by the ~~Director~~ Chief Operating Officer of
21 the Office of Management and Enterprise Services including, but not
22 limited to, information related to federal law.

23 6. Administrative expenditures shall not be eligible for these
24 procedures.

1 7. The efficiency of the payment system shall be considered
2 when the interest earnings of the state are not diminished.

3 F. The ~~Director~~ Chief Operating Officer of the Office of
4 Management and Enterprise Services shall be authorized to process
5 payments for federal tax withholding without claim forms. The
6 ~~Director~~ Chief Operating Officer shall establish a separate fund for
7 the purpose of accumulating federal income tax withholding from
8 payrolls and remitting same to the United States Treasury.

9 Institutions under the administrative authority of the Oklahoma
10 State Regents for Higher Education which are responsible for
11 processing payments for federal tax withholding shall be authorized
12 to process such payments to the United States Treasury without claim
13 forms.

14 G. 1. The ~~Director~~ Chief Operating Officer of the Office of
15 Management and Enterprise Services shall be authorized to process,
16 without claim forms, interest payments to the U.S. Treasury as
17 required by federal law.

18 2. Agencies are responsible for the accrual of such interest
19 liability of the state and shall provide payment to the Office of
20 Management and Enterprise Services in the amount and method
21 prescribed by the ~~Director~~ Chief Operating Officer of the Office of
22 Management and Enterprise Services.

23 3. Any liability of the U.S. Treasury as determined by federal
24 law shall be deposited in the State Treasury and transferred by the

1 ~~Director~~ Chief Operating Officer of the Office of Management and
2 Enterprise Services to the General Revenue Fund of the state
3 subsequent to final determination and necessary audit resolution.

4 H. Payments disbursed from the State Treasury shall be conveyed
5 solely through an electronic payment mechanism. The State Treasurer
6 may provide an exemption from the provisions of this subsection,
7 with cause, provided the number of exempted payments and a
8 corresponding list of causes shall be published in a regularly
9 updated report which is featured prominently on the State
10 Treasurer's website.

11 I. Notwithstanding any other provision of the Oklahoma State
12 Finance Act and subject to any applicable restrictions in the
13 Oklahoma Constitution, the ~~Director~~ Chief Operating Officer of the
14 Office of Management and Enterprise Services may establish
15 procedures by which agencies may contract for, incur and account for
16 transaction-based fees, such as fees for accepting credit cards,
17 that may be processed by ACH debit without claim forms, provided the
18 agency has sufficient statutory authority for purchase. Prior to
19 authorizing ACH debit transactions without claim forms, state
20 agencies shall provide notice to the State Treasurer.

21 SECTION 45. AMENDATORY 62 O.S. 2021, Section 34.65, is
22 amended to read as follows:

23 Section 34.65. A. To facilitate the payment of vendor invoices
24 and contract estimates, the ~~Director~~ Chief Operating Officer of the

1 Office of Management and Enterprise Services shall prescribe a
2 uniform document to be used by all agencies of the state. The
3 document shall provide summarized information relative to the
4 referenced invoices or contract estimates, together with a space for
5 the approval of the head of the agency approving said vendor
6 invoices or contract estimates for payment.

7 B. Vendor invoices and contract estimates shall be accepted by
8 the state in lieu of the claim form previously required in the same
9 manner as commercial invoices are paid.

10 C. Vendor invoices and contract estimates shall be filed with
11 the agency receiving the merchandise or services in the same manner
12 as invoices are filed with commercial firms.

13 D. Upon receipt of invoices or contract estimates, the head of
14 the agency, or the agency's authorized agent, may approve said
15 documents for payment as confirmation of delivery or acceptance of
16 the goods or services. Whereupon, the approved invoices or contract
17 estimates shall be attached to the document provided for such
18 purpose and the head of the agency approving such invoices of
19 contract estimates for payment shall affix the approval in the space
20 provided on the document.

21 E. Commercial invoices shall be accepted in lieu of the
22 standard notarized claim prescribed by the state.

23 SECTION 46. AMENDATORY 62 O.S. 2021, Section 34.66, is
24 amended to read as follows:

Section 34.66. A. The State Treasurer shall write checks or warrants in payment of claims and payrolls certified to the State Treasurer for payment by the Division of Central Accounting and Reporting or:

1. The Department of Human Services;
2. The Department of Rehabilitative Services;
3. The State Department of Health;
4. The Department of Transportation;
5. The State Department of Education;
6. The Oklahoma Department of Career and Technology Education;

and

7. The institutions within The Oklahoma State System of Higher Education.

B. The State Treasurer, within such limitations as the State Treasurer may prescribe, may authorize the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services and the entities specified in subsection A of this section to issue the checks or warrants for payment of claims and payrolls that have been certified by the respective agency.

C. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services and the entities specified in subsection A of this section shall provide the State Treasurer a register of each payment for each check or warrant issued. To protect against fraud, information contained within the register of

checks or warrants shall not be subject to the Oklahoma Open Records Act until the earlier of:

1. Such checks or warrants are submitted for redemption; or
2. Such checks or warrants are cancelled by statute.

D. In lieu of checks or warrants:

1. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services may, with the concurrence of the State Treasurer, settle interagency claims by transfer entry; and

2. At the discretion of the State Treasurer, pay claims and payrolls by the electronic transfer of funds.

SECTION 47. AMENDATORY 62 O.S. 2021, Section 34.67, is amended to read as follows:

Section 34.67. A. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services is hereby authorized to prescribe forms and electronic systems to process claims and payroll to be used by the various agencies of the state. Any agency of the state may file a claim against more than one item of the current allotments within funds by indicating on the claim or payroll the account, or accounts to be charged. The ~~Director~~ Chief Operating Officer shall approve and charge such claim to the account, or accounts, indicated after proper audit of the claim or payroll.

B. These payroll systems are hereby authorized for use in claiming amounts due individually to all employees within an agency of the state. Each payroll record shall show the total earnings,

1 the amount of each type of withholding and the net amount due each
2 employee. Withholdings may be reserved by the ~~Director~~ Chief
3 Operating Officer of the Office of Management and Enterprise
4 Services to be paid to the proper entity by lump sum payments.

5 SECTION 48. AMENDATORY 62 O.S. 2021, Section 34.68, is
6 amended to read as follows:

7 Section 34.68. A. The elected or appointed executives of any
8 state agency or their designated administrative employees shall
9 approve individual claims of the agency which are used as the basis
10 for the payment of money from the State Treasury from any fund.
11 These individuals shall be known as the "agency approving officers".

12 B. Payrolls shall show the amount to be paid to each named
13 person for the period of time shown.

14 C. The number of persons authorized to make such approval shall
15 not exceed five people for any one state agency without the special
16 approval of the ~~Director~~ Chief Operating Officer of the Office of
17 Management and Enterprise Services.

18 D. All agency approving officers shall execute a bond issued by
19 a surety company licensed to do business in this state, payable to
20 the state in the amount required by the ~~Director~~ Chief Operating
21 Officer of the Office of Management and Enterprise Services but not
22 less than Fifty Thousand Dollars (\$50,000.00) and conditioned for
23 the faithful performance of their duties, as surety, which shall be
24 approved by the ~~Director~~ Chief Operating Officer of the Office of

1 Management and Enterprise Services and filed in the office of the
2 Secretary of State.

3 E. After state claims and/or payrolls have been approved by the
4 above agency approving officers, they shall be filed with the
5 ~~Director~~ Chief Operating Officer of the Office of Management and
6 Enterprise Services for auditing and settlement.

7 SECTION 49. AMENDATORY 62 O.S. 2021, Section 34.69, is
8 amended to read as follows:

9 Section 34.69. There is hereby created in the State Treasury a
10 Payroll Fund which shall be used by the ~~Director~~ Chief Operating
11 Officer of the Office of Management and Enterprise Services and the
12 State Treasurer to issue a consolidated payroll for each agency of
13 the state. Payrolls of state agencies shall be charged against the
14 Payroll Fund created herein. Each state agency shall prepare
15 summary distributions of the amounts of payrolls to be charged
16 against each fund within the State Treasury and the ~~Director~~ Chief
17 Operating Officer shall transfer monies from each fund in the State
18 Treasury to the Payroll Fund amounts as shown on payroll
19 distribution summaries, and shall charge such amounts to the account
20 affected thereby.

21 B. As of July 1, 2010, the Office of Management and Enterprise
22 Services shall make available and each executive state agency shall
23 make available to all state employees a centralized web-based system
24 to access their personal employment and compensation-related

information. The provisions of this subsection as it pertains to executive agencies may be waived by the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services in the event that lack of timely access prevents employees from utilizing the centralized system. As used in subsections B, C and D of this section, "executive state agency" shall mean any state agency, authority, board, commission or other entity organized within the executive department of state government. Executive state agency shall not mean any government entity organized or created within the legislative or judicial departments of state government.

C. Except for institutions within The Oklahoma State System for Higher Education, executive state agencies converting to a multi-monthly payroll system shall consult with the Office of Management and Enterprise Services on the timing of the agency's conversion.

1. All state employees hired during the six (6) months prior to an executive state agency's conversion to a multi-monthly payroll shall be placed on either the biweekly payroll system or supplemental payroll upon the date of hire.

2. In the six (6) months prior to an executive state agency's conversion to multi-monthly payroll, the executive state agency shall offer either multi-monthly or supplemental payroll to any employee who chooses to participate. The provisions of this paragraph shall not apply to employees placed on the multi-monthly payroll pursuant to paragraph 1 of this subsection.

1 D. Six (6) months prior to an executive state agency converting
2 to the multi-monthly payroll system, it shall create employee
3 payroll conversion banks for the purpose of providing a one-time
4 payroll payment to an employee for the gap in payroll payments
5 created by the conversion to the multi-monthly system.

6 1. Each executive state agency shall allow its employees to
7 accumulate funds up to a maximum of eighty (80) hours for the
8 conversion bank from the following sources:

- 9 a. earned compensatory time, if the agency normally
10 provides its employees compensatory time,
- 11 b. earned annual leave,
- 12 c. earned sick leave up to a maximum of forty (40) hours,
13 and
- 14 d. shared leave as approved by the appointing authority.

15 2. During the six-month period leading up to an executive state
16 agency's conversion to the multi-monthly payroll system, all
17 executive state agencies shall inform, in writing or by electronic
18 means, all their employees of their leave and compensatory time
19 balances on a monthly basis.

20 E. The Office of Management and Enterprise Services shall
21 establish procedures concerning the conversion.

22 SECTION 50. AMENDATORY 62 O.S. 2021, Section 34.70, as
23 amended by Section 1, Chapter 167, O.S.L. 2023 (62 O.S. Supp. 2025,
24 Section 34.70), is amended to read as follows:

1 Section 34.70. A. 1. Upon the request of a state employee, a
2 state agency shall make voluntary payroll deductions for the
3 employee to any credit union, bank, or savings association having an
4 office in this state.

5 2. If the governing body of any county, municipality, or school
6 district provides for voluntary payroll deductions to a credit union
7 serving the employees of the county, municipality, or school
8 district, it shall provide voluntary payroll deductions to any
9 credit union, bank, or savings association having an office in this
10 state which has a minimum participation of twenty percent (20%) of
11 the employees of the county, municipality, or school district.

12 B. Upon the request of a state employee and pursuant to
13 procedures established by the ~~Director~~ Chief Operating Officer of
14 the Office of Management and Enterprise Services, a state agency
15 shall make payroll deductions for:

16 1. The payment of any insurance premiums due a private
17 insurance organization with a minimum participation of five hundred
18 (500) state employees for life, accident, and health insurance which
19 is supplemental to that provided for by the state;

20 2. The payment of any insurance premiums, other than the
21 premiums due pursuant to paragraph 1 of this subsection, due a
22 private insurance organization or service company with a minimum
23 participation of five hundred (500) state employees for legal
24 services;

1 3. Premiums or payments for retirement plans with a minimum
2 participation of five hundred (500) state employees for retirement
3 plans which are supplemental to that provided for by the state;

4 4. Salary adjustment agreements included in a flexible benefits
5 plan as authorized by the State Employees Flexible Benefits Act;

6 5. Membership dues utilized for benefits, goods or services
7 provided by the Oklahoma Public Employees Association to the
8 organization's membership or any other statewide association limited
9 to state employee membership with a minimum membership of two
10 thousand (2,000) dues-paying members. For purposes of this
11 paragraph, state agencies shall accept online or electronically
12 submitted forms from the Oklahoma Public Employees Association and
13 other state employee associations. The Office of Management and
14 Enterprise Services shall develop and implement a verification
15 process for online or electronically submitted forms which may
16 include the use of electronic signature technology or other process
17 as determined appropriate. In addition, the Office of Management
18 and Enterprise Services shall provide an association representing
19 state employees with a reconciliation report once a month containing
20 information related to the name, warrant number and warrant date of
21 those employees that have opted into the association's membership;

22 6. Contributions to any foundation organized pursuant to 26
23 U.S.C., Section 501(c)(3) of the Oklahoma Public Employees
24 Association or any other statewide association limited to state

1 employee membership with a minimum membership of two thousand
2 (2,000) dues-paying members;

3 7. Payments to a college savings account administered under the
4 Oklahoma College Savings Plan Act pursuant to Section 3970.1 et seq.
5 of Title 70 of the Oklahoma Statutes;

6 8. Subscriptions to the Oklahoma Today magazine published by
7 the State of Oklahoma through the Oklahoma Tourism and Recreation
8 Department; and

9 9. The payment of any insurance premiums due a private
10 insurance organization, which is regulated by the State Insurance
11 Commission, for an Oklahoma Long-Term Care Partnership Program
12 approved policy pursuant to the Oklahoma Long-Term Care Partnership
13 Act.

14 C. The administrative costs of processing payroll deductions or
15 administering salary adjustment agreements for insurance premiums as
16 provided for in subsection B of this section shall be a charge of
17 two percent (2%) of the gross annual premiums for insurance plans.
18 The administrative costs of processing payroll deductions or
19 administering salary adjustment agreements for payments for
20 retirement plans as provided for in subsection B of this section
21 shall be one percent (1%) of the gross annual payments for
22 retirement plans. These charges shall be collected monthly from the
23 private insurance or retirement plan organization by the Office of
24 Management and Enterprise Services and shall be deposited to the

1 credit of the General Revenue Fund. Provided that these costs shall
2 not be collected from state employees or state agencies unless
3 otherwise directed in the Oklahoma State Finance Act.

4 D. Any statewide association granted a payroll deduction prior
5 to January 1, 2008, shall be exempt from the minimum state employee
6 membership requirement.

7 E. Approval of a payroll deduction or salary adjustment
8 agreement for any insurance organization, line of coverage or policy
9 shall not be construed as an assumption of liability, for the term
10 of policy or the performance of the insurance organization, by this
11 state, or any of its agencies or any officer or employee thereof.
12 Contracts for such insurance shall be in all respects subject to the
13 insurance laws of this state, and shall be enforceable solely
14 pursuant to such laws.

15 F. The Oklahoma Employment Security Commission is authorized to
16 deduct from the wages or salary of its employees the employees'
17 contribution to the Oklahoma Employment Security Commission
18 Retirement Plan.

19 G. Payroll deductions shall be made for premium payments for
20 group insurance for retired members or beneficiaries of any state-
21 supported retirement system upon proper authorization given by the
22 member or beneficiary to the board from which the member or
23 beneficiary is currently receiving retirement benefits.
24

1 H. Upon request of instructional personnel employed at either
2 the Oklahoma School for the Blind or the Oklahoma School for the
3 Deaf and pursuant to procedures established by the ~~Director~~ Chief
4 Operating Officer of the Office of Management and Enterprise
5 Services, the Commission for Rehabilitation Services shall make
6 payroll deductions for membership dues in any statewide educational
7 employee organization or association.

8 I. Upon the request of a state employee of the Department of
9 Corrections, the Department shall make voluntary payroll deductions
10 for the employee to the Correctional Peace Officer Foundation.

11 SECTION 51. AMENDATORY 62 O.S. 2021, Section 34.71, is
12 amended to read as follows:

13 Section 34.71. The ~~Director~~ Chief Operating Officer of the
14 Office of Management and Enterprise Services shall establish a
15 procedure to issue payment of a proper invoice for goods or services
16 within no more than forty-five (45) days from the date on which the
17 invoice was received in the office designated by the agency to which
18 the goods or services were sold and delivered.

19 SECTION 52. AMENDATORY 62 O.S. 2021, Section 34.72, is
20 amended to read as follows:

21 Section 34.72. The ~~Director~~ Chief Operating Officer of the
22 Office of Management and Enterprise Services shall establish a
23 procedure to assess and pay interest for the late payment of an
24 invoice, which interest shall be calculated beginning the thirtieth

day after receipt by the designated office of a proper invoice for which payment has not been mailed, transmitted, or delivered to a vendor by the close of business on the forty-fifth day. Such interest shall be at an annualized rate based on an average of the interest rate for thirty-day time deposits of state funds during the last calendar quarter of the last preceding fiscal year, as reported by the State Treasurer.

SECTION 53. AMENDATORY 62 O.S. 2021, Section 34.74, is amended to read as follows:

Section 34.74. Any vendor of goods or services purchased by or delivered to an agency of the state whose payment is delayed beyond the forty-five-day limit and who has not been compensated by payment of interest as provided for in the Oklahoma State Finance Act may file a grievance with the Office of the Governor, who shall transmit it to the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services. Upon receipt of such grievance, the ~~Director~~ Chief Operating Officer shall pay the total amount of such invoice with interest as required, within fifteen (15) days, to remedy such grievance. If the ~~Director~~ Chief Operating Officer determines that the invoice or interest should not be paid, such determination and the reasons therefor shall be reported to the Governor and the aggrieved vendor.

SECTION 54. AMENDATORY 62 O.S. 2021, Section 34.75, is amended to read as follows:

1 Section 34.75. A. The Department of Human Services may
2 establish an encumbrance and preaudit system for settlement of
3 claims relating to public assistance, social service benefits and
4 medical benefits to or for persons eligible under applicable federal
5 laws and rules, Oklahoma Statutes, and policies established by the
6 Oklahoma Commission for Human Services. The following programs
7 shall be eligible for this procedure:

- 8 1. Aid to Families with Dependent Children;
- 9 2. Aid to Aged, Blind and Disabled;
- 10 3. Medical Assistance;
- 11 4. Day Care;
- 12 5. Refugee Resettlement;
- 13 6. Low Income Heating and Energy Assistance;
- 14 7. General Assistance;
- 15 8. Crippled Children;
- 16 9. Social Services under Title XX of the U.S. Social Security
17 Act, 42 U.S.C., Section 301 et seq.;
- 18 10. Adoption Subsidies;
- 19 11. Foster Care;
- 20 12. Medical Examination;
- 21 13. Area Agencies on Aging;
- 22 14. Any contract for service for which the Office of Management
23 and Enterprise Services has approved as qualifying for a fixed and
24

uniform rate pursuant to Section 85.7 of Title 74 of the Oklahoma Statutes;

15. Sheltered Workshops;

16. Contracted Group Homes;

17. Rehabilitative Client Interpreters;

18. Rehabilitative Client Drivers; and

19. Maternal and Child Health Services Block Grant.

B. Prior to inclusion in this procedure, the Department of Human Services shall provide to the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services, for approval, detailed listings of the type of payments to be made for each of these programs specified in subsection A of this section.

C. The Department of Human Services shall provide the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services a daily report of the dollar amount of claims settled and checks or warrants issued, the dollar amount of checks or warrants canceled, and the dollar amount of checks or warrants canceled by statutes.

D. The Department of Human Services and the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services shall jointly establish a system for the settlement of claims, except for payroll, by the Department of Human Services. The settlement system shall include policy, procedures and performance criteria for participation.

SECTION 55. AMENDATORY 62 O.S. 2021, Section 34.77, is amended to read as follows:

Section 34.77. A. The State Department of Rehabilitation Services is authorized to establish an encumbrance and preaudit system for settlement of claims relating to social service benefits and medical benefits to or for persons eligible under applicable federal laws and regulations, Oklahoma Statutes, and policies established by the Commission for Rehabilitation Services for the following programs:

1. Vocational and other rehabilitation;
2. Educational services;
3. Disability Determination Services; and
4. Services for the Blind and Visually Impaired.

B. Prior to inclusion in this procedure, the State Department of Rehabilitation Services shall provide to the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services, for approval, detailed listings of the type of payments to be made for each of these programs specified in subsection A of this section.

C. The State Department of Rehabilitation Services shall provide the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services a daily report of the dollar amount of claims settled and checks or warrants issued, the dollar

1 amount of checks or warrants canceled, and the dollar amount of
2 checks or warrants canceled by statutes.

3 SECTION 56. AMENDATORY 62 O.S. 2021, Section 34.78, is
4 amended to read as follows:

5 Section 34.78. A. The Oklahoma State Regents for Higher
6 Education and the ~~Director~~ Chief Operating Officer of the Office of
7 Management and Enterprise Services shall jointly establish a system
8 for the settlement of claims, except for payroll, by institutions of
9 The Oklahoma State System of Higher Education. The settlement
10 system shall include policy, procedures, and performance criteria
11 for participation. The State Regents may approve or disapprove the
12 participation of any institution or other entity of the State System
13 in the claims settlement system.

14 B. The Department of Education and the Oklahoma Department of
15 Career and Technology Education may establish a preaudit and
16 settlement system for claims and/or payments of state-funded
17 assistance to school districts and institutions within The Oklahoma
18 State System of Higher Education. The payment system shall be
19 neutral as to interest income to the state and the school districts.

20 SECTION 57. AMENDATORY 62 O.S. 2021, Section 34.80, is
21 amended to read as follows:

22 Section 34.80. A. All warrants, checks or orders issued by the
23 State Treasurer against claims submitted through the Office of
24 Management and Enterprise Services in payment of obligations of the

1 state which shall for any cause remain outstanding or unpaid for a
2 period of ninety (90) days after funds are available for their
3 payment shall be revoked and canceled.

4 B. Such warrants, checks or orders shall be entered into the
5 records of the Office of Management and Enterprise Services and the
6 State Treasurer and the administrative head of the agency certifying
7 the claim for payment shall be notified that such items have been
8 canceled.

9 C. If, for any reason, a warrant should not be issued to
10 replace a warrant canceled pursuant to the provisions of this
11 section, the administrative head of the agency originally certifying
12 the claim for payment shall, within seven (7) days after
13 notification of the cancellation, advise the ~~Director~~ Chief
14 Operating Officer of the Office of Management and Enterprise
15 Services that a reissue should not be made.

16 D. Notwithstanding the provisions of subsection B of this
17 section, warrants issued or caused to be issued by the Department of
18 Human Services for public assistance or medical assistance may be
19 reissued at any time within three (3) years after cancellation upon
20 submission of the canceled warrants to the Department.

21 E. No canceled warrants shall be paid, except that the holder
22 of any warrant that may have been canceled pursuant to the
23 provisions of this section may, within thirty-six (36) months
24 following the month in which the warrant was canceled, present the

1 warrant or an affidavit of loss or destruction and a request for
2 reissuance to the ~~Director~~ Chief Operating Officer of the Office of
3 Management and Enterprise Services.

4 F. The ~~Director~~ Chief Operating Officer of the Office of
5 Management and Enterprise Services shall certify a claim as needed
6 for payment of those verified unpaid requests presented, unless the
7 certifying agency has advised that a reissuance should not be made.

8 G. 1. There is hereby created in the State Treasury a fund to
9 be known as the Canceled Warrant Fund.

10 2. The ~~Director~~ Chief Operating Officer of the Office of
11 Management and Enterprise Services shall transfer to the Canceled
12 Warrant Fund the total of the payable amounts of the warrants
13 canceled pursuant to the provisions of this section from the funds
14 and accounts against which the canceled warrants had been drawn.

15 3. The Office of Management and Enterprise Services shall
16 disburse from the fund such amounts as necessary to pay warrants
17 reissued as provided in this section.

18 4. These expenditures shall remain recorded in the funds and
19 accounts against which the original canceled warrants were issued
20 and they shall not be considered expenses of the state nor shall
21 receipts to the fund be considered revenue to the state.

22 5. Any such claim drawn against the Canceled Warrant Fund shall
23 identify the current holder of record and the warrant number of the
24 canceled warrant, which shall be provided on the warrant record.

1 H. The ~~Director~~ Chief Operating Officer of the Office of
2 Management and Enterprise Services shall determine the minimum
3 necessary balance to be maintained in the Canceled Warrant Fund and
4 on the third Monday of October shall transfer the amount in excess
5 of the required minimum balance to the General Revenue Fund of the
6 current year. The minimum balance retained shall be not less than
7 the total amount of the warrants canceled by statute within the past
8 thirty-six (36) months preceding October 1 of each year and which
9 remain eligible for replacement according to the records of the
10 Office of Management and Enterprise Services. Provided, funds in
11 the Canceled Warrant Fund due to the cancellation of warrants from
12 the Crime Victims Compensation Fund shall be transferred to the
13 Crime Victims Compensation Fund and not to the General Revenue Fund.

14 SECTION 58. AMENDATORY 62 O.S. 2021, Section 34.81, is
15 amended to read as follows:

16 Section 34.81. A. The State Treasurer is hereby authorized and
17 empowered to issue a replacement warrant or bond in lieu of any
18 warrant or bond that has been lost or destroyed; provided, that no
19 replacement warrant or bond shall be issued until an affidavit
20 setting forth the facts as to the loss or destruction of said
21 original warrant or bond has been filed with the ~~Director~~ Chief
22 Operating Officer of the Office of Management and Enterprise
23 Services.
24

1 B. The ~~Director~~ Chief Operating Officer and the State Treasurer
2 shall maintain appropriate records in their offices to prevent, as
3 nearly as reasonably possible, the state from mistakenly issuing any
4 replacement warrant or bond.

5 C. Such records shall include a stop payment order against the
6 original warrant to cancel the original warrant.

7 D. For such lost or destroyed miscellaneous warrants, the
8 ~~Director~~ Chief Operating Officer of the Office of Management and
9 Enterprise Services shall cancel the original warrant record and
10 process a replacement warrant against the original disbursement
11 claim when possible, or otherwise shall transfer to the Canceled
12 Warrant Fund the payable amount of lost or destroyed warrants on
13 which payment has been stopped pursuant to the provisions of this
14 section from the fund and account against which said warrant had
15 been drawn and issue a replacement from the Canceled Warrant Fund.

16 E. For lost or destroyed payroll warrants, the ~~Director~~ Chief
17 Operating Officer of the Office of Management and Enterprise
18 Services shall issue all payroll replacement warrants pursuant to
19 the provisions of this section from the Canceled Warrant Fund. The
20 ~~Director~~ Chief Operating Officer shall allow the original payroll
21 warrant record to cancel by statute and shall transfer to the
22 Canceled Warrant Fund the payable amount to cover the lost or
23 destroyed warrants on which payment has been stopped pursuant to the
24

provisions of this section from the fund and account against which the warrant had been drawn.

SECTION 59. AMENDATORY 62 O.S. 2021, Section 34.82, is amended to read as follows:

Section 34.82. A. Disbursement information for all bonds and interest coupons redeemed by the State Treasurer shall be delivered to the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for posting. Deposit information for each and every receipt issued for monies received into the State Treasury shall be receipted for by the Office of Management and Enterprise Services.

B. Such information shall be maintained as a permanent record in the Office of Management and Enterprise Services.

C. The Office of Management and Enterprise Services shall audit such redeemed information and apportion and distribute the collections as indicated by the State Treasury receipts.

D. All warrants and checks redeemed by the State Treasurer shall be maintained by the State Treasurer in accordance with state law.

SECTION 60. AMENDATORY 62 O.S. 2021, Section 34.83, is amended to read as follows:

Section 34.83. A. If nonpayable warrants are issued pursuant to the provisions of Section 23 of Article X of the Oklahoma Constitution, the ~~Director~~ Chief Operating Officer of the Office of

1 Management and Enterprise Services shall issue and publish the
2 official call for payment for any warrants that may be outstanding
3 and registered as "nonpayable".

4 B. Notice of such call shall be published in some newspaper of
5 general circulation, published at the seat of government, and
6 interest on all warrants so called for payment shall cease on or
7 after ten (10) days from the date of the first publication of such
8 notice.

9 C. The ~~Director~~ Chief Operating Officer of the Office of
10 Management and Enterprise Services shall be responsible for the
11 custody of claims certified for payment which call for the
12 disbursement of money from the Treasury.

13 D. Such claims shall be maintained in files accessible to the
14 Division of Central Accounting and Reporting and the employees of
15 the Division of Central Accounting and Reporting shall have
16 authority to inspect such claims for the purpose of making
17 accounting adjustments in the records maintained by the Office of
18 Management and Enterprise Services.

19 SECTION 61. AMENDATORY 62 O.S. 2021, Section 34.87, as
20 amended by Section 1, Chapter 409, O.S.L. 2024 (62 O.S. Supp. 2025,
21 Section 34.87), is amended to read as follows:

22 Section 34.87. In order to ensure that the Oklahoma Higher
23 Learning Access Program will be fully funded and all eligible and
24

1 qualifying students receive scholarships, the following procedures
2 shall be observed:

3 1. Not later than November 1, 2007, and November 1 of each
4 subsequent year, the Oklahoma State Regents for Higher Education
5 shall estimate the amount of revenue they deem necessary to fund
6 awards allowed pursuant to the Oklahoma Higher Learning Access Act,
7 for the fiscal year which begins the following July 1 and provide
8 such estimate to the State Board of Equalization;

9 2. At its meeting in December 2007, and December of each
10 subsequent year, held pursuant to the provisions of paragraph 1 of
11 Section 23 of Article X of the Oklahoma Constitution, the State
12 Board of Equalization shall determine the total amount of revenue
13 necessary to fund awards allowed pursuant to the Oklahoma Higher
14 Learning Access Act for the fiscal year which begins the following
15 July 1 and reflect such amount as it certifies amounts available for
16 appropriation from the General Revenue Fund by the Legislature for
17 such fiscal year and identify the amount to be authorized pursuant
18 to paragraph 3 of this section; and

19 3. Notwithstanding any other provisions of law directing the
20 apportionment of revenues, beginning with the fiscal year ending
21 June 30, 2009, and for each subsequent fiscal year, the ~~Director of~~
22 ~~the Office of Management and Enterprise Services~~ Chief Financial
23 Officer shall transfer on a periodic basis as needed the amount of
24 revenue to be deposited to the Oklahoma Higher Learning Access Trust

Fund, provided that the total amount of such transfers in any fiscal year shall not exceed the amount authorized for transfer by applicable budget legislation for such fiscal year.

SECTION 62. AMENDATORY 62 O.S. 2021, Section 34.90, is amended to read as follows:

Section 34.90. There is hereby created in the State Treasury a revolving fund for the State Department of Education to be designated the "Common Education Technology Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of monies received pursuant to the provisions of subparagraph a of paragraph 2 and subparagraph a of paragraph 3 of Section 1004 of Title 68 of the Oklahoma Statutes and any funds previously deposited in the Common Education Technology Fund. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the State Department of Education as authorized by the Oklahoma Legislature. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 63. AMENDATORY 62 O.S. 2021, Section 34.91, is amended to read as follows:

Section 34.91. There is hereby created in the State Treasury a revolving fund for the Oklahoma State Regents for Higher Education

1 to be designated the "Higher Education Capital Revolving Fund". The
2 fund shall be a continuing fund not subject to fiscal year
3 limitations, and shall consist of monies received pursuant to the
4 provisions of subparagraph b of paragraph 2 and subparagraph b of
5 paragraph 3 of Section 1004 of Title 68 of the Oklahoma Statutes and
6 any funds previously deposited in the Higher Education Capital Fund.
7 All monies accruing to the credit of the fund are hereby
8 appropriated and may be budgeted and expended by the Oklahoma State
9 Regents for Higher Education as authorized by the Oklahoma
10 Legislature. Expenditures from said fund shall be made upon
11 warrants issued by the State Treasurer against claims filed as
12 prescribed by law with the ~~Director~~ Chief Operating Officer of the
13 Office of Management and Enterprise Services for approval and
14 payment.

15 SECTION 64. AMENDATORY 62 O.S. 2021, Section 34.92, is
16 amended to read as follows:

17 Section 34.92. A. There is hereby created in the State
18 Treasury a revolving fund for the Oklahoma State Regents for Higher
19 Education to be designated the "Oklahoma Student Aid Revolving
20 Fund". The fund shall be a continuing fund, not subject to fiscal
21 year limitations, and shall consist of monies received pursuant to
22 the provisions of subparagraph c of paragraph 2 and subparagraph c
23 of paragraph 3 of subsection A of Section 1004 of Title 68 of the
24 Oklahoma Statutes and any funds previously deposited in the Oklahoma

1 Tuition Scholarship Fund. All monies accruing to the credit of the
2 fund are hereby appropriated and may be budgeted and expended by the
3 Oklahoma State Regents for Higher Education as authorized by the
4 Oklahoma Legislature. Expenditures from said fund shall be made
5 upon warrants issued by the State Treasurer against claims filed as
6 prescribed by law with the ~~Director~~ Chief Operating Officer of the
7 Office of Management and Enterprise Services for approval and
8 payment.

9 B. Beginning with fiscal year 2003, monies accruing to the
10 credit of the Oklahoma Student Aid Revolving Fund shall be
11 appropriated for and budgeted and expended for providing student aid
12 in the form of state tuition aid grants awarded pursuant to the
13 Higher Education Tuition Aid Act and scholarships awarded pursuant
14 to the Oklahoma State Regents' Academic Scholars Program.

15 SECTION 65. AMENDATORY 62 O.S. 2021, Section 34.102, is
16 amended to read as follows:

17 Section 34.102. A. There is hereby created in the State
18 Treasury a revolving fund to be known and designated as the "Revenue
19 Stabilization Fund". The fund shall be a continuing fund, not
20 subject to fiscal year limitations.

21 B. For determinations made regarding deposits for fiscal years
22 beginning on or after July 1, 2019, no monies shall be deposited to
23 the credit of the Revenue Stabilization Fund until such time as the
24 amount of actual revenue certified by the State Board of

1 Equalization as having been deposited into the General Revenue Fund
2 for the first fiscal year prior to the beginning of the fiscal year
3 that deposits to the Revenue Stabilization Fund are first made
4 equals or exceeds Six Billion Six Hundred Million Dollars
5 (\$6,600,000,000.00).

6 C. Once the provisions prescribed by subsection B of this
7 section have been met, deposits to the Revenue Stabilization Fund as
8 prescribed by this section may be made during any subsequent fiscal
9 year according to the requirements and limitations imposed by this
10 act; provided that no deposits shall be made during a fiscal year
11 where the State Board of Equalization General Revenue Fund
12 certification for said fiscal year is less than the State Board of
13 Equalization General Revenue Fund certification for the previous
14 fiscal year plus an increment equal to the amount otherwise
15 calculated for deposit pursuant to subsection E of this section.

16 D. Notwithstanding any other provisions of this section, unless
17 such deposits are the result of a direct appropriation to the
18 Revenue Stabilization Fund by the Legislature, no monies shall be
19 deposited to the credit of the Revenue Stabilization Fund:

20 1. For any month during a fiscal year after the month during
21 which the declaration of a revenue failure pursuant to the
22 provisions of Section 34.49 of this title has been made. For
23 purposes of this subsection, the limitation on deposits to the
24 Revenue Stabilization Fund shall be imposed for the remaining months

1 of the fiscal year during which the revenue failure was declared,
2 but shall not operate as a limitation upon deposits for any
3 subsequent fiscal year unless a revenue failure is declared at some
4 time during such fiscal year; or

5 2. That would cause deposits to the Revenue Stabilization Fund
6 for the fiscal year to exceed three percent (3%) of the State Board
7 of Equalization General Revenue Fund certification for that fiscal
8 year.

9 E. Except as provided in subsection I of this section, the
10 Revenue Stabilization Fund shall consist of:

11 1. One hundred percent (100%) of the revenue derived from the
12 gross production tax on oil levied pursuant to Section 1001 of Title
13 68 of the Oklahoma Statutes which is in excess of the five-year
14 average computed as prescribed by Section 34.103 of this title;

15 2. One hundred percent (100%) of the revenue derived from the
16 gross production tax on natural gas levied pursuant to Section 1001
17 of Title 68 of the Oklahoma Statutes which is in excess of the five-
18 year average computed as prescribed by Section 34.103 of this title;

19 3. Seventy-five percent (75%) of the revenue derived from
20 corporate income tax levied pursuant to Section 2355 of Title 68 of
21 the Oklahoma Statutes which is in excess of the five-year average
22 computed as prescribed by Section 34.103 of this title; and

23 4. Any amounts appropriated by the Legislature.
24

1 F. 1. Except as provided in paragraph 2 of this subsection, in
2 the event that a revenue failure is declared with respect to the
3 General Revenue Fund pursuant to Section 34.49 of this title, the
4 ~~Director of the Office of Management and Enterprise Services~~ Chief
5 Financial Officer may withdraw up to one-quarter (1/4) of the
6 balance of the Revenue Stabilization Fund available at the beginning
7 of the fiscal year, provided the total amount withdrawn shall not
8 exceed the amount of the declared revenue failure, to in equal
9 proportions reduce or avoid reductions to agencies for the current
10 fiscal year and to mitigate potential reductions of funds to be
11 expended by common school districts which were appropriated or
12 authorized by the Legislature, but excluding any funds which are
13 apportioned directly to common school districts.

14 2. For the fiscal year ending June 30, 2020, in the event that
15 a revenue failure is declared with respect to the General Revenue
16 Fund pursuant to Section 34.49 of this title, the ~~Director of the~~
17 ~~Office of Management and Enterprise Services~~ Chief Financial Officer
18 may withdraw amounts up to a total of one-half (1/2) of the highest
19 balance during the fiscal year ending June 30, 2020, of the Revenue
20 Stabilization Fund; provided, the total amount withdrawn shall not
21 exceed the amount of the declared revenue failure less any
22 appropriations made by the Legislature to offset such revenue
23 failure, to in equal proportions reduce or avoid reductions to
24 agencies for the fiscal year and to mitigate potential reductions of

1 funds to be expended by common school districts which were
2 appropriated or authorized by the Legislature for the fiscal year
3 ending June 30, 2020, but excluding any funds which are apportioned
4 directly to common school districts. No monies shall be withdrawn
5 under the provisions of this subsection for the purpose of reducing
6 or avoiding reductions of appropriations made pursuant to Section
7 129 of Enrolled House Bill No. 2765 of the 1st Session of the 57th
8 Oklahoma Legislature or Section 1 of Enrolled Senate Bill No. 1076
9 of the 1st Session of the 57th Oklahoma Legislature.

10 G. In the event that a revenue failure is declared with respect
11 to the General Revenue Fund pursuant to Section 34.49 of this title,
12 the Legislature may appropriate up to one-quarter (1/4) of the
13 balance of the Revenue Stabilization Fund available at the beginning
14 of the fiscal year, not to exceed the amount of the revenue failure
15 as declared with respect to the General Revenue Fund pursuant to
16 Section 34.49 of this title.

17 H. If the amount of revenue certified by the State Board of
18 Equalization at its February meeting in any year to be collected in
19 the General Revenue Fund for the upcoming fiscal year is less than
20 the amount of revenue certified by the State Board of Equalization
21 to be collected in the General Revenue Fund for the current fiscal
22 year as determined at its February meeting conducted in the
23 preceding calendar year, the Legislature may appropriate up to one-
24 half (1/2) of the balance of the Revenue Stabilization Fund

1 available at the beginning of the fiscal year; provided, that the
2 amount withdrawn shall not exceed the amount of the decline in
3 revenue certified.

4 I. If during the Board of Equalization certification process,
5 one or more of the revenue sources identified in paragraphs 1, 2 and
6 3 of subsection E of this section are forecasted to experience a
7 revenue decrease, then the total deposits to the Revenue
8 Stabilization Fund as otherwise calculated under subsection E of
9 this section shall be reduced in an amount equal to such revenue
10 decreases. For purposes of this subsection, "revenue decrease"
11 means an identified revenue source derived in an amount less than
12 the five-year average for such revenue source.

13 SECTION 66. AMENDATORY 62 O.S. 2021, Section 34.203, is
14 amended to read as follows:

15 Section 34.203. A. By July 1, 2020, the ~~Director~~ Chief
16 Operating Officer of the Office of Management and Enterprise
17 Services shall initiate a request for proposal for the ongoing
18 maintenance of desktop support and management systems for all state
19 agencies. The Office of Management and Enterprise Services is
20 authorized to enter into a contract for such services, pursuant to
21 the provisions of law.

22 B. Notice of the request for proposal shall be published in the
23 manner provided for competitive bidding. The requests for proposal
24 must solicit quotations and must specify the importance of

1 guaranteed savings, price, quality, technical ability and
2 experience. The contract shall be awarded to the responsible
3 offeror whose proposal is determined to achieve guaranteed savings
4 to this state in comparison with the cost of current desktop support
5 and management as provided by ~~the Information Services Division of~~
6 the Office of ~~Management and Enterprise Services~~ Strategic
7 Technology Solutions.

8 C. The ~~Director~~ Chief Operating Officer of the Office of
9 Management and Enterprise Services shall promulgate rules and
10 establish procedures to implement the request for proposal pursuant
11 to this section.

12 SECTION 67. AMENDATORY 62 O.S. 2021, Section 34.204, is
13 amended to read as follows:

14 Section 34.204. A. By December 31, 2022, the ~~Director~~ Chief
15 Operating Officer of the Office of Management and Enterprise
16 Services (OMES) shall initiate a request for proposal for the
17 rationalization and determination of which state applications and
18 databases can be immediately transferred to a cloud-based data
19 storage platform. The purpose of this request for proposal is to
20 give this state the ability to accurately evaluate the cost and
21 plans needed to implement modernization of the state's applications
22 and databases. These applications and databases shall be limited to
23 customer relationship management tools, case management tools,
24 workflow tools and supplemental financial systems. OMES is

1 authorized to enter into a contract for such services, pursuant to
2 the provisions of law.

3 B. Notice of the request for proposal shall be published in the
4 manner provided for competitive bidding. The contract shall be
5 awarded to the responsible offeror whose proposal is determined to
6 achieve the desired goal of rationalization of technology for the
7 state.

8 C. The ~~Director~~ Chief Operating Officer shall promulgate rules
9 and establish procedures to implement the request for proposal
10 pursuant to the section.

11 SECTION 68. NEW LAW A new section of law not to be
12 codified in the Oklahoma Statutes reads as follows:

13 A. The amendments contained in this act which modify references
14 to the "Director of the Office of Management and Enterprise
15 Services" to the "Chief Operating Officer" shall not be effective as
16 law until the Governor makes the first appointment of a Chief
17 Operating Officer pursuant to the provisions of Section 5 of this
18 act.

19 B. The amendments contained in this act which create references
20 to the "Chief Financial Officer" of the Office of Management and
21 Enterprise Services shall not be effective as law until the Governor
22 makes the first appointment of a Chief Financial Officer pursuant to
23 the provisions of Section 6 of this act.
24

1 C. The provisions of this section shall be effective whether or
2 not the first appointee to the position of Chief Operating Officer
3 or the first appointee to the position of Chief Financial Officer
4 receives confirmation by the Oklahoma State Senate.

5 SECTION 69. AMENDATORY 1 O.S. 2021, Section 26, is
6 amended to read as follows:

7 Section 26. There is hereby created in the State Treasury a
8 revolving fund for the Oklahoma Abstractors Board to be designated
9 the "Oklahoma Abstractors Board Revolving Fund". Beginning July 1,
10 2007, any monies collected pursuant to the Oklahoma Abstractors Law
11 shall be deposited into the Oklahoma Abstractors Board Revolving
12 Fund. Beginning January 1, 2008, any monies collected pursuant to
13 the Oklahoma Abstractors Act shall be deposited into the Oklahoma
14 Abstractors Board Revolving Fund. The fund shall be a continuing
15 fund, not subject to fiscal year limitations, and shall consist of
16 all monies received by the Oklahoma Abstractors Board from any
17 transfers, fees, bonds, penalties or fines paid to the Board
18 pursuant to the Oklahoma Abstractors Act. All monies accruing to
19 the credit of said fund are hereby appropriated and may be budgeted
20 and expended by the Oklahoma Abstractors Board for the purpose of
21 effectuating the purposes of the Oklahoma Abstractors Act and to pay
22 all costs and expenses heretofore and hereafter incurred in
23 connection therewith. Expenditures from said fund shall be made
24 upon warrants issued by the State Treasurer against claims filed as

1 prescribed by law with the ~~Director~~ Chief Operating Officer of the
2 Office of Management and Enterprise Services for approval and
3 payment.

4 SECTION 70. AMENDATORY 2 O.S. 2021, Section 2-26, is
5 amended to read as follows:

6 Section 2-26. A. The Agriculture Emergency Insect Control
7 Special Fund is hereby created in the State Treasury for the
8 Oklahoma Department of Agriculture, Food, and Forestry. The fund
9 consists of monies transferred to it from funds appropriated to the
10 Department for this purpose. The fund shall be a continuing fund,
11 not subject to fiscal year limitations, and shall be under the
12 control and management of the administrative authority of the
13 Department. Expenditures from the fund shall be pursuant to the
14 laws of this state and rules promulgated by the State Board of
15 Agriculture.

16 B. The fund shall be for emergency controls that lack
17 legislative appropriation of emergency grasshopper and range
18 caterpillar control within the state or for the general operations
19 of the Department, and may be used for matching purposes for those
20 programs in which the United States Department of Agriculture
21 participates.

22 C. All expenditures shall be approved by the Board. Warrants
23 for expenditures from the fund shall be based on claims signed by an
24 authorized employee of the Department and approved for payment by

1 the ~~Director~~ Chief Operating Officer of the Office of Management and
2 Enterprise Services.

3 SECTION 71. AMENDATORY 2 O.S. 2021, Section 3-410, is
4 amended to read as follows:

5 Section 3-410. There is hereby created in the State Treasury a
6 revolving fund for the State Board of Agriculture to be designated
7 the "Oklahoma Industrial Hemp Program Fund". The fund shall be a
8 continuing fund, not subject to fiscal year limitations and shall
9 consist of all monies received by the State Board of Agriculture
10 from fees received and collected pursuant to the Oklahoma Industrial
11 Hemp Program, donations, grants, contributions and gifts from any
12 public or private source. The Board may expend funds for the
13 purposes set forth in the Oklahoma Industrial Hemp Program.
14 Expenditures from said fund shall be made upon warrants issued by
15 the State Treasurer against claims filed as prescribed by law with
16 the ~~Director~~ Chief Operating Officer of the Office of Management and
17 Enterprise Services for approval and payment.

18 SECTION 72. AMENDATORY 2 O.S. 2021, Section 5-3.3, is
19 amended to read as follows:

20 Section 5-3.3. A. There is hereby created within the State
21 Treasury a fund for the State Board of Agriculture to be designated
22 the "Oklahoma Agriculture Enhancement and Diversification Fund".
23 The fund shall be a continuing fund, not subject to fiscal year
24 limitations, and shall consist of all monies received by the State

1 Board of Agriculture to implement and maintain the Oklahoma
2 Agriculture Enhancement and Diversification Program.

3 B. The Oklahoma Agriculture Enhancement and Diversification
4 Fund shall consist of:

5 1. Money received by the Oklahoma Department of Agriculture,
6 Food, and Forestry in the form of gifts, grants, appropriations,
7 reimbursements, donations, industry contributions, funds allocated
8 by federal agencies for marketing, research and agricultural
9 development programs and such other monies specifically designated
10 for the Oklahoma Agriculture Enhancement and Diversification
11 Program. All monies accruing to the credit of the fund are hereby
12 appropriated and may be budgeted and expended by the State Board of
13 Agriculture for the Oklahoma Agriculture Enhancement and
14 Diversification Program; and

15 2. Interest attributable to investment of money in the fund.

16 C. All donations or other proceeds received by the Department
17 pursuant to the provisions of this section shall be deposited with
18 the State Treasurer to be credited to the Oklahoma Agriculture
19 Enhancement and Diversification Fund. Expenditures from the fund
20 shall be made upon warrants issued by the State Treasurer against
21 claims filed as prescribed by law with the ~~Director~~ Chief Operating
22 Officer of the Office of Management and Enterprise Services for
23 approval and payment.
24

1 D. The monies deposited in the fund shall at no time become
2 part of the general budget of the Department or any other state
3 agency. Except for any administration costs incurred in development
4 and implementation of the Oklahoma Agriculture Enhancement and
5 Diversification Program, no monies from the fund shall be
6 transferred for any purpose to any other state agency or to any
7 account of the State Board of Agriculture or the Department or be
8 used for the purpose of contracting with any other state agency or
9 reimbursing any other state agency for any expense.

10 SECTION 73. AMENDATORY 2 O.S. 2021, Section 5-122, is
11 amended to read as follows:

12 Section 5-122. There is hereby created in the State Treasury a
13 revolving fund for the Oklahoma Department of Agriculture, Food, and
14 Forestry to be designated the "Urban Gardens Grant Revolving Fund".
15 The fund shall be a continuing fund, not subject to fiscal year
16 limitations, and shall consist of all monies received by the State
17 Board of Agriculture from state-appropriated funds, federal funds,
18 donations, grants and contributions from any public or private
19 source and designated for the purpose set forth in this section.
20 All monies accruing to the credit of the fund are hereby
21 appropriated and may be budgeted and expended by the Oklahoma
22 Department of Agriculture, Food, and Forestry for the purpose of
23 administering the Urban Gardens Grant Act. Expenditures from the
24 fund shall be made upon warrants issued by the State Treasurer

1 against claims filed as prescribed by law with the ~~Director~~ Chief
2 Operating Officer of the Office of Management and Enterprise
3 Services for approval and payment.

4 SECTION 74. AMENDATORY 2 O.S. 2021, Section 6-405, is
5 amended to read as follows:

6 Section 6-405. A. When it is determined by the State Board of
7 Agriculture that it is necessary to eradicate any dangerous,
8 infectious or communicable disease among domestic animals in the
9 state, the presence of which constitutes an emergency declared
10 pursuant to the Animal Disease Outbreak Temporary Emergency Act or
11 declared by the United States Department of Agriculture, the Board
12 may take reasonable and necessary steps to suppress and eradicate
13 the disease. The Board may cooperate with the Animal and Plant
14 Health Inspection Service (APHIS) of the United States Department of
15 Agriculture, federally recognized Indian tribes, state or local
16 government agencies, or any other private or public entity in the
17 suppression and eradication of the disease.

18 B. When an emergency has been declared, the Board or the State
19 Veterinarian may order:

20 1. Animals destroyed which are infected with the disease,
21 exposed to the disease, or are highly susceptible to exposure to the
22 disease because of proximity to diseased animals affected by the
23 disease;

2. Personal property to be destroyed in order to remove the infection;

3. The cleaning and disinfection of any premises, exposed to the disease, or are highly susceptible to exposure to the disease because of proximity to diseased animals affected by the disease; and

4. Any act and incur any other expense reasonably necessary to destroy or suppress the disease.

C. The Governor, at the request of the Board, may take any other emergency action necessary to ensure the health of the public and the state livestock industry.

D. 1. The Board may:

a. accept on behalf of the state, the regulations adopted by the Animal and Plant Health Inspection Service of the United States Department of Agriculture pertaining to the disease authorized under an act of Congress, or the portion of the regulations deemed necessary, suitable, or applicable, and

b. cooperate with the Animal and Plant Health Inspection Service of the United States Department of Agriculture, in the enforcement of such regulations.

2. Alternatively, the Board may follow the procedure only as to quarantine, inspection, condemnation, appraisal, compensation, destruction, burial of animals, disinfection, or other acts the

Board considers reasonably necessary for the destruction or suppression of the disease as adopted by the Board.

E. 1. For the purpose of determining compensation as provided by subsection F of this section, appraisals of animals or personal property destroyed pursuant to the Animal Disease Outbreak Temporary Emergency Act must be made by a Board-approved appraiser or by an appraisal committee consisting of an appraiser representing the Board, an appraiser representing the Animal and Plant Health Inspection Service of the United States Department of Agriculture, and an appraiser representing the owner. When, in the judgment of the Board or the State Veterinarian, the animals to be killed or personal property to be destroyed poses a disease threat, appraisals may be conducted after the animals are killed based on documents, testimony, or other relevant evidence.

2. Appraisals must be:

- a. in writing and signed by the appraisers or appraisal committee, and
- b. made at the fair market value of all animals and personal property appraised, unless otherwise provided by applicable federal law or regulation when compensation is paid by federal funds.

F. Upon destruction of animals or personal property, burial or other disposition of the carcasses of the animals, and the completion of the cleaning and disinfection of the premises in

1 accordance with the provisions of the Animal Disease Outbreak
2 Temporary Emergency Act, the Board or its authorized agent shall
3 certify the appraisal to the ~~Director~~ Chief Operating Officer of the
4 Office of Management and Enterprise Services. If funds are
5 available for this purpose, the ~~Director~~ Chief Operating Officer
6 shall then file a claim with the State Treasurer for a warrant in
7 the amount payable to the owner, excluding any compensation received
8 by the owner from other sources.

9 G. A person who believes that the Board's certified appraisal
10 is not sufficient may apply for a temporary restraining order or
11 injunctive relief from the appropriate district court.

12 H. 1. No person or other legal entity may initiate any
13 proceeding to collect a debt from the owner relating to animals or
14 personal property destroyed pursuant to this section, until the
15 owner has received compensation under paragraph F of this section.

16 2. If a person or other legal entity refuses to comply with
17 this subsection after being informed that the owner qualifies for
18 relief pursuant to the Animal Disease Outbreak Temporary Emergency
19 Act, the owner may apply to the district court in the county in
20 which the owner resides for a court order directing the person or
21 other legal entity to comply with this subsection and to reimburse
22 the owner for reasonable attorney fees incurred in obtaining the
23 court order.

1 3. The provisions of this subsection shall not affect the
2 validity of a mortgage foreclosure, contract for deed cancellation
3 or other proceeding involving the title to real property, unless the
4 owner records in the office of the county clerk where the real
5 property is located, prior to completion of the proceeding to
6 collect the debt, a certified copy of the court order determining
7 that the owner qualifies for relief pursuant to the Animal Disease
8 Outbreak Temporary Emergency Act, and the legal description of the
9 real property.

10 4. a. For purposes of proceedings involving title to real
11 property pursuant to paragraph 3 of this subsection,
12 the court order must provide that the order expires
13 ninety (90) days after the date of application for the
14 court order, unless the court extends the court order
15 prior to that date for good cause shown.

16 b. A certified copy of any extension of the court order
17 must be filed in the office of the county clerk in
18 order to affect the validity of a proceeding affecting
19 the title to real property.

20 5. For purposes of this subsection:

21 a. "completion of a proceeding to collect a debt" means,
22 in the case of a mortgage foreclosure or of a
23 foreclosure of any other lien on real property, the
24 filing or recording of the sheriff's certificate of

1 sale, and, in the case of a contract for deed
2 cancellation, the end of the cancellation period
3 provided in that law, and

4 b. "proceeding to collect a debt" includes foreclosure,
5 repossession, garnishment, levy, contract for deed
6 cancellation, an action to obtain a court judgment, a
7 proceeding to collect real estate taxes or special
8 assessments, eviction, and any other in-court and out-
9 of-court proceedings to collect a debt. The term
10 shall not include sending bills or other routine
11 communications to the owner.

12 SECTION 75. AMENDATORY 2 O.S. 2021, Section 7-416, is
13 amended to read as follows:

14 Section 7-416. There is hereby created in the State Treasury a
15 revolving fund to be known as the "Milk and Milk Products Inspection
16 Revolving Fund". The fund shall be a continuing fund not subject to
17 fiscal year limitations and is appropriated and may be budgeted and
18 expended by the Commissioner of Agriculture for the purpose of
19 administering and enforcing the Oklahoma Milk and Milk Products Act.
20 Expenditures from the fund shall be made upon warrants issued by the
21 State Treasurer against claims filed as prescribed by law with the
22 ~~Director~~ Chief Operating Officer of the Office of Management and
23 Enterprise Services for approval and payment.
24

SECTION 76. AMENDATORY 2 O.S. 2021, Section 10-9.6, is amended to read as follows:

Section 10-9.6. A. There is hereby created in the State Treasury a revolving fund for the Oklahoma Department of Agriculture, Food, and Forestry to be designated the "Poultry Waste Education Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies donated to the fund, and any other monies deposited in the fund pursuant to law.

B. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Oklahoma Department of Agriculture, Food, and Forestry to contract with Oklahoma State University to provide the educational courses required by the Oklahoma Poultry Waste Applicators Certification Act.

C. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 77. AMENDATORY 2 O.S. 2021, Section 10-9.24, is amended to read as follows:

Section 10-9.24. There is hereby created in the State Treasury a revolving fund for the Oklahoma Department of Agriculture, Food, and Forestry to be designated the "Agriculture Regulation Revolving

Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of fees and fines assessed on concentrated animal feeding operations, registered poultry feeding operations, and any other monies deposited in this fund pursuant to law. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Oklahoma Department of Agriculture, Food, and Forestry for the regulation, enforcement, and administration of the Oklahoma Department of Agriculture, Food, and Forestry Water Quality Division.

Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 78. AMENDATORY Section 2, Chapter 391, O.S.L. 2022 (2 O.S. Supp. 2025, Section 11-12), is amended to read as follows:

Section 11-12. There is hereby created in the State Treasury a revolving fund for the Oklahoma Department of Agriculture, Food, and Forestry to be designated the "February 2021 Winter Storm Grant Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Department in the form of appropriations, donations, or other monies designated for deposit in the fund. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted

1 and expended by the Department for the purpose of providing grants
2 to an incorporated municipality as provided by this act.
3 Expenditures from the fund shall be made upon warrants issued by the
4 State Treasurer against claims filed as prescribed by law with the
5 ~~Director~~ Chief Operating Officer of the Office of Management and
6 Enterprise Services for approval and payment.

7 SECTION 79. AMENDATORY 2 O.S. 2021, Section 16-11, is
8 amended to read as follows:

9 Section 16-11. A. There is created within the State Treasury a
10 cost-share fund for the State Board of Agriculture to be designated
11 the "Forestry Cost-Share Fund". The fund shall be a continuing
12 fund, not subject to fiscal year limitations, and shall consist of
13 all monies received by the Board to implement and maintain the
14 forestry cost-share program.

15 B. The Forestry Cost-Share Fund shall consist of:

16 1. Money received by the Oklahoma Department of Agriculture,
17 Food, and Forestry in the form of gifts, grants, reimbursements,
18 donations, forest industry contributions, funds allocated by federal
19 agencies for landowner forestry cost-share programs, and other
20 monies specifically designated for the forestry cost-share program.
21 All monies accruing to the credit of the fund are appropriated and
22 may be budgeted and expended by the Board for the forestry cost-
23 share program; and
24

2. Interest attributable to investment of money in the Forestry Cost-Share Fund.

C. All donations or other proceeds received by the Department pursuant to the provisions of this section shall be deposited with the State Treasurer to be credited to the Forestry Cost-Share Fund. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

D. The monies deposited in the Forestry Cost-Share Fund shall at no time become part of the general budget of the Department or any other state agency. Except for any administration costs incurred in development and implementation of the forestry cost-share program, no monies from the Fund shall be transferred for any purpose to any other state agency or any account of the Board or Department or be used for the purpose of contracting with any other state agency or reimbursing any other state agency for any expense.

SECTION 80. AMENDATORY 2 O.S. 2021, Section 16-83, is amended to read as follows:

Section 16-83. There is hereby created in the State Treasury a revolving fund for the Oklahoma Department of Agriculture, Food, and Forestry to be designated the "Rural Fire Equipment Grant Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the

Oklahoma Department of Agriculture, Food, and Forestry and designated for deposit thereto. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Oklahoma Department of Agriculture, Food, and Forestry for the purpose of purchasing and repairing equipment used by rural fire departments for firefighting efforts. The Oklahoma Department of Agriculture, Food, and Forestry shall work with the Rural Fire Coordinators to establish suitable criteria for application and approval of grants awarded to rural fire departments from said fund. Priority of grants awarded from said fund shall be given to rural fire departments which suffered damaged equipment from wildfire suppression efforts related to drought-related fires and fire control. The activities associated with the duties of said fund shall be known as the "Rural Fire Equipment Grant Program". Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 81. AMENDATORY 2 O.S. 2021, Section 18-42, is amended to read as follows:

Section 18-42. There is hereby created in the State Treasury a revolving fund for the Oklahoma Beef Council to be designated the "Oklahoma Beef Council Revolving Fund". The Fund shall be a continuing fund, not subject to fiscal year limitations and shall

1 consist of all monies received by the Oklahoma Beef Council from
2 assessments received and collected pursuant to the Oklahoma Beef
3 Improvement and Market Development Act, donations, grants,
4 contributions and gifts from any public or private source. The
5 Council may expend funds as provided for by law. Expenditures from
6 said fund shall be made upon warrants issued by the State Treasurer
7 against claims filed as prescribed by law with the ~~Director~~ Chief
8 Operating Officer of the Office of Management and Enterprise
9 Services for approval and payment.

10 SECTION 82. AMENDATORY 2 O.S. 2021, Section 18-407, is
11 amended to read as follows:

12 Section 18-407. There is hereby created in the State Treasury a
13 revolving fund for the Eastern Redcedar Management Act to be
14 designated the "Eastern Redcedar Revolving Fund". The fund shall be
15 a continuing fund, not subject to fiscal year limitations, and shall
16 consist of all monies received by the Oklahoma Department of
17 Agriculture, Food, and Forestry from the state income tax checkoff
18 as provided for in Section 18-408 of this title, the special license
19 plate issued pursuant to Section 1135.5 of Title 47 of the Oklahoma
20 Statutes, any state-appropriated funds, federal funds, donations,
21 grants, contributions, and gifts from any public or private source.
22 All monies accruing to the credit of said fund are hereby
23 appropriated and may be budgeted and expended by the Department for
24 the purposes set forth in the Eastern Redcedar Management Act.

Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 83. AMENDATORY Section 16, Chapter 297, O.S.L. 2023 (2 O.S. Supp. 2025, Section 4016), is amended to read as follows:

Section 4016. A. There is hereby created in the State Treasury a revolving fund for the Oklahoma State University Veterinary Medicine Authority, to be designated the "Oklahoma State University Veterinary Medicine Authority Marketing Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Oklahoma State University Veterinary Medicine Authority pursuant to the provisions of this section. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Oklahoma State University Veterinary Medicine Authority for the purpose of marketing research and planning, public education, special events customary to the veterinary care industry, advertising and promotion of special and general services provided or sponsored by the Oklahoma State University Veterinary Medicine Authority and such other purposes specifically authorized by the Legislature.

Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with

1 the ~~Director~~ Chief Operating Officer of the Office of Management and
2 Enterprise Services for approval and payment.

3 B. An amount equal to one-tenth of one percent (1/10 of 1%) of
4 the total annual operating budget of the Oklahoma State University
5 Veterinary Medicine Authority and such other funds as may be
6 specifically designated for deposit to the fund shall be deposited
7 in the Oklahoma State University Veterinary Medicine Authority
8 Marketing Revolving Fund.

9 C. The Oklahoma State University Veterinary Medicine Authority
10 Marketing Revolving Fund shall be audited annually by the State
11 Auditor and Inspector. The Oklahoma State University Veterinary
12 Medicine Authority shall reimburse the State Auditor and Inspector
13 from the Oklahoma State University Authority Marketing Revolving
14 Fund for any expenses incurred in auditing said fund.

15 SECTION 84. AMENDATORY Section 22, Chapter 297, O.S.L.
16 2023 (2 O.S. Supp. 2025, Section 4022), is amended to read as
17 follows:

18 Section 4022. There is hereby created in the State Treasury a
19 revolving fund for the Oklahoma State University Veterinary Medical
20 Trust to be designated the "Oklahoma State University Veterinary
21 Medical Trust Revolving Fund". The fund shall be a continuing fund,
22 not subject to fiscal year limitations, and shall consist of all
23 monies directed for deposit to the fund by law. All monies accruing
24 to the credit of the fund are hereby appropriated and may be

1 budgeted and expended by the Oklahoma State University Veterinary
2 Medical Trust in accordance with the provisions of this act.
3 Expenditures from said fund shall be made upon warrants issued by
4 the State Treasurer against claims filed as prescribed by law with
5 the ~~Director~~ Chief Operating Officer of the Office of Management and
6 Enterprise Services for approval and payment.

7 SECTION 85. AMENDATORY 3 O.S. 2021, Section 91, as
8 amended by Section 9, Chapter 126, O.S.L. 2023 (3 O.S. Supp. 2025,
9 Section 91), is amended to read as follows:

10 Section 91. There is hereby created in the State Treasury a
11 revolving fund for the Oklahoma Department of Aerospace and
12 Aeronautics to be designated as the Oklahoma Department of Aerospace
13 and Aeronautics Revolving Fund. The fund shall be a continuing
14 fund, not subject to fiscal year limitations, and shall consist of a
15 monthly allocation by the Oklahoma Tax Commission of Three Thousand
16 Dollars (\$3,000.00) from the motor fuel excise tax levied and
17 collected pursuant to the provisions of Title 68 of the Oklahoma
18 Statutes, such amount being a part of the estimated amount of tax
19 paid on gasoline consumed by engines to propel aircraft in this
20 state, sale of surplus property, fees and receipts collected
21 pursuant to the Oklahoma Open Records Act, donations, gifts,
22 bequests, contribution, devices, interagency reimbursements, federal
23 funds unless otherwise provided by federal law or regulation, sale
24 of leases and aircraft registration fees and taxes, fees authorized

by Section 1135.5 of Title 47 of the Oklahoma Statutes or any other source. All monies accruing to the fund are hereby appropriated and may be budgeted and expended by the Oklahoma Department of Aerospace and Aeronautics for airport construction and rehabilitation programs, general operations of the agency, for promoting the awareness of aviation and aerospace, and providing financial support for aviation education programs to address the need for a skilled and competent aviation workforce. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 86. AMENDATORY 3 O.S. 2021, Section 375, is amended to read as follows:

Section 375. There is hereby created in the State Treasury a revolving fund for the Oklahoma Department of Transportation to be designated the "Oklahoma Advanced Mobility Pilot Project Revolving Fund". The Fund shall be a continuing fund, not subject to fiscal year limitations and shall consist of all monies received by the Oklahoma Tax Commission which are specifically required by law to be deposited in the Fund, any public or private donations, contributions and gifts received for the benefit of the Fund and any amounts appropriated by the Legislature. All monies accruing to the credit of the Fund are hereby appropriated and may be budgeted and

1 expended by the Oklahoma Department of Transportation for the
2 purpose of funding grants as provided in this act. Expenditures
3 from the Fund shall be made upon warrants issued by the State
4 Treasurer against claims filed as prescribed by law with the
5 ~~Director~~ Chief Operating Officer of the Office of Management and
6 Enterprise Services for approval and payment.

7 SECTION 87. AMENDATORY Section 16, Chapter 365, O.S.L.
8 2023 (3 O.S. Supp. 2025, Section 403), is amended to read as
9 follows:

10 Section 403. There is hereby created in the State Treasury a
11 revolving fund for the Oklahoma Department of Aerospace and
12 Aeronautics to be designated the "Oklahoma Advanced Air Mobility
13 Revolving Fund". The fund shall be a continuing fund, not subject
14 to fiscal year limitations, and shall consist of all monies received
15 by the Oklahoma Tax Commission which are specifically required by
16 law to be deposited in the fund, any public or private donations,
17 contributions, and gifts received for the benefit of the fund, and
18 any amounts appropriated by the Legislature. All monies accruing to
19 the credit of the fund are hereby appropriated and may be budgeted
20 and expended by the Oklahoma Department of Aerospace and Aeronautics
21 for the purpose of investing in advanced air mobility and unmanned
22 aircraft systems and associated infrastructure. Expenditures from
23 the fund shall be made upon warrants issued by the State Treasurer
24 against claims filed as prescribed by law with the ~~Director~~ Chief

1 Operating Officer of the Office of Management and Enterprise
2 Services for approval and payment.

3 SECTION 88. AMENDATORY Section 4, Chapter 203, O.S.L.
4 2022, as amended by Section 20, Chapter 126, O.S.L. 2023 (3 O.S.
5 Supp. 2025, Section 414), is amended to read as follows:

6 Section 414. There is hereby created in the State Treasury a
7 revolving fund for the Oklahoma Department of Aerospace and
8 Aeronautics to be designated the "Oklahoma Air Service Development
9 Grant Program Revolving Fund". The fund shall be a continuing fund,
10 not subject to fiscal year limitations, and shall consist of all
11 monies received by the Tax Commission which are specifically
12 required by law to be deposited in the fund, any public or private
13 donations, contributions and gifts received for the benefit of the
14 fund, and any amounts appropriated by the Legislature. All monies
15 accruing to the credit of the fund are hereby appropriated and may
16 be budgeted and expended by the Oklahoma Department of Aerospace and
17 Aeronautics for the purpose of funding grants as provided in Section
18 411 et seq. of this title. Expenditures from the fund shall be made
19 upon warrants issued by the State Treasurer against claims filed as
20 prescribed by law with the ~~Director~~ Chief Operating Officer of the
21 Office of Management and Enterprise Services for approval and
22 payment.

SECTION 89. AMENDATORY Section 1, Chapter 126, O.S.L.
2024 (3 O.S. Supp. 2025, Section 415), is amended to read as
follows:

Section 415. There is hereby created in the State Treasury a
revolving fund for the Oklahoma Department of Aerospace and
Aeronautics to be designated the "Long-Term Aerospace and
Aeronautics Infrastructure Sustainability Revolving Fund". The fund
shall be a continuing fund, not subject to fiscal year limitations,
and shall consist of all monies received by the Department from
appropriations designated for the purpose of construction,
maintenance, or other capital projects. The Director of the
Oklahoma Department of Aerospace and Aeronautics shall, at the end
of each month, provide a current balance and statement of
encumbrances of the fund to the Chair of the Senate Appropriations
Committee and the Chair of the House of Representatives
Appropriations and Budget Committee. All monies accruing to the
credit of the fund are hereby appropriated and may be budgeted and
expended by the Oklahoma Department of Aerospace and Aeronautics for
the sole purpose provided for in this section. Expenditures from
the fund shall be made upon warrants issued by the State Treasurer
against claims filed as prescribed by law with the ~~Director~~ Chief
Operating Officer of the Office of Management and Enterprise
Services for approval and payment.

SECTION 90. AMENDATORY Section 3, Chapter 125, O.S.L. 2024, as amended by Section 3, Chapter 154, O.S.L. 2025 (3 O.S. Supp. 2025, Section 503), is amended to read as follows:

Section 503. There is hereby created in the State Treasury a revolving fund for the Oklahoma Department of Aerospace and Aeronautics to be designated the "Oklahoma Aircraft and Rocket Engine Testing Development Grant Program Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Department from all monies received by any public or private donations, contributions, and gifts received for the benefit of the fund, and any amounts appropriated by the Legislature, provided for the purpose of funding grants as provided in the Oklahoma Aircraft and Rocket Engine Testing Development Grant Program. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Department for the purpose provided for in the Oklahoma Aircraft and Rocket Engine Testing Development Grant Program. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 91. AMENDATORY 74 O.S. 2021, Section 5208.1, as amended by Section 6, Chapter 274, O.S.L. 2025, and as renumbered by

1 Section 25, Chapter 274, O.S.L. 2025 (3 O.S. Supp. 2025, Section
2 518), is amended to read as follows:

3 Section 518. There is hereby created in the State Treasury a
4 revolving fund for the Oklahoma Space Industry Development Authority
5 to be designated the "Oklahoma Space Industry Development Authority
6 Revolving Fund". The fund shall be a continuing fund, not subject
7 to fiscal year limitations, and shall consist of all monies received
8 by the Authority from private and public donations, contributions,
9 gifts, and any monies appropriated or directed by law to be
10 deposited thereto. All monies accruing to the credit of the fund
11 are hereby appropriated and may be budgeted and expended by the
12 Authority for the purpose of carrying out the provisions of the
13 Oklahoma Space Industry Development Act, and any legitimate expenses
14 of the Authority in the execution of such provisions. Expenditures
15 from the fund shall be made upon warrants issued by the State
16 Treasurer against claims filed as prescribed by law with the
17 ~~Director~~ Chief Operating Officer of the Office of Management and
18 Enterprise Services for approval and payment.

19 SECTION 92. AMENDATORY 3A O.S. 2021, Section 204.1B, is
20 amended to read as follows:

21 Section 204.1B. There is hereby created in the State Treasury a
22 revolving fund for the Oklahoma Horse Racing Commission, to be
23 designated the "Equine Drug Testing Revolving Fund". The fund shall
24 be a continuing fund, not subject to fiscal year limitations, and

1 shall consist of all monies received by the Oklahoma Horse Racing
2 Commission, from appropriations made to the Commission for deposit
3 in the fund and monies paid by organization licensees to the
4 Commission pursuant to assessments made by the Commission for equine
5 drug testing. All monies accruing to the credit of said fund are
6 hereby appropriated and may be budgeted and expended by the Oklahoma
7 Horse Racing Commission for the purpose specified in paragraph 14 of
8 subsection A of Section 204 of this title. Expenditures from said
9 fund shall be made upon warrants issued by the State Treasurer
10 against claims filed as prescribed by law with the ~~Director~~ Chief
11 Operating Officer of the Office of Management and Enterprise
12 Services for approval and payment.

13 SECTION 93. AMENDATORY 3A O.S. 2021, Section 204.1C, is
14 amended to read as follows:

15 Section 204.1C. There is hereby created in the State Treasury a
16 revolving fund for the Oklahoma Horse Racing Commission to be
17 designated as the "Oklahoma Horse Racing Commission Operational
18 Expenses Revolving Fund". The fund shall be a continuing fund, not
19 subject to fiscal year limitations or reconciliation, and shall
20 consist of all monies received by the Oklahoma Horse Racing
21 Commission from revenues apportioned to the fund by Sections 205.6
22 and 263 of Title 3A of the Oklahoma Statutes, together with all
23 monies from fines, fees, reimbursements, assessments and sale of
24 materials which are collected or received by the Commission and all

monies retained by the Commission under the provisions of Title 3A of the Oklahoma Statutes. All monies accrued to the credit of the fund are hereby appropriated and may be budgeted and expended by the Commission to pay the costs, both direct and indirect, of the Commission. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 94. AMENDATORY 3A O.S. 2021, Section 208.3a, is amended to read as follows:

Section 208.3a. A. There is hereby created in the State Treasury a revolving fund for the Oklahoma Horse Racing Commission, to be designated the "Oklahoma Breeding Development Administration Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Commission from transfers made pursuant to paragraph 6 of subsection B of Section 208.3 of this title. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Commission for the purpose of administering the Oklahoma Breeding Development Program, or additions to purses of Oklahoma-bred races, and for no other purpose. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief

1 Operating Officer of the Office of Management and Enterprise
2 Services for approval and payment.

3 B. Monies received by and expenditures from said fund shall be
4 subject to an annual audit pursuant to paragraph 6 of subsection B
5 and subsection E of Section 208.3 of this title.

6 At the close of each fiscal year any unencumbered, unobligated,
7 and unexpended monies in the Oklahoma Breeding Development
8 Administration Revolving Fund shall be transferred to the Oklahoma
9 Breeding Development Fund Special Account.

10 SECTION 95. AMENDATORY 3A O.S. 2021, Section 616, as
11 amended by Section 5, Chapter 20, O.S.L. 2025 (3A O.S. Supp. 2025,
12 Section 616), is amended to read as follows:

13 Section 616. A. There is hereby created in the State Treasury
14 a revolving fund for the Oklahoma State Athletic Commission to be
15 designated the "Oklahoma State Athletic Commission Revolving Fund".
16 The fund shall be a continuing fund, not subject to fiscal year
17 limitations, and shall consist of all monies received from fees,
18 administrative fines, reimbursements, bond proceeds, and sale of
19 materials, and shall include grants and gifts, pursuant to the
20 Oklahoma State Athletic Commission Act. All monies accruing to the
21 credit of said fund are hereby appropriated and may be budgeted and
22 expended by the Commission for the purpose of implementing the
23 provisions of the Oklahoma State Athletic Commission Act.
24 Expenditures from said fund shall be made upon warrants issued by

1 the State Treasurer against claims filed as prescribed by law with
2 the ~~Director~~ Chief Operating Officer of the Office of Management and
3 Enterprise Services for approval and payment.

4 B. The "Professional Boxing Licensing Revolving Fund" created
5 for the Department of Health is hereby abolished. On July 1, 2008,
6 any unencumbered funds remaining in the Professional Boxing
7 Licensing Revolving Fund shall be transferred to the credit of the
8 Oklahoma State Athletic Commission Revolving Fund. Any unexpended
9 funds remaining in the Professional Boxing Licensing Revolving Fund
10 after November 1, 2008, shall be transferred to the credit of the
11 Oklahoma State Athletic Commission Revolving Fund.

12 SECTION 96. AMENDATORY 3A O.S. 2021, Section 713, as
13 last amended by Section 5, Chapter 443, O.S.L. 2024 (3A O.S. Supp.
14 2025, Section 713), is amended to read as follows:

15 Section 713. A. All gross proceeds shall be the property of
16 the Oklahoma Lottery Commission. From its gross proceeds, the
17 Commission shall pay the operating expenses of the Commission. At
18 least forty-five percent (45%) of gross proceeds shall be made
19 available as prize money. However, the provisions of this
20 subsection shall be deemed not to create any lien, entitlement,
21 cause of action, or other private right, and any rights of holders
22 of tickets or shares shall be determined by the Commission in
23 setting the terms of its lottery or lotteries.

1 B. There is hereby created in the State Treasury a fund to be
2 designated the "Oklahoma Education Lottery Trust Fund".
3 Expenditures from the fund shall be made upon warrants issued by the
4 State Treasurer against claims filed as prescribed by law with the
5 ~~Director~~ Chief Operating Officer of the Office of Management and
6 Enterprise Services for approval and payment.

7 C. Upon their deposit into the State Treasury, any monies
8 representing a deposit of net proceeds shall then become the
9 unencumbered property of this state, and neither the Commission nor
10 the board of trustees shall have the power to agree or undertake
11 otherwise. The monies shall be invested by the State Treasurer in
12 accordance with state investment practices. All earnings
13 attributable to such investments shall likewise be the unencumbered
14 property of the state and shall accrue to the credit of the fund
15 provided for in subsection B of this section.

16 1. The first Sixty-five Million Dollars (\$65,000,000.00) of
17 monies contributed annually to the Oklahoma Education Lottery Trust
18 Fund shall only be appropriated as follows:

19 a. forty-five percent (45%) for the following:

- 20 (1) kindergarten through twelfth grade public
21 education, including but not limited to
22 compensation and benefits for public school
23 teachers and support employees, and
24

- (2) early childhood development programs, which shall include but not be limited to costs associated with prekindergarten and full-day kindergarten programs,
- b. forty-five percent (45%) for the following:
- (1) tuition grants, loans and scholarships to citizens of this state to enable such citizens to attend colleges and universities located within this state, regardless of whether such colleges and universities are owned or operated by the Oklahoma State Regents for Higher Education, or to attend institutions operated under the authority of the Oklahoma Department of Career and Technology Education; provided, such tuition grants, loans and scholarships shall not be made to a citizen of this state to attend a college or university which is not accredited by the Oklahoma State Regents for Higher Education,
- (2) construction of educational facilities for elementary school districts, independent school districts, The Oklahoma State System of Higher Education, and career and technology education,
- (3) capital outlay projects for elementary school districts, independent school districts, The

- Oklahoma State System of Higher Education, and
career and technology education,
- (4) technology for public elementary school district,
independent school district, state higher
education, and career and technology education
facilities, which shall include but not be
limited to costs of providing to teachers at
accredited public institutions who teach levels
kindergarten through twelfth grade, personnel at
technology centers under the authority of the
Oklahoma State Department of Career and
Technology Education, and professors and
instructors within The Oklahoma State System of
Higher Education, the necessary training in the
use and application of computers and advanced
electronic instructional technology to implement
interactive learning environments in the
classroom and to access the statewide distance
learning network and costs associated with
repairing and maintaining advanced electronic
instructional technology,
- (5) endowed chairs for professors at institutions of
higher education operated by The Oklahoma State
System of Higher Education, and

- (6) programs and personnel of the Oklahoma School for the Deaf and the Oklahoma School for the Blind,
- c. five percent (5%) to the School Consolidation Assistance Fund. When the total amount in the School Consolidation Assistance Fund from all sources equals Five Million Dollars (\$5,000,000.00), all monies appropriated pursuant to this subparagraph which would otherwise be deposited in the School Consolidation Assistance Fund in excess of Five Million Dollars (\$5,000,000.00) shall be allocated by the State Department of Education to public schools based on the audited end-of-year average daily membership in grades 8 through 12 during the preceding school year for the purpose of purchasing technology equipment. If at any time the total amount in the School Consolidation Assistance Fund drops below Five Million Dollars (\$5,000,000.00), the monies appropriated pursuant to this subparagraph shall be deposited in the School Consolidation Assistance Fund until the Fund again reaches Five Million Dollars (\$5,000,000.00), and
- d. five percent (5%) to the Teachers' Retirement System Dedicated Revenue Revolving Fund.

In no instance shall the annual maximum percentage for administrative costs, not including marketing and advertising costs,

1 funds set aside for prizes, commissions paid to retailers, contract
2 fees paid to gaming system vendors and instant ticket providers or
3 emergency-related capital expenses, exceed three percent (3%) of
4 sales.

5 2. The remaining portion of lottery annual net proceeds
6 deposited to the Oklahoma Education Lottery Trust Fund that exceeds
7 Sixty-five Million Dollars (\$65,000,000.00) shall be transferred by
8 the Office of Management and Enterprise Services to the credit of
9 the Teacher Empowerment Revolving Fund created in Section 6-190.2 of
10 Title 70 of the Oklahoma Statutes.

11 D. The Legislature shall appropriate funds from the Oklahoma
12 Education Lottery Trust Fund only for the purposes specified in
13 subsection C of this section. Even when funds from the trust fund
14 are used for these purposes, the Legislature shall not use funds
15 from the trust fund to supplant or replace other state funds
16 supporting common education, higher education, or career and
17 technology education.

18 E. In order to ensure that the funds from the trust fund are
19 used to enhance and not supplant funding for education, the State
20 Board of Equalization shall examine and investigate appropriations
21 from the trust fund each year. At the meeting of the State Board of
22 Equalization held within five (5) days after the monthly
23 apportionment in February of each year, the State Board of
24 Equalization shall issue a finding and report which shall state

1 whether appropriations from the trust fund were used to enhance or
2 supplant education funding. If the State Board of Equalization
3 finds that education funding was supplanted by funds from the trust
4 fund, the Board shall specify the amount by which education funding
5 was supplanted. In this event, the Legislature shall not make any
6 appropriations for the ensuing fiscal year until an appropriation in
7 that amount is made to replenish the trust fund.

8 F. Except as otherwise provided by this subsection, no
9 deficiency in the Oklahoma Education Lottery Trust Fund shall be
10 replenished by reducing any nonlottery funds including, specifically
11 but without limitation, the General Revenue Fund, the Constitutional
12 Reserve Fund, or the Education Reform Revolving Fund of the State
13 Department of Education. No program or project started specifically
14 from lottery proceeds shall be continued from the General Revenue
15 Fund, the Constitutional Reserve Fund, or the Education Reform
16 Revolving Fund of the State Department of Education. Such programs
17 must be adjusted or discontinued according to available lottery
18 proceeds unless the Legislature by general law establishes
19 eligibility requirements and appropriates specific funds therefor.
20 No surplus in the Oklahoma Education Lottery Trust Fund shall be
21 reduced or transferred to correct any nonlottery deficiencies in
22 sums available for general appropriations. The provisions of this
23 subsection shall not apply to bonds or other obligations issued
24 pursuant to or to the repayment of bonds or other obligations issued

1 pursuant to the Oklahoma Higher Education Promise of Excellence Act
2 of 2005.

3 G. There is hereby created in the State Treasury a revolving
4 fund to be designated the "Oklahoma Education Lottery Revolving
5 Fund". The fund shall be a continuing fund, not subject to fiscal
6 year limitations, and shall consist of all monies received by the
7 Commission. All monies accruing to the credit of the Oklahoma
8 Education Lottery Revolving Fund are hereby appropriated and may be
9 budgeted and expended for the payment of net proceeds, prizes,
10 commissions to retailers, administrative expenses and all other
11 expenses arising out of the operation of the education lottery,
12 subject to the limitations provided in the Oklahoma Education
13 Lottery Act. Expenditures from the fund shall be made upon warrants
14 issued by the State Treasurer against claims filed as prescribed by
15 law with the ~~Director~~ Chief Operating Officer of the Office of
16 Management and Enterprise Services for approval and payment.

17 The monies in the fund shall be invested by the State Treasurer
18 in accordance with state investment practices. All earnings
19 attributable to such investments shall likewise accrue to the credit
20 of the fund.

21 H. When appropriations from the Oklahoma Education Lottery
22 Trust Fund are made to common education pursuant to the provisions
23 of subparagraph a of paragraph 1 of subsection C of this section,
24 the appropriations shall be made available on a monthly basis. The

1 following process shall be used to ensure that the appropriations
2 are made available to common education in a timely manner:

3 1. Beginning in July of the fiscal year in which appropriations
4 are made to common education from the Oklahoma Education Lottery
5 Trust Fund, the Commission, on or before the ninth day of each
6 month, shall transfer to the State Treasurer, for credit to the
7 Oklahoma Education Lottery Trust Fund, one-twelfth (1/12) of the
8 annual apportionment due to common education as required by
9 subparagraph a of paragraph 1 of subsection C of this section;

10 2. The ~~Director~~ Chief Operating Officer of the Office of
11 Management and Enterprise Services shall allocate the transfers
12 provided for in paragraph 1 of this subsection to the State
13 Department of Education on a monthly basis, not to exceed one-
14 twelfth (1/12) of the annual apportionment for the fiscal year; and

15 3. The total amount of transfers to the Oklahoma Education
16 Lottery Trust Fund of net lottery proceeds made pursuant to this
17 subsection shall not exceed the total appropriations made to common
18 education from the Oklahoma Education Lottery Trust Fund for the
19 specific fiscal year.

20 I. When appropriations from the Oklahoma Education Lottery
21 Trust Fund are made to The Oklahoma State System of Higher Education
22 pursuant to the provisions of subparagraph b of paragraph 1 of
23 subsection C of this section, the appropriations shall be made
24 available to the System on a monthly basis. The following process

shall be used to ensure that the appropriations are made available to The Oklahoma State System of Higher Education in a timely manner:

1. Beginning in July of the fiscal year in which appropriations are made to The Oklahoma State System of Higher Education from the Oklahoma Education Lottery Trust Fund, the Commission, on or before the ninth day of each month, shall transfer to the State Treasurer, for credit to the Oklahoma Education Lottery Trust Fund one-twelfth (1/12) of the annual apportionment due to the Oklahoma State Regents for Higher Education as required by subparagraph b of paragraph 1 of subsection C of this section;

2. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services shall allocate the transfers provided for in paragraph 1 of this subsection to the Oklahoma State Regents for Higher Education on a monthly basis, not to exceed one-twelfth (1/12) of the annual apportionment for the fiscal year; and

3. The total amount of transfers to the Oklahoma Education Lottery Trust Fund of net lottery proceeds made pursuant to this subsection shall not exceed the total appropriations made to The Oklahoma State System for Higher Education from the Oklahoma Education Lottery Trust Fund for the specific fiscal year.

J. When appropriations from the Oklahoma Education Lottery Trust Fund are made to the Oklahoma Department of Career and Technology Education, pursuant to the provisions of subparagraph b of paragraph 1 of subsection C of this section, the appropriations

shall be made available on an annual basis. The following process shall be used to ensure that the appropriations to the Oklahoma Education Lottery Trust Fund are available for the Oklahoma Department of Career and Technology Education in a timely manner:

1. Beginning in July of the fiscal year in which appropriations are made to the Oklahoma Department of Career and Technology Education from the Oklahoma Education Lottery Trust Fund, the Commission, on or before the ninth day of each quarter, shall transfer to the State Treasurer, for credit to the Oklahoma Education Lottery Trust Fund, one-fourth (1/4) of the annual apportionment due to the Oklahoma Department of Career and Technology Education as required by subparagraph b of paragraph 1 of subsection C of this section;

2. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services shall allocate the transfer provided for in paragraph 1 of this subsection to the Oklahoma Department of Career and Technology Education on a quarterly basis, not to exceed one-fourth (1/4) of the annual apportionment for the fiscal year; and

3. The total amount of transfers to the Oklahoma Education Lottery Trust Fund of net lottery proceeds made pursuant to this subsection shall not exceed the total appropriations made to the Oklahoma Department of Career and Technology Education from the Oklahoma Education Lottery Trust Fund for the specific fiscal year.

K. When appropriations from the Oklahoma Education Lottery Trust Fund are made to the School Consolidation Assistance Fund and Teachers' Retirement System Dedicated Revenue Revolving Fund, pursuant to the provisions of subparagraphs c and d of paragraph 1 of subsection C of this section, the appropriations shall be made available on an annual basis. The following process shall be used to ensure that the appropriations to the Oklahoma Education Lottery Trust Fund are made available to the School Consolidation Assistance Fund and Teachers' Retirement System Dedicated Revenue Revolving Fund in a timely manner:

1. Beginning in July of the fiscal year in which appropriations are made to the School Consolidation Assistance Fund and the Teachers' Retirement System Dedicated Revenue Revolving Fund from the Oklahoma Education Lottery Trust Fund, the Commission, on or before the ninth day of each quarter, shall transfer to the State Treasurer, for credit to the Oklahoma Education Lottery Trust Fund, one-fourth (1/4) of the annual apportionment due to the School Consolidation Assistance Fund and the Teachers' Retirement System Dedicated Revenue Revolving Fund as required by subparagraphs c and d of paragraph 1 of subsection C of this section;

2. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services shall allocate the transfers provided for in paragraph 1 of this subsection to the School Consolidation Assistance Fund and the Teachers' Retirement System

Dedicated Revenue Revolving Fund on a quarterly basis, not to exceed one-fourth (1/4) of the annual apportionment for the fiscal year; and

3. The total amount of transfers to the Oklahoma Education Lottery Trust Fund of net lottery proceeds made pursuant to this subsection shall not exceed the total appropriations made to the School Consolidation Assistance Fund and the Teachers' Retirement System Dedicated Revenue Revolving Fund from the Oklahoma Education Lottery Trust Fund for the specific fiscal year.

L. At the conclusion of each fiscal year, the Oklahoma Lottery Commission shall make available all remaining profits to the Oklahoma Education Lottery Trust Fund in the following manner:

1. By July 9 of the proceeding fiscal year, the Oklahoma Lottery Commission shall transfer the five percent (5%) difference between the previous year's State Board of Equalization estimate and the appropriated amount. The cash contribution shall be available for appropriation in the following legislative session pending profit exists above and beyond the prior year's annual appropriation; and

2. By September 30, the Oklahoma Lottery Commission shall transfer all remaining profit as established by an external financial audit pursuant to Section 733 of this title. This cash contribution shall be available for appropriation in the following

1 legislative session pending profit exists above and beyond the prior
2 year's annual appropriation.

3 SECTION 97. AMENDATORY 6 O.S. 2021, Section 211.1, is
4 amended to read as follows:

5 Section 211.1. There is hereby created in the State Treasury a
6 revolving fund for the Oklahoma State Banking Department. The
7 revolving fund shall consist of all fees and assessments paid to or
8 collected by the Department, including all monies received by the
9 Commissioner under Sections 104, 204, 303, 415, 501.1 and 501.2 of
10 this title and Section 381.16 of Title 18 of the Oklahoma Statutes
11 and those payments required to be deposited in the revolving fund
12 pursuant to Sections 211, 1103, 1206, 2001.2, 2008, 2107 and 2113 of
13 this title, Section 381.15 of Title 18 of the Oklahoma Statutes, and
14 Section 7106 of Title 36 of the Oklahoma Statutes. The revolving
15 fund shall be a continuing fund, not subject to fiscal year
16 limitations. Expenditures from the fund shall be made pursuant to
17 the laws of this state and the statutes relating to the Department,
18 and without legislative appropriation. Warrants for expenditures
19 from the fund shall be drawn by the State Treasurer, based on claims
20 signed by an authorized employee or employees of the Department and
21 approved for payment by the ~~Director~~ Chief Operating Officer of the
22 Office of Management and Enterprise Services.

23 SECTION 98. AMENDATORY 7 O.S. 2021, Section 22, is
24 amended to read as follows:

Section 22. There is hereby created in the State Treasury a revolving fund to be known as the Adult Blind Market Revolving Fund of the Oklahoma Public Welfare Commission to be administered by and under the direction of the Oklahoma Public Welfare Commission. Said fund shall consist of all appropriations made for such purpose and all net earnings or profits derived from its use as authorized by law. Said fund shall be used for the purpose of creating, establishing and maintaining a market for the product of blind workers of Oklahoma and may be used to purchase such products for resale, and for no other purpose. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims submitted to the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 99. AMENDATORY 10 O.S. 2021, Section 410.1, is amended to read as follows:

Section 410.1. There is established in the State Treasury a revolving fund to be known as the "Quality of Care Development Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all fines collected by the Department of Human Services pursuant to Section 407 of this title and shall, in addition to any other monies made available for such purpose, be available to the Director solely to support the continued improvement of the child care facilities in this state. Expenditures from the fund shall be made upon warrants issued by the

1 State Treasurer against claims filed as prescribed by law with the
2 ~~Director~~ Chief Operating Officer of the Office of Management and
3 Enterprise Services for approval and payment.

4 SECTION 100. AMENDATORY 10 O.S. 2021, Section 601.6b, as
5 amended by Section 5, Chapter 347, O.S.L. 2024 (10 O.S. Supp. 2025,
6 Section 601.6b), is amended to read as follows:

7 Section 601.6b. A. On or before July 1, 2024, and on or before
8 July 1 of every third year thereafter, the Oklahoma Commission on
9 Children and Youth shall transmit to the ~~Director~~ Chief Operating
10 Officer of the Office of Management and Enterprise Services, the
11 director of each affected agency, the President Pro Tempore of the
12 Senate, the Speaker of the House of Representatives, and the
13 Governor a copy of the State Plan for Services to Children and Youth
14 for the next three (3) fiscal years.

15 B. The Office of Planning and Coordination, with the assistance
16 of the Office of Management and Enterprise Services and affected
17 agencies, may assemble topic-specific reports regarding services to
18 children, youth, and families to include program descriptions, past
19 and current expenditures, future budget requests, and a description
20 of program outcomes as directed by the Legislature or the
21 Commission.

22 SECTION 101. AMENDATORY 10 O.S. 2021, Section 601.10, is
23 amended to read as follows:

1 Section 601.10. There is hereby created in the State Treasury a
2 revolving fund for the Oklahoma Commission on Children and Youth, to
3 be designated the "Oklahoma Commission on Children and Youth
4 Revolving Fund". The fund shall be a continuing fund, not subject
5 to fiscal year limitations, and shall consist of all monies received
6 by the Oklahoma Commission on Children and Youth, from contracts
7 with other state agencies or institutions, and not excluding any
8 other source of revenue. All monies accruing to the credit of said
9 fund are hereby appropriated and may be budgeted and expended by the
10 Director of the Oklahoma Commission on Children and Youth for the
11 purpose of paying for operating expenses of the Oklahoma Commission
12 on Children and Youth. Expenditures from said fund shall be made
13 upon warrants issued by the State Treasurer against claims filed as
14 prescribed by law with the ~~Director~~ Chief Operating Officer of the
15 Office of Management and Enterprise Services for approval and
16 payment.

17 SECTION 102. AMENDATORY 10 O.S. 2021, Section 601.14, as
18 amended by Section 6, Chapter 347, O.S.L. 2024 (10 O.S. Supp. 2025,
19 Section 601.14), is amended to read as follows:

20 Section 601.14. A. There is hereby created in the State
21 Treasury a fund for the Oklahoma Commission on Children and Youth to
22 be designated the "Children's Endowment Fund of Oklahoma". The fund
23 shall be a continuing fund, not subject to fiscal year limitations,
24 and shall consist of all monies received through donations or

1 interest earned by investment of monies in the fund. The fund shall
2 be invested by the State Treasurer in accordance with Section 89.2
3 of Title 62 of the Oklahoma Statutes.

4 B. Funds deposited into the Children's Endowment Fund of
5 Oklahoma and any earnings therefrom, including any interest,
6 dividends or realized capital gains from investment of monies in the
7 fund, shall be administered by the Oklahoma Commission on Children
8 and Youth, which is authorized to award grants to further the public
9 purpose of stimulating a broad range of innovative programs,
10 activities or research or evaluation that will improve the well-
11 being and reduce the adverse childhood experiences of Oklahoma's
12 children. The funds shall not be used to expand existing services
13 or to support ongoing core services. The Commission may also direct
14 the State Treasurer to reinvest any earnings into the corpus of the
15 fund.

16 C. The Oklahoma Commission on Children and Youth shall
17 promulgate rules to:

18 1. Establish a Parent Partnership Board for the purpose of
19 informing the work of Oklahoma's child-serving systems, assisting
20 members of the Commission and their respective entities with areas
21 of concern, supporting the Commission in the process of developing
22 and awarding grants supported by the Children's Endowment Fund of
23 Oklahoma, and other activities upon request; and

24 2. Establish criteria and procedures for awarding grants.

1 D. The Oklahoma Commission on Children and Youth may use up to
2 ten percent (10%) of the funds deposited in the Children's Endowment
3 Fund of Oklahoma in any given fiscal year to provide administration,
4 oversight, training or evaluation of the grantees or the Parent
5 Partnership Board.

6 E. Monies from the fund may be expended by the Oklahoma
7 Commission on Children and Youth in accordance with the provisions
8 of this section upon warrants issued by the State Treasurer against
9 claims filed as prescribed by law with the ~~Director~~ Chief Operating
10 Officer of the Office of Management and Enterprise Services for
11 approval and payment.

12 F. Notwithstanding any other provision of law, funds deposited
13 in the Children's Endowment Fund of Oklahoma shall only be expended
14 as provided in this section.

15 SECTION 103. AMENDATORY 10 O.S. 2021, Section 601.67, is
16 amended to read as follows:

17 Section 601.67. There is hereby created in the State Treasury a
18 revolving fund for the Board of Regents for the University of
19 Oklahoma on behalf of the Department of Pediatrics, Child Study
20 Center for Sooner SUCCESS to be designated the "Children with
21 Disabilities Comprehensive Systems of Services Revolving Fund". The
22 fund shall be a continuing fund, not subject to fiscal year
23 limitations, and shall consist of those monies appropriated to the
24 fund by law or deposited in the fund pursuant to Section 3 of this

act. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by Sooner SUCCESS for the purpose of coordinating a statewide comprehensive system of health, social and educational services for Oklahoma children and youth with special needs in accordance with Part B of the Individuals with Disabilities Education Act (IDEA) and Title V programs for Children with Special Health Care Needs. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 104. AMENDATORY 10A O.S. 2021, Section 1-9-103, is amended to read as follows:

Section 1-9-103. A. 1. There is hereby created in the Department of Human Services a revolving fund to be designated the "Child Abuse Multidisciplinary Account".

2. The account shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Department pursuant to the provisions of this section and Section 1-9-104 of this title.

3. All monies accruing to the credit of the fund are hereby appropriated and shall be budgeted and expended by the Department for the purposes provided in Sections 1-9-102 and 1-9-104 of this title.

4. Expenditures from the account shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

B. The account shall be administered by the Department for the benefit of children of Oklahoma and made available to eligible:

1. Coordinated multidisciplinary child abuse teams;
2. Nonurban child advocacy centers;
3. Mid-level nonurban child advocacy centers; and
4. Urban child advocacy centers.

C. 1. The Child Abuse Multidisciplinary Account shall consist of:

- a. all monies received by the Department pursuant to the provisions of Section 1-9-104 of this title,
- b. interest attributable to investment of money in the Account, and
- c. money received by the Department in the form of gifts, grants, reimbursements, or from any other source intended to be used for the purposes specified or collected pursuant to the provisions of this section and Section 1-9-102 of this title.

2. The monies deposited in the Child Abuse Multidisciplinary Account shall at no time become monies of the state and shall not become part of the general budget of the Department or any other

1 state agency. Except as otherwise authorized by this section and
2 Section 3 of this act, no monies from the Account shall be
3 transferred for any purpose to any other state agency or any account
4 of the Department or be used for the purpose of contracting with any
5 other state agency or reimbursing any other state agency for any
6 expense.

7 SECTION 105. AMENDATORY 10A O.S. 2021, Section 1-9-103a,
8 is amended to read as follows:

9 Section 1-9-103a. There is hereby created in the State Treasury
10 a revolving fund for the Oklahoma Commission on Children and Youth
11 to be designated the "Child Abuse Multidisciplinary Team Account
12 (CAMTA) Fund". The fund shall be a continuing fund, not subject to
13 fiscal year limitations, and shall consist of all monies received by
14 the Commission from any source as specified in paragraph 1 of
15 subsection B of Section 3 of this act. All monies accruing to the
16 credit of the fund are hereby appropriated and shall be budgeted and
17 expended by the Commission for the purposes of contracting with
18 eligible freestanding multidisciplinary child abuse teams.
19 Expenditures from the fund shall be made upon warrants issued by the
20 State Treasurer against claims filed as prescribed by law with the
21 ~~Director~~ Chief Operating Officer of the Office of Management and
22 Enterprise Services for approval and payment.
23
24

SECTION 106. AMENDATORY Section 1, Chapter 339, O.S.L. 2024 (10A O.S. Supp. 2025, Section 1-9-112a), is amended to read as follows:

Section 1-9-112a. A. Upon the effective date of this act, the Office of Client Advocacy within the Department of Human Services shall transfer to the State Department of Health. The Office of Client Advocacy and the Advocate General shall continue to exercise their statutory powers and duties.

B. All equipment, supplies, records, matters pending, assets, future liabilities, fund balances, encumbrances, obligations, indebtedness, and legal and contractual rights and responsibilities of the Office of Client Advocacy shall be transferred to the State Department of Health.

C. Any monies accruing to or in the name of the Office of Client Advocacy on and after the effective date of this act, or any monies that accrue in any funds or accounts or are maintained for the benefit of the Office of Client Advocacy on and after the effective date of this act, shall be transferred to the State Department of Health.

D. The Department of Human Services and the State Department of Health may enter into an agreement for the transfer of personnel. No employee shall be transferred to the State Department of Health except on the freely given written consent of the employee. Any employee who is transferred shall not be required to accept a lesser

1 grade or salary than presently received. All employees shall retain
2 leave, sick, and annual time earned, and any retirement and
3 longevity benefits which have accrued during their tenure with the
4 Department of Human Services. The transfer of personnel between the
5 state agencies shall be coordinated with the Office of Management
6 and Enterprise Services.

7 E. The ~~Director~~ Chief Operating Officer of the Office of
8 Management and Enterprise Services shall coordinate the transfer of
9 funds, allotments, purchase orders, and outstanding financial
10 obligations or encumbrances as provided for in this section.

11 F. Upon the effective date of this act, all administrative
12 rules promulgated by the Director of Human Services for the Office
13 of Client Advocacy shall be transferred to and become a part of the
14 administrative rules of the State Department of Health. The Office
15 of Administrative Rules in the Office of the Secretary of State
16 shall provide adequate notice in "The Oklahoma Register" of the
17 transfer of such rules and shall place the transferred rules under
18 the Oklahoma Administrative Code title of the State Department of
19 Health. Such rules shall continue in force and effect as rules of
20 the State Department of Health from and after the effective date of
21 this act, and any amendment, repeal, or addition to the transferred
22 rules shall be under the jurisdiction of the State Commissioner of
23 Health.

SECTION 107. AMENDATORY 10A O.S. 2021, Section 2-7-401,
is amended to read as follows:

Section 2-7-401. A. There is hereby created in the State Treasury a revolving fund for the Office of Juvenile Affairs to be designated the "Juvenile Detention Improvement Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies appropriated to the Juvenile Detention Improvement Revolving Fund and monies which may otherwise be available to the Office of Juvenile Affairs for use as provided for in this section.

B. All monies appropriated to the fund shall be budgeted and expended by the Office of Juvenile Affairs for the purpose of providing funds to counties to renovate existing juvenile detention facilities, to construct new juvenile detention facilities, to operate juvenile detention facilities and otherwise provide for secure juvenile detention services and alternatives to secure detention as necessary and appropriate, in accordance with state-approved juvenile detention standards and the State Plan for the Establishment of Juvenile Detention Services provided for in Section 2-3-103 of this title. The participation of local resources shall be a requirement for the receipt by counties of said funds and the Department shall establish a system of rates for the reimbursement of secure detention costs to counties. The methodology for the establishment of said rates may include, but not be limited to,

1 consideration of detention costs, the size of the facility, services
2 provided and geographic location. Expenditures from said fund shall
3 be made upon warrants issued by the State Treasurer against claims
4 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
5 of the Office of Management and Enterprise Services for approval and
6 payment.

7 1. The rate of reimbursement of approved operating cost shall
8 be eighty-five percent (85%) for the Office of Juvenile Affairs and
9 fifteen percent (15%) for the county.

10 2. The rate of reimbursement of approved operating cost shall
11 be one hundred percent (100%) for the Office of Juvenile Affairs for
12 a child in the custody of the Office of Juvenile Affairs after
13 adjudication and disposition who is held in a juvenile detention
14 facility when the child is pending a placement consistent with the
15 treatment needs of that child as identified by the Office of
16 Juvenile Affairs.

17 3. The Office of Juvenile Affairs shall approve only those
18 applications for funds to renovate an existing juvenile detention
19 facility or any other existing facility or to construct a new
20 juvenile detention facility which contain proposed plans that are in
21 compliance with state-approved juvenile detention standards.

22 4. The Office of Juvenile Affairs shall approve only those
23 applications or contracts for funds to operate juvenile detention
24 facilities or otherwise provide for secure juvenile detention

1 services and alternatives to secure detention which are in
2 compliance with or which are designed to achieve compliance with the
3 State Plan for the Establishment of Juvenile Detention Services
4 provided for in Section 2-3-103 of this title.

5 5. The Office of Juvenile Affairs shall, from appropriated
6 state monies or from available federal grants, provide for payment
7 pursuant to contract for transportation personnel and vehicle-
8 related costs and reimburse for eligible travel costs for counties
9 utilizing the juvenile detention facilities identified in the "State
10 Plan for the Establishment of Juvenile Detention Services" in
11 accordance with the provisions of the State Travel Reimbursement Act
12 and in accordance with Section 2-3-103 of this title.

13 SECTION 108. AMENDATORY 10A O.S. 2021, Section 2-7-618,
14 is amended to read as follows:

15 Section 2-7-618. A. It is the intent of the State of Oklahoma
16 for the Office of Juvenile Affairs (OJA) to plan, develop, redevelop
17 and occupy campus modifications to serve Oklahoma youth in need of
18 secure care and specialty residential services. In furtherance of
19 this intent, OJA shall plan and execute a construction strategy
20 through a best-value analysis of two financing sources. The Office
21 of Management and Enterprise Services (OMES) and the Commissioners
22 of the Land Office (CLO) are authorized to assist OJA in assessing
23 the best option and proceeding with necessary steps. OJA is
24

1 authorized to pursue one of these two options based upon the input
2 from the OJA governing board, OMES and the CLO.

3 B. The option that is determined to be best value for the State
4 of Oklahoma pursuant to subsection C of this section will be
5 selected and the authorization for the other financing strategy
6 shall not be operative.

7 C. Not later than March 31, 2018, or one hundred eighty (180)
8 days from such date if the provisions of this act become effective
9 as law later than July 1, 2017, pursuant to recommendations for the
10 best-value option agreed upon by a majority vote of the governing
11 board of OJA, a majority vote of the Commissioners of the Land
12 Office and the agreement of the ~~Director~~ Chief Operating Officer of
13 the Office of Management and Enterprise Services, a memorandum
14 reflecting the decision of the participating agencies shall be
15 transmitted to the Governor, the Speaker of the Oklahoma House of
16 Representatives and the President Pro Tempore of the Oklahoma State
17 Senate. If the best-value option selected is for the issuance of
18 obligations by the Oklahoma Capitol Improvement Authority pursuant
19 to the provisions of Section 4 of this act, a copy of the signed and
20 executed memorandum shall be transmitted to the members of the
21 governing board of the Oklahoma Capitol Improvement Authority. If
22 the best-value option selected does not require the issuance of
23 obligations by the Oklahoma Capitol Improvement Authority, the
24 provisions of Section 4 of this act shall not be operative and the

Oklahoma Capitol Improvement Authority shall not have the power or legal authority to issue any obligations pursuant to the provisions of Section 4 of this act.

SECTION 109. AMENDATORY Section 4, Chapter 254, O.S.L. 2022 (11 O.S. Supp. 2025, Section 17-107A), is amended to read as follows:

Section 17-107A. There is hereby created in the State Treasury a revolving fund for the State Auditor and Inspector to be designated the "Special Investigative Unit Auditing Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the State Auditor and Inspector from funds withheld from a municipality's allocations of gasoline taxes as provided in Section 17-107 of Title 11 of the Oklahoma Statutes and all monies received from legislative appropriations for the purpose of conducting investigative municipal audits. All monies accruing to the credit of such fund are hereby appropriated and may be budgeted and expended by the State Auditor and Inspector for the purpose of offsetting expenses incurred from special investigative audit activities relating to municipal government. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 110. AMENDATORY 11 O.S. 2021, Section 24-115, is amended to read as follows:

Section 24-115. Within ninety (90) days following the closing of each fiscal year, the Authority shall cause to be prepared certified financial statements which shall be filed with the State Auditor and Inspector and with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services in accordance with the requirements for financial statement audits in Section 212A of Title 74 of the Oklahoma Statutes.

SECTION 111. AMENDATORY Section 2, Chapter 240, O.S.L. 2022 (11 O.S. Supp. 2025, Section 37-501), is amended to read as follows:

Section 37-501. There is hereby created in the State Treasury a revolving fund for the Oklahoma Department of Transportation to be designated the "Municipal Road Drilling Activity Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Oklahoma Department of Transportation from the apportionment of sales tax prescribed by subsection E of Section 1353 of Title 68 of the Oklahoma Statutes. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Oklahoma Department of Transportation for the purposes prescribed by and according to the requirements of Section 3 of this act. Expenditures from said fund shall be made upon warrants issued by

1 the State Treasurer against claims filed as prescribed by law with
2 the ~~Director~~ Chief Operating Officer of the Office of Management and
3 Enterprise Services for approval and payment.

4 SECTION 112. AMENDATORY 11 O.S. 2021, Section 49-100.3,
5 is amended to read as follows:

6 Section 49-100.3. A. There shall be an Oklahoma Firefighters
7 Pension and Retirement Board which shall be composed of thirteen
8 (13) members as follows:

9 1. Five members shall be the Board of Trustees of the Oklahoma
10 Firefighters Association;

11 2. One member shall be the President of the Professional Fire
12 Fighters of Oklahoma or his designee. The designee shall be a
13 member of the Professional Fire Fighters of Oklahoma;

14 3. One member shall be the President of the Oklahoma State
15 Retired Fire Fighters Association or his designee. The designee
16 shall be a member of the Oklahoma State Retired Fire Fighters
17 Association;

18 4. One member shall be appointed by the Speaker of the House of
19 Representatives;

20 5. One member shall be appointed by the President Pro Tempore
21 of the Senate;

22 6. Two members shall be appointed by the President of the
23 Oklahoma Municipal League;
24

1 7. One member shall be the State Insurance Commissioner or his
2 designee; and

3 8. One member shall be the ~~Director~~ Chief Operating Officer of
4 the Office of Management and Enterprise Services or his designee.

5 B. 1. The terms of office of the members appointed to the
6 State Board by the President of the Oklahoma Municipal League who
7 are members of the State Board on the operative date of this act
8 shall expire on July 1, 1989. The members appointed to fill the
9 positions that expire on July 1, 1989, shall serve initial terms of
10 office as follows:

11 a. the term of office of one of the members appointed by
12 the President of the Oklahoma Municipal League shall
13 expire on July 1, 1990; and

14 b. the term of office of one of the members appointed by
15 the President of the Oklahoma Municipal League shall
16 expire on July 1, 1992.

17 Thereafter, the terms of office of the members of the State
18 Board appointed by the President of the Oklahoma Municipal League
19 shall be four (4) years.

20 2. The term of office of the member appointed to the State
21 Board by the Speaker of the House of Representatives and the term of
22 office of the member appointed to the State Board by the President
23 Pro Tempore of the Senate who are members of the State Board on the
24 operative date of this act shall expire on January 3, 1989. The

1 members thereafter appointed shall serve terms of office of four (4)
2 years.

3 3. Vacancies shall be filled for the unexpired term of office
4 in the same manner as the original appointment was made.

5 C. Those members appointed to the State Board by the President
6 of the Oklahoma Municipal League, the Speaker of the House of
7 Representatives and the President Pro Tempore of the Senate or who
8 are designees of an ex officio member of the State Board shall:

9 1. Have demonstrated professional experience in investment or
10 funds management, public funds management, public or private pension
11 fund management or retirement system management; or

12 2. Have demonstrated experience in the banking profession and
13 have demonstrated professional experience in investment or funds
14 management; or

15 3. Be licensed to practice law in this state and have
16 demonstrated professional experience in commercial matters; or

17 4. Be licensed by the Oklahoma Accountancy Board to practice in
18 this state as a public accountant or a certified public accountant.

19 The appointing authorities, in making appointments that conform
20 to the requirements of this subsection, shall give due consideration
21 to balancing the appointments among the criteria specified in
22 paragraphs 1 through 4 of this subsection.

23 D. No member of the State Board shall be a lobbyist registered
24 in this state as provided by law.

1 E. Notwithstanding any of the provisions of this section to the
2 contrary, any person serving as an appointed member of the State
3 Board on the operative date of this act shall be eligible for
4 reappointment when the term of office of the member expires.

5 F. The State Board shall elect one of its members as Chairman
6 at its annual meeting. The Chairman shall preside over meetings of
7 the State Board and perform such other duties as may be required by
8 the State Board. The State Board shall also elect another member to
9 serve as Vice Chairman, and the Vice Chairman shall perform duties
10 of Chairman in the absence of the latter or upon the Chairman's
11 inability or refusal to act.

12 G. Prior to February 6, 1995, the State Board shall be
13 prevented from making any payment or granting any benefit, with the
14 exception of disability benefits for which provisions are otherwise
15 made in Section 49-100.1 et seq. of this title, the actuarial
16 liability for which has not been included in such Board's annual
17 actuarial report prior to May 1, 1994.

18 H. The State Board shall adopt a cost of living adjustment
19 actuarial assumption in its annual actuarial valuation report.

20 SECTION 113. AMENDATORY 11 O.S. 2021, Section 49-100.8,
21 is amended to read as follows:

22 Section 49-100.8. The State Board shall certify to the ~~Director~~
23 Chief Operating Officer of the Office of Management and Enterprise
24 Services, the Speaker of the House of Representatives, and the

President Pro Tempore of the Senate, on or before July 15 of each year, an actuarially determined estimate of the rate of contribution which will be required, together with all accumulated contributions and other assets of the System to pay by level-dollar payments all liabilities which shall exist or accrue pursuant to the provisions of the System, including amortization of the unfunded accrued liability over a period of not to exceed thirty (30) years beginning July 1, 2014.

SECTION 114. AMENDATORY 11 O.S. 2021, Section 50-103.1, is amended to read as follows:

Section 50-103.1. A. There shall be an Oklahoma Police Pension and Retirement Board which shall be composed of thirteen (13) members as follows:

1. Seven members shall be elected as follows:

- a. One member shall be elected to represent State Board District 1. State Board District 1 shall include that area of the state, except for any area comprising Oklahoma City, that is north of Interstate Highway 40 and west of Interstate Highway 35;
- b. One member shall be elected to represent State Board District 2. State Board District 2 shall include that area of the state, except for any area comprising Oklahoma City, that is south of Interstate Highway 40 and west of Interstate Highway 35;

- 1 c. One member shall be elected to represent State Board
2 District 3. State Board District 3 shall include that
3 area of the state, except for any area comprising
4 Oklahoma City or Tulsa, that is north of Interstate
5 Highway 40 and east of Interstate Highway 35;
- 6 d. One member shall be elected to represent State Board
7 District 4. State Board District 4 shall include that
8 area of the state, except for any area comprising
9 Oklahoma City, that is south of Interstate Highway 40
10 and east of Interstate Highway 35;
- 11 e. One member shall be elected to represent State Board
12 District 5. State Board District 5 shall include that
13 area of the state comprising the City of Tulsa;
- 14 f. One member shall be elected to represent State Board
15 District 6. State Board District 6 shall include that
16 area of the state comprising the City of Oklahoma
17 City; and
- 18 g. One member shall be elected to represent State Board
19 District 7. State Board District 7 shall include the
20 entire area of the state.

21 The members elected to represent State Board Districts 1 through 6
22 shall be active members of the System and work for a participating
23 municipality whose police department is physically located within
24 the State Board District. The member elected to represent State

Board District 7 shall be a retired member of the System. Elections for the State Board Districts shall be held within six (6) months of the date of the expiration of the term of office of a member or of the date a vacancy occurs on such dates that are set by the State Board. The initial term of office for State Board Districts 2, 5 and 7 shall begin on July 1, 1989. The initial term of office for State Board Districts 3 and 6 shall begin on July 1, 1990. The initial term of office for State Board Districts 1 and 4 shall begin on July 1, 1991. The term of office of the elected members shall be three (3) years. Only members of the System working for a participating municipality whose police department is physically located within the respective State Board Districts may participate in the election process for State Board Districts 1 through 6. Only retired members of the System may participate in the election process for State Board District 7.

2. One member shall be appointed by the Speaker of the House of Representatives;

3. One member shall be appointed by the President Pro Tempore of the Senate;

4. One member shall be appointed by the Governor;

5. One member shall be appointed by the President of the Oklahoma Municipal League;

6. One member shall be the State Insurance Commissioner or the Commissioner's designee; and

1 7. One member shall be the ~~Director~~ Chief Operating Officer of
2 the Office of Management and Enterprise Services or the ~~Director's~~
3 Chief Operating Officer's designee.

4 B. 1. The term of office of the member appointed to the State
5 Board by the Speaker of the House of Representatives and the term of
6 office of the member appointed to the State Board by the President
7 Pro Tempore of the Senate who are members of the State Board on the
8 operative date of this act, shall expire on January 3, 1989. The
9 members thereafter appointed by the Speaker of the House of
10 Representatives and by the President Pro Tempore of the Senate shall
11 serve terms of office of four (4) years.

12 2. The term of office of the member appointed by the Governor
13 who is a member of the State Board on the operative date of this act
14 shall expire on January 14, 1991. The members thereafter appointed
15 by the Governor shall serve a term of office of four (4) years which
16 is coterminous with the term of office of the office of the
17 appointing authority.

18 3. The initial term of office of the member appointed by the
19 President of the Oklahoma Municipal League shall expire on July 1,
20 1990. The members thereafter appointed by the President of the
21 Oklahoma Municipal League shall serve terms of office of four (4)
22 years.

23 4. Any vacancy that occurs shall be filled for the unexpired
24 term in the same manner as the office was previously filled.

1 C. The members appointed to the State Board by the Speaker of
2 the House of Representatives, the President Pro Tempore of the
3 Senate, the Governor and the President of the Oklahoma Municipal
4 League or who are designees of an ex officio member of the State
5 Board shall:

6 1. Have demonstrated professional experience in investment or
7 funds management, public funds management, public or private pension
8 fund management or retirement system management;

9 2. Have demonstrated experience in the banking profession and
10 have demonstrated professional experience in investment or funds
11 management;

12 3. Be licensed to practice law in this state and have
13 demonstrated professional experience in commercial matters; or

14 4. Be licensed by the Oklahoma Accountancy Board to practice in
15 this state as a public accountant or a certified public accountant.

16 The appointing authorities, in making appointments that conform
17 to the requirements of this subsection, shall give due consideration
18 to balancing the appointments among the criteria specified in
19 paragraphs 1 through 4 of this subsection.

20 D. No member of the State Board shall be a lobbyist registered
21 in this state as provided by law.

22 E. Notwithstanding any of the provisions of this section to the
23 contrary, any person serving as an appointed member of the State
24

Board on the operative date of this act shall be eligible for reappointment when the term of office of the member expires.

F. The State Board shall elect one of its members as Chairman at its annual meeting. The Chairman shall preside over meetings of the State Board and perform such other duties as may be required by the State Board. The State Board shall also elect another member to serve as Vice Chairman, and the Vice Chairman shall perform duties of Chairman in the absence of the latter or upon the Chairman's inability or refusal to act.

SECTION 115. AMENDATORY 11 O.S. 2021, Section 50-105.3, is amended to read as follows:

Section 50-105.3. The State Board shall certify to the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services, the Speaker of the House of Representatives, and the President Pro Tempore of the Senate, on or before November 1 of each year, an actuarially determined estimate of the rate of contribution which will be required, together with all accumulated contributions and other assets of the System to pay by level-dollar payments all liabilities which shall exist or accrue pursuant to the provisions of the System, including amortization of the unfunded accrued liability over a period of not to exceed thirty (30) years beginning July 1, 1988.

SECTION 116. AMENDATORY 12 O.S. 2021, Section 921.1, is amended to read as follows:

1 Section 921.1. A. The Attorney General shall allocate funds
2 from the Legal Services Revolving Fund to provide legal
3 representation to indigent persons in this state in civil legal
4 matters to the extent that funds are available from the Legal
5 Services Revolving Fund. The Attorney General shall be responsible
6 for allocating these funds pursuant to contract with eligible
7 regional or statewide organizations which ordinarily render legal
8 services to indigent persons. The Attorney General may charge an
9 administrative fee for administering the contracts. The funds shall
10 be allocated for the benefit of indigent clients in all seventy-
11 seven (77) counties of the state on a pro rata basis, utilizing an
12 allocation formula that distributes funds according to the number of
13 residents whose incomes are less than the official United States
14 federal poverty guidelines, based on the United States census data,
15 as a percentage of the total number of these residents in this state
16 and which reserves funds for services for specialized areas of law.

17 B. As used in this section, "eligible organization" means an
18 entity that:

19 1. Is organized as a not-for-profit corporation that is tax
20 exempt pursuant to the provisions of paragraph (3) of subsection (c)
21 of Section 501 of the United States Internal Revenue Code of 1986,
22 as amended;

23 2. Has as its primary purpose the furnishing of legal
24 assistance to eligible clients;

1 3. Has a board of directors or other governing body the
2 majority of which is comprised of attorneys who are admitted to
3 practice in this state and who are approved to serve on such body by
4 the governing bodies of the state or county bar associations and has
5 at least one-third (1/3) of the membership who, when selected, are
6 eligible clients; and

7 4. Is incorporated pursuant to any applicable laws of this
8 state.

9 C. As a condition of the contract, the organization shall be
10 required to determine the eligibility of any person seeking legal
11 services pursuant to this section.

12 D. The Attorney General shall prepare annually and distribute
13 to the Judiciary committees of the Senate and the House of
14 Representatives and the Legal Services Committee of the Oklahoma Bar
15 Association a report detailing expenditures of funds for
16 representation to indigent persons in civil legal matters.

17 E. Each organization that contracts to provide legal services
18 pursuant to subsection A of this section shall maintain books and
19 records in accordance with generally accepted accounting principles.
20 The books and records shall account for the receipt and expenditure
21 of all funds paid pursuant to contract. Books and records shall be
22 maintained for a period of five (5) years from the close of the
23 fiscal year of the contract period. The State Auditor and Inspector
24 shall audit each organization annually. The necessary expense of

1 each audit, including, but not limited to, the cost of typing,
2 printing, and binding, shall be paid from funds of the organization.
3 In lieu of the audit by the State Auditor and Inspector, the
4 organization may submit an audit prepared by an independent auditing
5 firm for compliance with federal auditing requirements. A copy of
6 the audit prepared by or submitted to the State Auditor and
7 Inspector shall be submitted to the Attorney General.

8 F. Funds for representation of indigent persons in civil legal
9 matters shall be limited to family law legal services with priority
10 given to cases involving domestic and family violence and abuse. In
11 no event shall such funds ever be used for any of the following
12 activities:

13 1. Provision of legal services in a fee-generating case unless
14 appropriate private representation is not available;

15 2. Provision of legal services in any criminal proceeding;

16 3. Provision of legal services collaterally attacking the
17 validity of a criminal conviction;

18 4. Provision of legal services which seek to procure an
19 abortion;

20 5. Provision of legal representation relating to the
21 desegregation of any school or school system;

22 6. Provision of legal services involving any proceeding derived
23 from the Military Selective Service Act;

1 7. Provision of legal services to advocate for or oppose any
2 altering of a legislative, judicial, or elective district at any
3 level of government; and

4 8. Provision of legal services to challenge a census of the
5 United States of America.

6 G. There is hereby created in the State Treasury a revolving
7 fund for the Office of the Attorney General to be designated the
8 "Legal Services Revolving Fund". The fund shall be a continuing
9 fund, not subject to fiscal year limitations, and shall consist of
10 all monies received by the Office of the Attorney General for
11 indigent legal services from funds appropriated to the fund, federal
12 funds, gifts, donations, and grants. All monies accruing to the
13 credit of said fund are hereby appropriated and may be budgeted and
14 expended by the Attorney General for the purpose of providing legal
15 services to indigent clients pursuant to the provisions of this
16 section. Expenditures from said fund shall be made upon warrants
17 issued by the State Treasurer against claims filed as prescribed by
18 law with the ~~Director~~ Chief Operating Officer of the Office of
19 Management and Enterprise Services for approval and payment.

20 SECTION 117. AMENDATORY 14A O.S. 2021, Section 6-301, is
21 amended to read as follows:

22 Section 6-301. There is hereby created in the State Treasury a
23 revolving fund for the Commission on Consumer Credit to be
24 designated as the "Consumer Credit Administrative Expenses Revolving

Fund". The fund shall be a continuing fund, not subject to fiscal year limitations and shall consist of all monies as directed to be deposited in such fund by law. Monies accruing to the credit of this fund are hereby appropriated and may be budgeted and expended by the Administrator of the Commission on Consumer Credit upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 118. AMENDATORY 15 O.S. 2021, Section 775B.7, is amended to read as follows:

Section 775B.7. There is hereby created in the State Treasury a revolving fund for the Office of the Attorney General, to be designated the "Telemarketer Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received pursuant to the provisions of the Telemarketer Restriction Act. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Attorney General for the purpose of implementing, administering, or enforcing the provisions of the Telemarketer Restriction Act. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 119. AMENDATORY 17 O.S. 2021, Section 39, is amended to read as follows:

Section 39. There is hereby created a petty cash fund for the Corporation Commission to be used for the purpose of supplying small change. The Corporation Commission working in conjunction with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services shall fix the maximum amount of the petty cash fund. The Office of Management and Enterprise Services shall prescribe all forms, systems, and procedures for administering the petty cash fund.

SECTION 120. AMENDATORY 17 O.S. 2021, Section 57, is amended to read as follows:

Section 57. There is hereby created in the State Treasury a revolving fund for the Corporation Commission, to be designated the "Oil and Gas Division Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies designated for deposit to said fund. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and shall be expended by the Corporation Commission for the purposes of expeditious prevention and abatement of oil and gas pollution, the protection of correlative rights and the prevention of waste. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the

Office of Management and Enterprise Services for approval and payment. No money shall be transferred or expended by the Corporation Commission for any other purpose than that authorized by this section.

SECTION 121. AMENDATORY 17 O.S. 2021, Section 180.7, is amended to read as follows:

Section 180.7. There is hereby created in the State Treasury a revolving fund for the Corporation Commission, to be designated the "Corporation Commission Revolving Fund". The revolving fund shall consist of all fees and monies received by the Corporation Commission as required by law to be deposited to the credit of said fund and any other monies, excluding appropriated funds, that are not directed by law to be deposited to the credit of any other Corporation Commission Fund. Said revolving fund shall be a continuing fund, not subject to fiscal year limitations and shall not be subject to legislative appropriation. Expenditures from said revolving fund shall be made pursuant to the laws of this state and the statutes relating to the Corporation Commission and shall be for general operating expenses of the Corporation Commission. In addition, expenditures from said revolving fund may be made pursuant to the Oklahoma Central Purchasing Act for the purpose of immediately responding to emergency situations, within the Commission's jurisdiction, having potentially critical environmental or public safety impact. Warrants for expenditures from said fund

1 shall be drawn by the State Treasurer, based on claims signed by an
2 authorized employee or employees of the Corporation Commission and
3 approved for payment by the ~~Director~~ Chief Operating Officer of the
4 Office of Management and Enterprise Services.

5 SECTION 122. AMENDATORY 17 O.S. 2021, Section 180.10, as
6 amended by Section 1, Chapter 211, O.S.L. 2025 (17 O.S. Supp. 2025,
7 Section 180.10), is amended to read as follows:

8 Section 180.10. A. There is hereby created in the State
9 Treasury a fund for the Corporation Commission to be designated the
10 "Corporation Commission Plugging Fund". The plugging fund shall
11 consist of monies received by the Corporation Commission as required
12 by law to be deposited to the credit of the fund. The fund shall be
13 a continuing fund not subject to fiscal year limitations and shall
14 not be subject to legislative appropriations. Expenditures from the
15 plugging fund shall be made pursuant to the laws of this state and
16 the statutes relating to the Corporation Commission. For each
17 fiscal year, the Commission may expend not more than eight percent
18 (8%) of the total amount deposited to the credit of the plugging
19 fund during the previous fiscal year for the purpose of responding
20 to occurrences of seeping natural gas as provided for in Section
21 317.1 of Title 52 of the Oklahoma Statutes. In addition,
22 expenditures from the plugging fund may be made pursuant to the
23 Oklahoma Central Purchasing Act, Section 85.1 et seq. of Title 74 of
24 the Oklahoma Statutes, for purposes of immediately responding to

1 emergency situations, within the Commission's jurisdiction, having
2 potentially critical environmental or public safety impact.
3 Warrants for expenditures from the fund shall be drawn by the State
4 Treasurer, based on claims signed by an authorized employee of the
5 Corporation Commission and approved for payment by the ~~Director~~
6 Chief Operating Officer of the Office of Management and Enterprise
7 Services. The provisions of this act or rules promulgated pursuant
8 thereto shall not be construed to relieve or in any way diminish the
9 surety bonding requirements required by Section 318.1 of Title 52 of
10 the Oklahoma Statutes.

11 B. Prior to July 1, 2031, the plugging fund shall be maintained
12 at Five Million Dollars (\$5,000,000.00). If the plugging fund falls
13 below the five-million-dollar maintenance level, the Corporation
14 Commission shall notify the Oklahoma Tax Commission that the
15 plugging fund has fallen below the required maintenance level and
16 that the excise tax which has been levied by subsection A of Section
17 1101 of Title 68 of the Oklahoma Statutes and subsection A of
18 Section 1102 of Title 68 of the Oklahoma Statutes which is credited
19 and apportioned to the Corporation Commission Plugging Fund pursuant
20 to Section 1103 of Title 68 of the Oklahoma Statutes is to be
21 imposed. Such additional excise tax shall be imposed and collected
22 until such time as is necessary to meet the additional five-million-
23 dollar maintenance level. The Tax Commission shall notify the
24 persons responsible for payment of the excise tax on oil and gas of

the imposition of such tax. The provisions of this subsection shall terminate on July 1, 2031.

SECTION 123. AMENDATORY 17 O.S. 2021, Section 180.11, is amended to read as follows:

Section 180.11. A. The Corporation Commission is hereby authorized to assess a fee upon each public utility to provide adequate funding to the Public Utility Division of the Corporation Commission for the regulation of public utilities in this state and for providing for timely and expeditious reviews and completion of rate cases, and increased responsiveness to the needs of consumers and the regulated community.

B. 1. The assessment authorized by this section may, after excluding the amount allocated to interexchange telecommunications companies, resellers, pay phone service providers and operator service providers in paragraph 2 of this subsection, be borne by the affected public utilities as follows:

- a. one-half (1/2) shall be allocated based on that proportion which the total regulated Oklahoma jurisdictional gross operating revenues of each public utility bear to the total regulated Oklahoma jurisdictional gross operating revenues of all public utilities, and
- b. one-half (1/2) shall be allocated based on that proportion which the total number of regulated

Oklahoma jurisdictional customers of each public utility bears to the total number of regulated Oklahoma jurisdictional customers of all public utilities.

2. For interexchange telecommunications companies, resellers, pay phone service providers and operator service providers, the allocation may be based on the total regulated Oklahoma jurisdictional gross operating revenues that each interexchange telecommunications company, reseller or operator service provider bears in proportion to the total regulated Oklahoma jurisdictional gross operating revenue of all public utilities as applied to the total amount of the assessment to be collected from all public utilities for each year.

C. Any assessment levied pursuant to this section shall be recoverable as an operating expense to the public utility and shall be included in a utility's base rates or basic monthly service charge. The Corporation Commission shall take such action necessary to ensure recovery of the assessment by a public utility during the period for which it is levied.

D. The Corporation Commission may provide that each public utility shall pay any assessment levied pursuant to this section on a quarterly basis. Notice of the annual assessment shall be sent by certified mail, return receipt requested, to each public utility. Each public utility shall pay the amount assessed to the Commission

1 for deposit to the Public Utility Regulation Revolving Fund created
2 in subsection E of this section. A public utility may, at its
3 discretion, pay its annual assessment prior to the due date of the
4 quarterly payments.

5 E. Any assessment collected by the Commission pursuant to this
6 section shall be deposited in the Public Utility Regulation
7 Revolving Fund hereby created. The fund shall be a continuing fund
8 not subject to fiscal year limitations and shall consist of the
9 monies received by the Commission from any assessment levied
10 pursuant to the provisions of this section. All monies accruing to
11 the credit of the fund are hereby appropriated and may be budgeted
12 and expended by the Commission to pay the costs, both direct and
13 indirect, of the Public Utilities Division incurred to regulate
14 public utilities. Expenditures from said fund shall be made upon
15 warrants issued by the State Treasurer against claims filed as
16 prescribed by law with the ~~Director~~ Chief Operating Officer of the
17 Office of Management and Enterprise Services for approval and
18 payment.

19 F. The Legislature shall establish budgetary limits for the
20 Public Utility Division of the Corporation Commission. Any
21 assessment levied pursuant to this section shall not exceed the
22 amount of the budgetary limits and indirect costs for related
23 support functions established by the Legislature for any fiscal
24

1 year. Budgetary limits will stay in effect until superseded by further action of the Legislature.

G. For purposes of this section, "public utility" means:

1. A public utility as defined by Section 151 of this title, excluding those companies encompassed by paragraph (d) of Section 151 of this title;

2. Any telephone or telecommunications company subject to Section 131 et seq. of this title, including interexchange telecommunications companies or such other telecommunications companies as defined by OCC Rule OAC 165:55-1-4, resellers as defined by OCC Rule OAC 165:56-1-4 and operator service providers as defined by OCC Rule OAC 165:57-1-4; and

3. Any association or cooperative corporation doing business under the Rural Electric Cooperative Act except for generation and transmission associations or cooperative corporations, or transmission associations or cooperative corporations.

H. It is the intention of the Legislature that this entire section is an amendment to and alteration of Sections 18 through 34, inclusive, of Article IX of the Constitution of the State of Oklahoma, as authorized by Section 35 of Article IX of said Constitution.

SECTION 124. AMENDATORY 17 O.S. 2021, Section 315, is amended to read as follows:

Section 315. There is hereby created in the State Treasury a revolving fund for the Corporation Commission, to be designated the "Corporation Commission Storage Tank Revolving Fund", (Storage Tank Revolving Fund). The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Commission, from:

1. The proceeds of any fees imposed pursuant to the provisions of the Oklahoma Petroleum Storage Tank Consolidation Act, Section 301 et seq. of this title;

2. Interest attributable to investment of monies in the Corporation Commission Storage Tank Revolving Fund;

3. Monies received by the Commission in the form of gifts, grants other than federal grants, reimbursements or appropriations from any source intended to be used for the purposes of the revolving fund;

4. Fines, forfeitures, administrative fees, settlement proceeds; and

5. Any other sums designated for deposit to the revolving fund from any source public or private.

All monies accruing to the credit of said revolving fund are hereby appropriated and may be budgeted and expended by the Commission for the purpose of implementing the provisions of the Oklahoma Petroleum Storage Tank Consolidation Act and the rules promulgated thereto. Expenditures from said revolving fund shall be

1 made upon warrants issued by the State Treasurer against claims
2 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
3 of the Office of Management and Enterprise Services for approval and
4 payment.

5 SECTION 125. AMENDATORY 17 O.S. 2021, Section 328, is
6 amended to read as follows:

7 Section 328. A. There is hereby created in the State Treasury
8 a fund for the Corporation Commission to be designated the "Oklahoma
9 Leaking Underground Storage Tank Trust Fund". The fund shall be a
10 continuing fund, not subject to fiscal year limitations, and shall
11 consist of loans and grants from the federal government and any
12 state matching funds required by the federal government with regard
13 to underground storage tanks.

14 B. There is hereby created in the State Treasury a revolving
15 fund for the Corporation Commission to be designated the "Oklahoma
16 Leaking Underground Storage Tank Revolving Fund". The fund shall be
17 a continuing fund, not subject to fiscal year limitations, and shall
18 consist of monies from public or private sources, and any monies
19 collected pursuant to the provisions of this section.

20 C. All monies accruing to the credit of the Oklahoma Leaking
21 Underground Storage Tank Trust Fund and the Oklahoma Leaking
22 Underground Storage Tank Revolving Fund are hereby appropriated and
23 may be budgeted and expended by the Corporation Commission only for
24 the purpose provided in this section, to best protect human health

1 and the environment. Expenditures from the funds shall be made upon
2 warrants issued by the State Treasurer against claims filed as
3 prescribed by law with the ~~Director~~ Chief Operating Officer of the
4 Office of Management and Enterprise Services for approval and
5 payment.

6 D. The Corporation Commission is hereby given the power and
7 authority to receive, administer and authorize payments from the
8 Oklahoma Leaking Underground Storage Tank Trust Fund and the
9 Oklahoma Leaking Underground Storage Tank Revolving Fund. The
10 Commission shall establish separate accounts and subaccounts within
11 the Oklahoma Leaking Underground Storage Tank Trust Fund and the
12 Oklahoma Leaking Underground Storage Tank Revolving Fund deemed
13 necessary to implement the provisions of this section.

14 E. For the purpose of immediately responding to emergency
15 situations created by leaking underground storage tanks having
16 potentially critical environmental or public health or safety
17 impact, the Corporation Commission may take whatever action it deems
18 necessary without notice or hearing, including the expenditure of
19 monies from either the Oklahoma Leaking Underground Storage Tank
20 Trust Fund or the Oklahoma Leaking Underground Storage Tank
21 Revolving Fund or from both such funds to promptly respond to the
22 emergency.

23 F. 1. The Corporation Commission shall seek reimbursement from
24 the responsible person, firm or corporation for all expenditures

1 made from either the Oklahoma Leaking Underground Storage Tank Trust
2 Fund or the Oklahoma Leaking Underground Storage Tank Revolving Fund
3 or from both such funds. All monies received by the Corporation
4 Commission as reimbursement or penalties relating to expenditures
5 made from the Oklahoma Leaking Underground Storage Tank Trust Fund
6 or Oklahoma Leaking Underground Storage Tank Revolving Fund shall be
7 transferred for deposit to the credit of the Oklahoma Leaking
8 Underground Storage Tank Revolving Fund. All monies received by the
9 Corporation Commission as reimbursement or penalties relating to
10 expenditures made from the Corporation Commission Storage Tank
11 Revolving Fund shall be transferred for deposit to the Corporation
12 Commission Storage Tank Revolving Fund.

13 2. The owner or operator is liable for the cost of the
14 corrective action taken by the Corporation Commission pursuant to
15 this subsection, including the cost of investigating the release and
16 administrative and legal expenses, if:

- 17 a. the owner or operator has failed to take a corrective
18 action ordered by the Commission and the Commission
19 has taken the corrective action, or
- 20 b. the Petroleum Storage Tank Division has taken
21 corrective action in an emergency.

22 3. Reasonable and necessary expenses incurred by the Commission
23 in taking a corrective action, including costs of investigating a
24 release and administrative and legal expenses, may be recovered in

1 an administrative proceeding. The Commission's certification of
2 expenses is prima facie evidence that the expenses are reasonable
3 and necessary. Expenses that are recovered under this subsection
4 shall be deposited in the Oklahoma Leaking Underground Storage Tank
5 Revolving Fund.

6 G. Any owner or operator of an underground storage tank who
7 fails to comply with any order issued by the Corporation Commission
8 for corrective or enforcement actions may be subject to an
9 administrative penalty not to exceed Twenty-five Thousand Dollars
10 (\$25,000.00) for each underground tank for each day of violation.

11 The administrative penalties assessed and collected by the
12 Corporation Commission shall be deposited to the Oklahoma Leaking
13 Underground Storage Tank Revolving Fund to be disbursed by the
14 Commission in support of relevant agency activities.

15 SECTION 126. AMENDATORY 18 O.S. 2021, Section 552.20, is
16 amended to read as follows:

17 Section 552.20. There is hereby created in the State Treasury a
18 revolving fund for the Office of the Secretary of State to be
19 designated the "Secretary of State Charitable Solicitations
20 Revolving Fund". The fund shall be a continuing fund, not subject
21 to fiscal year limitations, and shall consist of all monies received
22 by the Office of the Secretary of State from sources provided under
23 this act and any appropriations made by the Legislature. All monies
24 accruing to the credit of the fund are hereby appropriated and may

1 be budgeted and expended by the Secretary of State in furtherance of
2 its duties under the provisions of the Oklahoma Solicitation of
3 Charitable Contributions Act. Expenditures from the fund shall be
4 made upon warrants issued by the State Treasurer against claims
5 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
6 of the Office of Management and Enterprise Services for approval and
7 payment.

8 SECTION 127. AMENDATORY 18 O.S. 2021, Section 552.21, is
9 amended to read as follows:

10 Section 552.21. There is hereby created in the State Treasury a
11 revolving fund for the Office of the Attorney General to be
12 designated the "Attorney General Charitable Solicitations
13 Enforcement Revolving Fund". The fund shall be a continuing fund,
14 not subject to fiscal year limitations, and shall consist of all
15 monies received by the Office of the Attorney General from sources
16 provided under this act and any appropriations made by the
17 Legislature. All monies accruing to the credit of the fund are
18 hereby appropriated and may be budgeted and expended by the Attorney
19 General in furtherance of its duties under the provisions of the
20 Oklahoma Solicitation of Charitable Contributions Act. Expenditures
21 from the fund shall be made upon warrants issued by the State
22 Treasurer against claims filed as prescribed by law with the
23 ~~Director~~ Chief Operating Officer of the Office of Management and
24 Enterprise Services for approval and payment.

SECTION 128. AMENDATORY 19 O.S. 2021, Section 215.28, is amended to read as follows:

Section 215.28. A. There is hereby created the District Attorneys Council which shall be organized and administered as herein provided. Any reference in the Oklahoma Statutes to the District Attorneys Training Coordination Council shall mean the District Attorneys Council.

B. The chief executive officer of the office of the Council is the Executive Coordinator who shall be appointed and supervised by the Council. The Executive Coordinator shall serve at the pleasure of the Council. The Executive Coordinator shall be licensed to practice law in Oklahoma and shall have been a district attorney or assistant district attorney or have held an equivalent position in state or federal government for at least three (3) years prior to appointment. The Executive Coordinator may appoint an Assistant Coordinator, both of whom shall be in the unclassified service of the state. The Executive Coordinator and the Assistant Coordinator, who shall also be licensed to practice law in Oklahoma, shall devote full time to their duties and shall not engage in the private practice of law. The Executive Coordinator shall perform the functions and duties as may be assigned by the Council. The Executive Coordinator shall be named the project director and fiscal officer of any grant or fund received by the Council. The Executive Coordinator and the Assistant Coordinator shall receive compensation

1 for their services within the pay scale limits for district
2 attorneys.

3 C. 1. The Council shall be composed of the following members:

4 a. the Attorney General, or a designated representative
5 of the Attorney General,

6 b. the President of the Oklahoma District Attorneys
7 Association,

8 c. the President-elect of the Oklahoma District Attorneys
9 Association,

10 d. one district attorney selected by the Court of
11 Criminal Appeals for a three-year term, and

12 e. one district attorney selected by the Board of
13 Governors of the Oklahoma Bar Association for a three-
14 year term.

15 2. A member of the Council shall vacate the appointment upon
16 termination of the member's official position as Attorney General or
17 district attorney. A vacancy shall be filled in the same manner as
18 the original appointment. A member appointed to fill a vacancy
19 created other than by expiration of a term shall be appointed for
20 the unexpired term of the member whom the appointed member is to
21 succeed in the same manner as the original appointment. Any member
22 may serve more than one term.

23 D. The Council shall designate from among its members a
24 Chairman and Vice Chairman who shall serve for one-year terms and

1 who may be reelected. Membership on the Council shall not
2 constitute holding a public office. The Council shall not have the
3 right to exercise any portion of the sovereign power of the state.
4 A member of the Council shall not be disqualified from holding any
5 public office or employment by reason of appointment or membership
6 on the Council, nor shall the member forfeit the office or
7 employment, by reason of appointment to the Council.

8 E. The Council shall meet at least four times in each year and
9 shall hold special meetings when called by the Chairman, or, in the
10 absence of the Chairman, by the Vice Chairman or when called by the
11 Chairman upon the written request of two members of the Council.
12 The Council shall establish its own procedures and requirements with
13 respect to quorum, place and conduct of its meetings and other
14 matters.

15 F. The members of the Council shall not receive a salary for
16 duties performed as members of the Council but shall be entitled to
17 be reimbursed for their travel expenses in accordance with the State
18 Travel Reimbursement Act.

19 G. The Council shall make an annual report to the Governor, the
20 President Pro Tempore of the Senate, the Speaker of the House of
21 Representatives, and the President of the Oklahoma District
22 Attorneys Association regarding its efforts to implement the
23 purposes of this section.
24

H. The Council shall have the power to perform such functions as in its opinion shall strengthen the criminal justice system in Oklahoma, to provide a professional organization for the education, training and coordination of technical efforts of all state prosecutors and to maintain and improve prosecutor efficiency and effectiveness in enforcing the laws of this state including, but not limited to, the following:

1. Organize, supervise and perform functions consistent with this section;

2. Convene regional or statewide conferences and training seminars for the purpose of implementing the provisions of this section;

3. Accept and expend monies, gifts, grants or services from any public or private source; contract or enter into agreements with educational institutions or state or federal agencies; and employ personnel as the Council in its judgment finds necessary to effectively carry out the provisions of this section. Such employees shall be in the unclassified service of the state;

4. Serve in an advisory capacity to the district attorneys of the state;

5. Provide and coordinate training and continuing legal education for district attorneys and their assistants, including participation in nationally recognized prosecutorial seminars conducted in other states. Subject to available funding, curriculum

for training required under this paragraph shall include, but not be limited to:

- a. dynamics of domestic violence,
- b. the impact of domestic violence on victims and their children including victim trauma and the neurobiology of trauma,
- c. identifying dominant aggressor,
- d. tactics and behavior of batterers,
- e. victim protection orders and full faith and credit under the Violence Against Women Act of 1994,
- f. rights of victims, and
- g. evidence-based practices regarding behavioral health and treatment of those with substance abuse or mental health needs;

6. Gather and disseminate information to district attorneys relative to their official duties, including changes in the law relative to their office;

7. Coordinate with law enforcement officers, the courts and corrections workers providing interdisciplinary seminars to augment the effectiveness of the criminal justice system;

8. Require statistical reports from district attorneys' offices relating to functions and workload performance;

9. Recommend additional legislation necessary to upgrade the Oklahoma District Attorneys System to professional status;

1 10. Establish an equitable distribution plan for allocation of
2 any funds or gifts received from public or private sources for state
3 prosecution and distribute such funds in accordance with such plan;
4 and

5 11. Appoint a larger Advisory Council made up of district
6 attorneys and assistant district attorneys to discuss problems and
7 hear recommendations concerning necessary research, minimum
8 standards, educational needs, and other matters imperative to
9 upgrading Oklahoma prosecution to professional status.

10 I. There is hereby created in the State Treasury a revolving
11 fund for the Council, to be designated the "District Attorneys
12 Council Revolving Fund". The fund shall consist of all monies
13 received by the Council other than appropriated funds. The
14 revolving fund shall be a continuing fund not subject to fiscal year
15 limitations and shall be under the control and management of the
16 Council. Expenditures from this fund shall be made pursuant to the
17 purposes of this act and without legislative appropriation.

18 Warrants for expenditures shall be drawn by the State Treasurer
19 based on claims signed by the authorized employee or employees of
20 the Council and approved for payment by the ~~Director~~ Chief Operating
21 Officer of the Office of Management and Enterprise Services.

22 J. The Council may accept operation and supervision of the Law
23 Enforcement Assistance Administration grants presently being
24 administered by the Oklahoma District Attorneys Association.

SECTION 129. AMENDATORY 19 O.S. 2021, Section 215.30, is amended to read as follows:

Section 215.30. A. Beginning January 1, 1997, each district attorney shall receive a salary of Seventy-one Thousand Six Hundred Sixty-three Dollars (\$71,663.00) per year, payable monthly.

Beginning January 1, 1999, each district attorney shall receive a salary of Eighty-five Thousand Dollars (\$85,000.00) per year, payable monthly. Beginning July 1, 2003, each district attorney shall receive a salary equal to ninety-eight percent (98%) of the salary of a district judge. Any increase in salary in fiscal year 2015 must be paid from existing available funds.

B. All appointees and employees of district attorneys, except special district attorneys appointed pursuant to subsection C of Section 215.37M of this title, shall be deemed to be state officers or employees for all purposes. All special district attorneys appointed pursuant to subsection C of Section 215.37M of this title shall be deemed to be state officers only for purposes of The Governmental Tort Claims Act and Rule 1.11 of the Rules of Professional Conduct for attorneys licensed to practice law in this state.

C. Population, for the purposes of Section 215.1 et seq. of this title, shall be as determined by the last Federal Decennial Census. The salaries of the district attorneys and the salaries of the assistant district attorneys and their operating and maintenance

expenses in each county shall be paid by the state. Provided
however:

1. In counties having a population of four hundred thousand (400,000) or more, the salary of the district attorney and assistant district attorneys may be supplemented by the county. Such supplement for the district attorney shall not exceed twenty-five percent (25%) of the salary provided for district attorneys by this section. Such supplement for the assistant district attorneys shall not exceed twenty-five percent (25%) of the salary authorized for assistant district attorneys in Section 215.34 of this title.

2. The salaries and operating expenses of those assistant district attorneys who are assigned to child support enforcement duties shall be paid by funds received as reimbursement from the Department of Human Services under terms of a contract with the office of the district attorney as authorized by Section 237.1 of Title 56 of the Oklahoma Statutes.

D. The District Attorneys Council, which may hereinafter be referred to as the "Council", is hereby designated as the state agency for the administration and disbursement of all salaries and expenses of the offices of district attorneys authorized by law. All such payrolls and claims against State Treasury funds must be approved by the Council prior to submission to the Office of Management and Enterprise Services for payment. The Council and the ~~Director~~ Chief Operating Officer of the Office of Management and

Enterprise Services shall promulgate reasonable rules and regulations covering the preparation of estimates of needs, budgets and claims for the administration of this act, Section 215.1 et seq. of this title, the transmittal of county funds to the State Treasury and the disbursement of all state and county funds under this act.

SECTION 130. AMENDATORY 19 O.S. 2021, Section 215.40, is amended to read as follows:

Section 215.40. There is hereby created in the State Treasury a revolving fund for the Office of the Attorney General to be designated the "District Attorneys Evidence Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of any monies transferred thereto by an act of the Legislature. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the District Attorneys Council for necessary expenses relative to any pending case within the official responsibility of the offices of the district attorneys. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 131. AMENDATORY 19 O.S. 2021, Section 220, is amended to read as follows:

1 Section 220. A. Beginning July 1, 1991, there is hereby
2 created with the county treasurer of each county within this state a
3 depository revolving fund to be designated the "Court Clerk's
4 Revolving Fund". The fund shall be a continuing fund, not subject
5 to fiscal year limitations, and shall consist of all monies received
6 as grants from the federal government and any other monies
7 designated by law for deposit into the fund. All monies accruing to
8 the credit of the fund shall be expended by the court clerk for the
9 lawful operation of the court clerk's office. Claims against the
10 fund shall include only expenses incurred for the operation of the
11 court clerk's office in each county, and payment may be made after
12 the claim is approved by the court clerk and either the district or
13 the associate district judge of that county. The monies shall be
14 reported quarterly to the Administrator of the Courts. The
15 necessary forms and procedures shall be developed and implemented by
16 the Administrative Director of the Courts.

17 B. There shall be no monies, other than federal funds,
18 deposited into the fund created herein, unless expressly authorized
19 by the Legislature.

20 C. Notwithstanding any other provision of law, the court clerk
21 shall assess an administrative fee of ten percent (10%) on all fees
22 collected by the court clerk for agencies other than the court and
23 not deposited into the court fund. The administrative fee shall not
24 attach to the sheriff's service fees provided for in Sections 153

1 and 153.2 of Title 28 of the Oklahoma Statutes, monies deposited
2 into the Law Library Fund, witness fees paid by the district
3 attorney pursuant to the provisions of Section 82 of Title 28 of the
4 Oklahoma Statutes, and dispute resolution fees provided for in
5 Section 1809 of Title 12 of the Oklahoma Statutes. The
6 administrative fees shall be deposited in the Court Clerk's
7 Revolving Fund.

8 D. Effective July 1, 2016, in addition to the amount collected
9 in subsection C of this section, the court clerk shall assess an
10 administrative fee of fifteen percent (15%) on all fees collected by
11 the court clerk for agencies other than the court and not deposited
12 into the court fund.

13 E. There is hereby created in the State Treasury a revolving
14 fund to be allocated by the Supreme Court for the administration of
15 the district courts designated as the "District Court Revolving
16 Fund". The fund shall be a continuing fund, not subject to fiscal
17 year limitations, and shall consist of all monies collected pursuant
18 to subsection D of this section. All monies accruing to the credit
19 of the fund are hereby appropriated and may be budgeted and expended
20 by the Supreme Court as necessary to perform the duties imposed upon
21 the district courts by law. Expenditures from the District Court
22 Revolving Fund shall be made upon warrants issued by the State
23 Treasurer against claims filed as prescribed by law with the
24

1 ~~Director~~ Chief Operating Officer of the Office of Management and
2 Enterprise Services for approval and payment.

3 SECTION 132. AMENDATORY 19 O.S. 2021, Section 746.1, is
4 amended to read as follows:

5 Section 746.1. There is hereby created in the State Treasury a
6 revolving fund for the State and Education Employees Group Insurance
7 Board to be designated the "Medical Expense Liability Revolving
8 Fund". The fund shall be a continuing fund, not subject to fiscal
9 year limitations, and shall consist of all monies received from fees
10 assessed pursuant to Section 1313.7 of Title 20 of the Oklahoma
11 Statutes. All monies accruing to the credit of the fund shall be
12 appropriated and may be budgeted and expended by the State and
13 Education Employees Group Insurance Board for qualified medical
14 expenses for inmates or persons in the custody of a county or city
15 jail pursuant to the criteria set forth in Section 1313.7 of Title
16 20 of the Oklahoma Statutes. A portion of the Medical Expense
17 Liability Revolving Fund shall be used for the costs the Board
18 incurred in administering such monies.

19 Expenditures from the fund shall be made upon warrants issued by
20 the State Treasurer against claims filed as prescribed by law with
21 the ~~Director~~ Chief Operating Officer of the Office of Management and
22 Enterprise Services for approval and payment.

23 SECTION 133. AMENDATORY 19 O.S. 2021, Section 901.58, is
24 amended to read as follows:

1 Section 901.58. There is hereby created in the State Treasury a
2 revolving fund for the State Department of Agriculture, to be
3 designated the "Rural Fire Defense Equipment Revolving Fund". The
4 fund shall be a continuing fund, not subject to fiscal year
5 limitations, and shall consist of all monies received by the State
6 Department of Agriculture from any monies received from
7 appropriations, deposits made pursuant to the provisions of this
8 act, proceeds resulting from the sale of equipment purchased out of
9 monies in the fund, and such other monies specifically designated by
10 law. All monies accruing to the credit of said fund are hereby
11 appropriated and may be budgeted and expended by the Oklahoma
12 Department of Agriculture, Food, and Forestry for the purpose of
13 purchasing new firefighting equipment for purchase by rural fire
14 departments and such other purposes specifically designated by law.
15 Expenditures from said fund shall be made upon warrants issued by
16 the State Treasurer against claims filed as prescribed by law with
17 the ~~Director~~ Chief Operating Officer of the Office of Management and
18 Enterprise Services for approval and payment.

19 SECTION 134. AMENDATORY 20 O.S. 2021, Section 61, is
20 amended to read as follows:

21 Section 61. There is hereby created in the State Treasury a
22 revolving fund for the Court of Criminal Appeals to be designated
23 the "Court of Criminal Appeals Revolving Fund". The fund shall be a
24 continuing fund, not subject to fiscal year limitations, and shall

1 consist of all monies received by the Court of Criminal Appeals from
2 all other monies so designated for deposit thereto. All monies
3 accruing to the credit of said fund are hereby appropriated and may
4 be budgeted and expended by the Court of Criminal Appeals for duties
5 imposed upon the Court of Criminal Appeals by law. Expenditures
6 from said fund shall be made upon warrants issued by the State
7 Treasurer against claims filed as prescribed by law with the
8 ~~Director~~ Chief Operating Officer of the Office of Management and
9 Enterprise Services for approval and payment.

10 SECTION 135. AMENDATORY 20 O.S. 2021, Section 1227, is
11 amended to read as follows:

12 Section 1227. A. There is hereby created in the State Treasury
13 a revolving fund for the Supreme Court to be designated the "Law
14 Library Revolving Fund". The fund shall be a continuing fund, not
15 subject to fiscal year limitations, and shall consist of all monies
16 collected by the clerks of the district court for law libraries as
17 prescribed by law, the sales of any law library books or equipment,
18 charges for services, gifts, grants, private donations, and federal
19 funding. All monies accruing to the credit of the fund are hereby
20 appropriated and may be budgeted and expended by the Supreme Court
21 upon approval of the Chief Justice for:

22 1. The payment of charges due and owing by county law libraries
23 at the time this statute is enacted;
24

2. The purchase of books, journals, publications, computer-assisted research devices and services, computer equipment and maintenance, communication charges, and other necessary equipment, services, and fixtures;

3. The payment of the salaries and benefits of personnel to administer the law libraries and assist in the purchase, sale, and inventory of books and equipment and the payment of all bills due and owing by county law libraries. Without regard for the county in which bills were incurred or monies accrued, all monies received in the fund shall be combined and all bills paid from this fund;

4. The payment of incidental expenses as established in rules promulgated by the Supreme Court;

5. The payment of expenses occurring as the result of a natural disaster, accident, or equipment malfunction which is not reasonably foreseeable;

6. No initial orders or renewals for printed materials not previously on subscription may be placed after July 1, 1997; and

7. On or before August 1, 1997, the Administrative Director of the Courts shall solicit proposals for electronic research services to be provided to county law libraries if funds are available. Such proposals shall provide both compact disc and Internet access capabilities.

Expenditures from this fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law

1 with the ~~Director~~ Chief Operating Officer of the Office of
2 Management and Enterprise Services for approval and payment.

3 B. Until June 30, 2021, the Office of Management and Enterprise
4 Services shall, at the request of the Administrative Director of the
5 Courts, transfer any monies from the Law Library Revolving Fund to
6 the Supreme Court Administrative Revolving Fund or the Interagency
7 Reimbursement Fund as necessary to perform the duties imposed upon
8 the Supreme Court, Court of Civil Appeals and district courts by
9 law.

10 SECTION 136. AMENDATORY 20 O.S. 2021, Section 1310.1, is
11 amended to read as follows:

12 Section 1310.1. A. There is hereby created in the State
13 Treasury a revolving fund for the Supreme Court, to be designated
14 the "Supreme Court Revolving Fund". The fund shall be a continuing
15 fund, not subject to fiscal year limitations, and shall consist of
16 monies appropriated by the Legislature for the purposes specified in
17 this section and fees collected pursuant to Sections 72, 73.5, 1506
18 and 1707 of this title and paragraph 2 of subsection E of Section
19 152 of Title 28 of the Oklahoma Statutes. All monies accruing to
20 the credit of the fund are hereby appropriated and may be budgeted
21 and expended by the Supreme Court for refunds to bondsmen and for
22 the purpose of paying expenses authorized by Section 1809 of Title
23 12 of the Oklahoma Statutes, Sections 103.1, 1311, 1507, 1660 and
24 1707 of this title, Sections 562 and 1355.13A of Title 22 and

paragraph 2 of subsection E of Section 152 of Title 28 of the Oklahoma Statutes, and to make any other expenditures determined by the Supreme Court to be necessary due to unforeseen emergencies impacting the operation of state courts, as well as recurring and nonrecurring expenditures to perform the duties imposed upon the Supreme Court or Court of Civil Appeals by law. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

B. Until June 30, 2021, the Office of Management and Enterprise Services shall, at the request of the Administrative Director of the Courts, transfer any monies from the Supreme Court Revolving Fund to the Supreme Court Administrative Revolving Fund or the Interagency Reimbursement Fund as necessary to perform the duties imposed upon the Supreme Court, Court of Civil Appeals and district courts by law.

SECTION 137. AMENDATORY 20 O.S. 2021, Section 1310.2, is amended to read as follows:

Section 1310.2. A. There is hereby created in the State Treasury a revolving fund for the Supreme Court to be designated the "State Judicial Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all receipts designated for deposit thereto pursuant to law and

monies appropriated by the Legislature for deposit thereto. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted by the Supreme Court as necessary to perform the duties imposed upon the Supreme Court, Court of Civil Appeals and district courts by law. The Administrative Director of the Courts, with the approval of the Chief Justice of the Supreme Court, is authorized to use the amounts deposited in the State Judicial Revolving Fund for any lawful purpose including but not limited to payment of recurring and nonrecurring administrative and operating expenses for the Supreme Court and the district courts subject to the ceilings established in the annual appropriations to the Supreme Court and the district courts. The Chief Justice of the Supreme Court, or the Administrative Director of the Courts acting at the direction of the Chief Justice, shall determine the allocation of funds and expenditures between or among the Supreme Court, Court of Civil Appeals, and district courts. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment. The Supreme Court is hereby authorized to transfer funds from the State Judicial Revolving Fund to the district courts for duties imposed by law.

B. Until June 30, 2021, the Office of Management and Enterprise Services shall, at the request of the Administrative Director of the

Courts, transfer any monies from the State Judicial Revolving Fund to the Supreme Court Administrative Revolving Fund as necessary to perform the duties imposed upon the Supreme Court, Court of Civil Appeals and district courts by law.

SECTION 138. AMENDATORY 20 O.S. 2021, Section 1310.3, is amended to read as follows:

Section 1310.3. A. There is hereby created in the State Treasury a revolving fund for the Supreme Court to be designated as the "Supreme Court Administrative Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies transferred by the Supreme Court in any given fiscal year or years. All monies accruing to the credit of the fund are hereby appropriated and shall be budgeted and expended by the Supreme Court as necessary to perform the duties imposed upon the Supreme Court, Court of Civil Appeals and district courts by law. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

B. Until June 30, 2021, the Office of Management and Enterprise Services shall, at the request of the Administrative Director of the Courts, transfer any monies from the Supreme Court Administrative Revolving Fund to the Interagency Reimbursement Fund as necessary to

perform the duties imposed upon the Supreme Court, Court of Civil Appeals and district courts by law.

SECTION 139. AMENDATORY 20 O.S. 2021, Section 1315, is amended to read as follows:

Section 1315. A. 1. The Supreme Court, by and through the Office of the Administrative Director of the Courts, shall establish a court information system to be designated the "Oklahoma Court Information System" for the purpose of providing data processing services to state agencies, boards, and commissions and other entities pursuant to contract. The Administrative Director of the Courts may assess a reasonable fee for such services.

2. Court clerks and judges of the district courts of this state shall utilize the case tracking, accounting, legal research, and other services of the "Oklahoma Court Information System" at the direction of the Chief Justice of the Supreme Court. The development and implementation of the system's accounting, auditing, and financial reporting functions shall be subject to the approval of the State Auditor and Inspector.

B. There is hereby created in the State Treasury a revolving fund for the Supreme Court to be designated the "Oklahoma Court Information System Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received in payment of data processing services furnished pursuant to contract. The Administrative Director of the Courts, at

1 the end of each month, shall issue a statement of charges to each
2 entity for which data processing services were furnished. The cost
3 for data processing services shall be recovered directly from the
4 entity for which such services were furnished and shall not be
5 prorated to or payable by those not receiving the services. All
6 monies accruing to the credit of the fund are hereby appropriated
7 and may be budgeted and expended by the Supreme Court for the
8 acquisition, operation, maintenance, repair, and replacement of data
9 processing equipment and software and for the operational expenses
10 of any court which is subject to the authority of the Administrative
11 Director of the Courts. Expenditures from the fund shall be made
12 upon warrants issued by the State Treasurer against claims filed as
13 prescribed by law with the ~~Director~~ Chief Operating Officer of the
14 Office of Management and Enterprise Services for approval and
15 payment. Until June 30, 2018, the Office of Management and
16 Enterprise Services shall, at the request of the Administrative
17 Director of the Courts, transfer an amount not to exceed Five
18 Million Dollars (\$5,000,000.00) from the Oklahoma Court Information
19 System Revolving Fund to the District Court Interagency
20 Reimbursement Fund an amount that the Administrative Director of the
21 Courts, with the approval of the Chief Justice of the Supreme Court,
22 shall deem appropriate and necessary to perform the duties imposed
23 upon the district courts by law.

SECTION 140. AMENDATORY 20 O.S. 2021, Section 1316, is amended to read as follows:

Section 1316. A. The Chief Justice of the Supreme Court is authorized to appoint law student clerks for the Supreme Court, Court of Civil Appeals, and the district courts. All personnel appointed under this section shall be appointed by and serve at the pleasure of the Chief Justice of the Supreme Court. No personnel employed under the provisions of this section shall be employed for more than one thousand (1,000) hours per year.

B. There is hereby created in the State Treasury a revolving fund for the Supreme Court, to be designated the "Grants and Donations Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Supreme Court, from gifts, grants, private donations, and federal funding for the payment of salaries and benefits for law student clerks for the Supreme Court, Court of Civil Appeals, or the district courts. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Supreme Court for the purpose of the payment of salaries and benefits for law student clerks for the Supreme Court, Court of Civil Appeals, or the district courts. Expenditures from the fund and personnel employed under the provisions of this section shall be exempt from full-time-equivalency and budgetary limitations. Expenditures from the fund shall be made upon warrants

1 issued by the State Treasurer against claims filed as prescribed by
2 law with the ~~Director~~ Chief Operating Officer of the Office of
3 Management and Enterprise Services for approval and payment.

4 SECTION 141. AMENDATORY 20 O.S. 2021, Section 1663, is
5 amended to read as follows:

6 Section 1663. There is hereby created in the State Treasury a
7 revolving fund for the Council on Judicial Complaints to be
8 designated the "Council on Judicial Complaints Revolving Fund". The
9 fund shall be a continuing fund, not subject to fiscal year
10 limitations, and shall consist of all monies received by the Council
11 from collections received pursuant to Section 152 of Title 28 of the
12 Oklahoma Statutes. All monies accruing to the credit of said fund
13 are hereby appropriated and may be budgeted and expended by the
14 Council for the purpose of performing the duties imposed upon the
15 Council by law. Expenditures from said fund shall be made upon
16 warrants issued by the State Treasurer against claims filed as
17 prescribed by law with the ~~Director~~ Chief Operating Officer of the
18 Office of Management and Enterprise Services for approval and
19 payment.

20 SECTION 142. AMENDATORY 21 O.S. 2021, Section 142.17, is
21 amended to read as follows:

22 Section 142.17. There is hereby created in the State Treasury a
23 revolving fund for the Crime Victims Compensation Board to be
24 designated the "Crime Victims Compensation Revolving Fund". The

Fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Crime Victims Compensation Board from any source excluding appropriated funds. All monies accruing to the credit of said Fund are hereby appropriated and, except for those monies specifically authorized by the Legislature to be expended by the District Attorneys Council for administration of the Crime Victims Compensation Board or operating expenses for administering federal grant programs, may be budgeted and expended by the Board for the purpose of implementing the provisions of the Oklahoma Crime Victims Compensation Act including the provisions set forth in Section 142.20 of this title.

Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment. The fund shall be invested in whatever instruments are authorized by law for investments by the State Treasurer. The interest earned by any investment of monies from the fund shall be credited to the fund for expenditure as provided by law for the fund.

SECTION 143. AMENDATORY 21 O.S. 2021, Section 142.32, is amended to read as follows:

Section 142.32. A. There is hereby created in the State Treasury a revolving fund to be administered by the Oklahoma Crime Victims Compensation Board to be designated the "Murrah Crime

Victims Compensation Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Oklahoma Crime Victims Compensation Board from any source for the purpose of implementing the provisions of the Murrah Crime Victims Compensation Act. All monies accruing to the credit of the fund shall be budgeted and expended exclusively to compensate victims and the families of victims of the bombing on April 19, 1995, that took place in front of the Alfred P. Murrah Federal Building in Oklahoma City, Oklahoma. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment. For the purposes of the Murrah Crime Victims Compensation Fund, "families" shall include dependents, as defined by the Oklahoma Crime Victims Compensation Act, parents and spouses.

B. The Administrator of the Oklahoma Crime Victims Compensation Board is authorized to accept and expend contributions from any lawful source to be used for the purposes of the fund. The Administrator is further authorized to accept and expend any contributions from the crime victims compensation systems of any other state or other governmental entity for the use of the fund. The Administrator of the Oklahoma Crime Victims Compensation Board is authorized to accept the services of the victims compensation

1 system of any other state or governmental entity in the processing
2 of any claims received against the Murrah Crime Victims Compensation
3 Fund; provided, that the employees of such entities shall not be
4 considered as employees of the State of Oklahoma.

5 C. The monies deposited in the Murrah Crime Victims
6 Compensation Fund shall at no time become monies of the state and
7 shall not become part of the general budget of the Oklahoma Crime
8 Victims Compensation Board or any other state agency. No monies
9 from the fund shall be transferred for any purpose to any state
10 agency or any account of the Oklahoma Crime Victims Compensation
11 Board or be used for the purpose of contracting with any other state
12 agency or reimbursing any other state agency for any expense. No
13 monies from the fund shall be used to pay or reimburse the Oklahoma
14 Crime Victims Compensation Board for, in whole or in part, the
15 salary of any employee involved in the administration of the Murrah
16 Crime Victims Compensation Act. Payment of claims from the fund
17 shall not become or be construed to be an obligation of this state.
18 No claims submitted for reimbursement from the fund shall be paid
19 with state monies.

20 SECTION 144. AMENDATORY Section 1, Chapter 376, O.S.L.
21 2023 (21 O.S. Supp. 2025, Section 748.3), is amended to read as
22 follows:

23 Section 748.3. A. There is hereby created in the State
24 Treasury a revolving fund for the Office of the Attorney General to

1 be designated the "Victims of Human Trafficking and Prevention
2 Revolving Fund". The fund shall be a continuing fund, not subject
3 to fiscal year limitations, and shall consist of all monies received
4 from penalties imposed by the courts on convictions of human
5 trafficking violations and funds received from any other source,
6 including legislative appropriations. All monies accruing to the
7 credit of the fund are hereby appropriated and may be budgeted and
8 expended by the Office of the Attorney General for the purposes
9 provided in subsection B of this section. Expenditures from the
10 fund shall be made upon warrants issued by the State Treasurer
11 against claims filed as prescribed by law with the ~~Director~~ Chief
12 Operating Officer of the Office of Management and Enterprise
13 Services for approval and payment.

14 B. The purposes of the fund include, but are not limited to:

15 1. Educating the public about the recruitment, trafficking, and
16 exploitation of persons through human trafficking;

17 2. Assisting in the prevention of recruitment in schools of
18 minors for exploitation;

19 3. Establishing a survivors' resource center to make
20 information available to survivors of human trafficking about
21 services and resources, including legal services, social services,
22 safe harbors, safe houses, and language services;

23 4. Assisting in the coordination between law enforcement
24 agencies and service providers; and

5. Providing information concerning a petition for expungement of a criminal history record resulting from the arrest or filing of charges for an offense committed or reported to have been committed while the person was a victim of human trafficking.

SECTION 145. AMENDATORY 21 O.S. 2021, Section 1290.14, as amended by Section 1, Chapter 156, O.S.L. 2024 (21 O.S. Supp. 2025, Section 1290.14), is amended to read as follows:

Section 1290.14. Safety and training course.

SAFETY AND TRAINING COURSE

A. Each applicant for a license to carry a concealed or unconcealed handgun pursuant to the Oklahoma Self-Defense Act must successfully complete a firearms safety and training course in this state conducted by a registered and approved firearms instructor as provided by the provisions of this section or from an interactive online firearms safety and training course available electronically via the Internet approved and certified by the Council on Law Enforcement Education and Training. The applicant must further demonstrate competence and qualification with an authorized pistol to carry as a concealed or unconcealed handgun pursuant to the provisions of the Oklahoma Self-Defense Act, except certain persons may be exempt from such training requirement as provided by the provisions of Section 1290.15 of this title.

B. The Council on Law Enforcement Education and Training (CLEET) shall establish criteria for approving firearms instructors

1 and interactive online firearms safety and training courses
2 available electronically via the Internet for purposes of training
3 and qualifying individuals for a handgun license pursuant to the
4 provisions of the Oklahoma Self-Defense Act. Prior to submitting an
5 application for CLEET approval as a firearms instructor, applicants
6 shall attend a firearms instructor school, meeting the following
7 minimum requirements:

8 1. Firearms instructor training conducted by one of the
9 following entities:

- 10 a. Council on Law Enforcement Education and Training,
- 11 b. National Rifle Association,
- 12 c. Oklahoma Rifle Association,
- 13 d. federal law enforcement agencies, or
- 14 e. other professionally recognized organizations;

15 2. The course shall be at least sixteen (16) hours in length;

16 3. Upon completion of the course, the applicant shall be
17 qualified to provide instruction on pistols; and

18 4. Receive a course completion certificate.

19 All firearms instructors shall be required to meet the
20 eligibility requirements for a handgun license as provided in
21 Sections 1290.9, 1290.10, and 1290.11 of this title and the
22 application shall be processed as provided for applicants in Section
23 1290.12 of this title, including the state and national criminal
24 history records search and fingerprint search. A firearms

instructor shall be required to pay a fee of One Hundred Dollars (\$100.00) to the Council on Law Enforcement Education and Training (CLEET) each time the person makes application for CLEET approval as a firearms instructor pursuant to the provisions of the Oklahoma Self-Defense Act. The fee shall be retained by CLEET and shall be deposited into the Firearms Instructors Revolving Fund. CLEET shall promulgate the rules, forms and procedures necessary to implement the approval of firearms instructors as authorized by the provisions of this subsection. CLEET shall periodically review each approved instructor during a training and qualification course to assure compliance with the rules and course contents. Any violation of the rules may result in the revocation or suspension of CLEET and Oklahoma State Bureau of Investigation approval. Unless the approval has been revoked or suspended, a firearms instructor's CLEET approval shall be for a term of five (5) years. CLEET shall be responsible for notifying all approved firearms instructors of statutory and policy changes related to the Oklahoma Self-Defense Act. A firearms instructor shall not be required to submit his or her fingerprints for a fingerprint search when renewing a firearms instructor's CLEET approval.

C. 1. All firearms instructors approved by CLEET to train and qualify individuals for a handgun license shall be required to apply for registration with the Oklahoma State Bureau of Investigation after receiving CLEET approval. All firearms instructors teaching

1 the approved course for a handgun license must display their
2 registration certificate during each training and qualification
3 course. Each approved firearms instructor shall complete a
4 registration form provided by the Bureau and shall have the option
5 to pay a registration fee of either One Hundred Dollars (\$100.00)
6 for a five-year registration certificate or Two Hundred Dollars
7 (\$200.00) for a ten-year registration certificate to the Bureau at
8 the time of each application for registration, except as provided in
9 paragraph 2 of this subsection. Registration certificates issued by
10 the Bureau shall be valid for a period of five (5) years or ten (10)
11 years from the date of issuance. The Bureau shall issue a five-year
12 or ten-year handgun license to an approved firearms instructor at
13 the time of issuance of a registration certificate and no additional
14 fee shall be required or charged. The Bureau shall maintain a
15 current listing of all registered firearms instructors in this
16 state. Nothing in this paragraph shall be construed to eliminate
17 the requirement for registration and training with CLEET as provided
18 in subsection B of this section. Failure to register or be trained
19 as required shall result in a revocation or suspension of the
20 instructor certificate by the Bureau.

21 2. Registered instructors listed in subparagraphs a and b of
22 this paragraph shall not be required to renew the firearms
23 instructor registration certificate with the Oklahoma State Bureau
24 of Investigation at the expiration of the registration term,

provided the instructor is not subject to any suspension or revocation of the firearms instructor certificate. The firearms instructor registration with the Oklahoma State Bureau of Investigation shall automatically renew together with the handgun license authorized in paragraph 1 of this subsection for an additional five-year term and no additional cost or fee may be charged for the following individuals:

- a. an active duty law enforcement officer of this state or any of its political subdivisions or of the federal government who has a valid CLEET approval as a firearms instructor pursuant to the Oklahoma Self-Defense Act, and
- b. a retired law enforcement officer authorized to carry a firearm pursuant to Section 1289.8 of this title who has a valid CLEET approval as a firearms instructor pursuant to the Oklahoma Self-Defense Act.

D. The Oklahoma State Bureau of Investigation shall approve registration for a firearms instructor applicant who is in full compliance with CLEET rules regarding firearms instructors and the provisions of subsection B of this section, if completion of the federal fingerprint search is the only reason for delay of registration of that firearms instructor applicant. Upon receipt of the federal fingerprint search information, if the Bureau receives information which precludes the person from having a handgun

1 license, the Bureau shall revoke both the registration and the
2 handgun license previously issued to the firearms instructor.

3 E. The required firearms safety and training course and the
4 actual demonstration of competency and qualification required of the
5 applicant shall be designed and conducted in such a manner that the
6 course can be reasonably completed by the applicant within an eight-
7 hour period. CLEET shall establish the course content and
8 promulgate rules, procedures and forms necessary to implement the
9 provisions of this subsection. For the training and qualification
10 course, an applicant may be charged a fee which shall be determined
11 by the instructor or entity that is conducting the course. The
12 maximum class size shall be determined by the instructor conducting
13 the course; provided, however, practice shooting sessions shall not
14 have more than ten participating students at one time. CLEET may
15 establish criteria for assistant instructors and any other
16 requirements deemed necessary to conduct a safe and effective
17 training and qualification course. The course content shall include
18 a safety inspection of the firearm to be used by the applicant in
19 the training course; instruction on pistol handling, safety and
20 storage; dynamics of ammunition and firing; methods or positions for
21 firing a pistol; information about the criminal provisions of the
22 Oklahoma law relating to firearms; the requirements of the Oklahoma
23 Self-Defense Act as it relates to the applicant; self-defense and
24 the use of appropriate force; a practice shooting session; and a

familiarization course. The firearms instructor shall refuse to train or qualify any person when the pistol to be used or carried by the person is either deemed unsafe or unfit for firing or is a weapon not authorized by the Oklahoma Self-Defense Act. The course shall provide an opportunity for the applicant to qualify himself or herself with a pistol; provided, no pistol shall be capable of firing larger than .45 caliber ammunition. Any applicant who successfully trains and qualifies himself or herself with a pistol shall be approved by the firearms instructor on the training certificate. Upon successful completion of the training and qualification course, a certificate of training and a certificate of competency and qualification shall be issued to each applicant who successfully completes the course. The certificate of training and certificate of competency and qualification shall comply with the forms established by CLEET and shall be submitted with an application for a handgun license pursuant to the provisions of paragraph 2 of subsection A of Section 1290.12 of this title. The certificate of training and certificate of competency and qualification issued to an applicant shall be valid for a period of three (3) years.

F. There is hereby created a revolving fund for the Council on Law Enforcement Education and Training (CLEET), to be designated the "Firearms Instructors Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall

1 consist of all funds received for approval of firearms instructors
2 for purposes of the Oklahoma Self-Defense Act. All funds received
3 shall be deposited to the fund. All monies accruing to the credit
4 of the fund are hereby appropriated and may be budgeted and expended
5 by the Council on Law Enforcement Education and Training, for
6 implementation of the training and qualification course contents,
7 approval of firearms instructors and any other CLEET requirement
8 pursuant to the provisions of the Oklahoma Self-Defense Act or as
9 may otherwise be deemed appropriate by CLEET. Expenditures from the
10 fund shall be made upon warrants issued by the State Treasurer
11 against claims filed as prescribed by law with the ~~Director~~ Chief
12 Operating Officer of the Office of Management and Enterprise
13 Services for approval and payment.

14 G. Firearms instructors shall keep on file for a period of not
15 less than three (3) years a roster of each training class, the
16 safety test score of each individual, the caliber and the weapon
17 each individual used when qualifying and whether or not each
18 individual successfully completed the training course. Firearms
19 instructors shall be authorized to destroy all training documents
20 and records upon expiration of the three-year time period.

21 SECTION 146. AMENDATORY 22 O.S. 2021, Section 1368, is
22 amended to read as follows:

23 Section 1368. There is hereby created in the State Treasury a
24 revolving fund for the Oklahoma Indigent Defense System to be

1 designated the "Indigent Defense System Revolving Fund". The fund
2 shall be a continuing fund, not subject to fiscal year limitations,
3 and shall consist of federal funds, grants, gifts and such other
4 funds as are provided by law. All monies accruing to the credit of
5 said fund are hereby appropriated and may be budgeted and expended
6 by the Board to defray expenses relating to the performance of
7 duties imposed upon the Oklahoma Indigent Defense System by law.
8 Expenditures from said fund shall be made upon warrants issued by
9 the State Treasurer against claims filed as prescribed by law with
10 the ~~Director~~ Chief Operating Officer of the Office of Management and
11 Enterprise Services for approval and payment.

12 SECTION 147. AMENDATORY 22 O.S. 2021, Section 1369, is
13 amended to read as follows:

14 Section 1369. There is hereby created in the State Treasury a
15 revolving fund for the Oklahoma Indigent Defense System, to be
16 designated the "Contract Retention Revolving Fund". The fund shall
17 be a continuing fund, not subject to fiscal year limitations, and
18 shall consist of all monies retained by the Indigent Defense System,
19 pursuant to the provisions of Section 1355.8 of this title. All
20 monies accruing to the credit of said fund are hereby appropriated
21 and may be budgeted and expended by the Indigent Defense System for
22 the purpose of making contract payments pursuant to paragraph 2 of
23 subsection G of Section 1355.8 of this title. Expenditures from
24 said fund shall be made upon warrants issued by the State Treasurer

1 against claims filed as prescribed by law with the ~~Director~~ Chief
2 Operating Officer of the Office of Management and Enterprise
3 Services for approval and payment.

4 SECTION 148. AMENDATORY 22 O.S. 2021, Section 1370.1, is
5 amended to read as follows:

6 Section 1370.1. There is hereby created in the State Treasury a
7 revolving fund for the Oklahoma Indigent Defense System, to be
8 designated the "Forensic Testing Revolving Fund". The fund shall be
9 a continuing fund, not subject to fiscal year limitations and shall
10 consist of all funds appropriated by the Legislature to the fund or
11 monies received from any political subdivision of the State of
12 Oklahoma as reimbursements or recovery for forensic testing. All
13 monies accruing to the credit of said fund are hereby appropriated
14 and may be budgeted and expended by the Oklahoma Indigent Defense
15 System for the purpose of providing forensic testing. Expenditures
16 shall be made upon warrants issued by the State Treasurer against
17 claims filed as prescribed by law with the ~~Director~~ Chief Operating
18 Officer of the Office of Management and Enterprise Services for
19 approval and payment.

20 SECTION 149. AMENDATORY 25 O.S. 2021, Section 82.1, is
21 amended to read as follows:

22 Section 82.1. A. The designation and dates of holidays in
23 Oklahoma shall be as follows: Each Saturday, Sunday, New Year's Day
24 on the 1st day of January, Martin Luther King, Jr.'s Birthday on the

1 third Monday in January, Presidents' Day on the third Monday in
2 February, Memorial Day on the last Monday in May, Independence Day
3 on the 4th day of July, Labor Day on the first Monday in September,
4 Veterans' Day on the 11th day of November, Thanksgiving Day on the
5 fourth Thursday in November, the day after Thanksgiving Day,
6 Christmas on the 25th day of December, the day before or after
7 Christmas if Christmas is not on a Saturday or Sunday, the Thursday
8 and Friday before Christmas if Christmas is on a Saturday, the
9 Monday and Tuesday after Christmas, if Christmas is on a Sunday; and
10 if any of such holidays other than Christmas fall on Saturday, the
11 preceding Friday shall be a holiday in that year and if any of such
12 holidays other than Christmas fall on Sunday, the succeeding Monday
13 shall be a holiday in that year.

14 B. The Governor shall issue an Executive Order each year
15 specifying the dates on which the holidays other than Saturdays and
16 Sundays designated in subsection A of this section occur. If the
17 President of the United States declares any day other than those
18 listed in subsection A of this section as a national holiday, the
19 Governor may issue an Executive Order declaring such day a state
20 holiday.

21 C. Any act authorized, required, or permitted to be performed
22 on a holiday as designated in subsection A of this section may be
23 performed on the next succeeding business day, and no liability or
24 loss of rights of any kind shall result from such delay.

1 D. State employees, except for temporary and other limited term
2 employees, shall be entitled to a day off work without loss of pay
3 on those holidays specified in an Executive Order issued by the
4 Governor pursuant to subsection B of this section. Those state
5 employees, except for temporary and other limited term employees,
6 who are required to work on a holiday specified in subsection B of
7 this section shall be entitled to a day off work, without loss of
8 pay, on an alternative date or payment in lieu thereof at the
9 discretion of the appointing authority and in accordance with rules
10 of the ~~Director~~ Chief Operating Officer of the Office of Management
11 and Enterprise Services.

12 E. For the purposes of this section, "holiday" means that
13 agencies whose mission does not require them to be open for business
14 every day of the year shall be closed for official business.

15 SECTION 150. AMENDATORY 25 O.S. 2021, Section 90.19, is
16 amended to read as follows:

17 Section 90.19. A. The Legislature finds that:

18 1. The Congress of the United States has authorized the
19 President to use military force against "nations, organizations, or
20 persons the President determines planned, authorized, committed, or
21 aided the terrorist attacks that occurred on September 11, 2001, or
22 harbored such organizations or persons", Pub. L. 107-40, and has
23 further authorized the President to use military force in order to
24

1 "defend the national security of the United States against the
2 continuing threat posed by Iraq", Pub. L. 107-243;

3 2. Although these policies have resulted in some degree of
4 controversy, it is incontrovertible that the members of the Armed
5 Forces of the United States who have been deployed with respect
6 thereto have served with honor, dignity, and bravery, and that
7 public support for the members of the Armed Forces, and for their
8 families, has been steadfast and unwavering; and

9 3. For as long as members of the Armed Forces are so deployed,
10 such public support must continue and be demonstrated in every way
11 possible.

12 B. Until such time as such use of military force as referenced
13 in subsection A of this section is concluded, whether by
14 Presidential or congressional action, the Governor is directed to
15 order flags of the United States and the State of Oklahoma, on state
16 property, be flown at half-staff on the day of the memorial service
17 for any Oklahoman who lost his or her life while a member of the
18 Armed Forces of the United States.

19 C. On each such day of remembrance, all state agencies,
20 interested organizations, groups, and individuals are authorized and
21 requested to fly the flag of the United States at half-staff. The
22 ~~Director~~ Chief Operating Officer of the Office of Management and
23 Enterprise Services shall cause the provisions of this section to be
24 implemented by all appropriate agencies of state government.

SECTION 151. AMENDATORY 26 O.S. 2021, Section 2-118, is amended to read as follows:

Section 2-118. A. 1. Except as provided by subsection C of this section the secretary of each county election board shall be paid an annual salary to be determined by the following schedule. However, the salary of a county election board secretary shall not fall below the level of the April 30, 2003, salary, and the salary of any person who is reappointed to the position of county election board secretary shall not fall below the salary received in the immediately preceding term, regardless of the number of active registered voters in the county. A county election board secretary shall not receive a salary increase while the county is under the administrative supervision of the State Election Board.

2. Beginning May 1, 2007, and ending April 30, 2019, the annual salary, payable monthly shall be:

Registered Voters	Salary
0 to 10,000	\$22,667.69
10,001 to 15,000	\$23,507.68
15,001 to 17,500	\$27,565.07
17,501 to 25,000	\$30,901.43
25,001 to 50,000	\$37,639.29
50,001 to 75,000	\$47,433.39
75,001 to 150,000	\$53,141.82
150,001 or more	\$58,845.15

3. Beginning May 1, 2019, and ending April 30, 2023, the annual salary, payable monthly shall be:

Registered Voters	Salary
0 to 10,000	\$26,295.00
10,001 to 15,000	\$27,269.00
15,001 to 17,500	\$31,975.00
17,501 to 25,000	\$35,846.00
25,001 to 50,000	\$43,662.00
50,001 to 75,000	\$55,023.00
75,001 to 150,000	\$61,645.00
150,001 or more	\$68,260.00

4. Beginning May 1, 2023, the annual salary, payable monthly shall be:

Registered Voters	Salary
0 to 10,000	\$30,000.00
10,001 to 15,000	\$31,087.00
15,001 to 17,500	\$36,452.00
17,501 to 25,000	\$40,864.00
25,001 to 50,000	\$49,774.00
50,001 to 75,000	\$62,726.00
75,001 to 150,000	\$70,275.00
150,001 or more	\$77,817.00

B. The salary and fringe benefits paid to each secretary shall be paid from county funds on a monthly basis and shall be reimbursed

1 from funds appropriated by the Legislature for that purpose at a
2 rate of not to exceed one hundred thirty-five percent (135%) of the
3 above-specified salaries. Claims for reimbursement shall be filed
4 according to procedures prescribed by the Secretary of the State
5 Election Board and approved by the ~~Director~~ Chief Operating Officer
6 of the Office of Management and Enterprise Services. Claims for
7 reimbursement shall only be paid for actual expenditures made by the
8 county. The number of registered voters, for the purposes of this
9 section, shall be determined by the number of registered voters,
10 excluding inactive voters, in the county on January 1 of each odd-
11 numbered year.

12 C. The provisions of this section shall not preclude a county
13 from providing additional compensation, payable from county funds,
14 to the secretary of the county election board; provided, any such
15 additional compensation shall not be considered part of the
16 secretary's salary, and shall not be reimbursed by the State
17 Election Board.

18 SECTION 152. AMENDATORY 26 O.S. 2021, Section 3-107, is
19 amended to read as follows:

20 Section 3-107. There is hereby created in the State Treasury a
21 revolving fund for the State Election Board to be designated "The
22 State Election Board Revolving Fund." The fund shall consist of
23 monies received by the State Election Board pursuant to statutory
24 provisions, but not including appropriated funds. The revolving

1 fund shall be a continuing fund not subject to fiscal year
2 limitations and shall be under the administrative direction of the
3 Secretary of the State Election Board. Expenditures from said fund
4 shall be made pursuant to the laws of this state and the statutes
5 relating to the said Board without legislative appropriation.
6 Warrants for expenditures from said fund shall be drawn by the State
7 Treasurer, based on claims signed by an authorized employee or
8 employees of the said Board and approved for payment by the ~~Director~~
9 Chief Operating Officer of the Office of Management and Enterprise
10 Services.

11 SECTION 153. AMENDATORY 26 O.S. 2021, Section 3-107.1,
12 is amended to read as follows:

13 Section 3-107.1. There is hereby created in the State Treasury
14 a revolving fund for the Oklahoma State Election Board to be
15 designated the "State Election Board Election System Revolving
16 Fund". The fund shall be a continuing fund, not subject to fiscal
17 year limitations, and shall consist of monies received from federal
18 payments unless otherwise provided by federal law or regulation, or
19 any other source. All monies accruing to the credit of the fund are
20 hereby appropriated and may be budgeted and expended by the State
21 Election Board for authorized purposes. Expenditures from the fund
22 shall be made upon warrants issued by the State Treasurer against
23 claims filed as prescribed by law with the ~~Director~~ Chief Operating
24

1 Officer of the Office of Management and Enterprise Services for
2 approval and payment.

3 SECTION 154. AMENDATORY 26 O.S. 2021, Section 3-107.2,
4 is amended to read as follows:

5 Section 3-107.2. There is hereby created in the State Treasury
6 a revolving fund for the Oklahoma State Election Board to be
7 designated the "State Election Board Help America Vote Act Revolving
8 Fund". The fund shall be a continuing fund, not subject to fiscal
9 year limitations, and shall consist of monies received from federal
10 grants related to the Help America Vote Act of 2002 unless otherwise
11 provided by federal law or regulation, or any other source. All
12 monies accruing to the credit of the fund are hereby appropriated
13 and may be budgeted and expended by the State Election Board for
14 authorized purposes. Expenditures from the fund shall be made upon
15 warrants issued by the State Treasurer against claims filed as
16 prescribed by law with the ~~Director~~ Chief Operating Officer of the
17 Office of Management and Enterprise Services for approval and
18 payment.

19 SECTION 155. AMENDATORY Section 1, Chapter 432, O.S.L.
20 2025 (26 O.S. Supp. 2025, Section 3-107.3), is amended to read as
21 follows:

22 Section 3-107.3. There is hereby created in the State Treasury
23 a revolving fund for the State Election Board to be designated the
24 "State Election Board Voting System Revolving Fund". The fund shall

1 be a continuing fund, not subject to fiscal year limitations, and
2 shall consist of all monies received by the State Election Board
3 from funds appropriated by the Legislature provided for the
4 purchase, installation, maintenance, and security of a unitary,
5 unified, integrated system of election administration for this state
6 as described in Section 21-101 of Title 26 of the Oklahoma Statutes.
7 All monies accruing to the credit of the fund are hereby
8 appropriated and may be budgeted and expended by the State Election
9 Board for the purpose provided for in this section. Expenditures
10 from the fund shall be made upon warrants issued by the State
11 Treasurer against claims filed as prescribed by law with the
12 ~~Director~~ Chief Operating Officer of the Office of Management and
13 Enterprise Services for approval and payment.

14 SECTION 156. AMENDATORY 26 O.S. 2021, Section 8-111, is
15 amended to read as follows:

16 Section 8-111. A. 1. In the event a candidate or individual
17 authorized to request a recount requests a recount of the ballots
18 cast in an election, it must set forth in the petition the precincts
19 and absentee ballots which are to be recounted.

20 2. The petition must be accompanied by either a cashier's check
21 or certified check for each county affected by the petition.

22 3. The candidate or individual may indicate in the petition
23 requesting the recount that the candidate or individual desires to
24 have the ballots recounted manually or by electronic voting devices.

1 Failure by the candidate or individual to state such preference for
2 a manual recount in the petition shall result in a recount by
3 electronic voting devices.

4 4. a. If the candidate or individual requests that the
5 ballots be recounted manually, the petition must be
6 accompanied by a cashier's check or certified check in
7 the amount of Six Hundred Dollars (\$600.00) for each
8 three thousand (3,000) ballots or fraction thereof, to
9 be recounted for each county affected.

10 b. If the candidate or individual requests that the
11 ballots be recounted by electronic device, the
12 petition must be accompanied by a cashier's check or
13 certified check in the amount of Six Hundred Dollars
14 (\$600.00) for the first three thousand (3,000) ballots
15 or fraction thereof and Three Hundred Dollars
16 (\$300.00) for each additional five thousand (5,000)
17 ballots or fraction thereof, to be recounted for each
18 affected county.

19 5. If the petition for a recount is filed with the State
20 Election Board, the petition must be accompanied by a cashier's
21 check in the amount of Three Hundred Dollars (\$300.00) in addition
22 to the amounts required in paragraph 4 of this subsection.

23 6. In elections involving candidates, an additional deposit
24 equal to the total of the deposits required by paragraphs 2, 4 and 5

of this subsection shall be required if the margin between the first-place candidate and second-place candidate is ten percent (10%) or greater. Provided, in a Primary Election involving three or more candidates where a Runoff Primary may be required, and where the margin between the second-place candidate and third-place candidate is less than one percent (1%), or where the first-place candidate is one percent (1%) above or below a majority, then no additional deposit shall be required.

7. For an election involving candidates, the petition shall be filed with the secretary of the election board with whom the candidate filed the candidate's declaration of candidacy, unless otherwise provided for by law. The petition may only be filed by a candidate whose name was printed on the ballot for that office in that election.

8. When such petition is properly filed, it shall be the duty of the secretary of the appropriate election board to order the recount to begin not less than three (3) nor more than ten (10) days from the date of filing of the petition.

9. a. In elections involving candidates, it shall be the duty of such contestant to cause to be served upon the opposing candidate or candidates, and directly affected by the contest, a true copy of the petition and a true copy of the order.

b. Service shall be made in person where possible, within twenty-four (24) hours after the filing of the original petition of contest. Service shall be made by the sheriff of the county as to all offices, except that of sheriff, in which case the same shall be served by the county clerk and the certificate of returns of such sheriff or county clerk, showing the inability to make such service within the above-mentioned time, shall be deemed sufficient proof of the absence of such candidate, or candidates, or the inability to serve such notice upon the candidate, and to justify the constructive service hereafter provided.

c. Where personal service is impossible, within the time, it is hereby made the duty of the contestant to serve true copies upon the secretary of the appropriate election board. Provided that for the purpose of such constructive service, the secretaries of the county election boards are hereby made and constituted the service agents for all contests of elections filed in accordance herewith. By filing declaration of candidacy for election, a candidate shall thereby be conclusively presumed to have accepted the terms and provisions hereof and specifically the aforesaid

constructive service. When constructive service becomes necessary, constructive service shall be made at the date, time and place of the hearing.

B. For elections on issues or questions when no candidate is involved and a majority is required for approval, recounts shall be authorized only when:

1. The margin of votes between those for and those against the issue is one hundred fifty (150) or less when fifteen thousand (15,000) or more total votes are counted for and against the issue or question; or

2. The margin of votes between those for and those against the issue is one percent (1%) or less of the total number of votes cast on the issue when fourteen thousand nine hundred ninety-nine (14,999) or fewer total votes are cast for and against the issue or question.

Provided, furthermore, that a recount is authorized only after an individual, who is a registered voter and who participated in the election, presents to the appropriate county election board a petition signed by one hundred fifty (150) registered voters who participated in the election when fifteen thousand (15,000) or more total votes are counted for and against the question, or if fourteen thousand nine hundred ninety-nine (14,999) or fewer votes are cast for and against the issue, by a number of registered voters who

1 participated in the election equal to one percent (1%) or more of
2 the total votes cast for and against the issue.

3 C. For elections on issues or questions when no candidate is
4 involved and more than a majority is required for approval, recounts
5 shall be authorized only when:

6 1. The margin of votes between those for the issue and the
7 number required for approval is one hundred fifty (150) or less when
8 fifteen thousand (15,000) or more total votes are counted for and
9 against the issue or question; or

10 2. The margin of votes between those for the issue and the
11 number required for approval is one percent (1%) or less of the
12 total number of votes cast on the issue when fourteen thousand nine
13 hundred ninety-nine (14,999) or fewer total votes are cast for and
14 against the issue or question.

15 Provided, furthermore, that a recount is authorized only after an
16 individual, who is a registered voter and who participated in the
17 election, presents to the appropriate county election board a
18 petition signed by one hundred fifty (150) registered voters who
19 participated in the election when fifteen thousand (15,000) or more
20 total votes are counted for and against the question, or if fourteen
21 thousand nine hundred ninety-nine (14,999) or fewer votes are cast
22 for and against the issue, by a number of registered voters who
23 participated in the election equal to one percent (1%) or more of
24 the total votes cast for and against the issue.

1 D. Within twenty-four (24) hours after a petition required in
2 subsections B and C of this section is filed, not counting Saturday,
3 Sunday or legal holidays, the secretary of the county election board
4 who received the petition shall determine, pursuant to rules
5 promulgated by the Secretary of the State Election Board, if the
6 petition contains a sufficient number of valid signatures of
7 registered voters who participated in the election.

8 E. Recounts of issue or question elections shall not be
9 permitted of any statewide election, except as follows:

10 1. The Governor or the Attorney General may request a recount
11 of any state question. The request shall be in the form of a
12 petition prescribed by the Secretary of the State Election Board.
13 The petition shall be filed with the Secretary of the State Election
14 Board no later than the deadline provided in Section 8-109 of this
15 title, and the petition shall be accompanied by a cashier's check or
16 certified check in the amount required by subsection A of this
17 section.

18 2. Subject to available funding, the Secretary of the State
19 Election Board shall order an automatic recount of a state question
20 if:

- 21 a. the margin of votes required for approval is one-half
22 of one percent ($1/2$ of 1%) or less of the total number
23 of votes cast for and against a state question
24 involving a statutory issue or question, and

b. the margin of votes required for approval is one percent (1%) or less of the total number of votes cast for and against a state question involving a constitutional issue or question.

For the purposes of this paragraph, "available funding" shall mean a balance of Two Hundred Fifty Thousand Dollars (\$250,000.00) or more in the State Question Recount Revolving Fund as of the date of the election.

3. Unless otherwise provided in this subsection, the general laws governing recounts shall be applicable to such recounts.

4. The Secretary of the State Election Board shall determine the dates and times each county election board shall begin a recount pursuant to this subsection. Provided, such a recount shall be concluded no later than forty-five (45) days after the date of the election.

5. The Secretary of the State Election Board may prescribe such rules and procedures as may be necessary to implement the provisions of this subsection.

F. There is hereby created in the State Treasury a revolving fund for the State Election Board to be designated the "State Question Recount Revolving Fund". The fund shall consist of monies appropriated by the Legislature.

1. The revolving fund shall be a continuing fund, not subject to fiscal year limitations, provided that at no point shall the

balance in the fund exceed Five Hundred Thousand Dollars (\$500,000.00) and shall be under the administrative direction of the Secretary of the State Election Board. Fees collected each fiscal year in excess of the Five Hundred Thousand Dollars (\$500,000.00) balance limitation shall be placed to the credit of the State Election Board Revolving Fund.

2. Expenditures from the fund shall be limited to:

- a. the costs of the State Election Board directly related to conducting a recount of a state question pursuant to paragraph 2 of subsection E of this section, and
- b. reimbursements to county election boards for costs directly related to conducting a recount of a state question pursuant to paragraph 2 of subsection E of this section.

3. Warrants for expenditures from said fund shall be drawn by the State Treasurer, based on claims signed by employees authorized by the Secretary of the State Election Board and approved for payment by the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services.

4. All interest earned on the balance of funds in the State Question Recount Revolving Fund shall be deposited by the State Treasurer into the fund on a monthly basis.

SECTION 157. AMENDATORY 27A O.S. 2021, Section 1-2-103, is amended to read as follows:

1 Section 1-2-103. There is hereby created in the State Treasury
2 a revolving fund for the Secretary of Energy and Environment or the
3 successor cabinet position having authority over the Department of
4 Environmental Quality to be designated the "Environmental
5 Remediation Revolving Fund". The fund shall be a continuing fund,
6 not subject to fiscal year limitations, and shall consist of all
7 monies received by the Secretary from Natural Resource Damage
8 Assessments on behalf of the state, pursuant to paragraph 4 of
9 subsection A of Section 1-2-101 of Title 27A of the Oklahoma
10 Statutes, that are not designated for deposit to any other fund as
11 authorized by law. All monies accruing to the credit of the fund
12 are hereby appropriated and may be budgeted and expended by the
13 Secretary to perform the duties imposed by law. Expenditures from
14 the fund shall be made upon warrants issued by the State Treasurer
15 against claims filed as prescribed by law with the ~~Director~~ Chief
16 Operating Officer of the Office of Management and Enterprise
17 Services for approval and payment.

18 SECTION 158. AMENDATORY 27A O.S. 2021, Section 1-2-104,
19 is amended to read as follows:

20 Section 1-2-104. There is hereby created in the State Treasury
21 a revolving fund for the Secretary of Energy and Environment or the
22 successor cabinet position having authority over the Department of
23 Environmental Quality to be designated the "Environmental Programs
24 Revolving Fund". The fund shall be a continuing fund, not subject

1 to fiscal year limitations, and shall consist of all monies received
2 by the Secretary from appropriations, fees, charges, penalties, and
3 any other sources that are not designated for deposit to any other
4 fund as authorized by law. All monies accruing to the credit of the
5 fund are hereby appropriated and may be budgeted and expended by the
6 Secretary to perform the duties imposed by law. Expenditures from
7 the fund shall be made upon warrants issued by the State Treasurer
8 against claims filed as prescribed by law with the ~~Director~~ Chief
9 Operating Officer of the Office of Management and Enterprise
10 Services for approval and payment.

11 SECTION 159. AMENDATORY 27A O.S. 2021, Section 2-3-401,
12 is amended to read as follows:

13 Section 2-3-401. A. There is hereby created in the State
14 Treasury a revolving fund for the Department of Environmental
15 Quality to be designated the "Department of Environmental Quality
16 Revolving Fund". The fund shall be a continuing fund, not subject
17 to fiscal year limitations, and shall consist of all monies received
18 by the Department from appropriations, administrative penalties,
19 fees, charges, gifts and monies from any other source that are not
20 designated for deposit to any other fund authorized by this Code.
21 All monies accruing to the credit of said fund are hereby
22 appropriated and may be budgeted and expended by the Department for
23 the purpose of implementing and enforcing this Code. Expenditures
24 from said fund shall be made upon warrants issued by the State

1 Treasurer against claims filed as prescribed by law with the
2 ~~Director~~ Chief Operating Officer of the Office of Management and
3 Enterprise Services for approval and payment.

4 B. Individual subaccounts shall be established in the
5 Department of Environmental Quality Revolving Fund as necessary to
6 maintain the tracking of monies collected and to support the
7 programs and functions within the jurisdiction of the Department.
8 Each subaccount shall consist of all monies collected pursuant to
9 the program or function for which such subaccount has been
10 established and all monies collected for such programs and functions
11 shall be expended only and solely in furtherance of the statutory
12 objectives of such programs and functions. Provided, as otherwise
13 authorized by law, the Department may transfer monies between
14 subaccounts to meet cash flow needs of the Department so long as the
15 monies are transferred back to the appropriate subaccount to be
16 expended on the appropriate programs and functions.

17 C. All revolving fund monies belonging to, deposited in or
18 payable to the State Department of Health or the Oklahoma Water
19 Resources Board for the purpose of administering a program or
20 function over which the Department of Environmental Quality has
21 jurisdiction, are hereby transferred to the appropriate funds of the
22 Department of Environmental Quality. All other monies belonging to,
23 deposited in or payable to any other revolving fund under the
24 jurisdiction of the Department are hereby transferred.

SECTION 160. AMENDATORY 27A O.S. 2021, Section 2-3-403,
is amended to read as follows:

Section 2-3-403. There is hereby created in the State Treasury a revolving fund for the Department of Environmental Quality to be designated the "Environmental Trust Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of monies collected pursuant to the provisions of Section 354 of Title 17 of the Oklahoma Statutes for deposit in the Environmental Trust Revolving Fund and monies received in the form of gifts, grants, reimbursements, and from any other source specified for the purposes specified by this section. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Department of Environmental Quality for matching federal funds available for environmental remediation and cleanup. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 161. AMENDATORY Section 1, Chapter 438, O.S.L. 2024 (27A O.S. Supp. 2025, Section 2-3-404), is amended to read as follows:

Section 2-3-404. A. There is hereby created in the State Treasury a revolving fund for the Department of Environmental

1 Quality to be designated the "Blue River-Little Blue Creek Stream
2 Health Assessment Study Revolving Fund". The fund shall be a
3 continuing fund, not subject to fiscal year limitations, and shall
4 consist of all monies received by the Department from
5 appropriations, apportionments, donations, and federal grants
6 received for the purpose of completing the study created pursuant to
7 subsection B of this section. All monies accruing to the credit of
8 the fund are hereby appropriated and may be budgeted and expended by
9 the Department for the purpose provided for in this section.
10 Expenditures from the fund shall be made upon warrants issued by the
11 State Treasurer against claims filed as prescribed by law with the
12 ~~Director~~ Chief Operating Officer of the Office of Management and
13 Enterprise Services for approval and payment.

14 B. Pursuant to the requirements of Section 1-3-101 of Title 27A
15 of the Oklahoma Statutes as it relates to waters emanating from a
16 sensitive sole source aquifer, the Department shall establish and
17 perform a Blue River-Little Blue Creek Stream Health Assessment
18 Study. The Department shall coordinate with a research university
19 for the purpose of defining the study scope and conducting work
20 necessary to complete data collection and the development of the
21 Blue River-Little Blue Creek Stream Health Assessment Study. The
22 Department shall preference resources and partnerships within this
23 state during evaluation for the performance of conducting this
24

1 study. The Department may coordinate with other relevant state and
2 federal agencies to effectuate the provisions of this section.

3 SECTION 162. AMENDATORY 27A O.S. 2021, Section 2-7-304,
4 is amended to read as follows:

5 Section 2-7-304. A. There is hereby created in the State
6 Treasury a special fund for the Department to be designated as the
7 "Hazardous Waste Fund". This fund shall consist of monies
8 transferred to it from funds appropriated to the Department for this
9 purpose and from other sources as provided by law. The fund shall
10 be a continuing fund not subject to fiscal year limitations.
11 Expenditures from the Hazardous Waste Fund shall be made upon
12 warrants issued by the State Treasurer against claims submitted to
13 the ~~Director~~ Chief Operating Officer of the Office of Management and
14 Enterprise Services for approval and payment. The fund shall be for
15 the purpose of protecting public health and safety as prescribed in
16 the Hazardous Waste Management Act and for providing basic emergency
17 response training and protective equipment and for response or
18 remediation activities authorized in subsection F of Section 2-7-121
19 of this title. The Department is authorized, upon the request of a
20 municipality or county, to assist such municipality or county in the
21 development of emergency response plans. The fund shall be under
22 the control and management of the administrative authority of the
23 Department. Pursuant to the provisions of the Hazardous Waste Fund
24 Act, the Department is authorized to determine the manner in which

1 such fund is to be used. The Department of Public Safety and the
2 Department of Civil Emergency Management are authorized and directed
3 to assist and cooperate with the Department in the performance of
4 its duties under the Hazardous Waste Fund Act.

5 B. Hazardous waste fees paid into the Department of
6 Environmental Quality Revolving Fund pursuant to the Hazardous Waste
7 Management Act may be transferred to the Hazardous Waste Fund.

8 SECTION 163. AMENDATORY 27A O.S. 2021, Section 3-2-106a,
9 is amended to read as follows:

10 Section 3-2-106a. There is hereby created in the State Treasury
11 a revolving fund for the Oklahoma Conservation Commission to be
12 designated the "Conservation Commission Revolving Fund (#405)". The
13 fund shall be a continuing fund, not subject to fiscal year
14 limitations, and shall consist of all monies received by the
15 Conservation Commission from appropriations, fees, charges,
16 penalties, and any other sources that are not designated for deposit
17 to any other fund as authorized by law. All monies accruing to the
18 credit of said fund are hereby appropriated and may be budgeted and
19 expended by the Conservation Commission to perform the duties
20 imposed by the Commission by law. Expenditures from said fund shall
21 be made upon warrants issued by the State Treasurer against claims
22 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
23 of the Office of Management and Enterprise Services for approval and
24 payment.

SECTION 164. AMENDATORY 27A O.S. 2021, Section 3-2-106b,
is amended to read as follows:

Section 3-2-106b. There is hereby created in the State Treasury a revolving fund for the Oklahoma Conservation Commission to be designated the "Conservation Commission Tar Creek Mine Reclamation Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Conservation Commission from appropriations, fees, charges, penalties, federal grants and any other sources including interest earned from the income in the fund that are designated for deposit to such fund or designated for duties associated with the Tar Creek superfund project. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Conservation Commission to perform the duties imposed on the Commission by law. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 165. AMENDATORY 27A O.S. 2021, Section 3-2-109,
is amended to read as follows:

Section 3-2-109. There is hereby created in the State Treasury a revolving fund for the Oklahoma Conservation Commission, to be designated the "Concentrated Animal Feeding Operation Revolving

Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of cost-share monies received by the Commission from the Concentrated Animal Feeding Operation Program. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Commission for the general operation of the Commission. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 166. AMENDATORY 27A O.S. 2021, Section 3-2-110, is amended to read as follows:

Section 3-2-110. A. There is hereby created in the State Treasury a revolving fund for the Oklahoma Conservation Commission to be designated the "Oklahoma Conservation Commission Infrastructure Revolving Fund".

B. The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Oklahoma Conservation Commission from the apportionment of gross production tax revenues as prescribed by Section 1004 of Title 68 of the Oklahoma Statutes.

C. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Oklahoma Conservation Commission for the purpose of the rehabilitation of

1 watershed dams and, for the Conservation Cost Share Program and the
2 Conservation Reserve Enhancement Program.

3 D. Expenditures from said fund shall be made upon warrants
4 issued by the State Treasurer against claims filed as prescribed by
5 law with the ~~Director~~ Chief Operating Officer of the Office of
6 Management and Enterprise Services for approval and payment.

7 E. No more than thirty percent (30%) of the monies in the fund
8 shall be used for the payment of administrative expenses, salary or
9 any other continuing obligation of the Oklahoma Conservation
10 Commission; provided, however, such monies shall not be used for
11 salary increases for employees.

12 SECTION 167. AMENDATORY 27A O.S. 2021, Section 3-3-115,
13 is amended to read as follows:

14 Section 3-3-115. A. There is hereby created within the State
15 Treasury a cost-share fund for the Oklahoma Conservation Commission
16 to be designated the "Conservation Cost-Share Fund". The fund shall
17 be a continuing fund, not subject to fiscal year limitations, and
18 shall consist of all monies received by the Conservation Commission
19 to implement and maintain the conservation cost-share program.

20 B. The Conservation Cost-Share Fund shall consist of:

21 1. Money received by the Conservation Commission in the form of
22 gifts, grants, reimbursements, donations, industry contributions,
23 state appropriations, funds allocated by federal agencies for cost-
24 share programs and such other monies specifically designated for the

1 cost-share program. All monies accruing to the credit of said fund
2 are hereby appropriated and may be budgeted and expended by the
3 Commission for the conservation cost-share program; and

4 2. Interest attributable to investment of money in the
5 Conservation Cost-Share Fund.

6 C. All donations or other proceeds received by the Commission
7 pursuant to the provisions of this section shall be deposited with
8 the State Treasurer to be credited to the Conservation Cost-Share
9 Fund. Expenditures from the fund shall be made upon warrants issued
10 by the State Treasurer against claims filed as prescribed by law
11 with the ~~Director~~ Chief Operating Officer of the Office of
12 Management and Enterprise Services for approval and payment.

13 D. The monies deposited in the Conservation Cost-Share Fund
14 shall at no time become part of the general budget of the
15 Conservation Commission or any other state agency. Except for any
16 administration costs incurred in development and implementation of
17 the cost-share program, no monies from the fund shall be transferred
18 for any purpose to any other state agency or any account of the
19 Conservation Commission or be used for the purpose of contracting
20 with any other state agency or reimbursing any other state agency
21 for any expense.

22 SECTION 168. AMENDATORY 27A O.S. 2021, Section 3-3-406,
23 is amended to read as follows:
24

1 Section 3-3-406. The Small Watersheds Flood Control Fund shall
2 be under the control and supervision of the Oklahoma Conservation
3 Commission and shall be paid on its itemized form which shall be
4 audited by the said board and, upon final approval, vouchers which
5 are payable from said fund shall be forwarded to the ~~Director~~ Chief
6 Operating Officer of the Office of Management and Enterprise
7 Services, who shall audit the same and, upon approval thereof,
8 warrants shall be issued according to law, and said warrants shall
9 be paid by the State Treasurer from the said fund.

10 SECTION 169. AMENDATORY 27A O.S. 2021, Section 3-3-502,
11 is amended to read as follows:

12 Section 3-3-502. A. There is hereby created in the State
13 Treasury a revolving fund for the Oklahoma Conservation Commission
14 to be designated the "Oklahoma Conservation Commission Municipal
15 Infrastructure Cost-Share Revolving Fund".

16 B. The fund shall be a continuing fund, not subject to fiscal
17 year limitations, and shall consist of all monies received by the
18 Oklahoma Conservation Commission in the form of gifts, grants,
19 reimbursements, donations, industry contributions, state
20 appropriations, funds allocated by federal agencies for cost-share
21 programs and such other monies specifically designated for the
22 Oklahoma Conservation Commission Municipal Infrastructure Cost-Share
23 Program. All monies accruing to the credit of said fund are hereby
24

1 appropriated and may be budgeted and expended by the Commission for
2 the Municipal Infrastructure Conservation Cost-Share Program; and
3 interest attributable to investment of money in the Oklahoma
4 Conservation Commission Municipal Infrastructure Cost-Share
5 Revolving Fund.

6 C. All donations or other proceeds received by the Commission
7 pursuant to the provisions of this section shall be deposited with
8 the State Treasurer to be credited to the Oklahoma Conservation
9 Commission Municipal Infrastructure Cost-Share Revolving Fund.

10 Expenditures from the fund shall be made upon warrants issued by the
11 State Treasurer against claims filed as prescribed by law with the
12 ~~Director~~ Chief Operating Officer of the Office of Management and
13 Enterprise Services for approval and payment.

14 D. All monies accruing to the credit of said fund are hereby
15 appropriated and may be budgeted and expended by the Oklahoma
16 Conservation Commission for the purpose of matching municipal or
17 rural water district funds for the rehabilitation of watershed dams
18 and for the Conservation Cost-Share Program and the Conservation
19 Reserve Enhancement Program pursuant to the Oklahoma Conservation
20 Commission Municipal Infrastructure Cost-Share Program.

21 E. Expenditures from the fund shall be made upon warrants
22 issued by the State Treasurer against claims filed as prescribed by
23 law with the ~~Director~~ Chief Operating Officer of the Office of
24 Management and Enterprise Services for approval and payment.

1 F. No more than five percent (5%) of the monies in the fund
2 shall be used for the payment of administrative expenses, salary or
3 any other continuing obligation of the Oklahoma Conservation
4 Commission.

5 SECTION 170. AMENDATORY Section 11, Chapter 247, O.S.L.
6 2025 (27A O.S. Supp. 2025, Section 3-5-109), is amended to read as
7 follows:
8

9 Section 3-5-109. A. There is hereby created in the State
10 Treasury a revolving fund for the Corporation Commission to be
11 designated the "Class VI Carbon Sequestration Storage Facility
12 Revolving Fund". The fund shall be a continuing fund, not subject
13 to fiscal year limitations, and shall consist of all monies received
14 by the Commission from fines and fees paid to the Corporation
15 Commission pursuant to Sections 9 and 10 of this act. All monies
16 accruing to the credit of the fund are hereby appropriated and may
17 be budgeted and expended by the Commission for the purpose provided
18 for in this section. Expenditures from the fund shall be made upon
19 warrants issued by the State Treasurer against claims filed as
20 prescribed by law with the ~~Director~~ Chief Operating Officer of the
21 Office of Management and Enterprise Services for approval and
22 payment.

23 B. If a CO₂ sequestration facility or a CO₂ storage unit as a
24 part of a CO₂ sequestration facility at any time deposits more than

Five Million Dollars (\$5,000,000.00) to the fund, the fee assessments to that facility or unit shall cease until such time as funds begin to be expended for that facility or unit. The State Treasurer shall certify to the Corporation Commission the date on which the balance in the fund for a facility or unit equals or exceeds Five Million Dollars (\$5,000,000.00). On and after the first day of the second month following the certification, fees shall not be collected from such facility or unit; provided, fee collection shall resume on receipt of a certification by the State Treasurer that, based on the expenditures and commitments to expend monies, the fund has fallen below Four Million Dollars (\$4,000,000.00) of funds collected from that facility.

C. Expenditures from the fund may be used to:

1. Remediate any issues associated with, arising from, or related to the site, including remediation of property, site infrastructure, and any mechanical problems associated with the remaining wells;

2. Fund research and development in connection with carbon sequestration technologies and methods;

3. Monitor any remaining surface facilities and wells;

4. Repair any mechanical leaks at the storage facility;

5. Hire outside legal counsel as needed to effectuate the provisions of this act;

6. Plug remaining injection wells, except for those wells to be used as observation wells; and

7. Contract for assistance with permit or application review.

D. Not later than November 1 annually, the Corporation Commission shall furnish an electronic report to the Secretary of Energy and Environment, the President Pro Tempore of the Senate, and the Speaker of the House of Representatives. The report shall address the administration of funds, fund balances, expenditures made, and any other information deemed necessary by the Corporation Commission.

E. Not later than November 1, 2030, and every five (5) years thereafter, the Corporation Commission shall furnish an electronic report to the President Pro Tempore of the Senate and the Speaker of the House of Representatives assessing the effectiveness of the fund and other related provisions within this act. The Corporation Commission shall provide such other information as may be requested by the Legislature.

SECTION 171. AMENDATORY Section 3, Chapter 146, O.S.L. 2025 (27A O.S. Supp. 2025, Section 3-7-113), is amended to read as follows:

Section 3-7-113. There is hereby created in the State Treasury a revolving fund for the Oklahoma Conservation Commission to be designated the "Spring Creek Watershed Study Cash Fund Revolving Fund". The fund shall be a continuing fund, not subject to fiscal

1 year limitations, and shall consist of all monies received by the
2 Commission from appropriations by the Legislature to the fund, and
3 any money received as gifts, grants, or other contributions from
4 public or private sources provided for the purpose of implementing
5 the Spring Creek Watershed Study Act. All monies accruing to the
6 credit of the fund are hereby appropriated and may be budgeted and
7 expended by the Commission for the purpose provided for in this act.
8 Expenditures from the fund shall be made upon warrants issued by the
9 State Treasurer against claims filed as prescribed by law with the
10 ~~Director~~ Chief Operating Officer of the Office of Management and
11 Enterprise Services for approval and payment.

12 SECTION 172. AMENDATORY Section 3, Chapter 372, O.S.L.
13 2023 (27A O.S. Supp. 2025, Section 3-8-103), is amended to read as
14 follows:

15 Section 3-8-103. There is hereby created in the State Treasury
16 a revolving fund for the Oklahoma Conservation Commission to be
17 designated the "North Canadian Watershed Restoration Revolving
18 Fund". The fund shall be a continuing fund, not subject to fiscal
19 year limitations, and shall consist of all monies received by the
20 Conservation Commission from appropriations, federal grants or
21 funds, municipal contributions, private contributions, and any other
22 sources, including interest earned from the income in the fund, that
23 are designated for deposit to such fund or designated for duties
24 associated with harmful woody species removal from the North

1 Canadian Watershed. All monies accruing to the credit of said fund
2 are hereby appropriated and may be budgeted and expended by the
3 Conservation Commission to perform the duties imposed on the
4 Commission by law. Expenditures from said fund shall be made upon
5 warrants issued by the State Treasurer against claims filed as
6 prescribed by law with the ~~Director~~ Chief Operating Officer of the
7 Office of Management and Enterprise Services for approval and
8 payment.

9 SECTION 173. AMENDATORY 29 O.S. 2021, Section 3-302, is
10 amended to read as follows:

11 Section 3-302. A. There is hereby created in the State
12 Treasury a revolving fund to be known as the Wildlife Conservation
13 Fund, which shall consist of all monies heretofore or hereafter
14 appropriated to, on deposit in, or credited to the State Game and
15 Fish Fund created by Section 115 of Title 29 of the 1951 Oklahoma
16 Statutes, and, in addition thereto, all license fees, penalties,
17 fines or forfeitures and bond forfeitures collected by the state,
18 any subdivision thereof, any public official or any other person for
19 the violation of the wildlife conservation laws of this state, and
20 all donations for such purposes as well as all monies received by
21 the Department and all interest accruing therefrom. All monies
22 accruing to the fund shall be subject to the following budgetary
23 limitations:

- 24 1. Full-time-equivalent employees;

2. Personal services expenditures;

3. Federal fund expenditures; and

4. Total expenditures.

B. The expenditures of the Wildlife Conservation Fund shall be under the control and supervision of the Commission, and all claims against said fund shall be paid on its itemized voucher form, prepared by said Commission and sworn to by the claimant, and/or vendor's invoices as authorized under Section 86.1, Title 74 of the Oklahoma Statutes. All such claims when duly signed and sworn to shall be audited by the Commission and/or designated employees and, upon final approval, vouchers which are payable from said fund shall be forwarded to the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services. Upon approval thereof, warrants shall issue according to law, and said warrants shall be paid by the State Treasurer from said fund. A reserve fund of not less than One Hundred Thousand Dollars (\$100,000.00) shall be maintained to be used in emergencies only, by and with the consent of the Governor, and an additional reserve fund of not less than Two Hundred Thousand Dollars (\$200,000.00) shall be maintained for the liquidation of unissued licenses purchased by authorized agents for sale which have remained unsold when such unissued licenses are returned for refunds as provided for by law.

C. All fees, monies or funds arising from the operation and transactions of the Commission and from the application and

1 administration of the laws and regulations pertaining to the
2 wildlife resources of the state and from the sale of property used
3 for said purposes shall be expended and used by said Commission for
4 the control, management, restoration, conservation and regulation of
5 the wildlife resources of the state, including the purchase or other
6 acquisition of property for said purposes, and for the
7 administration of the laws pertaining thereto and for no other
8 purposes.

9 SECTION 174. AMENDATORY 29 O.S. 2021, Section 3-310, is
10 amended to read as follows:

11 Section 3-310. A. The Oklahoma Tax Commission shall include on
12 each state individual income tax return form for tax years beginning
13 after December 31, 2001, and each state corporate tax return form
14 for tax years beginning after December 31, 2001, an opportunity for
15 the taxpayer to donate from a tax refund for the benefit of the
16 Oklahoma Wildlife Diversity Program.

17 B. For purposes of this section, "nongame wildlife" means any
18 species of wildlife not legally classified as a game species or
19 furbearer by statute or by rule adopted pursuant to statute.

20 C. Except as otherwise provided for in this section, all monies
21 generated pursuant to subsection A of this section shall be paid to
22 the State Treasurer and placed to the credit of the Wildlife
23 Diversity Fund.

1 D. There is hereby created in the State Treasury a revolving
2 fund for the Oklahoma Wildlife Conservation Commission to be
3 designated the "Wildlife Diversity Fund". The fund shall be a
4 continuing fund, not subject to fiscal year limitations, and shall
5 consist of all monies received under the provisions of subsection C
6 of this section by the Oklahoma Wildlife Conservation Commission.
7 The Oklahoma Wildlife Conservation Commission is hereby authorized
8 to invest all or part of the monies of said fund in any investment
9 permitted by a written investment policy adopted by the Wildlife
10 Conservation Commission; provided, all investments shall be made in
11 accordance with the Oklahoma Uniform Prudent Investor Act. Any
12 interest or dividends accruing from such investments shall be
13 deposited in the Wildlife Diversity Fund. All monies accruing to
14 the credit of said fund are hereby appropriated and may be budgeted
15 and expended by the Oklahoma Wildlife Conservation Commission for
16 the purpose of preserving, protecting, perpetuating and enhancing
17 nongame wildlife in this state. Any monies withdrawn from said fund
18 by the Oklahoma Wildlife Conservation Commission for investment
19 pursuant to this section shall be deemed to be for the purpose of
20 preserving, protecting, perpetuating and enhancing nongame wildlife
21 in this state. Expenditures from said fund shall be made upon
22 warrants issued by the State Treasurer against claims filed as
23 prescribed by law with the ~~Director~~ Chief Operating Officer of the
24

Office of Management and Enterprise Services for approval and payment.

E. If a taxpayer makes a donation pursuant to subsection A of this section in error, such taxpayer may file a claim for refund at any time within three (3) years from the due date of the tax return. Such claims shall be filed pursuant to the provisions of Section 2373 of Title 68 of the Oklahoma Statutes and, if allowed, shall be paid pursuant to the provisions of said section. Prior to the apportionment set forth in subsection C of this section, an amount equal to the total amount of refunds made pursuant to this subsection during any one (1) year shall be deducted from the total donations received pursuant to this section during the following year and such amount deducted shall be paid to the State Treasurer and placed to the credit of the Income Tax Withholding Refund Account.

F. Pursuant to Section 2368.18 of Title 68 of the Oklahoma Statutes, the income tax checkoff contained in this section is hereby reauthorized effective January 1, 2022.

SECTION 175. AMENDATORY 29 O.S. 2021, Section 3-313, is amended to read as follows:

Section 3-313. There is hereby created within the Wildlife Conservation Fund an account designated as the "Law Enforcement Officer Training Account". The account shall consist of monies designated for deposit to the account by law. All monies accruing

1 to the credit of said account shall be budgeted and expended by the
2 Department of Wildlife Conservation for the training of law
3 enforcement officers employed by the Department. Expenditures from
4 the account shall be made upon warrants issued by the State
5 Treasurer against claims filed as prescribed by law with the
6 ~~Director~~ Chief Operating Officer of the Office of Management and
7 Enterprise Services for approval and payment.

8 SECTION 176. AMENDATORY 29 O.S. 2021, Section 4-132, is
9 amended to read as follows:

10 Section 4-132. A. The Department of Wildlife Conservation is
11 hereby authorized to issue an Oklahoma Wildlife Habitat Stamp to any
12 person upon the voluntary payment of a fee of Ten Dollars (\$10.00).
13 Said fee shall be deposited in the Wildlife Land Acquisition Fund
14 created in subsection C of this section.

15 B. The Oklahoma Wildlife Conservation Commission shall
16 promulgate rules specifying the form, design, and manner of issuance
17 of said wildlife habitat stamp.

18 C. There is hereby created in the State Treasury a revolving
19 fund for the Oklahoma Wildlife Conservation Commission to be
20 designated the "Wildlife Land Acquisition Fund". The fund shall be
21 a continuing fund, not subject to fiscal year limitations, and shall
22 consist of all monies received pursuant to the provisions of this
23 section by the Oklahoma Wildlife Conservation Commission. The
24 Oklahoma Wildlife Conservation Commission is hereby authorized to

1 invest all or part of the monies of said fund in any investment
2 permitted by a written investment policy adopted by the Wildlife
3 Conservation Commission; provided, all investments shall be made in
4 accordance with the Oklahoma Uniform Prudent Investor Act. Any
5 interest or dividends accruing from such investments shall be
6 deposited in the Wildlife Land Acquisition Fund. All monies
7 accruing to the credit of said fund are hereby appropriated and may
8 be budgeted and expended by the Oklahoma Wildlife Conservation
9 Commission for the purposes specified in subsection D of this
10 section. Any monies withdrawn from said fund by the Oklahoma
11 Wildlife Conservation Commission for investment pursuant to this
12 subsection shall be deemed to be for the purposes specified in
13 subsection D of this section. Expenditures from said fund shall be
14 made upon warrants issued by the State Treasurer against claims
15 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
16 of the Office of Management and Enterprise Services for approval and
17 payment.

18 D. The Wildlife Land Acquisition Fund shall be used by the
19 Oklahoma Wildlife Conservation Commission for the acquisition on a
20 willing-seller willing-buyer basis only, leasing, taking of
21 easements, development, management, and enhancement of lands
22 acquired pursuant to this section for the following purposes:
23
24

1 1. Management of game animals, protected animals and birds,
2 furbearing animals, game birds, fish, and their restoration,
3 propagation, and protection; and

4 2. Creation and management of public hunting, fishing, and
5 trapping areas as places where the public may hunt, fish, or trap as
6 authorized by law.

7 E. The Oklahoma Wildlife Conservation Commission may accept
8 private contributions, grants, and donations made for the purposes
9 of this section. Any monies received pursuant to this subsection
10 shall be deposited in the Wildlife Land Acquisition Fund created in
11 subsection C of this section. Any property received pursuant to
12 this subsection which is not suitable for the purposes of this
13 section may be sold by the Oklahoma Wildlife Conservation Commission
14 and the proceeds from such sales shall be deposited in the Wildlife
15 Land Acquisition Fund created in subsection C of this section.

16 F. Whenever the Oklahoma Wildlife Conservation Commission
17 acquires title to land pursuant to this section, the Commission
18 shall annually make in lieu of tax payments equal to the average ad
19 valorem tax per acre paid on similar land in that county. Said
20 payments shall be made to the county treasurer of the county in
21 which the land is located.

22 SECTION 177. AMENDATORY 29 O.S. 2021, Section 4-134, is
23 amended to read as follows:

1 Section 4-134. A. There is hereby created in the State
2 Treasury a revolving fund for the Oklahoma Wildlife Conservation
3 Commission to be designated the "Wildlife Heritage Fund". The fund
4 shall be a continuing fund, not subject to fiscal year limitations,
5 and shall consist of all monies received from senior citizen
6 lifetime licenses issued pursuant to the provisions of paragraphs 4
7 through 6 of subsection B of Section 4-114 of this title by the
8 Oklahoma Wildlife Conservation Commission. The Oklahoma Wildlife
9 Conservation Commission is hereby authorized to invest all or part
10 of the monies of said fund in any investment permitted by a written
11 investment policy adopted by the Wildlife Conservation Commission;
12 provided, all investments shall be made in accordance with the
13 Oklahoma Uniform Prudent Investor Act. Any interest or dividends
14 accruing from such investments shall be deposited in the Wildlife
15 Heritage Fund. Only interest and dividends derived from the
16 principle can be expended and are hereby appropriated and may be
17 budgeted and expended by the Oklahoma Wildlife Conservation
18 Commission for the purposes specified in subsection B of this
19 section. Any monies withdrawn from said fund by the Oklahoma
20 Wildlife Conservation Commission for investment pursuant to this
21 subsection shall be deemed to be for the purposes specified in
22 subsection B of this section. Expenditures from said fund shall be
23 made upon warrants issued by the State Treasurer against claims
24 filed as prescribed by law with the ~~Director~~ Chief Operating Officer

1 of the Office of Management and Enterprise Services for approval and
2 payment.

3 B. The Wildlife Heritage Fund shall be used by the Oklahoma
4 Wildlife Conservation Commission for the acquisition of land on a
5 willing-seller willing-buyer basis only, leasing of land, and the
6 taking of easements, and for the development, management, and
7 enhancement of such lands acquired pursuant to this section for the
8 following purposes:

9 1. Management of game animals, protected animals and birds,
10 furbearing animals, game birds, fish, and their restoration,
11 propagation, and protection; and

12 2. Creation and management of public hunting, fishing, and
13 trapping areas as places where the public may hunt, fish, or trap as
14 authorized by law.

15 C. The Oklahoma Wildlife Conservation Commission may accept
16 private contributions, grants, and donations made for the purposes
17 of this section. Any monies received pursuant to this subsection
18 shall be deposited in the Wildlife Heritage Fund created in
19 subsection A of this section. Any property received pursuant to
20 this subsection which is not suitable for the purposes of this
21 section may be sold by the Oklahoma Wildlife Conservation Commission
22 and the proceeds from such sales shall be deposited in the Wildlife
23 Heritage Fund created in subsection A of this section.

1 D. Whenever the Oklahoma Wildlife Conservation Commission
2 acquires title to land pursuant to this section, the Commission
3 shall annually make in lieu of tax payments equal to the average ad
4 valorem tax per acre paid on similar land in that county. Said
5 payments shall be made to the county treasurer of the county in
6 which the land is located to be distributed by said county treasurer
7 in the manner provided for by law for ad valorem tax payments.

8 SECTION 178. AMENDATORY 36 O.S. 2021, Section 307.3, is
9 amended to read as follows:

10 Section 307.3. A. Effective July 1, 2009, there is hereby
11 created in the State Treasury a revolving fund for the Insurance
12 Commissioner called the State Insurance Commissioner Revolving Fund.
13 The revolving fund shall be used to fund the operations of the
14 Office of the Insurance Commissioner.

15 1. Notwithstanding any other law to the contrary, the revolving
16 fund shall consist of and consolidate all funds that are or have
17 been paid or collected by the Insurance Commissioner pursuant to the
18 laws of this state and the rules of the Insurance Department except
19 that the revolving fund shall not include:

- 20 a. premium taxes,
- 21 b. monies transferred to the Attorney General's Insurance
22 Fraud Unit Revolving Fund pursuant to Section 362 of
23 this title,

- c. funds paid to and collected pursuant to the Oklahoma Certified Real Estate Appraisers Act, Sections 858-700 through 858-732 of Title 59 of the Oklahoma Statutes,
- d. health carrier access payments paid to and collected by the Insurance Commissioner and deposited into the Health Carrier Access Payment Revolving Fund,
- e. recoveries obtained as a result of insurance-related crimes, and other fines, late fees, and penalties assessed and collected, and
- f. monies collected for or received from the Workers' Compensation Commission.

2. The revolving fund shall be a continuing fund, not subject to fiscal year limitations. Expenditures from the revolving fund shall be made pursuant to the laws of this state and the statutes relating to the Insurance Department. Warrants for expenditures from the revolving fund shall be drawn by the State Treasurer, based on claims signed by an authorized employee or employees of the Insurance Department and filed with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services.

B. All funds collected by the Insurance Commissioner shall be paid into the State Treasury weekly.

C. After the effective date of this act, the State Treasury is authorized and directed to deduct from the funds paid or collected by the Insurance Commissioner a sum equal to seventy-six and one-

half percent (76.5%) of the payment and place the same to the credit of the General Revenue Fund of the state. The State Treasurer shall place to the credit of the State Insurance Commissioner Revolving Fund the remainder of the funds so paid and collected by the Insurance Commissioner.

SECTION 179. AMENDATORY 36 O.S. 2021, Section 307.5, is amended to read as follows:

Section 307.5. A. There is hereby created in the State Treasury a revolving fund for the Oklahoma Insurance Department, to be designated the "Insurance Department Anti-Fraud Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitation, and shall consist of any monies designated to the fund as provided in subsections B and C of this section. Warrants for expenditures from the revolving fund shall be drawn by the State Treasurer, based on claims signed by an authorized employee or employees of the Insurance Department and filed with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services. The fund shall be used for the purpose of administering investigations of abuse, negligence or criminal conduct regarding insurance laws or regulations.

B. The Department shall deposit all of the monies obtained as a result of insurance-related crimes, and other fines, late fees, and penalties assessed and collected into the Insurance Department Anti-Fraud Revolving Fund.

1 C. Each year, the Department shall transfer to the General
2 Revenue Fund the first Four Hundred Eighty-two Thousand Five Hundred
3 Dollars (\$482,500.00) collected by the Department and deposited in
4 the Insurance Department Anti-Fraud Revolving Fund. The next Five
5 Hundred Thousand Dollars (\$500,000.00) collected by the Department
6 each year shall be divided evenly between the Department and the
7 Oklahoma Attorney General. All collections to be submitted to the
8 Attorney General shall be deposited in the Attorney General's
9 Insurance Fraud Unit Revolving Fund. Any collections above Nine
10 Hundred Eighty-two Thousand Five Hundred Dollars (\$982,500.00) shall
11 be deposited each year into the Insurance Department Anti-Fraud
12 Revolving Fund and shall be retained for use by the Department for
13 the purposes of administering investigations of abuse, negligence or
14 criminal conduct regarding insurance laws or regulations.

15 SECTION 180. AMENDATORY Section 1, Chapter 6, O.S.L.
16 2022, as amended by Section 1, Chapter 67, O.S.L. 2022 (36 O.S.
17 Supp. 2025, Section 307.6), is amended to read as follows:

18 Section 307.6. A. There is hereby created in the State
19 Treasury a revolving fund for the Insurance Department, to be
20 designated the "Insurance Department Pharmacy Benefits Manager
21 Revolving Fund". The fund shall be a continuing fund, not subject
22 to fiscal year limitation, and shall consist of any monies deposited
23 to the fund as provided in subsection B of this section. All monies
24 accruing to the credit of the fund are hereby appropriated and may

1 be budgeted and expended by the Department for the purpose of
2 licensing, regulating and investigating abuse, negligence, criminal
3 conduct, or other violations of insurance laws and regulations, and
4 ensuring compliance with the same. Warrants for expenditures from
5 the revolving fund shall be drawn by the State Treasurer, based on
6 claims signed by an authorized employee or employees of the
7 Insurance Department, and filed with the ~~Director~~ Chief Operating
8 Officer of the Office of Management and Enterprise Services.

9 B. The Department shall deposit all the monies obtained from
10 the licensure and regulation of pharmacy benefits managers
11 including, but not limited to, any fees, fines, settlement or
12 consent order proceeds, or other penalties assessed and collected
13 into the Insurance Department Pharmacy Benefits Manager Revolving
14 Fund created in subsection A of this act.

15 SECTION 181. AMENDATORY Section 6, Chapter 293, O.S.L.
16 2024 (36 O.S. Supp. 2025, Section 976), is amended to read as
17 follows:

18 Section 976. A. There is hereby created in the State Treasury
19 a revolving fund for the Insurance Department, to be designated the
20 "Strengthen Oklahoma Homes Revolving Fund". The fund shall be a
21 continuing fund, not subject to fiscal year limitations, and shall
22 consist of any monies deposited to the fund from the receipt of
23 federal grants or funds or from other sources of grants or funds.
24 All monies accruing to the credit of the fund are hereby

appropriated and may be budgeted and expended by the Department for the purpose of assisting the Strengthen Oklahoma Homes (SOH) Program in performing all acts that relate to the function and purpose of the SOH Program. Warrants for expenditures from the revolving fund shall be drawn by the State Treasurer, based on claims signed by an authorized employee or employees of the Insurance Department, and filed with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services.

B. Monies collected pursuant to this act shall be deposited in the Strengthen Oklahoma Homes Revolving Fund. Monies shall not lapse, unless otherwise specified under federal funding or federal grant, or a grant or funds from another source, or be transferred to the State Insurance Commissioner Revolving Fund or other state funds and shall not be redistributed.

C. Notwithstanding any other provision of law, the Insurance Commissioner may transfer from the State Insurance Commissioner Revolving Fund to the Strengthen Oklahoma Homes Revolving Fund up to fifty percent (50%), but in an amount not to exceed Ten Million Dollars (\$10,000,000.00), of the balance remaining in the State Insurance Commissioner Revolving Fund at the end of each fiscal year beginning with the fiscal year ending on June 30, 2024.

SECTION 182. AMENDATORY Section 2, Chapter 219, O.S.L. 2025 (36 O.S. Supp. 2025, Section 4606.1), is amended to read as follows:

1 Section 4606.1. A. There is hereby created in the State
2 Treasury a revolving fund for the Insurance Department, to be
3 designated the "State-based Exchange Revolving Fund". The fund
4 shall be a continuing fund, not subject to fiscal year limitations,
5 and shall consist of any monies deposited to the fund for the
6 creation, implementation, administration, and operation of the
7 State-based Exchange as authorized in subsection A of Section 1 of
8 this act. All monies accruing to the credit of the fund are hereby
9 appropriated and may be budgeted and expended by the Department for
10 the creation, implementation, administration, and operation of the
11 State-based Exchange. Warrants for expenditures from the revolving
12 fund shall be drawn by the State Treasurer, based on claims signed
13 by an authorized employee or employees of the Insurance Department,
14 and filed with the ~~Director~~ Chief Operating Officer of the Office of
15 Management and Enterprise Services.

16 B. Notwithstanding any law to the contrary, all monies,
17 including but not limited to user fees, paid to or collected by the
18 Insurance Commissioner in relation to the State-based Exchange shall
19 be deposited in the State-based Exchange Revolving Fund. Monies
20 shall not lapse, unless otherwise specified under federal funding or
21 federal grant, or a grant or funds from another source, or be
22 transferred to the State Insurance Commissioner Revolving Fund or
23 other state funds and shall not be redistributed.

SECTION 183. AMENDATORY Section 5, Chapter 306, O.S.L. 2024 (36 O.S. Supp. 2025, Section 6966.2), is amended to read as follows:

Section 6966.2. There is hereby created in the State Treasury a revolving fund for the Office of the Attorney General, to be designated the "Attorney General's Pharmacy Benefits Manager Enforcement Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of any monies collected by the Attorney General and designated to the fund by law, including those levied for activities related to enforcement of the Patient's Right to Pharmacy Choice Act, the Pharmacy Audit Integrity Act, and the provisions of Sections 357 through 360 of Title 59 of the Oklahoma Statutes. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Attorney General for the purposes provided in this section. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 184. AMENDATORY 36 O.S. 2021, Section 7202, is amended to read as follows:

Section 7202. A. There is hereby created a mechanism of funding through health carrier access payments, as defined in

1 Section 7201 of this title, in order to stabilize the state's
2 Medicaid program.

3 B. There is hereby created in the State Treasury a revolving
4 fund for the Oklahoma Health Care Authority to be designated the
5 "Health Carrier Access Payment Revolving Fund". The revolving fund
6 shall be used to fund the state's Medicaid program and make full use
7 of any federal matching funds available to the state.

8 1. The revolving fund shall consist of all monies collected and
9 received by the Insurance Commissioner pursuant to Sections 7203 and
10 7204 of this title, which shall be deposited by the Insurance
11 Commissioner into the revolving fund, as well as interest
12 attributable to investment of money in the fund.

13 2. The revolving fund shall be a continuing fund, not subject
14 to fiscal year limitations. All monies accruing to the credit of
15 said fund are hereby appropriated and may be budgeted and expended
16 by the Oklahoma Health Care Authority. Expenditures from the
17 revolving fund shall be made pursuant to the laws of this state and
18 the statutes relating to the state's Medicaid program. Expenditures
19 from the revolving fund shall be made upon warrants issued by the
20 State Treasurer, based on claims filed as prescribed by law with the
21 ~~Director~~ Chief Operating Officer of the Office of Management and
22 Enterprise Services for approval and payment.

23 C. All monies collected under Sections 7203 and 7204 of this
24 title shall be used and expended by the Oklahoma Health Care

1 Authority for the support of the state's Medicaid program and make
2 full use of any federal matching funds available to the state.

3 D. The Oklahoma Health Care Authority is hereby authorized to
4 transfer funds from the Health Carrier Access Payment Revolving Fund
5 to the 340 CMIA Programs Disbursing Fund administered by the
6 Oklahoma Health Care Authority for the purpose of carrying out the
7 provisions of this act.

8 E. No monies collected from health carriers as access payments
9 shall be expended for any wage or salary of any employee of any
10 state agency and shall not provide any general or administrative
11 funding for the state or any of its agencies, except for reasonable
12 expenses incurred by the Insurance Commissioner for the express
13 purpose of collecting the funds and by the Oklahoma Health Care
14 Authority for the express purposes and administration of the fund.

15 SECTION 185. AMENDATORY 37A O.S. 2021, Section 5-128, is
16 amended to read as follows:

17 Section 5-128. A. There is hereby created in the State
18 Treasury a fund to be known as the "Alcoholic Beverage Control Fund"
19 which shall consist of revenues collected by the state from license
20 and registration fees, with any interest, fines or penalties levied
21 and collected by the ABLE Commission pursuant to the provisions of
22 the Oklahoma Alcoholic Beverage Control Act; provided, the first
23 Three Hundred Thousand Dollars (\$300,000.00) of such revenues
24 collected each fiscal year shall be deposited to the Community-Based

1 Substance Abuse Revolving Fund and the next Twenty Thousand Dollars
2 (\$20,000.00) of such revenues collected each fiscal year shall be
3 deposited in the Prevention of Youth Access to Alcohol Revolving
4 Fund. Any unappropriated balance in the Oklahoma Alcoholic Beverage
5 Control Fund at the close of each fiscal year shall revert to the
6 General Revenue Fund of the State of Oklahoma, except for the amount
7 necessary to satisfy any appropriations made or to be made from the
8 fund by the Oklahoma State Legislature for the ensuing fiscal year.

9 All such monies collected by the ABLE Commission pursuant to the
10 provisions of the Oklahoma Alcoholic Beverage Control Act shall be
11 deposited in the State Treasury for credit to the General Revenue
12 Fund of the state, except as provided in subsection B of this
13 section.

14 B. There is hereby created in the State Treasury a revolving
15 fund for the ABLE Commission to be designated the "Alcoholic
16 Beverage Governance Revolving Fund". The fund shall be a continuing
17 fund, not subject to fiscal year limitations, and shall consist of
18 any monies received from the surcharge collected by the Tax
19 Commission pursuant to subsection F of Section 13 of this act and
20 any other sources of funds provided by law. All monies accruing to
21 the credit of the fund shall be budgeted and expended by the ABLE
22 Commission for general operations. Expenditures from the fund shall
23 be made upon warrants issued by the State Treasurer against claims
24 filed as prescribed by law with the ~~Director~~ Chief Operating Officer

1 of the Office of Management and Enterprise Services for approval and
2 payment.

3 SECTION 186. AMENDATORY 37A O.S. 2021, Section 5-129, is
4 amended to read as follows:

5 Section 5-129. A. There is hereby created in the State
6 Treasury a revolving fund for the Oklahoma Department of
7 Agriculture, Food, and Forestry to be designated the "Oklahoma
8 Viticulture and Enology Center Development Revolving Fund".

9 B. The fund shall be a continuing fund, not subject to fiscal
10 year limitations, and shall consist of all monies distributed to the
11 fund:

12 1. From the apportionment provided in paragraph 1 of Section
13 107 of this act; and

14 2. From any other source in accordance with state and federal
15 law.

16 C. All monies accruing to the credit of the fund are hereby
17 appropriated and may be budgeted and expended by the Department for
18 the purpose of:

19 1. Establishing a Viticulture and Enology Center on the campus
20 of Redlands Community College;

21 2. Developing viticulture-related and enology-related education
22 programs;

23 3. Developing technologies, strategies or practices that aid in
24 the production of grapes and wine in Oklahoma; and

1 4. Increasing the positive economic impact of the Oklahoma wine
2 industry on this state.

3 D. Expenditures from the fund shall be made upon warrants
4 issued by the State Treasurer against claims filed as prescribed by
5 law with the ~~Director~~ Chief Operating Officer of the Office of
6 Management and Enterprise Services for approval and payment.

7 SECTION 187. AMENDATORY 40 O.S. 2021, Section 4-901, is
8 amended to read as follows:

9 Section 4-901. Oklahoma Employment Security Commission
10 Revolving Fund.

11 There is hereby created in the State Treasury a revolving fund
12 for the Oklahoma Employment Security Commission, to be designated
13 the "Oklahoma Employment Security Commission Revolving Fund". The
14 revolving fund shall consist of all penalties and interest received
15 by the Oklahoma Employment Security Commission. Said revolving fund
16 shall be a continuing fund, not subject to fiscal year limitations
17 and shall not be subject to legislative appropriation. Expenditures
18 from said revolving fund shall be made pursuant to the laws of this
19 state and the statutes relating to the Oklahoma Employment Security
20 Commission and shall be for administration expenses of the Oklahoma
21 Employment Security Commission and for any other purpose which the
22 Legislature directs. Warrants for expenditures from said fund shall
23 be drawn by the State Treasurer, based on claims signed by an
24 authorized employee or employees of the Oklahoma Employment Security

Commission and approved for payment by the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services.

SECTION 188. AMENDATORY 40 O.S. 2021, Section 6-101, is amended to read as follows:

Section 6-101. OESC COMPUTER FUND.

A. There is hereby created in the State Treasury a revolving fund for the Oklahoma Employment Security Commission to be designated the "OESC Computer Fund". The OESC Computer Fund shall be separate and distinct from the Unemployment Compensation Fund and shall consist of:

1. All monies received from employers and paid pursuant to Section 6-104 of this title;

2. All other sums, from whatever source, received by the Commission and paid into the OESC Computer Fund; and

3. Property and securities acquired by and through the use of monies in the OESC Computer Fund.

B. The OESC Computer Fund shall be a continuing fund, not subject to fiscal year limitations. All monies accruing to the credit of the OESC Computer Fund are hereby appropriated and may be budgeted and expended for the purposes set forth in Section 6-102 of this title. Expenditures from the OESC Computer Fund shall be made upon warrants issued by the State Treasurer against claims filed, as prescribed by law, with the ~~Director~~ Chief Operating Officer of the

Office of Management and Enterprise Services for approval and payment.

SECTION 189. AMENDATORY 40 O.S. 2021, Section 6-201, is amended to read as follows:

Section 6-201. OESC TECHNOLOGY FUND.

A. There is hereby created in the State Treasury a revolving fund for the Oklahoma Employment Security Commission to be designated the "OESC Technology Fund". The OESC Technology Fund shall be separate and distinct from the Unemployment Compensation Fund and shall consist of:

1. All monies received from employers and paid pursuant to Section 6-204 of this title; and

2. Financial instruments, certificates of deposit, bonds and securities acquired by and through the use of monies in the OESC Technology Fund.

B. The OESC Technology Fund shall be a continuing fund, not subject to fiscal year limitations. All monies accruing to the credit of the OESC Technology Fund are hereby appropriated and shall be budgeted and expended solely for the purposes of modernizing the business processes and technology of the Oklahoma Employment Security Commission as set forth in Section 6-202 of this title. Expenditures from the OESC Technology Fund shall be made upon warrants issued by the State Treasurer against claims filed, as prescribed by law, with the ~~Director~~ Chief Operating Officer of the

Office of Management and Enterprise Services for approval and payment.

SECTION 190. AMENDATORY 40 O.S. 2021, Section 6-204, as amended by Section 6, Chapter 346, O.S.L. 2023 (40 O.S. Supp. 2025, Section 6-204), is amended to read as follows:

Section 6-204. TECHNOLOGY REINVESTMENT APPORTIONMENT.

A. 1. For the period beginning January 1, 2023, and ending December 31, 2027, each employer subject to the provisions of Sections 3-109, 3-110.1 and 3-113 of this title shall be required to pay an OESC Technology Reinvestment Apportionment equal to five percent (5%) of the unemployment taxes that would be owed to the Oklahoma Employment Security Commission before any rate reduction is made pursuant to Section 3-109.3 of this title. This apportionment shall be in addition to any contribution which that employer is required to make pursuant to the provisions of the Employment Security Act of 1980.

2. The apportionment provided for in this section shall not be considered part of any unemployment taxes required of an individual employer pursuant to the Employment Security Act of 1980, nor shall it be considered for purposes of determining the individual employer's tax rate.

B. Employers assigned a tax rate pursuant to Section 3-110.1 of this title shall pay an OESC Technology Reinvestment Apportionment

1 equal to the rate reduction granted them pursuant to Section 3-109.3
2 of this title.

3 C. Employers making payments in lieu of contributions pursuant
4 to Sections 3-702, 3-705 and 3-806 of this title shall be exempt
5 from the provisions of this section.

6 D. The apportionment shall be made and collected by the
7 Oklahoma Employment Security Commission for deposit, on a monthly
8 basis, to the credit of the OESC Technology Fund. Provided, all
9 monies received by the Oklahoma Employment Security Commission for
10 the account of the OESC Technology Fund, upon receipt, shall be
11 deposited in a clearance account.

12 E. The Oklahoma Employment Security Commission shall promulgate
13 such rules as may be necessary to implement the provisions of
14 Sections 3-109.3 and 6-201 through 6-205 of this title.

15 F. The Oklahoma Employment Security Commission shall create an
16 annual report detailing the collection of the apportionment funds
17 and the expenditures from the OESC Technology Fund. The report
18 shall be filed on or before March 31 of each year following the
19 effective date of this act. The report shall be filed with the
20 Governor, the President Pro Tempore of the Senate, the Speaker of
21 the House of Representatives, the State Treasurer, the State Auditor
22 and Inspector, and the ~~Director~~ Chief Operating Officer of the
23 Office of Management and Enterprise Services.
24

SECTION 191. AMENDATORY 40 O.S. 2021, Section 141.19, is amended to read as follows:

Section 141.19. There is hereby created in the State Treasury a revolving fund for the Department of Labor to be designated the "Department of Labor Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies designated for deposit in such fund. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Department of Labor for operations and expenses relating to its statutory duties and responsibilities. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 192. AMENDATORY 40 O.S. 2021, Section 141.20, is amended to read as follows:

Section 141.20. A. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services is hereby authorized, upon request by the Commissioner of Labor, to establish a petty cash fund for the Department of Labor in an amount not to exceed Four Hundred Dollars (\$400.00), to be used for the purpose of making change for persons obtaining licenses and transacting other business with the Department.

1 B. The fund shall be established and replenished from any
2 monies available to the Department for operating expenses.

3 C. The ~~Director~~ Chief Operating Officer of the Office of
4 Management and Enterprise Services shall prescribe all forms,
5 systems, and procedures for administering the fund.

6 SECTION 193. AMENDATORY 40 O.S. 2021, Section 142.1, is
7 amended to read as follows:

8 Section 142.1. A. On the effective date of this act, all
9 powers, duties, responsibilities, records and equipment of the
10 Corporation Commission relating exclusively to the regulation of
11 compressed natural gas fueling stations are hereby transferred and
12 shall be placed under the authority of the Department of Labor.

13 B. On the effective date of this act, all powers, duties,
14 responsibilities, records and equipment of the Office of Management
15 and Enterprise Services relating exclusively to the implementation
16 and enforcement of the Alternative Fuels Technician Certification
17 Act are hereby transferred and shall be placed under the authority
18 of the Department of Labor. To the extent practicable, the transfer
19 shall include all computer hardware and software used in regulating
20 the functions listed in this subsection.

21 C. The Corporation Commission, the Commissioner of Labor and
22 the ~~Director~~ Chief Operating Officer of the Office of Management and
23 Enterprise Services may contract for additional legal and
24

1 administrative services as necessary to effectuate the transfers as
2 provided for in this section.

3 D. 1. All unexpended funds, property, furnishings, equipment,
4 supplies, records, and outstanding financial obligations and
5 encumbrances of the Corporation Commission relating to the
6 regulation of natural gas fueling stations and of the Office of
7 Management and Enterprise Services relating to the implementation
8 and enforcement of the Alternative Fuels Technician Certification
9 Act shall be transferred to the Department of Labor for the
10 continuing performance of duties relating to the regulation of
11 natural gas fueling stations and implementation and enforcement of
12 the Alternative Fuels Technician Certification Act. No funds,
13 property, furnishings, equipment, supplies or records may be
14 expended or used for any purpose other than the performance of
15 duties and responsibilities as directed and required in this act.

16 2. Any funds, properties, furnishings, equipment, supplies, or
17 records related in any manner to the regulation of natural gas
18 fueling stations and implementation and enforcement of the
19 Alternative Fuels Technician Certification Act which may not be in
20 the current possession of the Corporation Commission or the Office
21 of Management and Enterprise Services on the effective date of this
22 act, but which come into the possession of the Corporation
23 Commission or the Office of Management and Enterprise Services after
24 the transfer of authority to the Department of Labor as provided in

1 this act, shall immediately be transferred to the Department of
2 Labor. Items subject to the immediate transfer shall include, but
3 are not limited to, any misdirected licensing fees or payments of
4 outstanding administrative fines.

5 E. The Corporation Commission and the ~~Director~~ Chief Operating
6 Officer of the Office of Management and Enterprise Services shall
7 not enter into any contract or agreement relating to the regulation
8 of natural gas fueling stations or implementation and enforcement of
9 the Alternative Fuels Technician Certification Act extending beyond
10 the effective date of the transfer without approval by the
11 Commissioner of Labor.

12 F. All licenses, registrations, certifications and
13 accreditations issued by the Office of Management and Enterprise
14 Services pursuant to the Alternative Fuels Technician Certification
15 Act that are in effect on the effective date of this act shall
16 remain in full force and effect and shall be enforceable by the
17 Department of Labor.

18 G. The ~~Director~~ Chief Operating Officer of the Office of
19 Management and Enterprise Services shall coordinate the transfer of
20 funds, allotments, purchase orders and outstanding financial
21 obligations and encumbrances relating to the regulation of natural
22 gas fueling stations and the implementation and enforcement of the
23 Alternative Fuels Technician Certification Act as transferred
24 pursuant to the provisions of this act.

1 H. Upon the effective date of this act, all administrative
2 rules promulgated by the Office of Management and Enterprise
3 Services relating to the implementation and enforcement of the
4 Alternative Fuels Technician Certification Act shall be enforceable
5 by the Commissioner of Labor. The rules shall continue in force and
6 effect after the effective date of this act, and the Commissioner of
7 Labor shall have authority to amend, repeal, recodify or make
8 additions to the rules pursuant to the Administrative Procedures
9 Act.

10 SECTION 194. AMENDATORY 40 O.S. 2021, Section 142.14, is
11 amended to read as follows:

12 Section 142.14. A. All monies received by the Department of
13 Labor under the Alternative Fuels Technician Certification Act and
14 derived from Alternative Fuels Technician certification fees and
15 related enforcement actions and fines shall be deposited with the
16 State Treasurer and credited to the "Alternative Fuels Technician
17 Certification Revolving Fund". The revolving fund shall be a
18 continuing fund not subject to fiscal year limitations and shall be
19 under the control and management of the Department of Labor.
20 Expenditures from this fund shall be made pursuant to the purposes
21 of the Alternative Fuels Technician Certification Act and shall
22 include, but not be limited to, payment of operating costs, costs of
23 programs designed to promote public awareness of the alternative
24 fuels industry, expenditures for the preparation and printing of

1 regulations, bulletins or other documents and the furnishing of
2 copies of the documents to those persons engaged in the alternative
3 fuels industry or the public, and expenses the Department of Labor
4 incurs to support program operations. Warrants for expenditures
5 shall be drawn by the State Treasurer based on claims signed and
6 approved for payment by the ~~Director~~ Chief Operating Officer of the
7 Office of Management and Enterprise Services.

8 B. All monies received by the Department of Labor under the
9 Alternative Fuels Technician Certification Act and derived from the
10 inspection of alternative fuel fill stations and related enforcement
11 actions shall be deposited with the State Treasurer and credited to
12 the "Alternative Fuels Inspection Fees and Fines Revolving Fund".
13 The revolving fund shall be a continuing fund not subject to fiscal
14 year limitations and shall be under the control and management of
15 the Department of Labor. Expenditures from the fund shall be made
16 pursuant to the purposes of the Alternative Fuel Fill Station
17 Inspection and Licensing Program under the Alternative Fuels
18 Technician Certification Act and shall include, but not be limited
19 to, payment of administrative costs and other operational costs
20 supporting the program, payment of costs designed to promote public
21 awareness of the alternative fuels industry, expenditures for the
22 preparation and printing of regulations, bulletins or other
23 documents and the furnishing of copies of the documents to those
24 persons engaged in the alternative fuels industry or the public.

Warrants for expenditures shall be drawn by the State Treasurer based on claims signed and approved for payment by the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services.

SECTION 195. AMENDATORY Section 3, Chapter 408, O.S.L. 2025 (40 O.S. Supp. 2025, Section 906), is amended to read as follows:

Section 906. There is hereby created in the State Treasury a revolving fund for the Oklahoma Workforce Commission to be designated the "Oklahoma Workforce Commission Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Commission from appropriations, donations, grants, and other sources of funding. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Commission for the purpose of duties imposed upon the Commission by law. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 196. AMENDATORY Section 1, Chapter 28, 1st Extraordinary Session, O.S.L. 2023 (43A O.S. Supp. 2025, Section 1-110.1), is amended to read as follows:

1 Section 1-110.1. There is hereby created in the State Treasury
2 a revolving fund for the Department of Mental Health and Substance
3 Abuse Services to be designated the "Mental Health Transport
4 Revolving Fund". The fund shall be a continuing fund, not subject
5 to fiscal year limitations, and shall consist of all monies received
6 by the Department from appropriations or other monies directed to
7 the fund. All monies accruing to the credit of the fund are hereby
8 appropriated and may be budgeted and expended by the Department to
9 carry out the provisions of Section 1-110 of Title 43A of the
10 Oklahoma Statutes. Expenditures from the fund shall be made upon
11 warrants issued by the State Treasurer against claims filed as
12 prescribed by law with the ~~Director~~ Chief Operating Officer of the
13 Office of Management and Enterprise Services for approval and
14 payment.

15 SECTION 197. AMENDATORY 43A O.S. 2021, Section 2-107, is
16 amended to read as follows:

17 Section 2-107. A. 1. There is hereby created in the State
18 Treasury a revolving fund for the Department of Mental Health and
19 Substance Abuse Services to be designated the "Capital Outlay Fund".
20 The fund shall be a continuing fund, not subject to fiscal year
21 limitations, and shall consist of income as provided in this section
22 and any monies transferred by the Department into the fund.

23 2. All monies accruing to the credit of the fund are hereby
24 appropriated and may be budgeted and expended by the Department for

1 the purposes described in this section and for improvements to real
2 property owned by the Department or held in the Department's trust
3 as authorized by Section 2-111 of this title. Expenditures from the
4 fund shall be made upon warrants issued by the State Treasurer
5 against claims filed as prescribed by law with the ~~Director~~ Chief
6 Operating Officer of the Office of Management and Enterprise
7 Services for approval and payment.

8 B. On and after July 1, 1988, no easement, right-of-way, oil
9 and gas lease or surface lease on any land used or occupied by any
10 institution, under the jurisdiction of the Board of Mental Health
11 and Substance Abuse Services, shall be granted or conveyed without
12 the approval of the Board. All monies hereafter received or derived
13 from such easements, rights-of-way and leases, including, but not
14 limited to, rentals and royalties for leases and from sale of
15 equipment, shall be deposited in the Capital Outlay Fund of the
16 Department of Mental Health and Substance Abuse Services and used by
17 the Board for capital improvement at any Department of Mental Health
18 and Substance Abuse Services facility and for improvements to real
19 property owned by the Department or held in the Department's trust
20 as authorized by Section 2-111 of this title, except as otherwise
21 provided by the Legislature.

22 SECTION 198. AMENDATORY 43A O.S. 2021, Section 2-302, is
23 amended to read as follows:
24

1 Section 2-302. There is hereby created a petty cash fund at the
2 Central Office. The ~~Director~~ Chief Operating Officer of the Office
3 of Management and Enterprise Services and the Commissioner of Mental
4 Health and Substance Abuse Services are authorized to fix the
5 maximum amount of these petty cash funds and the ~~Director~~ Chief
6 Operating Officer of the Office of Management and Enterprise
7 Services shall prescribe the rules and procedures for the
8 administration of these petty cash funds.

9 SECTION 199. AMENDATORY 43A O.S. 2021, Section 2-303, is
10 amended to read as follows:

11 Section 2-303. A. 1. There is hereby created in the State
12 Treasury a revolving fund for the Department of Mental Health and
13 Substance Abuse Services to be designated the "Department of Mental
14 Health and Substance Abuse Services Revolving Fund".

15 2. The fund shall be a continuing fund, not subject to fiscal
16 year limitations, and shall consist of monies received by each
17 facility and office of the Department as:

- 18 a. reimbursements from persons and agencies for the care
19 of consumers,
- 20 b. reimbursements from other state agencies and entities
21 of government,
- 22 c. all reimbursements received by the Department from the
23 United States government or pursuant to proceedings in
24

- 1 district court to enforce claims for the cost of care
2 and treatment of consumers,
- 3 d. earnings and proceeds in the conduct and management of
4 the dairy, farm, truck, garden, livestock and any
5 industries of such facilities,
- 6 e. receipts from sale of excess byproducts, excess
7 property and salvage items,
- 8 f. certification fees,
- 9 g. gifts, donations and bequests, and
- 10 h. receipts from other ancillary services, not otherwise
11 provided by law.

12 B. 1. All monies accruing to the credit of said fund are hereby
13 appropriated and may be budgeted and expended by the Department of
14 Mental Health and Substance Abuse Services for the general operating
15 expenses of facilities and offices of the Department of Mental Health
16 and Substance Abuse Services.

17 2. Expenditures from the fund shall be made upon warrants issued
18 by the State Treasurer against claims filed as prescribed by law with
19 the ~~Director~~ Chief Operating Officer of the Office of Management and
20 Enterprise Services for approval and payment.

21 SECTION 200. AMENDATORY 43A O.S. 2021, Section 2-310, is
22 amended to read as follows:

23 Section 2-310. There is hereby created in the State Treasury a
24 revolving fund for the Department of Mental Health and Substance

Abuse Services to be designated the "Intra-agency Reimbursement Revolving Fund". The fund shall be a continuing fund not subject to fiscal year limitations. Revenues to the fund shall consist only of intra-agency payments from the allocation of operating costs among budgeted activities. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Department of Mental Health and Substance Abuse Services for operating expenses of the Department of Mental Health and Substance Abuse Services. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 201. AMENDATORY 43A O.S. 2021, Section 2-311, is amended to read as follows:

Section 2-311. There is hereby created in the State Treasury a revolving fund for the Department of Mental Health and Substance Abuse Services to be designated the Community-based Substance Abuse Revolving Fund. The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Department of Mental Health and Substance Abuse Services from low-point beer permits pursuant to Section 163.7 of Title 37 of the Oklahoma Statutes, enrollment fees for alcohol and drug substance abuse courses pursuant to the provisions of Section 3-453 of this

1 title, and fees from certification of assessment agencies and
2 assessment personnel pursuant to the provisions of Section 3-460 of
3 this title. All monies accruing to the credit of the fund are
4 hereby appropriated and may be budgeted and expended by the
5 Department of Mental Health and Substance Abuse Services for the
6 purpose of providing training and administrative services pursuant
7 to the provisions of Sections 3-453 and 3-460 of this title,
8 contracting with private facilities, organizations and tribal
9 programs to provide treatment, counseling, rehabilitation, and other
10 related services directed toward alcohol- and drug-dependent
11 persons, and contracting with statewide substance abuse
12 organizations to provide training and to establish and maintain a
13 collaborative network of providers to maintain and improve the
14 continuum of care between agencies that provide substance abuse
15 prevention, treatment, and advocacy programs using best practices
16 and innovative programs that focus on substance abuse services and
17 co-occurring disorders. Expenditures from the fund shall be made
18 upon warrants issued by the State Treasurer against claims filed as
19 prescribed by law with the ~~Director~~ Chief Operating Officer of the
20 Office of Management and Enterprise Services for approval and
21 payment.

22 SECTION 202. AMENDATORY 57 O.S. 2021, Section 631, as
23 amended by Section 1, Chapter 201, O.S.L. 2023, and as renumbered by
24

Section 5, Chapter 201, O.S.L. 2023 (43A O.S. Supp. 2025, Section 2-312.1), is amended to read as follows:

Section 2-312.1. A. There is hereby created in the State Treasury a revolving fund for the Department of Mental Health and Substance Abuse Services to be designated the "County Community Safety Investment Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies appropriated to the fund under Section 633 of this title.

B. All monies accruing to the credit of the fund shall be budgeted and expended by the Department of Mental Health and Substance Abuse Services for the sole purpose of providing funds to counties for development and implementation of the programs listed in Section 4 of this act.

C. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 203. AMENDATORY 43A O.S. 2021, Section 3-102, is amended to read as follows:

Section 3-102. A. The Carl Albert Community Mental Health and Substance Abuse Services Center, McAlester, Oklahoma, and the Jim Taliaferro Community Mental Health and Substance Abuse Services Center, Lawton, Oklahoma, are hereby designated as institutions within the Department of Mental Health and Substance Abuse Services

1 and shall be operated under the supervision of the Department of
2 Mental Health and Substance Abuse Services.

3 B. The Department of Mental Health and Substance Abuse Services
4 is authorized to effect the transfer of property; records;
5 equipment; supplies and funds to include, if appropriate, revolving
6 funds; and encumbrances from Griffin Memorial Hospital to the
7 appropriate institution designated in subsection A above.

8 C. There is hereby created a petty cash fund at the Carl Albert
9 Community Mental Health and Substance Abuse Services Center and at
10 the Jim Taliaferro Community Mental Health and Substance Abuse
11 Services Center. The ~~Director~~ Chief Operating Officer of the Office
12 of Management and Enterprise Services and the Commissioner of Mental
13 Health and Substance Abuse Services are authorized to fix the
14 maximum amount of these petty cash funds and the ~~Director~~ Chief
15 Operating Officer of the Office of Management and Enterprise
16 Services shall prescribe the rules and procedures for the
17 administration of these petty cash funds.

18 SECTION 204. AMENDATORY 43A O.S. 2021, Section 3-103, is
19 amended to read as follows:

20 Section 3-103. A. The Central Oklahoma Community Mental Health
21 and Substance Abuse Services Center, Norman, Oklahoma, is hereby
22 designated a facility within the Department of Mental Health and
23 Substance Abuse Services and shall be operated under the supervision
24 of the Department of Mental Health and Substance Abuse Services.

1 B. The Department of Mental Health and Substance Abuse Services
2 is authorized to effect the transfer of property, records,
3 equipment, supplies and funds to include, if appropriate, revolving
4 funds, and encumbrances from Griffin Memorial Hospital to the
5 facility designated in subsection A above.

6 C. There is hereby created a petty cash fund at the Central
7 Oklahoma Community Mental Health and Substance Abuse Services
8 Center, Norman, Oklahoma. The ~~Director~~ Chief Operating Officer of
9 the Office of Management and Enterprise Services and the
10 Commissioner of Mental Health and Substance Abuse Services are
11 authorized to fix the maximum amount of the petty cash fund and the
12 ~~Director~~ Chief Operating Officer of the Office of Management and
13 Enterprise Services shall prescribe the rules and procedures for the
14 administration of the petty cash fund.

15 SECTION 205. AMENDATORY 43A O.S. 2021, Section 3-105, is
16 amended to read as follows:

17 Section 3-105. A. The Children's Recovery Center of Oklahoma,
18 Norman, Oklahoma, is hereby created and designated a facility within
19 the Department and shall be operated under the supervision of the
20 Department. The Children's Recovery Center of Oklahoma shall
21 consist of:

22 1. The Adolescent Unit, a building constructed pursuant to the
23 provisions of Section 10, Chapter 341, O.S.L. 1981, Section 20,
24

Chapter 374, O.S.L. 1982, Section 32, Chapter 326, O.S.L. 1983 and Section 114, Chapter 296, O.S.L. 1984; and

2. The Leland Wolf Unit, formerly known and designated as the Leland Wolf Rehabilitation Center of Central State Griffin Memorial Hospital.

B. There is hereby created a petty cash fund for the Children's Recovery Center of Oklahoma. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services and Commissioner of Mental Health and Substance Abuse Services are authorized to fix the maximum amount of this petty cash fund and the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services shall prescribe the rules and procedures for the administration of this petty cash fund.

SECTION 206. AMENDATORY 43A O.S. 2021, Section 3-107, as amended by Section 2, Chapter 125, O.S.L. 2022 (43A O.S. Supp. 2025, Section 3-107), is amended to read as follows:

Section 3-107. A. There is hereby created and designated as a facility within the Department of Mental Health and Substance Abuse Services Transitions Recovery Center at Vinita. The facility shall be operated under the supervision and administration of the Commissioner of Mental Health and Substance Abuse Services. It is the intent of the Legislature that Transitions Recovery Center at Vinita utilize and receive business management, support services and medical ancillary services of the Oklahoma Forensic Center.

1 B. There is hereby created a petty cash fund for Transitions
2 Recovery Center at Vinita. The ~~Director~~ Chief Operating Officer of
3 the Office of Management and Enterprise Services and the
4 Commissioner of Mental Health and Substance Abuse Services are
5 authorized to fix the maximum amount of the petty cash fund. The
6 ~~Director~~ Chief Operating Officer of the Office of Management and
7 Enterprise Services shall prescribe the rules and procedures for the
8 administration of the petty cash fund.

9 C. The Department of Mental Health and Substance Abuse Services
10 is authorized to effect the transfer of property, records,
11 equipment, supplies, funds and encumbrances from the Oklahoma
12 Forensic Center to or from Transitions Recovery Center at Vinita.

13 SECTION 207. AMENDATORY 43A O.S. 2021, Section 3-107b,
14 is amended to read as follows:

15 Section 3-107b. A. The "Tulsa Center for Behavioral Health" is
16 hereby created and designated as a facility within the Department of
17 Mental Health and Substance Abuse Services and shall be operated
18 under the supervision of the Department of Mental Health and
19 Substance Abuse Services.

20 B. There is hereby created a petty cash fund for the Tulsa
21 Center for Behavioral Health. The ~~Director~~ Chief Operating Officer
22 of the Office of Management and Enterprise Services and Commissioner
23 of Mental Health and Substance Abuse Services are authorized to fix
24 the maximum amount of this petty cash fund and the ~~Director~~ Chief

1 Operating Officer of the Office of Management and Enterprise
2 Services shall prescribe the rules and procedures for the
3 administration of the petty cash fund.

4 SECTION 208. AMENDATORY 43A O.S. 2021, Section 3-453, is
5 amended to read as follows:

6 Section 3-453. A. Alcohol and drug substance abuse courses
7 shall be offered only by nonprofit educational institutions of
8 higher learning, governmental or nonprofit organizations.

9 B. Enrollment fees for those attending the courses shall be set
10 by the Department of Mental Health and Substance Abuse Services and
11 shall be within a range of not less than Sixty-five Dollars (\$65.00)
12 and not more than:

13 1. One Hundred Fifty Dollars (\$150.00) for a ten-hour course;
14 and

15 2. Three Hundred Sixty Dollars (\$360.00) for a twenty-four-hour
16 course.

17 C. Ten percent (10%) of each fee collected shall be remitted by
18 the institution or organization offering alcohol and drug substance
19 abuse courses to the State Treasurer to be credited to the
20 Community-based Substance Abuse Revolving Fund in the State Treasury
21 and shall be used to provide substance abuse services to the
22 indigent or to provide specialized training to alcohol and drug
23 substance abuse course facilitators. Five percent (5%) of each fee
24

collected by the Department shall be used for the administrative costs related to providing such services.

D. Enrollment in the course shall not be limited to persons ordered to enroll, attend and successfully complete the course.

E. All alcohol and drug substance abuse courses related to driver license revocation and course facilitators shall be approved and certified by the Department of Mental Health and Substance Abuse Services.

F. The Department of Mental Health and Substance Abuse Services is authorized to promulgate rules governing:

1. Minimum curriculum requirements for such courses;
2. Facilities, equipment and instructional materials for such courses;
3. Minimum qualifications for course facilitators;
4. Grounds for reprimand and for revocation, suspension or nonrenewal of the authority to conduct such courses and for revocation of a facilitator's certification;
5. Attendance requirements; and
6. Guidelines for certifying to the Department of Mental Health and Substance Abuse Services and the Department of Public Safety successful completion of such course.

G. The Department of Mental Health and Substance Abuse Services shall require that each ten-hour course shall be conducted in no less than three sessions of no more than three and one-half (3 1/2)

1 hours each on three (3) separate days. For a twenty-four-hour
2 course, the Department shall require that:

3 1. Each such course shall consist of at least twenty-four (24)
4 hours;

5 2. Each such course shall consist of no more than two (2) hours
6 of education on any given day, nor more than four (4) hours in a
7 given week, and shall not contain more than ten percent (10%) films
8 on any one specialized area; and

9 3. No more than twenty-four students shall be allowed in a
10 given class.

11 H. Any institution or organization authorized under this act to
12 conduct an alcohol and drug substance abuse course shall certify to
13 the Department of Public Safety all persons who successfully
14 complete such course.

15 I. Any person participating in a substance abuse treatment
16 program recommended as a result of an assessment pursuant to Section
17 3-460 of this title shall be required to pay all or part of the
18 actual cost incurred for treatment of the person, if the court
19 determines the person has the ability to pay for all or part of the
20 cost of treatment. The court shall determine the amount of
21 reimbursement the person shall pay.

22 J. Application fees for certification of course facilitators
23 shall be set by the Board of Mental Health and Substance Abuse
24

Services to defray the costs of administering the program and shall be:

1. Not less than One Hundred Dollars (\$100.00) and not more than Two Hundred Dollars (\$200.00) upon initial application; and

2. Not less than Twenty-five Dollars (\$25.00) and not more than Fifty Dollars (\$50.00) upon annual renewal.

K. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services shall transfer unobligated monies generated from the fees in subsection C of this section, deposited before November 1, 2005, from the Department of Mental Health and Substance Abuse Services Revolving Fund to the Community-based Substance Abuse Revolving Fund, in amounts calculated by the Department.

L. No alcohol or drug substance abuse course shall operate or continue to operate unless it is operated in compliance with the rules promulgated by the Board and is certified as required by this section.

SECTION 209. AMENDATORY 43A O.S. 2021, Section 3-460, is amended to read as follows:

Section 3-460. A. The Department of Mental Health and Substance Abuse Services shall certify assessment personnel for the purpose of conducting alcohol and drug assessment and evaluation programs related to driver license revocation.

1 B. Application fees for certification of assessment personnel
2 shall be set by the Department to defray the costs of administering
3 the program and shall be:

4 1. Not less than One Hundred Dollars (\$100.00) and not more
5 than Two Hundred Dollars (\$200.00) upon initial application; and

6 2. Not less than Twenty-five Dollars (\$25.00) and not more than
7 One Hundred Fifty Dollars (\$150.00) upon triennial renewal.

8 C. The fee for those undergoing an assessment and evaluation
9 pursuant to this section shall be One Hundred Sixty Dollars
10 (\$160.00). A fee of Fifteen Dollars (\$15.00) shall be remitted by
11 the individual undergoing an assessment and evaluation directly to
12 the Department of Public Safety pursuant to Section 6-212 of Title
13 47 of the Oklahoma Statutes.

14 1. The Department of Public Safety shall remit ninety percent
15 (90%) of the fifteen-dollar fee collected pursuant to this section
16 to the State Treasurer to be credited to the Community-based
17 Substance Abuse Revolving Fund in the State Treasury and shall be
18 used by the Department of Mental Health and Substance Abuse
19 Services.

20 2. Ten percent (10%) of each fifteen-dollar fee collected by
21 the Department of Public Safety pursuant to this section shall be
22 deposited into the Department of Public Safety Restricted Revolving
23 Fund, as created in Section 2-145 of Title 47 of the Oklahoma
24

Statutes, to be used for administrative costs associated with the duties imposed by this section.

D. The Board of Mental Health and Substance Abuse Services is authorized to promulgate such rules as are necessary to implement the provisions of Section 3-451 et seq. of this title. Failure to comply with rules and standards promulgated by the Board shall be grounds for revocation, suspension or nonrenewal of certification.

E. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services shall transfer any unobligated monies generated by the fees in subsection C of this section, deposited before November 1, 2005, from the Department of Mental Health and Substance Abuse Services Revolving Fund to the Community-based Substance Abuse Revolving Fund, in amounts calculated by the Department.

F. No alcohol or drug assessment personnel shall operate or continue to operate as such unless the alcohol or drug assessment personnel comply with the rules promulgated by the Board and are certified as required by this section.

SECTION 210. AMENDATORY 44 O.S. 2021, Section 28, is amended to read as follows:

Section 28. There is hereby created a petty cash fund for programs of the Oklahoma Military Department, including but not limited to billeting funds, youth programs and military awards and decoration programs, the sum of which shall be determined as

1 agreeable to the Oklahoma Military Department and the ~~Director~~ Chief
2 Operating Officer of the Office of Management and Enterprise
3 Services. The ~~Director~~ Chief Operating Officer shall establish
4 procedures for the administration of this petty cash fund.

5 SECTION 211. AMENDATORY 44 O.S. 2021, Section 233.7, is
6 amended to read as follows:

7 Section 233.7. There is hereby created in the State Treasury a
8 revolving fund for the Oklahoma Military Department to be designated
9 the "Oklahoma Military Department Revolving Fund". The fund shall
10 be a continuing fund, not subject to fiscal year limitations, and
11 shall consist of any monies received by the Oklahoma Military
12 Department from the sale of surplus property, fees and receipts
13 collected pursuant to the Oklahoma Open Records Act, interagency
14 reimbursements, federal funds unless otherwise provided by federal
15 law or regulation, gifts, bequests, contributions, devises, any
16 other source, and the proceeds of property sold or otherwise
17 disposed of pursuant to the provisions of subsection B of Section
18 233.3 of this title. All monies accruing to the credit of said fund
19 are hereby appropriated and may be budgeted and expended by the
20 Oklahoma Military Department for construction, repairs, and
21 maintenance, equipment for facilities of the Oklahoma National
22 Guard, or for operating expenses of the Oklahoma Military
23 Department. Expenditures from said fund shall be made upon warrants
24 issued by the State Treasurer against claims filed as prescribed by

1 law with the ~~Director~~ Chief Operating Officer of the Office of
2 Management and Enterprise Services for approval and payment. All
3 monies in the fund may, at the direction of the Adjutant General, be
4 invested by the State Treasurer in accordance with state investment
5 practices. All earnings attributable to such investments shall
6 likewise accrue to the credit of the fund.

7 SECTION 212. AMENDATORY Section 1, Chapter 361, O.S.L.
8 2022 (44 O.S. Supp. 2025, Section 233.14), is amended to read as
9 follows:

10 Section 233.14. There is hereby created in the State Treasury a
11 revolving fund for the Oklahoma Military Department to be designated
12 the "Military Justice Revolving Fund". The fund shall be a
13 continuing fund, not subject to fiscal year limitations, and shall
14 consist of all monies directed for deposit to the fund by law. All
15 monies accruing to the credit of said fund are hereby appropriated
16 and may be budgeted and expended by the Oklahoma Military Department
17 for the purpose of prosecuting military misconduct as needed.

18 Expenditures from said fund shall be made upon warrants issued by
19 the State Treasurer against claims filed as prescribed by law with
20 the ~~Director~~ Chief Operating Officer of the Office of Management and
21 Enterprise Services for approval and payment.

22 SECTION 213. AMENDATORY 44 O.S. 2021, Section 235.1, is
23 amended to read as follows:

1 Section 235.1. There is hereby created in the State Treasury a
2 special fund to be known as the "Oklahoma National Guard Museum
3 Fund", which fund shall consist of donations received for operation
4 and maintenance of the museum and monies received from the sale of
5 Armed Forces Veterans Motorcycle License Plates pursuant to Section
6 1135.5 of Title 47 of the Oklahoma Statutes. The fund shall be a
7 continuing fund not subject to fiscal year limitations and shall be
8 under the administrative direction of the Oklahoma Military
9 Department. Expenditures from the fund created by this section
10 shall be used exclusively for expenses of operation and maintenance
11 of the Oklahoma National Guard Museum and shall be made pursuant to
12 the laws of this state and without legislative appropriation.
13 Warrants for expenditures from the fund shall be drawn by the State
14 Treasurer, based on claims signed by an authorized employee of the
15 department and approved for payment by the ~~Director~~ Chief Operating
16 Officer of the Office of Management and Enterprise Services.

17 SECTION 214. AMENDATORY Section 19, Chapter 344, O.S.L.
18 2025 (44 O.S. Supp. 2025, Section 272), is amended to read as
19 follows:

20 Section 272. There is hereby created in the State Treasury a
21 revolving fund for the Oklahoma Military Department to be designated
22 the "Oklahoma National Guard Supplemental Retirement Pay Revolving
23 Fund". The fund shall be a continuing fund, not subject to fiscal
24 year limitations, and shall consist of all monies received by the

Oklahoma Military Department from funds provided by law. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Oklahoma Military Department for the purpose of implementing the provisions of Section 18 of this act. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 215. AMENDATORY Section 1, Chapter 452, O.S.L. 2025 (44 O.S. Supp. 2025, Section 301A), is amended to read as follows:

Section 301A. A. There is hereby created in the State Treasury a revolving fund for the Oklahoma Military Department to be designated the "Base Infrastructure Needs and Development - Schools Revolving Fund", which may also be cited as "BIND - Schools Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies directed for deposit to the fund by law. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Oklahoma Military Department for the purpose established in subsection B of this section. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the

Office of Management and Enterprise Services for approval and payment.

B. There is hereby established within the Oklahoma Military Department the "Base Infrastructure Needs and Development - Schools Program", which may also be cited as the "BIND - Schools Program". The Department shall utilize funds from the BIND - Schools Fund created in subsection A of this section, alone or in combination with other available funding, to make infrastructure investments, including, but not limited to, new construction, improving common education facilities located on military bases in this state, that will either:

1. Decrease the likelihood of military base and other military infrastructure closures in this state, or

2. Increase the likelihood of military base and other military infrastructure expansions in this state.

SECTION 216. AMENDATORY Section 1, Chapter 453, O.S.L. 2025 (44 O.S. Supp. 2025, Section 301B), is amended to read as follows:

Section 301B. A. There is hereby created in the State Treasury a revolving fund for the Oklahoma Military Department to be designated the "Base Infrastructure Needs and Development - Technology Revolving Fund", which may also be cited as "BIND - Technology Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies directed

1 for deposit to the fund by law. All monies accruing to the credit
2 of said fund are hereby appropriated and may be budgeted and
3 expended by the Oklahoma Military Department for the purpose
4 established in subsection B of this section. Expenditures from said
5 fund shall be made upon warrants issued by the State Treasurer
6 against claims filed as prescribed by law with the ~~Director~~ Chief
7 Operating Officer of the Office of Management and Enterprise
8 Services for approval and payment.

9 B. There is hereby established within the Oklahoma Military
10 Department the "Base Infrastructure Needs and Development -
11 Technology Program", which may also be cited as the "BIND -
12 Technology Program". The Department shall utilize funds from the
13 BIND - Technology Fund created in subsection A of this section,
14 alone or in combination with other available funding, to make
15 infrastructure investments, including, but not limited to, the
16 purchase of licenses and software associated with military
17 simulation training, that will either:

18 1. Decrease the likelihood of military base and other military
19 infrastructure closures in this state; or

20 2. Increase the likelihood of military base and other military
21 infrastructure expansions in this state.

22 SECTION 217. AMENDATORY 45 O.S. 2021, Section 938.1, is
23 amended to read as follows:
24

1 Section 938.1. There is hereby created in the State Treasury a
2 revolving fund for the Oklahoma Miner Training Institute to be
3 designated the "Oklahoma Miner Training Institute Revolving Fund".
4 The fund shall be a continuing fund, not subject to fiscal year
5 limitations, and shall consist of all monies designated by Section
6 931 of this title to be deposited in the fund. All monies accruing
7 to the credit of said fund are hereby appropriated and may be
8 budgeted and expended by the Oklahoma Mining Commission for the
9 contract with the Board of Regents of Eastern Oklahoma State College
10 for operation of the Oklahoma Miner Training Institute and
11 associated expenses. Expenditures from said fund shall be made upon
12 warrants issued by the State Treasurer against claims filed as
13 prescribed by law with the ~~Director~~ Chief Operating Officer of the
14 Office of Management and Enterprise Services for approval and
15 payment.

16 SECTION 218. AMENDATORY 47 O.S. 2021, Section 2-122, is
17 amended to read as follows:

18 Section 2-122. A. The Commissioner of Public Safety is
19 authorized to receive funds from gifts, federal and state agency
20 sources, state and local agency employees, and tuition and fees for
21 room and meals from users of the Robert R. Lester Training Center
22 and other training facilities of the Department of Public Safety.
23 All amounts collected shall be deposited in the State Treasury to
24 the credit of the Department of Public Safety Revolving Fund.

1 B. The Commissioner or designee is authorized to receive
2 contributions, gifts and donations for the sole benefit and
3 operation of the education programs of the Department including, but
4 not limited to, the Drug Abuse Resistance Education (D.A.R.E.)
5 Program. All monies received by the Commissioner or designee
6 pursuant to this subsection shall be deposited to the credit of the
7 Department of Public Safety Restricted Revolving Fund and shall be
8 expended by the Department solely for the purposes of the operation
9 of the education programs of the Department. All other property
10 received by the Commissioner or designee pursuant to this subsection
11 shall be held by the Department in trust under the terms and
12 conditions imposed by the donors, and title to any and all property
13 acquired, granted or donated to the Department shall be taken in the
14 name of the state to be held for the use and benefit of such
15 education programs of the Department under the conditions of the
16 grants or donations. Provided, however, no real property shall be
17 accepted by the Commissioner or designee for the purposes of this
18 subsection.

19 C. There is hereby created a petty cash fund for the Department
20 of Public Safety. Said fund shall be used by the Department to
21 operate cash drawers as necessary. The amount of the petty cash
22 fund shall be determined by the ~~Director~~ Chief Operating Officer of
23 the Office of Management and Enterprise Services and the
24 Commissioner of Public Safety. Purchases from the petty cash fund

1 shall be prohibited. The ~~Director~~ Chief Operating Officer of the
2 Office of Management and Enterprise Services shall be authorized to
3 prescribe forms, systems and procedures for the administration of
4 the petty cash fund.

5 SECTION 219. AMENDATORY 47 O.S. 2021, Section 2-142, is
6 amended to read as follows:

7 Section 2-142. There is hereby created in the State Treasury a
8 revolving fund for the Department of Public Safety, to be designated
9 the "Computer Imaging System Revolving Fund". The fund shall be a
10 continuing fund not subject to fiscal year limitations. All monies
11 accruing to the credit of said fund are hereby appropriated and
12 shall be budgeted and expended by the Department for the exclusive
13 purpose of implementing, developing, administering, and maintaining
14 the computer imaging system of the Department of Public Safety.
15 Expenditures from said fund shall be made upon warrants issued by
16 the State Treasurer against claims filed as prescribed by law with
17 the ~~Director~~ Chief Operating Officer of the Office of Management and
18 Enterprise Services for approval and payment.

19 SECTION 220. AMENDATORY 47 O.S. 2021, Section 2-143, is
20 amended to read as follows:

21 Section 2-143. There is hereby created in the State Treasury a
22 revolving fund for the Department of Public Safety, to be designated
23 the "Department of Public Safety Patrol Vehicle Revolving Fund".
24 The fund shall be a continuing fund, not subject to fiscal year

1 limitations. All monies accruing to the credit of the fund are
2 hereby appropriated and shall be budgeted and expended by the
3 Department for the purpose of purchasing, equipping, and maintaining
4 of patrol vehicles and patrol aircraft and for any other purpose
5 related to the duties and responsibilities of the Transportation
6 Division of the Department, as well as any other operational
7 expenses of the Oklahoma Highway Patrol. No monies shall be
8 expended from this fund without expressed authorization by the
9 Legislature. Expenditures from said fund shall be made upon
10 warrants issued by the State Treasurer against claims filed as
11 prescribed by law with the ~~Director~~ Chief Operating Officer of the
12 Office of Management and Enterprise Services for approval and
13 payment.

14 SECTION 221. AMENDATORY 47 O.S. 2021, Section 2-144.1,
15 is amended to read as follows:

16 Section 2-144.1. A. There is hereby created in the State
17 Treasury a revolving fund for the Department of Public Safety to be
18 designated the Department of Public Safety Revolving Fund. The fund
19 shall be a continuing fund, not subject to fiscal year limitations,
20 and shall consist of all money received by the Department of Public
21 Safety from:

- 22 1. Sale of surplus property;
- 23 2. Insurance and other reimbursements for damaged, lost or
24 stolen property;

1 3. Reimbursement for services of Department personnel as
2 approved by the Department if such personnel are representing the
3 Department or are in any uniform of the Department;

4 4. Reimbursement for supplies or facsimile or data
5 transmissions or for contractual services or products not otherwise
6 provided by law;

7 5. Fees and costs paid by subscribers to the Oklahoma Law
8 Enforcement Telecommunications Systems;

9 6. Refund of federal gasoline tax;

10 7. Reimbursements by federal, state and municipal government
11 agencies for the use of Department of Public Safety airplanes;

12 8. Fees from users of the Robert R. Lester Training Center or
13 other Department of Public Safety training facilities;

14 9. Federal funds, unless otherwise provided by federal law or
15 regulation; and

16 10. Any other funds received pursuant to law and designated for
17 deposit into the fund.

18 B. All monies accruing to the credit of the fund are hereby
19 appropriated and may be budgeted and expended by the Department of
20 Public Safety for the operating expenses of the Department.

21 C. The ~~Director~~ Chief Operating Officer of the Office of the
22 Office of Management and Enterprise Services shall provide a
23 distinct numbering system for the identification and tracking of the
24

expenditures of the various programs budgeted from the revolving fund.

D. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 222. AMENDATORY 47 O.S. 2021, Section 2-145, is amended to read as follows:

Section 2-145. A. There is hereby created in the State Treasury a revolving fund for the Department of Public Safety, to be designated the "Department of Public Safety Restricted Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations. All monies accruing to the credit of said fund are hereby appropriated and shall be budgeted and expended by the Department of Public Safety for the restricted purposes of the monies as prescribed by law. Expenditures from said funds shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

B. Any statutory references to the Department of Public Safety Revolving Fund shall mean the Department of Public Safety Restricted Revolving Fund, as provided for in this section, whenever the expenditure of the monies is restricted by law.

1 C. The Department of Public Safety shall transfer all funds,
2 for which expenditure is restricted by law, from the Department of
3 Public Safety Revolving Fund to the Department of Public Safety
4 Restricted Revolving Fund.

5 SECTION 223. AMENDATORY 47 O.S. 2021, Section 2-303, is
6 amended to read as follows:

7 Section 2-303. A. There is hereby created in the State
8 Treasury a revolving fund for the Department of Public Safety, to be
9 designated the "Department of Public Safety Patrol Academy Revolving
10 Fund". The fund shall be a continuing fund, not subject to fiscal
11 year limitations. All monies accruing to the credit of said fund
12 are hereby appropriated and shall be budgeted and expended by the
13 Department of Public Safety for the exclusive purpose of Oklahoma
14 Highway Patrol Trooper Academies. Expenditures from said fund shall
15 be made upon warrants issued by the State Treasurer against claims
16 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
17 of the Office of Management and Enterprise Services for approval and
18 payment.

19 B. On or before December 1 of each year, the Department of
20 Public Safety shall provide a written report on all Oklahoma Highway
21 Patrol Trooper Academies conducted in the then current and preceding
22 state fiscal year to the Speaker of the Oklahoma House of
23 Representatives, the President Pro Tempore of the Oklahoma State
24 Senate, the Chair of the Appropriations and Budget Committee of the

Oklahoma House of Representatives, and the Chair of the Appropriations Committee of the Oklahoma State Senate. Such report shall include, but not be limited to, the following information for the then current and preceding state fiscal year:

1. A description of all expenditures from the Department of Public Safety Patrol Academy Revolving Fund;

2. A description of the source of all monies accruing to the credit of the Department of Public Safety Patrol Academy Revolving Fund;

3. A description of all expenditures, including the source of funds for said expenditures, used to conduct each academy;

4. The total number of applicants for each academy;

5. The total number of persons admitted for each academy;

6. The total number of persons graduating from each academy;

7. The total number of persons graduating from each academy that do not accept a position within the Oklahoma Highway Patrol;

8. The total number of persons graduating from each academy that, upon accepting a position within the Oklahoma Highway Patrol, do not complete service of an initial probationary period as determined by the Department of Public Safety;

9. The net number of troopers added to the Oklahoma Highway Patrol in a calendar year;

10. A description of any academies planned to be conducted in the upcoming state fiscal year; and

11. A description of any planned academy or academies to be conducted within the remaining fiscal year that includes, but is not limited to, the estimated cost of the academy and the proposed source or sources of funding.

SECTION 224. AMENDATORY 47 O.S. 2021, Section 2-303, is amended to read as follows:

Section 2-303. A. There shall be an "Oklahoma Law Enforcement Retirement Board" to administer the fund of the System. The Board shall be composed of the Commissioner of Public Safety or his designee, the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services or his designee, three members to be appointed by the Governor one of whom shall be a retired member of the System, one member to be appointed by the Speaker of the House of Representatives, one member to be appointed by the President Pro Tempore of the Senate, two members of the Highway Patrol Division and one member of the Communication Division of the Department of Public Safety, one member of the Oklahoma State Bureau of Investigation, one member of the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control and one member of the Alcoholic Beverage Laws Enforcement Commission, elected by and from the membership of the System. The terms of elected members of the Board now serving shall expire on June 30, 1980. The present Board shall conduct an election for the selection of elected members of the Board, prior to the operative date of this act. One member of

1 the Oklahoma Highway Patrol and the member of the Oklahoma State
2 Bureau of Investigation, initially elected, shall serve through June
3 30, 1982, the member of the Oklahoma Alcoholic Beverage Control
4 Board, initially elected, shall serve through June 30, 1984, and the
5 remaining elected members shall serve through June 30, 1983.

6 Members subsequently elected shall serve for terms of three (3)
7 years.

8 B. 1. The initial term of office of the member appointed to
9 the Board by the Speaker of the House of Representatives and the
10 member appointed to the Board by the President Pro Tempore of the
11 Senate shall expire on January 3, 1989. The members thereafter
12 appointed by the Speaker of the House of Representatives and by the
13 President Pro Tempore of the Senate shall serve terms of office of
14 four (4) years.

15 2. The member appointed by the Governor serving on the Board on
16 the operative date of this act shall serve the remainder of the
17 unexpired term of the member. The member appointed by the Governor
18 to fill that position after the expiration of the term of office of
19 the member serving on the operative date of this act shall serve
20 through January 13, 1991. The members thereafter appointed by the
21 Governor shall serve a term of office of four (4) years which is
22 coterminous with the term of office of the office of the appointing
23 authority.

1 3. The initial term of office of the two additional
2 appointments to the Board by the Governor shall expire on January
3 14, 1991. The members thereafter appointed by the Governor shall
4 serve terms of office of four (4) years which are coterminous with
5 the term of office of the office of the appointing authority.

6 4. Vacancies shall be filled for the unexpired term of office
7 in the same manner as the original appointment was made.

8 C. The members appointed to the Board by the Speaker of the
9 House of Representatives, by the President Pro Tempore of the Senate
10 and by the Governor or a member who is a designee of an ex officio
11 member of the Board shall:

12 1. Have demonstrated professional experience in investment or
13 funds management, public funds management, public or private pension
14 fund management or retirement system management; or

15 2. Have demonstrated experience in the banking profession and
16 have demonstrated professional experience in investment or funds
17 management; or

18 3. Be licensed to practice law in this state and have
19 demonstrated professional experience in commercial matters; or

20 4. Be licensed by the Oklahoma Accountancy Board to practice in
21 this state as a public accountant or a certified public accountant.

22 The appointing authorities, in making appointments that conform
23 to the requirements of this subsection, shall give due consideration
24

1 to balancing the appointments among the criteria specified in
2 paragraphs 1 through 4 of this subsection.

3 D. No member of the Board shall be a lobbyist registered in
4 this state as provided by law.

5 E. Notwithstanding any of the provisions of this section to the
6 contrary, any person serving as an appointed member of the Board on
7 the operative date of this act shall be eligible for reappointment
8 when the term of office of the member expires.

9 F. Every two (2) years, one of the members of the Board shall
10 be selected by the Board as president and another member as
11 secretary of the Board.

12 G. Any member of the Board elected by the membership of the
13 System may be recalled for cause at a special election held for that
14 purpose by the members of the System. Such an election shall be
15 called and held by the president and secretary of the Board upon a
16 written request therefor signed by not less than one-third (1/3) of
17 the members of the System and shall be held pursuant to notice given
18 to all members of the System stating the date for such election
19 which shall not be less than ten (10) days from the date of the
20 issuance of such notice. All members of the System shall be
21 entitled to vote by secret ballot and, if two-thirds (2/3) or more
22 of the membership of the System vote for his recall, the elected
23 member of the Board designated in such request, notice and secret
24 ballot shall cease to be a member of the Board and the president and

1 secretary of the Board shall call and hold a special election by the
2 members of the System to fill the remainder of the term of the
3 member so recalled.

4 H. The Oklahoma Law Enforcement Retirement System shall retain
5 an Executive Director and shall establish the Executive Director's
6 compensation. The Executive Director shall be the managing and
7 administrative officer of the System and as such shall have charge
8 of the office, records and supervision and direction of the
9 employees of the System. The Executive Director shall be
10 responsible for the overall operations and to perform duties
11 specified in Section 2-300 of this title and as specified by the
12 Board. The Executive Director shall be subject to the policy
13 directions of the Board and may employ such persons as are deemed
14 necessary to administer the System.

15 SECTION 225. AMENDATORY 47 O.S. 2021, Section 2-310.1,
16 is amended to read as follows:

17 Section 2-310.1. A. Whenever any member currently working in a
18 position identified by paragraph 6 of Section 2-300 of this title or
19 Section 2-314 of this title and enrolled in the Oklahoma Law
20 Enforcement Retirement System is injured in the line of duty, an
21 Injury Review Board consisting of one member to be appointed by the
22 member's employer, one member to be appointed by the ~~Director~~ Chief
23 Operating Officer of the Office of Management and Enterprise
24 Services and one member to be appointed by the Governor shall

1 convene to determine if the injured member was actually injured in
2 the line of duty and whether the injured member should be granted
3 leave because of the injury. The Injury Review Board may, in its
4 discretion, grant the injured member leave when necessary, not to
5 exceed one hundred sixty-five (165) working days for the illness or
6 injury.

7 B. For the purpose of this section, "illness or injury" shall
8 include any serious illness or serious injury caused by or
9 contracted during the performance of the member's duty. Every state
10 agency which employs persons eligible for membership in the Oklahoma
11 Law Enforcement Retirement System shall participate in the joint
12 promulgation of a rule which shall set out mutually agreeable
13 guidelines for the categorization of an illness or injury as
14 serious. Upon promulgation of the rule, each of the state agencies
15 shall individually adopt the rule. The wording of the rule, as
16 adopted and as amended by the agencies from time to time, shall
17 remain in conformity for each of the state agencies.

18 C. The three-member Injury Review Board shall be convened
19 following a written request submitted by the injured member to the
20 injured member's employer. The employer shall forward the request
21 to the ~~Director~~ Chief Operating Officer of the Office of Management
22 and Enterprise Services. The employer may submit the request on
23 behalf of an injured member. The Director's appointee shall then
24 convene and chair the Injury Review Board. The Injury Review Board

1 may request the injured member to submit to an examination by a
2 physician selected by the Board at the employer's expense to assist
3 the Board in making a decision. A decision to grant or deny such
4 paid leave shall be determined by concurrence in writing of not less
5 than two Injury Review Board members. If granted, said leave shall
6 be paid by the employing agency.

7 D. While such leave is being paid, the employee shall continue
8 to accrue leave and service credit at the same rate as before the
9 illness or injury. The employee's portion of health, dental, life
10 and disability insurance premiums and the employee's contribution to
11 the Oklahoma Law Enforcement Retirement System shall be deducted by
12 the employing agency from the paid leave and remitted to the
13 appropriate agencies, in the same manner as before the illness or
14 injury.

15 SECTION 226. AMENDATORY Section 6, Chapter 282, O.S.L.
16 2022, as last amended by Section 32, Chapter 452, O.S.L. 2024 (47
17 O.S. Supp. 2025, Section 3-106), is amended to read as follows:

18 Section 3-106. A. There is hereby created in the State
19 Treasury a revolving fund for Service Oklahoma to be designated the
20 "Service Oklahoma Revolving Fund". The fund shall be a continuing
21 fund, not subject to fiscal year limitations. All monies accruing
22 to the credit of the fund are hereby appropriated and shall be
23 budgeted and expended by Service Oklahoma for the restricted
24 purposes of the monies as prescribed by law. Expenditures from the

1 fund shall be made upon warrants issued by the State Treasurer
2 against claims filed as prescribed by law with the ~~Director~~ Chief
3 Operating Officer of the Office of Management and Enterprise
4 Services for approval and payment.

5 B. There is hereby created in the State Treasury a revolving
6 fund for Service Oklahoma to be designated the "Service Oklahoma
7 Reimbursement Fund". The fund shall be a continuing fund, not
8 subject to fiscal year limitations. All monies accruing to the
9 credit of the fund are hereby appropriated and shall be budgeted and
10 expended by Service Oklahoma for the restricted purposes of the
11 monies as prescribed by law. Expenditures from the fund shall be
12 made upon warrants issued by the State Treasurer against claims
13 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
14 of the Office of Management and Enterprise Services for approval and
15 payment.

16 C. There is hereby created in the State Treasury a revolving
17 fund for Service Oklahoma, to be designated the "Service Oklahoma
18 Computer Imaging System Revolving Fund". The fund shall be a
19 continuing fund not subject to fiscal year limitations. All monies
20 accruing to the credit of the fund are hereby appropriated and shall
21 be budgeted and expended by Service Oklahoma for the purpose of
22 implementing, developing, administering, and maintaining the
23 computer imaging system of Service Oklahoma. Expenditures from the
24 fund shall be made upon warrants issued by the State Treasurer

1 against claims filed as prescribed by law with the ~~Director~~ Chief
2 Operating Officer of the Office of Management and Enterprise
3 Services for approval and payment.

4 D. There is hereby created in the State Treasury a revolving
5 fund for Service Oklahoma to be designated the "Licensed Operator
6 Performance Fund". This fund shall be a continuing fund not subject
7 to fiscal year limitations. All monies accruing to the credit of
8 the fund are hereby appropriated and shall be budgeted and expended
9 by Service Oklahoma for the restricted purposes of the monies as
10 prescribed by law. Expenditures from the fund shall be made upon
11 warrants issued by the State Treasurer against claims filed as
12 prescribed by law with the ~~Director~~ Chief Operating Officer of the
13 Office of Management and Enterprise Services for approval and
14 payment.

15 1. The Licensed Operator Performance Fund shall be distributed
16 to licensed operators in accordance with the applicable metrics
17 determined by Service Oklahoma.

18 2. In the event that excess funds exist in the Licensed
19 Operator Performance Fund after distribution to licensed operators
20 pursuant to this subsection, the remaining funds are authorized to
21 be expended for the purpose of purchasing back a licensed operator
22 license from a licensed operator, pursuant to Section 1140 of this
23 title.
24

1 E. There is hereby created a Petty Cash Fund for Service
2 Oklahoma. The fund shall be used by Service Oklahoma to operate
3 cash drawers as necessary. The amount of the Petty Cash Fund shall
4 be determined by the Director of Service Oklahoma and the ~~Director~~
5 Chief Operating Officer of the Office of Management and Enterprise
6 Services. Purchases from the Petty Cash Fund shall be prohibited.
7 The ~~Director~~ Chief Operating Officer of Management and Enterprise
8 Services shall be authorized to prescribe forms, systems, and
9 procedures for the administration of the Petty Cash Fund.

10 SECTION 227. AMENDATORY 47 O.S. 2021, Section 11-403.2a,
11 is amended to read as follows:

12 Section 11-403.2a. A. All unencumbered balances contained in
13 the Motorcycle Safety and Drunk Driving Awareness Fund as of April
14 30, 2007, shall be deposited to the credit of the Department of
15 Public Safety Revolving Fund of the State Treasury. The ~~Director~~
16 Chief Operating Officer of the Office of Management and Enterprise
17 Services shall be authorized to transfer the unencumbered balance
18 described by this subsection to the Department of Public Safety
19 Revolving Fund.

20 B. Any unexpended balance contained in the Motorcycle Safety
21 and Drunk Driving Awareness Fund as of April 30, 2007, shall be
22 transferred and deposited to the credit of the Department of Public
23 Safety Revolving Fund of the State Treasury. The ~~Director~~ Chief
24 Operating Officer of the Office of Management and Enterprise

Services shall be authorized to transfer the unexpended balance described by this subsection to the Department of Public Safety Revolving Fund.

SECTION 228. AMENDATORY 47 O.S. 2021, Section 11-902d, is amended to read as follows:

Section 11-902d. A. The Commissioner of the Department of Public Safety is hereby authorized to oversee the creation, development and implementation of a statewide impaired driver database with assistance from the Office of Management and Enterprise Services subject to fiscal limitations and the availability of federal funds.

B. In any case in which a person is arrested for driving under the influence of alcohol or any other intoxicating substance, an impaired driver arrest report shall be completed by the law enforcement officer that made the arrest and shall be entered into the impaired driver database. The Commissioner shall prescribe the form and format of the impaired driver arrest report.

C. There is hereby created in the State Treasury a revolving fund for the Department of Public Safety to be designated the "Oklahoma Impaired Driver Database Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Department for the exclusive purpose of implementing, developing, administering and maintaining

1 an impaired driver database. Expenditures from the funds shall be
2 made upon warrants issued by the State Treasurer against claims
3 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
4 of the Office of Management and Enterprise Services for approval and
5 payment.

6 SECTION 229. AMENDATORY 47 O.S. 2021, Section 40-123, is
7 amended to read as follows:

8 Section 40-123. There is hereby created in the State Treasury a
9 revolving fund for the Department of Public Safety to be designated
10 the "Motorcycle Safety and Education Program Revolving Fund". The
11 fund shall be a continuing fund, not subject to fiscal year
12 limitations, and shall consist of all fees, donations, federal funds
13 and grants received for the purpose of motorcycle safety and
14 education programming. All monies accruing to the credit of said
15 fund are hereby appropriated and may be budgeted and expended by the
16 Commissioner of Public Safety for the purpose of operating the
17 Motorcycle Safety and Education Program. Expenditures from said
18 fund shall be made upon warrants issued by the State Treasurer
19 against claims filed as prescribed by law with the ~~Director~~ Chief
20 Operating Officer of the Office of Management and Enterprise
21 Services for approval and payment.

22 SECTION 230. AMENDATORY 47 O.S. 2021, Section 156.3, is
23 amended to read as follows:

1 Section 156.3. A. This act, Section 151 et seq. of this title,
2 shall not apply to and shall not be so construed as prohibiting the
3 purchase and use of trucks or pickups by state agencies when the
4 trucks or pickups are necessary for the performance of official
5 duties of the state agency.

6 B. Trucks and pickups owned and operated by the Department of
7 Transportation shall be painted either yellow or white, and except
8 as otherwise provided by law, shall be plainly marked with the words
9 "State of Oklahoma" followed by the name of the department.

10 C. The provisions of this section shall not be construed to
11 permit the purchase of any motor vehicle of ten thousand (10,000)
12 pounds or less gross vehicle weight.

13 D. All acquisitions of any motor vehicle of ten thousand
14 (10,000) pounds or less gross vehicle weight shall be approved by
15 the ~~Director~~ Chief Operating Officer of the Office of Management and
16 Enterprise Services as provided for in Section 78a of Title 74 of
17 the Oklahoma Statutes.

18 SECTION 231. AMENDATORY 47 O.S. 2021, Section 577, is
19 amended to read as follows:

20 Section 577. The ~~Director~~ Chief Operating Officer of the Office
21 of Management and Enterprise Services is authorized to prescribe
22 forms, systems and procedures for its administration. The petty
23 cash fund may be reimbursed from time to time by the filing of
24 proper claims, accompanied by valid receipts for expenditures made.

SECTION 232. AMENDATORY 47 O.S. 2021, Section 582, as last amended by Section 4, Chapter 236, O.S.L. 2024 (47 O.S. Supp. 2025, Section 582), is amended to read as follows:

Section 582. A. There is hereby created the Oklahoma Used Motor Vehicle, Dismantler, and Manufactured Housing Commission, to be composed of ten (10) members who shall be selected as follows:

1. One member shall be appointed from each congressional district and any remaining members, including the chair, shall be appointed from the state at large. However, when congressional districts are redrawn, each member appointed prior to July 1 of the year in which such modification becomes effective shall complete the current term of office and appointments made after July 1 of the year in which such modification becomes effective shall be based on the redrawn districts. Appointments made after July 1 of the year in which such modification becomes effective shall be from any redrawn districts which are not represented by a board member until such time as each of the modified congressional districts are represented by a board member; provided, the chair shall be appointed at large without regard to congressional district representation on the board;

2. All members shall be appointed by the Governor, by and with the advice and consent of the Senate;

3. a. Each of the members appointed from a congressional district shall, at the time of appointment, be a

1 resident in good faith of the congressional district
2 from which appointed, and

3 b. Each of the members appointed from the state at large
4 shall, at the time of appointment and during the
5 period of service, be residents in good faith of the
6 state;

7 4. Each member shall be of good moral character and, for the
8 ten-year period immediately preceding appointment, each of the used
9 motor vehicle dealer representatives shall have been licensed for
10 and actually engaged in the distribution or sale of used motor
11 vehicles; each of the dismantler representatives shall have actually
12 been licensed for and engaged in the principal business of
13 dismantling or disassembling motor vehicles for the purpose of
14 selling the parts thereof; and the manufactured housing
15 representative shall have been licensed for and actually engaged in
16 the principal business of selling manufactured homes; and

17 5. Eight members plus the chair shall be engaged in the used
18 motor vehicle industry or the automotive dismantler industry. There
19 shall not be fewer than five members engaged in the principal
20 business of the sale of used motor vehicles and there shall not be
21 fewer than two members engaged in the principal business of
22 dismantling or disassembling motor vehicles for the purpose of
23 selling the parts thereof. One of the at-large members shall be
24 engaged in the principal business of selling manufactured homes as a

1 licensed manufactured home dealer. Being engaged in one or more of
2 such pursuits shall not disqualify a person otherwise qualified from
3 serving on the Commission.

4 B. 1. The term of the chair shall be coterminous with that of
5 the Governor making the appointment, and until a successor is
6 appointed and is qualified.

7 2. The terms of office of each member of the Commission shall
8 be subject to the following:

9 a. the Commission shall determine and certify the trade
10 associations of manufactured home dealers that
11 represent ten percent (10%) or more of the number of
12 licensed manufactured home dealers in the state and
13 shall certify each such association to the Governor.
14 The Governor shall request a minimum of ten names from
15 each such association and shall select one member from
16 the manufactured home industry from the names
17 provided,

18 b. each member actively serving July 1, 2000, who was
19 appointed on or before June 30, 2000, shall remain and
20 fulfill the term of his or her membership as set forth
21 at the appointment,

22 c. except for the chair, the term of office of each
23 member of the Commission shall be for six (6) years,
24

- 1 d. except for the chair and the at-large members, the
2 term of office of any member will automatically expire
3 if the member moves out of the congressional district
4 from which appointed; however, if the congressional
5 districts are modified each member shall complete the
6 current term of office as provided in this section,
7 e. in event of death, resignation, or removal of any
8 person serving on the Commission, the vacancy shall be
9 filled by appointment as aforesaid for the unexpired
10 portion of the term, and
11 f. except for the chair, when the term of a member
12 automatically expires, the vacancy shall be filled by
13 appointment of a qualified successor for a term of six
14 (6) years as aforesaid, except that the member shall
15 serve until a successor is appointed and qualified.

16 3. The chair and each member of the Commission shall take and
17 subscribe to the oath of office required of public officers.

18 C. The chair and members of the Commission shall receive Thirty
19 Dollars (\$30.00) for each and every day actually and necessarily
20 spent in attending the meetings of the Commission, and shall be
21 reimbursed for subsistence and traveling expenses incurred in the
22 performance of their duties hereunder as provided by the State
23 Travel Reimbursement Act; provided that such meeting payments shall
24

1 not exceed the sum of Six Hundred Dollars (\$600.00) per annum to any
2 one person.

3 D. 1. a. The Commission shall appoint a qualified person to
4 serve as Executive Director who shall have had
5 sufficient management and organizational experience in
6 the automotive industry to direct the functions of the
7 Commission.

8 b. The Executive Director shall be appointed for a term
9 of six (6) years, and shall not be subject to
10 dismissal or removal without cause.

11 c. The Commission shall fix the salary and define and
12 prescribe the duties of the Executive Director.

13 d. The Executive Director shall be in charge of the
14 Commission's office, shall devote such time as
15 necessary to fulfill the duties thereof, and, before
16 entering upon these duties, shall take and subscribe
17 to the oath of office.

18 2. The Commission may employ such clerical, technical, legal,
19 and other help and incur such expenses as may be necessary for the
20 proper discharge of its duties under Section 581 et seq. of this
21 title and Section 2 of this act.

22 3. The Commission shall maintain its office and transact its
23 business in Oklahoma City, and is authorized to adopt and use a
24 seal.

1 E. 1. a. The Commission is hereby vested with the powers and
2 duties necessary and proper to enable it to fully and
3 effectively carry out the provisions and objectives of
4 Section 581 et seq. of this title and Section 2 of
5 this act, and is hereby authorized and empowered,
6 pursuant to the Administrative Procedures Act, to make
7 and enforce all reasonable rules and to adopt and
8 prescribe all forms necessary to accomplish such
9 purpose.

10 b. The Commission shall promulgate rules for the
11 licensing of manufactured home installers and the
12 installation, which is the blocking, anchoring, and
13 leveling of mobile and manufactured homes that meet
14 the standards of the manufacturer's manual or the
15 Commission.

16 c. The Commission shall promulgate rules to prescribe the
17 contents of manufactured home sales agreements and to
18 require that each manufactured home manufacturer issue
19 with each new manufactured home a warranty comparable
20 to warranties generally in use in the industry
21 warranting the manufactured home to be free from
22 material defects.

d. The enumeration of any power or authority herein shall not be construed to deny, impair, disparage, or limit any others necessary to the attainment thereof.

e. A copy of all rules adopted by the Commission shall be filed and recorded in the Office of the Secretary of State and the State Librarian and State Archivist, and same may be amended, modified, or repealed from time to time.

2. The Commission's powers and duties shall include, but not be limited to, the following:

a. to license used motor vehicle dealers, wholesale used motor vehicle dealers, dismantlers, manufactured home dealers, manufactured home manufacturers, and manufactured home installers,

b. to inspect used motor vehicle dealer, dismantler and manufactured home dealer locations, and manufactured home manufacturers' factories or assembly sites to ensure that they are in an approved location, meet local zoning or other municipal requirements, and have sufficient facilities which shall include, but not be limited to, for retail businesses, a business sign, a listed and usable telephone number, a restroom, and a sales office,

- c. to inspect wholesale used motor vehicle dealer locations to ensure that they are in an approved location, meet local zoning or other municipal requirements, and have sufficient facilities which shall include, but not be limited to, a listed and usable telephone number in the dealer's name and a business office where records of the business are kept,
- d. to require all dealer sales to have a condition of sale such as a warranty disclaimer, implied or written warranty, or a service contract approved by the Commission,
- e. to work with consumers and dealers to hear complaints on used vehicles and manufactured homes, including installation, and
- f. to serve as a dispute resolution panel for binding arbitration in accordance with Section 1851 et seq. of Title 12 of the Oklahoma Statutes in contract controversies between licensed used motor vehicle dealers, dismantlers, and manufactured housing dealers, manufactured home dealers, installers, and manufacturers and their consumers when, by mutual written agreement executed after the dispute between the parties has arisen, both parties have agreed to

1 use the Commission as their arbitration panel for
2 contract disputes.

3 F. 1. All fees and charges collected under the provisions of
4 Section 581 et seq. of this title and Section 2 of this act shall be
5 deposited by the Executive Director in the State Treasury in
6 accordance with the depository laws of this state in a special fund
7 to be known as the "Oklahoma Used Motor Vehicle, Dismantler, and
8 Manufactured Housing Commission Fund", which fund is hereby created.
9 Except as hereinafter provided, the monies in the fund shall be used
10 by the Commission for the purpose of carrying out and enforcing the
11 provisions of Section 581 et seq. of this title and Section 2 of
12 this act. Expenditures from the fund shall be warrants issued by
13 the State Treasurer against claims submitted by the Commission to
14 the ~~Director~~ Chief Operating Officer of the Office of Management and
15 Enterprise Services for approval.

16 2. At the close of each fiscal year, the Commission shall file
17 with the Governor and the State Auditor and Inspector a true and
18 correct report of all fees and charges collected and received by it
19 during the preceding fiscal year and shall at the same time pay into
20 the General Revenue Fund of the state a sum equal to ten percent
21 (10%) of the gross fees and charges so collected and received.

22 3. All expenses incurred by the Commission in carrying out the
23 provisions of Section 581 et seq. of this title and Section 2 of
24 this act including, but not limited to, per diem, wages, salaries,

1 rent, postage, advertising, supplies, bond premiums, travel, and
2 subsistence for the Commissioners, the Executive Director,
3 employees, and legal counsel, and printing and utilities, shall be a
4 proper charge against the fund, exclusive of the portion thereof to
5 be paid into the General Revenue Fund as above set out; provided,
6 that in no event shall liability ever accrue hereunder against the
7 state in any sum whatsoever, or against the Oklahoma Used Motor
8 Vehicle, Dismantler, and Manufactured Housing Commission Fund, in
9 excess of the ninety percent (90%) of the fees and charges deposited
10 therein.

11 SECTION 233. AMENDATORY 47 O.S. 2021, Section 587, as
12 amended by Section 6, Chapter 107, O.S.L. 2022 (47 O.S. Supp. 2025,
13 Section 587), is amended to read as follows:

14 Section 587. A. There is hereby created a petty cash fund not
15 to exceed One Hundred Dollars (\$100.00) for the Oklahoma Used Motor
16 Vehicle, Dismantler, and Manufactured Housing Commission, which may
17 be expended for small authorized expenses of the Commission.

18 B. The ~~Director~~ Chief Operating Officer of the Office of
19 Management and Enterprise Services is authorized to prescribe forms,
20 systems and procedures for its administration. The petty cash fund
21 may be reimbursed from time to time by the filing of proper claims,
22 accompanied by valid receipts for expenditures made.

SECTION 234. AMENDATORY 47 O.S. 2021, Section 759, as last amended by Section 14, Chapter 330, O.S.L. 2025 (47 O.S. Supp. 2025, Section 759), is amended to read as follows:

Section 759. A. There is hereby re-created, to continue until July 1, 2026, in accordance with the provisions of the Oklahoma Sunset Law, the Board of Tests for Alcohol and Drug Influence to be composed of the following members beginning July 1, 2015:

1. The Dean of the Oklahoma State University College of Osteopathic Medicine, or a designee;

2. The Dean of the University of Oklahoma College of Medicine, or a designee;

3. The Commissioner of Public Safety, or a designee;

4. The Director of the Oklahoma State Bureau of Investigation, or a designee;

5. The State Commissioner of Health, or a designee;

6. The Director of the Council on Law Enforcement Education and Training, or a designee;

7. One certified peace officer who is a member of a local law enforcement agency selected by the Oklahoma Sheriffs and Peace Officers Association; and

8. One person selected by the Oklahoma Association of Chiefs of Police.

Members shall serve without pay other than reimbursement of necessary and actual expenses as provided in the State Travel

1 Reimbursement Act. Each member shall receive an appointment in
2 writing which shall become a permanent part of the records of the
3 Board. The chair and vice-chair shall be elected from the
4 membership of the Board every two (2) years. The Board is
5 authorized to appoint a State Director of Tests for Alcohol and Drug
6 Influence and other employees, including, but not limited to,
7 persons to conduct training and provide administrative assistance as
8 necessary for the performance of its functions, subject to available
9 funding and authorized full-time equivalent employee limitations.
10 The Board may expend appropriated funds for purposes consistent with
11 Sections 751 through 761 of this title and Sections 301 through 308
12 of Title 3 of the Oklahoma Statutes. The Legislature shall
13 appropriate funds to the Department of Public Safety for the support
14 of the Board of Tests For Alcohol and Drug Influence and its
15 employees, if any. Upon the transfer of any employees from the
16 Alcohol Drug Countermeasures Unit of the Department of Public Safety
17 to the Board of Tests For Alcohol and Drug Influence on July 1,
18 2003, all funds of the Unit appropriated and budgeted shall be
19 transferred to the Board, and may be budgeted and expended to
20 support the functions and personnel of the Board.

21 B. The Board is authorized to prescribe uniform standards and
22 conditions for, and to approve satisfactory methods, procedures,
23 techniques, devices, equipment and records for, tests and analyses
24 and to prescribe and approve the requisite education and training

1 for the performance of tests or analyses of breath to determine the
2 breath alcohol concentration. The Board shall establish standards
3 for and ascertain the qualifications and competence of individuals
4 to administer tests and analyses of breath to determine the breath
5 alcohol concentration, and to issue permits to individuals which
6 shall be subject to suspension or revocation at the discretion of
7 the Board. The Board is authorized to prescribe uniform standards,
8 conditions, methods, procedures, techniques, devices, equipment and
9 records for the collection, handling, retention, storage,
10 preservation and delivery of specimens of blood, breath, saliva and
11 urine obtained for the purpose of determining the alcohol
12 concentration thereof or the presence or concentration of any other
13 intoxicating substance therein. The Board may take such other
14 actions as may be reasonably necessary or appropriate to effectuate
15 the purposes of Sections 751 through 761 of this title and Sections
16 301 through 308 of Title 3 of the Oklahoma Statutes, and may adopt,
17 amend and repeal such other rules consistent with this chapter as
18 the Board shall determine proper. The Board is authorized to
19 delegate authority granted in this section to the State Director of
20 Tests as it deems appropriate.

21 C. The Board shall promulgate rules adopting uniform standards
22 and conditions and rules approving devices, equipment, methods,
23 procedures, techniques, and records for screening tests administered
24 for the purpose of determining the presence or concentration of

1 alcohol or any other intoxicating substance in a person's blood,
2 breath, saliva or urine. Such screening tests shall be performed in
3 compliance with the rules adopted by the Board of Tests for Alcohol
4 and Drug Influence. For purposes of this subsection, "screening
5 test" means the use of devices, equipment, methods, procedures,
6 techniques and records by law enforcement officers at roadside to
7 assist in the development of probable cause.

8 D. The Board may set rules and charge appropriate fees for
9 operations incidental to its required duties and responsibilities.

10 E. There is hereby created in the State Treasury a revolving
11 fund for the Board of Tests for Alcohol and Drug Influence to be
12 designated the "Board of Tests for Alcohol and Drug Influence
13 Revolving Fund". The fund shall be a continuing fund, not subject
14 to fiscal year limitations, and shall consist of monies received
15 pursuant to the provisions of subsection D of this section and any
16 funds previously deposited in the Board of Tests for Alcohol and
17 Drug Influence Revolving Fund. All monies accruing to the credit of
18 the fund are hereby appropriated and may be budgeted and expended by
19 the Board of Tests for Alcohol and Drug Influence for operating
20 expenses of the Board. Expenditures from the funds shall be made
21 upon warrants issued by the State Treasurer against claims filed as
22 prescribed by law with the ~~Director~~ Chief Operating Officer of the
23 Office of Management and Enterprise Services for approval and
24 payment.

1 SECTION 235. AMENDATORY 47 O.S. 2021, Section 1104.3, as
2 amended by Section 10, Chapter 171, O.S.L. 2025 (47 O.S. Supp. 2025,
3 Section 1104.3), is amended to read as follows:

4 Section 1104.3. A. Twenty-four Dollars (\$24.00) of the fee
5 authorized by Section 1135.5 of this title for Agricultural
6 Awareness license plates shall be deposited by Service Oklahoma to
7 the Ag in the Classroom Education Revolving Fund created in
8 subsection B of this section.

9 B. There is hereby created in the State Treasury a revolving
10 fund for the State Department of Agriculture to be designated the
11 "Ag in the Classroom Education Revolving Fund". The fund shall be a
12 continuing fund, not subject to fiscal year limitations, and shall
13 consist of all monies received by the Department pursuant to the
14 provisions of subsection A of this section. All monies accruing to
15 the credit of such fund are hereby appropriated and may be budgeted
16 and expended by the Department for the purpose of Ag in the
17 Classroom Education Program. Expenditures from the fund shall be
18 made upon warrants issued by the State Treasurer against claims
19 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
20 of the Office of Management and Enterprise Services for approval and
21 payment.

22 SECTION 236. AMENDATORY 47 O.S. 2021, Section 1104.4, as
23 amended by Section 11, Chapter 171, O.S.L. 2025 (47 O.S. Supp. 2025,
24 Section 1104.4), is amended to read as follows:

1 Section 1104.4. A. Twenty Dollars (\$20.00) of the fee
2 authorized by Section 1135.5 of this title for Four-H license plates
3 shall be deposited by Service Oklahoma in the OSU Extension Service
4 License Plate Revolving Fund created in subsection B of this
5 section.

6 B. There is hereby created in the State Treasury a revolving
7 fund for Oklahoma State University Extension Service to be
8 designated the "OSU Extension Service License Plate Revolving Fund".
9 The fund shall be a continuing fund, not subject to fiscal year
10 limitations, and shall consist of all monies received by the
11 Oklahoma State University Extension Service pursuant to the
12 provisions of Section 1135.5 of this title. All monies accruing to
13 the credit of such fund are hereby appropriated and may be budgeted
14 and expended by the Oklahoma State University Extension Service for
15 the purpose of expenses related to agricultural programs for youth.
16 Expenditures from such fund shall be made upon warrants issued by
17 the State Treasurer against claims filed as prescribed by law with
18 the ~~Director~~ Chief Operating Officer of the Office of Management and
19 Enterprise Services for approval and payment.

20 SECTION 237. AMENDATORY 47 O.S. 2021, Section 1104.5, as
21 amended by Section 12, Chapter 171, O.S.L. 2025 (47 O.S. Supp. 2025,
22 Section 1104.5), is amended to read as follows:

23 Section 1104.5. A. Twenty Dollars (\$20.00) of the fee
24 authorized by Section 1135.5 of this title for Urban Forestry and

1 Beautification license plates shall be deposited by Service Oklahoma
2 to the Urban Forestry and Beautification Revolving Fund created in
3 subsection B of this section.

4 B. There is hereby created in the State Treasury a revolving
5 fund for the Forestry Division of the State Department of
6 Agriculture to be designated "Urban Forestry and Beautification
7 Revolving Fund". The fund shall be a continuing fund, not subject
8 to fiscal year limitations, and shall consist of all monies received
9 by the Department pursuant to the provisions of paragraph 1 of
10 subsection A of this section. All monies accruing to the credit of
11 the fund are hereby appropriated and may be budgeted and expended by
12 the Division for the purpose of contracting with or providing grants
13 to nonprofit organizations that develop and operate programs to
14 encourage urban forestry and beautification. Such organizations may
15 apply to the Department for grants to be paid from the fund, or the
16 Department may solicit bids for contracts for particular services
17 related to urban forestry and beautification to be paid from the
18 fund. Expenditures from the fund shall be made upon warrants issued
19 by the State Treasurer against claims filed as prescribed by law
20 with the ~~Director~~ Chief Operating Officer of the Office of
21 Management and Enterprise Services for approval and payment.

22 SECTION 238. AMENDATORY 47 O.S. 2021, Section 1104.7, as
23 amended by Section 14, Chapter 171, O.S.L. 2025 (47 O.S. Supp. 2025,
24 Section 1104.7), is amended to read as follows:

1 Section 1104.7. A. Twenty Dollars (\$20.00) of the fee
2 authorized by Section 1135.5 of this title for Future Farmers of
3 America license plates shall be deposited by Service Oklahoma to the
4 Oklahoma Department of Career and Technology Education Agriculture
5 Revolving Fund created in subsection B of this section.

6 B. There is hereby created in the State Treasury a revolving
7 fund for the Oklahoma Department of Career and Technology Education
8 to be designated the "Oklahoma Department of Career and Technology
9 Education Agriculture Revolving Fund". The fund shall be a
10 continuing fund, not subject to fiscal year limitations, and shall
11 consist of all monies received by the Department pursuant to the
12 provisions of subsection A of this section. All monies accruing to
13 the credit of the fund are hereby appropriated and may be budgeted
14 and expended by the Department for the purpose of funding programs
15 and services to encourage students to consider agriculture as a
16 career choice. Expenditures from the fund shall be made upon
17 warrants issued by the State Treasurer against claims filed as
18 prescribed by law with the ~~Director~~ Chief Operating Officer of the
19 Office of Management and Enterprise Services for approval and
20 payment.

21 SECTION 239. AMENDATORY 47 O.S. 2021, Section 1104.8, as
22 amended by Section 15, Chapter 171, O.S.L. 2025 (47 O.S. Supp. 2025,
23 Section 1104.8), is amended to read as follows:
24

1 Section 1104.8. A. Twenty Dollars (\$20.00) of the fee
2 authorized by Section 1135.5 of this title for Color Oklahoma
3 license plates shall be deposited by Service Oklahoma to the Color
4 Oklahoma Revolving Fund created in subsection B of this section.

5 B. There is hereby created in the State Treasury a revolving
6 fund for the Oklahoma Native Plant Society to be designated the
7 "Color Oklahoma Revolving Fund" and administered by the Oklahoma
8 Department of Tourism and Recreation. The fund shall be a
9 continuing fund, not subject to fiscal year limitations, and shall
10 consist of all monies received by the Oklahoma Department of Tourism
11 and Recreation pursuant to the provisions of subsection A of this
12 section. All monies accruing to the credit of the fund are hereby
13 appropriated and may be budgeted and expended by the Oklahoma
14 Department of Tourism and Recreation pursuant to a contract with the
15 Oklahoma Native Plant Society for the purpose of preserving and
16 planting wildflowers and native plants in Oklahoma and promoting
17 wildflower heritage through education. Expenditures from the fund
18 shall be made upon warrants issued by the State Treasurer against
19 claims filed as prescribed by law with the ~~Director~~ Chief Operating
20 Officer of the Office of Management and Enterprise Services for
21 approval and payment.

22 SECTION 240. AMENDATORY 47 O.S. 2021, Section 1104.9, as
23 amended by Section 16, Chapter 171, O.S.L. 2025 (47 O.S. Supp. 2025,
24 Section 1104.9), is amended to read as follows:

1 Section 1104.9. A. Twenty Dollars (\$20.00) of the fee
2 authorized by Section 1135.5 of this title for Fight Cancer license
3 plates shall be deposited by Service Oklahoma to the Oklahoma
4 Central Cancer Registry Revolving Fund created in subsection B of
5 this section.

6 B. There is hereby created in the State Treasury a revolving
7 fund for the State Department of Health to be designated the
8 "Oklahoma Central Cancer Registry Revolving Fund". The fund shall
9 be a continuing fund, not subject to fiscal year limitations, and
10 shall consist of all monies received by the State Department of
11 Health pursuant to the provisions of subsection A of this section.
12 All monies accruing to the credit of the fund are hereby
13 appropriated and may be budgeted and expended by the State
14 Department of Health for the implementation of the Oklahoma Central
15 Cancer Registry. Expenditures from the fund shall be made upon
16 warrants issued by the State Treasurer against claims filed as
17 prescribed by law with the ~~Director~~ Chief Operating Officer of the
18 Office of Management and Enterprise Services for approval and
19 payment.

20 SECTION 241. AMENDATORY 47 O.S. 2021, Section 1104.10,
21 as amended by Section 17, Chapter 171, O.S.L. 2025 (47 O.S. Supp.
22 2025, Section 1104.10), is amended to read as follows:
23
24

1 Section 1104.10. A. The fee authorized by Section 1135.5 of
2 this title shall be deposited by Service Oklahoma to the Animal
3 Friendly Revolving Fund created in subsection B of this section.

4 B. There is hereby created in the State Treasury a revolving
5 fund for the Oklahoma Department of Agriculture, Food, and Forestry
6 to be designated the "Animal Friendly Revolving Fund". The fund
7 shall be a continuing fund, not subject to fiscal year limitations,
8 and shall consist of all monies received by the Department pursuant
9 to the provisions of subsection A of this section. All monies
10 accruing to the credit of the fund are hereby appropriated and may
11 be budgeted and expended by the Oklahoma Department of Agriculture,
12 Food, and Forestry for the purpose of contracting with or providing
13 grants to organizations of veterinary clinics that develop and
14 operate programs that provide dog or cat spaying and neutering
15 services and nonprofit organizations that provide shelter to
16 unwanted stray dogs and cats. Such organizations may apply to the
17 Department for grants to be paid from the fund. Expenditures from
18 the fund shall be made upon warrants issued by the State Treasurer
19 against claims filed as prescribed by law with the ~~Director~~ Chief
20 Operating Officer of the Office of Management and Enterprise
21 Services for approval and payment.

22 SECTION 242. AMENDATORY 47 O.S. 2021, Section 1104.11,
23 as amended by Section 18, Chapter 171, O.S.L. 2025 (47 O.S. Supp.
24 2025, Section 1104.11), is amended to read as follows:

1 Section 1104.11. A. Twenty Dollars (\$20.00) of the fee
2 authorized by Section 1135.5 of this title for the Patriot License
3 Plate shall be deposited by Service Oklahoma in the Patriot License
4 Plate Revolving Fund created in subsection B of this section.

5 B. There is hereby created in the State Treasury a revolving
6 fund for the Military Department of Oklahoma to be designated the
7 "Patriot License Plate Revolving Fund". The fund shall be a
8 continuing fund, not subject to fiscal year limitations, and shall
9 consist of all monies received by the Military Department of
10 Oklahoma pursuant to the provisions of subsection A of this section.
11 All monies accruing to the credit of the fund are hereby
12 appropriated and may be budgeted and expended by the Military
13 Department of Oklahoma for any deployment-related purpose for
14 members of the Oklahoma National Guard or the production of
15 historical documents, displays, videos, and books that capture the
16 National Guard's involvement in overseas deployments and domestic
17 operations within the United States for members of the Oklahoma
18 National Guard, Oklahoma public school libraries, and civic leaders,
19 as determined by the Adjutant General. Expenditures from the fund
20 shall be made upon warrants issued by the State Treasurer against
21 claims filed as prescribed by law with the ~~Director~~ Chief Operating
22 Officer of the Office of Management and Enterprise Services for
23 approval and payment.
24

SECTION 243. AMENDATORY 47 O.S. 2021, Section 1104.12, as amended by Section 19, Chapter 171, O.S.L. 2025 (47 O.S. Supp. 2025, Section 1104.12), is amended to read as follows:

Section 1104.12. A. Twenty Dollars (\$20.00) of the fee authorized by Section 1135.5 of this title for the Oklahoma Quarter Horse License Plate shall be deposited by Service Oklahoma in the Oklahoma Quarter Horse Revolving Fund created in subsection B of this section.

B. There is hereby created in the State Treasury a revolving fund for the Oklahoma Horse Racing Commission to be designated the "Oklahoma Quarter Horse Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Oklahoma Horse Racing Commission pursuant to the provisions of subsection A of this section. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Oklahoma Horse Racing Commission for the support of any statewide organization dedicated to promoting the American Quarter Horse in Oklahoma through sharing information, events, and activities for the amateur, youth, and professional horsemen. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 244. AMENDATORY 47 O.S. 2021, Section 1104.13, as amended by Section 20, Chapter 171, O.S.L. 2025 (47 O.S. Supp. 2025, Section 1104.13), is amended to read as follows:

Section 1104.13. A. Twenty Dollars (\$20.00) of the fee authorized by Section 1135.5 of this title for Oklahoma City Zoo license plates shall be deposited by Service Oklahoma to the Oklahoma Zoological Society Revolving Fund created in subsection B of this section.

B. There is hereby created in the State Treasury a revolving fund for the Department of Wildlife Conservation to be designated the "Oklahoma Zoological Society Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Department of Wildlife Conservation pursuant to the provisions of subsection A of this section. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Department of Wildlife Conservation for grants to the Oklahoma Zoological Society for the purpose of contributing to an understanding and preservation of the earth's natural resources through positive recreational and educational experiences and conducting and participating in scientifically-based conservation programs that benefit animal and plant communities. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the

Office of Management and Enterprise Services for approval and payment.

SECTION 245. AMENDATORY 47 O.S. 2021, Section 1104.14, as amended by Section 21, Chapter 171, O.S.L. 2025 (47 O.S. Supp. 2025, Section 1104.14), is amended to read as follows:

Section 1104.14. A. Twenty Dollars (\$20.00) of the fee authorized by Section 1135.5 of this title for the Oklahoma March of Dimes license plate shall be deposited by Service Oklahoma to the Oklahoma Prevent Birth Defects, Premature Birth and Infant Mortality Fund established in subsection B of this section.

B. There is hereby created in the State Treasury a revolving fund to be designated the "Oklahoma Prevent Birth Defects, Premature Birth and Infant Mortality Fund" and administered by the State Department of Health. The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all the monies received by the State Department of Health pursuant to the provisions of Section 1135.5 of this title. All monies accruing to the credit of the fund are appropriated and may be budgeted and expended by the State Department of Health at the beginning of each fiscal year for the purpose of providing grants to the Oklahoma Chapter of March of Dimes for purposes of preventing birth defects, premature birth and infant mortality. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating

1 Officer of the Office of Management and Enterprise Services for
2 approval and payment.

3 SECTION 246. AMENDATORY 47 O.S. 2021, Section 1104.15,
4 as amended by Section 22, Chapter 171, O.S.L. 2025 (47 O.S. Supp.
5 2025, Section 1104.15), is amended to read as follows:

6 Section 1104.15. A. Twenty Dollars (\$20.00) of the fee
7 authorized by Section 1135.5 of this title for the Oklahoma
8 Association for the Deaf License Plate shall be deposited by Service
9 Oklahoma in the Oklahoma Association for the Deaf License Plate
10 Revolving Fund created in subsection B of this section.

11 B. There is hereby created in the State Treasury a revolving
12 fund for the Department of Rehabilitation Services to be designated
13 the "Oklahoma Association for the Deaf License Plate Revolving
14 Fund". The fund shall be a continuing fund, not subject to fiscal
15 year limitations, and shall consist of all monies received by the
16 Department of Rehabilitation Services pursuant to the provisions of
17 subsection A of this section. All monies accruing to the credit of
18 the fund are hereby appropriated and may be budgeted and expended by
19 the Department of Rehabilitation Services to promote the interests
20 of the deaf and to advance the social, educational, cultural, and
21 economic well being of the deaf. Expenditures from the fund shall
22 be made upon warrants issued by the State Treasurer against claims
23 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
24

of the Office of Management and Enterprise Services for approval and payment.

SECTION 247. AMENDATORY 47 O.S. 2021, Section 1104.16, as amended by Section 23, Chapter 171, O.S.L. 2025 (47 O.S. Supp. 2025, Section 1104.16), is amended to read as follows:

Section 1104.16. A. Twenty Dollars (\$20.00) of the fee authorized by Section 1135.5 of this title for Buffalo Soldier license plates shall be deposited by Service Oklahoma to the Buffalo Soldier License Plate Revolving Fund created in subsection B of this section.

B. There is hereby created in the State Treasury a revolving fund for the Oklahoma Department of Veterans Affairs to be designated the "Buffalo Soldier License Plate Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Oklahoma Department of Veterans Affairs pursuant to subsection A of this section. All monies accruing to the credit of such fund are hereby appropriated and may be budgeted and expended by the Oklahoma Department of Veterans Affairs for the purpose of providing grants to nonprofit organizations exempt from taxation pursuant to the provisions of the Internal Revenue Code, 26 U.S.C., Section 501(c)(3), whose primary purpose is to establish and maintain a plaza in this state as a lasting tribute and memorial to the African-American members of the 9th and 10th Horse Cavalry and to

1 interface with regional museums and sites to gather and share
2 historical and artistic data to honor those soldiers. Expenditures
3 from such fund shall be made upon warrants issued by the State
4 Treasurer against claims filed as prescribed by law with the
5 ~~Director~~ Chief Operating Officer of the Office of Management and
6 Enterprise Services for approval and payment.

7 SECTION 248. AMENDATORY 47 O.S. 2021, Section 1104.17,
8 as amended by Section 24, Chapter 171, O.S.L. 2025 (47 O.S. Supp.
9 2025, Section 1104.17), is amended to read as follows:

10 Section 1104.17. A. Twenty Dollars (\$20.00) of the fee
11 authorized by Section 1135.5 of this title for Prevent Blindness
12 Oklahoma license plates shall be deposited by Service Oklahoma to
13 the Prevent Blindness Oklahoma License Plate Revolving Fund created
14 in subsection B of this section.

15 B. There is hereby created in the State Treasury a revolving
16 fund for the State Department of Health to be designated the
17 "Prevent Blindness Oklahoma License Plate Revolving Fund". The fund
18 shall be a continuing fund, not subject to fiscal year limitations,
19 and shall consist of all monies received by the State Department of
20 Health pursuant to subsection A of this section. All monies
21 accruing to the credit of such fund are hereby appropriated and may
22 be budgeted and expended by the State Department of Health for the
23 purpose of providing grants to nonprofit organizations exempt from
24 taxation pursuant to the provisions of the Internal Revenue Code, 26

1 U.S.C., Section 501(c)(3), whose primary purpose is providing vision
2 screenings to school age children in all seventy-seven counties in
3 this state. Expenditures from such fund shall be made upon warrants
4 issued by the State Treasurer against claims filed as prescribed by
5 law with the ~~Director~~ Chief Operating Officer of the Office of
6 Management and Enterprise Services for approval and payment.

7 SECTION 249. AMENDATORY 47 O.S. 2021, Section 1104.18,
8 as amended by Section 25, Chapter 171, O.S.L. 2025 (47 O.S. Supp.
9 2025, Section 1104.18), is amended to read as follows:

10 Section 1104.18. A. Twenty Dollars (\$20.00) of the fee
11 authorized by Section 1135.5 of this title for the Oklahoma State
12 Capitol Restoration License Plate shall be deposited by Service
13 Oklahoma in the Oklahoma Friends of the Capitol License Plate
14 Revolving Fund created in subsection B of this section.

15 B. There is hereby created in the State Treasury a revolving
16 fund for the Office of Management and Enterprise Services to be
17 designated the "Oklahoma Friends of the Capitol License Plate
18 Revolving Fund". The fund shall be a continuing fund, not subject
19 to fiscal year limitations, and shall consist of all monies received
20 by the Office of Management and Enterprise Services pursuant to the
21 provisions of subsection A of this section. All monies accruing to
22 the credit of the fund are hereby appropriated and shall be budgeted
23 and expended by the Office of Management and Enterprise Services for
24 restoration of the Oklahoma State Capitol. Before the Office makes

any expenditure from the fund, the expenditure shall be approved by the State Capitol Preservation Commission created pursuant to Section 4102 of Title 74 of the Oklahoma Statutes. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 250. AMENDATORY 47 O.S. 2021, Section 1104.19, as amended by Section 26, Chapter 171, O.S.L. 2025 (47 O.S. Supp. 2025, Section 1104.19), is amended to read as follows:

Section 1104.19. A. Twenty Dollars (\$20.00) of the fee authorized by paragraph 47 of subsection B of Section 1135.5 of this title for pancreatic cancer research license plates shall be deposited by Service Oklahoma to the Pancreatic Cancer Research License Plate Revolving Fund created in subsection B of this section.

B. There is hereby created in the State Treasury a revolving fund for the State Department of Health to be designated the "Pancreatic Cancer Research License Plate Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the State Department of Health pursuant to subsection A of this section. All monies accruing to the credit of such fund are hereby appropriated and may be budgeted and expended by the State Department of Health to

1 provide grants to the University of Oklahoma Foundation, Pancreatic
2 Cancer Research Fund for the purpose of funding research into early
3 detection and treating and curing of pancreatic cancer in this
4 state. Expenditures from such fund shall be made upon warrants
5 issued by the State Treasurer against claims filed as prescribed by
6 law with the ~~Director~~ Chief Operating Officer of the Office of
7 Management and Enterprise Services for approval and payment.

8 C. The Oklahoma Legislature hereby finds that the University of
9 Oklahoma Foundation, Pancreatic Cancer Research Fund provides an
10 important service to the inhabitants of this state as a community
11 and further finds that the services performed by the University of
12 Oklahoma Foundation, Pancreatic Cancer Research Fund are adequate
13 consideration for the funds received pursuant to this section.

14 SECTION 251. AMENDATORY 47 O.S. 2021, Section 1104.20,
15 as amended by Section 27, Chapter 171, O.S.L. 2025 (47 O.S. Supp.
16 2025, Section 1104.20), is amended to read as follows:

17 Section 1104.20. A. Twenty Dollars (\$20.00) of the fee
18 authorized by Section 1135.5 of this title for Alzheimer's Research
19 license plates shall be deposited by Service Oklahoma to the
20 Alzheimer's Research License Plate Revolving Fund created in
21 subsection B of this section.

22 B. There is hereby created in the State Treasury a revolving
23 fund for the State Department of Health to be designated the
24 "Alzheimer's Research License Plate Revolving Fund". The fund shall

1 be a continuing fund, not subject to fiscal year limitations, and
2 shall consist of all monies received by the State Department of
3 Health pursuant to subsection A of this section. All monies
4 accruing to the credit of such fund are hereby appropriated and may
5 be budgeted and expended by the State Department of Health for the
6 purpose of providing grants to the Oklahoma Chapter of the
7 Alzheimer's Association for purposes of eliminating Alzheimer's
8 disease through the advancement of research, to provide and enhance
9 care and support those with Alzheimer's and to reduce the risk of
10 dementia through the promotion of brain health. Expenditures from
11 such fund shall be made upon warrants issued by the State Treasurer
12 against claims filed as prescribed by law with the ~~Director~~ Chief
13 Operating Officer of the Office of Management and Enterprise
14 Services for approval and payment.

15 C. The Oklahoma Legislature hereby finds that the Alzheimer's
16 Association provides an important service to the inhabitants of this
17 state as a community and further finds that the services performed
18 by the Alzheimer's Association are adequate consideration for the
19 funds received pursuant to this section.

20 SECTION 252. AMENDATORY 47 O.S. 2021, Section 1104.21,
21 as amended by Section 28, Chapter 171, O.S.L. 2025 (47 O.S. Supp.
22 2025, Section 1104.21), is amended to read as follows:

23 Section 1104.21. A. Twenty Dollars (\$20.00) of the fee
24 authorized by Section 1135.5 of this title for Hospice and

1 Palliative Care license plates shall be deposited by Service
2 Oklahoma to the Hospice and Palliative Care License Plate Revolving
3 Fund created in subsection B of this section.

4 B. There is hereby created in the State Treasury a revolving
5 fund for the State Department of Health to be designated the
6 "Hospice and Palliative Care License Plate Revolving Fund". The
7 fund shall be a continuing fund, not subject to fiscal year
8 limitations, and shall consist of all monies received by the State
9 Department of Health pursuant to subsection A of this section. All
10 monies accruing to the credit of such fund are hereby appropriated
11 and may be budgeted and expended by the State Department of Health
12 for the purpose of providing grants to the Oklahoma Hospice and
13 Palliative Care Association for the purposes of leading the efforts
14 to unify Oklahoma hospices with the resources and information that
15 will promote each hospice to provide quality hospice care to their
16 community. Expenditures from such fund shall be made upon warrants
17 issued by the State Treasurer against claims filed as prescribed by
18 law with the ~~Director~~ Chief Operating Officer of the Office of
19 Management and Enterprise Services for approval and payment.

20 C. The Oklahoma Legislature hereby finds that the Oklahoma
21 Hospice and Palliative Care Association provides an important
22 service to the inhabitants of this state as a community and further
23 finds that the services performed by the Oklahoma Hospice and
24

Palliative Care Association are adequate consideration for the funds received pursuant to this section.

SECTION 253. AMENDATORY 47 O.S. 2021, Section 1104.22, as amended by Section 29, Chapter 171, O.S.L. 2025 (47 O.S. Supp. 2025, Section 1104.22), is amended to read as follows:

Section 1104.22. A. Twenty Dollars (\$20.00) of the fee authorized by Section 1135.5 of this title for Juvenile Diabetes Research license plates shall be deposited by Service Oklahoma to the Juvenile Diabetes Research License Plate Revolving Fund created in subsection B of this section.

B. There is hereby created in the State Treasury a revolving fund for the State Department of Health to be designated the "Juvenile Diabetes Research License Plate Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the State Department of Health pursuant to subsection A of this section. All monies accruing to the credit of such fund are hereby appropriated and may be budgeted and expended by the State Department of Health for the purpose of providing grants to the Oklahoma Chapters of the Juvenile Diabetes Research Foundation for purposes of finding a cure for type 1 diabetes and its complications through the support of research and working to develop new and better treatments to improve the lives of people who have type 1 diabetes and keep them as healthy as possible. Expenditures from such fund shall be made upon warrants

1 issued by the State Treasurer against claims filed as prescribed by
2 law with the ~~Director~~ Chief Operating Officer of the Office of
3 Management and Enterprise Services for approval and payment.

4 C. The Oklahoma Legislature hereby finds that the Juvenile
5 Diabetes Research Foundation provides an important service to the
6 inhabitants of this state as a community and further finds that the
7 services performed by the Juvenile Diabetes Research Foundation are
8 adequate consideration for the funds received pursuant to this
9 section.

10
11 SECTION 254. AMENDATORY 47 O.S. 2021, Section 1104.23,
12 as amended by Section 30, Chapter 171, O.S.L. 2025 (47 O.S. Supp.
13 2025, Section 1104.23), is amended to read as follows:

14 Section 1104.23. A. Twenty Dollars (\$20.00) of the fee
15 authorized by Section 1135.5 of Title 47 of the Oklahoma Statutes
16 for Deer Creek Schools Foundation license plates shall be deposited
17 by Service Oklahoma to the Deer Creek Schools Foundation License
18 Plate Revolving Fund created in subsection B of this section.

19 B. There is hereby created in the State Treasury a revolving
20 fund for the State Department of Education to be designated the
21 "Deer Creek Schools Foundation License Plate Revolving Fund". The
22 fund shall be a continuing fund, not subject to fiscal year
23 limitations, and shall consist of all monies received by the State
24 Department of Education pursuant to subsection A of this section.

1 All monies accruing to the credit of such fund are hereby
2 appropriated and may be budgeted and expended by the State
3 Department of Education for the purpose of providing grants to the
4 Deer Creek Schools Foundation for purposes of promoting and funding
5 the academic and artistic achievement of all students and teachers
6 of Deer Creek Public Schools. Expenditures from such fund shall be
7 made upon warrants issued by the State Treasurer against claims
8 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
9 of the Office of Management and Enterprise Services for approval and
10 payment.

11 C. The Oklahoma Legislature hereby finds that the Deer Creek
12 Schools Foundation provides an important service to the inhabitants
13 of this state as a community and further finds that the services
14 performed by the Deer Creek Schools Foundation are adequate
15 consideration for the funds received pursuant to this section.

16 SECTION 255. AMENDATORY 47 O.S. 2021, Section 1104.24,
17 as amended by Section 31, Chapter 171, O.S.L. 2025 (47 O.S. Supp.
18 2025, Section 1104.24), is amended to read as follows:

19 Section 1104.24. A. Twenty-five Dollars (\$25.00) of the fee
20 authorized by Section 1135.5 of this title for Lupus Awareness and
21 Education license plates shall be deposited by Service Oklahoma to
22 the Oklahoma Lupus License Plate Revolving Fund created in
23 subsection B of this section.
24

1 B. There is hereby created in the State Treasury a revolving
2 fund to be designated the "Oklahoma Lupus License Plate Revolving
3 Fund" and administered by the State Department of Health. The fund
4 shall be a continuing fund, not subject to fiscal year limitations,
5 and shall consist of all monies received by the State Department of
6 Health pursuant to the provisions of subsection A of this section.
7 All monies accruing to the credit of such fund are hereby
8 appropriated and shall be budgeted and expended by the State
9 Department of Health for the purpose of providing grants to the
10 Lupus Foundation of Oklahoma for the purpose of lupus awareness,
11 education, outreach, referral, research or treatment in this state.
12 Expenditures from the fund shall be made upon warrants issued by the
13 State Treasurer against claims filed as prescribed by law with the
14 ~~Director~~ Chief Operating Officer of the Office of Management and
15 Enterprise Services for approval and payment.

16 C. The Oklahoma Legislature hereby finds that the Lupus
17 Foundation of Oklahoma provides an important service to the
18 inhabitants of this state as a community and further finds that the
19 services performed by the Lupus Foundation of Oklahoma are adequate
20 consideration for the funds received pursuant to this section.

21 SECTION 256. AMENDATORY 47 O.S. 2021, Section 1104.25,
22 as amended by Section 32, Chapter 171, O.S.L. 2025 (47 O.S. Supp.
23 2025, Section 1104.25), is amended to read as follows:
24

1 Section 1104.25. A. Twenty Dollars (\$20.00) of the fee
2 authorized by paragraph 51 of subsection B of Section 1135.5 of
3 Title 47 of the Oklahoma Statutes for Chiefs of Police license
4 plates shall be deposited by Service Oklahoma to the Oklahoma
5 Association of Chiefs of Police License Plate Revolving Fund created
6 in subsection B of this section.

7 B. There is hereby created in the State Treasury a revolving
8 fund for the State Department of Public Safety to be designated the
9 "Oklahoma Association of Chiefs of Police License Plate Revolving
10 Fund". The fund shall be a continuing fund, not subject to fiscal
11 year limitations, and shall consist of all monies received by the
12 State Department of Public Safety pursuant to subsection A of this
13 section. All monies accruing to the credit of the fund are hereby
14 appropriated and may be budgeted and expended by the State
15 Department of Public Safety to assist with funding for training and
16 education for law enforcement agencies throughout the state.
17 Expenditures from the fund shall be made upon warrants issued by the
18 State Treasurer against claims filed as prescribed by law with the
19 ~~Director~~ Chief Operating Officer of the Office of Management and
20 Enterprise Services for approval and payment.

21 SECTION 257. AMENDATORY 47 O.S. 2021, Section 1104.26,
22 as amended by Section 33, Chapter 171, O.S.L. 2025 (47 O.S. Supp.
23 2025, Section 1104.26), is amended to read as follows:
24

1 Section 1104.26. A. Twenty Dollars (\$20.00) of the fee
2 authorized by Section 1135.5 of Title 47 of the Oklahoma Statutes
3 for Oklahoma Nurses license plates shall be deposited by Service
4 Oklahoma to the Oklahoma Nurses License Plate Revolving Fund created
5 in subsection B of this section.

6 B. There is hereby created in the State Treasury a revolving
7 fund for the Oklahoma Board of Nursing to be designated the
8 "Oklahoma Nurses License Plate Revolving Fund". The fund shall
9 consist of all monies received by the Oklahoma Board of Nursing
10 pursuant to subsection A of this section. All monies accruing to
11 the credit of such fund are hereby appropriated and may be budgeted
12 and expended by the Oklahoma Board of Nursing for the purpose of
13 providing grants to the Oklahoma Nurses Foundation to fulfill its
14 mission. Expenditures from such fund shall be made upon warrants
15 issued by the State Treasurer against claims filed as prescribed by
16 law with the ~~Director~~ Chief Operating Officer of the Office of
17 Management and Enterprise Services for approval and payment.

18 SECTION 258. AMENDATORY 47 O.S. 2021, Section 1104.27,
19 as amended by Section 34, Chapter 171, O.S.L. 2025 (47 O.S. Supp.
20 2025, Section 1104.27), is amended to read as follows:

21 Section 1104.27. A. Twenty Dollars (\$20.00) of the fee
22 authorized by Section 1135.5 of Title 47 of the Oklahoma Statutes
23 for Remembering Fallen Heroes license plates shall be deposited by
24 Service Oklahoma to the Oklahoma Concerns of Police Survivors

1 License Plate Revolving Fund created in subsection B of this
2 section.

3 B. There is hereby created in the State Treasury a revolving
4 fund for the Oklahoma Department of Public Safety to be designated
5 the "Oklahoma Concerns of Police Survivors License Plate Revolving
6 Fund". The fund shall consist of all monies received pursuant to
7 subsection A of this section. All monies accruing to the credit of
8 such fund are hereby appropriated and may be budgeted and expended
9 by the Oklahoma Department of Public Safety for the purpose of
10 providing programs and services to surviving families of Oklahoma's
11 fallen law enforcement officers. Expenditures from such fund shall
12 be made upon warrants issued by the State Treasurer against claims
13 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
14 of the Office of Management and Enterprise Services for approval and
15 payment.

16 SECTION 259. AMENDATORY 47 O.S. 2021, Section 1104.28,
17 as amended by Section 35, Chapter 171, O.S.L. 2025 (47 O.S. Supp.
18 2025, Section 1104.28), is amended to read as follows:

19 Section 1104.28. A. Twenty Dollars (\$20.00) of the fee
20 authorized by Section 1135.5 of Title 47 of the Oklahoma Statutes
21 for Piedmont Education Foundation license plates shall be deposited
22 by Service Oklahoma to the Piedmont Public Schools Education
23 Foundation License Plate Revolving Fund created in subsection B of
24 this section.

1 B. There is hereby created in the State Treasury a revolving
2 fund for the State Department of Education to be designated the
3 "Piedmont Public Schools Education Foundation License Plate
4 Revolving Fund". The fund shall consist of all monies received
5 pursuant to subsection A of this section. All monies accruing to
6 the credit of the fund are hereby appropriated and may be budgeted
7 and expended by the State Department of Education for grants to the
8 Piedmont Public Schools Education Foundation to fund scholarships
9 and teacher grants to Piedmont School District's students and
10 teachers. Expenditures from the fund shall be made upon warrants
11 issued by the State Treasurer against claims filed as prescribed by
12 law with the ~~Director~~ Chief Operating Officer of the Office of
13 Management and Enterprise Services for approval and payment.

14
15 SECTION 260. AMENDATORY 47 O.S. 2021, Section 1104.29,
16 as amended by Section 36, Chapter 171, O.S.L. 2025 (47 O.S. Supp.
17 2025, Section 1104.29), is amended to read as follows:

18 Section 1104.29. A. Twenty Dollars (\$20.00) of the fee
19 authorized by Section 1135.5 of Title 47 of the Oklahoma Statutes
20 for the Prisoner of War and Missing in Action License Plate shall be
21 deposited by Service Oklahoma in the Prisoner of War and Missing in
22 Action License Plate Revolving Fund created in subsection B of this
23 section.

1 B. There is hereby created in the State Treasury a revolving
2 fund for the Oklahoma Department of Veterans Affairs to be
3 designated the "Prisoner of War and Missing in Action License Plate
4 Revolving Fund". The fund shall be a continuing fund, not subject
5 to fiscal year limitations, and shall consist of all monies received
6 by the Department pursuant to the provisions of subsection A of this
7 section. All monies accruing to the credit of the fund are hereby
8 appropriated and may be budgeted and expended by the Department for
9 any purpose related to Oklahoma residents who are American veterans.
10 Expenditures from the fund shall be made upon warrants issued by the
11 State Treasurer against claims filed as prescribed by law with the
12 ~~Director~~ Chief Operating Officer of the Office of Management and
13 Enterprise Services for approval and payment.

14 SECTION 261. AMENDATORY 47 O.S. 2021, Section 1104.30,
15 as amended by Section 37, Chapter 171, O.S.L. 2025 (47 O.S. Supp.
16 2025, Section 1104.30), is amended to read as follows:

17 Section 1104.30. A. Twenty Dollars (\$20.00) of the fee
18 authorized by Section 1135.5 of Title 47 of the Oklahoma Statutes
19 for the Down Syndrome Association of Central Oklahoma license plates
20 shall be deposited by Service Oklahoma to the Down Syndrome
21 Association of Central Oklahoma License Plate Revolving Fund created
22 in subsection B of this section.

23 B. There is hereby created in the State Treasury a revolving
24 fund for the State Department of Human Services to be designated the

1 "Down Syndrome Association of Central Oklahoma License Plate
2 Revolving Fund". The fund shall consist of all monies received
3 pursuant to subsection A of this section. All monies accruing to
4 the credit of the fund are hereby appropriated and may be budgeted
5 and expended by the State Department of Human Services for grants to
6 the Down Syndrome Association of Central Oklahoma to raise awareness
7 and provide resources, as well as promote acceptance and inclusion
8 for people with Down Syndrome. Expenditures from the fund shall be
9 made upon warrants issued by the State Treasurer against claims
10 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
11 of the Office of Management and Enterprise Services for approval and
12 payment.

13 SECTION 262. AMENDATORY 47 O.S. 2021, Section 1104.31,
14 as amended by Section 38, Chapter 171, O.S.L. 2025 (47 O.S. Supp.
15 2025, Section 1104.31), is amended to read as follows:

16 Section 1104.31. A. Twenty Dollars (\$20.00) of the fee
17 authorized by Section 1135.5 of Title 47 of the Oklahoma Statutes
18 for the Elk City Education Foundation plates shall be deposited by
19 Service Oklahoma to the Elk City Education Foundation License Plate
20 Revolving Fund created in subsection B of this section.

21 B. There is hereby created in the State Treasury a revolving
22 fund for the State Department of Education to be designated the "Elk
23 City Education Foundation License Plate Revolving Fund". The fund
24 shall consist of all monies received pursuant to subsection A of

1 this section. All monies accruing to the credit of the fund are
2 hereby appropriated and may be budgeted and expended by the State
3 Department of Education for grants to the Elk City Education
4 Foundation to fund scholarships and teacher grants to Elk City
5 School District's students and teachers. Expenditures from the fund
6 shall be made upon warrants issued by the State Treasurer against
7 claims filed as prescribed by law with the ~~Director~~ Chief Operating
8 Officer of the Office of Management and Enterprise Services for
9 approval and payment.

10 SECTION 263. AMENDATORY 47 O.S. 2021, Section 1104.32,
11 as amended by Section 39, Chapter 171, O.S.L. 2025 (47 O.S. Supp.
12 2025, Section 1104.32), is amended to read as follows:

13 Section 1104.32. A. Twenty Dollars (\$20.00) of the fee
14 authorized by Section 1135.5 of Title 47 of the Oklahoma Statutes
15 for the Extraordinary Educators License Plate shall be deposited by
16 Service Oklahoma in the Extraordinary Educators License Plate
17 Revolving Fund created in subsection B of this section.

18 B. There is hereby created in the State Treasury a revolving
19 fund for the State Department of Education to be designated the
20 "Extraordinary Educators License Plate Revolving Fund". The fund
21 shall be a continuing fund, not subject to fiscal year limitations,
22 and shall consist of all monies received by the Department pursuant
23 to the provisions of subsection A of this section. All monies
24 accruing to the credit of the fund are hereby appropriated and may

1 be budgeted and expended by the Department for the purpose of
2 providing grants to school superintendents for distribution to
3 educators who propose extraordinary activities, projects or lessons
4 for students from kindergarten through eighth grade. Expenditures
5 from the fund shall be made upon warrants issued by the State
6 Treasurer against claims filed as prescribed by law with the
7 ~~Director~~ Chief Operating Officer of the Office of Management and
8 Enterprise Services for approval and payment.

9 SECTION 264. AMENDATORY Section 1, Chapter 397, O.S.L.
10 2022, as amended by Section 40, Chapter 171, O.S.L. 2025 (47 O.S.
11 Supp. 2025, Section 1104.33), is amended to read as follows:

12 Section 1104.33. A. Twenty Dollars (\$20.00) of the fee
13 authorized by Section 1135.5 of Title 47 of the Oklahoma Statutes
14 for the Diabetes Awareness license plates shall be deposited by
15 Service Oklahoma to the Diabetes Awareness License Plate Revolving
16 Fund created in subsection B of this section.

17 B. There is hereby created in the State Treasury a revolving
18 fund for the State Department of Health to be designated the
19 "Diabetes Awareness License Plate Revolving Fund". The fund shall
20 consist of all monies received pursuant to subsection A of this
21 section. All monies accruing to the credit of the fund are hereby
22 appropriated and may be budgeted and expended by the State
23 Department of Health for grants to Diabetes Solutions of Oklahoma to
24 raise awareness and provide resources, as well as promote acceptance

1 and inclusion for people with diabetes. Expenditures from the fund
2 shall be made upon warrants issued by the State Treasurer against
3 claims filed as prescribed by law with the ~~Director~~ Chief Operating
4 Officer of the Office of Management and Enterprise Services for
5 approval and payment.

6 SECTION 265. AMENDATORY 47 O.S. 2021, Section 1132.2, is
7 amended to read as follows:

8 Section 1132.2. There is hereby created in the State Treasury a
9 revolving fund for the State Board of Education to be designated the
10 "Motor Vehicle Driver Education Revolving Fund". The fund shall be
11 a continuing fund, not subject to fiscal year limitations, and shall
12 consist of all monies apportioned to the fund pursuant to the
13 provisions of Section 1132.1 of this title. All monies accruing to
14 the credit of the fund are hereby appropriated and may be budgeted
15 and expended by the State Board of Education to assist in defraying
16 the cost of motor vehicle driver education. Expenditures from the
17 fund shall be made upon warrants issued by the State Treasurer
18 against claims filed as prescribed by law with the ~~Director~~ Chief
19 Operating Officer of the Office of Management and Enterprise
20 Services for approval and payment.

21 SECTION 266. AMENDATORY 47 O.S. 2021, Section 1167, as last
22 amended by Section 57, Chapter 171, O.S.L. 2025 (47 O.S. Supp. 2025,
23 Section 1167), is amended to read as follows:

1 Section 1167. A. The Corporation Commission is hereby
2 authorized to promulgate rules pursuant to the Administrative
3 Procedures Act to establish the amounts of fees, fines and penalties
4 as set forth in Section 1166 et seq. of this title. The Corporation
5 Commission shall notify all interested parties of any proposed rules
6 to be promulgated as provided herein and shall provide such parties
7 an opportunity to be heard prior to promulgation.

8 B. The Corporation Commission shall adjudicate enforcement
9 actions initiated by Corporation Commission personnel.

10 C. Revenue derived from all fines and penalties collected or
11 received by the Corporation Commission pursuant to the provisions of
12 the Trucking One-Stop Shop Act shall be apportioned as follows:

13 1. For the period beginning August 23, 2013, the first Three
14 Hundred Thousand Dollars (\$300,000.00) collected or received each
15 fiscal year shall be remitted to the Department of Public Safety for
16 the purpose of staffing the port of entry weigh stations to conduct
17 safety inspections. The next Five Hundred Fifty Thousand Dollars
18 (\$550,000.00) shall be remitted to Service Oklahoma and apportioned
19 as provided in Section 1104 of this title; and

20 2. The remaining amount shall be deposited to the Trucking One-
21 Stop Shop Fund created in subsection D of this section.

22 D. There is hereby created in the State Treasury a revolving
23 fund for the Corporation Commission to be known and designated as
24

1 the "Trucking One-Stop Shop Fund". The Trucking One-Stop Shop Fund
2 shall consist of:

3 1. All funds apportioned thereto in subsection C of this
4 section;

5 2. Fees collected by the Commission to be retained as a
6 licensed operator or other Corporation Commission registration or
7 motor fuel fees as allowed by statute or rule; and

8 3. Any other monies to be utilized for the Trucking One-Stop
9 Shop Act.

10 The fund shall be a continuing fund, not subject to fiscal year
11 limitations, and shall not be subject to legislative appropriation.
12 Monies in the Trucking One-Stop Shop Fund shall only be expended for
13 direct expenses relating to the Trucking One-Stop Shop Act.
14 Expenditures from the revolving fund shall be made pursuant to the
15 laws of this state. In addition, expenditures from the revolving
16 fund may be made pursuant to the Oklahoma Central Purchasing Act for
17 the purpose of immediately responding to emergency situations,
18 within the Commission's jurisdiction, having potentially critical
19 environmental or public safety impact. Warrants for expenditures
20 from the fund shall be drawn by the State Treasurer against claims
21 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
22 of the Office of Management and Enterprise Services for approval and
23 payment.
24

1 E. There is hereby created in the State Treasury a revolving
2 fund for the Department of Transportation to be designated the
3 "Weigh Station Improvement Revolving Fund". The fund shall be a
4 continuing fund, not subject to fiscal year limitations, and shall
5 consist of all monies deposited thereto. All monies accruing to the
6 credit of the fund are hereby appropriated and may be budgeted and
7 expended by the Department for the purpose of constructing,
8 equipping and maintaining facilities to determine the weight of
9 vehicles traveling on the roads and highways of this state.
10 Expenditures from the fund shall be made upon warrants issued by the
11 State Treasurer against claims filed as prescribed by law with the
12 ~~Director~~ Chief Operating Officer of the Office of Management and
13 Enterprise Services for approval and payment.

14 SECTION 267. AMENDATORY 47 O.S. 2021, Section 1168, is
15 amended to read as follows:

16 Section 1168. All facilities and equipment under the
17 administrative control of the Oklahoma Tax Commission and used for
18 determining the weight of vehicles operated on the roads or highways
19 of this state are hereby transferred to the Department of
20 Transportation. Any funds appropriated to or any powers, duties and
21 responsibilities exercised by the Tax Commission for such purpose
22 shall be transferred to the Department. The ~~Director~~ Chief
23 Operating Officer of the Office of Management and Enterprise
24 Services is hereby authorized to transfer such funds as may be

necessary. The Department is hereby authorized to enter into an agreement with the Corporation Commission to operate such facilities or equipment. The provisions of this section shall not be construed to obligate the Department to incur expenses in connection with the administration of such facilities and equipment in an amount which exceeds deposits to the Weigh Station Improvement Revolving Fund.

SECTION 268. AMENDATORY 51 O.S. 2021, Section 159, is amended to read as follows:

Section 159. A. Judgments recovered against the state or political subdivisions under the provisions of this act shall be enforced in the same manner and to the same extent as judgments are now enforced against the state or political subdivisions under the law except as herein provided.

B. If the judgment is obtained against the state or a political subdivision that has procured a contract or policy of liability or indemnity insurance protection, the holder of the judgment may use the methods of collecting the judgment which are provided by the policy or contract or law to the extent of the limits of coverage provided.

C. For the payment of any judgment obtained under the provisions of this act against a political subdivision that is a self-insurer or not fully covered by liability insurance, the manner of paying a money judgment shall be as follows. Proof of indebtedness, as required in Sections 362 through 364 of Title 62 of

1 the Oklahoma Statutes and evidence of any estimated tax levy or
2 increases necessary to reimburse the sinking fund for the purposes
3 of the judgment as provided in Section 431 of Title 62 of the
4 Oklahoma Statutes, and other evidence or statements which the court
5 may require, shall be made to the court before final judgment is
6 rendered. As an alternative to paying the money judgment out of the
7 sinking fund at the rate of one-third (1/3) each year, the court,
8 based on consideration of evidence and proof, may provide for the
9 judgment to be paid over a period of not less than one (1) nor more
10 than ten (10) years. The interest rate on any judgment when payment
11 is extended more than three (3) years shall be at the rate
12 prescribed by law for the first three (3) years and at the rate of
13 six percent (6%) for each remaining year.

14 D. Money judgments against the state not payable by insurance
15 shall be paid in the following manner. An agency whose act or
16 omission gave rise to the judgment may, at its discretion and upon
17 approval of the ~~Director~~ Chief Operating Officer of the Office of
18 Management and Enterprise Services, pay a judgment or any portion
19 thereof from any funds available to it. Provided, however, no
20 agency shall be required to pay a judgment prior to the fiscal year
21 next following the fiscal year in which the judgment is obtained.
22 Any such judgment may be paid at a rate of one-third (1/3) per
23 fiscal year from funds available for operation of the agency.

1 E. Nothing in this act shall be interpreted as allowing liens
2 on public property.

3 SECTION 269. AMENDATORY 52 O.S. 2021, Section 288.5B, is
4 amended to read as follows:

5 Section 288.5B. There is hereby created in the State Treasury a
6 revolving fund for the Committee for Sustaining Oklahoma's Energy
7 Resources to be designated the "Sustaining Oklahoma's Energy
8 Resources Revolving Fund". The fund shall be a continuing fund, not
9 subject to fiscal year limitations, and shall consist of all monies
10 transferred to the Committee for Sustaining Oklahoma's Energy
11 Resources to further the purposes of this act from any public
12 appropriations and donations, grants, contributions or gifts from
13 any public or private source. All monies accruing to the credit of
14 the fund are hereby appropriated and may be budgeted and expended by
15 the Committee for Sustaining Oklahoma's Energy Resources for the
16 purpose of encouraging and funding research and development of new
17 technologies in the oil and natural gas industry and funding
18 activities to support marginally producing oil and gas wells.
19 Expenditures from the fund shall be made upon warrants issued by the
20 State Treasurer against claims filed as prescribed by law with the
21 ~~Director~~ Chief Operating Officer of the Office of Management and
22 Enterprise Services for approval and payment.

23 SECTION 270. AMENDATORY 52 O.S. 2021, Section 288.7, is
24 amended to read as follows:

1 Section 288.7. A. There is hereby created in the State
2 Treasury a revolving fund for the Oklahoma Energy Resources Board to
3 be designated the "Energy Resources Revolving Fund". The fund shall
4 be a continuing fund, not subject to fiscal year limitations and
5 shall consist of all monies received by the Oklahoma Energy
6 Resources Board from assessments received and collected pursuant to
7 Section 288.8A of this title, donations, grants, contributions and
8 gifts from any public or private source. The Board may expend funds
9 as provided for by law. Expenditures from said fund shall be made
10 upon warrants issued by the State Treasurer against claims filed as
11 prescribed by law with the ~~Director~~ Chief Operating Officer of the
12 Office of Management and Enterprise Services for approval and
13 payment.

14 B. Of the monies collected and not refunded pursuant to
15 Sections 288.8A and 288.9A of this title, a minimum of fifty percent
16 (50%) of said monies collected, including a prorated share of
17 administrative costs incurred from the effective date of this act,
18 and not subsequently refunded, shall be expended on environmental
19 cleanup and remediation projects related to oil and gas pollution
20 authorized by the Board from a priority list of projects submitted
21 by the Corporation Commission or, only in the absence of Corporation
22 Commission jurisdiction, projects submitted by other appropriate
23 state agencies.
24

1 C. None of the monies collected and not refunded pursuant to
2 Sections 288.8A and 288.9A of this title shall be used for travel
3 expenses of any member of the Oklahoma Legislature.

4 SECTION 271. AMENDATORY 52 O.S. 2021, Section 420.11, is
5 amended to read as follows:

6 Section 420.11. A. All funds and fees, from whatsoever source
7 derived, collected by the Administrator under the provisions of
8 Section 420.1 et seq. of this title, shall be deposited into the
9 Liquefied Petroleum Gas Fund, created in this section. Effective
10 July 1, 2004, and for each fiscal year thereafter, the Administrator
11 shall deposit ten percent (10%) of the total amount collected from
12 fees and funds by the Administrator to the credit of the General
13 Revenue Fund of the State Treasury. The Administrator and the Board
14 are hereby vested and empowered with the authority to make any and
15 all necessary expenditures from the fund that in their judgment are
16 reasonable and required to effectuate the purposes of this act. The
17 Administrator shall annually file with the Governor a report of all
18 activities of the fund, which shall include a statement of all
19 receipts and disbursements.

20 B. There is hereby created in the State Treasury a revolving
21 fund for the Oklahoma Liquefied Petroleum Gas Board to be designated
22 the Liquefied Petroleum Gas Fund. All monies accruing to the credit
23 of the fund are hereby appropriated and may be budgeted and expended
24 by the Oklahoma Liquefied Petroleum Gas Board as provided for in

1 this section. Expenditures from the fund shall be made upon
2 warrants issued by the State Treasurer against claims filed as
3 prescribed by law with the ~~Director~~ Chief Operating Officer of the
4 Office of Management and Enterprise Services for approval and
5 payment.

6 C. Section 211 of Title 62 of the Oklahoma Statutes shall not
7 apply to the funds and fees collected by the Liquefied Petroleum Gas
8 Board.

9 SECTION 272. AMENDATORY 52 O.S. 2021, Section 420.26, is
10 amended to read as follows:

11 Section 420.26. There is hereby created in the State Treasury a
12 revolving fund for the Oklahoma Liquefied Petroleum Gas Research,
13 Marketing and Safety Commission to be designated the "LP Gas
14 Research, Marketing and Safety Revolving Fund". The fund shall be a
15 continuing fund, not subject to fiscal year limitations and shall
16 consist of all monies received by the Commission from assessments
17 received and collected pursuant to Section 420.27 of this title, and
18 donations, grants, contributions and gifts from any public or
19 private source and any monies appropriated by the Oklahoma State
20 Legislature. The Commission may expend funds as provided for by
21 law. Expenditures from the fund shall be made upon warrants issued
22 by the State Treasurer against claims filed as prescribed by law
23 with the ~~Director~~ Chief Operating Officer of the Office of
24 Management and Enterprise Services for approval and payment.

SECTION 273. AMENDATORY 53 O.S. 2021, Section 1.10, is amended to read as follows:

Section 1.10. There is hereby created in the State Treasury of the State of Oklahoma a revolving fund to be designated as the Historical Society Revolving Fund, which shall consist of all money appropriated to said fund and all money received by the Oklahoma Historical Society from membership, sales of publications, sales of merchandise to visitors, income from duplicating and microfilm services, contributions, entry fees, gifts and endowments, excluding those gifts and endowments conditionally tendered, and other income derived from the operations of the Oklahoma Historical Society and from historic sites. The Oklahoma Historical Society is hereby authorized and directed to prepare for public distribution such historical data as may in its judgment meet the public demand; said Society shall determine the fee to be charged for each of the publications and such fee should be sufficient to cover the cost of preparing, publishing and marketing to the general public in the museums and historic sites operated by the Society.

Said revolving fund shall be a continuing fund not subject to fiscal year limitations and shall be under the control and management of the Oklahoma Historical Society and the disbursements therefrom shall be approved by the Society. Monies deposited in said revolving fund may be expended for the purpose of maintaining and operating the Oklahoma Historical Society functions and for

operation of historic sites. Monies deposited in said revolving fund from entry fees collected at each participating museum or site pursuant to the entry fee pilot project shall be expended only on the museum and historic site from which the fee is collected and for the purposes outlined in Section 1.21 of this title. Purchases of merchandise for sale to visitors shall be exempt from The Oklahoma Central Purchasing Act but all other expenditures shall be made pursuant to the laws of the state and the statutes relating to the Oklahoma Historical Society. Warrants for expenditures from this fund shall be drawn by the State Treasurer based on claims signed by the approving officer of the Society and approved for payment by the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services.

SECTION 274. AMENDATORY 53 O.S. 2021, Section 1.10a, is amended to read as follows:

Section 1.10a. A. There is hereby created in the State Treasury a revolving fund for the Oklahoma Historical Society, to be designated the "Oklahoma Historical Society Capital Improvement and Operations Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Oklahoma Historical Society and apportioned to such fund pursuant to the provisions of Sections 1353 and 1403 of Title 68 of the Oklahoma Statutes and such other monies accredited to the fund pursuant to law.

1 B. All monies accruing to the credit of the fund are hereby
2 appropriated and may be budgeted and expended by the Oklahoma
3 Historical Society for the purpose of maintaining and operating the
4 Oklahoma Historical Society functions, capital improvements and for
5 operation of historic sites.

6 C. No monies from this revolving fund shall be transferred for
7 any purpose to any other state agency. Expenditures from the fund
8 shall be made upon warrants issued by the State Treasurer against
9 claims filed as prescribed by law with the ~~Director~~ Chief Operating
10 Officer of the Office of Management and Enterprise Services for
11 approval and payment.

12 SECTION 275. AMENDATORY 53 O.S. 2021, Section 1.12, is
13 amended to read as follows:

14 Section 1.12. There is hereby authorized to be created a petty
15 cash fund for the Oklahoma Historical Society in an amount not to
16 exceed Five Thousand Dollars (\$5,000.00). This fund may be
17 allocated to museums and sites owned and operated by the Oklahoma
18 Historical Society in amounts not to exceed Two Hundred Dollars
19 (\$200.00) per museum or site for the purpose of establishing
20 separate petty cash fund accounts. Said fund may be established
21 from any state funds available to the Oklahoma Historical Society
22 for general operating expenses and shall be administered under such
23 rules and regulations as prescribed by the ~~Director~~ Chief Operating
24 Officer of the Office of Management and Enterprise Services.

SECTION 276. AMENDATORY 53 O.S. 2021, Section 7.4, is amended to read as follows:

Section 7.4. A. There is hereby created in the State Treasury a revolving fund for the Oklahoma Historical Society to be designated the "Buffalo Soldiers Heritage Corridor Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies deposited to the fund by law, as well as gifts, donations, and private, state, and federal funds designated for the deposit thereto.

B. All monies accruing to the credit of such fund are hereby appropriated and may be budgeted and expended by the Oklahoma Historical Society for the purpose of providing for the programs and direct costs of the Buffalo Soldiers Heritage Corridor.

C. Expenditures from such fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 277. AMENDATORY 53 O.S. 2021, Section 45.1, is amended to read as follows:

Section 45.1. A. Effective July 1, 2016, all property of the Will Rogers Memorial Commission including, but not limited to, the property specified in Sections 45 and 47.8 of Title 53 of the Oklahoma Statutes, is hereby transferred to the Oklahoma Historical

1 Society and shall be under the governance of the Oklahoma Historical
2 Society.

3 B. All Commission personnel, in both the classified and
4 unclassified service of the State Merit System of Personnel
5 Administration, who are assigned as of June 30, 2016, including
6 related liabilities for sick leave, annual leave, holidays,
7 unemployment benefits and workers' compensation benefits accruing
8 prior to July 1, 2016, to such personnel shall be transferred as of
9 July 1, 2016, to the Oklahoma Historical Society. To the extent
10 possible, the Oklahoma Historical Society shall ensure that the
11 employees retain pay and benefits, including longevity, dependent
12 insurance benefits, seniority, rights and other privileges and
13 benefits.

14 C. Appropriate conveyances and other documents shall be
15 executed by July 1, 2016, to effectuate the transfer of the Will
16 Rogers Memorial Commission.

17 D. The Office of Management and Enterprise Services shall
18 determine the amount of funds from available budgetary resources for
19 the Will Rogers Memorial Commission, including any appropriated
20 funds, revolving funds or sinking funds, that should be transferred
21 on July 1, 2016, from the Will Rogers Memorial Commission to the
22 Oklahoma Historical Society to continue operation of the Memorial
23 for the fiscal year ending June 30, 2016. The ~~Director~~ Chief
24 Operating Officer of the Office of Management and Enterprise

Services is authorized and directed to coordinate and administer the funds transfer. The funds transferred to the Oklahoma Historical Society shall not be subject to any budgetary limits that may have attached to the funds when the funds were appropriated to the Commission. From the effective date of this act through June 30, 2016, the Commission shall not spend or encumber more than the funds budgeted for that period without prior approval of the Office of Management and Enterprise Services.

E. The Oklahoma Historical Society may establish appropriate funds and accounts, including a revolving fund in the Office of Management and Enterprise Services for servicing the fiscal operations of the Memorial. Such funds and accounts shall be subject to the direct supervision, management and control of the Oklahoma Historical Society.

F. An employee transferred pursuant to the provisions of this act who is a member of the Oklahoma Public Employees Retirement System shall retain such membership and all service credit and other benefits associated therewith.

G. 1. The Oklahoma Historical Society shall succeed to any contractual rights and responsibilities the Commission has incurred on behalf of the Memorial.

2. The Oklahoma Historical Society and the Commission shall execute all necessary documents to memorialize the assignment to the Oklahoma Historical Society of all rights, responsibilities and

obligations under any and all contracts the Commission has entered into relating to operation of any part of the Memorial as provided in this section. The Oklahoma Historical Society shall execute any documents necessary to memorialize acceptance of such assignment. In the absence of memorializing documents or conveyances, the transfers including all the assignments shall occur by operation of law.

H. The rules of the Commission that are in effect on July 1, 2016, shall be enforceable by the Oklahoma Historical Society until the Oklahoma Historical Society establishes rules or until January 1, 2018, whichever occurs earlier.

SECTION 278. AMENDATORY 53 O.S. 2021, Section 47, is amended to read as follows:

Section 47. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services is authorized and directed to fix the maximum amount of the petty cash fund created in Section 46 of this title and to prescribe forms, systems and procedures for its administration. The petty cash fund may be reimbursed from time to time by the filing of proper claims, accompanied by valid receipts for expenditures made.

SECTION 279. AMENDATORY 53 O.S. 2021, Section 47.4A, is amended to read as follows:

Section 47.4A. A. There is hereby created in the State Treasury a revolving fund for the Oklahoma Historical Society, on

1 behalf of the Will Rogers Memorial, to be designated the "Will
2 Rogers Memorial Revolving Fund". The fund shall consist of all:

3 1. Appropriations, gifts, donations, grants, admission fees,
4 and any other monies received by the Oklahoma Historical Society
5 pursuant to this act; and

6 2. Proceeds from outlet sales, unless the outlets are leased as
7 provided in Section 47.4 of this title in which case any payments
8 received pursuant to any such lease shall be deposited in the
9 revolving fund.

10 B. The revolving fund shall be a continuing fund not subject to
11 fiscal year limitations and shall be under the administrative
12 direction of the Oklahoma Historical Society, on behalf of the Will
13 Rogers Memorial. The expenditure from the fund shall be used for
14 expenses relating to administration, duties, operations,
15 maintenance, special projects, and acquisitions for the Memorial and
16 shall be made pursuant to law.

17 C. Warrants for expenditures from this fund shall be drawn by
18 the State Treasurer based on claims signed by an authorized employee
19 of the Oklahoma Historical Society and approved for payment by the
20 ~~Director~~ Chief Operating Officer of the Office of Management and
21 Enterprise Services.

22 SECTION 280. AMENDATORY 53 O.S. 2021, Section 175, is
23 amended to read as follows:
24

Section 175. There is hereby created in the State Treasury a revolving fund for the Oklahoma Arts Council to be designated the "Oklahoma Arts Council Arts Education Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Council from appropriations, private and public donations, contributions, gifts, grants, and any other monies received by the Council for the purpose of providing incentive grants as provided for in Section 174 of this title. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Council for the purpose of providing incentive grants as provided for in Section 174 of this title. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 281. AMENDATORY 53 O.S. 2021, Section 232, is amended to read as follows:

Section 232. There is hereby created in the State Treasury a revolving fund for the Oklahoma Music Hall of Fame Board to be designated the "Oklahoma Music Hall of Fame Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Board from admission fees, private and public donations, contributions,

1 and gifts. All monies accruing to the credit of said fund are
2 hereby appropriated and may be budgeted and expended by the Board
3 for the purpose of creating, operating, staffing and maintaining an
4 Oklahoma Music Hall of Fame, and any legitimate expenses of the
5 Board. Expenditures from said fund shall be made upon warrants
6 issued by the State Treasurer against claims filed as prescribed by
7 law with the ~~Director~~ Chief Operating Officer of the Office of
8 Management and Enterprise Services for approval and payment.

9 SECTION 282. AMENDATORY Section 3, Chapter 358, O.S.L.
10 2023 (53 O.S. Supp. 2025, Section 503), is amended to read as
11 follows:

12 Section 503. There is hereby created in the State Treasury a
13 revolving fund for the Oklahoma Historical Society to be designated
14 the "Oklahoma Civil Rights Trail Revolving Fund". The fund shall be
15 a continuing fund, not subject to fiscal year limitations, and shall
16 consist of all monies deposited to the fund by law, as well as
17 gifts, donations, and private, state, and federal funds. All monies
18 accruing to the credit of such fund are hereby appropriated and may
19 be budgeted and expended by the Oklahoma Historical Society for the
20 purpose of providing financial assistance for the preservation of
21 the Oklahoma Civil Rights Trail. Expenditures from such fund shall
22 be made upon warrants issued by the State Treasurer against claims
23 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
24

1 of the Office of Management and Enterprise Services for approval and
2 payment.

3 SECTION 283. AMENDATORY 56 O.S. 2021, Section 59.1, is
4 amended to read as follows:

5 Section 59.1. A. The Oklahoma Tax Commission shall include on
6 each state individual income tax return form for tax years beginning
7 after December 31, 2001, an opportunity for the taxpayer to donate
8 from a tax refund for the benefit of the Oklahoma Indigent Health
9 Care Fund.

10 B. There is hereby created in the State Treasury a revolving
11 fund for the Department of Human Services, to be designated the
12 "Indigent Health Care Revolving Fund". The fund shall be a
13 continuing fund, not subject to fiscal year limitations, and shall
14 consist of all monies received by the Department of Human Services
15 from:

16 1. Any state monies appropriated for the purpose of
17 implementing the provisions of the Oklahoma Indigent Health Care
18 Act; and

19 2. Any monies collected pursuant to this section or any other
20 monies available to the Department of Human Services to implement
21 the provisions of the Oklahoma Indigent Health Care Act.

22 C. All monies accruing to the credit of the fund are hereby
23 appropriated and shall be budgeted and expended directly to eligible
24 clinics by the Department for the purpose of implementing the

Oklahoma Indigent Health Care Act. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 284. AMENDATORY 56 O.S. 2021, Section 198.11b, is amended to read as follows:

Section 198.11b. A. It is the public policy of the State of Oklahoma to:

1. Recognize and support individuals with disabilities by treating them with dignity and respect as productive members of our society in Oklahoma;

2. Acknowledge their contributions as productive and independent citizens in the state and the useful work they perform in their local communities;

3. Support a service delivery system for individuals with disabilities ensuring that the individuals, their families, or guardians are well informed as to the types of services and resources available to such individuals in order to encourage their independence, self-esteem, and self-worth, regardless of the severity of the disability; and

4. Recognize that self-choice on the part of individuals with disabilities is critical and that the most appropriate setting for meeting their needs should be a paramount consideration when

1 determining appropriate placement of such individuals in community-
2 based programs, residential care facilities, or any other placement
3 or service that benefits the needs and well-being of individuals
4 with disabilities.

5 B. There is hereby created the Strategic Planning Committee on
6 the Olmstead Decision to continue until July 1, 2010. The purpose
7 of the Committee is to monitor the implementation of the
8 comprehensive, strategic plan for the State of Oklahoma regarding
9 the Olmstead Decision.

10 C. The Strategic Planning Committee on the Olmstead Decision
11 shall be composed of fifteen (15) appointed members, eighteen (18)
12 ex officio members, and representatives from disability-related
13 organizations, all of whom shall be voting members, as follows:

14 1. a. The Governor shall appoint:

15 (1) one person who is a community placement service
16 provider for persons with disabilities,

17 (2) one person who is an advocate for persons with
18 disabilities,

19 (3) one parent or personal representative of a person
20 with disabilities,

21 (4) one member from an organization that provides
22 direct care services within the Advantage Waiver
23 Program, and
24

- (5) one member who is a consumer of disability services.
 - b. The President Pro Tempore of the Senate shall appoint:
 - (1) two members of the State Senate,
 - (2) two members who are consumers of disability services, and
 - (3) one member with a disability who has moved from an institutional setting into the community.
 - c. The Speaker of the House of Representatives shall appoint:
 - (1) two members of the House of Representatives,
 - (2) one parent or personal representative of a person with disabilities,
 - (3) one member who is a consumer of disability services, and
 - (4) one member with a disability who has moved from an institutional setting into the community;
2. The ex officio voting members shall be:
 - a. the Attorney General, or designee,
 - b. the Director of the Department of Human Services, or designee,
 - c. the Division Director of the Developmental Disabilities Division of the Department of Human

- Services, if not the designee of the Director of Human Services,
- d. the State Commissioner of Health, or designee,
 - e. the Commissioner of the Department of Mental Health and Substance Abuse Services, or designee,
 - f. the Administrator of the Oklahoma Health Care Authority, or designee,
 - g. the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services, or designee,
 - h. the Director of the State Department of Rehabilitation Services, or designee,
 - i. the Director of the Office of Disability Concerns, or designee,
 - j. the Director of the Oklahoma Employment Security Commission, or designee,
 - k. the state coordinator for the federal Ticket To Work and Work Incentive Act, if not the designee of the Oklahoma Employment Security Director,
 - l. the Executive Director of a local housing authority, or designee,
 - m. the Executive Director of the Oklahoma Housing Finance Agency, or designee,
 - n. the State Superintendent of Public Instruction, or designee,

- o. the Director of the Department of Transportation, or designee,
- p. the Commissioner of Labor, or designee,
- q. a representative from a local transit authority, or from a Community Action Agency, that provides transportation services to individuals with disabilities, and
- r. the Director of the Oklahoma Commission on Children and Youth, or designee; and

3. The membership shall also include as voting members:

- a. one representative from the Developmental Disabilities Council,
- b. one representative from the Statewide Independent Living Council,
- c. two representatives from the Centers for Independent Living,
- d. one representative from the Center for Learning and Leadership,
- e. one representative from the Oklahoma Disability Law Center,
- f. one representative from ABLE-Tech,
- g. one representative from the Oklahoma Mental Health Consumer Council, and

h. a representative of a nonprofit agency, in a county of five hundred thousand (500,000) or more population, that collaborates on programs and services for persons with disabilities.

D. 1. Members shall serve at the pleasure of their appointing authorities. A vacancy on the Committee shall be filled by the original appointing authority.

2. A majority of the members of the Committee shall constitute a quorum. A majority of the members present at a meeting may act for the Committee.

3. The President Pro Tempore and the Speaker shall each designate a cochair from among the members of the Committee.

4. The cochairs of the Committee shall annually establish a schedule of each year's meetings. The Committee shall meet at least four times annually.

5. Proceedings of all meetings of the Committee shall comply with the provisions of the Oklahoma Open Meeting Act.

6. The Committee may divide into subcommittees in furtherance of its purpose.

E. 1. The Department of Human Services and the Office of the Attorney General shall serve as lead agencies and as such shall provide primary staffing for the Committee. Appropriate personnel from the Oklahoma Health Care Authority and the Department of Mental

1 Health and Substance Abuse Services shall also assist with the work
2 of the Committee.

3 2. The Committee may use the expertise and services of the
4 staffs of the State Senate and the House of Representatives and may,
5 as necessary, employ and contract for the advice and services of
6 experts in the field as well as other necessary professional and
7 clerical staff.

8 F. All departments, officers, agencies, and employees of this
9 state shall cooperate with the Committee in fulfilling its duties
10 and responsibilities including, but not limited to, providing any
11 information, records, or reports requested by the Committee.

12 G. Members of the Committee shall receive no compensation for
13 their service, but shall receive travel reimbursement as follows:

14 1. Legislative members of the Committee shall be reimbursed for
15 necessary travel expenses incurred in the performance of their
16 duties in accordance with the provisions of Section 456 of Title 74
17 of the Oklahoma Statutes; and

18 2. Nonlegislative members of the Committee shall be reimbursed
19 by their appointing authorities or respective agencies for necessary
20 travel expenses incurred in the performance of their duties in
21 accordance with the State Travel Reimbursement Act.

22 H. The duties and responsibilities of the Strategic Planning
23 Committee on the Olmstead Decision shall include, but need not be
24 limited to:

- a. monitoring the implementation of the comprehensive, strategic plan for Oklahomans with disabilities, pursuant to the Olmstead Decision,
- b. reviewing the service delivery system within the state and the way in which persons with disabilities currently access the services,
- c. reviewing existing statutes, policies, programs, services and funding sources that affect Oklahomans with disabilities, including, but not limited to, identifying unique approaches and strategies to funding,
- d. identifying and reviewing funding and resource information available to persons with disabilities and their families in this state,
- e. identifying gaps and barriers in programs and services to individuals with disabilities and making any recommendations to enhance programs and the delivery system for persons with disabilities in Oklahoma,
- f. examining the feasibility of expanding the eligibility criteria for people served by the Developmental Disabilities Services Division of the Department of Human Services to include people with disabilities who are not eligible for the Advantage Waiver program through the Aging Services Division and those with

other diagnoses who are at risk of out-of-home placement,

g. studying the feasibility and impact of requiring that assistive technology suppliers in this state meet national certification requirements, and

h. taking all other actions necessary to monitor and assist with the implementation of the comprehensive strategic plan.

I. The Committee shall prepare and submit a report of its findings and recommendations to the Legislature and Governor by July 15, 2007, and each July 15 thereafter, and shall submit a final report by July 1, 2010.

SECTION 285. AMENDATORY 56 O.S. 2021, Section 202, is amended to read as follows:

Section 202. Premiums on such insurance shall be paid from monies or funds appropriated for the payment of assistance to the needy aged persons qualifying for assistance under subsection A of Section 164 of this title. Monthly claims for such premiums, certified by the Department of Human Services, shall be filed with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for audit and settlement prior to being paid on warrants by the State Treasurer.

SECTION 286. AMENDATORY 56 O.S. 2021, Section 224, is amended to read as follows:

Section 224. There is hereby created in the State Treasury a revolving fund for the Commission for Human Services, to be designated the "Human Services Disbursing Fund", provided that the fund may be designated by fiscal year designations as the Commission may determine. The fund shall be a continuing fund, not subject to fiscal year limitations. The fund shall consist of receipts from the federal government, monies appropriated to the Department of Human Services by the State Legislature, and other receipts of the Department of Human Services as shall be directed by the Commission for Human Services. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Commission for Human Services as may be necessary in order to carry out the duties imposed upon the said Commission by law, provided that expenditures shall not be made from the Human Services Disbursing Fund to pay any obligation for which there exists authorization for payment from the Oklahoma Medical Center Disbursing Fund or the Human Services Medical and Assistance Fund. Expenditures from the Human Services Disbursing Fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 287. AMENDATORY 56 O.S. 2021, Section 226, is amended to read as follows:

1 Section 226. There is hereby created in the State Treasury a
2 fund for the Department of Human Services to be designated the
3 "Department of Human Services Federal Disallowance Fund". The fund
4 shall be a continuing fund, not subject to fiscal year limitations.
5 It shall consist of monies received by the Department of Human
6 Services which, in the opinion of the Commission for Human Services,
7 may be subject to federal disallowances and interest which may
8 accrue on said receipts. All monies accruing to the credit of said
9 fund are hereby appropriated and may be budgeted and expended by the
10 Department of Human Services at the discretion of the Commission for
11 Human Services for eventual settlement of the appropriate pending
12 disallowances. Expenditures from said fund shall be made upon
13 warrants issued by the State Treasurer against claims filed as
14 prescribed by law with the ~~Director~~ Chief Operating Officer of the
15 Office of Management and Enterprise Services for approval and
16 payment.

17 The Director of Human Services may request the ~~Director~~ Chief
18 Operating Officer of the Office of Management and Enterprise
19 Services to transfer monies between the Department of Human Services
20 Federal Disallowance Fund and the Human Services Disbursing Fund or
21 the Department of Human Services Medical and Assistance Fund, as
22 needed for the expenditure of funds.

23 SECTION 288. AMENDATORY 56 O.S. 2021, Section 229, is
24 amended to read as follows:

1 Section 229. There is hereby created in the State Treasury a
2 revolving fund for the Department of Human Services to be designated
3 the "OK Benefits Revolving Fund". The fund shall be a continuing
4 fund, not subject to fiscal year limitations, and shall consist of
5 all monies designated to the fund by law. The Director of the
6 Department of Human Services shall, at the end of each month,
7 provide a current balance and statement of encumbrances of the fund
8 to the Chair of the Senate Appropriations Committee and the Chair of
9 the House of Representatives Committee on Appropriations and Budget.
10 All monies accruing to the credit of the fund are hereby
11 appropriated and may be budgeted and expended by the Department of
12 Human Services for the sole purpose of the acquisition, operation,
13 maintenance, repair and replacement of the OK Benefits system at the
14 Department of Human Services. Expenditures from the fund shall be
15 made upon warrants issued by the State Treasurer against claims
16 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
17 of the Office of Management and Enterprise Services for approval and
18 payment.

19 SECTION 289. AMENDATORY 56 O.S. 2021, Section 260, is
20 amended to read as follows:

21 Section 260. There is hereby created in the State Treasury a
22 revolving fund for the Department of Human Services to be designated
23 the "Individual Development Account (IDA) Revolving Fund". The fund
24 shall be a continuing fund, not subject to fiscal year limitations,

1 and shall consist of all monies appropriated or contributed thereto.
2 All monies accruing to the credit of the fund are hereby
3 appropriated and may be budgeted and expended by the Department for
4 grants awarded pursuant to the provisions of subsection C of Section
5 255 of this title. Expenditures from the fund shall be made upon
6 warrants issued by the State Treasurer against claims filed as
7 prescribed by law with the ~~Director~~ Chief Operating Officer of the
8 Office of Management and Enterprise Services for approval and
9 payment.

10 SECTION 290. AMENDATORY 56 O.S. 2021, Section 329.1, is
11 amended to read as follows:

12 Section 329.1. A. The Department of Human Services shall:

13 1. Establish a program to broaden the availability of support
14 service providers (SSPs) in the deaf-blind community;

15 2. Develop a mission statement for the program and promulgate
16 rules necessary to implement and administer the program;

17 3. Provide grants to SSPs and organizations that provide
18 services for deaf-blind adults or deaf-blind children and their
19 families. The services shall include but are not limited to:

- 20 a. transportation for doctor appointments, shopping or
- 21 errands,
- 22 b. reading mail or other correspondence,
- 23 c. making telephone calls,
- 24 d. recreation or wellness activities,

- e. civic or religious activities,
- f. deaf-blind meetings or events, and
- g. occasional special events such as weddings, funerals or religious ceremonies.

The Department may prioritize and limit the amount and scope of services offered subject to funding limitations and considering the needs of the deaf-blind recipients and their families; and

4. Use a request-for-proposal process to award grants to SSPs. SSPs that receive grants pursuant to this section may expend the grant monies for any purpose authorized in this subsection. The total amount of grants awarded pursuant to this section shall not exceed Two Hundred Fifty Thousand Dollars (\$250,000.00) annually.

B. After establishing a program pursuant to subsection A of this section and subject to the availability of funds, the Department may develop a certification requirement and training program for SSPs and organizations that provide services for deaf-blind adults or deaf-blind children and their families with the primary priority of service to the deaf-blind recipients and their families.

C. The structure and scope of the program established in subsection A of this section may be expanded upon legislative approval and funding. The program shall be aligned with other initiatives of the Department to avoid duplication or overlap of services or programming; however, the Department may use a

1 combination of services or programs to provide a comprehensive
2 support program for deaf-blind adults or deaf-blind children and
3 their families. The Department may solicit and accept private or
4 public funds from individuals and entities to implement and
5 administer the program.

6 D. There is hereby created in the State Treasury a revolving
7 fund for the Department of Human Services to be designated the
8 "Support Service Providers Grant Program Fund". The fund shall be a
9 continuing fund, not subject to fiscal year limitations. The fund
10 shall consist of monies appropriated to the Department by the
11 Legislature and any other monies acquired by the Department pursuant
12 to subsection C of this section. All monies accruing to the credit
13 of the fund are hereby appropriated and may be budgeted and expended
14 by the Department in order to carry out the duties imposed in this
15 section. Expenditures from the Support Service Providers Grant
16 Program Fund shall be made upon warrants issued by the State
17 Treasurer against claims filed as prescribed by law with the
18 ~~Director~~ Chief Operating Officer of the Office of Management and
19 Enterprise Services for approval and payment.

20 SECTION 291. AMENDATORY 56 O.S. 2021, Section 1003, is
21 amended to read as follows:

22 Section 1003. A. There is hereby created within the Office of
23 the Attorney General, a Medicaid fraud control unit.
24

1 B. The Medicaid fraud control unit shall be the state entity to
2 which all cases of suspected Medicaid fraud shall be referred by the
3 Oklahoma Health Care Authority or its fiscal agents for the purposes
4 of investigation, civil action, criminal action or referral to the
5 district attorney. Provided however, nothing contained in the
6 Oklahoma Medicaid Program Integrity Act shall prohibit the Oklahoma
7 Health Care Authority from investigating or additionally referring
8 to other proper law enforcement agencies cases of suspected Medicaid
9 fraud, nor the Attorney General from pursuing cases of suspected
10 Medicaid fraud without a referral from the Oklahoma Health Care
11 Authority if there is credible evidence of fraud. The Oklahoma
12 Health Care Authority shall be authorized to require providers to
13 display information about how to report providers suspected of
14 fraudulent activity relating to the Oklahoma Medicaid Program. The
15 Oklahoma Health Care Authority shall require that signs be posted in
16 any and all locations where services provided by the Oklahoma
17 Medicaid Program are delivered to Medicaid recipients. The sign
18 shall make reference to the Attorney General's Medicaid Fraud
19 Control Unit hotline and provide the current phone number for the
20 hotline, and shall be placed in a conspicuous location within a
21 provider's office. The sign shall contain notification that all
22 reports to the hotline may be filed anonymously by persons
23 suspecting fraudulent activity.

1 C. 1. In carrying out these responsibilities, the Attorney
2 General shall have all the powers necessary to comply with federal
3 laws and regulations relative to the operation of a Medicaid fraud
4 unit, the power to cross-designate assistant United States attorneys
5 as assistant attorneys general, the power to investigate cases of
6 patient abuse, the power to issue or cause to be issued subpoenas or
7 other process in aid of investigations and prosecutions, the power
8 to administer oaths and take sworn statements under penalty of
9 perjury, the power to serve and execute in any county, search
10 warrants which relate to investigations authorized by the Oklahoma
11 Medicaid Program Integrity Act and shall have all the powers of a
12 district attorney.

13 2. Subpoenas ad testificandum or duces tecum issued pursuant to
14 the Oklahoma Medicaid Program Integrity Act may be served by the
15 Attorney General, any peace officer, or any competent person over
16 eighteen (18) years of age, and may require attendance or production
17 at any place in this state. A refusal to obey such subpoena, or
18 willful failure to appear, be sworn, testify, or produce records at
19 the place and time specified shall constitute contempt and shall be
20 enforced by the district court of the county where issued or the
21 county where served, at the election of the Attorney General, as if
22 it was a contempt on that court.

23 D. The Attorney General shall have authority to collect all
24 fines, penalties, amounts of restitution, or interest accruing on

any amount of restitution to be made and any penalties to be paid from and after default in the payment thereof levied pursuant to the provisions of the Oklahoma Medicaid Program Integrity Act, the Oklahoma Medicaid False Claims Act, or any other charge, cause of action, prelitigation settlement or other settlement which recovers money wrongfully paid by the Oklahoma Health Care Authority on a claim submitted to the Oklahoma Health Care Authority. However, this subsection is not in any way intended to affect the contempt power of any court. Funds collected by the Attorney General pursuant to this section shall be deposited as follows:

1. Restitution recovered and interest thereon shall be returned to the Oklahoma Health Care Authority for deposit to the Oklahoma Health Care Authority Medicaid Program Fund created pursuant to Section 5020 of Title 63 of the Oklahoma Statutes;

2. Costs of investigation, litigation, attorney fees, and other expenses shall be retained by the Office of the Attorney General and shall be deposited in the Attorney General's Medicaid Fraud Revolving Fund created pursuant to subsection E of this section; and

3. Fines and penalties and other funds recovered and interest thereon shall be deposited in the Attorney General's Medicaid Fraud Revolving Fund; provided, the balance in the Attorney General's Medicaid Fraud Revolving Fund shall not exceed an amount equal to fifty percent (50%) of the current-year budget for operating costs

1 of the Medicaid Fraud Control Unit. Any funds exceeding that amount
2 shall be deposited as follows:

3 a. seventy-five percent (75%) to the General Revenue
4 Fund, and

5 b. twenty-five percent (25%) to the Attorney General's
6 Evidence Fund created pursuant to Section 19 of Title
7 74 of the Oklahoma Statutes.

8 E. There is hereby created in the State Treasury a revolving
9 fund for the Office of the Attorney General, to be designated the
10 "Attorney General's Medicaid Fraud Revolving Fund". The fund shall
11 be a continuing fund, not subject to fiscal year limitations, and
12 shall consist of any monies designated to the fund by law. All
13 monies accruing to the credit of said fund are hereby appropriated
14 and may be budgeted and expended by the Attorney General for
15 activities related to the Medicaid Fraud Control Unit. Expenditures
16 from said fund shall be made upon warrants issued by the State
17 Treasurer against claims filed as prescribed by law with the
18 ~~Director~~ Chief Operating Officer of the Office of Management and
19 Enterprise Services for approval and payment.

20 SECTION 292. AMENDATORY Section 23, Chapter 395, O.S.L.
21 2022 (56 O.S. Supp. 2025, Section 1010.8A), is amended to read as
22 follows:

23 Section 1010.8A. There is hereby created in the State Treasury
24 a revolving fund for the Oklahoma Health Care Authority to be

1 designated the "Medicaid Health Improvement Revolving Fund". The
2 fund shall be a continuing fund, not subject to fiscal year
3 limitations, and shall consist of all monies received from the
4 premium tax levied on contracted entities under paragraph 2 of
5 subsection A of Section 624 of Title 36 of the Oklahoma Statutes and
6 such other funds as may be provided by law. All monies accruing to
7 the credit of the fund are hereby appropriated and may be budgeted
8 and expended by the Authority for the following purposes:

- 9 1. To supplement the state Medicaid program;
- 10 2. To supplement the Supplemental Hospital Offset Payment
11 Program; and
- 12 3. To supplement the Rate Preservation Fund created in Section
13 5020A of Title 63 of the Oklahoma Statutes.

14 Expenditures from the fund shall be made upon warrants issued by
15 the State Treasurer against claims filed as prescribed by law with
16 the ~~Director~~ Chief Operating Officer of the Office of Management and
17 Enterprise Services for approval and payment.

18 SECTION 293. AMENDATORY 56 O.S. 2021, Section 1011.13,
19 is amended to read as follows:

20 Section 1011.13. A. There is hereby created in the State
21 Treasury a revolving fund for the Oklahoma Health Care Authority to
22 be designated the "Nursing Facility Supplemental Payment Program
23 Revolving Fund". The fund shall be a continuing fund, not subject
24 to fiscal year limitations, and shall consist of:

1 1. All monies received by the Authority from nonstate
2 governmental organizations pursuant to the Nursing Facility
3 Supplemental Payment Program;

4 2. Any interest or penalties levied and collected in
5 conjunction with the administration of this act; and

6 3. All interest attributable to investment of money in the
7 fund.

8 B. All monies accruing to the credit of the fund are hereby
9 appropriated and may be budgeted and expended by the Authority for
10 the purposes of:

11 1. Transferring funds for the state share of supplemental
12 payments for the Oklahoma Medicaid Program;

13 2. Transferring funds for the state share of administrative
14 expenses incurred by the Authority or its agents and employees in
15 performing the activities authorized by the Nursing Facility
16 Supplemental Payment Program; or

17 3. Transferring funds for the maintenance of nursing facility
18 reimbursement rates; provided, such transfers shall only include
19 funds remaining after the transfers authorized by paragraphs 1 and 2
20 of this subsection.

21 C. Expenditures from the fund shall be made upon warrants
22 issued by the State Treasurer against claims filed as prescribed by
23 law with the ~~Director~~ Chief Operating Officer of the Office of
24 Management and Enterprise Services for approval and payment.

D. Except for the transfers described in subsection B of this section, monies in the Nursing Facility Supplemental Payment Program Revolving Fund shall not be used to replace other general revenues appropriated and funded by the Legislature or other revenues used to support Medicaid.

SECTION 294. AMENDATORY Section 1, Chapter 422, O.S.L. 2024 (56 O.S. Supp. 2025, Section 1026.1), is amended to read as follows:

Section 1026.1. There is hereby created in the State Treasury a revolving fund for the Department of Human Services to be designated the "Developmental Disability Services Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Department from appropriations provided for the purpose of funding the state share of the following home- and community-based services waivers:

1. The In-Home Supports for Adults Waiver;
2. The In-Home Supports for Children Waiver;
3. The Homeward Bound Waiver; and
4. The Community Waiver.

All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Department for the purpose provided for in this section. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief

1 Operating Officer of the Office of Management and Enterprise
2 Services for approval and payment.

3 SECTION 295. AMENDATORY 56 O.S. 2021, Section 2002, as
4 amended by Section 1, Chapter 214, O.S.L. 2025 (56 O.S. Supp. 2025,
5 Section 2002), is amended to read as follows:

6 Section 2002. A. For the purpose of providing quality care
7 enhancements, the Oklahoma Health Care Authority is authorized to
8 and shall assess a Nursing Facilities Quality of Care Fee pursuant
9 to this section upon each nursing facility licensed in this state.
10 Facilities operated by the Oklahoma Department of Veterans Affairs
11 shall be exempt from this fee. Quality of care enhancements
12 include, but are not limited to, the purposes specified in this
13 section.

14 B. As a basis for determining the Nursing Facilities Quality of
15 Care Fee assessed upon each licensed nursing facility, the Authority
16 shall calculate a uniform per-patient day rate. The rate shall be
17 calculated by dividing six percent (6%) of the total annual patient
18 gross receipts of all licensed nursing facilities in this state by
19 the total number of patient days for all licensed nursing facilities
20 in this state. The result shall be the per-patient day rate.
21 Beginning July 15, 2004, the Nursing Facilities Quality of Care Fee
22 shall not be increased unless specifically authorized by the
23 Legislature.

1 C. Pursuant to any approved Medicaid waiver and pursuant to
2 subsection N of this section, the Nursing Facilities Quality of Care
3 Fee shall not exceed the amount or rate allowed by federal law for
4 nursing home licensed bed days.

5 D. The Nursing Facilities Quality of Care Fee owed by a
6 licensed nursing facility shall be calculated by the Authority by
7 adding the daily patient census of a licensed nursing facility, as
8 reported by the facility for each day of the month, and by
9 multiplying the ensuing figure by the per-patient day rate
10 determined pursuant to the provisions of subsection B of this
11 section.

12 E. Each licensed nursing facility which is assessed the Nursing
13 Facilities Quality of Care Fee shall be required to file a report on
14 a monthly basis with the Authority detailing the daily patient
15 census and patient gross receipts at such time and in such manner as
16 required by the Authority.

17 F. 1. The Nursing Facilities Quality of Care Fee for a
18 licensed nursing facility for the period beginning October 1, 2000,
19 shall be determined using the daily patient census and annual
20 patient gross receipts figures reported to the Authority for the
21 calendar year 1999 upon forms supplied by the Authority.

22 2. Annually the Nursing Facilities Quality of Care Fee shall be
23 determined by:
24

- a. using the daily patient census and patient gross receipts reports received by the Authority for the most recent available twelve (12) months, and
- b. annualizing those figures.

Each year thereafter, the annualization of the Nursing Facilities Quality of Care Fee specified in this paragraph shall be subject to the limitation in subsection B of this section unless the provision of subsection C of this section is met.

G. The payment of the Nursing Facilities Quality of Care Fee by licensed nursing facilities shall be an allowable cost for Medicaid reimbursement purposes.

H. 1. There is hereby created in the State Treasury a revolving fund to be designated the "Nursing Facility Quality of Care Fund".

2. The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of:

- a. all monies received by the Authority pursuant to this section and otherwise specified or authorized by law,
- b. monies received by the Authority due to federal financial participation pursuant to Title XIX of the Social Security Act, and
- c. interest attributable to investment of money in the fund.

3. All monies accruing to the credit of the fund are hereby appropriated and shall be budgeted and expended by the Authority for:

- a. reimbursement of the additional costs paid to Medicaid-certified nursing facilities for purposes specified by Sections 1-1925.2 and 5022.2 of Title 63 of the Oklahoma Statutes,
- b. reimbursement of the Medicaid rate increases for intermediate care facilities for individuals with intellectual disabilities (ICFs/IID),
- c. nonemergency transportation services for Medicaid-eligible nursing home clients,
- d. eyeglass and denture services for Medicaid-eligible nursing home clients,
- e. fifteen ombudsmen employed by the Office of the Attorney General,
- f. ten additional nursing facility inspectors employed by the State Department of Health,
- g. pharmacy and other Medicaid services to qualified Medicare beneficiaries whose incomes are at or below one hundred percent (100%) of the federal poverty level; provided however, pharmacy benefits authorized for such qualified Medicare beneficiaries shall be

- 1 suspended if the federal government subsequently
2 extends pharmacy benefits to this population,
3 h. costs incurred by the Authority in the administration
4 of the provisions of this section and any programs
5 created pursuant to this section,
6 i. durable medical equipment and supplies services for
7 Medicaid-eligible elderly adults, and
8 j. personal needs allowance increases for residents of
9 nursing homes and Intermediate Care Facilities for
10 Individuals with Intellectual Disabilities (ICFs/IID)
11 from Thirty Dollars (\$30.00) to Fifty Dollars (\$50.00)
12 per month per resident.

13 4. Expenditures from the fund shall be made upon warrants
14 issued by the State Treasurer against claims filed as prescribed by
15 law with the ~~Director~~ Chief Operating Officer of the Office of
16 Management and Enterprise Services for approval and payment.

17 5. The fund and the programs specified in this section funded
18 by revenues collected from the Nursing Facilities Quality of Care
19 Fee pursuant to this section are exempt from budgetary cuts,
20 reductions, or eliminations.

21 6. The Medicaid rate increases for intermediate care facilities
22 for individuals with intellectual disabilities (ICFs/IID) shall not
23 exceed the net Medicaid rate increase for nursing facilities
24 including, but not limited to, the Medicaid rate increase for which

1 Medicaid-certified nursing facilities are eligible due to the
2 Nursing Facilities Quality of Care Fee less the portion of that
3 increase attributable to treating the Nursing Facilities Quality of
4 Care Fee as an allowable cost.

5 7. The reimbursement rate for nursing facilities shall be made
6 in accordance with Oklahoma's Medicaid reimbursement rate
7 methodology and the provisions of this section.

8 8. No nursing facility shall be guaranteed, expressly or
9 otherwise, that any additional costs reimbursed to the facility will
10 equal or exceed the amount of the Nursing Facilities Quality of Care
11 Fee paid by the nursing facility.

12 I. 1. In the event that federal financial participation
13 pursuant to Title XIX of the Social Security Act is not available to
14 the Oklahoma Medicaid program, for purposes of matching expenditures
15 from the Nursing Facility Quality of Care Fund at the approved
16 federal medical assistance percentage for the applicable fiscal
17 year, the Nursing Facilities Quality of Care Fee shall be null and
18 void as of the date of the nonavailability of such federal funding,
19 through and during any period of nonavailability.

20 2. In the event of an invalidation of this section by any court
21 of last resort under circumstances not covered in subsection J of
22 this section, the Nursing Facilities Quality of Care Fee shall be
23 null and void as of the effective date of that invalidation.

1 3. In the event that the Nursing Facilities Quality of Care Fee
2 is determined to be null and void for any of the reasons enumerated
3 in this subsection, any Nursing Facilities Quality of Care Fee
4 assessed and collected for any periods after such invalidation shall
5 be returned in full within sixty (60) days by the Authority to the
6 nursing facility from which it was collected.

7 J. 1. If any provision of this section or the application
8 thereof shall be adjudged to be invalid by any court of last resort,
9 such judgment shall not affect, impair or invalidate the provisions
10 of the section, but shall be confined in its operation to the
11 provision thereof directly involved in the controversy in which such
12 judgment was rendered. The applicability of such provision to other
13 persons or circumstances shall not be affected thereby.

14 2. This subsection shall not apply to any judgment that affects
15 the rate of the Nursing Facilities Quality of Care Fee, its
16 applicability to all licensed nursing homes in the state, the usage
17 of the fee for the purposes prescribed in this section, or the
18 ability of the Authority to obtain full federal participation to
19 match its expenditures of the proceeds of the fee.

20 K. The Authority shall promulgate rules for the implementation
21 and enforcement of the Nursing Facilities Quality of Care Fee
22 established by this section.

23 L. The Authority shall provide for administrative penalties in
24 the event nursing facilities fail to:

1. Submit the Quality of Care Fee;

2. Submit the fee in a timely manner;

3. Submit reports as required by this section; or

4. Submit reports timely.

M. As used in this section:

1. "Nursing facility" means any home, establishment or institution, or any portion thereof, licensed by the State Department of Health as defined in Section 1-1902 of Title 63 of the Oklahoma Statutes;

2. "Medicaid" means the medical assistance program established in Title XIX of the federal Social Security Act and administered in this state by the Authority;

3. "Patient gross revenues" means gross revenues received in compensation for services provided to residents of nursing facilities including, but not limited to, client participation. The term "patient gross revenues" shall not include amounts received by nursing facilities as charitable contributions; and

4. "Additional costs paid to Medicaid-certified nursing facilities under Oklahoma's Medicaid reimbursement methodology" means both state and federal Medicaid expenditures including, but not limited to, funds in excess of the aggregate amounts that would otherwise have been paid to Medicaid-certified nursing facilities under the Medicaid reimbursement methodology which have been updated for inflationary, economic, and regulatory trends and which are in

1 effect immediately prior to the inception of the Nursing Facilities
2 Quality of Care Fee.

3 N. 1. As per any approved federal Medicaid waiver, the
4 assessment rate subject to the provision of subsection C of this
5 section is to remain the same as those rates that were in effect
6 prior to January 1, 2012, for all state-licensed continuum of care
7 facilities.

8 2. Any facilities that made application to the State Department
9 of Health to become a licensed continuum of care facility no later
10 than January 1, 2012, shall be assessed at the same rate as those
11 facilities assessed pursuant to paragraph 1 of this subsection;
12 provided, that any facility making the application shall receive the
13 license on or before September 1, 2012. Any facility that fails to
14 receive such license from the State Department of Health by
15 September 1, 2012, shall be assessed at the rate established by
16 subsection C of this section subsequent to September 1, 2012.

17 O. If any provision of this section, or the application
18 thereof, is determined by any controlling federal agency, or any
19 court of last resort to prevent the state from obtaining federal
20 financial participation in the state's Medicaid program, such
21 provision shall be deemed null and void as of the date of the
22 nonavailability of such federal funding and through and during any
23 period of nonavailability. All other provisions of the bill shall
24 remain valid and enforceable.

SECTION 296. AMENDATORY 56 O.S. 2021, Section 2004, is amended to read as follows:

Section 2004. A. As used in this section:

1. "Additional costs reimbursed to the contracted community-based service provider" means both state and federal Medicaid expenditures in excess of the aggregate amounts that would otherwise have been paid to a contracted community-based service provider including, but not limited to, costs related to an audit required by the Department of Human Services, the Oklahoma Health Care Authority, or the State Auditor and Inspector;

2. "Contracted community-based service provider" means any entity contracted by the Department of Human Services, the Oklahoma Health Care Authority, or any private person providing the support, or promotion of support, for a service recipient to remain in such person's home or residence and shall include, but not be limited to, entities and persons providing personal support, professional support, case management, transportation services, and services through a Home and Community-Based Waiver or Advantage Waiver as defined by Title XIX of the Social Security Act, Section 1915 (C);

3. "Gross receipts" means annual gross revenues received in compensation for services rendered by a contracted community-based service provider, but shall not include any amount received by a contracted service provider as a charitable contribution or any

1 amount received by a provider as compensation for services rendered
2 that is not reimbursed; and

3 4. "Medicaid" means the medical assistance program established
4 in Title XIX of the federal Social Security Act and administered in
5 the state by the Oklahoma Health Care Authority.

6 B. Information required to calculate the Home-Based Support
7 Quality Assurance Assessment provided in Section 4002 of Title 68 of
8 the Oklahoma Statutes for a contracted community-based service
9 provider shall be reported to the Oklahoma Health Care Authority
10 using forms supplied by the Oklahoma Health Care Authority.

11 C. The payment of the Home-Based Quality Assurance Assessment
12 by contracted community-based service providers shall be an
13 allowable cost for Medicaid reimbursement purposes.

14 D. 1. There is hereby created in the State Treasury a
15 revolving fund for the Oklahoma Health Care Authority to be
16 designated the "Home-Based Quality Assurance Fund".

17 2. The fund shall be a continuing fund, not subject to fiscal
18 year limitations, and shall consist of:

- 19 a. all monies received by the Oklahoma Health Care
20 Authority pursuant to Section 4002 of Title 68 of the
21 Oklahoma Statutes and otherwise specified or
22 authorized by law,
23
24

b. monies received by the Oklahoma Health Care Authority due to federal financial participation pursuant to Title XIX of the Social Security Act, and

c. interest attributable to investment of money in the Home-Based Quality Assurance Fund.

3. All monies accruing to the credit of the fund are appropriated and may be budgeted and expended by the Oklahoma Health Care Authority for Medicaid services provided by contracted community-based service providers.

4. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

5. The Home-Based Quality Assurance Fund and the programs specified in this section that are funded by revenues collected from the Home-Based Quality Assurance Assessment pursuant to this section are exempt from budgetary cuts, reductions, or eliminations.

6. The reimbursement rate for contracted community-based service providers shall be made in accordance with Oklahoma's Medicaid reimbursement rate methodology and the provisions of this section.

7. No contracted community-based service provider shall be guaranteed, expressly or otherwise, that any additional costs reimbursed to the contracted community-based service provider shall

1 equal or exceed the amount of the Home-Based Quality Assurance
2 Assessment paid by the contracted community-based service provider.

3 E. 1. If federal financial participation pursuant to Title XIX
4 of the Social Security Act is not available to the Oklahoma Medicaid
5 program, for purposes of matching expenditures from the Home-Based
6 Quality Assurance Fund at the approved federal medical assistance
7 percentage for the applicable fiscal year, the Home-Based Quality
8 Assurance Assessment shall be null and void as of the date of the
9 nonavailability of such federal funding, through and during any
10 period of nonavailability.

11 2. If this section is invalidated by any court of last resort
12 under circumstances not covered in subsection F of this section, the
13 Home-Based Quality Assurance Assessment shall be void as of the
14 effective date of that invalidation.

15 3. If the Home-Based Quality Assurance Assessment is determined
16 to be void for any of the reasons enumerated in this section, any
17 Home-Based Quality Assurance Assessment assessed and collected for
18 any periods after such invalidation shall be returned in full within
19 sixty (60) days by the Oklahoma Health Care Authority to the
20 contracted community-based service provider from which it was
21 collected.

22 4. If any provision of this section, or the application
23 thereof, is determined by any court of last resort to prevent the
24 state from obtaining federal financial participation in the state

1 Medicaid program, such provision shall be deemed void as of the date
2 of the nonavailability of such federal funding and through and
3 during any period of nonavailability.

4 F. 1. If any provision of this section or the application
5 thereof shall be adjudged to be invalid by any court of last resort,
6 such judgment shall not affect, impair or invalidate the remaining
7 provisions of the section, but shall be confined in its operation to
8 the provision thereof directly involved in the controversy in which
9 such judgment was rendered. The applicability of such provision to
10 other persons or circumstances shall not be affected thereby.

11 2. This subsection shall not apply to any judgment that affects
12 the rate of the Home-Based Quality Assurance Assessment, its
13 applicability to all contracted community-based service providers in
14 the state, the usage of the fee for the purposes prescribed in this
15 section, or the ability of the Oklahoma Health Care Authority to
16 obtain full federal participation to match its expenditures of the
17 proceeds of the assessment.

18 G. The Oklahoma Health Care Authority shall:

19 1. Promulgate rules for the implementation and enforcement of
20 the Home-Based Quality Assurance Assessment established by this
21 section; and

22 2. Provide for administrative penalties in the event a
23 contracted community-based service provider fails to:

24 a. submit the Home-Based Quality Assurance Assessment,

- 1 b. submit the Home-Based Quality Assurance Assessment in
2 a timely manner, or
3 c. submit reports as required by this section or by the
4 Oklahoma Health Care Authority.

5 SECTION 297. AMENDATORY Section 1, Chapter 467, O.S.L.
6 2025 (57 O.S. Supp. 2025, Section 509A), is amended to read as
7 follows:

8 Section 509A. There is hereby created in the State Treasury a
9 revolving fund for the Department of Corrections to be designated
10 the "Prison Acquisition Revolving Fund". The fund shall be a
11 continuing fund, not subject to fiscal year limitations, and shall
12 consist of all monies designated for deposit by law. All monies
13 accruing to the credit of said fund are hereby appropriated and may
14 be budgeted and expended by the Department for the purpose of, on
15 behalf of the state, completing a purchase of a prison including
16 associated property and equipment from a private prison contractor.
17 Expenditures from said fund shall be made upon warrants issued by
18 the State Treasurer against claims filed as prescribed by law with
19 the ~~Director~~ Chief Operating Officer of the Office of Management and
20 Enterprise Services for approval and payment.

21 SECTION 298. AMENDATORY 57 O.S. 2021, Section 510.8C, is
22 amended to read as follows:

23 Section 510.8C. A. There is hereby created in the State
24 Treasury a revolving fund for the Office of Management and

Enterprise Services to be designated the "Criminal Justice Pay for Success Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies appropriated to the Criminal Justice Pay for Success Revolving Fund and monies which may otherwise be available to the Office of Management and Enterprise Services for use as provided for in this section.

B. All monies appropriated to the fund shall be budgeted and expended by the Office of Management and Enterprise Services for the purpose of funding contracts for those criminal justice programs that have outcomes associated with reducing public sector costs. Pursuant to contract, the Office of Management and Enterprise Services shall provide payment to social service providers for the delivery of predefined criminal justice outcomes. The Office of Management and Enterprise Services shall approve only those contracts that meet the following requirements:

1. The social service provider can provide not less than Two Million Dollars (\$2,000,000.00) in capital to fund the delivery of services necessary to achieve the predefined criminal justice outcomes;

2. The social service provider can provide verifiable evidence of successful completion rates of persons who participated in the diversion or reentry program offered by the service provider; and

1 3. Persons participating in the diversion or reentry programs
2 offered by the service provider are not under the custody or control
3 of the Department of Corrections.

4 C. Expenditures from the fund shall be made upon verification
5 by the Office of Management and Enterprise Services that successful
6 completion of the diversion or reentry program was achieved by the
7 participant pursuant to contract. Expenditures from the fund shall
8 be made upon warrants issued by the State Treasurer against claims
9 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
10 of the Office of Management and Enterprise Services for approval and
11 payment.

12 SECTION 299. AMENDATORY 57 O.S. 2021, Section 510A, is
13 amended to read as follows:

14 Section 510A. There is hereby created in the State Treasury a
15 revolving fund for the Department of Corrections to be designated
16 the "Department of Corrections Offender Management System Revolving
17 Fund". The fund shall be a continuing fund, not subject to fiscal
18 year limitations, and shall consist of all monies directed for
19 deposit by law. All monies accruing to the credit of said fund are
20 hereby appropriated and may be budgeted and expended by the
21 Department of Corrections for the purpose of implementing and
22 administering an offender management system. Expenditures from said
23 fund shall be made upon warrants issued by the State Treasurer
24 against claims filed as prescribed by law with the ~~Director~~ Chief

1 Operating Officer of the Office of Management and Enterprise
2 Services for approval and payment.

3 SECTION 300. AMENDATORY 57 O.S. 2021, Section 513.1, is
4 amended to read as follows:

5 Section 513.1. To satisfy the requirements of subsections A and
6 B of Section 513 of this title, and to timely acquire goods and
7 services that cannot be secured through normal purchasing and
8 invoice processes, there is hereby created a petty cash fund within
9 the Department of Corrections. The ~~Director~~ Chief Operating Officer
10 of the Office of Management and Enterprise Services and the Director
11 of the Department of Corrections are authorized to fix the maximum
12 amount of the petty cash fund, and the ~~Director~~ Chief Operating
13 Officer of the Office of Management and Enterprise Services shall
14 prescribe the rules and procedures for the administration of the
15 petty cash fund. The Department of Corrections is directed to
16 develop a written policy to specify which units, facilities and
17 institutions within the Department are authorized to make
18 disbursements from the petty cash fund.

19 SECTION 301. AMENDATORY 57 O.S. 2021, Section 521.1, is
20 amended to read as follows:

21 Section 521.1. A. The Reentry Policy Council shall be re-
22 created, and shall continue until July 1, 2023, pursuant to the
23 provisions of the Oklahoma Sunset Law, for the purpose of providing
24 oversight of the reentry policies and programs operated by the

1 Department of Corrections. The Council shall consist of eleven (11)
2 members and shall be appointed as follows:

3 1. Three members shall be appointed by the Governor as follows:

- 4 a. one member shall be a law enforcement officer,
- 5 b. one member shall be a corrections official, and
- 6 c. one member shall be a crime victim;

7 2. Four members shall be appointed by the Speaker of the
8 Oklahoma House of Representatives as follows:

- 9 a. one member shall be a member of the Oklahoma House of
10 Representatives,
- 11 b. one member shall be a representative of a faith-based
12 organization involved with the reintegration of
13 inmates,
- 14 c. one member shall be a person who has been previously
15 convicted of a criminal offense in Oklahoma, and
- 16 d. one member shall be a mental health and substance
17 abuse official; and

18 3. Four members shall be appointed by the President Pro Tempore
19 of the Oklahoma State Senate as follows:

- 20 a. one member shall be a member of the Oklahoma State
21 Senate,
- 22 b. one member shall be a representative from a for-profit
23 halfway house who specializes in reintegration of
24 inmates,

- 1 c. one member shall be a representative from a nonprofit
2 entity involved with the reintegration of inmates, and
3 d. one member shall be a district attorney, or his or her
4 designee.

5 B. The Council shall:

6 1. Review corrections policies, programs and procedures to
7 ensure that the primary purpose of each is public safety during
8 imprisonment and after release;

9 2. Identify gaps in reentry programs and services as well as
10 overlapping efforts, and recommend changes to address those issues;

11 3. Review policies to ensure that corrections facilities
12 recruit and welcome volunteers;

13 4. Review the licensing procedures within this state to
14 eliminate barriers to employment that are unrelated to the conduct
15 underlying the conviction; and

16 5. Report annually to the Legislature and the Governor on the
17 progress of the reentry initiative, including the impact on
18 recidivism, effectiveness of agency coordination and communications,
19 and the implementation of reentry plans and use of funding.

20 C. 1. Legislative members of the Council shall be reimbursed
21 for their necessary travel expenses incurred in the performance of
22 their duties in accordance with Section 456 of Title 74 of the
23 Oklahoma Statutes from the legislative body in which they serve.
24

2. State agency employees who are members of the Council shall be reimbursed for their travel expenses incurred in the performance of their duties by their respective agencies in accordance with the State Travel Reimbursement Act.

3. All other Council members shall be reimbursed by the Office of Management and Enterprise Services for travel expenses incurred in the performance of their duties on the Council in accordance with the State Travel Reimbursement Act.

SECTION 302. AMENDATORY 57 O.S. 2021, Section 521.2, is amended to read as follows:

Section 521.2. A. There is hereby created until July 1, 2010, the "Transformational Justice Interagency Task Force". The Transformational Justice Interagency Task Force shall be composed of the following members:

1. The Director of the Department of Corrections, or a designee;

2. The Executive Director of the Office of Juvenile Affairs, or a designee;

3. The Attorney General, or a designee;

4. The State Commissioner of Health, or a designee;

5. The Director of the Department of Human Services, or a designee;

6. The Commissioner of Mental Health and Substance Abuse Services, or a designee;

7. The Presiding Judge of the Oklahoma Court of Criminal Appeals, or a designee;

8. The Executive Coordinator of the District Attorneys Council, or a designee;

9. The Executive Director of the Oklahoma Indigent Defense System, or a designee;

10. Two members of the Oklahoma House of Representatives appointed by the Speaker of the Oklahoma House of Representatives; and

11. Two members of the Oklahoma State Senate appointed by the President Pro Tempore of the Senate.

B. The chair shall be appointed by the Speaker of the Oklahoma House of Representatives on or before December 1, 2007. The vice-chair shall be appointed by the President Pro Tempore of the Oklahoma State Senate on or before December 1, 2007. The chair shall convene the first meeting of the Task Force on or before January 1, 2008. The members of the Task Force shall elect any other officers during the first meeting and upon a vacancy in any office. The Task Force shall meet as often as necessary. Task Force members employed by the state shall be reimbursed for travel expenses related to their service on the Task Force by their respective agencies pursuant to the provisions of the State Travel

1 Reimbursement Act. Legislative members of the Task Force shall be
2 reimbursed for their necessary travel expenses incurred in the
3 performance of their duties in accordance with Section 456 of Title
4 74 of the Oklahoma Statutes. Remaining Task Force members shall be
5 reimbursed travel expenses related to their service on the Task
6 Force by their appointing authorities pursuant to the provisions of
7 the State Travel Reimbursement Act.

8 C. The Transformational Justice Interagency Task Force shall:

9 1. Establish goals for reducing the rate of recidivism among
10 inmates;

11 2. Coordinate the reentry programs of the state to help inmates
12 find jobs, housing, substance abuse treatment, medical care, and
13 mental health services;

14 3. Ensure that those who supervise offenders in prison are
15 linked to those that will supervise them after release;

16 4. Identify methods to improve collaboration and coordination
17 of reentry programs and services, including cross-training,
18 management information systems that are accessible to partner
19 agencies, screening procedures to assess and refer efficiently
20 across federal, state and local boundaries, and policies and
21 procedures that measure offender reentry management with well-
22 defined performance-based outcomes;

23 5. Seek partnerships with faith-based and community groups to
24 provide programs and services;

6. Identify effective evidence-based practices in reentry support, treatment and intervention programs;

7. Encourage expansion of family-based treatment centers that offer family-based comprehensive treatment services for parents and their children as a complete family unit;

8. Develop and establish a parenting skills program to be implemented by the Department of Corrections for inmates who are within one (1) year of being released from incarceration. The parenting skills program shall provide education and training to develop and enhance inmate parenting skills with an emphasis on providing techniques to teach the inmate how to raise a healthier child who will be less at risk of engaging in future criminal activities;

9. Establish collaboration among corrections and community corrections, technical schools, community colleges, and the workforce development and employment service sectors to:

- a. promote, where appropriate, the employment of people released from prison and jail, through federal efforts such as educating employers about existing financial incentives and facilitate the creation of job opportunities, including transitional jobs, for this population that will benefit communities,

b. connect inmates to employment, including supportive employment and employment services, before their release to the community, and

c. address barriers to employment;

10. Include victims in the reentry process and facilitate victim-offender dialogue when the victim is willing; and

11. Communicate regularly with local agencies and faith-based and community groups.

D. There is hereby created in the State Treasury a revolving fund for the Office of Faith-Based Initiatives to be designated the "Reintegration of Inmates Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of monies received from appropriated funds to be used for grants to volunteer organizations including, but not limited to, faith-based organizations which provide health, educational or vocational training and programs that assist the reintegration efforts of the Reentry Policy Council. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Office of Faith-Based Initiatives. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

1 E. There is hereby created in the State Treasury a revolving
2 fund for the Department of Corrections to be designated the
3 "Transformational Justice Revolving Fund". The fund shall be a
4 continuing fund, not subject to fiscal year limitations, and shall
5 consist of monies received from appropriated funds to be used for
6 bonuses to corrections officials who demonstrate improvement in
7 recidivism rates of inmates that were previously under the custody
8 of the Department of Corrections. All monies accruing to the credit
9 of the fund are hereby appropriated and may be budgeted and expended
10 by the Department of Corrections. Expenditures from the fund shall
11 be made upon warrants issued by the State Treasurer against claims
12 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
13 of the Office of Management and Enterprise Services for approval and
14 payment.

15 F. The Department of Corrections shall develop rules and
16 policies which ensure that recidivism rates are included in the
17 performance reviews, promotions and compensation adjustments of
18 correctional officers.

19
20 SECTION 303. AMENDATORY 57 O.S. 2021, Section 537.1, is
21 amended to read as follows:

22 Section 537.1. A. There is hereby created in the State
23 Treasury a revolving fund for the Department of Corrections to be
24 designated the "Department of Corrections Inmate and Employee

Welfare and Canteen System Support Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all profits generated from the canteen system, any inmate telephone system and any inmate electronic mail system. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Department of Corrections and the Canteen System Board of Directors for the benefit of inmates of the various institutions and personnel of the Department and to support canteen system operations according to written Department policy, welfare budget limitations, and upon approval of the Canteen System Board. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment. All expenditures from this fund shall comply with the applicable provisions of The Oklahoma Central Purchasing Act, unless specifically exempted by subsection E of Section 537 of this title.

B. All cash balances credited to the various Department canteen fund accounts that were previously budgeted and approved for inmate and staff welfare expenditures prior to November 1, 2008, but are not encumbered or expended as of June 30, 2008, shall be transferred to the Department of Corrections Inmate and Employee Welfare and Canteen System Support Revolving Fund upon implementation of the Department of Corrections consolidated canteen, trust and

1 restitution accounting system. Effective November 1, 2008, profits
2 generated from the canteen system, any inmate telephone systems, and
3 any inmate electronic mail systems shall be identified and deposited
4 in the Department of Corrections Inmate and Employee Welfare and
5 Canteen System Support Revolving Fund.

6 SECTION 304. AMENDATORY 57 O.S. 2021, Section 541, is
7 amended to read as follows:

8 Section 541. A. There is hereby created in the State Treasury
9 an Industries Revolving Fund for the Department of Corrections.

10 B. The revolving fund shall consist of earnings derived from
11 prison industries operated by the Department of Corrections and from
12 that portion of the prisoner's income apportioned and paid into the
13 prison system to recover the cost of incarceration of the prisoners
14 as provided by law. Funds derived from prisoner wages shall be
15 maintained and accounted for separately in this fund. The
16 Industries Revolving Fund shall be a continuing fund, not subject to
17 fiscal year limitations, and shall be under the control and
18 management of the State Board of Corrections.

19 C. Expenditures from the Industries Revolving Fund shall be
20 budgeted and expended pursuant to the laws of the state and the
21 statutes relating to public finance and to the institution. The
22 fund may be used to purchase, maintain and repair machinery, to
23 purchase materials and supplies for the prison industries and to
24 defray any other expenses necessary to operation of the industries,

1 with first priority being given to repairs, replacement and
2 modernization of industrial or agricultural machinery or equipment.
3 These funds may also be used to support the overall operation of the
4 Department of Corrections subject to approval of the Director of the
5 Department of Corrections. Expenditures from the fund derived from
6 prisoner's income may be used for the maintenance of prisoners in
7 prison institutions and all expenses related thereto under such
8 rules as may be established by the State Board of Corrections.
9 Warrants for expenditures from the Industries Revolving Fund shall
10 be based on claims signed by an authorized employee or employees of
11 the Department, and approved for payment by the ~~Director~~ Chief
12 Operating Officer of the Office of Management and Enterprise
13 Services. The Department shall maintain a separate accounting of
14 receipts and expenditures for each industry for periodic review by
15 the Legislature. The fund may not be used to employ personnel in
16 excess of those authorized by legislative action.

17 D. All funds in the Department of Corrections' Industries
18 Revolving Funds not encumbered or obligated upon the operative date
19 of this section shall be transferred to a single Industries
20 Revolving Fund of the Department of Corrections.

21 E. The Administrator of Industrial Production will determine
22 the prices of all goods produced through the state prison
23 industries, and the Administrator of Agri-Services will determine
24

1 the prices of all goods produced by Agri-Service units. These
2 prices will be filed with the Budget Office.

3 When industrial or agricultural items or products are furnished
4 to the institutions of the Department, or sold to other governmental
5 agencies, payment therefor shall be made within thirty (30) days for
6 deposit in the revolving account to be used in purchasing expendable
7 items, raw materials or other items needed to produce additional
8 such products or items, and for such other purposes as are
9 authorized by law. The Administrator of Industrial Production or
10 Administrator of Agri-Services may establish higher prices for sale
11 of products to governmental agencies, according to the current
12 market value of each product.

13 F. The Department of Corrections is authorized to pay inmates
14 for productive work in accordance with policies set by the State
15 Board of Corrections. The State Board of Corrections shall certify
16 the positions to be paid and the rate of pay in accordance with the
17 responsibilities and skills required for the position. The
18 Department of Corrections shall develop policies for payment of
19 inmates in the Industries Program that promote productivity as well
20 as compensate for responsibilities and skills. The Department shall
21 file such policy statements with the Chairs of the appropriate
22 committees of both the Senate and the House of Representatives as
23 designated by the President Pro Tempore of the Senate and the
24 Speaker of the House of Representatives. Any change in this policy

1 by the State Board of Corrections may be voided by legislative
2 action to rescind such policy.

3 SECTION 305. AMENDATORY 57 O.S. 2021, Section 557, is
4 amended to read as follows:

5 Section 557. A. There is hereby created in the State Treasury
6 a revolving fund for the Department of Corrections to be known as
7 the Department of Corrections Revolving Fund. This revolving fund
8 shall consist of monies received by each institution of the
9 Department as reimbursements for noninmate individual food
10 consumption; reimbursements from other state agencies and entities
11 of government; receipts from sale of excess by-products, excess
12 property, and salvage items; receipts from other ancillary services
13 of the institution, not otherwise provided by law; receipts from the
14 fees provided for in Sections 982 and 991d of Title 22 of the
15 Oklahoma Statutes; monitoring fees for electronically monitored home
16 detention; receipts from the fees provided for in Section 153 of
17 Title 28 of the Oklahoma Statutes for convictions for driving under
18 the influence of alcohol or other intoxicating substance; monies
19 received for providing primary health care and outpatient services
20 to prisoners in county jails; receipts by the Department for
21 institutional care from wages earned by inmates while participating
22 in the work release program; funds for prison rodeos and other
23 special events; and any other receipts accruing to the credit of the
24 Department of Corrections which are not directed by law to be

1 deposited in another fund. Expenditures from said fund shall be for
2 the general operating expenses of the Department of Corrections.

3 B. The Department of Corrections Revolving Fund shall also
4 consist of those monies that are transferred to it by the Department
5 of Corrections from the Industries Revolving Fund of the Department
6 of Corrections for purposes as provided for in Section 541 of this
7 title and expenditures shall be in accordance therewith. On July 1,
8 1983, any cash remaining in the Department of Corrections Industries
9 Subsidiary Revolving Fund in excess of allotment balances or
10 encumbrances for the fiscal year ending June 30, 1983, shall be
11 transferred to the Department of Corrections Revolving Fund and on
12 November 15, 1983, all cash remaining in the Department of
13 Corrections Industries Subsidiary Revolving Fund shall be
14 transferred to the Department of Corrections Revolving Fund.

15 C. The fund created by subsection A of this section shall be a
16 continuing fund, under the control of the administrative authority
17 of the Department of Corrections, and not subject to fiscal year
18 limitations. Expenditures shall be made pursuant to the laws of the
19 state and the statutes relating to the Department of Corrections and
20 its institutions, and without legislative appropriation. Warrants
21 for expenditures from said revolving fund shall be based on claims
22 signed by an authorized employee or employees of the Department of
23 Corrections and approved for payment by the ~~Director~~ Chief Operating
24 Officer of the Office of Management and Enterprise Services.

SECTION 306. AMENDATORY 57 O.S. 2021, Section 557.2, is amended to read as follows:

Section 557.2. There is hereby created in the State Treasury a revolving fund for the Community Sentencing Division within the Department of Corrections to be designated the "Oklahoma Community Sentencing Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all funds appropriated to it by the Legislature, grants, gifts, bequests and any other lawful money received for the benefit of the statewide community sentencing system. All funds received shall be deposited to the fund. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Division for state funding to approved community sentencing systems established pursuant to the provisions of the Oklahoma Community Sentencing Act. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 307. AMENDATORY 57 O.S. 2021, Section 561, is amended to read as follows:

Section 561. A. The Department of Corrections is hereby authorized to provide for incarceration, supervision, and residential treatment at facilities other than those operated by the

1 Department of Corrections. Services offered for persons under the
2 custody or supervision of the Department are to include, but not be
3 limited to, housing, alcoholism or drug treatment, mental health
4 services, nursing home care, or halfway house placement. Such
5 services must meet standards prescribed and established by the State
6 Board of Corrections for implementing such a program, including but
7 not limited to standards concerning internal and perimeter security,
8 discipline of inmates, educational and vocational training programs,
9 employment of inmates, and proper food, clothing, housing, and
10 medical care. Such services must be contracted for in accordance
11 with Section 85.7 of Title 74 of the Oklahoma Statutes. Such
12 services, if provided by private prison contractors, shall be
13 contracted for as required by this section.

14 B. The Department of Corrections is authorized to lease
15 existing facilities or portions thereof from private prison
16 contractors, counties or other governmental entities and operate
17 such facilities or portions thereof in the same manner as other
18 state owned and operated prison facilities. All lease agreements
19 entered into pursuant to this section shall be negotiated between
20 the Department and the lessor. The Office of Management and
21 Enterprise Services shall assist in the negotiations if requested by
22 the Department of Corrections.

23 C. Subject to the requirements of this section and Section
24 561.1 of this title, the Department of Corrections is hereby

1 authorized to provide for the construction or operation or both
2 construction and operation of correctional institutions of the
3 Department of Corrections by private prison contractors. Such
4 operation shall meet standards prescribed by the State Board of
5 Corrections, including but not limited to, standards concerning
6 internal and perimeter security, discipline of inmates, educational
7 and vocational training programs, and proper food, clothing,
8 housing, transportation, and medical care. Such services shall be
9 contracted for in accordance with the provisions of Section 561.1 of
10 this title and the provisions of this section.

11 D. A comprehensive file for all private prison contractors
12 interested in and capable of operating an institution within the
13 Department of Corrections or providing for the housing, care, and
14 control of inmates in a facility owned and operated by the
15 contractor shall be maintained by the Department. These files shall
16 include:

- 17 1. A completed application form;
- 18 2. A resume of the contractor's staff and capability;
- 19 3. A completed performance evaluation form for past projects on
20 which the contractor has provided private prison services;
- 21 4. A list of past contracts with this state;
- 22 5. A list of contracts to provide similar services to other
23 states or to the United States; and
- 24 6. The mailing address of each private prison contractor.

1 Any person or firm wishing to be a private prison contractor may
2 request at any time to be included in the comprehensive file, and
3 shall be provided necessary forms within twenty (20) days of the
4 request and the Department shall add such contractor to the list
5 within twenty (20) days of receipt of a properly completed
6 application.

7 The Department may solicit evaluation of work done by private
8 prison contractors from members of the private sector, which
9 evaluation shall be part of the comprehensive file.

10 E. If the Department intends to secure the services of a
11 private prison contractor, all persons and firms included in the
12 file shall be notified through the mail of such intent. Such
13 notification shall contain the following information:

- 14 1. Description and scope of the project or projects;
- 15 2. Estimated time schedule for project;
- 16 3. Last date for submitting notice of interest in performing
17 services to the Director; and
- 18 4. Other pertinent data.

19 Private prison contractors desiring consideration shall meet the
20 requirements of this section and to be considered shall submit a
21 letter expressing interest in the project to the Department within
22 thirty (30) days of the postmark date of the letter of notification
23 mailed by the Department. Contractors shall file an updated
24 application form at the request of the Department.

1 F. The Department shall define the scope of a proposed project,
2 determine the various project components, phases and timetables, and
3 prepare detailed project descriptions to guide prospective
4 contractors. Before the Department awards a contract to a private
5 prison contractor, the plans shall be approved by the State Board of
6 Corrections.

7 G. The Department shall review the files of the private prison
8 contractors desiring consideration for the project. After
9 performing the analysis required by Section 561.1 of this title, the
10 Department shall select no less than three and no more than five
11 contractors for more detailed consideration. In the event
12 interviews for more than one contract are being considered at the
13 same time, the number of contractors selected for more detailed
14 consideration should be at least twice the number of contracts
15 contemplated. This initial screening should consider the
16 requirements of the project, as well as the following factors to be
17 determined from the comprehensive file, and replies to inquiries to
18 former clients:

19 1. Specialized experience in the type of work contemplated;

20 2. Capacity of the contractor to accomplish the work in the
21 required time; and

22 3. Past performance, from the performance evaluation form.

23 H. A full report of the evaluation procedures and
24 recommendations of the Department shall be prepared by the

1 Department and submitted to the State Board of Corrections for the
2 independent review of the entire process.

3 I. 1. The Department shall select the contractor whose
4 qualifications and project proposal most substantially meet the
5 criteria of the project description.

6 2. The Department shall execute the contract with the selected
7 contractor, which contract shall include a fair and reasonable fee.

8 3. The negotiated scope and fee shall be reported to the Board
9 for the approval of the award of the contract.

10 J. The Office of Management and Enterprise Services shall
11 render assistance to the Department of Corrections in implementing
12 the contracting procedures provided for in this section. The Office
13 of Management and Enterprise Services may have a representative at
14 any meeting involving negotiations of a contract between the
15 Department and a private prison contractor. Before submission of
16 the proposed contract to the Council on Bond Oversight, and prior to
17 the date as of which the proposed contract is executed by the State
18 Board of Corrections, the Attorney General and the ~~Director~~ Chief
19 Operating Officer of the Office of Management and Enterprise
20 Services shall review the proposed final version of the contract.
21 The Attorney General and the ~~Director~~ Chief Operating Officer of the
22 Office of Management and Enterprise Services shall have a period of
23 fifteen (15) days from receipt of the proposed final version of the
24 contract to approve the contract and execute the document. If

1 either the Attorney General or the ~~Director~~ Chief Operating Officer
2 of the Office of Management and Enterprise Services has objections
3 to the proposed contract, the objections shall be communicated in
4 writing to the Department of Corrections. The Department of
5 Corrections shall take appropriate action regarding the objections
6 and shall resubmit the proposed contract for additional review. The
7 Attorney General and the Office of Management and Enterprise
8 Services shall have an additional fifteen-day period to approve the
9 proposed contract and to execute the document. Failure of the
10 Attorney General or the ~~Director~~ Chief Operating Officer of the
11 Office of Management and Enterprise Services, respectively, to act
12 within the fifteen-day period shall constitute approval of the
13 respective official to the proposed final version of the contract.
14 The contract shall contain a separate signature block or line for
15 signature by the Attorney General and the Office of Management and
16 Enterprise Services. The contract shall contain a statement to be
17 executed by the Attorney General and the ~~Director~~ Chief Operating
18 Officer of the Office of Management and Enterprise Services that
19 each one of them, respectively, has reviewed the proposed contract
20 for compliance with the provisions of this section and Section 561.1
21 of this title, and all other applicable provisions of law and that
22 the contract conforms with those requirements. Neither the private
23 prison contractor nor the State Board of Corrections shall execute
24 the contract until the document has been executed by the Attorney

1 General and the ~~Director~~ Chief Operating Officer of the Office of
2 Management and Enterprise Services as required by this subsection
3 unless the approval of the respective official has been made as a
4 result of failure to take action within the fifteen-day period
5 prescribed by this subsection.

6 K. The ~~Director~~ Chief Operating Officer of the Office of
7 Management and Enterprise Services is authorized to lease real
8 property and improvements thereon to a private prison contractor in
9 conjunction with a contract for private management of a state
10 correctional institution located or to be built on the property.
11 Said lease may be entered into for one (1) year periods, renewable
12 at the sole option of the State of Oklahoma, but not to exceed a
13 cumulative period of fifty (50) years.

14 L. Contracts awarded to private prison contractors pursuant to
15 the provisions of this section shall be entered into for a period
16 specified in each contract, subject to availability of funds
17 annually appropriated by the Legislature for that purpose. No
18 contract awarded pursuant to this section shall provide for the
19 encumbrance of funds beyond the amount available for a fiscal year.

20 M. No contract authorized by the provisions of this section
21 shall be awarded until the private prison contractor demonstrates to
22 the satisfaction of the State Board of Corrections:

23 1. That the contractor possesses the necessary qualifications
24 and experience to provide the services specified in the contract;

2. That the contractor can provide the necessary qualified personnel to implement the terms of the contract;

3. That the financial condition of the contractor is such that the terms of the contract can be fulfilled;

4. That the contractor has the ability to comply with applicable court orders and corrections standards; and

5. That, in the case of a contractor who will be providing the services in a nondepartmental facility operated by said contractor, the contractor shall be able to meet accreditation standards and receive accreditation, as required by the terms of the contract pursuant to subsection C of Section 561.1 of this title.

N. No contract authorized by the provisions of this section shall be awarded until the private prison contractor demonstrates to the satisfaction of the Board that the contractor can obtain insurance or provide self-insurance to:

1. Indemnify the state against possible lawsuits arising from the operation of prison facilities by the contractor; and

2. Compensate the state for any property damage or expenses incurred due to the operation of prison facilities.

O. A private prison contractor shall not be bound by state laws or other legislative enactments governing the appointment, qualifications, duties, salaries, or benefits of wardens, superintendents, or other correctional employees, except that any personnel authorized to carry and use firearms shall comply with the

1 certification standards required by the provisions of Section 3311
2 of Title 70 of the Oklahoma Statutes and be authorized to use
3 firearms only to prevent a felony, to prevent escape from custody,
4 or to prevent an act which would cause death or serious bodily
5 injury to the personnel or to another person.

6 P. Any offense which would be a crime if committed within a
7 state correctional institution also shall be a crime if committed in
8 an institution or facility operated by a private prison contractor.

9 Q. The Director or his designee shall monitor the performance
10 of the contractor.

11 SECTION 308. AMENDATORY 57 O.S. 2021, Section 561.1, is
12 amended to read as follows:

13 Section 561.1. A. Except as otherwise provided by subsection K
14 of this section, prior to entering into a contract with any private
15 prison contractor for construction or operation, or both, of a
16 correctional facility, the Department of Corrections shall establish
17 a process for requesting proposals or negotiated contracts from such
18 contractors. The Department of Corrections shall develop criteria
19 for the process by which a contractor for the construction or
20 operation, or both, of a private prison is to be awarded a contract.
21 The criteria shall be subject to approval by the State Board of
22 Corrections. The criteria for selection of a site for a proposed
23 facility to be constructed or operated, or both, by a private
24 contractor shall include, but shall not be limited to, the

1 availability of medical services, support services, transportation
2 services and the availability of potential employees who would be
3 qualified to perform required functions at a state correctional
4 facility.

5 B. Any contract between the Department of Corrections and a
6 private prison contractor, whereby the contractor provides for the
7 housing, care, and control of inmates in a nondepartmental facility
8 operated by the contractor, shall contain, in addition to other
9 provisions, terms and conditions:

10 1. Requiring the contractor to provide said services in a
11 facility which meets accreditation standards established by the
12 American Correctional Association;

13 2. Requiring the contractor to receive accreditation for said
14 facility from the American Correctional Association, within three
15 (3) years of commencement of operations of the facility;

16 3. Requiring the contractor to obtain written authorization
17 from the governing board of any municipality in which the facility
18 is to be located, or if the facility is not to be located within a
19 municipality, written authorization from the board of county
20 commissioners of the county in which the facility is to be located;
21 and

22 4. Granting the Department the option at the beginning of each
23 fiscal year pursuant to an agreement, to purchase any such facility,
24 with or without inventory or other personal property, at a

predetermined price, which shall be negotiated and included in a schedule or a formula to be contained in the original agreement. Such agreements relating to a correctional facility, the construction of which was financed or is to be financed by obligations issued from a local governmental entity the repayment of which is to be made in whole or in part from rentals from the State of Oklahoma or the Department of Corrections, shall be submitted to the Council on Bond Oversight as provided in subsection I of this section.

C. A contractor proposing to enter a contract with the Department of Corrections for construction or operation, or both, of a correctional facility pursuant to this section must demonstrate:

1. The qualifications and the operations and management experience to carry out the terms of the contract; and
2. The ability to comply with the standards of the American Correctional Association and with specific court orders.

D. In addition to meeting the requirements specified in the requests for proposals, a proposal for the construction and operation of a correctional facility must:

1. Provide for regular, on-site monitoring by the Department of Corrections;
2. Acknowledge that payment by the state is subject to the availability of appropriations;
3. Provide for payment of a maximum amount per fiscal year;

1 4. Demonstrate a cost benefit to the State of Oklahoma when
2 compared to the level and quality of programs provided by state-
3 operated facilities that have similar types of inmates at an
4 operational cost not more than the cost of housing inmates in
5 similar facilities and providing similar programs to those types of
6 inmates in state-operated facilities. The Department of Corrections
7 shall be responsible for determining the cost/benefit of the
8 proposal;

9 5. Permit the state to terminate the contract for cause;

10 6. Contain a proposed per diem operational cost per inmate for
11 the initial year and subsequent years of operations;

12 7. Subject to appropriations, provide that cost adjustments may
13 be made only once each fiscal year, to take effect at the beginning
14 of the next fiscal year using as the maximum percentage increase, if
15 any, an increase not to exceed the previous year's Consumer Price
16 Index for All Urban Consumers (CPI-U) as prepared by the United
17 States Bureau of Labor Statistics, except as otherwise provided by
18 subsection K of this section;

19 8. Have an initial contract term of not more than one (1) year,
20 with an option to renew for additional periods not to exceed twenty
21 (20) years;

22 9. If the proposal includes construction of a facility, contain
23 a performance bond approved by the Department that is adequate and
24 appropriate for the proposed contract;

1 10. Provide for assumption of liability by the private vendor
2 for all claims arising from the services performed under the
3 contract by the private vendor;

4 11. Provide for an adequate plan of insurance for the private
5 vendor and its officers, employees, and agents against all claims,
6 including claims based on violations of civil rights arising from
7 the services performed under the contract by the private vendor;

8 12. Provide for an adequate plan of insurance to protect the
9 state against all claims arising from the services performed under
10 the contract by the private vendor and to protect the state from
11 actions by a third party against the private vendor, its officers,
12 employees, and agents as a result of the contract;

13 13. Provide plans for the purchase and assumption of operations
14 by the state in the event of the bankruptcy of the private vendor;
15 and

16 14. Contain comprehensive standards for conditions of
17 confinement.

18 E. At the beginning of each fiscal year, the Department of
19 Corrections shall determine the budgeted average daily cost per
20 inmate. The budgeted average daily cost per inmate shall include
21 all direct and indirect costs incurred by the Department. There
22 shall be a separate computation of budgeted average daily cost for
23 maximum security, medium security, minimum security, and community
24 facilities. This information shall be presented to the State Board

of Corrections for informational purposes only. After the close of each fiscal year, the Department shall determine the actual average daily cost per inmate for the operational costs at each major category of correctional facility. The actual average daily cost per inmate shall include all direct and indirect costs incurred by the Department. There shall be a separate computation of the average daily rate for maximum security, medium security, minimum security, and community facilities. The Department shall present to the State Board of Corrections at its January meeting comparative data on budgeted daily cost versus actual daily cost, and, after appropriate review and analysis, the Board shall adopt as a final action of the Board an average daily cost per inmate by facility category for the immediately preceding fiscal year.

F. If a request for proposal process is utilized and no proposals conform to the established criteria, the Department shall prepare an additional request for proposals. The Department of Corrections shall evaluate the proposals within thirty (30) days of receipt from the prospective contractor. The Department of Corrections shall specifically determine whether a proposal meets the requirements of paragraph 4 of subsection D of this section by comparing the daily rate for housing and care of inmates pursuant to any proposed contract with a private contractor to the daily rate for housing and care of inmates at the comparable type of facility operated by the Department of Corrections using the information

provided pursuant to paragraph 6 of subsection D of this section.

The Department shall evaluate proposals taking into account any direct or indirect costs that would continue to be paid by the Department of Corrections including, but not limited to, transportation, records management, discipline, general administration, management of inmate trust funds, and major medical coverage. Such costs shall be added to the proposed per diem of the private vendor when comparing the total per diem costs of the state operating facilities.

G. If the Department of Corrections proposes to enter into a contract for the construction or the operation, or both, of a private prison, the Department shall compare both the capital costs and the operating costs for the facility to the imputed capital costs and the projected operating costs of a comparable facility constructed and operated by the Department of Corrections.

H. The Department of Corrections shall deliver to the State Board of Corrections the top three qualified prospective private prison contractors identified pursuant to this section and pursuant to Section 561 of this title together with the information reviewed and analyzed by the Department of Corrections during analysis of the proposals as required by this section. The Board of Corrections shall evaluate the information provided and shall make a final decision selecting the contractor within fifteen (15) days of receipt of the information.

1 I. Any contract subject to the provisions of this section
2 entered into by the Board of Corrections shall be subject to the
3 approval of the Council on Bond Oversight in the same manner as
4 provided by law for the review of issuance of obligations by State
5 Governmental Entities as prescribed by Section 695.8 of Title 62 of
6 the Oklahoma Statutes.

7 J. Before submission of the proposed contract to the Council on
8 Bond Oversight, and prior to the date as of which the proposed
9 contract is executed by the Board of Corrections, the Attorney
10 General and the ~~Director~~ Chief Operating Officer of the Office of
11 Management and Enterprise Services shall review the proposed final
12 version of the contract. The Attorney General and the ~~Director~~
13 Chief Operating Officer of the Office of Management and Enterprise
14 Services shall have a period of fifteen (15) days from receipt of
15 the proposed final version of the contract to approve the contract
16 and execute the document. If either the Attorney General or the
17 ~~Director~~ Chief Operating Officer of the Office of Management and
18 Enterprise Services has objections to the proposed contract, the
19 objections shall be communicated in writing to the Department of
20 Corrections. The Department of Corrections shall take appropriate
21 action regarding the objections and shall resubmit the proposed
22 contract for additional review. The Attorney General and the Office
23 of Management and Enterprise Services shall have an additional
24 fifteen-day period to approve the proposed contract and to execute

1 the document. Failure of the Attorney General or the ~~Director~~ Chief
2 Operating Officer of the Office of Management and Enterprise
3 Services, respectively, to act within the fifteen-day period shall
4 constitute approval of the respective official to the proposed final
5 version of the contract. The contract shall contain a separate
6 signature block or line for signature by the Attorney General and
7 the Office of Management and Enterprise Services. The contract
8 shall contain a statement to be executed by the Attorney General and
9 the ~~Director~~ Chief Operating Officer of the Office of Management and
10 Enterprise Services that each one of them, respectively, has
11 reviewed the proposed contract for compliance with the provisions of
12 this section and Section 561 of this title, and all other applicable
13 provisions of law and that the contract conforms with those
14 requirements. Neither the private prison contractor nor the State
15 Board of Corrections shall execute the contract until the document
16 has been executed by the Attorney General and the ~~Director~~ Chief
17 Operating Officer of the Office of Management and Enterprise
18 Services as required by this subsection unless the approval of the
19 respective official has been made as a result of failure to take
20 action within the fifteen-day period prescribed by this subsection.

21 K. The State Board of Corrections may renew a private prison
22 contract which is in effect for any time period during the fiscal
23 year ending June 30, 2009, if the Board determines that the renewal
24 of such contract will result in a reduced per diem in the fiscal

1 year ending June 30, 2010. If the State Board of Corrections makes
2 such determination, the contract shall not be subject to the
3 restrictions of paragraph 7 of subsection D of this section and the
4 Board shall negotiate the contract based upon such terms as the
5 Board deems to be in the best interest of operational efficiency,
6 including the inmate population, per inmate cost, public safety and
7 such other terms as the State Board of Corrections determines to be
8 relevant to such contract. The State Board of Corrections shall
9 have the authority to negotiate the term of any contract executed
10 pursuant to the provisions of this subsection subject to the
11 availability of appropriations to the Department of Corrections each
12 year.

13 SECTION 309. AMENDATORY 57 O.S. 2021, Section 561.4, is
14 amended to read as follows:

15 Section 561.4. There is hereby created in the State Treasury a
16 revolving fund for the Department of Corrections to be designated
17 the "Private Prison and Halfway House Capacity Development Revolving
18 Fund". The fund shall be a continuing fund, not subject to fiscal
19 year limitations, and shall consist of all monies received by the
20 Department of Corrections from such sources as may be provided by
21 law. All monies accruing to the credit of said fund are hereby
22 appropriated and may be budgeted and expended by the Department of
23 Corrections for the purpose of making payments required pursuant to
24 contracts with entities owning and operating private prisons

1 according to the requirements of Section 561.5 of this title.
2 Expenditures from said fund shall be made upon warrants issued by
3 the State Treasurer against claims filed as prescribed by law with
4 the ~~Director~~ Chief Operating Officer of the Office of Management and
5 Enterprise Services for approval and payment.

6 SECTION 310. AMENDATORY 59 O.S. 2021, Section 154, is
7 amended to read as follows:

8 Section 154. There is hereby created in the State Treasury a
9 revolving fund for the Board of Podiatric Medical Examiners, to be
10 designated as the "Board of Podiatric Medical Examiners' Revolving
11 Fund". The fund shall be a continuing fund, not subject to fiscal
12 year limitations, and shall consist of all monies received by the
13 Board pursuant to the provisions of the Podiatric Medicine Practice
14 Act. All monies accruing to the credit of said fund are hereby
15 appropriated and may be budgeted and expended by the Board for the
16 purpose of implementing and enforcing the provisions of the
17 Podiatric Medicine Practice Act. Expenditures from said fund shall
18 be made upon warrants issued by the State Treasurer against claims
19 signed by the secretary-treasurer of the Board or by an authorized
20 employee or employees of the Board and filed as prescribed by law
21 with the ~~Director~~ Chief Operating Officer of the Office of
22 Management and Enterprise Services for approval and payment.

23 SECTION 311. AMENDATORY 59 O.S. 2021, Section 161.20, is
24 amended to read as follows:

1 Section 161.20. There is hereby created in the State Treasury a
2 revolving fund for the Board of Chiropractic Examiners, to be
3 designated as the "Board of Chiropractic Examiners' Revolving Fund".
4 The fund shall be a continuing fund, not subject to fiscal year
5 limitations, and shall consist of all monies received by the Board
6 pursuant to the provisions of the Oklahoma Chiropractic Practice
7 Act. All monies accruing to the credit of said fund are hereby
8 appropriated and may be budgeted and expended by the Board for the
9 purpose of implementing and enforcing the provisions of the Oklahoma
10 Chiropractic Practice Act. Expenditures from said fund shall be
11 made upon warrants issued by the State Treasurer against claims
12 signed by the secretary-treasurer of the Board or by an authorized
13 employee or employees of the Board and filed as prescribed by law
14 with the ~~Director~~ Chief Operating Officer of the Office of
15 Management and Enterprise Services for approval and payment.

16 SECTION 312. AMENDATORY 59 O.S. 2021, Section 199.15, is
17 amended to read as follows:

18 Section 199.15. A. There is hereby created in the State
19 Treasury for the State Board of Cosmetology and Barbering a
20 revolving fund to be designated the State Cosmetology and Barbering
21 Fund. The fund shall be a continuing fund not subject to fiscal
22 year limitations and shall consist of all fees and penalties
23 collected pursuant to the Oklahoma Cosmetology and Barbering Act or
24 rules promulgated thereto and any other funds obtained or received

1 by the State Board of Cosmetology and Barbering pursuant to the
2 Oklahoma Cosmetology and Barbering Act. All monies accruing to the
3 credit of said fund are hereby appropriated and may be budgeted and
4 shall be expended by the Board for the purposes of implementing,
5 administering and enforcing the Oklahoma Cosmetology and Barbering
6 Act. Expenditures from the fund shall be made upon warrants issued
7 by the State Treasurer against claims filed as prescribed by law
8 with the ~~Director~~ Chief Operating Officer of the Office of
9 Management and Enterprise Services for approval and payment.

10 B. At the close of each fiscal year the Board shall pay into
11 the General Revenue Fund of the state ten percent (10%) of the gross
12 fees and penalties so charged, collected and received by the Board.
13 Other than the ten percent (10%) all fees and penalties charged and
14 monies collected and received, are hereby dedicated, appropriated
15 and pledged to the accomplishment and fulfillment of the purposes of
16 the Oklahoma Cosmetology and Barbering Act.

17 C. All expenses, per diem, salaries, wages, travel, rents,
18 printing, supplies, maintenance, and other costs incurred by the
19 Board in the performance of its duty and in accomplishment and
20 fulfillment of the purposes of the Oklahoma Cosmetology and
21 Barbering Act shall be a proper charge against and paid from the
22 State Cosmetology and Barbering Fund. In no event shall any claim
23 or obligation accrue against the State of Oklahoma nor against the
24 Cosmetology and Barbering Fund in excess of the ninety percent (90%)

1 or the amount of fees and penalties collected and paid into the
2 State Treasury pursuant to the provisions of the Oklahoma
3 Cosmetology and Barbering Act.

4 SECTION 313. AMENDATORY 59 O.S. 2021, Section 328.42, is
5 amended to read as follows:

6 Section 328.42. There is hereby created in the State Treasury a
7 revolving fund for the Board of Dentistry to be designated as "The
8 State Dental Fund". The fund shall be a continuing fund, not
9 subject to fiscal year limitations, and shall consist of all monies
10 received by the Board pursuant to the provisions of the State Dental
11 Act. All monies accruing to the credit of this fund are hereby
12 appropriated and may be budgeted and expended by the Board for the
13 purpose of implementing and enforcing the provisions of the State
14 Dental Act. Expenditures from this fund shall be made upon warrants
15 issued by the State Treasurer against claims filed as prescribed by
16 law with the ~~Director~~ Chief Operating Officer of the Office of
17 Management and Enterprise Services for approval and payment.

18 SECTION 314. AMENDATORY 59 O.S. 2021, Section 396.1C, is
19 amended to read as follows:

20 Section 396.1C. The executive director of the Board shall keep
21 and preserve all records of the Board, issue all necessary notices
22 to the embalmers, funeral directors and apprentices of the state,
23 and perform such other duties as may be imposed upon the executive
24 director by the Board. The executive director is hereby authorized

1 and empowered to collect, in the name and on behalf of the Board,
2 the fees prescribed in the Funeral Services Licensing Act, and all
3 fees so collected shall at the end of each month be deposited by the
4 executive director with the State Treasurer. The State Treasurer
5 shall place ten percent (10%) of the money so received in the
6 general fund of the state, and the balance in a special fund to be
7 known as the "Fund of the Oklahoma Funeral Board". Payment from the
8 fund shall be upon warrants drawn by the State Treasurer against
9 claims submitted by the Board to the ~~Director~~ Chief Operating
10 Officer of the Office of Management and Enterprise Services for
11 approval and payment. All monies so received by the fund may be
12 used by the Board in carrying out the provisions of the Funeral
13 Services Licensing Act.

14 SECTION 315. AMENDATORY 59 O.S. 2021, Section 587, as
15 amended by Section 1, Chapter 331, O.S.L. 2025 (59 O.S. Supp. 2025,
16 Section 587), is amended to read as follows:

17 Section 587. The fee for such examinations shall be set by
18 rules promulgated by the Board of Examiners in Optometry, not to be
19 less than One Hundred Dollars (\$100.00) and not to exceed Two
20 Hundred Dollars (\$200.00), and a yearly license fee set by rules
21 promulgated by the Board of Examiners in Optometry, not to exceed
22 Five Hundred Dollars (\$500.00), shall be paid each fiscal year by
23 all persons holding a license to practice optometry in this state,
24 and shall be paid not later than the 30th day of June of each year.

1 In the event of default of payment of such license fee by any
2 person, his or her certificate shall be revoked by the Board who
3 shall take such action only after notifying the person in default by
4 registered mail and allowing that person fifteen (15) days in which
5 to comply with this requirement. The Board shall be paid travel
6 expenses as provided in the State Travel Reimbursement Act, Section
7 500.1 et seq. of Title 74 of the Oklahoma Statutes. The secretary-
8 treasurer shall receive compensation fixed by the Board, not to
9 exceed Two Hundred Dollars (\$200.00) per month. All fees and
10 charges collected by the secretary-treasurer of the Board shall be
11 paid on the first day of each month into a revolving fund in the
12 State Treasury to be designated as the "Optometry Board Revolving
13 Fund". This fund shall consist of all monies received by the Board
14 other than appropriated funds. The revolving fund shall be a
15 continuing fund not subject to fiscal year limitations and shall be
16 under the control and management of the Board. Expenditures from
17 this fund shall be made pursuant to the purposes of Sections 581
18 through 606 of this title and without legislative approval.
19 Warrants for expenditures shall be drawn by the State Treasurer
20 based on claims signed by an authorized employee or employees of the
21 Board and approved for payment by the ~~Director~~ Chief Operating
22 Officer of the Office of Management and Enterprise Services.

SECTION 316. AMENDATORY 59 O.S. 2021, Section 644, as amended by Section 23, Chapter 168, O.S.L. 2025 (59 O.S. Supp. 2025, Section 644), is amended to read as follows:

Section 644. There is hereby created in the State Treasury a revolving fund for the State Board of Osteopathic Examiners, to be designated the "State Board of Osteopathic Examiners Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Board pursuant to the provisions of the Oklahoma Osteopathic Medicine Act or the Oklahoma Abortion-Inducing Drug Certification Program Act. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Board for the purpose of enforcing the laws of this state which prohibit the unlawful practice of osteopathic medicine, for the dissemination of information to prevent the violation of such laws, for the purchase of supplies and such other expense as is necessary to properly implement the provisions of the Oklahoma Osteopathic Medicine Act or the Oklahoma Abortion-Inducing Drug Certification Program Act, and for any other purpose specified in Section 643 of this title. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims signed by an authorized employee or employees of the State Board of Osteopathic Examiners and filed as prescribed by law with the ~~Director~~ Chief Operating

1 Officer of the Office of Management and Enterprise Services for
2 approval and payment.

3 SECTION 317. AMENDATORY 59 O.S. 2021, Section 698.28, is
4 amended to read as follows:

5 Section 698.28. There is hereby created in the State Treasury a
6 revolving fund to be designated the "Veterinary Medical Examiners
7 Fund" which shall consist of all monies received by the State Board
8 of Veterinary Medical Examiners as provided by statute. The fund
9 shall be a continuing fund not subject to fiscal year limitations.
10 Monies accruing to the credit of the fund are hereby appropriated
11 and may be expended by the Board for carrying out the provisions of
12 the Oklahoma Veterinary Practice Act. Expenditures from the fund
13 shall be made upon warrants issued by the State Treasurer against
14 claims submitted by the Board to the ~~Director~~ Chief Operating
15 Officer of the Office of Management and Enterprise Services for
16 approval and payment.

17 SECTION 318. AMENDATORY 59 O.S. 2021, Section 858-205,
18 is amended to read as follows:

19 Section 858-205. A. There is hereby created in the State
20 Treasury a revolving fund for the Oklahoma Real Estate Commission,
21 to be designated the "Oklahoma Real Estate Commission Revolving
22 Fund". The fund shall consist of all monies received by the
23 Oklahoma Real Estate Commission other than the Oklahoma Real Estate
24 Education and Recovery Fund fees or appropriated funds. The

1 revolving fund shall be a continuing fund not subject to fiscal year
2 limitations and shall be under the control and management of the
3 Oklahoma Real Estate Commission.

4 B. The Oklahoma Real Estate Commission may invest all or part
5 of the monies of the fund in securities offered through the
6 "Oklahoma State Treasurer's Cash Management Program". Any interest
7 or dividends accruing from the securities and any monies generated
8 at the time of redemption of the securities shall be deposited in
9 the General Operating Fund of the Oklahoma Real Estate Commission.
10 All monies accruing to the credit of the fund are hereby
11 appropriated and may be budgeted and expended by the Oklahoma Real
12 Estate Commission.

13 C. Expenditures from this fund shall be made pursuant to the
14 purposes of this Code and without legislative appropriation.
15 Warrants for expenditures shall be drawn by the State Treasurer
16 based on claims signed by an authorized employee or employees of the
17 Oklahoma Real Estate Commission and approved for payment by the
18 ~~Director~~ Chief Operating Officer of the Office of Management and
19 Enterprise Services.

20 SECTION 319. AMENDATORY 59 O.S. 2021, Section 858-601,
21 is amended to read as follows:

22 Section 858-601. A. There is hereby created in the State
23 Treasury a revolving fund for the Oklahoma Real Estate Commission to
24 be designated "Oklahoma Real Estate Education and Recovery Fund".

The fund shall consist of monies received by the Oklahoma Real Estate Commission as fees assessed for the Oklahoma Real Estate Education and Recovery Fund under the provisions of this act. The revolving fund shall be a continuing fund not subject to fiscal year limitations and shall be under the administrative direction of the Oklahoma Real Estate Commission. The Oklahoma Real Estate Commission may invest all or part of the monies of the fund in securities offered through the "Oklahoma State Treasurer's Cash Management Program". Any interest or dividends accruing from the securities and any monies generated at the time of redemption of the securities shall be deposited in the Oklahoma Real Estate Education and Recovery Fund. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Oklahoma Real Estate Commission for the purposes specified in Section 858-605 of this title. Expenditures from said fund shall be made pursuant to the laws of this state and the statutes relating to the said Commission, and without legislative appropriation. Warrants for expenditures from said fund shall be drawn by the State Treasurer, based on claims signed by an authorized employee or employees of the said Commission and approved for payment by the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services.

B. Monies in the fund shall be used to reimburse any claimant who has been awarded a judgment, subject to subsection C of this

1 section, by a court of competent jurisdiction to have suffered
2 monetary damages by an Oklahoma real estate licensee in any
3 transaction for which a license is required under The Oklahoma Real
4 Estate License Code because of an act constituting a violation of
5 The Oklahoma Real Estate License Code.

6 C. In determining a claimant's eligibility to recover from the
7 fund, the Commission may conduct an independent review of the
8 merits, findings and damages involved in the underlying action and
9 may conduct an evidentiary hearing to determine if a claim is
10 eligible for recovery from the fund and the amount of damages
11 awarded are due an act constituting a violation of The Oklahoma Real
12 Estate License Code.

13 SECTION 320. AMENDATORY 59 O.S. 2021, Section 858-626,
14 is amended to read as follows:

15 Section 858-626. There is hereby created in the State Treasury
16 a revolving fund for the Construction Industries Board, to be
17 designated the "Home Inspection Licensing Act Revolving Fund". The
18 fund shall be a continuing fund, not subject to fiscal year
19 limitations, and shall consist of all monies received by the Board
20 pursuant to the Home Inspection Licensing Act. All monies accruing
21 to the credit of the fund are hereby appropriated and may be
22 budgeted and expended by the Board for the purpose of implementing
23 and enforcing the Home Inspection Licensing Act. Expenditures from
24 the fund shall be made upon warrants issued by the State Treasurer

1 against claims filed as prescribed by law with the ~~Director~~ Chief
2 Operating Officer of the Office of Management and Enterprise
3 Services for approval and payment.

4 SECTION 321. AMENDATORY 59 O.S. 2021, Section 858-730,
5 is amended to read as follows:

6 Section 858-730. There is hereby created the "Oklahoma
7 Certified Real Estate Appraisers Revolving Fund". The fund shall
8 consist of all monies, other than appropriated monies, received by
9 the Department from fees collected. The fund shall be a continuing
10 fund not subject to fiscal year limitations and shall be subject to
11 the administrative direction of the Department. Expenditures from
12 the fund shall be made upon warrants issued by the State Treasurer
13 against claims made to the ~~Director~~ Chief Operating Officer of the
14 Office of Management and Enterprise Services. Monies may be
15 expended for the operating expenses of the Department and the Board
16 and shall be made pursuant to the laws of this state.

17 SECTION 322. AMENDATORY 59 O.S. 2021, Section 1000.4a,
18 as last amended by Section 1, Chapter 48, O.S.L. 2025 (59 O.S. Supp.
19 2025, Section 1000.4a), is amended to read as follows:

20 Section 1000.4a. A. The Construction Industries Board shall
21 have the additional powers to:

22 1. Receive and convey information relating to the skilled
23 trades regulated by the Construction Industries Board including, but
24 not limited to, workforce development; and

1 2. Enter into contracts with the Oklahoma Department of Career
2 and Technology Education, any Oklahoma State Board of Career and
3 Technology Education fully accredited vocational or technical
4 school, or any accredited system of education institution in this
5 state receiving state appropriations and offering programs in
6 secondary or postsecondary instruction that provide electrical,
7 mechanical, plumbing or roofing trade coursework for any of the
8 following purposes, or combination thereof:

9 a. developing and implementing instructional courses on
10 Oklahoma Statutes and rules that govern the
11 electrical, mechanical, plumbing and roofing trades,
12 which courses can be in conjunction with instruction
13 in performing trade work or instruction on statewide-
14 adopted trade codes, or both, for the advancement of
15 the electrical, mechanical, plumbing and roofing
16 trades, or

17 b. developing and implementing a workforce development
18 program that will create interest in the pursuit of a
19 skilled trade career. The workforce development
20 program may consist of, but shall not be limited to,
21 use of the Internet, community and school
22 presentations, research and instruction on the
23 electrical, mechanical, plumbing and roofing trades,
24 and may be implemented through public awareness and

1 public information campaigns to promote skilled trades
2 and skilled trade careers as provided in this section.

3 B. All contracts pursuant to this section shall be approved by
4 the Construction Industries Board in accordance with the Oklahoma
5 Open Meeting Act. Costs of the contracts for education and
6 workforce development programs shall be paid from the Skilled Trade
7 Education and Workforce Development Fund created in subsection E of
8 this section and funded by administrative fines or penalties as
9 described in this section. Applications for proposals are to be
10 submitted to the Board on forms provided requiring sufficient
11 justification and information to evaluate costs, return on
12 investment, value, and viability of the proposal. Any contracts
13 will include the requirement that the recipient of the funds will,
14 upon the completion of the contract, provide a written report to the
15 Board providing an accounting of expenditures, describing an
16 explanation of the funds used for the services provided and the
17 success of outreach demonstrating a return on the investment
18 including, but not limited to, an accounting of accomplishments.

19 C. Fines or penalties collected by the Board and deposited in
20 the Oklahoma Mechanical Licensing Revolving Fund, the Electrical
21 Revolving Fund, the Plumbing Licensing Revolving Fund and the
22 Roofing Contractor Registration Revolving Fund may be transferred to
23 the Skilled Trade Education and Workforce Development Fund created
24 in subsection E of this section for the following purposes:

1 1. To develop instructional materials on Oklahoma laws,
2 statutes and rules, as they relate to the plumbing, mechanical,
3 electrical and roofing trades and state licensing standards;

4 2. To cover the cost of equipment, materials, personnel and any
5 other costs of developing and implementing the trade curriculum; and

6 3. To cover the cost of equipment, materials, personnel and any
7 other costs of developing and implementing the workforce development
8 program used to promote the plumbing, mechanical, electrical and
9 roofing trades as a career in Oklahoma.

10 D. The Skilled Trade Education and Workforce Development Fund
11 monies shall be used only for the advancement of trade-related
12 education and workforce development, and only if available based
13 upon statutory limitations.

14 E. 1. There is hereby created in the State Treasury a
15 revolving fund for the Construction Industries Board to be
16 designated the "Skilled Trade Education and Workforce Development
17 Fund". The fund shall be a continuing fund, not subject to fiscal
18 year limitations. The fund shall consist of an annual transfer of
19 fully adjudicated fine revenue received in the Oklahoma Mechanical
20 Licensing Revolving Fund, Electrical Revolving Fund, Plumbing
21 Licensing Revolving Fund or Roofing Contractor Registration
22 Revolving Fund as determined pursuant to this section. Funds may be
23 transferred only from the prior fiscal year.

2. If actual receipts, not including fine receipts, exceed actual expenses and outstanding encumbrances, then one hundred percent (100%) of all fully adjudicated fine revenue received shall be transferred from each specific trade revolving fund: the Oklahoma Mechanical Licensing Revolving Fund, Electrical Revolving Fund, Plumbing Licensing Revolving Fund or Roofing Contractor Registration Revolving Fund.

3. If at any time the receipts in the Oklahoma Mechanical Licensing Revolving Fund, Electrical Revolving Fund, Plumbing Licensing Revolving Fund or Roofing Contractor Registration Revolving Fund, not including fine receipts, are less than actual expenses and outstanding encumbrances, then the difference of fine receipts over actual expenses and outstanding encumbrances, if any, shall be transferred.

4. If at any time the annual receipts in the Oklahoma Mechanical Licensing Revolving Fund, Electrical Revolving Fund, Plumbing Licensing Revolving Fund or Roofing Contractor Registration Revolving Fund, including fine receipts, are less than the actual expenses and outstanding encumbrances, there shall be no transfer of funds for that period.

5. All monies accruing to the credit of the Skilled Trade Education and Workforce Development Fund may be budgeted and expended by the Construction Industries Board for workforce development as it relates to the skilled trades and to contract for

the services identified in this act. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

6. All unexpended or outstanding Skilled Trade Education and Workforce Development Funds from any written agreement where work or services have not been previously approved by specific quote or cost estimate and have not been performed within eighteen (18) months of the date the agreement was signed are hereby released from the agreement and are available for future agreements approved by the Board pursuant to this act, except for specific quotes, estimates, or invoices that previously have been approved for payment, performance has been initiated, and completed within twenty-four (24) months of the signed agreement.

SECTION 323. AMENDATORY 59 O.S. 2021, Section 1000.28, is amended to read as follows:

Section 1000.28. There is hereby created in the State Treasury a revolving fund for the Oklahoma Uniform Building Code Commission to be designated the Oklahoma Uniform Building Code Commission Revolving Fund. The fund shall be a continuous fund, not subject to fiscal year limitations, and shall consist of all fees or payments of any type received by the Commission. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and

1 expended by the Commission for the purpose of implementing the
2 Oklahoma Uniform Building Code Commission Act. Expenditures from
3 the fund shall be made upon warrants issued by the State Treasurer
4 against claims filed as prescribed by law with the ~~Director~~ Chief
5 Operating Officer of the Office of Management and Enterprise
6 Services for approval and payment.

7 SECTION 324. AMENDATORY 59 O.S. 2021, Section 1018, is
8 amended to read as follows:

9 Section 1018. All fees, administrative fines or payments of any
10 type received by the Construction Industries Board under The
11 Plumbing License Law of 1955 shall be deposited in a revolving fund
12 to be designated as the "Plumbing Licensing Revolving Fund" and are
13 hereby appropriated and may be expended by the Construction
14 Industries Board for the purpose of implementing The Plumbing
15 License Law of 1955, and the fully adjudicated fine revenue received
16 into this fund may be transferred to the Skilled Trade Education and
17 Workforce Development Fund created in subsection E of Section 1 of
18 this act. The fund shall be a continuing fund, not subject to
19 fiscal year limitations. Expenditures from the fund shall be made
20 upon warrants issued by the State Treasurer against claims filed as
21 prescribed by law with the ~~Director~~ Chief Operating Officer of the
22 Office of Management and Enterprise Services for approval and
23 payment.

SECTION 325. AMENDATORY 59 O.S. 2021, Section 1042, is amended to read as follows:

Section 1042. There is hereby created in the State Treasury a revolving fund for the Construction Industries Board, to be designated the "Oklahoma Inspectors Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Board from fees and fines collected pursuant to the Oklahoma Inspectors Act. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Construction Industries Board for the purpose of implementing the provisions of the Oklahoma Inspectors Act for the continuing education of building and construction inspectors, and for implementing programs designed to further the efficiency of the building and construction inspector profession and public understanding of the profession. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 326. AMENDATORY 59 O.S. 2021, Section 1113, is amended to read as follows:

Section 1113. There is hereby created a revolving fund in the State Treasury to be known as the "Certification Fund". Said fund shall consist of all monies appropriated to said fund, and all fees

1 collected under the provisions of this act. Said fund shall be
2 under the control and supervision of the Department, and shall be
3 paid out on claims approved by the Department and forwarded to the
4 ~~Director~~ Chief Operating Officer of the Office of Management and
5 Enterprise Services who shall audit the same, and, upon approval
6 thereof, warrants shall be issued according to law, and said
7 warrants shall be paid by the State Treasurer from the said fund.
8 The said fund shall be expended for training programs including
9 itinerant training programs, meetings, personnel, expenses, and
10 purchase of personal property, to carry out the purposes of the
11 Waterworks and Wastewater Works Operator Certification Act, and for
12 no other purpose. Nothing herein shall prevent the expenditure of
13 other funds of the Department or of the Board, the expenditure of
14 which is not otherwise restricted, from being expended to accomplish
15 the purposes of the Waterworks and Wastewater Works Operator
16 Certification Act.

17 SECTION 327. AMENDATORY 59 O.S. 2021, Section 1150.5, is
18 amended to read as follows:

19 Section 1150.5. A. There is hereby created the "Sanitarian and
20 Environmental Specialist Registration Advisory Council", which shall
21 consist of nine (9) members as follows:

22 1. One member shall be the Commissioner of Health or designated
23 representative;
24

2. One member shall be the Executive Director of the Department of Environmental Quality or designee;

3. One member shall be the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services or designee;

4. One member who shall be appointed for an initial term of three (3) years by the Director of the City-County Health Department of Oklahoma County;

5. One member who shall be appointed for an initial term of three (3) years by the Director of the Tulsa City-County Health Department;

6. Two members shall be employed by state government who shall be appointed by the Commissioner for an initial term of two (2) years each; and

7. Two members, for an initial term of one (1) year each, who shall be appointed by the Executive Director of the Department of Environmental Quality, one who is employed by private industry and one who is employed by the Indian Health Service of the Public Health Service or by a tribal government with an office in the State of Oklahoma.

B. With the exception of paragraph 3 of subsection A of this section all of the members shall have at least five (5) years of experience as registered sanitarians or environmental specialists.

C. After expiration of one initial term of office, the term of office of each appointed member shall be for three (3) years. Each

1 appointed member shall hold office until his successor is appointed
2 and has qualified under the Oklahoma Sanitarian and Environmental
3 Specialist Registration Act. The initial term for all appointed
4 members shall begin January 1, 1996.

5 D. Sixty (60) days prior to the expiration of the term to be
6 filled or whenever a vacancy occurs, any statewide organization
7 whose membership represents more than twenty percent (20%) of the
8 registered sanitarians and environmental specialists in the state
9 may recommend three persons for such position or vacancy to the
10 appointing authority.

11 E. Appointed members of the Council may be removed from office
12 by the appointing authority.

13 F. The members of the Council shall serve without pay but may
14 be reimbursed for actual expenses pursuant to the State Travel
15 Reimbursement Act.

16 G. The Council shall elect from among its membership a chair,
17 vice-chair and secretary to serve a term of not more than one (1)
18 year ending on July 1 of the year designated by the Council.
19 Members may be elected for more than one term. The chair or vice-
20 chair shall preside at all meetings. The chair, vice-chair and
21 secretary shall perform such duties as may be decided by the Council
22 in order to effectively administer the Oklahoma Sanitarian and
23 Environmental Specialist Registration Act.

1 H. A majority of Council members shall constitute a quorum to
2 transact official business.

3 I. The Council shall meet within sixty (60) days after the
4 effective date of this act and shall meet thereafter at such times
5 as the Council deems necessary to implement the Oklahoma Sanitarian
6 and Environmental Specialist Registration Act.

7 SECTION 328. AMENDATORY 59 O.S. 2021, Section 1151.20,
8 is amended to read as follows:

9 Section 1151.20. There is hereby created in the State Treasury
10 a revolving fund for the Construction Industries Board to be
11 designated the "Roofing Contractor Registration Revolving Fund".
12 The fund shall be a continuing fund, not subject to fiscal year
13 limitations, and shall consist of application and renewal fees, late
14 fees, administrative fees, reinstatement fees, and any other monies
15 collected pursuant to the Roofing Contractor Registration Act. All
16 monies accruing to the credit of the fund are hereby appropriated
17 and may be budgeted and expended by the Construction Industries
18 Board for implementation and administration of the Roofing
19 Contractor Registration Act, and the fully adjudicated fine revenue
20 received into this fund may be transferred to the Skilled Trade
21 Education and Workforce Development Fund created in subsection E of
22 Section 1 of this act. Expenditures from the fund shall be made
23 upon warrants issued by the State Treasurer against claims filed as
24 prescribed by law with the ~~Director~~ Chief Operating Officer of the

Office of Management and Enterprise Services for approval and payment.

This fund shall be subject to and comply with the provisions of Section 211 of Title 62 of the Oklahoma Statutes.

SECTION 329. AMENDATORY 59 O.S. 2021, Section 1360, is amended to read as follows:

Section 1360. The secretary of the Board shall receive and account for all monies derived under this act. The secretary shall pay these monies monthly to the State Treasurer who shall keep them in a separate fund to be known as the "Psychologists Licensing Fund". All monies received in said fund are hereby appropriated to the Board. Expenditures from the Psychologist Licensing Fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment. It is further provided that all monies in the Psychologists Licensing Fund at the end of each fiscal year, being the unexpended balance of such fund, shall be carried forward and placed to the credit of the Psychologists Licensing Fund for the succeeding fiscal year. The Board may make expenditures from this fund for any purpose which is reasonably necessary to carry out the provisions of this act; provided that all reimbursement for expenses shall be paid only from the Psychologists Licensing Fund. No money shall ever be paid from the General Revenue Fund for the

administration of this act and any expenses or liabilities incurred by said Board shall not constitute a charge on any state funds other than said Psychologists Licensing Fund.

SECTION 330. AMENDATORY 59 O.S. 2021, Section 1694, is amended to read as follows:

Section 1694. All monies received by the Construction Industries Board under the Electrical License Act, including the administrative fines authorized by Section 1695 of this title, shall be deposited with the State Treasurer and credited to the "Electrical Revolving Fund". The revolving fund shall be a continuing fund not subject to fiscal year limitations and may be budgeted and expended by the Construction Industries Board. Expenditures from this fund shall be made pursuant to the purposes of the Electrical License Act and shall include, but not be limited to, payment of operating costs and the costs of programs designed to promote public awareness of the electrical industry, and expenditures for the preparation and printing of regulations, bulletins or other documents and the furnishing of copies of such documents to those persons engaged in the electrical industry or the public, and the fully adjudicated fine revenue received into this fund may be transferred to the Skilled Trade Education and Workforce Development Fund created in subsection E of Section 1 of this act. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the

1 ~~Director~~ Chief Operating Officer of the Office of Management and
2 Enterprise Services for approval and payment.

3 SECTION 331. AMENDATORY 59 O.S. 2021, Section 1800.14,
4 is amended to read as follows:

5 Section 1800.14. There is hereby created in the State Treasury
6 a revolving fund for the Department of Labor, to be designated the
7 "Alarm, Locksmith and Fire Sprinkler Industry Revolving Fund". The
8 fund shall be a continuing fund, not subject to fiscal year
9 limitations, and shall consist of all monies received by the Alarm,
10 Locksmith and Fire Sprinkler Industry Committee or the Department of
11 Labor pursuant to the Alarm, Locksmith and Fire Sprinkler Industry
12 Act. All monies accruing to the credit of the fund are hereby
13 appropriated and may be budgeted and expended by the Commissioner of
14 Labor for the purpose of administration, implementing, and
15 enforcement of the Alarm, Locksmith and Fire Sprinkler Industry Act
16 including, but not limited to, office administration and personnel
17 expense, licensing and training, reimbursements in accordance with
18 the State Travel Reimbursement Act, and other necessary expenses
19 relating to the Alarm, Locksmith and Fire Sprinkler Industry Act.
20 The Commissioner shall not expend or transfer any monies from this
21 fund for any purpose not relating to the Alarm, Locksmith and Fire
22 Sprinkler Industry Act. Expenditures from the fund shall be made
23 upon warrants issued by the State Treasurer against claims filed as
24 prescribed by law with the ~~Director~~ Chief Operating Officer of the

Office of Management and Enterprise Services for approval and payment.

SECTION 332. AMENDATORY 59 O.S. 2021, Section 1800.15, is amended to read as follows:

Section 1800.15. The Commissioner of Labor shall pay all costs of administration of the Alarm, Locksmith and Fire Sprinkler Industry Act from fees, monies and other revenue collected pursuant to the provisions of the Alarm, Locksmith and Fire Sprinkler Industry Act. At no time shall a claim for payment be submitted to the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services or the State Treasurer if the revenue deposited in the Alarm, Locksmith and Fire Sprinkler Industry Revolving Fund to the current date does not equal or exceed the total claims for payments made to that date.

SECTION 333. AMENDATORY 59 O.S. 2021, Section 1820.17, is amended to read as follows:

Section 1820.17. There is hereby created in the State Treasury a revolving fund for the Office of the State Fire Marshal, to be designated the "Fire Extinguisher Industry Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Office of the State Fire Marshal pursuant to the Fire Extinguisher Licensing Act. All monies accruing to the credit of such fund are

1 hereby appropriated and may be budgeted and expended by the Office
2 of the State Fire Marshal for the purpose of implementing the Fire
3 Extinguisher Licensing Act. Expenditures from such fund shall be
4 made upon warrants issued by the State Treasurer against claims
5 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
6 of the Office of Management and Enterprise Services for approval and
7 payment.

8 SECTION 334. AMENDATORY 59 O.S. 2021, Section 1820.18,
9 is amended to read as follows:

10 Section 1820.18. All costs of administration of the Fire
11 Extinguisher Licensing Act shall be paid from fees, monies and other
12 revenue collected pursuant to the provisions of the Fire
13 Extinguisher Licensing Act. At no time shall a claim for payment be
14 submitted to the ~~Director~~ Chief Operating Officer of the Office of
15 Management and Enterprise Services if the revenue deposited in the
16 Fire Extinguisher Industry Revolving Fund to the current date does
17 not equal or exceed the total claims for payments made to that date.

18 SECTION 335. AMENDATORY 59 O.S. 2021, Section 1820.19,
19 is amended to read as follows:

20 Section 1820.19. The State Fire Marshal Commission is hereby
21 authorized to promulgate, adopt, amend, and repeal rules consistent
22 with the provisions of the Fire Extinguisher Licensing Act for the
23 purpose of governing the establishment and levying of administrative
24 fines, establishing a fee schedule and the examination and licensure

1 of fire extinguisher companies, managers, technicians, and
2 salespersons.

3 SECTION 336. AMENDATORY 59 O.S. 2021, Section 1850.13,
4 is amended to read as follows:

5 Section 1850.13. There is hereby created in the State Treasury
6 a revolving fund for the Construction Industries Board, to be
7 designated the "Oklahoma Mechanical Licensing Revolving Fund". The
8 fund shall be a continuing fund, not subject to fiscal year
9 limitations, and shall consist of all monies received by the Board
10 pursuant to the Mechanical Licensing Act, including administrative
11 fines authorized by Section 1850.11 of this title. All monies
12 accruing to the credit of said fund are hereby appropriated and may
13 be budgeted and expended by the Construction Industries Board for
14 the purpose of implementing the Mechanical Licensing Act, and the
15 fully adjudicated fine revenue received into this fund may be
16 transferred to the Skilled Trade Education and Workforce Development
17 Fund created in subsection E of Section 1 of this act. Expenditures
18 from said fund shall be made upon warrants issued by the State
19 Treasurer against claims filed as prescribed by law with the
20 ~~Director~~ Chief Operating Officer of the Office of Management and
21 Enterprise Services for approval and payment.

22 SECTION 337. AMENDATORY 59 O.S. 2021, Section 1883, is
23 amended to read as follows:

1 Section 1883. There is hereby created in the State Treasury a
2 revolving fund for the Oklahoma Board of Licensed Alcohol and Drug
3 Counselors, to be designated the "Licensed Alcohol and Drug
4 Counselors Revolving Fund". The fund shall be a continuing fund,
5 not subject to fiscal year limitations, and shall consist of all
6 monies received pursuant to the Licensed Alcohol and Drug Counselors
7 Act. All monies accruing to the credit of the fund are hereby
8 appropriated and may be budgeted and expended by the Board to meet
9 expenses necessary for carrying out the purposes of this act.
10 Expenditures from the fund shall be approved by the Board and shall
11 be made upon warrants issued by the State Treasurer against claims
12 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
13 of the Office of Management and Enterprise Services for approval and
14 payment.

15 SECTION 338. AMENDATORY 59 O.S. 2021, Section 1918, is
16 amended to read as follows:

17 Section 1918. There is hereby created in the State Treasury a
18 revolving fund for the State Board of Behavioral Health Licensure,
19 to be designated the "Licensed Professional Counselors Revolving
20 Fund". The fund shall be a continuing fund, not subject to fiscal
21 year limitations, and shall consist of all monies received pursuant
22 to this act. All monies accruing to the credit of said fund are
23 hereby appropriated and may be budgeted and expended by the
24 Executive Director to meet expenses necessary for carrying out the

1 purpose of the Licensed Professional Counselors Act. Expenditures
2 from said fund shall be approved by the Board and shall be made upon
3 warrants issued by the State Treasurer against claims filed as
4 prescribed by law with the ~~Director~~ Chief Operating Officer of the
5 Office of Management and Enterprise Services for approval and
6 payment.

7 SECTION 339. AMENDATORY 59 O.S. 2021, Section 1925.17,
8 is amended to read as follows:

9 Section 1925.17. There is hereby created in the State Treasury
10 a revolving fund for the State Board of Behavioral Health Licensure,
11 to be designated the "Licensed Marital and Family Therapist
12 Revolving Fund". The fund shall be a continuing fund, not subject
13 to fiscal year limitations, and shall consist of all monies received
14 pursuant to the provisions of the Marital and Family Therapist
15 Licensure Act. All monies accruing to the credit of said fund are
16 hereby appropriated and may be budgeted and expended by the
17 Executive Director to meet expenses necessary for carrying out the
18 purpose of the Marital and Family Therapist Licensure Act.
19 Expenditures from said fund shall be approved by the Board and shall
20 be made upon warrants issued by the State Treasurer against claims
21 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
22 of the Office of Management and Enterprise Services for approval and
23 payment.

SECTION 340. AMENDATORY 59 O.S. 2021, Section 1946, is amended to read as follows:

Section 1946. There is hereby created in the State Treasury a revolving fund for the State Board of Behavioral Health Licensure, to be designated the "Licensed Behavioral Practitioners Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received pursuant to this act. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Executive Director to meet expenses necessary for carrying out the purpose of the Licensed Behavioral Practitioner Act. Expenditures from the fund shall be approved by the Board and shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 341. AMENDATORY 59 O.S. 2021, Section 2058, is amended to read as follows:

Section 2058. There is hereby created in the State Treasury a revolving fund for the State Board of Examiners of Perfusionists to be designated the "Perfusionists Licensure Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of fees received by the Board and any other monies collected pursuant to the Oklahoma Licensed Perfusionists Act. All monies

1 accruing to the credit of the fund are hereby appropriated and may
2 be budgeted and expended by the Board for any purpose which is
3 reasonably necessary to carry out the provisions of the Oklahoma
4 Licensed Perfusionists Act. Expenditures from the fund shall be
5 made upon warrants issued by the State Treasurer against claims
6 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
7 of the Office of Management and Enterprise Services for approval and
8 payment.

9 SECTION 342. AMENDATORY 59 O.S. 2021, Section 2095.20,
10 as amended by Section 16, Chapter 218, O.S.L. 2024 (59 O.S. Supp.
11 2025, Section 2095.20), is amended to read as follows:

12 Section 2095.20. A. 1. There is hereby created in the State
13 Treasury a revolving fund for the Commission on Consumer Credit to
14 be designated the "Oklahoma Mortgage Broker and Mortgage Loan
15 Originator Recovery Fund". The fund shall consist of fees received
16 by the Administrator of Consumer Credit to be paid into the fund.

17 2. The revolving fund shall be a continuing fund not subject to
18 fiscal year limitations and shall be under the administrative
19 direction of the Administrator. Monies accruing to the credit of
20 this fund are hereby appropriated and may be budgeted and expended
21 by the Commission, pursuant to rules promulgated by the Commission,
22 for the purposes specified in subsection B of this section. The
23 provisions of this paragraph shall have retroactive and prospective
24 application.

1 3. Expenditures from the fund shall be made upon warrants
2 issued by the State Treasurer against claims filed as prescribed by
3 law with the ~~Director~~ Chief Operating Officer of the Office of
4 Management and Enterprise Services for approval and payment.

5 B. 1. Subject to the limitations of this subsection, monies in
6 the fund shall be used to reimburse any entity or individual in an
7 amount not to exceed Ten Thousand Dollars (\$10,000.00) who has been
8 adjudged by a court of competent jurisdiction to have suffered
9 monetary damages by an entity or individual required to have a
10 license under the Oklahoma Secure and Fair Enforcement for Mortgage
11 Licensing Act in any transaction or series of transactions for which
12 a license is required under the Oklahoma Secure and Fair Enforcement
13 for Mortgage Licensing Act because of the acquisition of money or
14 property by fraud, misrepresentation, deceit, false pretenses,
15 artifice, trickery, or by any other act which would constitute a
16 violation of the Oklahoma Secure and Fair Enforcement for Mortgage
17 Licensing Act.

18 2. Payments for claims based on judgments against any one
19 person required to have a license under the Oklahoma Secure and Fair
20 Enforcement for Mortgage Licensing Act shall not exceed in the
21 aggregate Sixty Thousand Dollars (\$60,000.00).

22 3. Payments for claims may only be made for a cause of action
23 which has accrued on or after November 1, 1997, and which has
24

1 accrued not more than two (2) years prior to filing the action in
2 district court.

3 SECTION 343. AMENDATORY 59 O.S. 2021, Section 3024, is
4 amended to read as follows:

5 Section 3024. A. The Commissioner of Labor shall have the
6 following powers and duties:

7 1. The Commissioner shall:

- 8 a. adopt or determine standards of elevator safety,
- 9 b. license elevator contractors, elevator mechanics, and
10 elevator inspectors,
- 11 c. register elevator apprentices,
- 12 d. determine qualifications for examination, establish
13 application processes, and examine applicants for
14 licensure,
- 15 e. establish terms of licensure and renewal procedures,
- 16 f. attempt to achieve reciprocity agreements whereby
17 licenses issued by other jurisdictions may be accepted
18 in this state in lieu of examination,
- 19 g. establish grounds for revocation, suspension, and
20 nonrenewal of licenses and policies for reinstatement
21 of licenses and for imposition of lesser disciplinary
22 measures,
- 23 h. establish continuing education requirements,
- 24

- i. provide for the inspection and certification of elevators,
- j. provide for the enforcement of the Elevator Safety Act,
- k. hear appeals pursuant to the Administrative Procedures Act,
- l. establish a procedure for the reporting and investigation of accidents, and
- m. establish a procedure to allow variances from the literal requirement of the code;

2. The Commissioner shall publish informational brochures about license examinations that indicate the scope of the examinations, include suggestions about how to prepare for the examinations, and may include sample questions of the type to be expected, but shall never include test items that will be used in future examinations. In no case shall information about forthcoming examinations, that is not generally available, be given to any school, coaching service, or individual privately; and

3. The Commissioner shall have subpoena powers and shall have the right to seek injunctive relief to prevent the operation of elevators lacking a certificate of operation after November 1, 2006, or failing inspection. For any violation of the Elevator Safety Act, the Commissioner may assess an administrative fine , which fine may be assessed in addition to any other penalties provided pursuant

to the Elevator Safety Act. The Commissioner of Labor may promulgate rules establishing a schedule of administrative fines for violations of the Elevator Safety Act. Upon collection of an assessed fine, the funds shall be deposited in the Department of Labor Administrative Penalty Revolving Fund created in Section 11 of this act.

B. The Commissioner of Labor may promulgate rules establishing a schedule of administrative fees for the implementation of the Elevator Safety Act. The following fees shall remain in effect until such rules become effective, at which time the fees contained in this subsection shall be superseded by rule. Fees shall be as follows:

- | | |
|--|----------|
| 1. Elevator contractor examination | \$100.00 |
| 2. Elevator inspector examination | \$100.00 |
| 3. Elevator mechanic examination | \$100.00 |
| 4. Initial and renewal elevator contractor license | \$100.00 |
| 5. Initial and renewal elevator inspector License | \$ 75.00 |
| 6. Initial and renewal elevator mechanic License | \$ 50.00 |
| 7. Annual elevator apprentice registration | \$ 25.00 |

1	8. Late renewal - in addition to	
2	license fee	\$ 10.00
3	9. Replacement of lost or mutilated	
4	license	\$ 10.00
5	10. Reinstatement - in addition to	
6	license fee	\$100.00
7	11. Existing elevator - certification	
8	of operation	\$ 25.00
9	12. New elevator - inspection and	
10	certification	\$150.00
11	13. Elevator temporary certification	\$ 25.00
12	14. Elevator temporary mechanic	
13	license for 30 days	\$ 10.00
14	15. Labor for chief elevator inspector	
15	or deputy elevator inspector to	
16	perform inspection for issuance of	
17	certificate of operation:	
18	a. any escalator or moving walkway	\$125.00
19	b. elevator, two-four floors	\$ 75.00
20	c. elevator, five-ten floors	\$100.00
21	d. elevator, eleven floors and over	\$125.00
22	e. wheelchair lift	\$ 25.00
23	C. All revenues received shall be deposited to the Department	
24	of Labor Revolving Fund. It is the intent of the Legislature that	

1 fees charged pursuant to the Elevator Safety Act be adjusted to
2 provide sufficient income, but not substantially more than
3 sufficient income, to ensure elevator safety as provided by the
4 Elevator Safety Act. Accordingly, the Commissioner of Labor shall
5 make an annual study of the revenues to and expenditures from the
6 Department of Labor Revolving Fund related to elevator safety and
7 shall prepare a report indicating what fee adjustments, if any,
8 shall be recommended. The report shall be submitted by September 1
9 each year to the ~~Director~~ Chief Operating Officer of the Office of
10 Management and Enterprise Services, the Chair of the Appropriations
11 Committee of the Senate, and the Chair of the Appropriations and
12 Budget Committee of the House of Representatives, and shall be filed
13 with the Department of Labor.

14 D. Licenses and certifications issued in accordance with the
15 provisions of the Elevator Safety Act shall be renewed according to
16 the following schedule:

17 1. Elevator contractor, elevator inspector, elevator mechanic
18 licenses and elevator apprentice registration shall be renewed
19 annually prior to the last day of the calendar month in which the
20 license or registration was initially issued;

21 2. Any such license, registration or certificate required by
22 the Elevator Safety Act not renewed by the last day of the calendar
23 month in which renewal is required shall be subject to a late fee as
24 provided by this act;

3. Any elevator contractor, elevator inspector, elevator mechanic license or apprentice registration having been expired for a period of not less than thirty (30) days nor more than three hundred sixty-five (365) days shall be subject to a reinstatement fee as provided for in the Elevator Safety Act; and

4. Any elevator contractor, elevator inspector, elevator mechanic license or apprentice registration being expired for a period of one (1) year or longer from the last day of the month in which renewal was required shall be considered void and the licensee shall be subject to all requirements for new issuance.

SECTION 344. AMENDATORY 59 O.S. 2021, Section 3118, is amended to read as follows:

Section 3118. There is hereby created in the State Treasury a revolving fund for the Commission on Consumer Credit to be designated the "Consumer Credit Counseling Revolving Fund". The fund shall consist of fees received by the Administrator of Consumer Credit from deferred deposit lenders for consumer credit counseling services pursuant to the provisions of Section 3119 of this title. The revolving fund shall be a continuing fund not subject to fiscal year limitations and shall be under the administrative direction of the Administrator. Monies accruing to the credit of this fund are hereby appropriated and may be budgeted and expended by the Administrator upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating

1 Officer of the Office of Management and Enterprise Services for
2 approval and payment.

3 SECTION 345. AMENDATORY 60 O.S. 2021, Section 383, is
4 amended to read as follows:

5 Section 383. A. Except to the extent that such authority is
6 otherwise specifically vested in some other state officer, board,
7 commission, or agency and except as provided in subsections B and C
8 of this section, the Governor of the State of Oklahoma is hereby
9 authorized to accept, upon behalf of this state, any gift,
10 testamentary or otherwise, of any property presented to this state
11 or to any state institution, department, or agency.

12 B. The President Pro Tempore of the Senate and the Speaker of
13 the House of Representatives are hereby authorized to accept, upon
14 behalf of this state, any gift, testamentary or otherwise, of any
15 property presented to the Legislature or either house thereof.

16 C. The Chief Justice of the Supreme Court is hereby authorized
17 to accept, upon behalf of this state, any gift, testamentary or
18 otherwise, of any property presented to the judiciary of this state.

19 D. Except as otherwise provided in Sections 391 through 396 of
20 this title, and except for gifts of cash or the equivalent of cash,
21 delivery of such property, possession thereof, and any muniments of
22 title thereto shall be made to and receipted for by the ~~Director~~
23 Chief Operating Officer of the Office of Management and Enterprise
24

1 Services. Gifts of cash or the equivalent of cash shall be made to
2 and receipted for by the ~~Director~~ Chief Operating Officer of the
3 Office of Management and Enterprise Services.

4 SECTION 346. AMENDATORY 61 O.S. 2021, Section 60, as
5 last amended by Section 123, Chapter 452, O.S.L. 2024 (61 O.S. Supp.
6 2025, Section 60), is amended to read as follows:

7 Section 60. All state agencies, boards, commissions, offices,
8 institutions, and other governmental bodies of this state, and all
9 individuals representing such entities, except the Department of
10 Transportation, the Oklahoma Turnpike Authority, the Oklahoma State
11 Regents for Higher Education and its constituent institutions, and
12 the Commissioners of the Land Office, the Oklahoma Municipal Power
13 Authority, shall use construction manager, consultant and
14 construction contract forms that the ~~Director~~ Chief Operating
15 Officer of the Office of Management and Enterprise Services requires
16 to award and execute contracts for designs to construct, renovate,
17 alter, repair, maintain, or improve real property or fixtures of
18 real property of the state. The ~~Director~~ Chief Operating Officer
19 may authorize, in writing, exceptions to the use of construction
20 manager, consultant and construction contract forms for specific
21 projects.

22 SECTION 347. AMENDATORY 61 O.S. 2021, Section 61, as
23 amended by Section 7, Chapter 238, O.S.L. 2022 (61 O.S. Supp. 2025,
24 Section 61), is amended to read as follows:

Section 61. As used in Sections 61 through 65 of this title:

1. "Chief administrative officer" means an individual responsible for directing the administration of a state agency. The term does not mean one or all of the individuals that make policy for a state agency;

2. "Construction manager" means an individual, firm, corporation, association, partnership, copartnership, or any other legal entity on the Office of Management and Enterprise Services Construction and Properties (OMES-CAP) registration list and possessing the qualifications to provide services of construction management which include, but are not necessarily limited to, design review, scheduling, cost control, value engineering, constructability evaluation, preparation and coordination of bid packages, and construction administration;

3. "Consultant" means an individual or legal entity possessing the qualifications to provide licensed architectural, registered engineering, or registered land surveying services or other individuals or legal entities possessing specialized credentials and qualifications as may be needed to evaluate, plan or design and/or provide construction administration and/or construction inspection services for any construction or a public work improvement project;

4. "~~Director~~ Chief Operating Officer" means the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services or a designee;

1 5. "Office" means the Office of Management and Enterprise
2 Services;

3 6. "Project" means studies, evaluations, plans or designs for
4 facility evaluations or public work improvements, except the
5 transportation facilities under the jurisdiction of the Department
6 of Transportation or the Oklahoma Turnpike Authority:

7 a. to construct, renovate, alter, repair, maintain, or
8 improve real property or fixtures of real property,
9 and

10 b. that does not constitute "construction" as defined by
11 the Public Building Construction and Planning Act;

12 7. "State agency" means an agency, office, officer, bureau,
13 board, counsel, court, commission, institution, unit, division, body
14 or house of the executive or judicial branches of state government,
15 whether elected or appointed, excluding only political subdivisions
16 of the state, the Oklahoma State Regents for Higher Education and
17 its constituent institutions and the Commissioners of the Land
18 Office; and

19 8. "Political subdivision" means any local governmental body
20 formed pursuant to the laws of this state, including, but not
21 limited to, school districts, career technology centers, cities,
22 counties, public trusts, public authorities, commissions or other
23 local governmental bodies exercising their authority to contract
24 with construction managers and/or consultants. The term also means

any quasi-governmental and nongovernmental organizations contracting with construction managers and/or consultants using public funds or on behalf of a political subdivision.

SECTION 348. AMENDATORY 61 O.S. 2021, Section 65, as amended by Section 11, Chapter 238, O.S.L. 2022 (61 O.S. Supp. 2025, Section 65), is amended to read as follows:

Section 65. A. In addition to the conditions prescribed pursuant to subsection C of this section, the provisions of Section 62 of this title shall not apply whenever the Office of Management and Enterprise Services with concurrence of the chief administrative officer of the public agency affected declares that an emergency exists. The construction manager or consultant shall be selected by the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services. The resulting construction manager or consultant contract shall not exceed Fifty Thousand Dollars (\$50,000.00). The reasons for the emergency shall be recorded in the official records of the Office.

B. Emergency as used in this section shall be limited to conditions resulting from any of the following:

1. A sudden unexpected happening or unforeseen occurrence if it is impossible for the provisions of Section 62 of this title to be observed because of the time factor and if the public health or safety is endangered; and

2. A condition or situation which, if allowed to continue, would lead to economic loss to the state or to further damage of state property.

C. The provisions of Section 62 of this title shall not apply to the process for construction of a correctional facility whenever the State Board of Corrections informs the Office that an emergency condition threatens the security of the state correctional system, including inmate population growth, and the condition requires expeditious treatment for the review, approval and bid process as it relates to construction or expansion of correctional facilities. The Office and the Department of Corrections are authorized to implement an expedited competitive bid process for the contracting of construction managers or consultants and construction of new or expanded correctional facilities that adequately respond to the emergency. The State Board of Corrections shall provide written notification to the Governor, the Speaker of the House of Representatives and to the President Pro Tempore of the Senate of the emergency conditions.

SECTION 349. AMENDATORY 61 O.S. 2021, Section 103.7, as amended by Section 15, Chapter 238, O.S.L. 2022 (61 O.S. Supp. 2025, Section 103.7), is amended to read as follows:

Section 103.7. For purposes of the provisions of the Public Competitive Bidding Act of 1974, contracts entered into solely for projects and activities by the Oklahoma Department of Wildlife

1 Conservation relating to fish and wildlife conservation shall be let
2 and awarded using the competitive bidding process as set forth in
3 the Public Competitive Bidding Act of 1974. However, for contracts
4 not exceeding One Hundred Thousand Dollars (\$100,000.00), the
5 Department may administer the competitive bidding process and let
6 and award the contract itself rather than the Office of Management
7 and Enterprise Services.

8 SECTION 350. AMENDATORY 61 O.S. 2021, Section 121, as
9 amended by Section 26, Chapter 238, O.S.L. 2022 (61 O.S. Supp. 2025,
10 Section 121), is amended to read as follows:

11 Section 121. A. Change orders or addenda to public
12 construction contracts of One Million Dollars (\$1,000,000.00) or
13 less shall not exceed a fifteen percent (15%) cumulative increase in
14 the original contract amount.

15 B. Change orders or addenda to public construction contracts of
16 over One Million Dollars (\$1,000,000.00) shall not exceed the
17 greater of One Hundred Fifty Thousand Dollars (\$150,000.00) or a ten
18 percent (10%) cumulative increase in the original contract amount.

19 C. Change orders or cumulative change orders which exceed the
20 limits of subsection A or B of this section shall require a
21 readvertising for bids on the incomplete portions of the contract.

22 D. If the awarding public agency does not have a governing
23 body, the chief administrative officer of the awarding public agency
24 shall approve change orders. The ~~Director~~ Chief Operating Officer

1 of the Office of Management and Enterprise Services, or the
2 ~~Director's~~ Chief Operating Officer's designee, shall sign and
3 execute all contracts and change orders, as they relate to state
4 agencies.

5 E. If the awarding public agency has a governing body, all
6 change orders shall be formally approved by the governing body of
7 the awarding public agency and the reasons for approval recorded in
8 the permanent records of the governing body. The governing body of
9 a municipality or technology center may delegate approval of change
10 orders up to Forty Thousand Dollars (\$40,000.00) or ten percent
11 (10%) of any contract, whichever is less, to the chief
12 administrative officer of the municipality or technology center or
13 their designee, with any approved change orders reported to the
14 governing body at the next regularly scheduled meeting.

15 F. The Oklahoma Veterans Commission, as the governing body of
16 the Oklahoma Department of Veterans Affairs, is authorized to
17 delegate to the Director of the agency the authority to approve
18 change orders on a construction contract provided that the
19 individual change order does not exceed Forty Thousand Dollars
20 (\$40,000.00) in expenditure, and complies with the limits
21 established by this section. Change orders approved by the Director
22 pursuant to a delegation of authority shall be presented to the
23 Commission during the next regular meeting and the reasons for the
24 orders recorded in permanent records.

1 G. The governing body of the Oklahoma Tourism and Recreation
2 Department is authorized, upon approval of a majority of all of the
3 members of the Oklahoma Tourism and Recreation Commission, to
4 delegate to the Director of the agency the authority to approve
5 change orders on a construction contract provided that the
6 individual change order does not exceed Twenty-five Thousand Dollars
7 (\$25,000.00) in expenditure and complies with the limits established
8 by this section. The Director of the Office shall sign and execute
9 all contracts and change orders.

10 H. The Transportation Commission may, by rule, authorize the
11 Director of the Department of Transportation to approve change
12 orders in an amount of not to exceed Five Hundred Thousand Dollars
13 (\$500,000.00). Change orders approved by the Director shall be
14 presented to the Transportation Commission during the next regular
15 meeting and the reasons therefor recorded in the permanent records.
16 The Oklahoma Turnpike Authority may authorize the Director of the
17 Authority to approve change orders in an amount not to exceed Two
18 Hundred Fifty Thousand Dollars (\$250,000.00). Change orders
19 approved by the Director of the Authority shall be presented to the
20 Authority during the next regular meeting and the reasons for the
21 orders recorded in permanent records.

22 I. All change orders for the Department of Transportation or
23 the Authority shall contain a unit price and total for each of the
24 following items:

1. All materials with cost per item;

2. Itemization of all labor with number of hours per operation and cost per hour;

3. Itemization of all equipment with the type of equipment, number of each type, cost per hour for each type, and number of hours of actual operation for each type;

4. Itemization of insurance cost, bond cost, Social Security, taxes, workers' compensation, employee fringe benefits and overhead cost; and

5. Profit for the contractor.

J. 1. If a construction contract contains unit pricing, and the change order pertains to the unit price, the change order will not be subject to subsection A or B of this section.

2. When the unit price change does not exceed Twenty Thousand Dollars (\$20,000.00), the unit price change order computation may be based on an acceptable unit price basis in lieu of cost itemization as required in paragraphs 1, 2, 3, 4 and 5 of subsection I of this section.

3. When the unit price change exceeds Twenty Thousand Dollars (\$20,000.00), any unit price for a new item established at or below the average eighteen-month-price history for the new item may be used in lieu of cost itemization as required in paragraphs 1, 2, 3, 4 and 5 of subsection I of this section.

1 K. Alternates or add items bid with the original bid and
2 contained in the awarded contract as options of the awarding public
3 agency shall not be construed as change orders under the provisions
4 of the Public Competitive Bidding Act of 1974.

5 L. Where construction management at-risk is the project
6 delivery method, the limits established by subsections A and B of
7 this section shall be based upon the total cost of the project
8 rather than the cost of the individual trade contracts.

9 SECTION 351. AMENDATORY 61 O.S. 2021, Section 125, is
10 amended to read as follows:

11 Section 125. The ~~Director~~ Chief Operating Officer of the Office
12 of Management and Enterprise Services shall prescribe the accounting
13 procedure to be followed to pay costs and payments to contractors on
14 public construction contracts with state agencies. The ~~Director~~
15 Chief Operating Officer of the Office of Management and Enterprise
16 Services is directed to include any procedures necessary to provide
17 accountability for state funds and funds furnished by an agency of
18 the United States Government.

19 SECTION 352. AMENDATORY 61 O.S. 2021, Section 139, as
20 amended by Section 1, Chapter 455, O.S.L. 2025 (61 O.S. Supp. 2025,
21 Section 139), is amended to read as follows:

22 Section 139. A. In addition to any authority to enter an
23 agreement pursuant to the Interlocal Cooperation Act, any school
24 district, including a technology school district, may either

1 participate in, sponsor, conduct or administer a cooperative
2 purchasing agreement for the acquisition of any commodities or
3 services with one or more public agencies in accordance with an
4 agreement entered into between the participants. Such cooperative
5 purchasing may include, but is not limited to, joint or multiparty
6 contracts between public agencies and open-ended state public
7 procurement contracts. Cooperative purchasing shall not include new
8 construction. For cooperative purchasing agreements, all funds
9 shall be applied toward chargeables under the agreements or toward
10 direct administrative costs associated with the agreements. No
11 entity shall take a percentage of the funds as profit under the
12 cooperative purchasing agreement.

13 B. Any local public procurement unit may either participate in,
14 sponsor, conduct or administer a cooperative or piggybacking
15 purchasing agreement for the acquisition of any commodities or
16 services, including construction services, with one (1) or more
17 public procurement units or external procurement units in accordance
18 with an agreement entered into between the participants. Such
19 cooperative purchasing may include, but is not limited to, joint or
20 multiparty contracts between public procurement units and open-ended
21 state public procurement unit contracts which are made available to
22 local public procurement units. Purchases made in accordance with
23 this subsection by a local public procurement unit shall be required
24 to satisfy any procurement regulation, including Oklahoma Central

Purchasing Act, the Public Competitive Bidding Act of 1974, the Oklahoma State Finance Act, related administrative rules and federal regulations that may apply due to the federal source of the funding for the anticipated purchase.

C. For purposes of this section, the following definitions apply:

1. "Local public procurement unit" shall mean, inter alia, any county, city, town, state agency, and any other subdivision of the state or public unit or agency thereof;

2. "External procurement unit" shall mean any buying organization in the United States not located in this state which, if located in this state, would qualify as a public procurement unit;

3. "Cooperative or piggybacking purchasing agreement" shall mean an agreement between a local public procurement unit and another local public procurement unit or an external procurement unit to authorize the use of a contract procured by one of the parties to the agreement to benefit the other party to the agreement. This term shall also mean an agreement that provides access to a product or service that is lower in price than a comparable product or service that is available through the usage of a statewide, multistate or multigovernmental contract issued by the Purchasing Division of the Office of Management and Enterprise Services; and

1 4. "New construction" shall mean any building not previously
2 constructed that has not been occupied or used. New construction
3 shall not mean bus barns, agriculture barns, storage buildings,
4 batting cages, or similar structures.

5 D. Nothing in this section shall supersede the obligation of a
6 state agency to adhere to rules regarding statewide contracts issued
7 by the Purchasing Division. Neither shall any provision of this
8 section be construed to waive the obligation of a state agency to
9 utilize a mandatory purchasing contract as designated by the State
10 Purchasing Director.

11 SECTION 353. AMENDATORY 61 O.S. 2021, Section 202.1, is
12 amended to read as follows:

13 Section 202.1. A. The design-build and construction management
14 project delivery methods shall not be used without the written
15 approval of the ~~Director~~ Chief Operating Officer of the Office of
16 Management and Enterprise Services, or the ~~Director's~~ Chief
17 Operating Officer's designee, when those projects are constructed
18 for a state agency or by an act of the Legislature specifying
19 design-build or at-risk construction management for a project. In
20 all instances where the design-build project or at-risk construction
21 management delivery method is authorized, construction
22 administration shall be performed by the State Facilities ~~Director~~
23 Chief Operating Officer, the SFD's designee or designees, or
24 otherwise by contract or contract provision approved by the ~~Director~~

1 Chief Operating Officer of the Office of Management and Enterprise
2 Services for construction administration by another party.

3 B. The use of design-build and construction management project
4 delivery methods shall not interfere or inhibit the opportunity for
5 subcontractors and trade contractors to openly and freely compete
6 for subcontracts or trade contracts pursuant to the Public
7 Competitive Bidding Act of 1974. The State Facilities ~~Director~~
8 Chief Operating Officer, or designee, or the construction manager
9 shall make the subcontracting and supply opportunities publicly
10 known, as follows:

11 1. Whenever the estimated cost of the contract exceeds Fifty
12 Thousand Dollars (\$50,000.00), public notice shall be given by
13 publication in a newspaper of general circulation and published in
14 the county where the work, or the major part of the work, is to be
15 done. Such notice by publication shall be published in two
16 consecutive weekly issues of the newspaper, with the first
17 publication thereof to be at least twenty-one (21) days prior to the
18 date set for opening bids; and

19 2. Notice thereof shall be sent to one in-state trade or
20 construction publication for the publication's use and information
21 whenever the estimated cost of the contract exceeds Fifty Thousand
22 Dollars (\$50,000.00); provided, however, this section shall not be
23 construed to require the publication of such notice in such trade or
24 construction publication or to require the provision of such notice

1 to more than one in-state trade or construction publication or to
2 any out-of-state trade or construction publication.

3 C. Bids shall be publicly opened at the time and place
4 designated in the public notice. A representative of the State
5 Facilities ~~Director~~ Chief Operating Officer shall be present at the
6 bid opening.

7 D. The provisions of subsection A of this section shall not
8 apply to projects by contract pursuant to an interagency agreement
9 under Section 581 of Title 74 of the Oklahoma Statutes or to
10 projects a state agency performs solely with the staff of the
11 agency.

12 E. The Office of Management and Enterprise Services shall,
13 pursuant to the Administrative Procedures Act, promulgate rules to
14 effect procedures, processes and design-build/construction
15 management fee guidelines necessary to the fulfillment of its
16 responsibilities under this section.

17 SECTION 354. AMENDATORY 61 O.S. 2021, Section 204, as
18 amended by Section 29, Chapter 238, O.S.L. 2022 (61 O.S. Supp. 2025,
19 Section 204), is amended to read as follows:

20 Section 204. A. The Office of Management and Enterprise
21 Services shall:

22 1. Review and approve all construction plans and specifications
23 to ensure compliance with good construction practices and space
24

standards, costs of project, proposed construction timetables, and agency need for the project;

2. Inspect prior to acceptance and final payment all completed projects for which the Office issued bid solicitations to ensure compliance with the plans and specifications of the project;

3. Select and hire consultants and construction managers for projects as determined or approved by the Office. The Office shall select, award and execute contracts to consultants and construction managers that provide services to state agencies subject to this act;

4. Develop and issue solicitations for award of state agency contracts for construction services. The Office shall have final approval authority for contracts and contract documents. Neither the Office nor any public entity shall, for performance of work that requires that a contractor be licensed by this state, issue a solicitation to, or make a contract with, a contractor not licensed by this state;

5. Review inspections performed by consultants and construction managers during construction, perform primary inspections when consultants or construction managers are not used, and final inspections after completion;

6. Establish standards and policies as required to standardize facility assessment and benchmarking, facility operations and maintenance, asset preservation, design and energy standards, space

1 utilization, material testing, indexes of efficiency, economy, and
2 effectiveness;

3 7. Monitor indices of facility condition, effectiveness of
4 operations and maintenance programs, deferred maintenance
5 prioritization, effectiveness of planning processes, budgeting for
6 capital needs, application of facility standards as established by
7 the Office, and performance outcomes of construction projects to
8 ensure maximum efficiency in the expenditure of state funds for
9 asset management and preservation of the state's capital real
10 property;

11 8. Coordinate, monitor and report on statewide energy
12 conservation programs delegated to the Office;

13 9. Provide property leasing and brokerage services delegated to
14 the Office;

15 10. Report fraud or waste in any construction project by
16 written notification with documentation for the report to the
17 Attorney General. The Attorney General shall take appropriate
18 action to protect the interest of the state; and

19 11. Prequalify as good and sufficient insurance carriers,
20 bonding companies and surety companies to meet provisions of
21 Sections 1 and 134 of this title. The ~~Director~~ Chief Operating
22 Officer shall promulgate rules to establish criteria to determine
23 whether a carrier or company is good and sufficient. The
24

prequalification requirement and process shall not violate the provisions of Section 135 of this title.

B. When a state agency employs a licensed architect or licensed engineer as a full-time employee, said licensed employee may conduct required facility planning, prepare project plans and specifications and monitor construction work as prescribed by the Office. State agencies authorized to employ licensed architects and engineers for the purposes of this section include:

1. The Department of Transportation with respect to highways, bridges and dams;

2. The Oklahoma State Regents for Higher Education and its constituent institutions;

3. The Military Department of the State of Oklahoma;

4. The Oklahoma Tourism and Recreation Department; and

5. The Department of Human Services.

SECTION 355. AMENDATORY 61 O.S. 2021, Section 205, is amended to read as follows:

Section 205. Employees of the Office of Management and Enterprise Services designated by the ~~Director~~ Chief Operating Officer of the Office shall have access to state agency records that relate to state construction projects. The ~~Director~~ Chief Operating Officer may authorize review or audit of the records.

SECTION 356. AMENDATORY 61 O.S. 2021, Section 208, as amended by Section 31, Chapter 238, O.S.L. 2022 (61 O.S. Supp. 2025, Section 208), is amended to read as follows:

Section 208. A. The Office of Management and Enterprise Services shall select and award contracts to construction managers and design consultants pursuant to the provisions of Section 62 of this title.

B. The negotiation of construction manager and consultant contracts and fees shall be performed by the Office.

C. The Office shall award and administer construction contracts for state agencies pursuant to the provisions of the Public Competitive Bidding Act of 1974.

D. 1. When all bids for a public construction contract exceed the programmed estimate and available funding, the Office may enter into negotiations with the lowest responsible bidder for the purpose of modifying the project scope and reducing the construction cost, provided that:

- a. the unexpected higher construction costs resulted from unforeseen economic conditions or otherwise sudden price volatility in the construction industry,
- b. the project was appropriately planned, and cost estimates were developed using standards of care acceptable to the Office, and

1 c. further delay caused by redesigning and rebidding the
2 project would jeopardize the using agency's mission or
3 result in the loss of a planned funding source.

4 2. To request consideration for negotiations pursuant to this
5 subsection, the using agency, within ten (10) days of the bid
6 opening date, shall make a written request to the ~~Director~~ Chief
7 Operating Officer of the Office of Management and Enterprise
8 Services to enter into negotiations pursuant to paragraph 1 of this
9 subsection. If approved by the ~~Director~~ Chief Operating Officer,
10 the Office shall consult with the using agency, consultant and low
11 bidder on methods to reduce the project scope or other cost-saving
12 measures.

13 3. If a suitable revised scope and contract amount is agreed
14 upon by the using agency, lowest responsible bidder, and the
15 ~~Director~~ Chief Operating Officer, the Office may award the public
16 construction contract to the lowest responsible bidder.

17 4. The Office shall negotiate a fair and reasonable fee with
18 the project's consultant, if applicable, to make any necessary
19 revisions to the contract documents. The cost of this additional
20 consulting work shall be paid from the agency's available funds.

21 5. Approval and final award of the contract for the
22 construction negotiated pursuant to this subsection shall occur no
23 later than one hundred twenty (120) days from the opening bid.
24

1 E. The Office is authorized to issue solicitations and award
2 statewide contracts for managed construction service delivery in
3 order to provide efficient and cost-effective procurement solutions
4 for public agencies. Statewide contracts may be either mandatory or
5 nonmandatory as determined by the ~~Director~~ Chief Operating Officer.

6 F. The Office is authorized to provide facility management and
7 operations and maintenance services for any state agency on a cost-
8 recovery basis for any facility operated by a state agency when:

9 1. The state agency initiates a request with the ~~Director~~ Chief
10 Operating Officer; or

11 2. The ~~Director~~ Chief Operating Officer determines a state
12 agency is performing in the bottom ten percent (10%) of all state
13 agencies with respect to performance measures for facility
14 management established by the Office.

15 G. In addition to the exception from this act hereby provided
16 to the Oklahoma State Regents for Higher Education and its
17 constituent institutions and the Commissioners of the Land Office,
18 the ~~Director~~ Chief Operating Officer may authorize an exemption to
19 the provisions of this act to any other state agency provided that
20 the recipient of the exemption:

21 1. Adopts standards, processes and procedures for planning,
22 budgeting, design, facility management, asset management and asset
23 preservation that are substantially compliant with those as
24 prescribed by the Office;

2. Adheres to procurement requirements of Sections 62 through 65 of this title and the provisions of this act;

3. Reports benchmark, budget and ongoing performance data required by the Office; and

4. Participates in annual performance reviews and organized forums for promoting best practices statewide as determined by the ~~Director~~ Chief Operating Officer.

SECTION 357. AMENDATORY 61 O.S. 2021, Section 208.2, as amended by Section 33, Chapter 238, O.S.L. 2022 (61 O.S. Supp. 2025, Section 208.2), is amended to read as follows:

Section 208.2. There is hereby created in the State Treasury a revolving fund for the Office of Management and Enterprise Services, to be designated the "State Construction Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all funds appropriated by the Legislature for projects included in the annual capital plan; funds from nonappropriated sources designated for projects within a capital plan; allocations from an approved annual capital plan designed for assessment and planning services; allocations from an approved annual capital plan for emergency response in accordance with Section 130 of this title; and fees collected by the Office in accordance with the provisions of this section or as otherwise provided by law. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Office.

1 The fund shall be used to pay expenses resulting from contracts
2 awarded by the Office and to defray Office operating costs and
3 expenses the Office incurs to support construction-related
4 operations. Expenditures from the fund shall be made upon warrants
5 issued by the State Treasurer against claims filed as prescribed by
6 law with the ~~Director~~ Chief Operating Officer of the Office of
7 Management and Enterprise Services for approval and payment.

8 SECTION 358. AMENDATORY 61 O.S. 2021, Section 209, as
9 amended by Section 34, Chapter 238, O.S.L. 2022 (61 O.S. Supp. 2025,
10 Section 209), is amended to read as follows:

11 Section 209. The ~~Director~~ Chief Operating Officer of the Office
12 of Management and Enterprise Services shall promulgate rules:

13 1. For state agencies to perform minor construction projects;

14 2. Specifying building codes pursuant to the Oklahoma Uniform
15 Building Code Commission Act for construction projects;

16 3. Permitting state agencies who have the expertise, upon
17 written application to the Office of Management and Enterprise
18 Services, to perform any part of the responsibilities of the Office
19 pursuant to the provisions of the Public Facilities Act for a
20 specific project;

21 4. Specifying procedures and guidelines for the implementation
22 of shared savings financing by state agencies;

23 5. Specifying energy conservation performance guidelines, for
24 conducting a life cycle cost analysis of alternative architectural

1 and engineering designs and alternative major items of energy-
2 consuming equipment to be retrofitted in existing state-owned or
3 leased structures and for developing energy performance indices to
4 evaluate the efficiency of energy utilization for completing designs
5 in the construction of state-financed and leased structures;

6 6. The time, manner, authentication, and form of making
7 requisitions to the Office;

8 7. The form and manner of submission for bids or proposals and
9 the manner of accepting and opening bids or proposals that may
10 include online bids pursuant to the Oklahoma Online Bidding Act;

11 8. The manner for a state agency to acquire services for
12 construction projects;

13 9. Conditions under which any of the rules herein authorized
14 may be waived;

15 10. The form of any document the ~~Director~~ Chief Operating
16 Officer requires;

17 11. Specifying provisions a state agency shall follow to adhere
18 to acquisition, contract, contract management and other provisions
19 of this title; and

20 12. Specifying the process a state agency shall follow to
21 establish the scope of work, schedule and cost estimate for all
22 publicly bid construction projects involving construction or
23 renovation of buildings.
24

1 SECTION 359. AMENDATORY 61 O.S. 2021, Section 211, as
2 amended by Section 36, Chapter 238, O.S.L. 2022 (61 O.S. Supp. 2025,
3 Section 211), is amended to read as follows:

4 Section 211. When any state agency or department must replace
5 or supplement major items of energy-consuming equipment in existing
6 state-owned or leased structures or any self-contained unit of any
7 structure with other major items of energy-consuming equipment, the
8 selection of such items shall be made on the basis of a life cycle
9 cost analysis of alternatives in accordance with rules and
10 regulations promulgated by the ~~Director~~ Chief Operating Officer of
11 the Office of Management and Enterprise Services.

12 SECTION 360. AMENDATORY 61 O.S. 2021, Section 317, as
13 amended by Section 43, Chapter 238, O.S.L. 2022 (61 O.S. Supp. 2025,
14 Section 317), is amended to read as follows:

15 Section 317. The Office of Management and Enterprise Services is
16 hereby authorized and empowered to sell and execute oil and gas
17 leases, and other mining leases, on any of the lands of this state
18 under the control of said Office of Management and Enterprise
19 Services. Sale of Oklahoma State Capitol lands or parkways or the
20 Executive Mansion lands shall be made upon a basis of a retained
21 royalty of not less than one-eighth (1/8) of all the oil, gas, and
22 other minerals produced therefrom, and such additional cash bonus as
23 may be procured. Such leases shall contain a provision that in the
24 event of the discovery of natural gas, gas shall be furnished free

1 of charge to any state institution located or hereafter located upon
2 the lands covered by said lease, or leases. Said leases shall be
3 sold only after advertisement for a period of three (3) weeks
4 electronically on an authorized state website and in a legal
5 newspaper published and of general circulation in the county in
6 which said lands are located. The sale shall be made to the highest
7 responsible bidder, and all bids for any tract shall be presented to
8 the Office of Management and Enterprise Services electronically or
9 in sealed envelopes, and shall all be opened and considered at the
10 same time. Said Office of Management and Enterprise Services shall
11 have the right to reject any and all of said bids and again
12 readvertise said lease, or leases, for sale.

13 The Office of Management and Enterprise Services is further
14 authorized to make and promulgate such additional rules and
15 regulations as he may deem necessary and for the best interest of
16 the state in facilitating the sale of said leases. The ~~Director~~
17 Chief Operating Officer may contract with other state agencies to
18 implement the provisions of this section and any expenses charged
19 under such contract may be paid from the proceeds of the lease.

20 All monies derived from the sale of any and all of said leases,
21 and from any royalties subsequently accruing, after deduction of the
22 amount required to pay necessary and actual expenses of developing
23 the lease, shall be paid into the State Treasury and credited to the
24 Maintenance of State Buildings Revolving Fund.

SECTION 361. AMENDATORY 61 O.S. 2021, Section 322, is amended to read as follows:

Section 322. A. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services is hereby authorized to grant easements, rights-of-way, and enter into contracts authorizing the construction and maintenance of telephone, electric transmission and distribution lines, railroad lines, telegraph lines, and pipelines across any state lands under the management of said ~~Director~~ Chief Operating Officer, and all lands set apart for the use and benefit of any state agency, department, or institution including all lands set apart for use of colleges, universities, hospitals, and eleemosynary institutions. Said easements and rights-of-way grants shall be for a period not to exceed twenty (20) years and shall provide for such considerations, terms, and conditions including privileges and conditions of renewal, as the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services may determine advisable for the best interests of the state institutions in possession thereof.

B. The Commissioners of the Land Office, the Oklahoma Ordnance Works Authority, the Midwestern Oklahoma Development Authority, the Oklahoma Department of Transportation, the Oklahoma Turnpike Authority, the Northeast Oklahoma Public Facilities Authority and the Department of Wildlife Conservation and their lands shall be exempt from the application of this section.

1 SECTION 362. AMENDATORY 61 O.S. 2021, Section 323, as
2 amended by Section 44, Chapter 238, O.S.L. 2022 (61 O.S. Supp. 2025,
3 Section 323), is amended to read as follows:

4 Section 323. A. The ~~Director~~ Chief Operating Officer of the
5 Office of Management and Enterprise Services is hereby authorized to
6 lease for a temporary period of time the surface of any of the lands
7 belonging to the state described in Section 322 of this title, which
8 are not needed or required for the proper maintenance of the
9 institutions or departments in possession thereof.

10 B. Leases shall be for a period of time not exceeding five (5)
11 years and upon such other terms and conditions as the ~~Director~~ Chief
12 Operating Officer may determine to be in the best interests of the
13 state.

14 C. Leases shall provide for a termination of the lease upon
15 reasonable notice in writing whenever the needs of the state or the
16 institution in possession thereof requires the land.

17 D. The ~~Director~~ Chief Operating Officer may also execute lease
18 contracts for the lands to any institution or agency or department,
19 commission, or municipal subdivision that requires the need of the
20 land in conjunction with cooperation or participation in any city or
21 state project authorized by law, if contracts or agreements will not
22 interfere with or restrict in any manner, the proper use of the
23 lands by the state institution in possession thereof.

1 E. The Commissioners of the Land Office, the Oklahoma Ordnance
2 Works Authority, the Midwestern Oklahoma Development Authority, the
3 Oklahoma Department of Transportation, the Oklahoma Turnpike
4 Authority and the Northeast Oklahoma Public Facilities Authority and
5 their lands shall be exempt from the application of this section.

6 F. Lands leased to private prison contractors pursuant to
7 Section 561 of Title 57 of the Oklahoma Statutes shall be exempt
8 from the application of this section.

9 SECTION 363. AMENDATORY 61 O.S. 2021, Section 324, as
10 amended by Section 45, Chapter 238, O.S.L. 2022 (61 O.S. Supp. 2025,
11 Section 324), is amended to read as follows:

12 Section 324. The ~~Director~~ Chief Operating Officer of the Office
13 of Management and Enterprise Services is authorized and directed to
14 take charge of, manage, and lease "Capitol Building Lands",
15 described as follows:

16 Lots 35, 36, 37, and 38 Northeast Highland Addition to Oklahoma
17 City, Oklahoma, known as Tract No. 44, being a part of Section 22 -
18 Twp. 12N - R - 3 West.

19 Lots 7, 8, 9, and 10, Block 1, Donley Heights, a subdivision of
20 Blocks 19 and 20, Barrows Second Addition to Oklahoma City,
21 Oklahoma. Lots 31 and 32, Block 4, of the subdivision of Lots 9 and
22 10, and 23 and 24 of Barrows First and Second Additions to Oklahoma
23 City, Oklahoma. Lots 11 and 12, Block 3, Northeast Highland
24 Addition, being a part of Blocks 25 and 26, Barrows Second Addition

1 to Oklahoma City, Oklahoma. All of the above lots in Barrows
2 Addition being known as Tract No. 41.

3 Also the following acreage tracts of land:

4 Five (5) acres, situated one and one-half (1 1/2) miles East and
5 one and one-half (1 1/2) miles North of the State Capitol Building,
6 facing on Eastern Avenue and laying directly South of Springlake
7 Park, and known as Tract No. 28. Also described as S 1/2 of SE 1/4
8 of NE 1/4 of SE 1/4 of Section 14, Township 12 North, Range 3 West.

9 Also other lots and tracts not listed or described above
10 constituting the small balance of "State Capitol Building Land" not
11 heretofore disposed of pursuant to the provision of Chapter 298,
12 Session Laws 1919.

13 SECTION 364. AMENDATORY 61 O.S. 2021, Section 327, as
14 amended by Section 47, Chapter 238, O.S.L. 2022 (61 O.S. Supp. 2025,
15 Section 327), is amended to read as follows:

16 Section 327. A. Unless procedures for state agency real
17 property transactions are otherwise specifically provided for by
18 law, no state agency shall sell, lease, exchange, or otherwise
19 dispose of such real property subject to its jurisdiction, or lease,
20 purchase or otherwise acquire real property subject to its
21 jurisdiction, except as authorized by subsection L of this section
22 and as otherwise provided for in this section. As used in this
23 section, "state agency" means any department, board, commission,
24 institution, agency or entity of state government.

1 B. 1. Every state agency shall request the Office of
2 Management and Enterprise Services to dispose of real property upon:

- 3 a. legislative authorization,
4 b. authorization by the Long-Range Capital Planning
5 Commission, or
6 c. a determination, in writing, by the Office of
7 Management and Enterprise Services or the state agency
8 that a parcel of real property subject to its
9 jurisdiction is no longer needed.

10 2. Upon the request of the state agency to dispose of real
11 property, the Office of Management and Enterprise Services shall
12 estimate the value of the property, and:

- 13 a. for properties with an estimated value of greater than
14 Twenty-five Thousand Dollars (\$25,000.00), obtain at
15 least one complete appraisal made by a person
16 certified by the Real Estate Appraiser Board of the
17 Oklahoma Insurance Department, who shall ascertain:
18 (1) the present fair value of the property,
19 (2) the present value of the improvements on such
20 property, and
21 (3) the actual condition of the improvements on the
22 property,
23 b. after completion of the provisions of subsection L of
24 this section, cause notice of such sale to be

published for at least one (1) day in a newspaper of general statewide circulation authorized to publish legal notices, and weekly for three (3) consecutive weeks in a newspaper of general circulation published in the county or counties in which the property is located. The notice shall contain the legal description of each parcel of real property to be offered for sale, the appraised value thereof, the time and location of the sale or opening of the bids, and terms of the sale including the fact that no parcel of property shall be sold for less than ninety percent (90%) of the appraised value of the real property; provided, in lieu of such procedure, the information may be published electronically on the Office of Management and Enterprise Services' website if the notice of sale and instructions on accessing the public information are published in a newspaper of general circulation in the county or counties in which the property is located weekly for three (3) consecutive weeks,

c. offer the property through electronic auction, public auction or sealed bids within three (3) weeks after the last publication of the notice. The property shall be sold to the highest bidder. The Office of

1 Management and Enterprise Services shall not accept a
2 bid of less than ninety percent (90%) of the average
3 appraised fair value of the property and the
4 improvements on such property,

5 d. if the property is being disposed of in compliance
6 with Section 908 of Title 62 of the Oklahoma Statutes,
7 the Office may auction the property at public or
8 electronic auction provided proper public notice is
9 given in compliance with this section and the property
10 has been approved for liquidation by the Long-Range
11 Capital Planning Commission. The Office of Management
12 and Enterprise Services is authorized to reject all
13 bids,

14 e. if the property has an estimated value of less than
15 Twenty-five Thousand Dollars (\$25,000.00), the Office
16 of Management and Enterprise Services may establish
17 the value through market comparison and may dispose of
18 the property based on estimated value without
19 obtaining a certified appraisal; provided, however,
20 the sale shall comply with all other requirements of
21 statute, and

22 f. if the property is landlocked, the Office of
23 Management and Enterprise Services may offer the
24 property through indirect sale to the adjacent

property owner for not less than ninety percent (90%) of fair market value, as determined in compliance with this section. All sales costs, including any required surveys and appraisals, shall be at the expense of the buyer.

3. The cost of the appraisal required by the provisions of this section, together with other necessary expenses incurred pursuant to this section, shall be paid by the state agency for which the real property is to be sold from funds available to the state agency for such expenditure. All monies received from the sale or disposal of the property, except those monies necessary to pay the expenses incurred pursuant to this section, shall be deposited in the Maintenance of State Buildings Revolving Fund unless otherwise provided by law.

4. The Office of Management and Enterprise Services may dismiss from consideration any appraisal found to be incomplete or flawed.

C. Unless otherwise provided by law, the Office of Management and Enterprise Services shall review and approve state agency real property transactions. A state agency shall not lease or acquire real property, or lease, dispose of or transfer state-owned real property until the Office provides notice of transaction approval to the state agency. Prior to approval, a state agency shall provide documents to the Office and provide reference to statutory or other legal authority of the state agency to lease or acquire real

1 property, or lease, dispose of or transfer state-owned real
2 property. If the state agency intends to lease or acquire real
3 property, the state agency shall state the intended use of the real
4 property, and shall provide the Office with required telework
5 documentation. Within thirty (30) days of receipt, the Office shall
6 provide notice of transaction approval or disapproval to the state
7 agency.

8 D. The provisions of this section shall not apply to the lease
9 of office space or real property subject to supervision of the
10 Commissioners of the Land Office or district boards of education.

11 E. 1. The Office of Management and Enterprise Services shall
12 maintain a comprehensive inventory of state-owned real property and
13 its use excluding property of the public schools and property
14 subject to the jurisdiction of the Commissioners of the Land Office.

15 2. Each state agency shall, within thirty (30) days of the
16 closing date for lands newly acquired, provide to the Office a list
17 of records, deeds, abstracts and other title instruments showing the
18 description of and relating to any and all such lands or interests
19 therein.

20 3. The provisions of paragraph 2 of this subsection shall apply
21 to all lands of public trusts having a state agency as the primary
22 beneficiary, but shall not apply to lands of municipalities,
23 counties, school districts, or agencies thereof, or Department of
24 Transportation rights-of-way.

1 4. A state agency that sells or otherwise disposes of land
2 shall notify the Office within thirty (30) days of the disposition
3 closing date.

4 F. This section shall not be construed to authorize any state
5 agency, not otherwise authorized by law, to sell, lease, or
6 otherwise dispose of any real property owned by the state.

7 G. The Office of Management and Enterprise Services and the
8 Secretary of the Commissioners of the Land Office, or designee, as
9 provided in subsection L of this section may provide services to
10 sell, transfer, trade or purchase real property for other state
11 agencies.

12 H. The ~~Director~~ Chief Operating Officer of the Office of
13 Management and Enterprise Services shall, pursuant to the
14 Administrative Procedures Act, promulgate rules to effect procedures
15 necessary to the fulfillment of its responsibilities under this
16 section.

17 I. The Oklahoma Ordnance Works Authority and its lands, and the
18 Northeast Oklahoma Public Facilities Authority, the Oklahoma
19 Historical Society, the Oklahoma Department of Transportation, the
20 Oklahoma Turnpike Authority and the Department of Wildlife managed
21 lands shall be exempt from the application of this section. The
22 Grand River Dam Authority and its lands shall be exempt from the
23 application of this section for any real property disposed of prior
24 to November 1, 2006.

1 J. Unless otherwise provided for by law, the procedures
2 established pursuant to this section for the sale or exchange of
3 real estate or personal property as authorized pursuant to Sections
4 2222 and 2223 of Title 74 of the Oklahoma Statutes shall be followed
5 unless the sale is to an entity of state government.

6 K. The ~~Director~~ Chief Operating Officer of the Office of
7 Management and Enterprise Services shall contract with experts,
8 professionals or consultants as necessary to perform the duties of
9 the Office. Selections shall be made using the qualifications-based
10 procedures established in Section 62 of this title and the rules
11 promulgated by the ~~Director~~ Chief Operating Officer for the
12 selection of construction managers and design consultants.

13 L. 1. No state agency shall sell, lease, exchange, or
14 otherwise dispose of such real property subject to its jurisdiction,
15 or lease, purchase or otherwise acquire real property subject to its
16 jurisdiction, until such agency or the Office of Management and
17 Enterprise Services acting on the agency's behalf has presented to
18 the Secretary of the Commissioners of the Land Office, or designee,
19 all information collected pursuant to subparagraph a of paragraph 2
20 of subsection B of this section, and provided the Secretary of the
21 Commissioners of the Land Office or designee a twenty-calendar-day
22 period to provide a proposal for the acquisition or disposal of
23 applicable real property.

2. The Secretary of the Commissioners of the Land Office or designee may decline to provide such a proposal; provided such notice of decline is communicated to the Office of Management and Enterprise Services in written or electronic form. Upon the reception of such notice of decline by the Office of Management and Enterprise Services, the twenty-calendar-day period otherwise required by this subsection shall be deemed to have expired.

SECTION 365. AMENDATORY 61 O.S. 2021, Section 327.1, as amended by Section 48, Chapter 238, O.S.L. 2022 (61 O.S. Supp. 2025, Section 327.1), is amended to read as follows:

Section 327.1. A. When historic significance, location, advancement of the long term capital asset plan or other factors make disposition of state-owned properties under Section 327 of this title not in the best interest of the state, the Office of Management and Enterprise Services may invite the presentation of written proposals for the purchase , lease, sale, exchange, construction, maintenance, repair, improvement, development, or redevelopment of state-owned property provided the property meets one or more of the following criteria:

1. The property is listed on the National Register of Historic Places;

2. The property is designated by the Oklahoma Historical Society as a property of historical interest or significance;

1 3. The property is located within the Oklahoma State Capitol
2 Complex; or

3 4. The property is located within a campus owned by the State
4 of Oklahoma.

5 B. Proposals shall be evaluated by a committee selected by the
6 ~~Director~~ Chief Operating Officer of the Office of Management and
7 Enterprise Services which shall include at least one member of the
8 Long-Range Capital Planning Commission or a designee. The
9 evaluation of the proposals shall be based on the principal criteria
10 of:

11 1. The proposal's economic benefits, cultural benefits, job
12 creation potential, advancement of long term capital asset plan or
13 other benefits to the State of Oklahoma and the general public;

14 2. The qualifications and experience of the construction or
15 maintenance provider, developer, or redeveloper;

16 3. The financial ability of the construction or maintenance
17 provider, developer, or redeveloper to complete the redevelopment in
18 a timely fashion; and

19 4. When applicable, the fidelity of the proposed renovation or
20 redevelopment with the historic significance of the property.

21 C. The Office of Management and Enterprise Services may enter
22 into negotiations with one or more respondents and may enter into
23 contracts with the respondent or respondents selected by the
24 committee.

1 The Office of Management and Enterprise Services may reject any
2 and all proposals.

3 SECTION 366. AMENDATORY 61 O.S. 2021, Section 330.1, as
4 amended by Section 49, Chapter 238, O.S.L. 2022 (61 O.S. Supp. 2025,
5 Section 330.1), is amended to read as follows:

6 Section 330.1. All instruments vesting any right, title or
7 interest in lands or minerals and mineral rights, providing for the
8 passage of title or release of interest to or from the Office of
9 Management and Enterprise Services or any other state agency,
10 whether as grantor or grantee, and all instruments to adjust any
11 defect or irregularity or to remove any cloud on the title to lands
12 or minerals or mineral rights owned by the state, and all notices
13 and orders issued by the Office of Management and Enterprise
14 Services and proofs of publication thereof, shall be filed and
15 recorded by the proper officers of all counties of the State of
16 Oklahoma at the request of the Office of Management and Enterprise
17 Services without any filing or recording fee being charged.

18 SECTION 367. AMENDATORY 62 O.S. 2021, Section 34.11.9,
19 is amended to read as follows:

20 Section 34.11.9. A. There is hereby established the Oklahoma
21 State Government Business Licensing One-Stop Program.

22 B. The Chief Information Officer shall promulgate procedures by
23 which state agencies shall enter into an arrangement with the Office
24

1 of Management and Enterprise Services for the provision of a real-
2 time licensing and permitting one-stop web-based offering.

3 C. Real-time licensing and permitting services shall be made
4 available to the public through the website *Business.ok.gov* and
5 shall be offered through the 2nd Century Entrepreneurship Center
6 business licensing framework.

7 D. The 2nd Century Entrepreneurship Center and all
8 corresponding assets and personnel are hereby transferred from the
9 Oklahoma Department of Commerce to the Information Services Division
10 of the Office of Management and Enterprise Services.

11 E. The Chief Information Officer may grant an exemption from
12 the requirements of this section to state agencies which offer
13 licensing and permitting procedures requiring documentation that
14 cannot be provided through a web-based portal. Exemptions shall be
15 limited to individual licensing processes, shall not be granted on
16 an agency-by-agency basis and shall be reported according to the
17 requirements of subsection D of Section 34.24.1 of this title. Each
18 exemption shall be renewed on an annual basis.

19 F. State agencies shall comply with procedures promulgated
20 pursuant to the terms of this section.

21 SECTION 368. AMENDATORY Section 1, Chapter 346, O.S.L.
22 2025 (62 O.S. Supp. 2025, Section 34.401), is amended to read as
23 follows:
24

1 Section 34.401. In addition to other duties imposed upon the
2 Office of Management and Enterprise Services (OMES) by law, the
3 ~~Director~~ Chief Operating Officer of the Office of Management and
4 Enterprise Services shall ensure that the following procedures are
5 strictly adhered to with respect to the Oklahoma Department of
6 Mental Health and Substance Abuse Services:

7 1. In accordance with paragraph 3 of subsection A of Section
8 34.6 of this title, prior to releasing the one-twelfth (1/12)
9 appropriations disbursement, OMES shall conduct a review of the
10 agency's budget to actuals to ensure the agency is staying within
11 budget constraints;

12 2. OMES shall provide a report to the Governor, the Speaker of
13 the Oklahoma House of Representatives, the President Pro Tempore of
14 the Oklahoma State Senate, and the chairs and vice-chairs of the
15 standing committees of the Oklahoma House of Representatives and the
16 Oklahoma State Senate having primary responsibility for the
17 consideration of agency appropriations concerning the status of
18 revenue and expenditures of the agency;

19 3. The Oklahoma Department of Mental Health and Substance Abuse
20 Services shall be prohibited from entering into contracts that do
21 not clearly state a maximum fiscal obligation;

22 4. OMES shall review encumbrances for any multi-year purchase
23 orders or contracts to ensure that only the anticipated amount of
24 funds for the current fiscal year are encumbered; and

5. OMES shall prohibit the processing of payments for non-budgeted expenditures.

SECTION 369. AMENDATORY 62 O.S. 2021, Section 35.5, is amended to read as follows:

Section 35.5. A. 1. All state agencies shall provide to the Chief Information Officer a list of information technology assets of the agency which are integral to agency-specific applications or functions and a list of information technology positions which are directly associated with the assets. The agency shall further provide the reference to federal or state statutory or constitutional provisions which require it to perform the applications or functions.

2. If the Chief Information Officer disputes the identification of assets or positions provided by a state agency as being integral to agency-specific applications or functions, the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services shall make the final determination.

B. Not later than December 1 of each year, the Chief Information Officer shall modify the assessment required by subsection D of Section 34.11.1 of this title to include identification of:

1. All information technology assets of all state agencies, which are not integral to agency-specific applications or functions, and the transfer of which to the Information Services Division of

1 the Office of Management and Enterprise Services and the Chief
2 Information Officer would result in a cost savings to the taxpayers
3 of this state or improved efficiency of state government operations,
4 including all furniture, equipment, vehicles, supplies, records,
5 current and future liabilities, fund balances, encumbrances,
6 obligations, and indebtedness associated with the information
7 technology assets;

8 2. All information technology positions associated with the
9 information technology assets identified pursuant to paragraph 1 of
10 this subsection. The assessment shall identify the amount of
11 compensation and related liabilities for accrued sick leave, annual
12 leave, holidays, unemployment benefits, and workers' compensation
13 benefits for the positions;

14 3. The amount of savings to the taxpayers of this state
15 resulting from the provisions of the Information Technology
16 Consolidation and Coordination Act; and

17 4. Any changes in law required or any changes to the amount of
18 state appropriations or other state funds associated with the
19 transfer of the information technology assets or positions.

20 C. The information technology assets and positions of each
21 appropriated state agency identified pursuant to this section shall
22 be transferred as part of the consolidation of information
23 technology operations of the state agency to the Information
24 Services Division of the Office of Management and Enterprise

Services when determined by the Information Services Division. The costs of operation, maintenance, licensing and service of the information technology assets shall remain the responsibility of the state agency from which the assets are transferred until the state agency information technology operations are consolidated in the Information Services Division, unless otherwise agreed to by the state agency and the Information Services Division. Appropriate conveyances and other documents shall be executed to effectuate the transfer of the information technology assets and positions to the Information Services Division of the Office of Management and Enterprise Services.

D. The Chief Information Officer shall recommend changes to the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services and the Governor for inclusion in the next executive budget to be submitted to the Legislature.

E. The Information Services Division shall provide shared services to each state agency and shall bill agencies for those shared services at an estimated cost to provide the services. The estimated cost shall include the full cost of the services, including materials, depreciation related to capital costs, labor, and administrative expenses of the Information Services Division of the Office of Management and Enterprise Services in connection with the operation of the data center and Information Services Division operations and shall include expenses associated with acquiring,

installing, and operating information technology and telecommunications infrastructure, hardware and software for use by state agencies. The Information Services Division shall publish a schedule of costs for each available shared service and shall enter into an agreement with each state agency for the shared services that will be provided to the agency. The aggregated cost of shared services to be provided to each state agency shall be budgeted annually as a separate line item through each state agency. State agencies shall process request for payments as provided for under the agreement entered into with the Information Services Division in a timely manner. If payments are deemed to be delinquent for shared services provided to a state agency, the Information Services Division may request the Division of Central Accounting and Reporting of the Office of Management and Enterprise Services to create vouchers and process payments to the Information Services Division against the funds of the delinquent state agency. If the state agency for which shared services were provided disputes the provision of shared services in accordance with its agreement with the Information Services Division, no voucher shall be processed against the funds of the delinquent agency until the dispute over services has been resolved, at which point a voucher may be processed in accordance with the terms of the dispute resolution.

F. The Information Services Division of the Office of Management and Enterprise Services shall succeed to any contractual

1 rights, easement rights, lease rights, and other similar rights and
2 responsibilities related to the information technology assets that
3 are transferred as provided for in this section and incurred by an
4 appropriated state agency.

5 SECTION 370. AMENDATORY 62 O.S. 2021, Section 35.7, is
6 amended to read as follows:

7 Section 35.7. A. A state agency may apply to the Chief
8 Information Officer for an exemption from any provisions of the
9 Information Technology Consolidation and Coordination Act or for an
10 extension of any deadline specified in the Act, if it determines
11 that compliance with the provisions of the Act would:

12 1. Cause it to be in violation of federal law or regulations or
13 in violation of any provision of the Oklahoma Constitution or
14 statutes;

15 2. Result in a loss of federal funds to the state; or

16 3. Create an impediment to the performance of a unique agency
17 function that is not duplicated by another state agency and is
18 required by the Oklahoma Statutes or Constitution or by federal law.

19 B. Any state agency applying for an exemption or extension
20 pursuant to this section shall provide written documentation of the
21 circumstances to the Chief Information Officer. After reviewing the
22 documentation, the Chief Information Officer shall grant or deny the
23 application. If the state agency disputes the decision of the Chief
24

1 Information Officer, the ~~Director~~ Chief Operating Officer of the
2 Office of Management and Enterprise Services shall make the final
3 determination as to whether the exemption or extension will be
4 granted.

5 SECTION 371. AMENDATORY 62 O.S. 2021, Section 35.9, is
6 amended to read as follows:

7 Section 35.9. Quarterly progress reports.

8 In addition to any other reporting requirements required by law,
9 the Chief Information Officer shall submit quarterly progress
10 reports to the ~~Director~~ Chief Operating Officer of the Office of
11 Management and Enterprise Services, the Speaker of the House of
12 Representatives and the President Pro Tempore of the Senate. The
13 reports shall be submitted not later than January 31, April 30, July
14 31 and October 31 of each year and shall include, but not be limited
15 to, the following information:

16 1. The status of the implementation of the plan of action
17 required in paragraph 2 of subsection D of Section 34.11.1 of this
18 title;

19 2. A list of information technology assets and positions
20 transferred to the Information Services Division of the Office of
21 Management and Enterprise Services pursuant to the provisions of
22 subsection C of Section 35.5 of this title;

23 3. After July 1, 2012, and until the information technology
24 consolidation is completed, an annual reduction of three percent

(3%) in operational information technology and telecommunications expenditures realized in the aggregate by all consolidated state agencies;

4. A list of all state agencies which are not using the shared services as required in Section 35.6 of this title;

5. A list of all exemptions or extensions granted pursuant to the provisions of Section 35.7 of this title; and

6. Any other information as deemed appropriate by the Chief Information Officer.

SECTION 372. AMENDATORY 62 O.S. 2021, Section 36, is amended to read as follows:

Section 36. A. There is hereby created in the State Treasury a fund for the Office of Management and Enterprise Services to be designated the "Digital Transformation Program Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of monies designated to the fund by law. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Office of Management and Enterprise Services for the purpose of implementing digital transformation initiatives, and upon request of the Oklahoma Department of Commerce, to pay for administrative support expenses for the Rural Broadband Expansion Council as provided by Section 3 of this act. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by

1 law with the ~~Director~~ Chief Operating Officer of the Office of
2 Management and Enterprise Services for approval and payment.

3 B. Monthly the ~~Director~~ Chief Operating Officer of the Office
4 of Management and Enterprise Services shall submit reports to the
5 Speaker of the Oklahoma House of Representatives, the President Pro
6 Tempore of the Oklahoma State Senate, the Chair of the
7 Appropriations and Budget Committee of the Oklahoma House of
8 Representatives and the Chair of the Appropriations Committee of the
9 Oklahoma State Senate detailing:

10 1. Expenditures from the Digital Transformation Program
11 Revolving Fund; and

12 2. Projects under consideration for future expenditures from
13 the fund.

14 SECTION 373. AMENDATORY 62 O.S. 2021, Section 45.3, is
15 amended to read as follows:

16 Section 45.3. A. Each state agency shall make a strategic plan
17 for its operations. The first strategic plans will be due October
18 1, 2001, and in each subsequent even-numbered year. Each state
19 agency plan shall cover five (5) fiscal years beginning with the
20 next odd-numbered fiscal year.

21 B. The Office of Management and Enterprise Services shall
22 determine the elements required to be included in each agency's
23 strategic plan. Unless modified by the Office of Management and
24 Enterprise Services, and except as provided by subsection C of this

section, a plan must include, but is not limited to, the following items:

1. A statement of the mission and goals of the state agency;
2. A description of the indicators developed under this act and used to measure the output and outcome of the agency and its programs;
3. Identification of the groups of people served by the agency, including those having service priorities, or other service measures established by law, and estimates of changes in those groups expected during the term of the plan;
4. An analysis of the use of the agency's resources to meet the agency's mission, including future needs, and an estimate of additional resources that may be necessary to achieve said mission;
5. An analysis of expected changes in the services provided by the agency because of changes in state or federal law;
6. A description of the means and strategies, including cost-containment strategies and efficiency proposals, for meeting the agency's needs, including future needs, and achieving the goals for each area of state government for which the agency provides services;
7. A summary of the capital improvement needs of the agency which were provided to the Long-Range Capital Planning Commission as required by Section 901 of this title; and
8. Other information that may be required.

1 C. A state agency's plan that does not include an item
2 described by subsection B of this section must include the reason
3 the item does not apply to the agency.

4 D. Each state agency's plan shall be submitted at the same time
5 as the estimate of funds needed developed pursuant to Section 34.36
6 of this title.

7 E. A state agency shall send one copy of the plan each to:

8 1. The Governor;

9 2. The President Pro Tempore of the State Senate;

10 3. The Speaker of the House of Representatives;

11 4. The Legislative Oversight Committee on State Budget
12 Performance;

13 5. The Chair and Vice Chair of the Joint Committee on
14 Accountability in Government;

15 6. The ~~Director~~ Chief Operating Officer of the Office of
16 Management and Enterprise Services; and

17 7. The State Auditor and Inspector.

18 F. In this section, "capital improvement" means any building or
19 infrastructure project that will be owned by the state and built
20 with direct appropriations or with the proceeds of state-issued
21 bonds or paid from revenue sources other than general revenue at a
22 cost of at least Twenty-five Thousand Dollars (\$25,000.00) and has a
23 useful life of at least five (5) years.

SECTION 374. AMENDATORY 62 O.S. 2021, Section 45.4, is amended to read as follows:

Section 45.4. The official forms which must be used in making those plans shall be approved or furnished by the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services.

SECTION 375. AMENDATORY 62 O.S. 2021, Section 45.11, is amended to read as follows:

Section 45.11. A. No later than October 1 of each year, each state agency shall submit a program management and performance report to the Chair and Vice Chair of the House Appropriations and Budget Committee, the Chair and Vice Chair of the Senate Appropriations Committee, the Chair and Vice Chair of the Senate Finance Committee, and the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services. The report shall contain, at a minimum, detailed data for each agency program relating to each of the evaluation factors set out in Section 45.9 of Title 62 of the Oklahoma Statutes. It shall also list:

1. Specific cost avoidance and cost containment measures implemented during the previous fiscal year;
2. The agency's methodology for:
 - a. determining its fee structure,
 - b. calculating fees, and
 - c. measuring customer satisfaction;

1 3. Programs or operations not required for the agency's core
2 function; and

3 4. Details showing the actual cost of any programs or
4 operations listed under paragraph 3 of this subsection.

5 B. For purposes of this section:

6 1. "State agency" means a governmental agency as defined in
7 Section 34.29 of Title 62 of the Oklahoma Statutes that receives an
8 appropriation and is authorized to adopt a fee; and

9 2. "Program" means a service, contract, operation or procedure
10 of an agency.

11
12 SECTION 376. AMENDATORY 62 O.S. 2021, Section 46.5, is
13 amended to read as follows:

14 Section 46.5. A. There is hereby created until July 1, 2023,
15 the "State Revenue Apportionment Evaluation Commission".

16 B. The Commission shall consist of nine (9) members to be
17 appointed or selected as follows:

18 1. Two persons appointed by the Governor;

19 2. Two persons to be appointed by the Speaker of the Oklahoma
20 House of Representatives, one member of the majority party and one
21 member of the minority party;

1 3. Two persons to be appointed by the President Pro Tempore of
2 the Oklahoma State Senate, one member of the majority party and one
3 member of the minority party;

4 4. The Executive Director of the Oklahoma Tax Commission or a
5 designee;

6 5. The ~~Director~~ Chief Operating Officer of the Office of
7 Management and Enterprise Services or a designee; and

8 6. The State Treasurer or a designee.

9 C. Any person appointed to the Commission pursuant to
10 subsection B of this section shall serve at the pleasure of the
11 appointing authority and may be removed by such appointing authority
12 without cause.

13 D. The Commission shall hold an organizational meeting not
14 later than sixty (60) days after the effective date of this act and
15 shall select from among its membership a chair and vice-chair.

16 E. The Commission shall be subject to the provisions of the
17 Oklahoma Open Meeting Act and the Oklahoma Open Records Act.

18 F. The Commission shall be authorized to meet as often as
19 required in order to perform the duties imposed upon it by law.

20 G. Staff assistance to the Commission shall be provided by the
21 Oklahoma House of Representatives, the Oklahoma State Senate, the
22 Office of Management and Enterprise Services and the Oklahoma Tax
23 Commission.
24

1 H. The Commission shall analyze the state revenue system with
2 special emphasis on the amount of revenue which is apportioned for
3 purposes other than expenditures from the General Revenue Fund of
4 the State Treasury. The Commission shall prepare a summary, within
5 one hundred twenty (120) days after the end of each fiscal year, of
6 the revenue sources which are apportioned to destinations other than
7 the General Revenue Fund, the amount of revenue apportioned to those
8 sources or purposes and the tax or other revenue system from which
9 the apportionment is derived, the total amount of revenue from the
10 state tax and revenue structure that is apportioned for purposes
11 other than expenditures from the General Revenue Fund, a summary of
12 any changes to apportionments enacted during the immediately
13 preceding regular session of the Legislature and any other
14 information which the Commission determines to be necessary for a
15 complete analysis of the topic of apportioned revenues.

16 I. The annual report required by subsection H of this section
17 shall be delivered to the Governor, the Speaker of the Oklahoma
18 House of Representatives and the President Pro Tempore of the State
19 Senate by the deadline prescribed in subsection H of this section.
20 The annual report shall also be posted to the Internet website of
21 the Oklahoma Tax Commission.

22 SECTION 377. AMENDATORY 62 O.S. 2021, Section 48, is
23 amended to read as follows:
24

1 Section 48. A. There is hereby created in the State Treasury a
2 revolving fund for the Oklahoma Department of Commerce to be
3 designated the "Oklahoma Opportunity Fund". The fund shall be a
4 continuing fund, not subject to fiscal year limitations and shall
5 consist of:

6 1. All monies apportioned or allocated to the fund pursuant to
7 law;

8 2. Any amounts appropriated by the Legislature to the fund;

9 3. Interest earned on the investment of money in the fund; and

10 4. Gifts, grants, and other donations received for the fund.

11 B. All monies accruing to the credit of the fund are hereby
12 appropriated and may be budgeted and expended by the Governor for
13 the purposes of economic development and related infrastructure
14 development, subject to the unanimous approval of the Contingency
15 Review Board pursuant to subsection E of this section. Expenditures
16 from the fund shall be made upon warrants issued by the State
17 Treasurer against claims filed as prescribed by law with the
18 ~~Director~~ Chief Operating Officer of the Office of Management and
19 Enterprise Services for approval and payment.

20 C. Expenditures from the Oklahoma Opportunity Fund shall be
21 proposed by the Director of the Oklahoma Department of Commerce.
22 The Director of the Oklahoma Department of Commerce shall only
23 propose expenditures that the Director determines are expected to
24

1 result in a substantial economic benefit to the state through any of
2 the following:

3 1. The creation of new jobs which offer a basic health benefit
4 plan, as defined in the Oklahoma Quality Jobs Program Act;

5 2. The maintenance of existing jobs which are at risk for
6 termination;

7 3. Investment in new real property, plant or equipment or in
8 the improvement or retooling of existing plant or equipment; or

9 4. Additional revenues in either ad valorem, income or sales
10 and use taxes.

11 D. The Oklahoma Department of Commerce shall develop rules for
12 the process of reviewing proposed expenditures from the Oklahoma
13 Opportunity Fund and for determination of whether or not proposed
14 expenditures meet the criteria identified in subsection C of this
15 section. Criteria shall include requirements for economic impact,
16 local participation in the project and average wage thresholds.

17 E. No expenditure shall be made from the Oklahoma Opportunity
18 Fund unless such expenditure has been unanimously approved by the
19 Contingency Review Board.

20 F. The Oklahoma Department of Commerce shall administer the
21 Oklahoma Opportunity Fund. The Governor may, on behalf of this
22 state and with the express approval of the Contingency Review Board,
23 award monies by entering into a written agreement.
24

1 G. Before awarding any monies pursuant to subsection F of this
2 section, the Governor shall enter into a written agreement with the
3 entity to be awarded the money specifying that:

4 1. If any or all of the amount to be awarded is used to build a
5 capital improvement:

6 a. the state retains a lien or other interest in the
7 capital improvement in proportion to the amount
8 awarded by the written agreement for the capital
9 improvement, and

10 b. if the capital improvement is sold, the recipient of
11 the award shall:

12 (1) repay to the state the money awarded to pay for
13 the capital improvement, with interest at the
14 rate and according to the other terms provided by
15 the agreement, and

16 (2) share with the state a proportionate amount of
17 any profit realized from the sale; and

18 2. If, as of the date certain provided in the agreement, the
19 award recipient has not used monies awarded under this section for
20 the intended purposes, the recipient shall repay that amount and any
21 related interest to the state at the agreed rate and on the agreed
22 terms.

23 H. The Legislature finds that for profit entities, nonprofit
24 entities and state and local governmental entities that qualify for

1 funding pursuant to the provisions of this section are a source of
2 economic benefits for the state, its political subdivisions and its
3 residents that can only be achieved through the use of specialized
4 economic incentives. All expenditures from the Oklahoma Opportunity
5 Fund shall be deemed to be in furtherance of essential governmental
6 functions for public purposes as a method of promoting and
7 sustaining economic growth and activity within the State of
8 Oklahoma.

9
10 SECTION 378. AMENDATORY 62 O.S. 2021, Section 48.2, is
11 amended to read as follows:

12 Section 48.2. A. There is hereby created in the State Treasury
13 a revolving fund for the Oklahoma Department of Commerce to be
14 designated the Oklahoma Quick Action Closing Fund. The fund shall
15 be a continuing fund, not subject to fiscal year limitations and
16 shall consist of:

17 1. All monies apportioned or allocated to the fund pursuant to
18 law;

19 2. Any amounts appropriated by the Legislature to the fund;

20 3. Interest earned on the investment of money in the fund;

21 4. Gifts, grants, and other donations received for the fund;

22 and

23 5. Five percent (5%) of all funds paid by the Tax Commission to
24 establishments that execute contracts for payment of incentives

1 pursuant to the Oklahoma Quality Jobs Program Act and the 21st
2 Century Quality Jobs Incentive Act if the contract is executed on or
3 after the August 2, 2018.

4 B. All monies accruing to the credit of the fund are hereby
5 appropriated and may be budgeted and expended by the Governor for
6 the purposes of economic development and related infrastructure
7 development in instances in which expenditure of such funds would
8 likely be a determining factor in locating a high-impact business
9 project or facility in Oklahoma, in retaining such project or
10 facility within the state or for payment of rebates to a high impact
11 production pursuant to the Oklahoma Film Enhancement Rebate Program.
12 Expenditures from the fund shall be made upon warrants issued by the
13 State Treasurer against claims filed as prescribed by law with the
14 ~~Director~~ Chief Operating Officer of the Office of Management and
15 Enterprise Services for approval and payment.

16 C. In order to qualify for any funds from the Oklahoma Quick
17 Action Closing Fund, the establishment making application shall be
18 engaged in a business activity described by a North American
19 Industry Classification System (NAICS) Code used to define
20 eligibility for incentive payments from the Oklahoma Quality Jobs
21 Program Act as defined in Section 3603 of Title 68 of the Oklahoma
22 Statutes or a business activity described by Section 3603 of Title
23 68 of the Oklahoma Statutes or be engaged in a "basic industry" used
24 to define eligibility for incentive payments from the 21st Century

Quality Jobs Incentive Act as prescribed by Section 3913 of Title 68 of the Oklahoma Statutes or a high impact production company which has been approved for a rebate pursuant to the provisions of Section 3624 of Title 68 of the Oklahoma Statutes.

D. Except in the case of a high impact production company which has been approved for a rebate pursuant to the provisions of Section 3624 of Title 68 of the Oklahoma Statutes, the Governor shall not approve payments from the Oklahoma Quick Action Closing Fund unless the Department of Commerce has conducted a complete analysis of the potential impact of the applicant's business activity which shall include, but not be limited to:

1. The number of jobs to be created by a new business establishment;

2. The number of jobs to be retained by an existing business establishment;

3. The average salary of jobs to be created by a new establishment;

4. The average salary of jobs to be retained by an existing business establishment;

5. The total capital investment to be made by the business establishment;

6. The likelihood of other business establishments locating within the same vicinity or within the state as a result of the

1 business activity to be conducted by the entity to receive payments
2 from the Oklahoma Quick Action Closing Fund;

3 7. The impact on the economy of the area or community in which
4 the business activity of the applicant is or will be conducted; and

5 8. Such other factors as the Governor and the Department of
6 Commerce determine to be relevant.

7 E. The Oklahoma Department of Commerce shall administer the
8 Oklahoma Quick Action Closing Fund, and expenditures from the fund
9 shall be recommended by the Director of the Oklahoma Department of
10 Commerce to the Governor after a thorough evaluation of selected
11 projects or facilities or after a rebate is approved for payment to
12 a high impact production company pursuant to the provisions of
13 Section 3624 of Title 68 of the Oklahoma Statutes. Except for
14 rebates approved pursuant to the provisions of Section 3624 of Title
15 68 of the Oklahoma Statutes, the Director of the Oklahoma Department
16 of Commerce shall only recommend expenditures that the Director
17 determines are expected to result in a net economic benefit to the
18 state through the following:

19 1. The creation of new jobs which offer a basic health benefit
20 plan, as defined in the Oklahoma Quality Jobs Program Act;

21 2. The maintenance of existing jobs which are at a risk for
22 termination;

23 3. Investment in new real property, plant or equipment or in
24 the improvement or retooling of existing plant or equipment; or

1 4. Additional revenues in either ad valorem, income or sales
2 and use taxes.

3 F. The Oklahoma Department of Commerce shall develop rules for
4 the process of reviewing proposed expenditures from the Oklahoma
5 Quick Action Closing Fund and for the determination of whether or
6 not proposed expenditures meet the criteria identified in subsection
7 E of this section. Criteria shall include, but not be limited to,
8 requirements for economic impact, local participation in the
9 project, capital investment and average wage thresholds.

10 G. Upon receipt of an evaluation that recommends an expenditure
11 from the Oklahoma Quick Action Closing Fund from the Director of the
12 Oklahoma Department of Commerce, the Governor shall provide the
13 evaluation and recommendation to the President Pro Tempore of the
14 State Senate and the Speaker of the Oklahoma House of
15 Representatives before giving final approval for the expenditure on
16 the project. The Executive Office of the Governor shall recommend
17 final approval of an expenditure on a project pursuant to
18 consultation with the President Pro Tempore of the State Senate and
19 the Speaker of the Oklahoma House of Representatives.

20 H. Upon approval by the Governor, the Oklahoma Department of
21 Commerce shall enter into an agreement that sets forth the
22 conditions for payment of monies from the Oklahoma Quick Action
23 Closing Fund. The agreement must include:

24 1. The total amount of funds awarded;

2. Except in the case of a rebate approved for payment to a high impact production company pursuant to the provisions of Section 3624 of Title 68 of the Oklahoma Statutes, the performance conditions that must be met to obtain the award including, but not limited to, net new employment in the state, average salary, and total capital investment;

3. If appropriate, a baseline of current service and measure of enhanced capability;

4. The methodology of validating performance;

5. The schedule of payments from the fund, and claw-back provisions for failure to meet performance conditions; and

6. A requirement that no monies paid from the Oklahoma Quick Action Closing Fund shall be used by a recipient or any other person or entity for purposes of any political contribution to or on behalf of any candidate or for the support of or opposition to any measure including but not limited to an initiative petition or referendum.

I. The Department of Commerce shall make available on its website or other website dedicated for this purpose a complete disclosure of all payments made from the Oklahoma Quick Action Closing Fund. The disclosure shall include a description of the expenditures made by the business establishment with the payments made from the fund. No proprietary information of the business establishment shall be subject to the requirements of this subsection.

1 J. If any or all of the amount to be awarded is used to build a
2 capital improvement, except in the case of an amount approved for
3 payment to a high impact production company pursuant to the
4 provisions of Section 3624 of Title 68 of the Oklahoma Statutes:

5 1. The funds used for the capital improvement shall be deemed
6 to be held in trust for the benefit of the state and shall be
7 considered as a priority claim for purposes of federal bankruptcy
8 law; and

9 2. If the capital improvement is sold, the recipient of the
10 award shall:

11 a. repay the state the money awarded to pay for the
12 capital improvement, with interest at the rate and
13 according to the other terms provided by the
14 agreement, and

15 b. share with the state a proportionate amount of any
16 profit realized from the sale.

17 K. If, as of the date certain provided in the agreement, the
18 award recipient has not used monies awarded for the intended
19 purposes, the recipient shall repay that amount and any related
20 interest to the state at the agreed rate and on the agreed terms and
21 any such amounts shall be deemed to be held in trust for the benefit
22 of the state and shall be considered as a priority claim for
23 purposes of federal bankruptcy law.

SECTION 379. AMENDATORY 62 O.S. 2021, Section 49, is amended to read as follows:

Section 49. On or before November 1 of each year, the Office of Management and Enterprise Services shall develop and publish a multi-year trend analysis of the state's budget outlook which includes the current fiscal year, the ensuing fiscal year and the following two (2) fiscal years. The trend analysis shall include projections of revenues and expenditures reflecting the best available information concerning economic activity, population change, policy developments and other factors affecting the state budget. The analysis shall be provided to the President Pro Tempore of the Senate, members of the Senate Appropriations and Finance Committees, the Speaker of the House of Representatives and members of the House Appropriations and Budget Committee.

SECTION 380. AMENDATORY 62 O.S. 2021, Section 57.39, is amended to read as follows:

Section 57.39. The bonds and interest coupons attached thereto shall be delivered to the purchaser thereof only upon payment of par and accrued interest to the date of delivery thereof, together with any premium bid. The proceeds of the sale of said bonds shall be deposited in the State Treasury of this state, in a fund which is hereby created and designated the "1961 Building Bond Fund", where they shall remain subject to disposition to be provided for by the Legislature of this state, provided that the State Treasurer, when

1 so directed by the ~~Director~~ Chief Operating Officer of the Office of
2 Management and Enterprise Services and the Oklahoma State Regents
3 for Higher Education acting on behalf of the governing boards,
4 according to the funds allocated, as to the amounts available for
5 investment shall invest said designated amounts of the 1961 Building
6 Bond Fund in direct obligations of the United States of America or
7 in certificates of deposits from banks in this state acceptable as
8 depositories by the State Treasurer when such certificates of
9 deposits are secured by acceptable collateral and yield as much as
10 or more than direct obligations of the United States of America.
11 All such investments of said monies must be so made that the same
12 shall mature in time to enable this state to issue warrants for
13 payment of the valid indebtedness incurred for the purpose for which
14 said bonds are issued, when the said indebtedness has been incurred
15 pursuant to legislative authority. The ~~Director~~ Chief Operating
16 Officer of the Office of Management and Enterprise Services and the
17 Oklahoma State Regents for Higher Education shall promptly certify
18 to the State Treasurer the amount of all sums not needed for payment
19 of construction and other legal expenditures payable from the 1961
20 Building Bond Fund to meet the construction payment schedule, and
21 upon receipt of such certification the State Treasurer shall
22 forthwith make the investment specified in this section. All
23 interest received by the State Treasurer upon the securities
24

referred to in this section shall be deposited in the 1961 Building Bond Fund.

SECTION 381. AMENDATORY 62 O.S. 2021, Section 57.69, is amended to read as follows:

Section 57.69. The bonds and interest coupons attached thereto shall be delivered to the purchaser thereof only upon payment of par and accrued interest to the date of delivery thereof, together with any premium bid. The proceeds of the sale of said bonds shall be deposited in the State Treasury to a fund which is hereby created and designated the "State of Oklahoma Institutional Building Bonds of 1965 Fund", where they shall remain subject to disposition to be provided for by the Legislature of this state, provided that the State Treasurer, when so directed by the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services and the Oklahoma State Regents for Higher Education acting on behalf of the governing boards, according to the funds allocated, as to the amounts available for investment shall invest said designated amounts of the State of Oklahoma Institutional Building Bonds of 1965 Fund in direct obligations of the United States of America or in certificates of deposits from banks in this state acceptable as depositories by the State Treasurer when such certificates of deposits are secured by the acceptable collateral and yield as much as or more than direct obligations of the United States of America. All such investments of said monies must be made so that the same

1 shall mature in time to enable this state to issue warrants for
2 payment of the valid indebtedness incurred for the purpose for which
3 said bonds are issued, when the said indebtedness has been incurred
4 pursuant to legislative authority. The ~~Director~~ Chief Operating
5 Officer of the Office of Management and Enterprise Services and the
6 Oklahoma State Regents for Higher Education shall promptly certify
7 to the State Treasurer the amount of all sums not needed for payment
8 of construction and other legal expenditures payable from the State
9 of Oklahoma Institutional Building Bonds of 1965 Fund to meet the
10 construction payment schedule, and upon receipt of such
11 certification the State Treasurer shall make the investment
12 specified in this section. All interest received by the State
13 Treasurer upon the securities referred to in this section shall be
14 deposited in the State of Oklahoma Institutional Building Bonds of
15 1965 Fund.

16 SECTION 382. AMENDATORY 62 O.S. 2021, Section 57.89, is
17 amended to read as follows:

18 Section 57.89. The bonds and interest coupons attached thereto
19 shall be delivered to the purchaser thereof only upon payment of par
20 and accrued interest to the date of delivery thereof, together with
21 any premium bid. The proceeds of the sale of said bonds shall be
22 deposited in the State Treasury, in a fund which is hereby created
23 and designated the "1965 Institutional Building Bond Fund Series C",
24 where they shall remain subject to disposition to be provided for by

1 the Legislature of this state, provided that the State Treasurer,
2 when so directed by the ~~Director~~ Chief Operating Officer of the
3 Office of Management and Enterprise Services and the Oklahoma State
4 Regents for Higher Education acting on behalf of the governing
5 boards, according to the funds allocated, as to the amounts
6 available for investment shall invest said designated amounts of the
7 1965 Institutional Building Bond Fund Series C in direct obligations
8 of the United States of America or in certificates of deposits from
9 banks in this state acceptable as depositories by the State
10 Treasurer when such certificates of deposits are secured by the
11 acceptable collateral and yield as much as or more than direct
12 obligations of the United States of America. All such investments
13 of said monies must be made so that the same shall mature in time to
14 enable this state to issue warrants for payment of the valid
15 indebtedness incurred for the purpose for which said bonds are
16 issued, when the said indebtedness has been incurred pursuant to
17 legislative authority. The ~~Director~~ Chief Operating Officer of the
18 Office of Management and Enterprise Services and the Oklahoma State
19 Regents for Higher Education shall promptly certify to the State
20 Treasurer the amount of all sums not needed for payment of
21 construction and other legal expenditures payable from the 1965
22 Institutional Building Bond Fund Series C to meet the construction
23 payment schedule, and upon receipt of such certification the State
24 Treasurer shall make the investment specified in this section. All

1 interest received by the State Treasurer upon the securities
2 referred to in this section shall be deposited in the 1965
3 Institutional Building Bond Fund Series C.

4
5 Added Laws 1967, c. 289, § 9, emerg. eff. May 8, 1967. Amended by
6 Laws 1983, c. 304, § 57, eff. July 1, 1983; Laws 1989, c. 343, § 14,
operative July 1, 1989.; Laws 2012, c. 304, § 432.

7 SECTION 383. AMENDATORY 62 O.S. 2021, Section 57.109, is
8 amended to read as follows:

9 Section 57.109. The bonds and interest coupons attached thereto
10 shall be delivered to the purchaser thereof only upon payment of par
11 and accrued interest to the date of delivery thereof, together with
12 any premium bid. The proceeds of the sale of said bonds shall be
13 deposited in the State Treasury in the sinking fund, where they
14 shall remain subject to disposition as provided for by the
15 Legislature of this state, provided that the State Treasurer, when
16 so directed by the ~~Director~~ Chief Operating Officer of the Office of
17 Management and Enterprise Services and the Oklahoma State Regents
18 for Higher Education acting on behalf of the governing boards,
19 according to the funds allocated, as to the amounts available for
20 investment shall invest said designated amounts of the sinking fund
21 in direct obligations of the United States of America or in
22 certificates of deposits from banks in this state acceptable as
23 depositories by the State Treasurer when such certificates of
24 deposits are secured by the acceptable collateral and yield as much

as or more than direct obligations of the United States of America. All such investments of said monies must be made so that the same shall mature in time to enable this state to issue warrants for payment of the valid indebtedness incurred for the purpose for which said bonds are issued, when the said indebtedness has been incurred pursuant to legislative authority. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services and the Oklahoma State Regents for Higher Education shall promptly certify to the State Treasurer the amount of all sums not needed for payment of construction and other legal expenditures payable from the sinking fund to meet the construction payment schedule, and upon receipt of such certification the State Treasurer shall make the investment specified in this section. All interest received by the State Treasurer upon the securities referred to in this section shall be deposited in the sinking fund.

SECTION 384. AMENDATORY 62 O.S. 2021, Section 57.189, is amended to read as follows:

Section 57.189. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services and the governing boards of the institutions of higher education are authorized to enter into necessary contracts and exercise supervision of the expenditure of funds authorized by Sections 57.181 through 57.191 of this title.

SECTION 385. AMENDATORY 62 O.S. 2021, Section 57.306, is amended to read as follows:

Section 57.306. A. There is hereby created in the State Treasury of the State of Oklahoma the "Oklahoma Building Bonds of 1992 Fund". The proceeds of the sale of bonds pursuant to this act shall be deposited in said fund, where they shall remain subject to disposition to be provided for by the Legislature of this state, provided that the State Treasurer, when so directed by the Commission, shall invest the amounts designated by the Commission for the period of time specified by the Commission; provided that all such investments of said monies must be made so that the same shall mature in time to enable the State of Oklahoma to issue warrants for payment of the valid obligations incurred for the purpose for which the bonds were issued.

B. It shall be the duty of the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services to promptly certify to the State Treasurer the amount of all sums not needed for payment of construction and other legal expenditures payable from the fund to meet the payment schedule, and upon receipt of such certification the State Treasurer shall forthwith invest such funds.

C. All interest received by the State Treasurer for such investments shall be utilized pursuant to appropriations by the Legislature.

SECTION 386. AMENDATORY 62 O.S. 2021, Section 71.1, as amended by Section 4, Chapter 308, O.S.L. 2025 (62 O.S. Supp. 2025, Section 71.1), is amended to read as follows:

Section 71.1. A. There is hereby created the Invest in Oklahoma Board. The Board shall consist of five (5) members as follows:

1. The Governor, or designee;
2. The Lieutenant Governor, or designee;
3. The State Treasurer, or designee;
4. An appointee of the Speaker of the House of Representatives who shall serve at the Speaker's pleasure; and
5. An appointee of the President Pro Tempore of the Oklahoma State Senate who shall serve at the President Pro Tempore's pleasure.

B. The appointed and designated members shall have no direct or indirect business relationship with the State Treasurer or the State Treasurer's Office.

C. The Governor or Governor's designee shall serve as chairperson.

D. The Board shall hold regular meetings not less than one per quarter, and at such other times as it deems necessary for the performance of its duties. The date, time and place of the meetings shall be set by the chairperson. The State Treasurer shall provide the administrative support required by the Board. The Board shall

1 be staffed by efforts under the control of the State Treasurer who
2 shall prepare all materials and information needed by the Board to
3 perform its duties and responsibilities. Meetings of the Board
4 shall be subject to the Oklahoma Open Meeting Act, and their records
5 shall be public records pursuant to the Oklahoma Open Records Act.

6 E. The Board shall develop a standardized and uniform reporting
7 system which the State Treasurer shall use to make the reports
8 required by Section 89.7 of this title. The Board shall prescribe
9 such forms in order to obtain an objective and accurate analysis of
10 the investment of state funds by the State Treasurer and to obtain
11 an accurate analysis of investment performance according to an
12 objective standard established by the Board. The Board shall not be
13 subject to the provisions of the Administrative Procedures Act for
14 purposes of developing the reporting system required by this
15 subsection. The Board shall review the reports prepared by the
16 State Treasurer pursuant to Section 89.7 of this title. The Board
17 shall review with the State Treasurer investment strategies and
18 practices and the development of internal auditing procedures and
19 practices. The Board shall review the reports submitted by the
20 State Treasurer and shall identify any event, transaction or trend
21 which the Board determines to represent a violation or potential
22 violation of law or public policy regarding the investment of state
23 funds. The Board shall specifically identify its concerns or
24

1 objections and shall communicate such concerns or objections in
2 writing to the State Treasurer.

3 F. The State Treasurer shall maintain a report available to
4 each member of the Board which specifically identifies entities with
5 whom or with which the State Treasurer has transacted business
6 related to investment of any state funds. Any person or entity to
7 whom or to which any form of compensation has been or will be paid
8 for services rendered to the State Treasurer's Office related to the
9 investment of state funds shall be identified in such report. Such
10 report shall also be available to the ~~Director~~ Chief Operating
11 Officer of the Office of Management and Enterprise Services, the
12 State Auditor and Inspector, the Speaker of the House of
13 Representatives, the President Pro Tempore of the Senate and the
14 Governor.

15 G. Members of the Board shall serve without compensation,
16 except for travel, pursuant to the State Travel Reimbursement Act,
17 to be paid by the appointing authority.

18 H. The Board shall establish and adopt investment parameters
19 related to investments in Oklahoma-based private equity funds,
20 venture capital funds, growth funds, and direct investments in
21 Oklahoma companies authorized under the Invest in Oklahoma program;
22 provided that by a unanimous vote of the Board such parameters may
23 be exceeded with regard to investments to the extent allowable under
24 the Oklahoma Constitution.

1 I. The Board shall exercise confirmation and approval authority
2 over the appointment and contractual relationships of qualified
3 investment advisors and fiduciary managers engaged by the State
4 Treasurer to assist in the selection of the investments authorized
5 under the Invest in Oklahoma program.

6 SECTION 387. AMENDATORY 62 O.S. 2021, Section 71.2, is
7 amended to read as follows:

8 Section 71.2. The State Treasurer is authorized to purchase
9 software, hardware, and associated services to assist the State
10 Treasurer in the Treasurer's duties related to the control, custody,
11 deposit, transfer disbursement, management and investment of funds
12 and securities held by the state. Software, hardware, and
13 associated services shall be chosen by a solicitation of proposals
14 on a competitive basis, but shall be exempt from the provisions of
15 The Oklahoma Central Purchasing Act. Software, hardware and
16 associated services purchases by the State Treasurer for these
17 purposes shall not require the authorization of the ~~Director~~ Chief
18 Operating Officer of the Office of Management and Enterprise
19 Services.

20 SECTION 388. AMENDATORY 62 O.S. 2021, Section 89.2, as
21 amended by Section 5, Chapter 308, O.S.L. 2025 (62 O.S. Supp. 2025,
22 Section 89.2), is amended to read as follows:

23 Section 89.2. A. The State Treasurer is directed to invest the
24 maximum amount of funds under control of the State Treasurer

consistent with good business practices. Except as otherwise provided for by law, the investments shall earn not less than the rate for comparable maturities on United States Treasury obligations. Except as otherwise provided for by law, the State Treasurer may purchase and invest only in:

1. Obligations of the United States Government, its agencies and instrumentalities, or other obligations fully insured or unconditionally guaranteed as to the payment of principal and interest by the United States government or any of its agencies and instrumentalities;

2. Collateralized or insured certificates of deposit and other evidences of deposit at banks, savings banks, savings and loan associations and credit unions located in this state;

3. Negotiable certificates of deposit issued by a nationally or state-chartered bank, a savings bank, a savings and loan association or a state-licensed branch of a foreign bank. Purchases of negotiable certificates of deposit shall not exceed ten percent (10%) of the cash available for investment which may be invested pursuant to this section. Not more than one-half (1/2) of the ten percent (10%) limit shall be invested in any one financial institution specified in this paragraph;

4. Prime banker's acceptances which are eligible for purchase by the Federal Reserve System and which do not exceed two hundred seventy (270) days' maturity. Purchases of prime banker's

1 acceptances shall not exceed ten percent (10%) of the cash available
2 for investment which may be invested pursuant to this section. Not
3 more than three-fourths (3/4) of the ten percent (10%) limit shall
4 be invested in any one commercial bank pursuant to this paragraph;

5 5. Prime commercial paper which shall not have a maturity that
6 exceeds one hundred eighty (180) days nor represent more than ten
7 percent (10%) of the outstanding paper of an issuing corporation.
8 Purchases of prime commercial paper shall not exceed seven and one-
9 half percent (7 1/2%) of the cash available for investment which may
10 be invested pursuant to this section;

11 6. Investment grade obligations of state and local governments,
12 including obligations of Oklahoma state public trusts which possess
13 the highest rating from at least one nationally recognized rating
14 agency acceptable to the State Treasurer. Purchases of investment
15 grade obligations of state and local governments shall not exceed
16 ten percent (10%) of the cash available for investment which may be
17 invested pursuant to this section;

18 7. Repurchase agreements, provided that such agreements are
19 included within the written investment policy required by subsection
20 D of this section that have underlying collateral consisting of
21 those items and those restrictions specified in paragraphs 1 through
22 6 of this subsection;

23 8. Money market funds and short term bond funds regulated by
24 the Securities and Exchange Commission and which investments consist

of those items and those restrictions specified in paragraphs 1 through 7 of this subsection; and

9. Bonds, notes, debentures or other similar obligations of a foreign government which the International Monetary Fund lists as an industrialized country and for which the full faith and credit of such nation has been pledged for the payment of principal and interest; provided, that any such security shall be rated at least A- or better by Standard & Poor's Corporation or A3 or better by Moody's Investors Service, or an equivalent investment grade by a securities ratings organization accepted by the National Association of Insurance Commissioners; and provided further, that the total investment in such foreign securities at any one time shall not exceed five percent (5%) of the cash available for investment which may be invested pursuant to this section. In no circumstance shall investments be made in bonds, notes, debentures or any similar obligations of a foreign government that:

a. is identified as a state sponsor of terrorism by the United States Department of State, or

b. any authoritarian or totalitarian government the sovereign powers of which are exercised through a single person or group of persons who are not elected by any form of legitimate popular voting.

B. Investments shall be made with judgment and care, under circumstances then prevailing, which persons of prudence, discretion

1 and intelligence exercise in the management of their own affairs,
2 not for speculation, but for investment, considering the probable
3 safety of their capital as well as the probable income to be
4 derived.

5 C. The State Treasurer shall appoint an investment officer who
6 shall perform duties related to the investment of state funds in the
7 Office of the State Treasurer. The investment officer shall not
8 perform or supervise any accounting functions, data processing
9 functions or duties related to the documentation or settlement of
10 investment transactions.

11 D. Investments of public funds by the State Treasurer shall be
12 made in accordance with written policies developed by the State
13 Treasurer. The written investment policies shall address:

- 14 1. Liquidity;
- 15 2. Diversification;
- 16 3. Safety of principal;
- 17 4. Yield;
- 18 5. Maturity and quality; and
- 19 6. Capability of investment management.

20 The State Treasurer shall place primary emphasis on safety and
21 liquidity in the investment of public funds. To the extent
22 practicable taking into account the need to use sound investment
23 judgment, the written investment policies shall include provision
24 for utilization of a system of competitive bidding in the investment

1 of state funds. The written investment policies shall be designed
2 to maximize yield within each class of investment instrument,
3 consistent with the safety of the funds invested.

4 E. Except as provided in subsection H of this section, the
5 State Treasurer shall select one custodial bank to settle
6 transactions involving the investment of state funds under the
7 control of the State Treasurer. The State Treasurer shall review
8 the performance of the custodial bank at least once every year. The
9 State Treasurer shall require a written competitive bid every five
10 (5) years. The custodial bank shall have a minimum of Five Hundred
11 Million Dollars (\$500,000,000.00) in assets to be eligible for
12 selection. Any out-of-state custodial bank shall have a service
13 agent in the State of Oklahoma so that service of summons or legal
14 notice may be had on such designated agent as is now or may
15 hereafter be provided by law. In order to be eligible for
16 selection, the custodial bank shall allow electronic access to all
17 transaction and portfolio reports maintained by the custodial bank
18 involving the investment of state funds under control of the State
19 Treasurer. The access shall be given to the State Treasurer. The
20 requirement for electronic access shall be incorporated into any
21 contract between the State Treasurer and the custodial bank.
22 Neither the State Treasurer nor the custodial bank shall permit any
23 of the funds under the control of the State Treasurer or any of the
24 documents, instruments, securities or other evidence of a right to

1 be paid money to be located in any place other than within a
2 jurisdiction or territory under the control or regulatory power of
3 the United States Government.

4 F. The investment policy shall specify the general philosophy,
5 policies and procedures to be followed in the investment of state
6 monies by the State Treasurer. The investment policy shall include,
7 but not be limited to, the following:

- 8 1. Policy objectives;
- 9 2. Performance measure objectives;
- 10 3. Authority for investment program;
- 11 4. Possible use of an investment advisory committee;
- 12 5. Reporting and documentation of investments;
- 13 6. Authorized investment instruments;
- 14 7. Diversification of investment risk;
- 15 8. Maturity limitations;
- 16 9. Selections of financial institutions;
- 17 10. Interest controls;
- 18 11. Safekeeping of investments;
- 19 12. Investment ethics; and
- 20 13. Formal adoption of policy.

21 G. The State Treasurer may invest cash balance amounts as
22 defined and limited by Section 2402 of this title in the Invest in
23 Oklahoma program.

1 H. The State Treasurer is hereby authorized to establish
2 internal custodial accounts within the State Treasury, and enter
3 contractual relationships for custodial account services with
4 private institutions as needed, for the implementation and
5 administration of the Invest in Oklahoma program.

6 I. Not later than July 1 of each year, the State Treasurer
7 shall forward a copy of the written investment policy to the
8 Governor, the Speaker of the House of Representatives, the President
9 Pro Tempore of the Senate, the Attorney General, the Bank
10 Commissioner, and the ~~Director~~ Chief Operating Officer of the Office
11 of Management and Enterprise Services. In addition, the State
12 Treasurer shall maintain one copy of the investment policy in the
13 office of the State Treasurer for public inspection during regular
14 business hours. Copies of any modifications to the investment
15 policy shall be forwarded to the Governor, Speaker of the House of
16 Representatives, President Pro Tempore of the Senate, and each
17 member of the Cash Management and Investment Oversight Commission.

18 SECTION 389. AMENDATORY 62 O.S. 2021, Section 89.5, as
19 amended by Section 1, Chapter 140, O.S.L. 2024 (62 O.S. Supp. 2025,
20 Section 89.5), is amended to read as follows:

21 Section 89.5. A. There is hereby created in the State Treasury
22 a revolving fund for the Office of the State Treasurer to be
23 designated the "State Treasurer's Revolving Fund". The fund shall
24 be a continuing fund not subject to fiscal year limitations, and

1 shall consist of all monies received by the Office of the State
2 Treasurer from fees and receipts collected pursuant to the Oklahoma
3 Open Records Act, Section 24A.1 et seq. of Title 51 of the Oklahoma
4 Statutes; monies received, including, but not limited to, reasonable
5 and customary service-related charges, any monies received from the
6 sale of surplus property, and any grants-in-aid received from the
7 federal government for the operations of the Office of the State
8 Treasurer unless otherwise provided by federal law or regulation.
9 All monies accruing to the credit of said fund are hereby
10 appropriated and may be budgeted and expended by the Office of the
11 State Treasurer for the operating expenses of the said office.
12 Expenditures from said fund shall be made upon warrants issued by
13 the State Treasurer against claims filed as prescribed by law with
14 the ~~Director~~ Chief Operating Officer of the Office of Management and
15 Enterprise Services for approval and payment. Monies in the fund
16 may be invested by the State Treasurer in the manner prescribed in
17 Section 89.1a et seq. of this title. Interest income derived from
18 the investment of monies in the fund shall be credited to and placed
19 in the fund.

20 B. The State Treasurer shall appoint and fix the duties and
21 compensation of employees, not otherwise prescribed by law,
22 necessary to perform the duties imposed upon the Office of the State
23 Treasurer by law.

SECTION 390. AMENDATORY 62 O.S. 2021, Section 90, is amended to read as follows:

Section 90. A. The State Treasurer may implement and engage in a securities lending program. As used in this section, "securities lending program" means any program, arrangement or agreement whereby the state deposits securities with a federally or state-chartered savings and loan association, a trust company, a state or national bank, or a broker-dealer registered with the National Association of Securities Dealers, Inc. and insured by the Securities Investors Protection Corporation, for the purpose of permitting the financial institution or broker-dealer to lend securities to a borrower approved by the State Treasurer in return for a fee or charge paid by the borrower for the use of such securities. All income from securities lending, less fees, shall be deposited into the Securities Lending and Custodial Fee Revolving Fund created in this section; provided, securities lending income in excess of amounts necessary to pay custodial or other banking fees, shall be deposited into the General Revenue Fund. Securities loaned under this program shall be subject to the collateral requirements specified by the State Treasurer. The State Treasurer must receive collateral equal to at least one hundred percent (100%) of the market value of the securities loaned, consisting of securities or instruments which the State Treasurer can purchase pursuant to Section 89.2 of this title. Nothing herein shall be deemed to prohibit the implementation of

1 securities lending programs by the state retirement systems which
2 are designed and managed by the boards of trustees of such systems.

3 B. There is hereby created in the State Treasury a revolving
4 fund for the Office of the State Treasurer, to be designated the
5 "Securities Lending and Custodial Fee Revolving Fund". The fund
6 shall be a continuing fund, not subject to fiscal year limitations,
7 and shall consist of any monies transferred thereto by act of the
8 Legislature and any monies which may be deposited thereto by the
9 State Treasurer's Office as provided by this section. All monies
10 accruing to the credit of the fund are hereby appropriated and may
11 be budgeted and expended by the Office of the State Treasurer for
12 the purposes of paying custodial or other banking fees.

13 Expenditures from the fund shall be made upon warrants issued by the
14 State Treasurer against claims filed as prescribed by law with the
15 ~~Director~~ Chief Operating Officer of the Office of Management and
16 Enterprise Services for approval and payment.

17 SECTION 391. AMENDATORY 62 O.S. 2021, Section 90.8, is
18 amended to read as follows:

19 Section 90.8. There is hereby created in the State Treasury a
20 revolving fund for the Oklahoma Department of Agriculture, Food, and
21 Forestry to be designated the "Rural Economic Development Loan
22 Revolving Fund". The fund shall be a continuing fund, not subject
23 to fiscal year limitations, and shall consist of all monies received
24 by the Department as provided in the Rural Economic Development Loan

1 Act. All monies accruing to the credit of the fund are hereby
2 appropriated and may be budgeted and expended by the Department for
3 the purpose of implementing the Rural Economic Development Loan Act.
4 Expenditures from the fund shall be made upon warrants issued by the
5 State Treasurer against claims filed as prescribed by law with the
6 ~~Director~~ Chief Operating Officer of the Office of Management and
7 Enterprise Services for approval and payment.

8 SECTION 392. AMENDATORY 62 O.S. 2021, Section 139.45, is
9 amended to read as follows:

10 Section 139.45. The Governor may, subject to the provisions of
11 this act, allocate and authorize the expenditure of any or all of
12 the money accruing to the State Emergency Fund only for the purpose
13 of defraying expenses arising by reason of emergencies as
14 hereinafter defined, and which were not foreseen or reasonably
15 foreseeable by the legislature or either house thereof, but for
16 which the legislature could have lawfully made appropriations. In
17 no event may any monies in said fund be allocated or expended for
18 any purpose, use, or object considered or acted upon adversely by
19 the legislature or either house thereof. The ~~Director~~ Chief
20 Operating Officer of the Office of Management and Enterprise
21 Services is hereby authorized and directed to disallow and reject
22 any claim against an allocation made from the State Emergency Fund
23 contrary to the provisions of this act.
24

SECTION 393. AMENDATORY 62 O.S. 2021, Section 139.48, is amended to read as follows:

Section 139.48. Where the written findings of fact required by Section 139.46 of this title do not include one of the specific emergencies listed in Section 139.47 of this title but do show the existence of some other emergency not foreseen or reasonably foreseeable by the Legislature, the Governor may allocate and authorize the expenditure of monies from the State Emergency Fund to provide for such emergency if, and only if:

(1) the Contingency Review Board, by a majority vote thereof, has first found that such emergency exists, and was not foreseen or reasonably foreseeable by the Legislature, and has certified such findings in writing to the Governor and the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services. A copy of such findings shall be filed in the office of each of the members of said Board.

(2) the Governor, after having received the findings of the Contingency Review Board, has also found that such emergency exists, and was not foreseen or reasonably foreseeable by the Legislature.

(3) the funds so allocated and authorized are expended solely for direct assistance or relief to qualified individuals or entities, pursuant to eligibility guidelines developed by the Contingency Review Board for each emergency, or for costs associated with providing direct assistance.

SECTION 394. AMENDATORY 62 O.S. 2021, Section 139.49, is amended to read as follows:

Section 139.49. No allocation shall be made from the State Emergency Fund except upon approval of the Governor in writing, and under such limitations as may be specified by the Governor, and subject to the conditions provided for by this act. The Governor's findings and certificate of approval shall be certified to the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services, the Secretary of State, the State Treasurer, and the State Auditor and Inspector.

SECTION 395. AMENDATORY 62 O.S. 2021, Section 155, as amended by Section 34, Chapter 29, O.S.L. 2023 (62 O.S. Supp. 2025, Section 155), is amended to read as follows:

Section 155. A. There is hereby created in the State Treasury a revolving fund for each of the following state boards, commissions, and departments:

1. The Board of Governors of the Licensed Architects, Landscape Architects and Registered Commercial Interior Designers of Oklahoma;
2. Oklahoma Funeral Board;
3. Board of Podiatric Medical Examiners;
4. Board of Chiropractic Examiners;
5. State Board of Medical Licensure and Supervision;
6. Oklahoma Board of Nursing;
7. State Board of Osteopathic Examiners;

8. State Board of Pharmacy;
9. State Board of Licensed Social Workers;
10. Oklahoma New Motor Vehicle Commission;
11. Oklahoma Real Estate Commission; and
12. Santa Claus Commission.

B. Each revolving fund shall consist of all monies received by the boards, commissions, and departments, pursuant to statutory authority, but not including appropriated funds. These revolving funds shall be continuing funds, not subject to fiscal year limitations and shall be under the control and management of the administrative authorities of the respective boards, commissions, or departments.

C. Expenditures from the revolving funds shall be made pursuant to the laws of the state and the statutes relating to the boards, commissions, and departments, and without legislative appropriation. Warrants for expenditures from the revolving funds shall be drawn by the State Treasurer, based on claims signed by an authorized employee or employees of the respective boards, commissions, or departments and approved for payment by the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services.

SECTION 396. AMENDATORY 62 O.S. 2021, Section 156, is amended to read as follows:

Section 156. There is hereby created in the State Treasury a revolving fund for the Oklahoma Educational Television Authority to

1 be designated "The Educational Television Authority Revolving Fund".
2 The fund shall consist of monies received by the Oklahoma
3 Educational Television Authority pursuant to statutory provisions,
4 but not including appropriated funds. The revolving fund shall be a
5 continuing fund not subject to fiscal year limitations and shall be
6 under the administrative direction of the Oklahoma Educational
7 Television Authority. Expenditures from said fund shall be made
8 pursuant to the laws of this state and the statutes relating to the
9 said Authority, and without legislative appropriation. Warrants for
10 expenditures from said fund shall be drawn by the State Treasurer,
11 based on claims signed by an authorized employee or employees of the
12 said Authority and approved for payment by the ~~Director~~ Chief
13 Operating Officer of the Office of Management and Enterprise
14 Services.

15 SECTION 397. AMENDATORY 62 O.S. 2021, Section 157, is
16 amended to read as follows:

17 Section 157. There is hereby created in the State Treasury a
18 revolving fund for the Oklahoma Historical Society, on behalf of the
19 Will Rogers Memorial, to be designated "The Will Rogers Memorial
20 Revolving Fund". The fund shall consist of monies received by the
21 Oklahoma Historical Society pursuant to statutory provisions, but
22 not including appropriated funds. The revolving fund shall be a
23 continuing fund not subject to fiscal year limitations and shall be
24

1 under the administrative direction of the Oklahoma Historical
2 Society, on behalf of the Will Rogers Memorial. Expenditures from
3 the fund shall be made pursuant to the laws of this state and the
4 statutes relating to the Memorial, and without legislative
5 appropriation. Warrants for expenditures shall be drawn by the
6 State Treasurer, based on claims signed by an authorized employee or
7 employees of the Oklahoma Historical Society and approved for
8 payment by the ~~Director~~ Chief Operating Officer of the Office of
9 Management and Enterprise Services.

10 SECTION 398. AMENDATORY 62 O.S. 2021, Section 158, is
11 amended to read as follows:

12 Section 158. There is hereby created in the State Treasury a
13 revolving fund for the Teachers' Retirement System of Oklahoma, to
14 be designated "The Teachers' Retirement System Revolving Fund". The
15 fund shall consist of monies deposited to said fund by the Board of
16 Trustees of the Teachers' Retirement System of Oklahoma, or pursuant
17 to said Board's authorization. The revolving fund shall be a
18 continuing fund not subject to fiscal year limitations and shall be
19 under the administrative direction of the Board of Trustees of the
20 Teachers' Retirement System of Oklahoma. Expenditures from said
21 fund shall be made pursuant to general laws for expenses of
22 administration of the Teachers' Retirement System. Warrants for
23 expenditures shall be drawn by the State Treasurer based on claims
24 signed by an authorized employee or employees of the Teachers'

1 Retirement System and approved for payment by the ~~Director~~ Chief
2 Operating Officer of the Office of Management and Enterprise
3 Services.

4 SECTION 399. AMENDATORY 62 O.S. 2021, Section 159, is
5 amended to read as follows:

6 Section 159. There is hereby created in the State Treasury a
7 revolving fund for the Secretary of the State Election Board. Said
8 revolving fund shall consist of all monies received by the Secretary
9 of the State Election Board under 26 O.S. 1971, Sections 161, 165a,
10 391 and 392. The revolving fund shall be a continuing fund, not
11 subject to fiscal year limitations. Expenditures from said fund
12 shall be made pursuant to the laws of this state and the statutes
13 relating to the Secretary of the State Election Board, and without
14 legislative appropriation. Warrants for expenditures from said fund
15 shall be drawn by the State Treasurer, based on claims signed by an
16 authorized employee or employees of the State Election Board and
17 approved for payment by the ~~Director~~ Chief Operating Officer of the
18 Office of Management and Enterprise Services.

19 SECTION 400. AMENDATORY 62 O.S. 2021, Section 159.1, is
20 amended to read as follows:

21 Section 159.1. There is hereby created in the State Treasury a
22 revolving fund for the Oklahoma State Senate to be designated the
23 "State Senate Revolving Fund". The fund shall be a continuing fund,
24 not subject to fiscal year limitations, and shall consist of all

monies received by the Oklahoma State Senate from fees, payment of services, refunds, appropriations and other receipts as authorized by law. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Oklahoma State Senate for the duties and operations of the Senate. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 401. AMENDATORY 62 O.S. 2021, Section 159.2, is amended to read as follows:

Section 159.2. There is hereby created in the State Treasury a revolving fund for the Oklahoma House of Representatives to be designated the "House of Representatives Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Oklahoma House of Representatives from fees, payment of services, refunds, appropriations and other receipts as authorized by law. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Oklahoma House of Representatives for the duties and operations of the House of Representatives. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with

1 the ~~Director~~ Chief Operating Officer of the Office of Management and
2 Enterprise Services for approval and payment.

3 SECTION 402. AMENDATORY 62 O.S. 2021, Section 160.1, is
4 amended to read as follows:

5 Section 160.1. There is hereby created in the State Treasury a
6 revolving fund for the University of Oklahoma Health Sciences Center
7 to be designated the "Comprehensive Cancer Center Debt Service
8 Revolving Fund". The fund shall be a continuing fund, not subject
9 to fiscal year limitations, and shall consist of all monies
10 apportioned to the fund pursuant to Sections 302-5 and 402-3 of
11 Title 68 of the Oklahoma Statutes. All monies accruing to the
12 credit of the fund are hereby appropriated and may be budgeted and
13 expended by the University for the purpose of construction,
14 operations and servicing debt obligations incurred by the University
15 to construct a nationally designated comprehensive cancer center.
16 The cancer center constructed shall include a department known as
17 the Janna L. Robbins Memorial Colorectal Screening and Research
18 Department that has a primary function of conducting research and
19 screening procedures for the treatment and detection of colorectal
20 cancer. Expenditures from the fund shall be made upon warrants
21 issued by the State Treasurer against claims filed as prescribed by
22 law with the ~~Director~~ Chief Operating Officer of the Office of
23 Management and Enterprise Services for approval and payment.

SECTION 403. AMENDATORY 62 O.S. 2021, Section 160.2, is amended to read as follows:

Section 160.2. There is hereby created in the State Treasury a revolving fund for the Oklahoma State University College of Osteopathic Medicine to be designated the "Oklahoma State University College of Osteopathic Medicine Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies apportioned to the fund pursuant to Sections 302-5 and 402-3 of Title 68 of the Oklahoma Statutes. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Oklahoma State University College of Osteopathic Medicine for the purpose of servicing debt obligations for construction of a building dedicated to telemedicine to expand telemedicine to rural areas, for the purchase of telemedicine equipment and to provide uninsured/indigent care in Tulsa County. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 404. AMENDATORY 62 O.S. 2021, Section 195, is amended to read as follows:

Section 195. A. 1. There is hereby created a petty cash fund at each of the following institutions: Oklahoma School for the

1 Blind, Muskogee, Oklahoma; Oklahoma School for the Deaf, Sulphur,
2 Oklahoma; Griffin Memorial Hospital, Norman, Oklahoma; Eastern State
3 Hospital, Vinita, Oklahoma; Northern Oklahoma Resource Center of
4 Enid, Enid, Oklahoma; Southern Oklahoma Resource Center of Pauls
5 Valley, Pauls Valley, Oklahoma; Western State Psychiatric Center,
6 Fort Supply, Oklahoma; Central Oklahoma Juvenile Treatment Center,
7 Tecumseh, Oklahoma; L.E. Rader Children's Diagnostic and Evaluation
8 Center, Sand Springs, Oklahoma; L.E. Rader Intensive Treatment
9 Center, Sand Springs, Oklahoma; the Southwest Oklahoma Juvenile
10 Center, Manitou, Oklahoma; the Office of Juvenile Affairs' Boys'
11 Group Home, Enid, Oklahoma; the Office of Juvenile Affairs' Boys'
12 Group Home, Lawton, Oklahoma; the Office of Juvenile Affairs' Girls'
13 Group Home, Tulsa, Oklahoma; the Oklahoma Medical Center; and the
14 J.D. McCarty Center for Children with Developmental Disabilities.

15 2. The ~~Director~~ Chief Operating Officer of the Office of
16 Management and Enterprise Services and the head of the institution
17 involved are hereby authorized and it shall be their duty to fix the
18 maximum amount of the petty cash funds. The ~~Director~~ Chief
19 Operating Officer of the Office of Management and Enterprise
20 Services shall prescribe all forms, systems, and procedures for
21 administering the petty cash funds of the institution.

22 B. 1. There is hereby created a petty cash fund in the legal
23 division of the Department of Human Services which fund shall be
24 used solely to pay court costs, filing fees, witness fees, and

1 expenses related to any case or proceeding within the responsibility
2 of the legal division.

3 2. There is hereby created a petty cash fund in the Child
4 Support Enforcement Division of the Department of Human Services.
5 The fund shall be used solely to pay litigation expenses, including
6 court costs, filing fees, witness fees, and expenses related to any
7 case or proceeding within the responsibility of the Child Support
8 Enforcement Division.

9 3. The ~~Director~~ Chief Operating Officer of the Office of
10 Management and Enterprise Services and the Director of the
11 Department of Human Services are hereby authorized and it shall be
12 their duty to fix the maximum amount of the petty cash funds. The
13 ~~Director~~ Chief Operating Officer of the Office of Management and
14 Enterprise Services shall prescribe all forms, systems, and
15 procedures for administering the petty cash funds.

16 C. 1. There is hereby created a petty cash fund in the finance
17 department of the Corporation Commission which shall be used solely
18 to pay litigation expenses of the legal division, including court
19 costs, filing fees, witness fees, and other expenses related to any
20 case, proceeding, or matter within the responsibility of the legal
21 division.

22 2. The ~~Director~~ Chief Operating Officer of the Office of
23 Management and Enterprise Services and the Corporation Commission
24 are hereby authorized and it shall be their duty to fix the maximum

1 amount of the petty cash fund, not to exceed Five Hundred Dollars
2 (\$500.00). The ~~Director~~ Chief Operating Officer of the Office of
3 Management and Enterprise Services shall prescribe all forms,
4 systems, and procedures for administering the petty cash fund.

5 D. 1. There is hereby created a petty cash fund for the
6 Property Distribution Division of the Office of Management and
7 Enterprise Services.

8 2. The amount of the Property Distribution petty cash fund
9 shall not exceed Five Hundred Dollars (\$500.00). The initial amount
10 shall be drawn by warrant from the State Surplus Property Revolving
11 Fund. The ~~Director~~ Chief Operating Officer of the Office of
12 Management and Enterprise Services is authorized to prescribe forms,
13 systems and procedures for the administration of the Property
14 Distribution petty cash fund.

15 E. 1. There is hereby created a petty cash fund in the legal
16 division of the Oklahoma Health Care Authority which fund shall be
17 used solely to pay for court costs, filing fees, witness fees, and
18 expenses related to any case or proceeding within the responsibility
19 of the legal division.

20 2. The ~~Director~~ Chief Operating Officer of the Office of
21 Management and Enterprise Services and the Chief Executive Officer
22 of the Oklahoma Health Care Authority are hereby authorized and it
23 shall be their duty to fix the maximum amount of the petty cash
24 fund, not to exceed Five Hundred Dollars (\$500.00). The ~~Director~~

1 Chief Operating Officer of the Office of Management and Enterprise
2 Services shall prescribe all forms, systems, and procedures for
3 administering the petty cash fund.

4 F. 1. The ~~Director~~ Chief Operating Officer of the Office of
5 Management and Enterprise Services is hereby authorized, upon
6 request by the State Commissioner of Health, to establish a petty
7 cash fund for the State Department of Health in an amount not to
8 exceed One Thousand Dollars (\$1,000.00), to be used for the purpose
9 of making change for persons obtaining licenses, paying fees and
10 fines, and transacting other such business with the Department.

11 2. The fund shall be established and replenished from any
12 monies available to the Department for operating expenses.

13 3. The ~~Director~~ Chief Operating Officer of the Office of
14 Management and Enterprise Services shall prescribe all forms,
15 systems, and procedures for administering the fund.

16 G. 1. There is hereby created a petty cash fund for the
17 Financial Management section of the Department of Environmental
18 Quality in an amount not to exceed Two Hundred Dollars (\$200.00) to
19 be used for the purpose of making change for persons obtaining
20 licenses, paying fees and fines and transacting other such business
21 with the Department.

22 2. The fund shall be established and replenished from any
23 monies available to the Department for operating expenses.

1 3. The ~~Director~~ Chief Operating Officer of the Office of
2 Management and Enterprise Services shall prescribe all forms,
3 systems and procedures for administering the fund.

4 SECTION 405. AMENDATORY 62 O.S. 2021, Section 221, is
5 amended to read as follows:

6 Section 221. A. There is hereby created a fund to be known as
7 the "Oklahoma Tax Commission Fund". There shall be paid to the
8 State Treasurer and placed to the credit of said "Oklahoma Tax
9 Commission Fund", out of collections made by said Commission, the
10 sums of money required to be apportioned thereto by law.

11 B. From and after July 1, 1986, the Oklahoma Tax Commission
12 Fund shall be a revolving fund. Such fund shall be a continuing
13 fund not subject to fiscal year limitations and shall consist of any
14 revenues required to be deposited in the Oklahoma Tax Commission
15 Fund by Article XXVIII, Section 7 of the Oklahoma Constitution, any
16 other revenues apportioned to such fund by law, and any other
17 miscellaneous fees and monies received by the Oklahoma Tax
18 Commission. All monies accruing to the credit of said fund are
19 hereby appropriated and may be budgeted and expended by the Oklahoma
20 Tax Commission to carry out the duties of the Commission according
21 to law. Expenditures from said fund shall be made upon warrants
22 issued by the State Treasurer against claims filed as prescribed by
23 law with the ~~Director~~ Chief Operating Officer of the Office of
24 Management and Enterprise Services for approval and payment.

1 SECTION 406. AMENDATORY Section 1, Chapter 22, 2nd
2 Extraordinary Session, O.S.L. 2022 (62 O.S. Supp. 2025, Section
3 255.2), is amended to read as follows:

4 Section 255.2. There is hereby created in the State Treasury
5 until July 1, 2028, a revolving fund for the Oklahoma Department of
6 Commerce to be designated the "Pandemic Relief Primary Source
7 Revolving Fund". Except as otherwise provided in this section, the
8 fund shall be a continuing fund, not subject to fiscal year
9 limitations, and shall consist of all monies directed for deposit to
10 the fund by law. All monies accruing to the credit of said fund are
11 hereby appropriated and shall be awarded by the Oklahoma Department
12 of Commerce through grants to enhance industrial parks, airparks,
13 and ports to cover costs related to water, wastewater, sewer, and
14 broadband projects eligible under the provisions of the American
15 Rescue Plan Act of 2021 that support sites or surrounding
16 communities identified by the Department as having such needs prior
17 to the passage of this act and as discussed in the Transportation,
18 Infrastructure, and Rural Development Working Group public meeting
19 on September 15, 2022. Such funds shall be utilized in a manner
20 consistent with the recommendations adopted by the Joint Committee
21 on Pandemic Relief Funding on September 20, 2022.

22 Expenditures from said fund shall be made upon warrants issued
23 by the State Treasurer against claims filed as prescribed by law
24

1 with the ~~Director~~ Chief Operating Officer of the Office of
2 Management and Enterprise Services for approval and payment.

3 SECTION 407. AMENDATORY Section 2, Chapter 22, 2nd
4 Extraordinary Session, O.S.L. 2022 (62 O.S. Supp. 2025, Section
5 255.3), is amended to read as follows:

6 Section 255.3. There is hereby created in the State Treasury
7 until July 1, 2028, a revolving fund for the Oklahoma Department of
8 Commerce to be designated the "Pandemic Relief Secondary Source
9 Revolving Fund". Except as otherwise provided in this section, the
10 fund shall be a continuing fund, not subject to fiscal year
11 limitations, and shall consist of all monies directed for deposit to
12 the fund by law. All monies accruing to the credit of said fund are
13 hereby appropriated and shall be awarded by the Oklahoma Department
14 of Commerce through grants to cover costs that are:

15 1. Directly associated with industrial parks, airparks, and
16 ports at least partially funded by an appropriation from the
17 Statewide Recovery Fund of the State Treasury created in Enrolled
18 House Bill No. 3349 of the 2nd Session of the 58th Oklahoma
19 Legislature, with priority given to projects partially funded by the
20 Pandemic Relief Primary Source Revolving Fund; and

21 2. Anticipated by the Department to be ineligible expenditures
22 for reimbursement under the provisions of the American Rescue Plan
23 Act of 2021.
24

Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 408. AMENDATORY Section 3, Chapter 22, 2nd Extraordinary Session, O.S.L. 2022, as last amended by Section 1, Chapter 409, O.S.L. 2025 (62 O.S. Supp. 2025, Section 255.4), is amended to read as follows:

Section 255.4. A. There is hereby created in the State Treasury a revolving fund for the Oklahoma Workforce Commission to be designated the "Workforce Coordination Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies directed for deposit by law from the Statewide Recovery Fund in Section 255 of Title 62 of the Oklahoma Statutes. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Commission for the purpose of creating a workforce data integration system, providing grants for critical workforce needs, and administering these projects. No funds shall be used for expenses that violate the federal guidelines for the American Rescue Plan Act of 2021, Public Law No. 117-2, or be used for projects not in accordance with policy enacted under the efforts of the Education and Economic Development Working Group within the Joint Committee on Pandemic Relief Funding. Expenditures from said fund shall be made upon

1 warrants issued by the State Treasurer against claims filed as
2 prescribed by law with the ~~Director~~ Chief Operating Officer of the
3 Office of Management and Enterprise Services for approval and
4 payment.

5 B. Any funds remaining in the Workforce Coordination Revolving
6 Fund as of July 1, 2024, are hereby considered obligated by the
7 Oklahoma Legislature for the purpose of workforce development
8 initiatives.

9 SECTION 409. AMENDATORY Section 1, Chapter 411, O.S.L.
10 2022, as amended by Section 1, Chapter 474, O.S.L. 2025 (62 O.S.
11 Supp. 2025, Section 256), is amended to read as follows:

12 Section 256. A. There is hereby created in the State Treasury
13 a special fund to be designated the "Progressing Rural Economic
14 Prosperity Fund", also known as the "PREP Fund". The fund shall be
15 a continuing fund, not subject to fiscal year limitations, and shall
16 consist of all monies received by the Progressing Rural Economic
17 Prosperity Fund from appropriations. Said fund shall be subject to
18 legislative appropriation or transfer as provided by law and shall
19 consist of all such monies as the Legislature may direct to be
20 appropriated or transferred to said fund. Expenditures from said
21 fund pursuant to subsection B of this section shall be made upon
22 warrants issued by the State Treasurer against claims filed as
23 prescribed by law with the ~~Director~~ Chief Operating Officer of the
24

Office of Management and Enterprise Services for approval and payment.

B. The following projects shall continue to receive the benefit of funds originally appropriated in amounts from the Progressing Rural Economic Prosperity Fund that may have lapsed, less any amount that has been expended upon the effective date of this act:

1. Twenty-five Million Dollars (\$25,000,000.00) appropriated by Section 1 of Enrolled House Bill No. 1019 of the 2nd Extraordinary Session of the 58th Oklahoma Legislature;

2. One Million Dollars (\$1,000,000.00) appropriated by Section 2 of Enrolled House Bill No. 1019 of the 2nd Extraordinary Session of the 58th Oklahoma Legislature;

3. Twenty Million Dollars (\$20,000,000.00) appropriated by Section 2 of Enrolled House Bill No. 1016 of the 2nd Extraordinary Session of the 58th Oklahoma Legislature;

4. Twenty Million Dollars (\$20,000,000.00) appropriated by Section 3 of Enrolled House Bill No. 1016 of the 2nd Extraordinary Session of the 58th Oklahoma Legislature;

5. Twenty Million Dollars (\$20,000,000.00) appropriated by Section 4 of Enrolled House Bill No. 1016 of the 2nd Extraordinary Session of the 58th Oklahoma Legislature;

6. Twenty-two Million Three Hundred Fifty Thousand Dollars (\$22,350,000.00) appropriated by Section 5 of Enrolled House Bill

No. 1016 of the 2nd Extraordinary Session of the 58th Oklahoma Legislature;

7. Fourteen Million Dollars (\$14,000,000.00) appropriated by Section 6 of Enrolled House Bill No. 1016 of the 2nd Extraordinary Session of the 58th Oklahoma Legislature;

8. Four Million Dollars (\$4,000,000.00) appropriated by Section 7 of Enrolled House Bill No. 1016 of the 2nd Extraordinary Session of the 58th Oklahoma Legislature;

9. Twenty-two Million Five Hundred Thousand Dollars (\$22,500,000.00) appropriated by Section 2 of Enrolled House Bill No. 1017 of the 2nd Extraordinary Session of the 58th Oklahoma Legislature; and

10. Five Million Dollars (\$5,000,000.00) appropriated by Section 3 of Enrolled House Bill No. 1017 of the 2nd Extraordinary Session of the 58th Oklahoma Legislature.

SECTION 410. AMENDATORY 62 O.S. 2021, Section 275.8, is amended to read as follows:

Section 275.8. All state bonds, bond interest coupons and duplicates of receipts redeemed by the State Treasurer and delivered to the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services as provided by Section 34.80 of this title shall be delivered by the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services to the Archives and Records Commission to be retained in accordance with the provisions

of Sections 305 through 317 of Title 67 of the Oklahoma Statutes. All warrants or checks redeemed by the State Treasurer, shall be microfilmed, imaged or duplicated by the State Treasurer. The microfilm, image or other duplication shall be in accordance with requirements established for such records by the Archives and Records Commission. Any redeemed warrant or check that has been microfilmed, imaged or duplicated in a manner acceptable to the Archives and Records Commission shall be destroyed after a period of time consistent with banking industry standards for checks. The Archives and Records Commission, with the assistance of the State Treasurer, shall survey financial institutions to determine the industry standard for retention of paper checks after they have been duplicated in a manner consistent with federal law and industry practice. Such survey shall include the industry standard or federal law for retention of duplicated checks.

No state agency may require the State Treasurer to furnish an original warrant, state check, or state voucher to the state agency if the State Treasurer makes a duplicate available. If the State Treasurer is in possession of the original warrant, the original may be furnished in response to the following:

1. A subpoena;
2. A proper discovery request in a legal proceeding;
3. For investigative purposes of a law enforcement agency; or
4. For other good cause as determined by the State Treasurer.

SECTION 411. AMENDATORY 62 O.S. 2021, Section 275.9, is amended to read as follows:

Section 275.9. Claims and/or payrolls filed with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services shall be maintained by said officer in accordance with the provisions of Sections 305 through 317 of Title 67 of the Oklahoma Statutes.

SECTION 412. AMENDATORY 62 O.S. 2021, Section 276.1, is amended to read as follows:

Section 276.1. There is hereby created in the State Treasury a revolving fund for the Office of the Secretary of State to be designated the "Revolving Fund for the Office of the Secretary of State". The revolving fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of fees and monies received by the Office of the Secretary of State for reproducing records or other papers or documents, and such other fees as are directed by law to be deposited in this fund, and any other miscellaneous receipts not otherwise directed by law. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Office of the Secretary of State for costs incurred in performing the duties and functions of the Office. Expenditures from said fund shall be made on warrants issued by the

1 State Treasurer against claims filed as prescribed by law with the
2 ~~Director~~ Chief Operating Officer of the Office of Management and
3 Enterprise Services for approval and payment.

4 SECTION 413. AMENDATORY 62 O.S. 2021, Section 276.3, is
5 amended to read as follows:

6 Section 276.3. There is hereby created in the State Treasury a
7 revolving fund for the Office of the Secretary of State to be
8 designated the "Central Filing System Revolving Fund". The fund
9 shall be a continuing fund, not subject to fiscal year limitations,
10 and shall consist of all fees generated by paragraphs 4 through 9 of
11 subsection A of Section 111 of Title 28 of the Oklahoma Statutes and
12 all penalties collected pursuant to subsection (9) of Section 1-9-
13 320.6 of Title 12A of the Oklahoma Statutes. All monies accruing to
14 the credit of this fund are hereby appropriated and may be budgeted
15 and expended by the Office of the Secretary of State for expenses
16 related to the central filing system created pursuant to Section 1-
17 9-320.6 of Title 12A of the Oklahoma Statutes. Expenditures from
18 this fund shall be made upon warrants issued by the State Treasurer
19 against claims filed as prescribed by law with the ~~Director~~ Chief
20 Operating Officer of the Office of Management and Enterprise
21 Services for approval and payment.

22 SECTION 414. AMENDATORY 62 O.S. 2021, Section 276.4, is
23 amended to read as follows:

1 Section 276.4. There is hereby created a petty cash fund not to
2 exceed Three Hundred Dollars (\$300.00) for the Office of the
3 Secretary of State to be used as a cash drawer change fund and for
4 the purchase of or reimbursement for expenditures of less than One
5 Hundred Dollars (\$100.00) pursuant to the rules and procedures
6 established by the ~~Director~~ Chief Operating Officer of the Office of
7 Management and Enterprise Services.

8 SECTION 415. AMENDATORY 62 O.S. 2021, Section 555, as
9 amended by Section 1, Chapter 283, O.S.L. 2022 (62 O.S. Supp. 2025,
10 Section 555), is amended to read as follows:

11 Section 555. If a check, warrant, or voucher has been issued
12 and is subsequently lost or destroyed, the treasurer of any county,
13 city, or town shall initiate a stop-payment order or submit a
14 positive pay file providing the payee, amount, and serial number of
15 the check, warrant, or voucher to the depository prior to the clerk
16 of the county, city, or town issuing a second or duplicate check,
17 warrant, or voucher. If the treasurer of any county, city, or town
18 is unable to initiate a stop-payment order or submit a positive pay
19 file providing the payee, amount, and serial number of the check,
20 warrant, or voucher to the depository, clerks are authorized and
21 empowered to issue a second or duplicate check, warrant, or voucher
22 in lieu of any check, warrant, or voucher that has been issued and
23 subsequently lost or destroyed if the following conditions are met:
24

1 1. An affidavit setting forth the facts as to the loss or
2 destruction of the original check, warrant, or voucher has been
3 filed with the clerk; and

4 2. An indemnifying bond running to the treasurer of the county,
5 city, or town, or to the State Treasurer, in double the amount of
6 such lost or destroyed check, warrant, or voucher.

7 The conditions of such bond shall be to indemnify and protect
8 the county, city, or town, or to the State Treasurer, from any loss
9 or harm occasioned or sustained on account of the issue of such
10 second or duplicate check, warrant, or voucher. The bond shall be
11 satisfactory to the treasurer of such county, city, or town, or to
12 the State Treasurer, who shall, upon being satisfied as to the
13 sufficiency of the bond, endorse approval thereon. The clerk and
14 treasurer shall make such records in their respective offices as
15 will, as nearly as possible, preclude any loss being sustained by
16 the county, city, or town, or to the State Treasurer, on account of
17 the issue of any second or duplicate check, warrant, or voucher.

18 Warrants issued by the State Treasurer against claims submitted
19 through the ~~Director~~ Chief Operating Officer of the Office of
20 Management and Enterprise Services in payment of obligations of the
21 state which may subsequently be lost or destroyed will be governed
22 by the provisions of Section 34.81 of this title.

23 SECTION 416. AMENDATORY 62 O.S. 2021, Section 695.8a, is
24 amended to read as follows:

1 Section 695.8a. There is hereby created in the State Treasury a
2 revolving fund for the Office of the State Treasurer, to be
3 designated the "Bond Oversight Revolving Fund". The fund shall be a
4 continuing fund, not subject to fiscal year limitations, and shall
5 consist of fees collected pursuant to Section 695.8 of this title
6 and any other monies provided for by law. All monies accruing to
7 the credit of said fund are hereby appropriated and may be budgeted
8 and expended by the Office of the State Treasurer for expenses
9 related to the Oklahoma Bond Oversight and Reform Act. Expenditures
10 from said fund shall be made upon warrants issued by the State
11 Treasurer against claims filed as prescribed by law with the
12 ~~Director~~ Chief Operating Officer of the Office of Management and
13 Enterprise Services for approval and payment.

14 SECTION 417. AMENDATORY 62 O.S. 2021, Section 891.15, is
15 amended to read as follows:

16 Section 891.15. There is hereby created in the State Treasury a
17 revolving fund for the Oklahoma Development Finance Authority to be
18 designated the "Community Economic Development Pooled Finance
19 Revolving Fund". The fund shall be a continuing fund, not subject
20 to fiscal year limitations, and shall consist of all monies received
21 by the Oklahoma Development Finance Authority from revenues derived
22 from levies imposed by counties, cities, towns or combinations of
23 such local governmental entities as provided by this act in addition
24 to any withholding tax revenues as provided by Section 891.12 of

1 this title or Section 5 of this act. All monies accruing to the
2 credit of said fund are hereby appropriated and may be budgeted and
3 expended by the Oklahoma Development Finance Authority for the
4 purpose of paying principal, interest and other costs of borrowing
5 by the Authority as authorized by this act. Expenditures from said
6 fund shall be made upon warrants issued by the State Treasurer
7 against claims filed as prescribed by law with the ~~Director~~ Chief
8 Operating Officer of the Office of Management and Enterprise
9 Services for approval and payment.

10 SECTION 418. AMENDATORY 62 O.S. 2021, Section 901.1, is
11 amended to read as follows:

12 Section 901.1. A. The Long-Range Capital Planning Commission
13 shall submit an itemized list of the proposed projects set forth in
14 its annual capital plan to the Governor, the President Pro Tempore
15 of the Senate and the Speaker of the House of Representatives within
16 the first seven (7) legislative days of a regular legislative
17 session. The list shall be in the order of the priority of the
18 projects as determined by the Commission. The submission to such
19 elected officials shall occur upon the same date for purposes of
20 computing the time within which action must be taken as further
21 prescribed by this subsection. The Legislature shall have a period
22 of forty-five (45) calendar days from the date on which the list is
23 submitted to pass a concurrent resolution disapproving any or all of
24 the proposed projects. If the Legislature does not disapprove any

1 proposed project by concurrent resolution by the end of the forty-
2 fifth day following the date upon which the proposed issuance is
3 submitted, the proposed projects shall be deemed to have been
4 approved by the Legislature.

5 B. Upon approval of all or any part of the list of proposed
6 projects, the Office of Management and Enterprise Services may
7 expend funds in the Maintenance of State Buildings Revolving Fund
8 for approved projects in the order of priority set forth in its
9 annual capital plan.

10 C. In the event an emergency has been declared as provided for
11 in Section 130 of Title 61 of the Oklahoma Statutes, and as a result
12 thereof, repair or maintenance of a capital facility held by the
13 state is required, a state agency may submit a request to the
14 ~~Director~~ Chief Operating Officer of the Office of Management and
15 Enterprise Services to substitute the emergency project for any
16 other project or projects of the state agency on the approved
17 current fiscal year's Capital Improvement Plan list, or to add the
18 emergency project if the state agency does not have any projects on
19 the approved current fiscal year's Capital Improvement Plan list;
20 provided:

21 1. The ~~Director~~ Chief Operating Officer determines that there
22 are funds available in the Maintenance of State Buildings Revolving
23 Fund to cover all or part of the cost of the emergency project; and
24

1 2. The ~~Director~~ Chief Operating Officer submits information on
2 the emergency project and the cost thereof to the President Pro
3 Tempore of the Senate and the Speaker of the House of
4 Representatives and they approve the substitution within five (5)
5 calendar days of such submission.

6 D. The ~~Director~~ Chief Operating Officer has authority to
7 redirect funds within the Maintenance of State Buildings Revolving
8 Fund for emergency projects approved by the President Pro Tempore of
9 the Senate and the Speaker of the House of Representatives.

10 SECTION 419. AMENDATORY 62 O.S. 2021, Section 908, as
11 amended by Section 1, Chapter 188, O.S.L. 2023 (62 O.S. Supp. 2025,
12 Section 908), is amended to read as follows:

13 Section 908. A. There is hereby established the Oklahoma State
14 Government Asset Reduction and Cost Savings Program.

15 B. No later than December 31 each year, the ~~Director~~ Chief
16 Operating Officer of the Office of Management and Enterprise
17 Services shall publish a comprehensive report detailing state-owned
18 properties.

19 C. The report mandated in accordance with the provisions of
20 this section shall list the five percent (5%) most underutilized
21 state-owned properties. The report shall describe the value of
22 properties falling within the description in this subsection, assess
23 the potential for purchase should the properties be offered for
24

1 sale, and describe the impact on local-level tax rolls in the event
2 the properties are purchased by a nongovernmental entity.

3 D. The ~~Director~~ Chief Operating Officer of the Office of
4 Management and Enterprise Services shall promulgate rules
5 establishing procedures by which each state agency, board,
6 commission, and public trust having the state as a beneficiary,
7 excluding those otherwise exempted under Section 327 of Title 61 of
8 the Oklahoma Statutes, shall submit the necessary data to the Office
9 of Management and Enterprise Services for the development of this
10 report.

11 E. State agencies, boards, commissions, and public trusts
12 having the state as a beneficiary shall comply with procedures
13 promulgated pursuant to the terms of this section.

14 F. The report and data collected pursuant to this section shall
15 be published as a data feed on the data.ok.gov website.

16 G. In addition to the requirements of subsection C of this
17 section, the Office of Management and Enterprise Services may make
18 recommendations for the sale of other state-owned properties based
19 upon the value of the property and the potential for net gain for
20 the state based upon the data obtained for the Oklahoma State
21 Government Asset Reduction and Cost Savings Program.

22 H. There is hereby created the Maintenance of State Buildings
23 Revolving Fund. The fund shall be a continuing fund, not subject to
24 fiscal year limitations, and shall serve as the depository for

proceeds from the sale of state-owned properties pursuant to the Oklahoma State Government Asset Reduction and Cost Savings Program. The fund shall further consist of monies appropriated thereto and other funds designated for deposit therein. All monies accruing to the credit of the fund are hereby appropriated and may be expended exclusively for maintaining and repairing state-owned properties and buildings pursuant to the procedures set forth in Section 901.1 of Title 62 of the Oklahoma Statutes and for acquisition of information technology tools or resources that state agencies, boards, commissions, and public trusts having the state as a beneficiary shall use in carrying out their obligations in accordance with this act. The total expenditure for information technology resources shall not exceed One Hundred Thousand Dollars (\$100,000.00). Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment. Expenditures from the Maintenance of State Buildings Revolving Fund shall be detailed in a data feed and made available through the data.ok.gov web portal.

I. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services shall notify entities found by the Office to be out of compliance with the reporting provisions of this section in writing.

J. This section shall not be applicable to the following or their lands, properties, buildings, funds, or revenue:

1. The Oklahoma Ordnance Works Authority;
2. The Commissioners of the Land Office; and
3. Institutions comprising The Oklahoma State System of Higher Education, except as to the data reporting requirements in this section.

K. The report required in subsection B of this section shall include an indication of whether a property is owned by the Oklahoma Historical Society, is listed on the National Register of Historic Places or with the National Trust for Historic Preservation, or is potentially of historical significance. The Office of Management and Enterprise Services shall notify the Oklahoma Historical Society and obtain its approval prior to the sale of any such property.

SECTION 420. AMENDATORY 62 O.S. 2021, Section 3112, is amended to read as follows:

Section 3112. A. Following the close of each regular legislative session during which retirement bills having a fiscal impact may be enacted, the State Board of Equalization shall make a determination for each such bill enacted during such session, which is not vetoed by the Governor, of whether or not provision has been made for the concurrent funding of the bill in conformity with the applicable requirements of Section 311 of this title.

1 B. The Legislative Actuary, the ~~Director~~ Chief Operating
2 Officer of the Office of Management and Enterprise Services,
3 legislative staff, retirement system administrators, and employers
4 shall provide such information and assistance as may be necessary
5 for the State Board of Equalization to make the determinations
6 required by subsection A of this section.

7 C. The State Board of Equalization shall make the
8 determinations required by subsection A of this section by not later
9 than the fifteenth day immediately following the last day on which
10 the Governor is authorized to veto bills following the close of each
11 regular legislative session. The State Board of Equalization's
12 findings shall be made in a report to the Secretary of State showing
13 the determination for each retirement bill by reference to the
14 respective Senate or House of Representatives number for the bill.
15 The report shall be submitted to the Secretary of State by not later
16 than the last day on which the State Board of Equalization is
17 required to make the determinations. The Secretary of State shall
18 cause the State Board of Equalization's report to be printed in the
19 annual session laws of the State of Oklahoma.

20 SECTION 421. AMENDATORY 62 O.S. 2021, Section 7003, as
21 amended by Section 1, Chapter 125, O.S.L. 2023 (62 O.S. Supp. 2025,
22 Section 7003), is amended to read as follows:
23
24

Section 7003. A. There is hereby established the Incentive Evaluation Commission consisting of:

1. A certified public accountant appointed by the Oklahoma Accountancy Board whose term shall expire on December 31, 2025;

2. The Chair of Select Oklahoma an Economic Development Partnership, Inc. or his or her designee who is also a member of Select Oklahoma an Economic Development Partnership, Inc. who shall serve during his or her term of office as Chair of Select Oklahoma an Economic Development Partnership, Inc.;

3. An auditor who is employed as an internal auditor by a company or who is employed by a private auditing firm appointed by the Governor whose term shall expire on December 31, 2025;

4. An economist from an Oklahoma college or university appointed by the President Pro Tempore of the Senate whose term shall expire on December 31, 2024;

5. A lay person who is not an elected official appointed by the Speaker of the House of Representatives whose term shall expire December 31, 2024;

6. The Chair of the Oklahoma Tax Commission or his or her designee who is also a member of the Oklahoma Tax Commission, which shall be an ex officio and nonvoting position;

7. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services or his or her designee who is an

1 employee of the Office of Management and Enterprise Services which
2 shall be an ex officio and nonvoting position; and

3 8. The Secretary of Commerce or his or her designee who is an
4 employee of the Oklahoma Department of Commerce which shall be an ex
5 officio and nonvoting position.

6 B. Thereafter persons shall be appointed for terms of four (4)
7 years beginning on January 1. Any vacancy shall be filled by the
8 appointing authority for the remainder of the unexpired term.

9 C. No person shall serve on the Commission or be appointed to
10 the Commission who is employed by a company that receives any
11 incentive or who holds a substantial interest in ownership in a
12 company that receives any incentive. As used in this subsection,
13 "substantial interest" shall mean the ownership, directly or
14 indirectly, of more than fifty percent (50%) of the equity interest
15 with voting rights for any lawfully recognized business entity.

16 D. No person shall be appointed to the Commission who at the
17 time of his or her appointment is an elected official. Any person
18 who is appointed to the Commission who subsequently becomes an
19 elected official during his or her term on the Commission shall be
20 required to vacate his or her position on the Commission.

21 E. The Office of Management and Enterprise Services shall
22 provide staff and administrative support to the Incentive Evaluation
23 Commission. The Oklahoma Department of Commerce and the Oklahoma
24 Tax Commission shall assist the Office of Management and Enterprise

1 Services as needed in providing staff and administrative support to
2 the Commission.

3 F. The Incentive Approval Committee is hereby created as a
4 subcommittee of the Incentive Evaluation Commission and shall
5 consist of the ~~Director~~ Chief Operating Officer of the Office of
6 Management and Enterprise Services or his or her designee, the
7 Secretary of Commerce or his or her designee, and the Chairman of
8 the Tax Commission or his or her designee. It shall be the duty of
9 the Committee to determine:

10 1. Upon initial application on a form approved by the
11 Committee, if an establishment is engaged in a basic industry as
12 defined in subdivision (b) of division (7) or in subdivisions (a)
13 through (n) of division (9) of subparagraph a of paragraph 1 of
14 subsection A of Section 3603 of Title 68 of the Oklahoma Statutes or
15 as otherwise provided by subsection C of Section 3603 of Title 68 of
16 the Oklahoma Statutes;

17 2. If an establishment would have been defined as a "basic
18 industry" prior to the amendments to Section 3603 of Title 68 of the
19 Oklahoma Statutes to convert from SIC Codes to NAICS Codes. If the
20 Committee so determines, the establishment shall be considered as a
21 "basic industry" for purposes of the Oklahoma Quality Jobs Program
22 Act; and

23 3. If employees of an establishment as defined in division (10)
24 of subparagraph a of paragraph 1 of subsection A of Section 3603 of

1 Title 68 of the Oklahoma Statutes meet the requirements to be
2 considered employed in new direct jobs as specified in paragraph 3
3 of subsection A of Section 3603 of Title 68 of the Oklahoma
4 Statutes.

5 G. For an establishment defined as a "basic industry" pursuant
6 to division (4) of subparagraph a of paragraph 1 of subsection A of
7 Section 3603 of Title 68 of the Oklahoma Statutes, the Incentive
8 Approval Committee shall consist of the members provided by
9 subsection A of this section and the Executive Director of the
10 Oklahoma Center for the Advancement of Science and Technology, or a
11 designee from the Center appointed by the Executive Director.

12
13 SECTION 422. AMENDATORY 63 O.S. 2021, Section 1-105d, is
14 amended to read as follows:

15 Section 1-105d. There is hereby created in the State Treasury a
16 revolving fund for the State Department of Health, to be designated
17 the "Tobacco Prevention and Cessation Revolving Fund". The fund
18 shall be a continuing fund, not subject to fiscal year limitations,
19 and shall consist of all monies deposited to the credit of the fund
20 by law. All monies accruing to the credit of the fund are hereby
21 appropriated and may be budgeted and expended by the State
22 Department of Health for purposes of paragraph 2 of subsection C of
23 Section 1, Chapter 340, O.S.L. 2000. Expenditures from the fund
24 shall be made upon warrants issued by the State Treasurer against

1 claims filed as prescribed by law with the ~~Director~~ Chief Operating
2 Officer of the Office of Management and Enterprise Services for
3 approval and payment.

4 SECTION 423. AMENDATORY 63 O.S. 2021, Section 1-107, is
5 amended to read as follows:

6 Section 1-107. There is hereby created in the State Treasury a
7 revolving fund to be known as the Public Health Special Fund. All
8 monies, fees and revenues collected, authorized or received from any
9 source by the State Commissioner of Health or the State Department
10 of Health under the provisions of this Code or any other law or any
11 agreement shall, unless otherwise expressly provided in this Code or
12 other law, be placed in said fund. Said fund shall be a continuing
13 fund not subject to fiscal year limitations. All monies accruing to
14 the credit of said fund are hereby appropriated and may be budgeted
15 and expended by the Commissioner for the purpose of maintaining and
16 operating the State Department of Health, and in administering and
17 executing the laws pertaining to the duties and functions of the
18 State Department of Health. Expenditures from said fund shall be
19 made upon warrants issued by the State Treasurer against claims
20 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
21 of the Office of Management and Enterprise Services for approval and
22 payment.

23 SECTION 424. AMENDATORY 63 O.S. 2021, Section 1-107.1A,
24 is amended to read as follows:

1 Section 1-107.1A. A. There is hereby created in the State
2 Treasury a Revolving Fund for the State Department of Health to be
3 designated the "Eldercare Revolving Fund". The fund shall be a
4 continuing fund, not subject to fiscal year limitations, and shall
5 consist of all monies deposited to the credit of the fund by law.

6 B. All monies accruing to the credit of the fund are hereby
7 appropriated and may be budgeted and expended by the State
8 Department of Health for operation of local Eldercare case
9 management programs. A full accounting of the expenditures of the
10 program shall be sent to the Speaker of the House of
11 Representatives, the President Pro Tempore of the Senate, and the
12 Governor by January 15 of each year. Expenditures from the fund
13 shall be made upon warrants issued by the State Treasurer against
14 claims filed as prescribed by law with the ~~Director~~ Chief Operating
15 Officer of the Office of Management and Enterprise Services for
16 approval and payment.

17 C. The Eldercare Revolving Fund shall not be used for the costs
18 the State Department of Health incurs in administering the local
19 programs.

20 D. The State Department of Health shall recognize and reimburse
21 indirect costs for Eldercare programs, administered by contractors,
22 if the costs are charged in accordance with an indirect cost
23 allocation plan developed in accordance with federal guidelines
24 established by the United States Office of Management and Budget

1 Circular A-87. In no case shall the State Department of Health
2 reimburse indirect costs in excess of twenty percent (20%) of total
3 direct salaries for Eldercare and Advantage program personnel.

4 SECTION 425. AMENDATORY 63 O.S. 2021, Section 1-107.2,
5 is amended to read as follows:

6 Section 1-107.2. There is hereby created in the State Treasury
7 a revolving fund for the State Department of Health, to be
8 designated the "Vaccine Revolving Fund". The fund shall be a
9 continuing fund, not subject to fiscal year limitations, and shall
10 consist of all monies deposited to the credit of the fund by law.

11 All monies accruing to the credit of said fund are hereby
12 appropriated and may be budgeted and expended by the State
13 Department of Health for the purchase of vaccines. Expenditures
14 from said fund shall be made upon warrants issued by the State
15 Treasurer against claims filed as prescribed by law with the
16 ~~Director~~ Chief Operating Officer of the Office of Management and
17 Enterprise Services for approval and payment.

18 SECTION 426. AMENDATORY 63 O.S. 2021, Section 1-107.3,
19 is amended to read as follows:

20 Section 1-107.3. There is hereby created in the State Treasury
21 a revolving fund for the State Department of Health, to be
22 designated as the "Health Department Media Campaign Revolving Fund".
23 The fund shall be a continuing fund, not subject to fiscal year
24 limitations, and shall consist of all monies deposited to the credit

1 of the fund by law. All monies accruing to the credit of said fund
2 shall be budgeted and expended by the State Department of Health for
3 media campaigns. Expenditures from said fund shall be made upon
4 warrants issued by the State Treasurer against claims filed as
5 prescribed by law with the ~~Director~~ Chief Operating Officer of the
6 Office of Management and Enterprise Services for approval and
7 payment.

8 SECTION 427. AMENDATORY 63 O.S. 2021, Section 1-107.4,
9 is amended to read as follows:

10 Section 1-107.4. A. There is hereby created in the State
11 Treasury a fund for the State Department of Health to be designated
12 the "Oklahoma Department of Health Civil Monetary Penalty Revolving
13 Fund". The fund shall be a continuing fund, not subject to fiscal
14 year limitations. It shall consist of monies received by the State
15 Department of Health which emanate from fines and assessments
16 against Oklahoma nursing homes and other long-term and non-long-term
17 care facilities found to be noncompliant with federal conditions of
18 participation.

19 B. All monies accruing to the credit of the fund are hereby
20 appropriated and may be budgeted and expended by the State
21 Department of Health at the discretion of the Commissioner of Health
22 for the protection of the health or property of residents of nursing
23 facilities.

1 C. All expenditures shall be in compliance with requirements of
2 the Centers for Medicare and Medicaid Services. Expenditures from
3 the fund shall be made upon warrants issued by the State Treasurer
4 against claims filed as prescribed by law with the ~~Director~~ Chief
5 Operating Officer of the Office of Management and Enterprise
6 Services for approval and payment.

7 D. The Commissioner of Health may request the ~~Director~~ Chief
8 Operating Officer of the Office of Management and Enterprise
9 Services to transfer monies between the Oklahoma Department of
10 Health Civil Monetary Penalty Revolving Fund and any other fund of
11 the Department, as needed for the proper expenditure of funds.

12 SECTION 428. AMENDATORY 63 O.S. 2021, Section 1-110.1,
13 is amended to read as follows:

14 Section 1-110.1. A. There is hereby created in the State
15 Treasury a revolving fund for the State Department of Health to be
16 designated the "Children First Fund". The fund shall be a
17 continuing fund, not subject to fiscal year limitations, and shall
18 consist of all monies deposited to the credit of the fund by law.
19 All monies accruing to the credit of the fund are hereby
20 appropriated and may be budgeted and expended by the State
21 Department of Health for operation of Children First family resource
22 programs. Expenditures from the fund shall be made upon warrants
23 issued by the State Treasurer against claims filed as prescribed by
24

1 law with the ~~Director~~ Chief Operating Officer of the Office of
2 Management and Enterprise Services for approval and payment.

3 B. The State Department of Health shall submit to the Speaker
4 of the House of Representatives, the President Pro Tempore of the
5 Senate, and the Governor by January 15 of each year, an annual
6 report, including a full accounting of administrative expenditures
7 from the fund for the prior fiscal year, and a summary detailing the
8 demographic characteristics of families served including, but not
9 limited to, the following:

- 10 1. Age and marital status of parent(s);
- 11 2. Household composition of families served;
- 12 3. Number of families accepted into the program, by location,
13 and average length of time enrolled;
- 14 4. Referrals made on behalf of families not accepted into the
15 program; and
- 16 5. Average actual expenditures per child during the most recent
17 state fiscal year.

18 C. Projects shall comply with the uniform components of the
19 State Plan for the Prevention of Child Abuse.

20 D. The Department shall forward to the Oklahoma Health Care
21 Authority a report of the total number of hours of nursing services
22 provided to families under Children First family resource programs.
23 The Oklahoma Health Care Authority shall submit such information to
24 the Centers for Medicaid and Medicare Services for purposes of

1 applying for federal matching funds and shall submit any necessary
2 applications for waivers to accomplish the provisions of this
3 subsection.

4 E. The State Department of Health shall contract with a
5 university-related program for a performance-based evaluation of
6 programs. Program sites shall fully cooperate and comply with the
7 evaluation process, and sites shall provide weekly caseload and
8 referral information to the State Department of Health.

9 SECTION 429. AMENDATORY Section 1, Chapter 439, O.S.L.
10 2024 (63 O.S. Supp. 2025, Section 1-114.21), is amended to read as
11 follows:

12 Section 1-114.21. There is hereby created in the State Treasury
13 a revolving fund for the State Department of Health to be designated
14 the "Public School Vision Screening Modernization Revolving Fund".
15 The fund shall be a continuing fund, not subject to fiscal year
16 limitations, and shall consist of all monies deposited to the credit
17 of the fund by law or from private funds donated for one or both of
18 the purposes listed in this section. All monies accruing to the
19 credit of the fund are hereby appropriated and may be budgeted and
20 expended by the State Department of Health for the following
21 purposes:

22 1. Awarding grants to public schools as provided by Section 2
23 of this act; and
24

2. Collection of necessary vision screening data including, but not limited to, through the cloud-based platform and data management system described in Section 1210.284 of Title 70 of the Oklahoma Statutes.

Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 430. AMENDATORY 63 O.S. 2021, Section 1-229.3, is amended to read as follows:

Section 1-229.3. A. There is hereby created in the State Treasury a revolving fund for the State Department of Health to be designated the "Tobacco Use Reduction Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies appropriated thereto by the Legislature, any other funds that may be directed thereto by the Board of Directors of the Tobacco Settlement Endowment Trust Fund, and all other monies including gifts, grants and other funds that may be directed thereto. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Department for the purpose of the State Plan for Tobacco Use Prevention and Cessation and for other purposes specifically authorized by this act. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law

1 with the ~~Director~~ Chief Operating Officer of the Office of
2 Management and Enterprise Services for approval and payment.

3 B. The fund shall be administered by the State Department of
4 Health.

5 C. Monies from the fund shall not be used to engage in any
6 political activities or lobbying, including, but not limited to,
7 support of or opposition to candidates, ballot initiatives,
8 referenda or other similar activities.

9 SECTION 431. AMENDATORY 63 O.S. 2021, Section 1-229.33,
10 is amended to read as follows:

11 Section 1-229.33. There is hereby created in the State Treasury
12 a revolving fund for the Department of Mental Health and Substance
13 Abuse Services to be designated the "Prevention of Youth Access to
14 Alcohol Revolving Fund". The fund shall be a continuing fund, not
15 subject to fiscal year limitations, and shall consist of all monies
16 received by the Department of Mental Health and Substance Abuse
17 Services from fines collected pursuant to Section 241 of this title.
18 All monies accruing to the credit of said fund are hereby
19 appropriated and may be budgeted and expended by the Department of
20 Mental Health and Substance Abuse Services for the purpose of
21 programs and campaigns to educate the public and law enforcement
22 about the dangers and consequences of providing alcohol to minors.
23 Expenditures from said fund shall be made upon warrants issued by
24 the State Treasurer against claims filed as prescribed by law with

1 the ~~Director~~ Chief Operating Officer of the Office of Management and
2 Enterprise Services for approval and payment.

3 SECTION 432. AMENDATORY 63 O.S. 2021, Section 1-291.3,
4 is amended to read as follows:

5 Section 1-291.3. There is hereby created in the State Treasury
6 a revolving fund for the Department of Veterans Affairs to be
7 designated the "Veterans Traumatic Brain Injury Treatment and
8 Recovery Revolving Fund". The fund shall be a continuing fund, not
9 subject to fiscal year limitations, and shall consist of all the
10 monies received by the Department of Veterans Affairs in the form of
11 donations, appropriations or other monies for such fund. All monies
12 accruing to the credit of the fund are appropriated and may be
13 budgeted and expended by the Department for the purpose of veterans'
14 treatment as provided by law. Expenditures from the fund shall be
15 made upon warrants issued by the State Treasurer against claims
16 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
17 of the Office of Management and Enterprise Services for approval and
18 payment.

19 SECTION 433. AMENDATORY 63 O.S. 2021, Section 1-291.5,
20 is amended to read as follows:

21 Section 1-291.5. Any Oklahoma veteran who has been diagnosed
22 with a traumatic brain injury (TBI) and prescribed hyperbaric oxygen
23 treatment (HBOT) by a medical professional authorized under Section
24 2 of this act may receive HBOT at any facility in the state that has

1 a hyperbaric chamber and provides treatment in accordance with
2 Section 2 of this act.

3 Prior to receiving treatment, a treatment plan for the TBI by
4 HBOT shall be reviewed and conform to a plan approved by the
5 Oklahoma State University Center for Aerospace and Hyperbaric
6 Medicine. The facility seeking reimbursement from the fund shall
7 request approval for funding from the ~~Director~~ Chief Operating
8 Officer of the Office of Management and Enterprise Services. Upon
9 receipt of an approved request for treatment, the funds for
10 treatment shall be set aside and used to ensure payment in full for
11 the veteran's treatment. If there is not enough money in the fund
12 to set aside for treatment reimbursement, the ~~Director~~ Chief
13 Operating Officer of Office of Management and Enterprise Services
14 shall deny approval of the request.

15 At the conclusion of six (6) months of no treatment and/or the
16 lack of submission of any bills, the ~~Director~~ Chief Operating
17 Officer of the Office of Management and Enterprise Services shall
18 advise the veteran and the participating facility that the funding
19 reserved for the HBOT shall expire within ninety (90) days if no
20 contact is made by the facility that treatment is scheduled and/or
21 continued. Should the facility fail to contact the Office of
22 Management and Enterprise Services with the information that
23 treatment is scheduled and/or continued, then the monies reserved
24

for treatment of that veteran shall be released and made available to another veteran meeting the requirements of this act.

SECTION 434. AMENDATORY 63 O.S. 2021, Section 1-291.6, is amended to read as follows:

Section 1-291.6. Subject to the availability of funding, participating facilities who provide HBOT to veterans suffering from TBI shall provide treatment at no cost to the veteran and shall submit a bill for any treatment to the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services. The bill shall be paid from the Veterans Traumatic Brain Injury Treatment and Recovery Revolving Fund to the extent funds are available. Should the costs of the treatment exceed the availability of funds, the veteran treated shall be held harmless from any costs of treatment by the facility and the state shall be under no obligation to make payments beyond the approved amount in the fund created in Section 3 of this act and set aside for that purpose by the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services.

SECTION 435. AMENDATORY 63 O.S. 2021, Section 1-557, is amended to read as follows:

Section 1-557. A. 1. There is hereby created in the State Treasury a revolving fund for the State Department of Health to be designated the "Breast and Cervical Cancer Act Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year

1 limitations, and shall consist of all monies received by the fund
2 and gifts or donations to the fund.

3 2. All monies donated or accruing to the credit of the fund are
4 hereby appropriated and may be budgeted and expended by the State
5 Department of Health for the purposes specified in and associated
6 with implementation of the Oklahoma Breast and Cervical Cancer Act.

7 3. Monies from the fund may be transferred to the Breast and
8 Cervical Cancer Prevention and Treatment Account and shall be used
9 to carry out the purposes specified in Section 1-556 of this title.

10 4. Expenditures from the fund shall be made upon warrants
11 issued by the State Treasurer against claims filed as prescribed by
12 law with the ~~Director~~ Chief Operating Officer of the Office of
13 Management and Enterprise Services for approval and payment.

14 B. Monies in the Breast and Cervical Cancer Act Revolving Fund
15 may be expended by the State Department of Health for promotional
16 activities to encourage donations to the Breast and Cervical Cancer
17 Act Revolving Fund by individuals and private businesses or
18 foundations.

19 SECTION 436. AMENDATORY 63 O.S. 2021, Section 1-559, is
20 amended to read as follows:

21 Section 1-559. A. There is hereby created in the State
22 Treasury a revolving fund for the Oklahoma Health Care Authority to
23 be designated the "Belle Maxine Hilliard Breast and Cervical Cancer
24 Treatment Revolving Fund". The fund shall be a continuing fund, not

1 subject to fiscal year limitations, and shall consist of all monies
2 received by the Oklahoma Health Care Authority from appropriations,
3 gifts or donations.

4 B. All monies accruing to the credit of such fund are hereby
5 appropriated and may be budgeted and expended by the Oklahoma Health
6 Care Authority for the purpose specified and associated with the
7 Oklahoma Breast Cancer Act.

8 C. Expenditures from the fund shall be made upon warrants
9 issued by the State Treasurer against claims filed as prescribed by
10 law with the ~~Director~~ Chief Operating Officer of the Office of
11 Management and Enterprise Services for approval and payment.

12 SECTION 437. AMENDATORY 63 O.S. 2021, Section 1-570, is
13 amended to read as follows:

14 Section 1-570. A. There is hereby created in the State
15 Treasury a revolving fund for the State Department of Health to be
16 designated the "Genetic Counseling Licensure Revolving Fund". The
17 fund shall be a continuing fund, not subject to fiscal year
18 limitations, and shall consist of all monies that may be directed
19 thereto by the State Board of Health, and all other monies including
20 gifts, grants and other funds that may be directed thereto. All
21 monies accruing to the credit of the fund are hereby appropriated
22 and may be budgeted and expended by the Board for the purpose of
23 licensure of genetic counselors and for other purposes specifically
24 authorized by this act. Expenditures from the fund shall be made

1 upon warrants issued by the State Treasurer against claims filed as
2 prescribed by law with the ~~Director~~ Chief Operating Officer of the
3 Office of Management and Enterprise Services for approval and
4 payment.

5 B. The fund shall be administered by the State Department of
6 Health.

7 C. Monies from the fund shall not be used to engage in any
8 political activities or lobbying including, but not limited to,
9 support of or opposition to candidates, ballot initiatives,
10 referenda or other similar activities.

11 SECTION 438. AMENDATORY Section 3, Chapter 144, O.S.L.
12 2025 (63 O.S. Supp. 2025, Section 1-580.2), is amended to read as
13 follows:

14 Section 1-580.2. There is hereby created in the Oklahoma State
15 Treasury a revolving fund for the State Department of Health to be
16 designated the "Barbara Weber Amyotrophic Lateral Sclerosis (ALS)
17 Grant Program Revolving Fund". The fund shall be a continuing fund,
18 not subject to fiscal year limitations, and shall consist of all
19 monies received by the State Department of Health from
20 appropriations, donations, grants, or other sources of funding
21 specifically designated for deposit to the Barbara Weber Amyotrophic
22 Lateral Sclerosis (ALS) Grant Program Revolving Fund. All monies
23 accruing to the credit of said fund are hereby appropriated and may
24 be budgeted and expended by the State Department of Health for the

1 purpose of the Barbara Weber Amyotrophic Lateral Sclerosis (ALS)
2 Grant Program. Expenditures from said fund shall be made upon
3 warrants issued by the State Treasurer against claims filed as
4 prescribed by law with the ~~Director~~ Chief Operating Officer of the
5 Office of Management and Enterprise Services for approval and
6 payment.

7 SECTION 439. AMENDATORY 63 O.S. 2021, Section 1-604, is
8 amended to read as follows:

9 Section 1-604. The Oklahoma General Hospital located at
10 Clinton, Oklahoma, shall be transferred at the close of regular
11 business hours on June 30, 1973, to the City of Clinton, Oklahoma.
12 Included within such transfer shall be the physical plant, all
13 equipment and supplies, and the following described land:

14 Lots 13 to 24, inclusive, Block 2, Shoeboy Addition, City of
15 Clinton, County of Custer, State of Oklahoma.

16 The ~~Director~~ Chief Operating Officer of the Office of Management and
17 Enterprise Services is hereby authorized and directed to execute and
18 deliver, on behalf of this state, instruments conveying title to
19 said real and personal property to the City of Clinton, Oklahoma.

20 There shall also be transferred to the City of Clinton all
21 accounts receivable including revolving funds of the Oklahoma
22 General Hospital. Any outstanding obligations of the Oklahoma
23 General Hospital shall be assumed by the City of Clinton.

SECTION 440. AMENDATORY 63 O.S. 2021, Section 1-723, is amended to read as follows:

Section 1-723. A. There is hereby created in the State Treasury a revolving fund for the State Department of Health to be designated the "Primary Health Care Development Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of appropriations, grants, gifts and other money obtained pursuant to this act.

B. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the State Department of Health for the enhancement and establishment of federally qualified health centers or federally qualified look-alike community health centers, as defined by 42 U.S.C., Section 13986d(1)(2)(B).

C. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 441. AMENDATORY 63 O.S. 2021, Section 1-740.12, is amended to read as follows:

Section 1-740.12. There is hereby created in the State Treasury a revolving fund for the State Department of Health to be designated the "Alternatives-to-Abortion Services Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations,

1 and shall consist of all monies deposited to the credit of the fund
2 by law. All monies accruing to the credit of the fund are hereby
3 appropriated and may be budgeted and expended by the State
4 Department of Health as provided in subsection A of Section 1-740.11
5 of this title. The fund shall not be available to any organization
6 or affiliate of an organization which provides or promotes abortions
7 or directly refers for abortion; provided, however, any nondirective
8 counseling relating to the pregnancy shall not disqualify an
9 organization from receiving these funds. Expenditures from the fund
10 shall be made upon warrants issued by the State Treasurer against
11 claims filed as prescribed by law with the ~~Director~~ Chief Operating
12 Officer of the Office of Management and Enterprise Services for
13 approval and payment.

14 SECTION 442. AMENDATORY Section 1, Chapter 421, O.S.L.
15 2024 (63 O.S. Supp. 2025, Section 1-740.20), is amended to read as
16 follows:

17 Section 1-740.20. There is hereby created in the State Treasury
18 a revolving fund for the State Department of Health to be designated
19 the "Choosing Childbirth Revolving Fund". The fund shall be a
20 continuing fund, not subject to fiscal year limitations, and shall
21 consist of all monies received by the Department from appropriations
22 provided for the purpose of funding services under the Choosing
23 Childbirth Act. All monies accruing to the credit of the fund are
24 hereby appropriated and may be budgeted and expended by the

Department for the purpose provided for in this section.
Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 443. AMENDATORY 63 O.S. 2021, Section 1-755, is amended to read as follows:

Section 1-755. There is hereby created in the State Treasury a revolving fund for the State Board of Education to be designated as the "Public Education on the Humanity of the Unborn Child Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies deposited to the credit of the fund by law. All monies accruing to the credit of said fund shall be budgeted and expended by the Board for the establishment of the instruction programs established in Section 4 of this act. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 444. AMENDATORY 63 O.S. 2021, Section 1-857.6, is amended to read as follows:

Section 1-857.6. A. The Oklahoma Health Planning Commission is hereby abolished, and the powers, duties and responsibilities exercised by such Commission pursuant to law are hereby transferred

1 to the State Department of Health and the State Commissioner of
2 Health. All unexpended funds, property, records, personnel and any
3 outstanding financial obligations and encumbrances of such office
4 are hereby transferred to the State Department of Health and the
5 State Commissioner of Health.

6 B. The ~~Director~~ Chief Operating Officer of the Office of
7 Management and Enterprise Services is hereby directed to coordinate
8 the transfer of funds, allotments, purchase orders, outstanding
9 financial obligations or encumbrances provided for in this section.

10 C. Any application for a certificate of need which was duly
11 filed with the Oklahoma Health Planning Commission prior to the
12 effective date of the Long-term Care Certificate of Need Act or the
13 Psychiatric and Chemical Dependency Facility Certificate of Need Act
14 shall be reviewed and approved or disapproved pursuant to criteria
15 and procedures in effect at the time such application was filed.
16 Any application for Certificate of Need not scheduled for review at
17 the regularly scheduled June, 1989, Commission meeting or by the
18 ~~Director~~ Chief Operating Officer before July 1, 1989, shall be
19 considered to have been duly filed with the State Department of
20 Health. In all appellate matters, including but not limited to
21 reconsideration and remand, the Department shall be considered as
22 the Commission.

23 D. The rules of the Oklahoma Health Planning Commission in
24 effect on July 1, 1989, shall be enforceable by the State Department

1 of Health and shall remain effective until the adoption of new rules
2 by the State Board of Health.

3 E. Any references to the Oklahoma Health Planning Commission in
4 the Oklahoma Statutes shall be construed to refer to the State
5 Department of Health.

6 SECTION 445. AMENDATORY 63 O.S. 2021, Section 1-860.16,
7 is amended to read as follows:

8 Section 1-860.16. There is hereby created in the State Treasury
9 a revolving fund for the State Department of Health, to be
10 designated the "Hospice Revolving Fund". The fund shall be a
11 continuing fund, not subject to fiscal year limitations, and shall
12 consist of all monies received by the Department, from any monies
13 received as a result of fees received pursuant to the provisions of
14 the Oklahoma Hospice Licensing Act and any monies appropriated to
15 the fund by law. All monies accruing to the credit of said fund are
16 hereby appropriated and may be budgeted and expended by the
17 Department to effectuate the provisions of the Oklahoma Hospice
18 Licensing Act. Expenditures from said fund shall be made upon
19 warrants issued by the State Treasurer against claims filed as
20 prescribed by law with the ~~Director~~ Chief Operating Officer of the
21 Office of Management and Enterprise Services for approval and
22 payment.

23 SECTION 446. AMENDATORY 63 O.S. 2021, Section 330.62, as
24 amended by Section 7, Chapter 271, O.S.L. 2023, and as renumbered by

Section 15, Chapter 271, O.S.L. 2023 (63 O.S. Supp. 2025, Section 1-1949.5), is amended to read as follows:

Section 1-1949.5. There is hereby created in the State Treasury a revolving fund for the State Department of Health to be designated the "Long-Term Care Administrator Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of such sources of income as are provided by law. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Department to carry out the duties established by this act. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 447. AMENDATORY 63 O.S. 2021, Section 1-1971, is amended to read as follows:

Section 1-1971. There is hereby created in the State Treasury a revolving fund for the State Department of Health, to be designated as the "Home Health Care Revolving Fund". Said fund shall be a continuing fund not subject to fiscal year limitations. The fund shall consist of all monies collected pursuant to the provisions of Section 1-1965 and Section 1-1966 of this title. All monies accruing to said fund are hereby appropriated and shall be budgeted and expended by the State Department of Health for licensure and

1 regulation of home care agencies and branch offices. Expenditures
2 from said fund shall be made upon warrants issued by the State
3 Treasurer against claims filed as prescribed by law with the
4 ~~Director~~ Chief Operating Officer of the Office of Management and
5 Enterprise Services for approval and payment.

6 SECTION 448. AMENDATORY Section 2, Chapter 339, O.S.L.
7 2024 (63 O.S. Supp. 2025, Section 1-2213.1), is amended to read as
8 follows:

9 Section 1-2213.1. A. Upon the effective date of this act, the
10 Office of the State Long-Term Care Ombudsman within the Department
11 of Human Services shall transfer to the Office of the Attorney
12 General. The Office of the State Long-Term Care Ombudsman shall
13 continue to exercise its statutory powers and duties.

14 B. All equipment, supplies, records, matters pending, assets,
15 future liabilities, fund balances, encumbrances, obligations,
16 indebtedness, and legal and contractual rights and responsibilities
17 of the Office of the State Long-Term Care Ombudsman shall be
18 transferred to the Office of the Attorney General.

19 C. Any monies accruing to or in the name of the Office of the
20 State Long-Term Care Ombudsman on and after the effective date of
21 this act, or any monies that accrue in any funds or accounts or are
22 maintained for the benefit of the Office on and after the effective
23 date of this act, shall be transferred to the Office of the Attorney
24 General.

1 D. The Department of Human Services and the Office of the
2 Attorney General may enter into an agreement for the transfer of
3 personnel. No employee shall be transferred to the Office of the
4 Attorney General except on the freely given written consent of the
5 employee. Any employee who is transferred shall not be required to
6 accept a lesser grade or salary than presently received. All
7 employees shall retain leave, sick, and annual time earned, and any
8 retirement and longevity benefits which have accrued during their
9 tenure with the Department of Human Services. The transfer of
10 personnel between the state agencies shall be coordinated with the
11 Office of Management and Enterprise Services.

12 E. The ~~Director~~ Chief Operating Officer of the Office of
13 Management and Enterprise Services shall coordinate the transfer of
14 funds, allotments, purchase orders, and outstanding financial
15 obligations or encumbrances as provided for in this section.

16 F. Upon the effective date of this act, all administrative
17 rules promulgated by the Director of Human Services for the Office
18 of the State Long-Term Care Ombudsman shall be transferred to and
19 become a part of the administrative rules of the Office of the
20 Attorney General. The Office of Administrative Rules in the Office
21 of the Secretary of State shall provide adequate notice in "The
22 Oklahoma Register" of the transfer of such rules and shall place the
23 transferred rules under the Oklahoma Administrative Code title of
24 the Office of the Attorney General. Such rules shall continue in

1 force and effect as rules of the Office of the Attorney General from
2 and after the effective date of this act, and any amendment, repeal,
3 or addition to the transferred rules shall be under the jurisdiction
4 of the Attorney General.

5 SECTION 449. AMENDATORY 63 O.S. 2021, Section 1-2505.2,
6 is amended to read as follows:

7 Section 1-2505.2. There is hereby created in the State Treasury
8 a revolving fund for the State Department of Health to be designated
9 the "Emergency Medical Personnel Death Benefit Revolving Fund". The
10 fund shall be a continuing fund, not subject to fiscal year
11 limitations, and shall consist of all monies received by the State
12 Department of Health from the fees imposed pursuant to Section 1-
13 2505.3 of this title. All monies accruing to the credit of said
14 fund are hereby appropriated and may be budgeted and expended by the
15 State Department of Health for the purpose of making death benefit
16 payments to the named beneficiary or personal representative of a
17 deceased licensed emergency medical personnel or certified emergency
18 medical responder pursuant to Section 1-2505.1 of this title.

19 Expenditures from said fund shall be made upon warrants issued by
20 the State Treasurer against claims filed as prescribed by law with
21 the ~~Director~~ Chief Operating Officer of the Office of Management and
22 Enterprise Services for approval and payment.

23 SECTION 450. AMENDATORY 63 O.S. 2021, Section 1-2512.1,
24 is amended to read as follows:

1 Section 1-2512.1. A. There is hereby created in the State
2 Treasury a revolving fund for the State Department of Health to be
3 designated the "Oklahoma Emergency Response Systems Stabilization
4 and Improvement Revolving Fund". The fund shall be a continuing
5 fund, not subject to fiscal year limitations, and shall consist of
6 monies received by the State Department of Health in accordance with
7 state law. All monies accruing to the credit of the fund are hereby
8 appropriated and may be budgeted and expended by the Department for
9 the purpose of funding assessment activities, stabilization and/or
10 reorganization of at-risk emergency medical services, development of
11 regional emergency medical services, training for emergency medical
12 directors, access to training front line emergency medical services
13 personnel, capital and equipment needs. Expenditures from the fund
14 shall be made upon warrants issued by the State Treasurer against
15 claims filed as prescribed by law with the ~~Director~~ Chief Operating
16 Officer of the Office of Management and Enterprise Services for
17 approval and payment.

18 B. The State Board of Health shall promulgate rules
19 establishing a formula and procedure for the distribution of funds
20 from the Oklahoma Emergency Response Systems Stabilization and
21 Improvement Revolving Fund.

22 SECTION 451. AMENDATORY 63 O.S. 2021, Section 1-2523, is
23 amended to read as follows:
24

1 Section 1-2523. There is hereby created in the State Treasury a
2 revolving fund for the State Department of Health, to be designated
3 the "Oklahoma Institute for Disaster and Emergency Medicine
4 Revolving Fund". The fund shall be a continuing fund, not subject
5 to fiscal year limitations, and shall consist of all monies received
6 by the State Department of Health from state appropriations for such
7 fund. All monies accruing to the credit of said fund are hereby
8 appropriated and may be budgeted and expended by the State
9 Department of Health as follows:

10 The State Department of Health is authorized to develop and
11 support the Oklahoma Institute for Disaster and Emergency Medicine
12 (the "Institute") at the OU College of Medicine in Tulsa. The
13 primary duties and responsibilities of the Institute shall include:

14 1. Creation and delivery of educational initiatives related to
15 trauma systems development and trauma systems coordination, in order
16 to strengthen the quality of trauma care services rendered
17 statewide;

18 2. Development and support of an emergency medical response
19 infrastructure to include statewide planning and training functions;

20 3. Establishment and support of an allopathic emergency
21 medicine residency program in Oklahoma; and

22 4. In partnership with the State Department of Health, to
23 further develop an injury prevention research program to identify
24

significant risks and design and implement effective interventions to mitigate those risks.

Up to Five Hundred Thousand Dollars (\$500,000.00) of this fund may be used for delivery of urgent care in under-served areas.

Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 452. AMENDATORY 63 O.S. 2021, Section 1-2530.9, is amended to read as follows:

Section 1-2530.9. A. There is hereby created in the State Treasury a revolving fund for the State Department of Health to be designated the "Trauma Care Assistance Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the State Department of Health from monies apportioned thereto for purposes of this section. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Department as follows:

1. Ninety percent (90%) of such monies shall be used to reimburse recognized trauma facilities, licensed ambulance service providers and physicians for uncompensated trauma care expenditures as documented in the statewide emergency medical services and trauma analysis system developed pursuant to the provisions of Section 1-

2511 of this title. In lieu of or in combination with reimbursement for uncompensated care, monies from the fund may also be used to support readiness costs incurred by recognized trauma facilities associated with ensuring a stable trauma care system with availability of twenty-four-hour physician services for the provision of trauma care. Any monies used for the treatment of Medicaid-eligible patients that are subsequently used to establish federal matching fund requirements shall also be reimbursed to eligible trauma facilities, licensed ambulance service providers and physicians; and

2. Ten percent (10%) of such monies shall be used by the Department in the furtherance of its powers and duties set forth in the Oklahoma Emergency Response Systems Development Act.

B. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

C. The State Board of Health shall establish by rule a formula and procedure for the distribution of funds for uncompensated trauma care and/or readiness costs that shall provide for the allocation of funds to hospitals, ambulance service providers and physicians.

D. Annually, monies accumulated in the fund may be transferred to the Oklahoma Health Care Authority, by order of the State Commissioner of Health, to maximize Medicaid reimbursement of trauma

1 care. The Oklahoma Health Care Authority shall use these funds with
2 federal matching funds to reimburse hospitals, ambulance service
3 providers and physicians for trauma care provided to severely
4 injured patients who are participants in Medicaid.

5 E. An annual report detailing the disbursements from the fund
6 shall be provided on January 1 of each year to the Speaker of the
7 House of Representatives, the President Pro Tempore of the Senate,
8 and the Chair of each health-related committee of both the House of
9 Representatives and the Senate.

10 SECTION 453. AMENDATORY 63 O.S. 2021, Section 1-2603, is
11 amended to read as follows:

12 Section 1-2603. There is hereby created in the State Treasury a
13 revolving fund for the State Department of Health, to be designated
14 the "Kidney Health Revolving Fund". The fund shall be a continuing
15 fund, not subject to fiscal year limitations, and shall consist of
16 all monies received by the State Department of Health from state
17 appropriations for such fund. All monies accruing to the credit of
18 said fund are hereby appropriated and may be budgeted and expended
19 by the State Department of Health for the purpose of implementing
20 the provisions of the Kidney Health Planning Act of Oklahoma.

21 Expenditures from said fund shall be made upon warrants issued by
22 the State Treasurer against claims filed as prescribed by law with
23 the ~~Director~~ Chief Operating Officer of the Office of Management and
24 Enterprise Services for approval and payment.

SECTION 454. AMENDATORY 63 O.S. 2021, Section 1-2714, is amended to read as follows:

Section 1-2714. There is hereby created in the State Treasury a revolving fund for the State Department of Health to be designated the "Dental Loan Repayment Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies deposited to the credit of the fund by law. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the State Department of Health for the purpose of repaying dental student loans. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 455. AMENDATORY 63 O.S. 2021, Section 1-2733, as amended by Section 1, Chapter 142, O.S.L. 2023 (63 O.S. Supp. 2025, Section 1-2733), is amended to read as follows:

Section 1-2733. There is hereby created in the State Treasury a revolving fund for the State Department of Mental Health and Substance Abuse to be designated the "Behavioral Health Workforce Development Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies deposited to the credit of the fund by law. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted

1 and expended by the State Department of Mental Health and Substance
2 Abuse Services for the purpose of repaying mental health and
3 substance treatment provider student loans, increasing the number of
4 psychiatric residencies, expanding licensure cohorts to increase the
5 number of clinicians at master's level and above, and developing
6 training, recruitment and supervision capacity. Expenditures from
7 the fund shall be made upon warrants issued by the State Treasurer
8 against claims filed as prescribed by law with the ~~Director~~ Chief
9 Operating Officer of the Office of Management and Enterprise
10 Services for approval and payment.

11 B. The State Department of Mental Health and Substance Abuse
12 Services shall make every attempt to work with health care loan
13 repayment programs operated by other states, tribal, and federal
14 agencies, including applying for matching federal grants, with the
15 goal of maximizing and coordinating resources to fill gaps in loan
16 repayment availability for critically-needed mental health
17 professions.

18 C. The Department of Mental Health and Substance Abuse Services
19 shall promulgate rules to effectuate the provisions of this section.

20 SECTION 456. AMENDATORY 63 O.S. 2021, Section 2-107, is
21 amended to read as follows:

22 Section 2-107. There is hereby created in the State Treasury a
23 revolving fund for the Oklahoma State Bureau of Narcotics and
24 Dangerous Drugs Control to be designated the "Bureau of Narcotics

Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of any monies received from the sale of surplus and confiscated property, fees and receipts collected pursuant to the Oklahoma Open Records Act, gifts, bequests, devises, contributions or grants, public or private, including federal funds unless otherwise provided by federal law or regulation, registration fees and receipts relating to prescription pads and receipts from any other source. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control for general operations of the agency. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 457. AMENDATORY 63 O.S. 2021, Section 2-107b, is amended to read as follows:

Section 2-107b. There is hereby created in the State Treasury a revolving fund for the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control to be designated the "Drug Money Laundering and Wire Transmitter Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control from the fees imposed pursuant

1 to Section 2-503.1j of this title. All monies accruing to the
2 credit of the fund are hereby appropriated and may be budgeted and
3 expended by the Oklahoma State Bureau of Narcotics and Dangerous
4 Drugs Control for the purpose of drug enforcement. Expenditures
5 from said fund shall be made upon warrants issued by the State
6 Treasurer against claims filed as prescribed by law with the
7 ~~Director~~ Chief Operating Officer of the Office of Management and
8 Enterprise Services for approval and payment.

9
10 SECTION 458. AMENDATORY 63 O.S. 2021, Section 2-417, is
amended to read as follows:

11 Section 2-417. There is hereby created in the State Treasury a
12 revolving fund for the State Board of Education to be designated the
13 "Drug Abuse Education Revolving Fund". The fund shall be a
14 continuing fund, not subject to fiscal year limitations, and shall
15 consist of fines collected pursuant to the Trafficking in Illegal
16 Drugs Act. All monies accruing to the credit of said fund are
17 hereby appropriated and may be budgeted and expended by the State
18 Board of Education for drug abuse education programs. Expenditures
19 from said fund shall be made upon warrants issued by the State
20 Treasurer against claims filed as prescribed by law with the
21 ~~Director~~ Chief Operating Officer of the Office of Management and
22 Enterprise Services for approval and payment.
23
24

SECTION 459. AMENDATORY 63 O.S. 2021, Section 2-503.2,
is amended to read as follows:

Section 2-503.2. A. 1. Every person convicted of a violation
of the Uniform Controlled Dangerous Substances Act or the
Trafficking In Illegal Drugs Act shall be assessed for each offense
a sum of not less than One Hundred Dollars (\$100.00) nor more than
Three Thousand Dollars (\$3,000.00).

2. The assessment shall be mandatory and in addition to and not
in lieu of any fines, restitution costs, other assessments, or
forfeitures authorized or required by law for the offense. The
assessment required by this section shall not be subject to any
order of suspension. The court shall order either a lump sum
payment or establish a payment schedule.

3. Failure of the offender to comply with the payment schedule
shall be considered contempt of court.

4. For purposes of collection, the assessment order shall not
expire until paid in full, nor shall the assessment order be limited
by the term of imprisonment prescribed by law for the offense, nor
by any term of imprisonment imposed against the offender, whether
suspended or actually served.

B. The assessment provided for in subsection A of this section
shall be collected by the court clerk as provided for collection of
fines and costs. When assessment payments are collected by the
court clerk pursuant to court order, the funds shall be forwarded to

1 the Department of Mental Health and Substance Abuse Services for
2 deposit into its Drug Abuse Education and Treatment Revolving Fund
3 created by this section.

4 C. 1. There is hereby created in the State Treasury a
5 revolving fund for the Department of Mental Health and Substance
6 Abuse Services to be designated the "Drug Abuse Education and
7 Treatment Revolving Fund". The fund shall be a continuing fund, not
8 subject to fiscal year limitations, and shall consist of assessments
9 collected pursuant to this section, court-ordered assessments
10 collected pursuant to Section 11-902 of Title 47 of the Oklahoma
11 Statutes and Section 2-401 of this title, the Oklahoma Drug Court
12 Act, Section 2-2-509 of Title 10A of the Oklahoma Statutes, grants,
13 gifts and other money accruing to the benefit of the fund and the
14 Oklahoma Drug Court Act.

15 2. All monies accruing to the credit of the fund are hereby
16 appropriated and may be budgeted and expended by the Department of
17 Mental Health and Substance Abuse Services for treatment and drug
18 testing of indigent substance abusing offenders pursuant to the
19 Oklahoma Drug Court Act, Section 2-2-205 of Title 10A of the
20 Oklahoma Statutes, and Sections 2-2-506 through 2-2-509 of Title 10A
21 of the Oklahoma Statutes, for substance abuse prevention, drug
22 courts, and continuing education.

23 3. Expenditures from said fund shall be made upon warrants
24 issued by the State Treasurer against claims filed as prescribed by

1 law with the ~~Director~~ Chief Operating Officer of the Office of
2 Management and Enterprise Services for approval and payment.

3 4. Monies expended from this fund shall not supplant other
4 local, state, or federal funds.

5 SECTION 460. AMENDATORY 63 O.S. 2021, Section 2-512, is
6 amended to read as follows:

7 Section 2-512. There is hereby created in the State Treasury a
8 revolving fund to be known as the Drug Eradication and Enforcement
9 Plan Revolving Fund. The fund shall be a continuing fund, not
10 subject to fiscal year limitations, and shall consist of any monies
11 appropriated or transferred to the fund and any monies contributed
12 to the fund from any other source. All monies accruing to the
13 credit of such fund are hereby appropriated and may be budgeted and
14 expended for the purpose of providing grants to district attorneys'
15 offices, sheriffs' offices and municipal police departments. The
16 grants shall be used for eradication of illegal drugs and
17 enforcement of drug laws. Allowable expenditure of the grants shall
18 include, but shall not be limited to, the following purposes:

- 19 1. Purchase of equipment;
- 20 2. Purchase of drug-sniffing dogs;
- 21 3. Matching federal grants or funds;
- 22 4. Funding advanced training programs;
- 23 5. Funding drug education and awareness programs; and
- 24 6. Funding drug courts.

Expenditures from such fund shall be made upon warrants issued by the State Treasurer against claims signed by an authorized state employee and filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 461. AMENDATORY 63 O.S. 2021, Section 79, is amended to read as follows:

Section 79. There is hereby created in the State Treasury a revolving fund to be designated the "Oklahoma Sports Eye Safety Program Revolving Fund" administered by the State Department of Health. The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all the monies received by the State Department of Health pursuant to the provisions of Section 2368.25 of Title 68 of the Oklahoma Statutes, any other section of law and any other monies that may be deposited in the fund to implement the provisions of this act. All monies accruing to the credit of the fund are appropriated and may be budgeted and expended by the State Department of Health for the purposes of:

1. Exploring opportunities to utilize nonprofit organizations to provide sports eye safety information or sports eye safety equipment to children age eighteen (18) and under; and

2. Establishing a sports eye safety grant program for the purchase and distribution of sports eye safety programs and

1 materials to classrooms in this state and sports eye safety
2 protective wear to children age eighteen (18) and under.

3 Expenditures from the fund shall be made upon warrants issued by
4 the State Treasurer against claims filed as prescribed by law with
5 the ~~Director~~ Chief Operating Officer of the Office of Management and
6 Enterprise Services for approval and payment.

7 SECTION 462. AMENDATORY Section 2, Chapter 271, O.S.L.
8 2023 (63 O.S. Supp. 2025, Section 330.52a), is amended to read as
9 follows:

10 Section 330.52a. A. On November 1, 2023, all employees, powers,
11 duties, functions, and responsibilities of the Oklahoma State Board
12 of Examiners for Long-Term Care Administrators shall be transferred
13 to the State Department of Health. The transfer shall include all
14 equipment, supplies, records, assets, current and future
15 liabilities, fund balances, encumbrances, obligations, and
16 indebtedness associated with the Oklahoma State Board of Examiners
17 for Long-Term Care Administrators.

18 B. Any monies accruing to or in the name of the Oklahoma State
19 Board of Examiners for Long-Term Care Administrators on and after
20 November 1, 2023, or any monies that accrue in any funds or accounts
21 or are maintained for the benefit of the Oklahoma State Board of
22 Examiners for Long-Term Care Administrators on and after November 1,
23 2023, shall be transferred to the State Department of Health.

1 C. The State Department of Health shall succeed to any
2 contractual rights and responsibilities incurred by the Oklahoma
3 State Board of Examiners for Long-Term Care Administrators.

4 D. The ~~Director~~ Chief Operating Officer of the Office of
5 Management and Enterprise Services is hereby directed to coordinate
6 the transfer of funds, allotments, purchase orders, and outstanding
7 financial obligations or encumbrances as provided for in this
8 section.

9 E. On November 1, 2023, all administrative rules promulgated by
10 the Oklahoma State Board of Examiners for Long-Term Care
11 Administrators shall be transferred to and become a part of the
12 administrative rules of the State Department of Health. The Office
13 of Administrative Rules in the Secretary of State's office shall
14 provide adequate notice in the Oklahoma Register of the transfer of
15 such rules and shall place the transferred rules under the Oklahoma
16 Administrative Code title of the State Department of Health. Such
17 rules shall continue in force and effect as rules of the State
18 Department of Health from and after November 1, 2023, and any
19 amendment, repeal, or addition to the transferred rules shall be
20 under the jurisdiction of the State Commissioner of Health.

21 F. The state agency known as the Oklahoma State Board of
22 Examiners for Long-Term Care Administrators shall be abolished after
23 all the transfers described in this section have been completed.
24

SECTION 463. AMENDATORY Section 1, Chapter 173, O.S.L. 2022 (63 O.S. Supp. 2025, Section 330.98), is amended to read as follows:

Section 330.98. There is hereby created in the State Treasury a revolving fund for the Department of Emergency Management and Homeland Security, to be designated the "Emergency Management Assistance Compact and Rescue Out of State Deployments Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies deposited to the credit of the fund by law. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Department of Emergency Management and Homeland Security for the direct reimbursement of participating entities deployed through the Oklahoma Department of Emergency Management and Homeland Security that is consistent with the federal Emergency Management Assistance Compact Guidelines. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 464. AMENDATORY Section 1, Chapter 236, O.S.L. 2022 (63 O.S. Supp. 2025, Section 427.3a), is amended to read as follows:

1 Section 427.3a. There is hereby created in the State Treasury a
2 revolving fund for the Oklahoma Medical Marijuana Authority to be
3 designated the "County Sheriff Public Safety Grant Revolving Fund".
4 The fund shall be a continuing fund, not subject to fiscal year
5 limitations, and shall consist of all monies received by the
6 Oklahoma Medical Marijuana Authority that are appropriated or
7 apportioned to this fund, and any federal funds, grants, and
8 donations from any public or private source for the purpose of
9 supporting county sheriffs. All monies accruing to the credit of
10 the fund are hereby appropriated and may be budgeted and expended by
11 the Oklahoma Medical Marijuana Authority for the purpose of
12 establishing programs and providing funding to support county
13 sheriffs to enforce the requirements of state law with respect to
14 the commercial growth of medical marijuana or other related business
15 activity for which a license is required pursuant to the provisions
16 of law governing the production, cultivation, transportation,
17 distribution, sale, or other actions related to medical marijuana.
18 Expenditures from the fund shall be made upon warrants issued by the
19 State Treasurer against claims filed as prescribed by law with the
20 ~~Director~~ Chief Operating Officer of the Office of Management and
21 Enterprise Services for approval and payment.

22 SECTION 465. AMENDATORY Section 5, Chapter 322, O.S.L.
23 2023 (63 O.S. Supp. 2025, Section 427.3b), is amended to read as
24 follows:

Section 427.3b. There is hereby created a petty cash fund for the Oklahoma Medical Marijuana Authority. The fund shall be used by the Authority to supply its agents with money for undercover operations, to perform statutory requirements, and to obtain evidence for case presentations. The amount of the petty cash fund shall be determined by the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services and the Executive Director of the Oklahoma Medical Marijuana Authority. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services shall be authorized to prescribe forms, systems, and procedures for the administration of the petty cash fund.

SECTION 466. AMENDATORY 63 O.S. 2021, Section 427.23, as amended by Section 22, Chapter 251, O.S.L. 2022 (63 O.S. Supp. 2025, Section 427.23), is amended to read as follows:

Section 427.23. The Executive Director of the Oklahoma Medical Marijuana Authority, the Oklahoma Tax Commission, the State Treasurer, the Secretary of State and the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services shall promulgate rules to implement the provisions of the Oklahoma Medical Marijuana and Patient Protection Act.

SECTION 467. AMENDATORY 63 O.S. 2021, Section 485.11, is amended to read as follows:

Section 485.11. There is hereby created in the State Treasury a revolving fund for the Oklahoma Cerebral Palsy Commission to be

designated the "J.D. McCarty Center for Children with Developmental Disabilities Revolving Fund". The fund shall consist of all monies received by the Commission pursuant to statutory authority, but not including appropriated funds, gifts and bequests. The revolving fund shall be a continuing fund, not subject to fiscal year limitations and shall be under the control and management of the administrative authorities of the Commission. Expenditures from the fund shall be made pursuant to the laws of the state and the statutes relating to the Commission and may include up to Twenty-five Thousand Dollars (\$25,000.00) in expenditures for capital improvements within a single fiscal year or as otherwise provided by the Legislature. Warrants for expenditures from the fund shall be drawn by the State Treasurer, based on claims signed by an authorized employee or employees of the Commission and approved for payment by the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services.

SECTION 468. AMENDATORY Section 2, Chapter 11, 1st Extraordinary Session, O.S.L. 2023 (63 O.S. Supp. 2025, Section 683.24B), is amended to read as follows:

Section 683.24B. There is hereby created in the State Treasury a revolving fund for the Oklahoma Department of Emergency Management and Homeland Security to be designated the "Emergency Relief and Impacts Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies

received by the Oklahoma Department of Emergency Management and Homeland Security from all sources designated by law. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Oklahoma Department of Emergency Management and Homeland Security for the purpose of the Emergency Relief and Impacts Grant Program. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment. All expenditures from said fund derived of deposits made from the Statewide Recovery Fund of the State Treasury created in Enrolled House Bill No. 3349 of the 2nd Session of the 58th Oklahoma Legislature, shall be made in accordance with the provisions and guidance of the American Rescue Plan Act of 2021, Public Law No. 117-2, Section 604.

SECTION 469. AMENDATORY Section 1, Chapter 319, O.S.L. 2024 (63 O.S. Supp. 2025, Section 690.10), is amended to read as follows:

Section 690.10. A. There is hereby created in the State Treasury a revolving fund for the Oklahoma Department of Emergency Management to be designated the "State Assistance Dedicated for Disaster-impacted Local Economies Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies directed for deposit to the fund. All

monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Oklahoma Department of Emergency Management for the purpose of providing advanced financial liquidity to governmental subdivisions directly impacted by events attributing to a Federal Emergency Management Agency (FEMA) declared emergency or disaster, provided such governmental subdivision has entered into a qualifying repayment agreement with the Oklahoma Department of Emergency Management. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

B. As used in this section:

1. "Advanced financial liquidity" means funding provided to fund gaps in mitigation of local and county revenue losses and operating deficits; infrastructure repair and replacement, including road, sewer, and water facilities; temporary housing and shelter made necessary by the result of the associated emergency or disaster; and to fund gaps in required matching funds for participation in, or the benefit of, programs administered or funded by the Federal Emergency Management Agency (FEMA); and

2. "Qualifying repayment agreement" means a memorandum of understanding or legally binding agreement which identifies the purpose of use for such advanced financial liquidity, and which

1 identifies the source of repayment by the governmental subdivision
2 and a repayment timeline or standard for repayment.

3 C. The Oklahoma Department of Emergency Management may
4 promulgate rules as needed to implement the provisions of this
5 section.

6 SECTION 470. AMENDATORY 63 O.S. 2021, Section 954, is
7 amended to read as follows:

8 Section 954. A. The Board of Medicolegal Investigations is
9 authorized to accept grants, gifts, fees or funds from persons,
10 associations, corporations, or foundations for any purpose
11 authorized by the Board.

12 B. There is hereby created in the State Treasury a revolving
13 fund for the Office of the Chief Medical Examiner to be designated
14 the "Chief Medical Examiner Revolving Fund". The fund shall be a
15 continuing fund, not subject to fiscal year limitations, and shall
16 consist of all moneys received from:

17 1. Laboratory analysis fees pursuant to the provisions of
18 Section 1313.2 of Title 20 of the Oklahoma Statutes;

19 2. Grants, gifts, fees or funds from persons, associations,
20 corporations or foundations pursuant to this section;

21 3. Document fees pursuant to the Oklahoma Open Records Act,
22 Section 24A.1 et seq. of Title 51 of the Oklahoma Statutes;

23 4. Specimen storage and drug screen service fees pursuant to
24 the provisions of Section 948 of Title 63; and

1 5. Cremation, burial at sea or other recognized means of
2 dissolution permit fees pursuant to Section 1-329.1 of this title.

3 All monies accruing to the credit of said fund are hereby
4 appropriated and may be budgeted and expended by the Office of the
5 Chief Medical Examiner for the duties imposed upon the Board of
6 Medicolegal Investigations by law. Expenditures from said fund
7 shall be made upon warrants issued by the State Treasurer against
8 claims filed as prescribed by law with the ~~Director~~ Chief Operating
9 Officer of the Office of Management and Enterprise Services for
10 approval and payment.

11 SECTION 471. AMENDATORY 63 O.S. 2021, Section 2058, is
12 amended to read as follows:

13 Section 2058. All property, records, equipment, supplies,
14 funds, including trust funds and revolving funds, and other assets,
15 owned or possessed by the State Department of Health for the East
16 Central Oklahoma Health and Social Service Center at Ada, Oklahoma,
17 are hereby transferred on April 7, 1972, to the Office of Public
18 Affairs. All contracts, leases, agreements, and obligations to
19 which the State Department of Health is a party for or on behalf of
20 said Health Center shall be assumed by the ~~Director~~ Chief Operating
21 Officer of the Office of Management and Enterprise Services for the
22 benefit of the East Central Oklahoma Health and Social Service
23 Center at Ada, Oklahoma.

SECTION 472. AMENDATORY Section 2, Chapter 328, O.S.L. 2023 (63 O.S. Supp. 2025, Section 2065), is amended to read as follows:

Section 2065. A. There is hereby created in the State Treasury a revolving fund for the State Department of Health to be designated the "School Nurse Pilot Program Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies designated for and eligible for deposit under law. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the State Department of Health to facilitate the implementation of a pilot program as described in subsection B of this section including but not limited to the distribution of such funds through grants administered by the Department or in coordination with the Department. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

B. The State Department of Health shall utilize funds deposited to the School Nurse Pilot Program Revolving Fund for the purpose of implementing a pilot program to deliver school nurse services that address health, mental health, and social services needs of students and families to promote the ability for students to have the best opportunity to learn and be successful in their public school

1 district. Such pilot program shall include the following criteria
2 and limitations:

3 1. Encompass a contiguous three-county area with no more than
4 twenty percent (20%) of the area's school districts having
5 enrollments greater than three thousand (3,000) weighted average
6 daily membership as calculated by the State Department of Education
7 the year of the pilot program's inception; and

8 2. Have consolidated implementation coordinated by a single
9 nonprofit provider.

10 C. The State Department of Health may promulgate rules and
11 adopt policies and procedures as required to administer the
12 provisions of this section.

13 SECTION 473. AMENDATORY 63 O.S. 2021, Section 2220.3, as
14 amended by Section 197, Chapter 282, O.S.L. 2022 (63 O.S. Supp.
15 2025, Section 2220.3), is amended to read as follows:

16 Section 2220.3. A. There is hereby created in the State
17 Treasury a revolving fund for the State Department of Health, to be
18 designated the "Oklahoma Organ Donor Education and Awareness Program
19 Revolving Fund". The fund shall be a continuing fund, not subject
20 to fiscal year limitations, and shall consist of all monies received
21 by the State Department of Health from:

22 1. Any state monies appropriated for the purpose of
23 implementing the provisions of the Oklahoma Organ Donor Education
24 and Awareness Program Act; and

2. Any monies collected pursuant to this section or any other monies available to the State Department of Health to implement the provisions of the Oklahoma Organ Donor Education and Awareness Program Act.

B. All monies accruing to the credit of the fund are hereby appropriated and shall be budgeted and expended to promote and encourage organ donor education and awareness.

C. Monies credited to the fund, excluding administrative fees paid to the Oklahoma Tax Commission, may be used for, but are not limited to:

1. Administration of the Oklahoma Organ Donor Education and Awareness Program Act;

2. Development and promotion of organ donor public education and awareness programs in cooperation with the Oklahoma Organ Sharing Network including, but not limited to, the American Red Cross and the Oklahoma Lions Eye Bank;

3. To assist in the publication of information pamphlets or booklets by the State Department of Health and the State Superintendent of Public Instruction regarding organ donation and donations to the Oklahoma Organ Donor Education and Awareness Program Revolving Fund. The State Department of Health shall distribute such informational pamphlets or booklets to Service Oklahoma for distribution to applicants for original, renewal, or replacement driver licenses and identification cards when making a

1 voluntary contribution pursuant to Section 2220.5 of this title and
2 to the Oklahoma Tax Commission for distribution to individuals when
3 making a voluntary contribution pursuant to the state income tax
4 check off provided for in Section 2220.4 of this title;

5 4. Implementation of organ donor education and awareness
6 programs in the elementary and secondary schools of this state by
7 the State Department of Education;

8 5. Grants by the State Department of Health to certified organ
9 procurement organizations for the development and implementation of
10 organ donor education and awareness programs in this state;

11 6. Encouraging the incorporation of organ donor information
12 into the medical and nursing school curriculums of the state's
13 medical and nursing schools. If funds are provided to a university
14 for this educational purpose, the university shall annually evaluate
15 the extent to which the curriculum has affected the attitudes of its
16 students and graduates with regard to organ donation and shall
17 forward the evaluation results to the State Department of Health;
18 and

19 7. A reserve fund in an interest-bearing account with five
20 percent (5%) of the monies received by the fund annually to be
21 placed in this account. No funds may be expended from the reserve
22 fund account until the required balance has reached One Hundred
23 Thousand Dollars (\$100,000.00) and then these funds may only be used
24 in years when donations do not meet the average normal operating fee

1 incurred by the fund, and funds are expended to meet expenses. Once
2 the balance in the reserve fund account reaches One Hundred Thousand
3 Dollars (\$100,000.00), excess funds earned by interest, and yearly
4 allocations may be used at the discretion of the State Department of
5 Health to cover operating costs and to provide additional funds.

6 D. The fund may accept bequests and grants from individuals,
7 corporations, organizations, associations, and any other source.
8 The fund supplements and augments services provided by state
9 agencies and does not take the place of such services.

10 E. Expenditures from the fund shall be made upon warrants
11 issued by the State Treasurer against claims filed as prescribed by
12 law with the ~~Director~~ Chief Operating Officer of the Office of
13 Management and Enterprise Services for approval and payment.

14 SECTION 474. AMENDATORY 63 O.S. 2021, Section 2418, is
15 amended to read as follows:

16 Section 2418. A. There is hereby imposed a surcharge of five
17 cents (\$0.05) per local exchange telephone access line per month to
18 pay for the equipment and maintenance program provided for in
19 Section 2417 of this title and to provide for other needed services
20 for the deaf, severely hard-of-hearing, severely speech-impaired and
21 deaf-blind programs administered through the State Department of
22 Rehabilitation Services, such surcharge to be paid by each local
23 exchange subscriber to local telephone service in this state, unless
24 such subscriber is otherwise exempt from taxation.

1 B. The surcharge shall be collected on the regular monthly bill
2 by each local exchange telephone company operating in this state and
3 shall be remitted quarterly to the Oklahoma Tax Commission no later
4 than twenty (20) days following the end of each quarter.

5 C. There is hereby created in the State Treasury the
6 Telecommunications for the Deaf and Hard-of-Hearing Revolving Fund.
7 The fund shall consist of monies imposed in subsection A of this
8 section. All monies accruing to the fund are hereby appropriated
9 and may be budgeted and expended by the State Department of
10 Rehabilitation Services. The fund shall be a continuing fund not
11 subject to fiscal year limitations and expenditures from said fund
12 shall be made upon warrants issued by the State Treasurer against
13 claims submitted to the ~~Director~~ Chief Operating Officer of the
14 Office of Management and Enterprise Services for the purpose of
15 implementation of this act.

16 SECTION 475. AMENDATORY 63 O.S. 2021, Section 2869, is
17 amended to read as follows:

18 Section 2869. There is hereby created in the State Treasury a
19 revolving fund for the Oklahoma Department of Emergency Management
20 to be designated the "Oklahoma 9-1-1 Management Authority Revolving
21 Fund". The fund shall be a continuing fund, not subject to fiscal
22 year limitations, and shall consist of all monies received by the
23 Oklahoma Tax Commission from fees designated for support of 9-1-1
24 emergency services. All monies accruing to the credit of the fund

are hereby appropriated and may be budgeted and expended by the Oklahoma Department of Emergency Management upon approval by the Oklahoma 9-1-1 Management Authority for the purpose of supporting the administration of the Authority and providing grants to public agencies providing 9-1-1 services. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 476. AMENDATORY Section 1, Chapter 112, O.S.L. 2023, as amended by Section 1, Chapter 295, O.S.L. 2024 (63 O.S. Supp. 2025, Section 3278.1), is amended to read as follows:

Section 3278.1. A. There is hereby created in the State Treasury a revolving fund for the Oklahoma State University Medical Authority to be designated the "Oklahoma State University Medical Authority Behavioral Health Workforce Development Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of appropriated revenues and private endowments. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Oklahoma State University Medical Authority for the purpose of designing and implementing a pilot program at behavioral health facilities, the purpose of which is to provide for behavioral health workforce development and access to behavioral health professionals as

provided by law. The purpose of the pilot program includes, but is not limited to, bed conversion and new beds; renovations at behavioral health facilities to accommodate new licensed acute or residential treatment beds; reallocation of beds from adult acute to child/adolescent acute beds; relocation assistance for licensed behavioral health staff currently living out of state; upskilling existing behavioral health workforce; adding new psychiatric and psychological residencies, internships and post-doctoral training programs; providing social work scholarships; providing mental health nursing scholarships; creating one-time private-sector workforce innovation grants; providing licensure preparation assistance; and creating a behavioral health trauma fund for intensive home and community-based services. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

B. There is hereby created in the State Treasury a revolving fund for the University Hospitals Authority to be designated the "University Hospitals Authority Behavioral Health Workforce Development Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of appropriated revenues and private endowments. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and

expended by the University Hospitals Authority for the purpose of designing and implementing a pilot program at behavioral health facilities, the purpose of which is to provide for behavioral health workforce development and access to behavioral health professionals as provided by law. The purpose of the pilot program includes, but is not limited to, bed conversion and new beds; renovations at behavioral health facilities to accommodate new licensed acute or residential treatment beds; reallocation of beds from adult acute to child/adolescent acute beds; relocation assistance for licensed behavioral health staff currently living out of state; upskilling existing behavioral health workforce; adding new psychiatric and psychological residencies, internships and post-doctoral training programs; providing social work scholarships; providing mental health nursing scholarships; creating one-time private-sector workforce innovation grants; providing licensure preparation assistance; and creating a behavioral health trauma fund for intensive home and community-based services. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

C. The Oklahoma State University Medical Authority and the University Hospitals Authority shall prepare a report for the Legislature on the results of the first year of funding, including

1 the number of professionals retained and recruited, and the expected
2 benefits of the program. The report shall be delivered to relevant
3 health care committee and appropriations subcommittee chairs
4 following the first full year of implementation.

5 SECTION 477. AMENDATORY Section 4, Chapter 386, O.S.L.
6 2025 (63 O.S. Supp. 2025, Section 3294), is amended to read as
7 follows:

8 Section 3294. There is hereby created in the State Treasury a
9 revolving fund for the Oklahoma State University Medical Trust to be
10 designated the "Emergency Medicine Revolving Fund". The fund shall
11 be a continuing fund, not subject to fiscal year limitations, and
12 shall consist of all monies received by the Oklahoma State
13 University Medical Trust from appropriations. All monies accruing
14 to the credit of said fund are hereby appropriated and may be
15 budgeted and expended by the Oklahoma State University Medical Trust
16 for the purpose of training students within an American College of
17 Surgeons Level I Trauma Center or centers operated by the Oklahoma
18 State University Medical Trust or an affiliated entity approved by
19 the Trust. Expenditures from said fund shall be made upon warrants
20 issued by the State Treasurer against claims filed as prescribed by
21 law with the ~~Director~~ Chief Operating Officer of the Office of
22 Management and Enterprise Services for approval and payment.

23 SECTION 478. AMENDATORY 63 O.S. 2021, Section 4236, is
24 amended to read as follows:

1 Section 4236. There is hereby created in the State Treasury a
2 revolving fund for the Department of Public Safety to be designated
3 the "Boating Safety Education Fund". The fund shall be a continuing
4 fund, not subject to fiscal year limitations, and shall consist of
5 fine monies collected pursuant to Section 4235 of this title and any
6 monies contributed to the fund from any other source. All monies
7 accruing to the credit of such fund are hereby appropriated and
8 shall be budgeted and expended by the Department for the exclusive
9 purposes of establishing and maintaining a boating safety education
10 program throughout the State of Oklahoma. Expenditures from such
11 fund shall be made upon warrants issued by the State Treasurer
12 against claims filed as prescribed by law with the ~~Director~~ Chief
13 Operating Officer of the Office of Management and Enterprise
14 Services for approval and payment.

15 SECTION 479. AMENDATORY 63 O.S. 2021, Section 5003, as
16 amended by Section 1, Chapter 123, O.S.L. 2024 (63 O.S. Supp. 2025,
17 Section 5003), is amended to read as follows:

18 Section 5003. A. The Legislature recognizes that the state is
19 a major purchaser of health care services, and the increasing costs
20 of such health care services are posing and will continue to pose a
21 great financial burden on the state. It is the policy of the state
22 to provide comprehensive health care as an employer to state
23 employees and officials and their dependents and to those who are
24 dependent on the state for necessary medical care. It is imperative

1 that the state develop effective and efficient health care delivery
2 systems and strategies for procuring health care services in order
3 for the state to continue to purchase the most comprehensive health
4 care possible.

5 B. It is therefore incumbent upon the Legislature to establish
6 the Oklahoma Health Care Authority whose purpose shall be to:

7 1. Purchase Medicaid benefits;

8 2. Study all state-purchased and state-subsidized health care,
9 alternative health care delivery systems and strategies for the
10 procurement of health care services in order to maximize cost
11 containment in these programs while ensuring access to quality
12 health care;

13 3. Make recommendations aimed at minimizing the financial
14 burden which health care poses for the state, its employees and its
15 charges, while at the same time allowing the state to provide the
16 most comprehensive health care possible; and

17 4. Administer the state-sponsored health and dental benefits
18 plans known as HealthChoice and life insurance plans in accordance
19 with the Oklahoma Employees Insurance and Benefits Act and the State
20 Employees Flexible Benefits Act. The Office of Management and
21 Enterprise Services shall cause the transfer of all necessary
22 assets, data, records, and personnel necessary for the
23 administration of HealthChoice not later than the effective date of
24 this act.

SECTION 480. AMENDATORY 63 O.S. 2021, Section 5016, is amended to read as follows:

Section 5016. There is hereby created in the State Treasury a revolving fund for the Oklahoma Health Care Authority to be designated the "Oklahoma Health Care Authority Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Authority, from any source. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Authority for any purpose authorized by law. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 481. AMENDATORY 63 O.S. 2021, Section 5017, is amended to read as follows:

Section 5017. There is hereby created in the State Treasury a fund for the Oklahoma Health Care Authority to be designated the "Oklahoma Health Care Authority Federal Disallowance Fund". The fund shall be a continuing fund, not subject to fiscal year limitations. It shall consist of monies received by the Oklahoma Health Care Authority which, in the opinion of the Oklahoma Health Care Authority Board, may be subject to federal disallowances and interest which may accrue on said receipts. All monies accruing to

1 the credit of said fund are hereby appropriated and may be budgeted
2 and expended by the Oklahoma Health Care Authority at the discretion
3 of the Oklahoma Health Care Authority Board for eventual settlement
4 of the appropriate pending disallowances. Expenditures from said
5 fund shall be made upon warrants issued by the State Treasurer
6 against claims filed as prescribed by law with the ~~Director~~ Chief
7 Operating Officer of the Office of Management and Enterprise
8 Services for approval and payment.

9 The Administrator of the Oklahoma Health Care Authority may
10 request the ~~Director~~ Chief Operating Officer of the Office of
11 Management and Enterprise Services to transfer monies between the
12 Oklahoma Health Care Authority Federal Disallowance Fund and any
13 other fund of the authority, as needed for the expenditure of funds.

14 SECTION 482. AMENDATORY 63 O.S. 2021, Section 5020, is
15 amended to read as follows:

16 Section 5020. There is hereby created in the State Treasury a
17 fund for the Oklahoma Health Care Authority to be designated the
18 "Oklahoma Health Care Authority Medicaid Program Fund". The fund
19 shall be a continuing fund, not subject to fiscal year limitations.
20 All monies accruing to the credit of said fund are hereby
21 appropriated and may be budgeted and expended by the Oklahoma Health
22 Care Authority at the discretion of the Oklahoma Health Care
23 Authority Board. Expenditures from said fund shall be made upon
24 warrants issued by the State Treasurer against claims filed as

1 prescribed by law with the ~~Director~~ Chief Operating Officer of the
2 Office of Management and Enterprise Services for approval and
3 payment.

4 The Administrator of the Oklahoma Health Care Authority may
5 request the ~~Director~~ Chief Operating Officer of the Office of
6 Management and Enterprise Services to transfer monies between the
7 Oklahoma Health Care Authority Medicaid Program Fund and any other
8 fund of the Authority, as needed for the expenditure of funds.

9 SECTION 483. AMENDATORY 63 O.S. 2021, Section 5020A, as
10 amended by Section 1, Chapter 468, O.S.L. 2025 (63 O.S. Supp. 2025,
11 Section 5020A), is amended to read as follows:

12 Section 5020A. A. There is hereby created in the State
13 Treasury a fund for the Oklahoma Health Care Authority to be
14 designated the "Rate Preservation Fund". The fund shall be a
15 continuing fund, not subject to fiscal year limitations, and shall
16 consist of monies designated to the fund by law. All monies
17 accruing to the credit of the fund are hereby appropriated and may
18 be budgeted and expended by the Authority for the purposes described
19 in subsection B of this section. Expenditures from the fund shall
20 be made upon warrants issued by the State Treasurer against claims
21 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
22 of the Office of Management and Enterprise Services for approval and
23 payment. The Administrator of the Authority may request the
24 ~~Director~~ Chief Operating Officer of the Office of Management and

Enterprise Services to transfer monies between the Rate Preservation Fund and any other fund of the Authority as needed for the expenditure of funds.

B. The Oklahoma Health Care Authority is authorized to budget and expend monies from the Rate Preservation Fund as follows:

1. For maintaining reimbursement rates to providers in the event of a decrease in the state's Federal Medical Assistance Percentage rate; and

2. Subject to the approval of the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services, the Oklahoma Health Care Authority may transfer up to one-third (1/3) of the balance of the Rate Preservation Fund in any given state fiscal year to other funds of the Authority to meet cash flow needs of the state's Medicaid program, so long as the monies are transferred back to the Rate Preservation Fund prior to the end of the state fiscal year in which they were originally transferred.

SECTION 484. AMENDATORY 63 O.S. 2021, Section 5061.2, is amended to read as follows:

Section 5061.2. A. There is hereby created in the State Treasury a revolving fund for the Oklahoma Health Care Authority to be designated the "I/T/U Shared Savings Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Authority pursuant to this act and otherwise specified or authorized by law.

1 All monies accruing to the credit of the fund are hereby
2 appropriated and shall be budgeted and expended by the Authority to
3 increase Medicaid provider rates, unless otherwise provided by law.
4 Expenditures from the fund shall be made upon warrants issued by the
5 State Treasurer against claims filed as prescribed by law with the
6 ~~Director~~ Chief Operating Officer of the Office of Management and
7 Enterprise Services for approval and payment.

8 B. An annual report shall be prepared by the Authority's Chief
9 Financial Officer and shall be submitted to the Governor, the
10 President Pro Tempore of the Senate and the Speaker of the House of
11 Representatives no later than thirty (30) days following the end of
12 each State Fiscal Year. The annual report shall account for:

13 1. The savings realized by the Authority as a result of the
14 I/T/U Shared Savings Program;

15 2. The administrative costs incurred by the Authority as a
16 result of the I/T/U Shared Savings Program;

17 3. The monies distributed to participating I/T/U facilities as
18 a result of I/T/U Shared Savings Program including, but not limited
19 to, a summary of all specific distributions;

20 4. The balance of savings realized by the Authority as a result
21 of the I/T/U Shared Savings Program and accruing to the credit of
22 the fund after payment of administrative costs and distributions to
23 participating I/T/U facilities; and
24

1 5. The monies expended on increasing Medicaid provider rates
2 including, but not limited to, identification of the types of
3 providers affected and the percentage by which the providers' rates
4 were increased.

5 SECTION 485. AMENDATORY 64 O.S. 2021, Section 1036, is
6 amended to read as follows:

7 Section 1036. The accounts and records of the Land Office shall
8 annually have an audit conducted in accordance with auditing
9 standards generally accepted in the United States of America and the
10 standards applicable to financial audits contained in the
11 "Government Auditing Standards", issued by the Comptroller General
12 of the United States, by an independent Oklahoma certified public
13 accountant. The Secretary of the Land Office is authorized to
14 contract for the audits required pursuant to this section. Copies
15 of the audits shall be filed with the Governor, the Commissioners of
16 the Land Office, the State Senate, the House of Representatives, the
17 State Auditor and Inspector, and the ~~Director~~ Chief Operating
18 Officer of the Office of Management and Enterprise Services in
19 accordance with the requirements set forth for financial statement
20 audits in Section 212A of Title 74 of the Oklahoma Statutes.

21 SECTION 486. AMENDATORY 64 O.S. 2021, Section 1078, is
22 amended to read as follows:

23 Section 1078. The State Treasurer shall apportion the income
24 derived from the "Section Thirteen Fund State Educational

1 Institutions" among the educational institutions entitled thereto,
2 in accordance with the division and distribution made in Section 1,
3 of Article 11, Chapter 34, Session Laws of 1907-1908, entitled "An
4 Act to provide for the division and distribution of the income,
5 rentals, interest, and proceeds from certain lands among certain
6 educational institutions, and making appropriations of such fund in
7 pursuance thereof, designating a name by which such fund shall
8 hereafter be known, and declaring an emergency"; and shall likewise
9 apportion the income derived from the "New College Fund" to the
10 educational institutions entitled thereto, in accordance with
11 Section 1, Article 5, Chapter 28, Session Laws of 1909, entitled "An
12 Act to provide for making available to various educational
13 institutions the income, interest, rentals, and proceeds from
14 certain lands, and making appropriations of such funds; designating
15 a name by which such fund shall hereafter be known and declaring an
16 emergency". The ~~Director~~ Chief Operating Officer of the Office of
17 Management and Enterprise Services shall notify the chairman of the
18 board having control of each of said educational institutions, and
19 the president of each of said institutions, of the amount
20 apportioned to it. The amount so apportioned to each educational
21 institution shall, immediately after each successive apportionment,
22 become available and are hereby appropriated for the use of the
23 respective institutions, and shall be paid out in accordance with
24 the law.

SECTION 487. AMENDATORY 65 O.S. 2021, Section 2-107, is amended to read as follows:

Section 2-107. There is hereby created in the State Treasury a revolving fund for the Oklahoma Department of Libraries, to be designated the "Oklahoma Local Library Support Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Oklahoma Department of Libraries from state appropriations designated specifically for deposit in this fund for purposes as specified in this act and from any other sources provided for by law. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Oklahoma Department of Libraries for the purpose of providing convenient library service or access to library service for all citizens of Oklahoma. In administering the fund the Department of Libraries shall encourage existing public libraries to cooperatively share library resources by:

1. Extending or establishing public library services in unserved county areas or contracting for services with existing Oklahoma Department of Libraries certified municipal public libraries, other certified public libraries, library districts, or library systems; and

2. Strengthening existing Oklahoma Department of Libraries certified municipal public libraries, other certified public libraries, library districts, and library systems.

The Oklahoma Department of Libraries Board shall establish a formula for the equitable apportionment of monies to counties applying and qualifying for such funds pursuant to the provisions of this act.

Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 488. AMENDATORY 65 O.S. 2021, Section 4-107.1, is amended to read as follows:

Section 4-107.1. There is hereby created in the State Treasury a revolving fund for the Oklahoma Department of Libraries to be designated the "Oklahoma Local Library Capital Revolving Fund". The fund shall be a continuing fund not subject to fiscal year limitations and shall consist of monies received by the Oklahoma Department of Libraries from state appropriations, federal funds or from any other appropriate sources. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Oklahoma Department of Libraries for the purpose of providing capital grants to public libraries within the state. Capital grants made pursuant to this section shall not be made to

1 systems within counties with a population of five hundred thousand
2 (500,000) or more. Expenditures from said fund shall be made upon
3 warrants issued by the State Treasurer against claims filed as
4 provided by law with the ~~Director~~ Chief Operating Officer of the
5 Office of Management and Enterprise Services for approval and
6 payment.

7 The Oklahoma Department of Libraries shall establish guidelines
8 for the equitable apportionment of monies to public libraries
9 applying for such grants.

10 SECTION 489. AMENDATORY 67 O.S. 2021, Section 206, as
11 amended by Section 2, Chapter 17, O.S.L. 2024 (67 O.S. Supp. 2025,
12 Section 206), is amended to read as follows:

13 Section 206. A. The head of each agency shall:

14 1. Establish and maintain an active, continuing program for the
15 economical and efficient management of the records of the agency;

16 2. Make and maintain records containing adequate and proper
17 documentation of the organization, functions, policies, decisions,
18 procedures and essential transactions of the agency designed to
19 furnish information to protect the legal and financial rights of the
20 state and of persons directly affected by the agency's activities;

21 3. Submit to the State Records Administrator, in accordance
22 with the standards established by the Administrator, schedules
23 proposing the length of time each state record series warrants
24 retention for administrative, legal or fiscal purposes after it has

1 been created or received by the agency. The head of each agency
2 also shall submit lists of state records in the custody of the head
3 of the agency that are not needed in the transaction of current
4 business and that do not have sufficient administrative, legal or
5 fiscal value to warrant their further keeping for disposal in
6 conformity with the requirements of Section 210 of this title;

7 4. Cooperate with the Administrator in the conduct of surveys
8 made by the Administrator pursuant to the provisions of this act;
9 and

10 5. Comply with the rules, regulations, standards and procedures
11 issued by the Administrator.

12 B. Confidential health, life, disability and dental claims or
13 related files of the Employees Group Insurance Division of the
14 Office of Management and Enterprise Services shall be exempt from
15 this act.

16 SECTION 490. AMENDATORY 68 O.S. 2021, Section 113, as
17 last amended by Section 69, Chapter 171, O.S.L. 2025 (68 O.S. Supp.
18 2025, Section 113), is amended to read as follows:

19 Section 113. A. There is hereby created in the State Treasury a
20 revolving fund for the Oklahoma Tax Commission to be known as the
21 "Tax Commission Reimbursement Fund". The revolving fund shall
22 consist of any funds received by the Tax Commission for data
23 processing services or equipment rental and any funds received by
24 the Tax Commission from any incorporated city, town, or county

pursuant to a contractual agreement for the augmentation of the enforcement and collection of municipal or county taxes entered into pursuant to the provisions of Sections 1371 or 2702 of this title. The Tax Commission is authorized to hire full-time-equivalent employees as necessary to perform such duties as to fulfill contractual agreements authorized pursuant to Sections 1371 and 2702 of this title, however, such employees hired to perform such contractual duties shall be supported solely by funds in the Tax Commission Reimbursement Fund which are collected by the Tax Commission from incorporated cities, towns, and counties pursuant to such contractual agreements and such employees shall be terminated upon the discontinuation of such funds or inadequate funds to support such positions. Such full-time-equivalent employees shall be in the unclassified service and shall not be subject to any provisions of the Oklahoma Personnel Act or to the Merit Rules for Employment except leave regulations. All fees collected and apportioned to this fund may be used by the Oklahoma Tax Commission for capital expenditures as authorized by the Oklahoma State Legislature. For the fiscal year beginning July 1, 2004, disbursements from the fund shall be exempt from all agency budget limits.

B. Notwithstanding any other provision in the Oklahoma Statutes except subsection F of Section 316 and subsection D of Section 418 of this title, beginning July 1, 2009, all revenue from fees and

penalties collected pursuant to Sections 304, 316, 415 and 418 of this title shall be apportioned to the Tax Commission Reimbursement Fund for administrative expenses incurred in connection with enforcement of the provisions of Section 301 et seq., Section 346 et seq., Section 401 et seq. and Section 424 et seq. of this title.

SECTION 491. AMENDATORY 68 O.S. 2021, Section 117, is amended to read as follows:

Section 117. The Oklahoma Tax Commission, upon request, shall provide the Office of Management and Enterprise Services, the Oklahoma State Senate and the Oklahoma House of Representatives electronic access to any aggregate data and reports used by the Oklahoma Tax Commission in developing revenue estimates and economic forecasts. The aggregate data and reports which will be made accessible pursuant to the provisions of this section shall not include any records or other information required by law to be kept confidential.

SECTION 492. AMENDATORY 68 O.S. 2021, Section 118, as amended by Section 35, Chapter 310, O.S.L. 2023 (68 O.S. Supp. 2025, Section 118), is amended to read as follows:

Section 118. A. Upon receipt of a written request from a member or employee of the Legislature, the Oklahoma Tax Commission shall provide:

1. A written estimate of the revenue gain or loss to the state as a result of an actual or proposed change to any state tax law

1 within the implementation, enforcement and collection duties and
2 responsibilities of the Tax Commission; provided, upon request of a
3 legislative member or staff, Service Oklahoma shall be responsible
4 for furnishing written estimates of revenue gains or losses
5 attributable to current or proposed amendments to any state law
6 under its statutorily assigned functions and responsibilities;

7 2. A written statement of the Tax Commission's recommendation
8 to the State Board of Equalization as to the change in the amount
9 certified as available for appropriation by the Legislature as a
10 result of an actual or proposed change to a state tax law; and

11 3. A written statement outlining all analysis and methodology
12 provided by or made available by the Tax Commission to the State
13 Board of Equalization for the purpose of influencing or serving as
14 the basis for an official action of the State Board of Equalization.

15 The Tax Commission shall provide such estimate and statement
16 within two (2) weeks of the date the request was received unless the
17 member or employee of the Legislature specifies an earlier date.

18 B. On or after December 31, 2009, and subject to the
19 availability of funds, the Tax Commission shall develop the
20 estimates and statements required by subsection A of this section
21 utilizing a dynamic revenue estimating model. Such model shall take
22 into consideration changes in economic activity as a result of the
23 proposed legislation and consequent revenue gains or losses due to
24 factors such as taxpayer behavior, employment and business

1 investment. The Tax Commission may, subject to the laws of this
2 state relating to confidentiality of information, contract with
3 institutions of higher education in this state or other entities to
4 perform its duties as set forth in this subsection. The Tax
5 Commission is authorized to promulgate rules to carry out the
6 implementation of this section.

7 C. For the purpose of providing an annual forecast of gross
8 production tax revenues from the production of natural and
9 casinghead gas to the Office of Management and Enterprise Services,
10 the Tax Commission shall subscribe to appropriate reference
11 materials which provide economic outlook of future gas prices that
12 have most closely followed the historical trend of Oklahoma gas
13 prices. To determine the average differential between the published
14 forecasted prices and Oklahoma gas prices, the Tax Commission shall
15 compare prices in at least twenty-four (24) of the immediate thirty-
16 six (36) previous months of production. The Tax Commission shall
17 utilize the procedures provided herein to forecast the collection of
18 gross production tax revenues from the production of natural and
19 casinghead gas for the fiscal year beginning July 1, 2005, and each
20 fiscal year thereafter.

21 SECTION 493. AMENDATORY 68 O.S. 2021, Section 205.6, as
22 amended by Section 1, Chapter 295, O.S.L. 2025 (68 O.S. Supp. 2025,
23 Section 205.6), is amended to read as follows:
24

1 Section 205.6. A. The Oklahoma Tax Commission shall prepare and
2 maintain a list of all taxpayers who have claimed any tax credit
3 authorized by any provisions of state law and related to a tax
4 administered by the Tax Commission. The Office of Management and
5 Enterprise Services shall cause the list to be posted on the
6 Internet through the Taxpayer Transparency Act website in a format
7 which is searchable and can be exported in raw data form.

8 The Office of Management and Enterprise Services shall include
9 the name of each taxpayer who claimed a credit, the amount of such
10 credit and the specific statutory provision under which the credit
11 was claimed. The Internet list shall be updated not less than
12 monthly. The list shall include the identity of all taxpayers or
13 organizations having any part in the chain of custody or claim to
14 the credit or credits at any time during the credit's existence from
15 the initial time the credit is earned, through the time that the
16 credit is claimed on a tax return.

17 B. For the purposes of this section, "tax credit" means a
18 credit against tax liability that is a credit administered by the
19 Tax Commission, excluding credits authorized under Section 28-101 of
20 Title 70 of the Oklahoma Statutes and paragraphs 1 and 2 of
21 subsection B of Section 2357, Section 2357.4, and Sections 2357.29
22 and 2357.43 of this title.

23 C. In addition to the disclosure required by subsection A of
24 this section, for any tax credit that may be claimed by any person

1 or any lawfully recognized business entity pursuant to the
2 provisions of Sections 2357.62, 2357.63, 2357.73, and 2357.74 of
3 this title, the Oklahoma Tax Commission shall maintain a list of any
4 person and any such entity that may be able to claim any such credit
5 as a result of the allocation of tax credits based upon the pass-
6 through federal income tax treatment applicable to the entity that
7 makes a qualified investment, as such term is defined by paragraph 6
8 of Section 2357.61 of this title and paragraph 7 of Section 2357.72
9 of this title, in either a qualified small business capital company
10 or a qualified rural small business capital company. For purposes
11 of this subsection, the Tax Commission shall determine the identity
12 of such persons and legal entities as of the December 31 date of the
13 calendar year during which the qualified investment is made.

14 D. Upon the effective date of this act, information on
15 taxpayers claiming the tax credits authorized under Section 28-101
16 of Title 70 of the Oklahoma Statutes shall be removed from the list
17 maintained and posted online pursuant to subsection A of this
18 section.

19 SECTION 494. AMENDATORY 68 O.S. 2021, Section 238.2, as
20 amended by Section 1, Chapter 393, O.S.L. 2022 (68 O.S. Supp. 2025,
21 Section 238.2), is amended to read as follows:

22 Section 238.2. A. It is the intent of the Legislature that the
23 provisions of this section operate to provide for the collection of
24 income taxes due to the State of Oklahoma by state employees in a

manner that will maximize flexibility for state employees to pay any such taxes due while minimizing disruption to operations of state agencies. It is the further intent of the Legislature that the Oklahoma Tax Commission provide notice to state employees pursuant to the provisions of subsection C of this section and that the Tax Commission provide such notice to state employees at least six (6) months prior to notification of noncompliance to a state agency.

B. The Office of Management and Enterprise Services shall, not later than August 1, 2003, and August 1 of each year thereafter, provide to the Tax Commission a list of all state employees as of the preceding July 1 and such identifying information as may be required by the Tax Commission. Such list and information shall be used by the Tax Commission exclusively for the purpose of collection of income taxes due to the State of Oklahoma. The provisions of any laws making information confidential shall not apply with respect to information supplied to the Tax Commission pursuant to the provisions of this section; provided, such information shall be subject to the provisions of Section 205 of this title.

C. The Tax Commission shall, not later than November 1, 2003, and November 1 of each year thereafter, notify any state employee who is not in compliance with the income tax laws of this state. Such notification shall include:

1. A statement that the employee will be subject to disciplinary action by the appointing authority unless the taxpayer

1 is deemed by the Tax Commission to be in compliance with the income
2 tax laws of this state;

3 2. The reasons that the taxpayer is considered to be out of
4 compliance with the income tax laws of this state, including a
5 statement of the amount of any tax, penalties and interest due or a
6 list of the tax years for which income tax returns have not been
7 filed as required by law;

8 3. An explanation of the rights of the taxpayer and the
9 procedures which must be followed by the taxpayer in order to come
10 into compliance with the income tax laws of this state;

11 4. Notification that a percentage of wages may be subject to
12 garnishment; and

13 5. Such other information as may be deemed necessary by the Tax
14 Commission.

15 D. A state employee who has entered into and is abiding by a
16 payment agreement, or who has requested relief as an innocent spouse
17 which is pending or has been granted, shall be deemed to be in
18 compliance with the state income tax laws for purposes of this
19 section.

20 E. If the Tax Commission notifies a state employee who is not
21 in compliance with the income tax laws of this state as required in
22 this section and such state employee does not respond to such
23 notification or fails to come into compliance with the income tax
24 laws of this state or after the Tax Commission determines that every

reasonable effort has been made to assist the state employee to come into compliance with the income tax laws of this state, the Tax Commission, notwithstanding the provisions of Section 205 of this title, shall so notify the appointing authority, which shall commence disciplinary action with respect to the state employee and shall notify the state employee of the reason for such action. Such employee may have a certain percentage of wages garnished by the Tax Commission until such time as the employee is in compliance with the income tax laws of this state pursuant to the provisions of Section 254 of this title. If a state employee who has been previously reported by the Tax Commission to a state agency as being out of compliance comes into compliance, the Tax Commission shall immediately notify the appointing authority. Neither a state agency nor an appointing authority shall be held liable for any action with respect to a state employee pursuant to the provisions of this section.

F. The Tax Commission shall promulgate rules for the implementation of the provisions of this section.

G. As used in this section:

1. "State agency" means any office, department, board, commission or institution of the executive, legislative or judicial branch of state government;

2. "Employee" or "state employee" means an appointed officer or employee of a state agency; provided, the term employee or state

1 employee shall not include an elected official or an employee of a
2 local governmental entity; and

3 3. "Appointing authority" means the chief administrative
4 officer of a state agency.

5 SECTION 495. AMENDATORY 68 O.S. 2021, Section 263, is
6 amended to read as follows:

7 Section 263. A. If any tax warrant or certificate remains
8 outstanding and unpaid, the Tax Commission may issue an order
9 attaching the sums due or to become due, up to the amount of the
10 liability upon such tax warrant or certificate, upon any contract
11 between the taxpayer named in such tax warrant or certificate and
12 the State of Oklahoma or any department, board, institution,
13 commission or agency thereof, for the furnishing of any services,
14 goods, merchandise, supplies, materials or equipment for which
15 payment is made upon claims approved by the Office of Management and
16 Enterprise Services.

17 B. A certified copy of the attachment order shall be delivered
18 to the ~~Director~~ Chief Operating Officer of the Office of Management
19 and Enterprise Services and notice of such attachment shall be
20 mailed to the taxpayer at the taxpayer's last-known address.

21 C. From and after receipt of the attachment order, the ~~Director~~
22 Chief Operating Officer of the Office of Management and Enterprise
23 Services shall not pay nor shall the State Treasurer issue any check
24

1 or warrant for payment to the taxpayer for the sums or funds so
2 attached without a written release from the Tax Commission.

3 D. The attachment orders issued by the Tax Commission shall
4 continue in force until released by the Tax Commission. The Tax
5 Commission may issue subsequent or successive attachment orders,
6 which shall be cumulative.

7 E. If the taxpayer fails within thirty (30) days after his
8 claim upon such contract, or contracts if there are more than one,
9 has been initially received by the ~~Director~~ Chief Operating Officer
10 of the Office of Management and Enterprise Services, or within
11 thirty (30) days after the mailing of notice of such attachment,
12 whichever is later, to obtain and file with the ~~Director~~ Chief
13 Operating Officer of the Office of Management and Enterprise
14 Services a release executed by the Tax Commission, the ~~Director~~
15 Chief Operating Officer of the Office of Management and Enterprise
16 Services shall authorize the payment to the Tax Commission of the
17 sums or funds attached, or so much thereof as have been certified
18 for payment pursuant to procedures prescribed by the ~~Director~~ Chief
19 Operating Officer of the Office of Management and Enterprise
20 Services. Such payments to the Tax Commission shall be credited
21 against the liability on the tax warrant or certificate, and shall
22 constitute to the extent thereof, payment by the state, department,
23 board, institution, commission or agency to the taxpayer upon such
24 contract.

1 F. The Tax Commission may release funds from the claims or
2 contracts attached to effectuate payment of the liability on such
3 tax warrant or certificate or to protect the interest of the state,
4 and shall release the funds attached within thirty (30) days of full
5 payment of such liability.

6 G. The provisions of this section shall not apply to payroll
7 claims of or on behalf of employees of this state.

8 H. No person, firm or corporation that is delinquent in the
9 reporting or paying of any tax due under the laws of this state
10 shall be registered as a vendor under the provisions of Section
11 85.33 of Title 74 of the Oklahoma Statutes, nor included on the
12 approved bidder lists maintained by the Purchasing Division of the
13 Office of Management and Enterprise Services.

14 SECTION 496. AMENDATORY 68 O.S. 2021, Section 265, as
15 amended by Section 1, Chapter 260, O.S.L. 2024 (68 O.S. Supp. 2025,
16 Section 265), is amended to read as follows:

17 Section 265. A. There is hereby created in the State Treasury
18 a fund for the Oklahoma Tax Commission to be known as the "Oklahoma
19 Tax Commission and Office of Management and Enterprise Services
20 Joint Computer Enhancement Fund". The fund shall be a continuing
21 fund, not subject to fiscal year limitations, and shall consist of
22 all monies deposited to the fund pursuant to law. All monies
23 accruing to the credit of such fund are hereby appropriated and may
24 be budgeted and expended for the purposes authorized by subsection B

1 of this section. Expenditures from such fund shall be made upon
2 warrants issued by the State Treasurer against claims filed as
3 prescribed by law with the ~~Director~~ Chief Operating Officer of the
4 Office of Management and Enterprise Services for approval and
5 payment.

6 B. Monies in the Oklahoma Tax Commission and Office of
7 Management and Enterprise Services Joint Computer Enhancement Fund
8 shall be expended for the following purposes:

9 1. To make payments on an agreement authorized by Section 5,
10 Chapter 278, O.S.L. 2008;

11 2. To make payments for the information technology acquisitions
12 to support the responsibilities of the Oklahoma Tax Commission;

13 3. To make payments authorized by Section 34.33 of Title 62 of
14 the Oklahoma Statutes; and

15 4. To the extent not needed for the above-listed purposes to be
16 expended on other projects as specifically authorized by the
17 Legislature.

18 C. Notwithstanding any other provision of law, there shall be
19 apportioned to the Oklahoma Tax Commission and Office of Management
20 and Enterprise Services Joint Computer Enhancement Fund from the
21 monies that would otherwise be apportioned by Section 2352 of this
22 title, the revenue received as a result of any contracts entered
23 into by the Oklahoma Tax Commission pursuant to Section 264 of this
24 title.

1 D. The Tax Commission is hereby authorized to deposit to the
2 credit of the Oklahoma Tax Commission and Office of Management and
3 Enterprise Services Joint Computer Enhancement Fund any monies in
4 excess of the amounts necessary to pay all claims presented to its
5 cash security reserve fund. When monies are deposited to the credit
6 of the Computer Enhancement Fund, the right of any person to present
7 a claim for refund of a cash security shall be preserved and the
8 value thereof shall be paid from the cash security reserve fund.

9 E. For the fiscal year beginning July 1, 2015, and thereafter a
10 portion of the revenue apportioned to the Oklahoma Tax Commission
11 and Office of Management and Enterprise Services Joint Computer
12 Enhancement Fund pursuant to Sections 1353, 1403 and 2352 of this
13 title shall be credited to the Oklahoma Tax Commission, in an amount
14 which is equal to the sum of one-half of one percent (0.5%) of gross
15 collections of sales and use tax levied by counties of this state
16 pursuant to Section 1370 of this title and one-half of one percent
17 (0.5%) of sales and use tax levied by municipalities of this state
18 pursuant to Section 2701 of this title.

19 SECTION 497. AMENDATORY 68 O.S. 2021, Section 270, is
20 amended to read as follows:

21 Section 270. A. Notwithstanding any other provisions of this
22 section, the Oklahoma Tax Commission shall, upon request of any
23 taxpayer or the taxpayer's authorized agent, representative or
24

1 attorney, provide certification in writing of qualification for the
2 credits in the following sections of law:

- 3 1. Section 2357.7 of this title;
- 4 2. Section 2357.11 of this title;
- 5 3. Section 2357.32A of this title;
- 6 4. Section 2357.41 of this title; and
- 7 5. Section 2357.42 of this title.

8 B. On or before November 1 of each year subsequent to the
9 effective date of this section, the Oklahoma Tax Commission shall
10 file a report with the Speaker of the Oklahoma House of
11 Representatives, the President Pro Tempore of the State Senate and
12 the ~~Director~~ Chief Operating Officer of the Office of Management and
13 Enterprise Services, stating the amount of credits claimed and
14 allowed.

15 SECTION 498. AMENDATORY 68 O.S. 2021, Section 305.2, is
16 amended to read as follows:

17 Section 305.2. There is hereby created in the State Treasury a
18 revolving fund for the Office of the Attorney General. The fund
19 shall be a continuing fund, not subject to fiscal year limitations,
20 and shall consist of all monies received by the Office of the
21 Attorney General pursuant to the provisions of Sections 305, 316,
22 417 and 418 of this title. All monies accruing to the credit of the
23 fund are hereby appropriated and may be budgeted and expended by the
24 Office of the Attorney General. Expenditures from the fund shall be

made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 499. AMENDATORY 68 O.S. 2021, Section 400.6, is amended to read as follows:

Section 400.6. A. There is hereby created in the State Treasury a revolving fund for the Oklahoma Tax Commission, to be designated the "Tobacco Products Tax Enforcement Unit Revolving Fund". The fund shall be a continuing fund, not subject to fiscal limitations, and shall consist of any monies designated to the fund by law. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Commission for the purposes of enforcing the provisions of the Tobacco Products Tax Enforcement Act of 2021. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

B. At the end of each fiscal year, if the balance of the fund exceeds Two Million Dollars (\$2,000,000.00), any amount in excess of Two Million Dollars (\$2,000,000.00) shall be transferred to the General Revenue Fund of the State Treasury.

SECTION 500. AMENDATORY 68 O.S. 2021, Section 451, is amended to read as follows:

Section 451. There is hereby created in the State Treasury a special fund to be designated the "Oklahoma Capital Improvement Fund". Said fund shall consist of amounts deposited therein pursuant to subsection (d) of Section 302-2 of this title, and monies, if any, which have accrued to the State General Revenue Fund at the close of the fiscal year ending June 30, 1979, which were in excess of Five Million Dollars (\$5,000,000.00) that year, in excess of the amounts required to satisfy all appropriations made from the State General Revenue Fund for the then current fiscal year together with all other statutory obligations. Provided, the amount apportioned to the Oklahoma Capital Improvement Fund by the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services from the fiscal year ending June 30, 1979, shall not exceed the sum of Thirty Million Dollars (\$30,000,000.00).

SECTION 501. AMENDATORY 68 O.S. 2021, Section 1353, as last amended by Section 4, Chapter 441, O.S.L. 2024 (68 O.S. Supp. 2025, Section 1353), is amended to read as follows:

Section 1353. A. It is hereby declared to be the purpose of the Oklahoma Sales Tax Code to provide funds for the financing of the program provided for by the Oklahoma Social Security Act and to provide revenues for the support of the functions of the state government of Oklahoma, and for this purpose it is hereby expressly

provided that, revenues derived pursuant to the provisions of the Oklahoma Sales Tax Code, subject to the apportionment requirements for the Oklahoma Tax Commission and Office of Management and Enterprise Services Joint Computer Enhancement Fund provided by Section 265 of this title, and further subject to the apportionment requirement provided in subsection D of this section, shall be apportioned as follows:

1. Except as provided in subsection C of this section, the following amounts shall be paid to the State Treasurer to be placed to the credit of the General Revenue Fund to be paid out pursuant to direct appropriation by the Legislature:

Fiscal Year	Amount
FY 2003 and FY 2004	86.04%
FY 2005	85.83%
FY 2006	85.54%
FY 2007	85.04%
FY 2008 through FY 2022	83.61%
FY 2023 through FY 2027	83.36%
FY 2028 and each fiscal year thereafter	83.61%;

2. The following amounts shall be paid to the State Treasurer to be placed to the credit of the Education Reform Revolving Fund of the State Department of Education:

- a. for FY 2003, FY 2004 and FY 2005, ten and forty-two one-hundredths percent (10.42%),

b. for FY 2006 through FY 2020, ten and forty-six one-hundredths percent (10.46%),

c. for FY 2021:

(1) for the month beginning July 1, 2020, through the month ending August 31, 2020, ten and forty-six one-hundredths percent (10.46%), and

(2) for the month beginning September 1, 2020, through the month ending June 30, 2021, eleven and ninety-six one-hundredths percent (11.96%),

d. for FY 2022 and each fiscal year thereafter, ten and forty-six one-hundredths percent (10.46%);

3. The following amounts shall be paid to the State Treasurer to be placed to the credit of the Teachers' Retirement System Dedicated Revenue Revolving Fund:

Fiscal Year	Amount
FY 2003 and FY 2004	3.54%
FY 2005	3.75%
FY 2006	4.0%
FY 2007	4.5%
FY 2008 through FY 2020	5.0%
FY 2021:	
a. for the month beginning July 1, 2020, through the month ending August 31, 2020	5.0%

b. for the month beginning
September 1, 2020, through
the month ending June 30,
2021 3.5%

FY 2022 5.0%

FY 2023 through FY 2027 5.25%

FY 2028 and each fiscal year thereafter 5.0%;

4. a. except as otherwise provided in subparagraph b of this
paragraph, for the fiscal year beginning July 1, 2022,
and for each fiscal year thereafter, eighty-seven one-
hundredths percent (0.87%) shall be paid to the State
Treasurer to be further apportioned as follows:

(1) twenty-four percent (24%) shall be placed to the
credit of the Oklahoma Tourism Promotion
Revolving Fund, but in no event shall such
apportionment exceed Five Million Dollars
(\$5,000,000.00) in any fiscal year,

(2) forty-four percent (44%) shall be placed to the
credit of the Oklahoma Tourism Capital
Improvement Revolving Fund, but in no event shall
such apportionment exceed Nine Million Dollars
(\$9,000,000.00) in any fiscal year, and

(3) thirty-two percent (32%) shall be placed to the
credit of the Oklahoma Route 66 Commission

Revolving Fund, but in no event shall such apportionment exceed Six Million Six Hundred Thousand Dollars (\$6,600,000.00) in any fiscal year, and

b. any amounts which exceed the limitations of subparagraph a of this paragraph shall be placed to the credit of the General Revenue Fund; and

5. For the fiscal year beginning July 1, 2015, and for each fiscal year thereafter, six one-hundredths percent (0.06%) shall be placed to the credit of the Oklahoma Historical Society Capital Improvement and Operations Revolving Fund, but in no event shall such apportionment exceed the total amount apportioned pursuant to this paragraph for the fiscal year ending on June 30, 2015. Any amounts which exceed the limitations of this paragraph shall be placed to the credit of the General Revenue Fund.

B. Provided, for the fiscal year beginning July 1, 2007, and every fiscal year thereafter, an amount of revenue shall be apportioned to each municipality or county which levies a sales tax subject to the provisions of Section 1357.10 of this title and subsection F of Section 2701 of this title equal to the amount of sales tax revenue of such municipality or county exempted by the provisions of Section 1357.10 of this title and subsection F of Section 2701 of this title. The Oklahoma Tax Commission shall

1 promulgate and adopt rules necessary to implement the provisions of
2 this subsection.

3 C. From the monies that would otherwise be apportioned to the
4 General Revenue Fund pursuant to subsection A of this section, there
5 shall be apportioned the following amounts:

6 1. For the month ending August 31, 2019:

7 a. Nine Million Six Hundred Thousand Dollars
8 (\$9,600,000.00) to the credit of the State Highway
9 Construction and Maintenance Fund created in Section
10 1501 of Title 69 of the Oklahoma Statutes, and

11 b. Two Million Dollars (\$2,000,000.00) to the credit of
12 the Oklahoma Railroad Maintenance Revolving Fund
13 created in Section 309 of Title 66 of the Oklahoma
14 Statutes;

15 2. For the month ending September 30, 2019:

16 a. Twenty Million Dollars (\$20,000,000.00) to the credit
17 of the State Highway Construction and Maintenance Fund
18 created in Section 1501 of Title 69 of the Oklahoma
19 Statutes, and

20 b. Two Million Dollars (\$2,000,000.00) to the credit of
21 the Oklahoma Railroad Maintenance Revolving Fund
22 created in Section 309 of Title 66 of the Oklahoma
23 Statutes;

24 3. For the month ending October 31, 2019:

1 a. Twenty Million Dollars (\$20,000,000.00) to the credit
2 of the State Highway Construction and Maintenance Fund
3 created in Section 1501 of Title 69 of the Oklahoma
4 Statutes, and

5 b. Two Million Dollars (\$2,000,000.00) to the credit of
6 the Oklahoma Railroad Maintenance Revolving Fund
7 created in Section 309 of Title 66 of the Oklahoma
8 Statutes;

9 4. For the month ending November 30, 2019:

10 a. Twenty Million Dollars (\$20,000,000.00) to the credit
11 of the State Highway Construction and Maintenance Fund
12 created in Section 1501 of Title 69 of the Oklahoma
13 Statutes, and

14 b. Two Million Dollars (\$2,000,000.00) to the credit of
15 the Oklahoma Railroad Maintenance Revolving Fund
16 created in Section 309 of Title 66 of the Oklahoma
17 Statutes; and

18 5. For the month ending December 31, 2019:

19 a. Twenty Million Dollars (\$20,000,000.00) to the credit
20 of the State Highway Construction and Maintenance Fund
21 created in Section 1501 of Title 69 of the Oklahoma
22 Statutes, and

23 b. Two Million Dollars (\$2,000,000.00) to the credit of
24 the Oklahoma Railroad Maintenance Revolving Fund

1 created in Section 309 of Title 66 of the Oklahoma
2 Statutes.

3 D. For fiscal year 2029, and each subsequent fiscal year, Fifty
4 Million Dollars (\$50,000,000.00) shall be placed to the credit of
5 the Oklahoma Capital Assets Maintenance and Protection Fund created
6 in Section 2 of this act.

7 SECTION 502. AMENDATORY Section 2, Chapter 353, O.S.L.
8 2025 (68 O.S. Supp. 2025, Section 1357.22), is amended to read as
9 follows:

10 Section 1357.22. A. There is hereby created in the State
11 Treasury a revolving fund for the Oklahoma Tax Commission to be
12 designated the "Oklahoma Broadband Rebate Revolving Fund". The fund
13 shall be a continuing fund, not subject to fiscal year limitations,
14 and shall consist of all monies received by the Tax Commission which
15 are specifically required by law to be deposited in the fund. All
16 monies accruing to the credit of the fund are hereby appropriated
17 and may be budgeted and expended by the Commission for the purpose
18 of paying rebate claims pursuant to Section 1357.21 of Title 68 of
19 the Oklahoma Statutes. Expenditures from the fund shall be made
20 upon warrants issued by the State Treasurer against claims filed as
21 prescribed by law with the ~~Director~~ Chief Operating Officer of the
22 Office of Management and Enterprise Services for approval and
23 payment.
24

1 B. The liability of this state to make rebate payments pursuant
2 to the program created in Section 1357.21 of Title 68 of the
3 Oklahoma Statutes shall be limited to the balance of the Oklahoma
4 Broadband Rebate Revolving Fund.

5 SECTION 503. AMENDATORY 68 O.S. 2021, Section 2355.2, is
6 amended to read as follows:

7 Section 2355.2. A. There is hereby created in the State
8 Treasury a revolving fund for the State Treasurer to be designated
9 the "Oklahoma Taxpayer Relief Revolving Fund". The fund shall be a
10 continuing fund, not subject to fiscal year limitations, and shall
11 consist of the monies transferred to such fund pursuant to paragraph
12 2 of subsection A of Section 46.1 of Title 62 of the Oklahoma
13 Statutes. All monies accruing to the credit of said fund are hereby
14 appropriated and may be budgeted and expended by the State Treasurer
15 for the purpose of providing payments to Oklahoma residents who have
16 filed an income tax return pursuant to Section 2355 of this title
17 for the preceding tax year, except for those residents who were
18 inmates in the custody of the Department of Corrections, and for the
19 purpose of administrative costs incurred by the State Treasurer in
20 making payments provided by this section. The payments to taxpayers
21 filing as married filing jointly, surviving spouse or head of
22 household shall be equal to two times the payment to taxpayers
23 filing as an individual or married filing separately. No taxpayer
24 filing as an individual who claims zero personal exemptions shall

1 receive a payment. During each year funds accrue pursuant to
2 Section 46.1 of Title 62 of the Oklahoma Statutes, the Oklahoma Tax
3 Commission shall provide the State Treasurer with information
4 necessary for such payments to be issued. Expenditures from said
5 fund shall be made upon warrants issued by the State Treasurer
6 against claims filed as prescribed by law with the ~~Director~~ Chief
7 Operating Officer of the Office of Management and Enterprise
8 Services for approval and payment.

9 B. The State Treasurer shall promulgate any necessary rules in
10 order to administer the provisions of this section.

11 C. The Oklahoma Taxpayer Relief Revolving Fund shall be
12 abolished and all monies remaining in such fund transferred to the
13 Special Cash Fund on June 30, 2012. Any liabilities payable from
14 the Oklahoma Taxpayer Relief Revolving Fund shall be extinguished
15 upon its abolishment and shall not be transferred to the Special
16 Cash Fund. The Special Cash Fund refers to the fund created by
17 Section 253 of Title 62 of the Oklahoma Statutes.

18 SECTION 504. AMENDATORY 68 O.S. 2021, Section 2357.1a-1,
19 is amended to read as follows:

20 Section 2357.1a-1. A. There is hereby created the Task Force
21 for the Study of State Tax Credits and Economic Incentives.

22 B. The Task Force shall consist of ten (10) members to be
23 appointed or selected as follows:
24

1 1. The Chair of the Appropriations and Budget Committee of the
2 Oklahoma House of Representatives;

3 2. The Chair of the Appropriations Committee of the Oklahoma
4 State Senate;

5 3. The Chair of the Revenue and Taxation Subcommittee of the
6 Appropriations and Budget Committee of the Oklahoma House of
7 Representatives;

8 4. The Chair of the Senate Finance Committee;

9 5. The ~~Director~~ Chief Operating Officer of the Office of
10 Management and Enterprise Services or a designee;

11 6. The State Treasurer or a designee;

12 7. The Oklahoma Secretary of State or a designee;

13 8. Minority Leader of the Oklahoma House of Representatives;

14 9. Minority Leader of the Oklahoma State Senate; and

15 10. The State Auditor and Inspector.

16 C. The Task Force shall conduct an organizational meeting not
17 later than September 30, 2011. A majority of the members present at
18 the organizational meeting or any subsequent meeting shall
19 constitute a quorum for the purpose of any action taken including
20 the preparation and approval of the final report required by
21 subsection I of this section.

22 D. The cochairs of the Task Force shall be the member who is
23 the Chair of the Revenue and Taxation Subcommittee of the
24

1 Appropriations and Budget Committee and the member who is the Chair
2 of the Finance Committee of the State Senate.

3 E. The Task Force shall be authorized to meet as necessary in
4 order to perform the duties imposed upon it. Legislative members of
5 the Task Force shall be reimbursed for travel expenses pursuant to
6 the provisions of Section 456 of Title 74 of the Oklahoma Statutes.
7 Other members of the Task Force shall be reimbursed as provided by
8 the appointing authority.

9 F. The Task Force shall conduct a study regarding all state tax
10 credits regardless of the tax type against which such credit may be
11 claimed and any other economic incentives that affect state or local
12 tax liabilities. The study shall include, but shall not be limited
13 to:

14 1. The justification for the enactment of any state tax credits
15 based upon the relevant economics of the applicable industry or
16 economic sector affected;

17 2. The economic impact related to the utilization of state tax
18 credits;

19 3. Analysis of the utilization of the credits by tax credit
20 purchasers;

21 4. The impact of tax credits on any and all economic sectors of
22 the state economy;

23 5. The adequacy or inadequacy of state tax credits or other
24 economic incentives; and

6. Such other matters related to state tax credits or economic incentives as the Task Force deems relevant.

G. The Task Force shall be subject to the provisions of:

1. The Oklahoma Open Meeting Act; and
2. The Oklahoma Open Records Act.

H. Staff assistance for the Task Force shall be provided by the staff of the Oklahoma House of Representatives and the State Senate.

I. The Task Force shall produce a final written report of its findings and any recommendations regarding transferable tax credits. The report shall be submitted to the Governor, the Speaker of the Oklahoma House of Representatives and the President Pro Tempore of the State Senate not later than December 31, 2011.

J. The provisions of this section shall cease to have the force and effect of law and the Task Force shall terminate effective January 1, 2012.

SECTION 505. AMENDATORY 68 O.S. 2021, Section 2357.1A-2, is amended to read as follows:

Section 2357.1A-2. A. Notwithstanding any other provision of law, the transfer or allocation of any tax credit authorized pursuant to the provisions of this title, except as provided in this section, shall be reported to the Oklahoma Tax Commission and any tax credit authorized pursuant to the provisions of Title 36 of the Oklahoma Statutes shall be reported to the Oklahoma Insurance Department as provided in subsection B of this section.

1 B. The transfer or allocation of any tax credit shall be
2 reported to the Tax Commission or Insurance Department by the entity
3 transferring or allocating the credit on or before the twentieth day
4 of the second month after the tax year in which an act occurs which
5 allows the tax credit to eventually be claimed. If the credit is
6 transferable, the report shall state whether the credit will or may
7 be transferred to another taxpayer and the names of the taxpayers to
8 whom the credit is transferred. The report shall also provide
9 whether the credit will or may be allocated by a pass-through entity
10 to one or more of the shareholders, partners or members of the pass-
11 through entity and the identity of the shareholders, partners or
12 members of the pass-through entity to whom the credit was allocated.
13 Further, the report shall include the tax type, the amount of the
14 credit, the statutory or other legal authority which forms the basis
15 for the credit, and other information that may be required by the
16 Tax Commission or the Insurance Department. The report to the Tax
17 Commission or to the Insurance Department shall be on such form as
18 the Commission or Department may prescribe. The Tax Commission and
19 the Insurance Department shall be authorized to require the report
20 to be filed electronically.

21 C. Notwithstanding the provisions of Section 205 of Title 68 of
22 the Oklahoma Statutes the Tax Commission and the Insurance
23 Department shall compile a list of all tax credits reported as
24 required by this section and shall provide the list to the Governor,

1 the Speaker of the Oklahoma House of Representatives, the President
2 Pro Tempore of the State Senate and the ~~Director~~ Chief Operating
3 Officer of the Office of Management and Enterprise Services not
4 later than June 1 of each year. Not later than five (5) working
5 days after the report has been provided to the Governor, the Speaker
6 of the Oklahoma House of Representatives and the President Pro
7 Tempore of the State Senate, the Oklahoma Tax Commission shall
8 publish the report on its website.

9 D. The compiled list shall identify the tax credits reported
10 pursuant to subsection A of this section and shall separately
11 identify the amount of tax credits that may be claimed against each
12 separate state tax under the jurisdiction of the administering
13 agency and the name of the entity that will be claiming the credit.

14 E. To the extent possible, the Tax Commission and the Insurance
15 Department shall make an estimate of the revenue impact to the State
16 of Oklahoma resulting from the credits reported on a separate fiscal
17 year by fiscal year basis. Each agency shall make its estimate only
18 for tax credits under the jurisdiction of each administering agency.

19 F. If a taxpayer claims a credit on any state tax return that
20 was not previously reported to the Tax Commission or Insurance
21 Department pursuant to this section, the Tax Commission or Insurance
22 Department shall disallow the credit and recompute the applicable
23 tax liability including any penalty or interest; provided, upon the
24

filing of the report required by this section, the credit shall be allowed.

G. This section shall not be applicable to the following tax credits:

1. The sales tax relief credit authorized by Section 5011 of this title;

2. The low income property tax relief credit authorized by Section 2907 of this title;

3. The earned income tax credit authorized by Section 2357.43 of this title;

4. The child care/child tax credit authorized by Section 2357 of this title;

5. The credit for taxes paid to another state authorized by Section 2357 of this title; and

6. The credit for property taxes paid on tornado damaged residential property authorized by Section 2357.29 of this title.

SECTION 506. AMENDATORY 68 O.S. 2021, Section 2357.65A, is amended to read as follows:

Section 2357.65A. A. As used in this section:

1. "Federally regulated investment company" means a qualified small business capital company as defined by Section 2357.61 of this title and that is licensed by the United States Small Business Administration or the United States Department of Agriculture and which qualifies as one of the following types of entities:

- a. a Small Business Investment Company, or
- b. a Specialized Small Business Investment Company, or
- c. a Rural Business Investment Company, or
- d. a Community Development Entity as defined by Section 45D of the Internal Revenue Code of 1986, as amended; and

2. "Qualified small business capital company" means an entity meeting the requirements of Section 2357.61 of this title.

B. Federally regulated investment companies shall be exempt from the reporting requirements of subsections C and G of Section 2357.64 of this title.

C. As a condition of the exemption authorized by this section, the federally regulated investment company shall provide to the Oklahoma Tax Commission not later than March 15 each year:

1. A copy of the federal license issued by the applicable federal regulatory entity;

2. A copy of all reports and compliance documents required by the federal regulators; and

3. A copy of the annual financial audit of the federally regulated investment company.

D. A federally regulated investment company shall also prepare an annual summary report that discloses:

1. All investments made in for-profit business entities during the preceding calendar year;

2. The primary business address of each for-profit business entity in which any investment was made;

3. A statement of the business activity of each of the for-profit business entities described in paragraphs 1 and 2 of this subsection;

4. The type of investment instrument used to make the investment; and

5. A status report of all investments made by the federally regulated investment company.

E. The federally regulated investment company shall transmit a copy of the annual summary prescribed by subsection D of this section to the committees or subcommittees of the Oklahoma House of Representatives and the Oklahoma State Senate having primary jurisdiction over the Small Business Capital Formation Incentive Act, the State Treasurer, the State Auditor and Inspector, the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services and the Oklahoma Tax Commission.

F. The report required by subsection D of this section shall be prepared and submitted until all of the monies available to the federally regulated investment fund have been fully invested, all of the investments have been completed and the proceeds from the investment have been disbursed to the equity investors.

SECTION 507. AMENDATORY 68 O.S. 2021, Section 2357.76A, is amended to read as follows:

Section 2357.76A. A. As used in this section:

1. "Federally regulated investment company" means a qualified rural small business capital company as defined by Section 2357.72 of this title and that is licensed by the United States Small Business Administration or the United States Department of Agriculture and which qualifies as one of the following types of entities:

- a. a Small Business Investment Company, or
- b. a Specialized Small Business Investment Company, or
- c. a Rural Business Investment Company, or
- d. a Community Development Entity as defined by Section 45D of the Internal Revenue Code of 1986, as amended; and

2. "Qualified rural small business capital company" means an entity meeting the requirements of Section 2357.72 of this title.

B. Federally regulated investment companies shall be exempt from the requirements of subsections C and G of Section 2357.75 of this title.

C. As a condition of the exemption authorized by this section, the federally regulated investment company shall provide to the Oklahoma Tax Commission not later than March 15 each year:

- 1. A copy of the federal license issued by the applicable federal regulatory entity;

2. A copy of all reports and compliance documents required by the federal regulators; and

3. A copy of the annual financial audit of the federally regulated investment company.

D. A federally regulated investment company shall also prepare an annual summary report that discloses:

1. All investments made in for-profit business entities during the preceding calendar year;

2. The primary business address of each for-profit business entity in which any investment was made;

3. A statement of the business activity of each of the for-profit business entities described in paragraphs 1 and 2 of this subsection;

4. The type of investment instrument used to make the investment; and

5. A status report of all investments made by the federally regulated investment company.

E. The federally regulated investment company shall transmit a copy of the annual summary prescribed by subsection D of this section to the committees or subcommittees of the Oklahoma House of Representatives and the Oklahoma State Senate having primary jurisdiction over the Rural Venture Capital Formation Incentive Act, the State Treasurer, the State Auditor and Inspector, the ~~Director~~

1 Chief Operating Officer of the Office of Management and Enterprise
2 Services and the Oklahoma Tax Commission.

3 F. The report required by subsection D of this section shall be
4 prepared and submitted until all of the monies available to the
5 federally regulated investment fund have been fully invested, all of
6 the investments have been completed and the proceeds from the
7 investment have been disbursed to the equity investors.

8 SECTION 508. AMENDATORY 68 O.S. 2021, Section 2368.3, is
9 amended to read as follows:

10 Section 2368.3. A. Each state individual income tax return
11 form for tax years which begin after December 31, 2001, and each
12 state corporate tax return form for tax years beginning after
13 December 31, 2001, shall contain a provision to allow a donation
14 from a tax refund for the benefit of the Oklahoma School for the
15 Deaf and the Oklahoma School for the Blind, as follows:

16 Oklahoma School for the Deaf/Oklahoma School for the Blind.
17 Check if you wish to donate from your tax refund: () \$2, () \$5,
18 or () \$____.

19 B. Except as otherwise provided for in this section, all monies
20 generated pursuant to subsection A of this section shall be paid to
21 the State Treasurer by the Oklahoma Tax Commission and placed to the
22 credit of the Oklahoma School for the Deaf/Oklahoma School for the
23 Blind Revolving Fund created in subsection C of this section.

1 C. There is hereby created in the State Treasury a revolving
2 fund for the State Department of Rehabilitation Services to be
3 designated the "Oklahoma School for the Deaf/Oklahoma School for the
4 Blind Revolving Fund". The fund shall be a continuing fund, not
5 subject to fiscal year limitations, and shall consist of all monies
6 apportioned to the fund pursuant to the provisions of this section.
7 All monies accruing to the credit of the fund are hereby
8 appropriated and may be budgeted and expended by the State
9 Department of Rehabilitation Services for the purpose of funding
10 programs at the Oklahoma School for the Deaf and the Oklahoma School
11 for the Blind. Such monies shall be equally divided between the two
12 designated schools. Expenditures from the fund shall be made upon
13 warrants issued by the State Treasurer against claims filed as
14 prescribed by law with the ~~Director~~ Chief Operating Officer of the
15 Office of Management and Enterprise Services for approval and
16 payment.

17 D. If a taxpayer makes a donation pursuant to subsection A of
18 this section in error, such taxpayer may file a claim for refund at
19 any time within three (3) years from the due date of the tax return.
20 Such claims shall be filed pursuant to the provisions of Section
21 2373 of this title. Prior to the apportionment set forth in this
22 section, an amount equal to the total amount of refunds made
23 pursuant to this subsection during any one (1) year shall be
24 deducted from the total donations received pursuant to this section

1 during the following year and such amount deducted shall be paid to
2 the State Treasurer and placed to the credit of the Income Tax
3 Withholding Refund Account.

4 SECTION 509. AMENDATORY 68 O.S. 2021, Section 2368.3a,
5 is amended to read as follows:

6 Section 2368.3a. A. There is hereby created in the State
7 Treasury a revolving fund for the Department of Human Services, to
8 be designated the "Oklahoma Silver Haired Legislature - Excellence
9 in State Government Revolving Fund". The fund shall be a continuing
10 fund, not subject to fiscal year limitations, and shall consist of
11 any monies transferred thereto by Section 2368.4 of this title.

12 B. All monies accruing to the credit of said fund are hereby
13 appropriated and shall be budgeted and expended by the Department of
14 Human Services for the purposes specified by Section 2368.4 of this
15 title; provided no monies in the fund shall be expended for salaries
16 or other administrative costs, or any programs or services not
17 authorized by Section 2368.4 of this title.

18 C. Expenditures from said fund shall be made upon warrants
19 issued by the State Treasurer against claims filed as prescribed by
20 law with the ~~Director~~ Chief Operating Officer of the Office of
21 Management and Enterprise Services for approval and payment.

22 SECTION 510. AMENDATORY 68 O.S. 2021, Section 2368.5, is
23 amended to read as follows:

1 Section 2368.5. A. Each state individual income tax return
2 form for tax years which begin after December 31, 2003, and each
3 state corporate tax return form for tax years beginning after
4 December 31, 2003, shall contain a provision to allow a donation
5 from a tax refund for the benefit of the common schools of this
6 state, as follows:

7 Support of Oklahoma Common Schools. Check if you wish to donate
8 from your tax refund: () \$2, () \$5, or () \$____.

9 B. Except as otherwise provided for in this section, all monies
10 generated pursuant to subsection A of this section shall be paid to
11 the State Treasurer by the Oklahoma Tax Commission and placed to the
12 credit of the Income Tax Checkoff Revolving Fund for the Support of
13 Oklahoma Common Schools created in subsection C of this section.

14 C. There is hereby created in the State Treasury a revolving
15 fund for the State Department of Education to be designated the
16 "Income Tax Checkoff Revolving Fund for the Support of Oklahoma
17 Common Schools". The fund shall be a continuing fund, not subject
18 to fiscal year limitations, and shall consist of all monies
19 apportioned to the fund pursuant to the provisions of this section.
20 All monies accruing to the credit of the fund are hereby
21 appropriated and may be budgeted and expended by the State
22 Department of Education for the purpose of funding common education
23 in this state. Such monies shall be apportioned as and in the
24 manner that state aid is provided to the common schools of this

1 state. Expenditures from the fund shall be made upon warrants
2 issued by the State Treasurer against claims filed as prescribed by
3 law with the ~~Director~~ Chief Operating Officer of the Office of
4 Management and Enterprise Services for approval and payment.

5 D. If a taxpayer makes a donation pursuant to subsection A of
6 this section in error, such taxpayer may file a claim for refund at
7 any time within three (3) years from the due date of the tax return.
8 Such claims shall be filed pursuant to the provisions of Section
9 2373 of this title. Prior to the apportionment set forth in this
10 section, an amount equal to the total amount of refunds made
11 pursuant to this subsection during any one (1) year shall be
12 deducted from the total donations received pursuant to this section
13 during the following year and such amount deducted shall be paid to
14 the State Treasurer and placed to the credit of the Income Tax
15 Withholding Refund Account.

16 SECTION 511. AMENDATORY 68 O.S. 2021, Section 2368.6, is
17 amended to read as follows:

18 Section 2368.6. A. Each state individual income tax return
19 form for tax years which begin after December 31, 2003, and each
20 state corporate tax return form for tax years beginning after
21 December 31, 2003, shall contain a provision to allow a donation
22 from a tax refund for the benefit of maintenance of the roads and
23 highways in this state, as follows:
24

1 Support of Oklahoma Road and Highway Maintenance. Check if you
2 wish to donate from your tax refund: () \$2, () \$5, or () \$____.

3 B. Except as otherwise provided for in this section, all monies
4 generated pursuant to subsection A of this section shall be paid to
5 the State Treasurer by the Oklahoma Tax Commission and placed to the
6 credit of the Income Tax Checkoff Revolving Fund for the Support of
7 Oklahoma Road and Highway Maintenance created in subsection C of
8 this section.

9 C. There is hereby created in the State Treasury a revolving
10 fund for the Department of Transportation to be designated the
11 "Income Tax Checkoff Revolving Fund for the Support of Oklahoma Road
12 and Highway Maintenance". The fund shall be a continuing fund, not
13 subject to fiscal year limitations, and shall consist of all monies
14 apportioned to the fund pursuant to the provisions of this section.
15 All monies accruing to the credit of the fund are hereby
16 appropriated and may be budgeted and expended by the Department of
17 Transportation for the purpose of funding road and highway
18 maintenance in this state. Such monies shall be apportioned as and
19 in a manner specified by the Transportation Commission.
20 Expenditures from the fund shall be made upon warrants issued by the
21 State Treasurer against claims filed as prescribed by law with the
22 ~~Director~~ Chief Operating Officer of the Office of Management and
23 Enterprise Services for approval and payment.
24

1 D. If a taxpayer makes a donation pursuant to subsection A of
2 this section in error, such taxpayer may file a claim for refund at
3 any time within three (3) years from the due date of the tax return.
4 Such claims shall be filed pursuant to the provisions of Section
5 2373 of this title. Prior to the apportionment set forth in this
6 section, an amount equal to the total amount of refunds made
7 pursuant to this subsection during any one (1) year shall be
8 deducted from the total donations received pursuant to this section
9 during the following year and such amount deducted shall be paid to
10 the State Treasurer and placed to the credit of the Income Tax
11 Withholding Refund Account.

12 SECTION 512. AMENDATORY 68 O.S. 2021, Section 2368.7, is
13 amended to read as follows:

14 Section 2368.7. A. Each state individual income tax return
15 form for tax years which begin after December 31, 2003, and each
16 state corporate tax return form for tax years beginning after
17 December 31, 2003, shall contain a provision to allow a donation
18 from a tax refund for the benefit of the Medicaid program of this
19 state, as follows:

20 Support of Oklahoma Medicaid Program. Check if you wish to
21 donate from your tax refund: () \$2, () \$5, or () \$____.

22 B. Except as otherwise provided for in this section, all monies
23 generated pursuant to subsection A of this section shall be paid to
24 the State Treasurer by the Oklahoma Tax Commission and placed to the

1 credit of the Income Tax Checkoff Revolving Fund for the Support of
2 the Oklahoma Medicaid Program created in subsection C of this
3 section.

4 C. There is hereby created in the State Treasury a revolving
5 fund for the Oklahoma Health Care Authority to be designated the
6 "Income Tax Checkoff Revolving Fund for the Support of the Oklahoma
7 Medicaid Program". The fund shall be a continuing fund, not subject
8 to fiscal year limitations, and shall consist of all monies
9 apportioned to the fund pursuant to the provisions of this section.
10 All monies accruing to the credit of the fund are hereby
11 appropriated and may be budgeted and expended by the Oklahoma Health
12 Care Authority for the purpose of funding the Medicaid program in
13 this state. Such monies shall be apportioned as and in the manner
14 specified by the Oklahoma Health Care Authority. Expenditures from
15 the fund shall be made upon warrants issued by the State Treasurer
16 against claims filed as prescribed by law with the ~~Director~~ Chief
17 Operating Officer of the Office of Management and Enterprise
18 Services for approval and payment.

19 D. If a taxpayer makes a donation pursuant to subsection A of
20 this section in error, such taxpayer may file a claim for refund at
21 any time within three (3) years from the due date of the tax return.
22 Such claims shall be filed pursuant to the provisions of Section
23 2373 of this title. Prior to the apportionment set forth in this
24 section, an amount equal to the total amount of refunds made

pursuant to this subsection during any one (1) year shall be deducted from the total donations received pursuant to this section during the following year and such amount deducted shall be paid to the State Treasurer and placed to the credit of the Income Tax Withholding Refund Account.

SECTION 513. AMENDATORY 68 O.S. 2021, Section 2368.13, is amended to read as follows:

Section 2368.13. A. The Oklahoma Tax Commission shall include on each state individual tax return form for tax years beginning after December 31, 2003, and each state corporate tax return form for tax years beginning after December 31, 2003, an opportunity for the taxpayer to donate from a tax refund for the benefit of the Oklahoma Pet Overpopulation Fund created in subsection C of this section.

B. The monies generated from donations made pursuant to subsection A of this section shall be collected by the Tax Commission and placed to the credit of the Oklahoma Pet Overpopulation Fund created in subsection C of this section.

C. There is hereby created in the State Treasury a revolving fund to be designated the "Oklahoma Pet Overpopulation Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies transferred to the fund pursuant to subsection A of this section, all monies transferred to the fund through the purchase of Animal Friendly special license

plates, and any monies received in the form of gifts, grants, reimbursements, or donations specifically designated for the fund.

D. All monies accruing to the credit of the Oklahoma Pet Overpopulation Fund are hereby appropriated and may be budgeted and expended by the Oklahoma Department of Agriculture, Food, and Forestry through the State Veterinarian for the purpose of implementing and maintaining pet sterilization efforts in the State of Oklahoma.

E. Expenditures from the Oklahoma Pet Overpopulation Fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

F. Pursuant to Section 2368.18 of this title, the income tax checkoff contained in this section is hereby reauthorized effective January 1, 2019.

SECTION 514. AMENDATORY 68 O.S. 2021, Section 2368.14, is amended to read as follows:

Section 2368.14. A. Each state individual income tax return form for tax years which begin after December 31, 2004, and each state corporate tax return form for tax years beginning after December 31, 2004, shall contain a provision to allow a donation from a tax refund for the benefit of providing financial relief to qualified members of the Oklahoma National Guard, as follows:

1 Support of the Oklahoma National Guard Relief Program. Check if
2 you wish to donate from your tax refund: () \$2, () \$5, or ()
3 \$____.

4 B. Except as otherwise provided for in this section, all monies
5 generated pursuant to subsection A of this section shall be paid to
6 the State Treasurer by the Oklahoma Tax Commission and placed to the
7 credit of the Income Tax Checkoff Revolving Fund for the Support of
8 the Oklahoma National Guard Relief Program created in subsection C
9 of this section.

10 C. There is hereby created in the State Treasury a revolving
11 fund for the Military Department of the State of Oklahoma to be
12 designated the "Income Tax Checkoff Revolving Fund for the Support
13 of the Oklahoma National Guard Relief Program". The fund shall be a
14 continuing fund, not subject to fiscal year limitations, and shall
15 consist of all monies apportioned to the fund pursuant to the
16 provisions of this section. All monies accruing to the credit of
17 the fund are hereby appropriated and may be budgeted and expended by
18 the Military Department for the purpose of funding qualified
19 National Guard members to assist with approved expenses. Such
20 monies shall be apportioned as and in a manner specified by the
21 Military Department. Expenditures from the fund shall be made upon
22 warrants issued by the State Treasurer against claims filed as
23 prescribed by law with the ~~Director~~ Chief Operating Officer of the
24

Office of Management and Enterprise Services for approval and payment.

D. If a taxpayer makes a donation pursuant to subsection A of this section in error, such taxpayer may file a claim for refund at any time within three (3) years from the due date of the tax return. Such claims shall be filed pursuant to the provisions of Section 2373 of this title. Prior to the apportionment set forth in this section, an amount equal to the total amount of refunds made pursuant to this subsection during any one (1) year shall be deducted from the total donations received pursuant to this section during the following year and such amount deducted shall be paid to the State Treasurer and placed to the credit of the Income Tax Withholding Refund Account.

E. Pursuant to Section 2368.18 of this title, the income tax checkoff contained in this section is hereby reauthorized effective January 1, 2014.

SECTION 515. AMENDATORY 68 O.S. 2021, Section 2368.15, is amended to read as follows:

Section 2368.15. A. The Oklahoma Tax Commission shall include on each state individual tax return form for tax years beginning after December 31, 2006, and each state corporate tax return form for tax years beginning after December 31, 2006, an opportunity for the taxpayer to donate from a tax refund for the benefit of the Oklahoma Leukemia and Lymphoma Revolving Fund.

1 B. All monies generated from donations made pursuant to
2 subsection A of this section shall be paid to the State Treasurer by
3 the Oklahoma Tax Commission and placed to the credit of the Oklahoma
4 Leukemia and Lymphoma Revolving Fund created in subsection D of this
5 section.

6 C. The monies generated from donations made pursuant to
7 subsection A of this section shall be used by the State Department
8 of Health for the purpose supporting voluntary health agencies
9 dedicated to curing leukemia, lymphoma, Hodgkin's disease, and
10 myeloma, and to improving the quality of life of patients and their
11 families.

12 D. 1. There is hereby created in the State Treasury a
13 revolving fund for the State Department of Health to be designated
14 the "Oklahoma Leukemia and Lymphoma Revolving Fund". The fund shall
15 be a continuing fund, not subject to fiscal year limitations, and
16 shall consist of all monies received by the State Department of
17 Health as designated by subsection C of this section.

18 2. All monies accruing to the credit of said fund are hereby
19 appropriated and may be budgeted and expended by the State
20 Department of Health for the purpose specified in subsection C of
21 this section.

22 3. Expenditures from said fund shall be made upon warrants
23 issued by the State Treasurer against claims filed as prescribed by
24

1 law with the ~~Director~~ Chief Operating Officer of the Office of
2 Management and Enterprise Services for approval and payment.

3 SECTION 516. AMENDATORY 68 O.S. 2021, Section 2368.16,
4 as amended by Section 1, Chapter 196, O.S.L. 2025 (68 O.S. Supp.
5 2025, Section 2368.16), is amended to read as follows:

6 Section 2368.16. A. Each state individual income tax return
7 form for tax years which begin after December 31, 2007, and each
8 state corporate tax return form for tax years beginning after
9 December 31, 2007, shall contain a provision to allow a donation
10 from a tax refund for the benefit of any regional food bank in this
11 state. For purposes of this section, "regional food bank" means a
12 nonprofit charitable organization exempt from taxation pursuant to
13 the provisions of the Internal Revenue Code of 1986, as amended, 26
14 U.S.C., Section 501(c)(3), which as a part of a food bank network,
15 maintains a food distribution operation providing food to other
16 nonprofit entities that offer groceries or meals to people in need
17 of food assistance. The provision to allow donation shall read as
18 follows:

19 Support of programs for regional food banks in this state.
20 Check if you wish to donate from your tax refund: () \$2, () \$5,
21 or () \$____.

22 B. Except as otherwise provided for in this section, all monies
23 generated pursuant to subsection A of this section shall be paid to
24 the State Treasurer by the Oklahoma Tax Commission and placed to the

1 credit of the Income Tax Checkoff Revolving Fund for Oklahoma
2 Regional Food Banks created in subsection C of this section.

3 C. There is hereby created in the State Treasury a revolving
4 fund for the Department of Human Services to be designated the
5 "Income Tax Checkoff Revolving Fund for Oklahoma Regional Food
6 Banks". The fund shall be a continuing fund, not subject to fiscal
7 year limitations, and shall consist of all monies apportioned to the
8 fund pursuant to the provisions of this section. All monies
9 accruing to the credit of the fund are hereby appropriated and may
10 be budgeted and expended by the Department of Human Services for the
11 purpose of providing funding for all regional food banks in this
12 state. Expenditures from the fund shall be made upon warrants
13 issued by the State Treasurer against claims filed as prescribed by
14 law with the ~~Director~~ Chief Operating Officer of the Office of
15 Management and Enterprise Services for approval and payment.

16 D. If a taxpayer makes a donation pursuant to subsection A of
17 this section in error, such taxpayer may file a claim for refund at
18 any time within three (3) years from the due date of the tax return.
19 Such claims shall be filed pursuant to the provisions of Section
20 2373 of this title. Prior to the apportionment set forth in this
21 section, an amount equal to the total amount of refunds made
22 pursuant to this subsection during any one (1) year shall be
23 deducted from the total donations received pursuant to this section
24 during the following year and such amount deducted shall be paid to

1 the State Treasurer and placed to the credit of the Income Tax
2 Withholding Refund Account.

3 E. Pursuant to Section 2368.18 of this title, the income tax
4 checkoff contained in this section is hereby reauthorized effective
5 January 1, 2026.

6 SECTION 517. AMENDATORY 68 O.S. 2021, Section 2368.17,
7 is amended to read as follows:

8 Section 2368.17. A. Each state individual income tax return
9 form for tax year 2021 and subsequent tax years, and each state
10 corporate tax return form for tax year 2021 and subsequent tax
11 years, shall contain a provision to allow a donation from a tax
12 refund for the benefit of the Oklahoma chapter of the Y.M.C.A. Youth
13 and Government program. Pursuant to Section 2368.18 of this title,
14 all income tax checkoffs provided for in state statute shall expire
15 four (4) years after enactment, unless reauthorized by the
16 Legislature.

17 B. Except as otherwise provided for in this section, all monies
18 generated pursuant to subsection A of this section shall be paid to
19 the State Treasurer by the Oklahoma Tax Commission and placed to the
20 credit of the Oklahoma Youth and Government Revolving Fund created
21 in subsection C of this section.

22 C. There is hereby created in the State Treasury a revolving
23 fund to be designated the "Oklahoma Youth and Government Revolving
24 Fund" administered by the State Department of Education. The fund

1 shall be a continuing fund, not subject to fiscal year limitations,
2 and shall consist of all the monies received by the State Department
3 of Education pursuant to the provisions of subsection A of this
4 section. All monies accruing to the credit of the fund are
5 appropriated and may be budgeted and expended by the State
6 Department of Education at the beginning of each fiscal year for the
7 purpose of providing grants to the Oklahoma chapter of the Y.M.C.A.
8 Youth and Government program for purposes of educating young people
9 regarding government and the legislative process. Expenditures from
10 the fund shall be made upon warrants issued by the State Treasurer
11 against claims filed as prescribed by law with the ~~Director~~ Chief
12 Operating Officer of the Office of Management and Enterprise
13 Services for approval and payment.

14 D. If a taxpayer makes a donation pursuant to subsection A of
15 this section in error, such taxpayer may file a claim for a refund
16 at any time within three (3) years from the due date of the tax
17 return. Such claims shall be filed pursuant to the provisions of
18 Section 2373 of this title. Prior to the apportionment set forth in
19 this section, an amount equal to the total amount of refunds made
20 pursuant to this subsection during any one (1) year shall be
21 deducted from the total donations received pursuant to this section
22 during the following year and such amount deducted shall be paid to
23 the State Treasurer and placed to the credit of the Income Tax
24 Withholding Refund Account.

SECTION 518. AMENDATORY 68 O.S. 2021, Section 2368.19,
is amended to read as follows:

Section 2368.19. A. Each state individual income tax return form for tax years which begin after December 31, 2009, and each state corporate tax return form for tax years beginning after December 31, 2009, shall contain a provision to allow a donation from a tax refund for the purpose of providing academic and vocational training scholarships administered through the Folds of Honor Scholarship Program to dependents of military servicemen and servicewomen who were either killed or wounded in action due to military service in the war in Iraq or Afghanistan where such program is administered through Folds of Honor Incorporated, a nonprofit charitable organization exempt from taxation pursuant to the provisions of the Internal Revenue Code, 26 U.S.C., Section 501(c)(3). The provision to allow donation shall read as follows:

Support of Folds of Honor Scholarship Program, a nonprofit charitable organization providing academic and vocational training scholarships to dependents of military servicemen and servicewomen who were either killed or wounded in action due to military service in the war in Iraq or Afghanistan. Check if you wish to donate from your tax refund: () \$2, () \$5, or () \$____.

B. Except as otherwise provided for in this section, all monies generated pursuant to subsection A of this section shall be paid to the State Treasurer by the Oklahoma Tax Commission and placed to the

1 credit of the Income Tax Checkoff Revolving Fund for the Support of
2 the Folds of Honor Scholarship Program created in subsection C of
3 this section.

4 C. There is hereby created in the State Treasury a revolving
5 fund for the Military Department of the State of Oklahoma to be
6 designated the "Income Tax Checkoff Revolving Fund for the Support
7 of the Folds of Honor Scholarship Program". The fund shall be a
8 continuing fund, not subject to fiscal year limitations, and shall
9 consist of all monies apportioned to the fund pursuant to the
10 provisions of this section. All monies accruing to the credit of
11 the fund are hereby appropriated and may be budgeted and expended by
12 the Military Department for the purpose of providing grants for
13 academic and vocational training scholarships administered through
14 the Folds of Honor Scholarship Program. Such monies shall be
15 apportioned as and in a manner specified by the Military Department.
16 Expenditures from the fund shall be made upon warrants issued by the
17 State Treasurer against claims filed as prescribed by law with the
18 ~~Director~~ Chief Operating Officer of the Office of Management and
19 Enterprise Services for approval and payment.

20 D. If a taxpayer makes a donation pursuant to subsection A of
21 this section in error, such taxpayer may file a claim for refund at
22 any time within three (3) years from the due date of the tax return.
23 Such claims shall be filed pursuant to the provisions of Section
24 2373 of this title. Prior to the apportionment set forth in this

1 section, an amount equal to the total amount of refunds made
2 pursuant to this subsection during any one (1) year shall be
3 deducted from the total donations received pursuant to this section
4 during the following year and such amount deducted shall be paid to
5 the State Treasurer and placed to the credit of the Income Tax
6 Withholding Refund Account.

7 E. Pursuant to Section 2368.18 of this title, the income tax
8 checkoff contained in this section is hereby reauthorized effective
9 January 1, 2017.

10 SECTION 519. AMENDATORY 68 O.S. 2021, Section 2368.20,
11 is amended to read as follows:

12 Section 2368.20. A. Each state individual income tax return
13 form for tax years which begin after December 31, 2010, and each
14 state corporate tax return form for tax years beginning after
15 December 31, 2010, shall contain a provision to allow a donation for
16 the benefit of Oklahoma Honor Flights.

17 B. Except as otherwise provided for in this section, all monies
18 generated pursuant to subsection A of this section shall be paid to
19 the State Treasurer by the Oklahoma Tax Commission and placed to the
20 credit of the Oklahoma Honor Flights Revolving Fund created in
21 subsection C of this section.

22 C. There is hereby created in the State Treasury a revolving
23 fund to be designated the "Oklahoma Honor Flights Revolving Fund"
24 and administered by the Oklahoma Department of Veterans Affairs.

1 The fund shall be a continuing fund, not subject to fiscal year
2 limitations, and shall consist of all the monies received by the
3 Oklahoma Department of Veterans Affairs pursuant to the provisions
4 of subsection A of this section. All monies accruing to the credit
5 of the fund are appropriated and may be budgeted and expended by the
6 Oklahoma Department of Veterans Affairs at the beginning of each
7 fiscal year for the purpose of providing grants to Oklahoma Honor
8 Flights for purposes of transporting Oklahoma veterans to
9 Washington, D.C., to visit those memorials dedicated to honor their
10 service and sacrifices. Expenditures from the fund shall be made
11 upon warrants issued by the State Treasurer against claims filed as
12 prescribed by law with the ~~Director~~ Chief Operating Officer of the
13 Office of Management and Enterprise Services for approval and
14 payment.

15 D. If a taxpayer makes a donation pursuant to subsection A of
16 this section in error, such taxpayer may file a claim for refund at
17 any time within three (3) years from the due date of the tax return.
18 Such claims shall be filed pursuant to the provisions of Section
19 2373 of this title. Prior to the apportionment set forth in this
20 section, an amount equal to the total amount of refunds made
21 pursuant to this subsection during any one (1) year shall be
22 deducted from the total donations received pursuant to this section
23 during the following year and such amount deducted shall be paid to
24

1 the State Treasurer and placed to the credit of the Income Tax
2 Withholding Refund Account.

3 SECTION 520. AMENDATORY 68 O.S. 2021, Section 2368.21,
4 is amended to read as follows:

5 Section 2368.21. A. Each state individual income tax return
6 form for tax years which begin after December 31, 2009, and each
7 state corporate tax return form for tax years beginning after
8 December 31, 2009, shall contain a provision to allow a donation
9 from a tax refund for the benefit of the Multiple Sclerosis Society.

10 B. Except as otherwise provided for in this section, all monies
11 generated pursuant to subsection A of this section shall be paid to
12 the State Treasurer by the Oklahoma Tax Commission and placed to the
13 credit of the Multiple Sclerosis Society Revolving Fund created in
14 subsection C of this section.

15 C. There is hereby created in the State Treasury a revolving
16 fund to be designated the "Multiple Sclerosis Society Revolving
17 Fund" and administered by the State Department of Health. The fund
18 shall be a continuing fund, not subject to fiscal year limitations,
19 and shall consist of all the monies received by the State Department
20 of Health pursuant to the provisions of subsection A of this
21 section. All monies accruing to the credit of the fund are
22 appropriated and may be budgeted and expended by the State
23 Department of Health at the beginning of each fiscal year for the
24 purpose of providing grants to the Multiple Sclerosis Society for

purposes of mobilizing people and resources to drive research for a cure and to address the challenges of everyone affected by multiple sclerosis. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

D. If a taxpayer makes a donation pursuant to subsection A of this section in error, such taxpayer may file a claim for refund at any time within three (3) years from the due date of the tax return. Such claims shall be filed pursuant to the provisions of Section 2373 of this title. Prior to the apportionment set forth in this section, an amount equal to the total amount of refunds made pursuant to this subsection during any one (1) year shall be deducted from the total donations received pursuant to this section during the following year and such amount deducted shall be paid to the State Treasurer and placed to the credit of the Income Tax Withholding Refund Account.

SECTION 521. AMENDATORY 68 O.S. 2021, Section 2368.22, is amended to read as follows:

Section 2368.22. A. Each state individual income tax return form for tax years which begin after December 31, 2011, and each state corporate tax return form for tax years beginning after December 31, 2011, shall contain a provision to allow a donation from a tax refund for the benefit of domestic violence and sexual

1 assault services in Oklahoma that have been certified by the
2 Attorney General. As used in this section the term "services" shall
3 include but not be limited to programs, shelters or a combination
4 thereof.

5 B. Except as otherwise provided for in this section, all monies
6 generated pursuant to subsection A of this section shall be paid to
7 the State Treasurer by the Oklahoma Tax Commission and placed to the
8 credit of the Domestic Violence and Sexual Assault Services
9 Revolving Fund created in subsection C of this section.

10 C. There is hereby created in the State Treasury a revolving
11 fund to be designated the "Domestic Violence and Sexual Assault
12 Services Revolving Fund" administered by the Attorney General. The
13 fund shall be a continuing fund, not subject to fiscal year
14 limitations, and shall consist of all the monies received by the
15 Attorney General pursuant to the provisions of subsection A of this
16 section. All monies accruing to the credit of the fund are
17 appropriated and may be budgeted and expended by the Attorney
18 General at the beginning of each fiscal year for the purpose of
19 providing grants to domestic violence and sexual assault services
20 providers for the purpose of providing domestic violence and sexual
21 assault services in Oklahoma. Expenditures from the fund shall be
22 made upon warrants issued by the State Treasurer against claims
23 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
24

1 of the Office of Management and Enterprise Services for approval and
2 payment.

3 D. The Attorney General shall provide notice of the Domestic
4 Violence and Sexual Assault Services Revolving Fund on the website
5 of the Attorney General.

6 E. If a taxpayer makes a donation pursuant to subsection A of
7 this section in error, such taxpayer may file a claim for a refund
8 at any time within three (3) years from the due date of the tax
9 return. Such claims shall be filed pursuant to the provisions of
10 Section 2373 of this title. Prior to the apportionment set forth in
11 this section, an amount equal to the total amount of refunds made
12 pursuant to this subsection during any one (1) year shall be
13 deducted from the total donations received pursuant to this section
14 during the following year and such amount deducted shall be paid to
15 the State Treasurer and placed to the credit of the Income Tax
16 Withholding Refund Account.

17 SECTION 522. AMENDATORY 68 O.S. 2021, Section 2368.23,
18 is amended to read as follows:

19 Section 2368.23. A. Each state individual income tax return
20 form for tax years which begin after December 31, 2011, and each
21 state corporate tax return form for tax years beginning after
22 December 31, 2011, shall contain a provision to allow a donation
23 from a tax refund for the benefit of volunteer fire departments in
24 Oklahoma.

1 B. Except as otherwise provided for in this section, all monies
2 generated pursuant to subsection A of this section shall be paid to
3 the State Treasurer by the Oklahoma Tax Commission and placed to the
4 credit of the Volunteer Fire Department Revolving Fund created in
5 subsection C of this section.

6 C. There is hereby created in the State Treasury a revolving
7 fund to be designated the "Volunteer Fire Department Revolving Fund"
8 administered by the Office of the State Fire Marshal. The fund
9 shall be a continuing fund, not subject to fiscal year limitations,
10 and shall consist of all the monies received by the Office of the
11 State Fire Marshal pursuant to the provisions of subsection A of
12 this section. All monies accruing to the credit of the fund are
13 appropriated and may be budgeted and expended by the Office of the
14 State Fire Marshal at the beginning of each fiscal year for the
15 purpose of providing grants to volunteer fire departments in this
16 state for the purpose of purchasing bunker gear, wildland gear and
17 other protective clothing. Expenditures from the fund shall be made
18 upon warrants issued by the State Treasurer against claims filed as
19 prescribed by law with the ~~Director~~ Chief Operating Officer of the
20 Office of Management and Enterprise Services for approval and
21 payment.

22 D. If a taxpayer makes a donation pursuant to subsection A of
23 this section in error, such taxpayer may file a claim for a refund
24 at any time within three (3) years from the due date of the tax

1 return. Such claims shall be filed pursuant to the provisions of
2 Section 2373 of this title. Prior to the apportionment set forth in
3 this section, an amount equal to the total amount of refunds made
4 pursuant to this subsection during any one (1) year shall be
5 deducted from the total donations received pursuant to this section
6 during the following year and such amount deducted shall be paid to
7 the State Treasurer and placed to the credit of the Income Tax
8 Withholding Refund Account.

9 SECTION 523. AMENDATORY 68 O.S. 2021, Section 2368.24,
10 is amended to read as follows:

11 Section 2368.24. A. Each state individual income tax return
12 form for tax years which begin after December 31, 2011, and each
13 state corporate tax return form for tax years beginning after
14 December 31, 2011, shall contain a provision to allow a donation
15 from a tax refund for the benefit of the Oklahoma Lupus Revolving
16 Fund.

17 B. Except as otherwise provided for in this section, all monies
18 generated pursuant to subsection A of this section shall be paid to
19 the State Treasurer by the Oklahoma Tax Commission and placed to the
20 credit of the Oklahoma Lupus Revolving Fund created in subsection C
21 of this section.

22 C. There is hereby created in the State Treasury a revolving
23 fund to be designated the "Oklahoma Lupus Revolving Fund" and
24 administered by the State Department of Health. The fund shall be a

1 continuing fund, not subject to fiscal year limitations, and shall
2 consist of all the monies received by the State Department of Health
3 pursuant to the provisions of subsection A of this section. All
4 monies accruing to the credit of the fund are appropriated and may
5 be budgeted and expended by the State Department of Health at the
6 beginning of each fiscal year for the purpose of providing grants to
7 the Oklahoma Medical Research Foundation for the purpose of funding
8 research into treating and curing Lupus in this state. Expenditures
9 from the fund shall be made upon warrants issued by the State
10 Treasurer against claims filed as prescribed by law with the
11 ~~Director~~ Chief Operating Officer of the Office of Management and
12 Enterprise Services for approval and payment.

13 D. If a taxpayer makes a donation pursuant to subsection A of
14 this section in error, such taxpayer may file a claim for a refund
15 at any time within three (3) years from the due date of the tax
16 return. Such claims shall be filed pursuant to the provisions of
17 Section 2373 of this title. Prior to the apportionment set forth in
18 this section, an amount equal to the total amount of refunds made
19 pursuant to this subsection during any one (1) year shall be
20 deducted from the total donations received pursuant to this section
21 during the following year and such amount deducted shall be paid to
22 the State Treasurer and placed to the credit of the Income Tax
23 Withholding Refund Account.

SECTION 524. AMENDATORY 68 O.S. 2021, Section 2368.26,
is amended to read as follows:

Section 2368.26. A. Each state individual income tax return form for tax years which begin after December 31, 2011, and each state corporate tax return form for tax years beginning after December 31, 2011, shall contain a provision to allow a donation from a tax refund for the purpose of supporting music festivals held in the Historic Greenwood District.

B. Except as otherwise provided for in this section, all monies generated pursuant to subsection A of this section shall be paid to the State Treasurer by the Oklahoma Tax Commission and placed to the credit of the Historic Greenwood District Music Festival Revolving Fund created in subsection C of this section.

C. There is hereby created in the State Treasury a revolving fund to be designated the "Historic Greenwood District Music Festival Revolving Fund" and administered by the Oklahoma Historical Society. The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all the monies received by the Oklahoma Historical Society pursuant to the provisions of subsection A of this section. All monies accruing to the credit of the fund are appropriated and may be budgeted and expended by the Oklahoma Historical Society at the beginning of each fiscal year for the purpose of promoting and supporting music festivals in the Historic Greenwood District. Expenditures from the fund shall be

1 made upon warrants issued by the State Treasurer against claims
2 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
3 of the Office of Management and Enterprise Services for approval and
4 payment.

5 D. If a taxpayer makes a donation pursuant to subsection A of
6 this section in error, such taxpayer may file a claim for refund at
7 any time within three (3) years from the due date of the tax return.
8 Such claims shall be filed pursuant to the provisions of Section
9 2373 of this title. Prior to the apportionment set forth in this
10 section, an amount equal to the total amount of refunds made
11 pursuant to this subsection during any one (1) year shall be
12 deducted from the total donations received pursuant to this section
13 during the following year and such amount deducted shall be paid to
14 the State Treasurer and placed to the credit of the Income Tax
15 Withholding Refund Account.

16 SECTION 525. AMENDATORY 68 O.S. 2021, Section 2368.28,
17 is amended to read as follows:

18 Section 2368.28. A. Each state individual income tax return
19 form for tax years which begin after December 31, 2016, and each
20 state corporate tax return form for tax years beginning after
21 December 31, 2016, shall contain a provision to allow a donation
22 from a tax refund for the benefit of the Oklahoma Department of
23 Veterans Affairs Indigent Veteran Burial Program.
24

1 B. All monies generated pursuant to subsection A of this
2 section shall be paid to the State Treasurer by the Oklahoma Tax
3 Commission and placed to the credit of the Indigent Veteran Burial
4 Revolving Fund created in subsection C of this section.

5 C. There is hereby created in the State Treasury a revolving
6 fund to be designated the "Indigent Veteran Burial Revolving Fund"
7 and administered by the Oklahoma Department of Veterans Affairs.
8 The fund shall be a continuing fund, not subject to fiscal year
9 limitations, and shall consist of all the monies received pursuant
10 to the provisions of subsection A of this section and any donations
11 received from any individuals or organizations. All monies accruing
12 to the credit of the fund are appropriated and may be budgeted and
13 expended by the Oklahoma Department of Veterans Affairs to provide
14 reimbursement to a cemetery or funeral home for costs incurred
15 burying an indigent veteran; provided, the maximum reimbursement
16 shall not exceed Five Hundred Dollars (\$500.00) per veteran and
17 total reimbursements made in calendar year 2017 shall be limited to
18 Twenty Thousand Dollars (\$20,000.00). Expenditures from the fund
19 shall be made upon warrants issued by the State Treasurer against
20 claims filed as prescribed by law with the ~~Director~~ Chief Operating
21 Officer of the Office of Management and Enterprise Services for
22 approval and payment.

23 D. If a taxpayer makes a donation pursuant to subsection A of
24 this section in error, such taxpayer may file a claim for refund at

any time within three (3) years from the due date of the tax return. Such claims shall be filed pursuant to the provisions of Section 2373 of Title 68 of the Oklahoma Statutes. Prior to the apportionment set forth in this section, an amount equal to the total amount of refunds made pursuant to this subsection during any one (1) year shall be deducted from the total donations received pursuant to this section during the following year and such amount deducted shall be paid to the State Treasurer and placed to the credit of the Income Tax Withholding Refund Account.

SECTION 526. AMENDATORY 68 O.S. 2021, Section 2368.29, is amended to read as follows:

Section 2368.29. A. Each state individual income tax return form for tax years beginning after December 31, 2016, and each state corporate tax return form for tax years beginning after December 31, 2016, shall contain provisions to allow a donation from a tax refund or a direct donation for the benefit of the General Revenue Fund of the State of Oklahoma, as follows:

Support of Oklahoma General Revenue Fund. Check if you wish to donate from your tax refund: () entire amount, or () \$____. Check if you wish to make a direct donation to the General Revenue Fund: (_____) amount \$_____.

B. Except as otherwise provided for in this section, all monies generated pursuant to subsection A of this section shall be paid to the State Treasurer by the Oklahoma Tax Commission and placed to the

1 credit of the Income Tax Checkoff Revolving Fund for the Support of
2 the Oklahoma General Revenue Fund created in subsection C of this
3 section.

4 C. There is hereby created in the State Treasury a revolving
5 fund for the Oklahoma General Revenue Fund to be designated the
6 "Income Tax Checkoff Revolving Fund for the Support of the Oklahoma
7 General Revenue Fund". The fund shall be a continuing fund, not
8 subject to fiscal year limitations, and shall consist of all monies
9 apportioned to the fund pursuant to the provisions of this section.
10 All monies accruing to the credit of the fund shall be deposited to
11 the credit of the General Revenue Fund and appropriation of such
12 funds shall be subject to the provisions of Section 23 of Article X
13 of the Oklahoma Constitution. Expenditures from the fund shall be
14 made upon warrants issued by the State Treasurer against claims
15 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
16 of the Office of Management and Enterprise Services for approval and
17 payment.

18 D. If a taxpayer makes a donation pursuant to subsection A of
19 this section in error, such taxpayer may file a claim for refund at
20 any time within three (3) years from the due date of the tax return.
21 Such claims shall be filed pursuant to the provisions of Section
22 2373 of this title. Prior to the apportionment set forth in this
23 section, an amount equal to the total amount of refunds made
24 pursuant to this subsection during any one (1) year shall be

deducted from the total donations received pursuant to this section during the following year and such amount deducted shall be paid to the State Treasurer and placed to the credit of the Income Tax Withholding Refund Account.

SECTION 527. AMENDATORY 68 O.S. 2021, Section 2368.30, is amended to read as follows:

Section 2368.30. A. Each state individual income tax return form for tax years which begin after December 31, 2016, and each state corporate tax return form for tax years beginning after December 31, 2016, shall contain a provision to allow a donation from a tax refund for the benefit of the Oklahoma Emergency Responders Assistance Program.

B. Except as otherwise provided for in this section, all monies generated pursuant to subsection A of this section shall be paid to the State Treasurer by the Oklahoma Tax Commission and placed to the credit of the Oklahoma Emergency Responders Assistance Program Revolving Fund created in subsection C of this section.

C. There is hereby created in the State Treasury a revolving fund to be designated the "Oklahoma Emergency Responders Assistance Program Revolving Fund" and administered by the Department of Public Safety. The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all the monies received by the Department of Public Safety pursuant to the provisions of subsection A of this section. All monies accruing to the credit of

the fund are appropriated and may be budgeted and expended by the Department of Public Safety at the beginning of each fiscal year for the purpose of providing grants to the Oklahoma Emergency Responders Assistance Program for purposes of providing postcritical incident care to all emergency first responders and their families who are experiencing emotional trauma. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

D. If a taxpayer makes a donation pursuant to subsection A of this section in error, such taxpayer may file a claim for refund at any time within three (3) years from the due date of the tax return. Such claims shall be filed pursuant to the provisions of Section 2373 of this title. Prior to the apportionment set forth in this section, an amount equal to the total amount of refunds made pursuant to this subsection during any one (1) year shall be deducted from the total donations received pursuant to this section during the following year and such amount deducted shall be paid to the State Treasurer and placed to the credit of the Income Tax Withholding Refund Account.

SECTION 528. AMENDATORY 68 O.S. 2021, Section 2368.31, is amended to read as follows:

1 Section 2368.31. A. Each state individual income tax return
2 form for tax years which begin after December 31, 2018, and each
3 state corporate tax return form for tax years beginning after
4 December 31, 2018, shall contain a provision to allow a donation
5 from a tax refund for the benefit of the Oklahoma AIDS Care
6 Revolving Fund.

7 B. Except as otherwise provided for in this section, all monies
8 generated pursuant to subsection A of this section shall be paid to
9 the State Treasurer by the Oklahoma Tax Commission and placed to the
10 credit of the Oklahoma AIDS Care Revolving Fund created in
11 subsection C of this section.

12 C. There is hereby created in the State Treasury a revolving
13 fund to be designated the "Oklahoma AIDS Care Revolving Fund" and
14 administered by the Department of Human Services. The fund shall be
15 a continuing fund, not subject to fiscal year limitations, and shall
16 consist of all the monies received by the Department of Human
17 Services pursuant to the provisions of subsection A of this section.
18 All monies accruing to the credit of the fund are appropriated and
19 may be budgeted and expended by the Department of Human Services at
20 the beginning of each fiscal year for the purpose of providing
21 grants to the Oklahoma AIDS Care Fund for purposes of emergency
22 assistance, advocacy, education, prevention and collaboration with
23 other entities. Expenditures from the fund shall be made upon
24 warrants issued by the State Treasurer against claims filed as

1 prescribed by law with the ~~Director~~ Chief Operating Officer of the
2 Office of Management and Enterprise Services for approval and
3 payment.

4 D. If a taxpayer makes a donation pursuant to subsection A of
5 this section in error, such taxpayer may file a claim for refund at
6 any time within three (3) years from the due date of the tax return.
7 Such claims shall be filed pursuant to the provisions of Section
8 2373 of Title 68 of the Oklahoma Statutes. Prior to the
9 apportionment set forth in this section, an amount equal to the
10 total amount of refunds made pursuant to this subsection during any
11 one (1) year shall be deducted from the total donations received
12 pursuant to this section during the following year and such amount
13 deducted shall be paid to the State Treasurer and placed to the
14 credit of the Income Tax Withholding Refund Account.

15 SECTION 529. AMENDATORY 68 O.S. 2021, Section 2702, is
16 amended to read as follows:

17 Section 2702. A. The governing body of any incorporated city
18 or town and the Oklahoma Tax Commission shall enter into contractual
19 agreements whereby the Tax Commission shall have authority to
20 assess, to collect and to enforce any taxes or, penalties or
21 interest thereon, levied by such incorporated city or town, and
22 remit the same to such municipality. Said assessment, collection,
23 and enforcement authority shall apply to any taxes, penalty or
24 interest liability existing at the time of contracting. Upon

1 contracting, the Tax Commission shall have all the powers of
2 enforcement in regard to such taxes, penalties and interest as are
3 granted to or vested in the contracting municipality. Such
4 agreement shall provide for the assessment, collection, enforcement,
5 and prosecution of such municipal tax, penalties and interest, in
6 the same manner as and in accordance with the administration,
7 collection, enforcement, and prosecution by the Tax Commission of
8 any similar state tax except as provided by agreement. Such
9 agreement shall authorize the Tax Commission to retain an amount not
10 to exceed one-half of one percent (0.5%) as a retention fee of
11 municipal tax collected for services rendered in connection with
12 such collections; provided, if a municipality files an action
13 resulting in collection of delinquent state and municipal taxes, the
14 Tax Commission shall remit one-half (1/2) of the retention fee
15 applied to the amount of such taxes to the municipality to be
16 apportioned as are other sales tax revenue. All funds retained by
17 the Tax Commission for the collection services to municipalities
18 shall be deposited in the Oklahoma Tax Commission Revolving Fund in
19 the State Treasury. The municipality shall agree to refrain from
20 any assessment, collection, or enforcement of the municipal tax
21 except as specified in an agreement made pursuant to subsections A,
22 C, D and E of this section.

23 B. The Tax Commission shall place all sales taxes, including
24 penalties and interest, collected on behalf of a municipality

1 pursuant to the provisions of this section and all use taxes,
2 including penalties and interest, collected on behalf of a
3 municipality pursuant to the provisions of Section 1411 of this
4 title in the Sales Tax Remitting Account as provided in Section 1373
5 of this title.

6 C. Notwithstanding the provisions of subsection E of this
7 section, the Tax Commission and the governing body of any
8 incorporated city or town may enter into contractual agreements
9 whereby the municipality would be authorized to implement or augment
10 the enforcement, collection and prosecution of the municipal tax in
11 those contracting municipalities and to provide for the satisfaction
12 of refunds or credits to taxpayers. Such agreements shall and are
13 hereby authorized to provide that the municipality and the Tax
14 Commission may exchange necessary information to effectively carry
15 out the terms of such agreements. The municipality, its officers
16 and employees shall preserve the confidentiality of such information
17 in the same manner and be subject to the same penalties as provided
18 by Section 205 of this title, provided that the municipal prosecutor
19 and other municipal enforcement personnel may receive all
20 information necessary to implement or augment the enforcement and
21 prosecution of municipal sales tax ordinances.

22 D. Provided further that, upon the request of any incorporated
23 city or town, the Tax Commission shall enter into contractual
24 agreements with such municipality whereby the municipality would be

1 authorized to implement or augment the enforcement, either directly
2 or through contract with private auditors or audit firms, of the
3 municipal tax. Any person performing an audit shall first be
4 approved by the Tax Commission and, once approved, shall be
5 appointed as an agent of the Tax Commission for purposes of the
6 audit. Contracts with a private auditor or audit firm shall not be
7 subject to the limitations of Section 262 of this title and shall
8 and are hereby authorized to provide that the municipality, private
9 auditors or audit firms and the Tax Commission may exchange
10 necessary information to effectively carry out the terms of such
11 agreements. The municipality, its officers and employees and
12 private auditors or audit firms may receive all information
13 necessary to perform audits and shall preserve the confidentiality
14 of such information in the same manner and be subject to the same
15 penalties as provided by Section 205 of this title. Municipalities
16 conducting audits directly or by contracting for private auditors or
17 audit firms pursuant to this subsection shall furnish to the Tax
18 Commission the audit results and all relevant supporting
19 documentation. Further, such municipalities shall provide for the
20 payment of private auditors or audit firms by deduction from the tax
21 assessment resulting from the audit conducted by said private
22 auditors or audit firms unless a municipality contracts with the
23 auditor or audit firm for another method of payment. Any municipal
24 sales tax funds recovered as a result of the services provided under

1 this subsection will not be included in calculating the retention
2 fee retained by the Tax Commission pursuant to subsection A of this
3 section. The contracts authorized by subsection A of this section
4 shall provide that the Tax Commission shall not have any obligations
5 thereunder to any municipality that does not participate in an audit
6 conducted under this subsection.

7 E. 1. Pursuant to the provisions of this subsection, upon the
8 request of any municipality, the Tax Commission shall enter into a
9 contractual agreement with the municipality whereby the municipality
10 would be authorized to engage in compliance activities, either
11 directly or through contract with private persons or entities, to
12 augment the collection of the municipal tax by the Tax Commission.
13 The sole responsibility for the administration of any and all such
14 compliance activities shall remain with the Tax Commission to ensure
15 that sellers and purchasers shall only be required to register, file
16 returns, and remit state and local taxes to one single authority,
17 and that no enforcement activities are duplicated.

18 2. Any contractual agreement entered into pursuant to paragraph
19 1 of this subsection and any person or entity who will be performing
20 compliance activities shall first be approved by the Tax Commission
21 in its sole discretion. Once approved, the private person or entity
22 shall be appointed as an agent of the Tax Commission for purposes of
23 such compliance activities. Any agreements entered into pursuant to
24 paragraph 1 of this subsection shall provide that the municipality,

private persons or entities appointed as an agent and the Tax Commission may exchange necessary information to effectively carry out the terms of the agreements. The municipality, its officers and employees and any private person or entity appointed as an agent of the Tax Commission may receive all information necessary for compliance activities and shall preserve the confidentiality of the information in the same manner and be subject to the same penalties as provided by Section 205 of this title. Municipalities conducting compliance activities directly or by contracting with private persons or entities pursuant to this subsection shall furnish to the Tax Commission the compliance results and all relevant supporting documentation and the Tax Commission shall take such information and issue proposed assessments or conduct other such administrative action as is necessary.

3. There is hereby created in the State Treasury a revolving fund for the Oklahoma Tax Commission to be known as the "Tax Commission Compliance Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and notwithstanding any other provisions of law, shall consist of the first three-fourths of one percent ($\frac{3}{4}$ of 1%) of enhanced collections of state sales and use taxes collected pursuant to an agreement entered into pursuant to paragraph 1 of this subsection. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Oklahoma Tax Commission for the purpose of

reimbursing a municipality for enhanced collections of state sales taxes pursuant to an agreement entered into pursuant to paragraph 1 of this subsection. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

4. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services shall form an Implementation Working Group composed of representatives of municipalities and of the Tax Commission and shall adopt a plan to implement this subsection by September 30, 2011. The plan shall ensure that the Tax Commission shall maintain a central point of collection and centralized administration and enforcement and further shall be consistent with all applicable state laws.

F. Any sum or sums collected or required to be collected pursuant to a municipal sales tax levy shall be deemed to be held in trust for the municipality, and, as trustee, the collecting vendor shall have a fiduciary duty to the municipality in regards to such sums and shall be subject to the trust laws of this state.

SECTION 530. AMENDATORY 68 O.S. 2021, Section 3603, as amended by Section 1, Chapter 102, O.S.L. 2025 (68 O.S. Supp. 2025, Section 3603), is amended to read as follows:

Section 3603. A. As used in the Oklahoma Quality Jobs Program

Act:

1. a. "Basic industry" means:

(1) those manufacturing activities defined or
classified in the NAICS Manual under Industry
Sector Nos. 31, 32 and 33, Industry Group No.
5111 or Industry No. 11331,

(2) those electric power generation, transmission and
distribution activities defined or classified in
the NAICS Manual under U.S. Industry Nos. 221111
through 221122, if:

(a) an establishment engaged therein qualifies
as an exempt wholesale generator as defined
by 15 U.S.C., Section 79z-5a,

(b) the exempt wholesale generator facility
consumes from sources located within the
state at least ninety percent (90%) of the
total energy used to produce the electrical
output which qualifies for the specialized
treatment provided by the Energy Policy Act
of 1992, P.L. 102-486, 106 Stat. 2776, as
amended, and federal regulations adopted
pursuant thereto,

(c) the exempt wholesale generator facility sells to purchasers located outside the state for consumption in activities located outside the state at least ninety percent (90%) of the total electrical energy output which qualifies for the specialized treatment provided by the Energy Policy Act of 1992, P.L. 102-486, 106 Stat. 2776, as amended, and federal regulations adopted pursuant thereto, and

(d) the facility is constructed on or after July 1, 1996,

(3) those administrative and facilities support service activities defined or classified in the NAICS Manual under Industry Group Nos. 5611 and 5612, Industry Nos. 51821, 519130, 52232 and 56142 or U.S. Industry Nos. 524291 and 551114, those other support activities for air transportation defined or classified in the NAICS Manual under Industry Group No. 488190, and those support, repair, and maintenance service activities for the wind industry defined or classified in the NAICS Manual under Industry Group No. 811310,

- (4) those professional, scientific and technical service activities defined or classified in the NAICS Manual under U.S. Industry Nos. 541710 and 541380,
- (5) distribution centers for retail or wholesale businesses defined or classified in the NAICS Manual under Sector No. 42, if forty percent (40%) or more of the inventory processed through such warehouse is shipped out-of-state,
- (6) those adjustment and collection service activities defined or classified in the NAICS Manual under U.S. Industry No. 561440, if seventy-five percent (75%) of the loans to be serviced were made by out-of-state debtors,
- (7) (a) those air transportation activities defined or classified in the NAICS Manual under Industry Group No. 4811, if the following facilities are located in this state:
 - (i) the corporate headquarters of an establishment classified therein, and
 - (ii) a facility or facilities at which reservations for transportation provided by such an establishment are processed, whether such services are

performed by employees of the establishment, by employees of a subsidiary of or other entity affiliated with the establishment or by employees of an entity with whom the establishment has contracted for the performance of such services; provided, this provision shall not disqualify an establishment which uses an out-of-state entity or employees for some reservations services, or

(b) those air transportation activities defined or classified in the NAICS Manual under Industry Group No. 4811, if an establishment classified therein has or will have within one (1) year sales of at least seventy-five percent (75%) of its total sales, as determined by the Incentive Approval Committee pursuant to the provisions of subsection B of this section, to out-of-state customers or buyers, to in-state customers or buyers if the product or service is resold by the purchaser to an

- 1 out-of-state customer or buyer for ultimate
2 use, or to the federal government,
- 3 (8) flight training services activities defined or
4 classified in the NAICS Manual under U.S.
5 Industry Group No. 611512, which for purposes of
6 the Oklahoma Quality Jobs Program Act shall
7 include new direct jobs for which gross payroll
8 existed on or after January 1, 2003, as
9 identified in the NAICS Manual,
- 10 (9) the following, if an establishment classified
11 therein has or will have within one (1) year
12 sales of at least seventy-five percent (75%) of
13 its total sales, as determined by the Incentive
14 Approval Committee pursuant to the provisions of
15 subsection B of this section, to out-of-state
16 customers or buyers, to in-state customers or
17 buyers if the product or service is resold by the
18 purchaser to an out-of-state customer or buyer
19 for ultimate use, or to the federal government:
- 20 (a) those transportation and warehousing
21 activities defined or classified in the
22 NAICS Manual under Industry Subsector No.
23 493, if not otherwise listed in this
24 paragraph, Industry Subsector Nos. 482 and

484 and Industry Group Nos. 4884 through
4889,

(b) those passenger transportation activities
defined or classified in the NAICS Manual
under Industry Nos. 561510 and 561599,

(c) those freight or cargo transportation
activities defined or classified in the
NAICS Manual under Industry No. 541614,

(d) those insurance activities defined or
classified in the NAICS Manual under
Industry Group No. 5241,

(e) those services to dwellings and other
buildings, as defined or classified in the
NAICS Manual under Industry Group No. 5617,
excluding U.S. Industry Nos. 561730, 56171,
56172, 56174 and 56179,

(f) those equipment rental and leasing
activities defined or classified in the
NAICS Manual under Industry Group No. 5324,

(g) those information technology and other
computer-related service activities defined
or classified in the NAICS Manual under
Industry Group Nos. 5112, 5182, 5191 and
5415,

- (h) those business support service activities defined or classified in the NAICS Manual under U.S. Industry Nos. 561410 through 561430, excluding 56143, and Industry No. 51911,
- (i) those medical and diagnostic laboratory activities defined or classified in the NAICS Manual under Industry Group No. 6215,
- (j) those professional, scientific and technical service activities defined or classified in the NAICS Manual under Industry Group Nos. 5412, 5414, 5415, 5416 and 5417, Industry Nos. 54131, 54133, 54136 and 54137, and U.S. Industry No. 541990, if not otherwise listed in this paragraph,
- (k) those communication service activities defined or classified in the NAICS Manual under Industry Nos. 51741 and 51791,
- (l) those refuse systems activities defined or classified in the NAICS Manual under Industry Group No. 5622, provided that the establishment is primarily engaged in the capture and distribution of methane gas produced within a landfill,

- (m) general wholesale distribution of groceries,
defined or classified in the NAICS Manual
under Industry Group Nos. 4244 and 4245,
- (n) those activities relating to processing of
insurance claims, defined or classified in
the NAICS Manual under U.S. Industry Nos.
524210 and 524292; provided, activities
described in U.S. Industry Nos. 524210 and
524292 in the NAICS Manual other than
processing of insurance claims shall not be
included for purposes of this subdivision,
- (o) those agricultural activities classified in
the NAICS Manual under U.S. Industry Nos.
112120 and 112310,
- (p) those professional organization activities
classified in the NAICS Manual under U.S.
Industry No. 813920,
- (q) alternative energy structure construction
classified in the NAICS Manual under U.S.
Industry No. 237130,
- (r) solar reflective coating application
classified in the NAICS Manual under U.S.
Industry No. 238160,

(s) solar heating equipment installation
classified in the NAICS Manual under U.S.
Industry No. 238220,

(t) those wired telecommunications carriers
classified in the NAICS Manual under U.S.
Industry No. 517110, and

(u) those securities, commodity contracts and
investment activities classified in the
NAICS Manual under Industry Subsector No.
523,

(10) those activities related to extraction or
pipeline transportation of petroleum, natural gas
or refined petroleum products, defined or
classified in the NAICS Manual under Industry
Group No. 2111, 213111, 213112 or 486, subject to
the limitations provided in paragraph 3 of this
subsection and paragraph 3 of subsection B of
this section,

(11) those activities performed by the federal
civilian workforce at a facility of the Federal
Aviation Administration located in this state if
the Director of the Oklahoma Department of
Commerce determines or is notified that the
federal government is soliciting proposals or

otherwise inviting states to compete for
additional federal civilian employment or
expansion of federal civilian employment at such
facilities,

(12) those activities defined or classified in the
NAICS Manual under U.S. Industry No. 711211 (2007
version),

(13) those real estate or brokerage activities
classified in the NAICS Manual under U.S.
Industry No. 53120 for which at least seventy-
five percent (75%) of the establishment's
revenues are attributed to out-of-state sales and
at least seventy-five percent (75%) of the real
estate transactions generating those revenues are
attributed to real property located outside the
State of Oklahoma, or

(14) those support activities for rail transportation
and those support activities for water
transportation defined or classified in the NAICS
Manual under U.S. Industry Nos. 4882 and 4883.

b. An establishment described in subparagraph a of this
paragraph shall not be considered to be engaged in a
basic industry unless it offers, or will offer within
one hundred eighty (180) days of employment, a basic

health benefits plan to the individuals it employs in new direct jobs in this state which is determined by the Oklahoma Department of Commerce to consist of the following elements or elements substantially equivalent thereto:

- (1) not more than fifty percent (50%) of the premium shall be paid by the employee,
- (2) coverage for basic hospital care,
- (3) coverage for physician care,
- (4) coverage for mental health care,
- (5) coverage for substance abuse treatment,
- (6) coverage for prescription drugs, and
- (7) coverage for prenatal care;

2. "Change-in-control event" means the transfer to one or more unrelated establishments or unrelated persons, of either:

- a. beneficial ownership of more than fifty percent (50%) in value and more than fifty percent (50%) in voting power of the outstanding equity securities of the transferred establishment, or
- b. more than fifty percent (50%) in value of the assets of an establishment.

A transferor shall be treated as related to a transferee if more than fifty percent (50%) of the voting interests of the transferor and transferee are owned, directly or indirectly, by the other or

are owned, directly or indirectly, by the same person or persons, unless such transferred establishment has an outstanding class of equity securities registered under Sections 12(b) or 15(d) of the Securities Exchange Act of 1934, as amended, in which event the transferor and transferee will be treated as unrelated; provided, an establishment applying for the Oklahoma Quality Jobs Program Act as a result of a change-in-control event is required to apply within one hundred eighty (180) days of the change-in-control event to qualify for consideration. An establishment entering the Oklahoma Quality Jobs Program Act as the result of a change-in-control event shall be required to maintain a level of new direct jobs as agreed to in its contract with the Oklahoma Department of Commerce and to pay new direct jobs an average annualized wage which equals or exceeds one hundred twenty-five percent (125%) of the average county wage as that percentage is determined by the Oklahoma Department of Commerce based upon the most recent U.S. Department of Commerce data for the county in which the new jobs are located. For purposes of this paragraph, healthcare premiums paid by the applicant for individuals in new direct jobs shall not be included in the annualized wage. Such establishment entering the Oklahoma Quality Jobs Program Act as the result of a change-in-control event shall be required to retain the contracted average annualized wage and maintain the contracted maintenance level of new direct jobs numbers as certified by the Tax Commission. If the required average

1 annualized wage or the required new direct jobs numbers do not equal
2 or exceed such contracted level during any quarter, the quarterly
3 incentive payments shall not be made and shall not be resumed until
4 such time as such requirements are met. An establishment described
5 in this paragraph shall be required to repay all incentive payments
6 received under the Oklahoma Quality Jobs Program Act if the
7 establishment is determined by the Tax Commission to no longer have
8 business operations in the state within three (3) years from the
9 beginning of the calendar quarter for which the first incentive
10 payment claim is filed;

11 3. "New direct job":

12 a. means full-time-equivalent employment in this state in
13 an establishment which has qualified to receive an
14 incentive payment pursuant to the provisions of the
15 Oklahoma Quality Jobs Program Act which employment did
16 not exist in this state prior to the date of approval
17 by the Department of the application of the
18 establishment pursuant to the provisions of Section
19 3604 of this title and with respect to an
20 establishment qualifying for incentive payments
21 pursuant to division (12) of subparagraph a of
22 paragraph 1 of this subsection shall not include
23 compensation paid to an employee or independent
24 contractor for an athletic contest conducted in the

state if the compensation is paid by an entity that does not have its principal place of business in the state or that does not own real or personal property having a market value of at least One Million Dollars (\$1,000,000.00) located in the state, and the employees or independent contractors of such entity are compensated to compete against the employees or independent contractors of an establishment that qualifies for incentive payments pursuant to division (12) of subparagraph a of paragraph 1 of this subsection and which is organized under Oklahoma law or that is lawfully registered to do business in the state and which does have its principal place of business located in the state and owns real or personal property having a market value of at least One Million Dollars (\$1,000,000.00) located in the state; provided, that if an application of an establishment is approved by the Oklahoma Department of Commerce after a change-in-control event and the Director of the Oklahoma Department of Commerce determines that the jobs located at such establishment are likely to leave the state, "new direct job" shall include employment that existed in this state prior to the date of application which is retained in this

1 state by the new establishment following a change in
2 control event, if such job otherwise qualifies as a
3 new direct job, and

4 b. shall include full-time-equivalent employment in this
5 state of employees who are employed by an employment
6 agency or similar entity other than the establishment
7 which has qualified to receive an incentive payment
8 and who are leased or otherwise provided under
9 contract to the qualified establishment, if such job
10 did not exist in this state prior to the date of
11 approval by the Department of the application of the
12 establishment or the job otherwise qualifies as a new
13 direct job following a change-in-control event. The
14 leasing of employees by the establishment or employees
15 provided under contract with an establishment shall
16 constitute an employer-employee relationship between
17 those employees and the establishment. A job shall be
18 deemed to exist in this state prior to approval of an
19 application if the activities and functions for which
20 the particular job exists have been ongoing at any
21 time within six (6) months prior to such approval.
22 With respect to establishments defined in division
23 (10) of subparagraph a of paragraph 1 of this
24 subsection, new direct jobs shall be limited to those

1 jobs directly comprising the corporate headquarters of
2 or directly relating to manufacturing, maintenance,
3 administrative, financial, engineering, surveying,
4 geological or geophysical services performed by the
5 establishment. Under no circumstances shall
6 employment relating to field services be considered
7 new direct jobs;

8 4. "Estimated direct state benefits" means the tax revenues
9 projected by the Department to accrue to the state as a result of
10 new direct jobs;

11 5. "Estimated direct state costs" means the costs projected by
12 the Department to accrue to the state as a result of new direct
13 jobs. Such costs shall include, but not be limited to:

- 14 a. the costs of education of new state resident children,
- 15 b. the costs of public health, public safety and
16 transportation services to be provided to new state
17 residents,
- 18 c. the costs of other state services to be provided to
19 new state residents, and
- 20 d. the costs of other state services;

21 6. "Estimated net direct state benefits" means the estimated
22 direct state benefits less the estimated direct state costs;

23 7. "Net benefit rate" means the estimated net direct state
24 benefits computed as a percentage of gross payroll; provided:

- 1 a. except as otherwise provided in this paragraph, the
2 net benefit rate may be variable and shall not exceed
3 five percent (5%),
- 4 b. the net benefit rate shall not exceed six percent (6%)
5 in connection with an establishment which is owned and
6 operated by an entity which has been awarded a United
7 States Department of Defense contract for which:
8 (1) bids were solicited and accepted by the United
9 States Department of Defense from facilities
10 located outside this state,
11 (2) the term is or is renewable for not less than
12 twenty (20) years, and
13 (3) the average annual salary, excluding benefits
14 which are not subject to Oklahoma income taxes,
15 for new direct jobs created as a direct result of
16 the awarding of the contract is projected by the
17 Oklahoma Department of Commerce to equal or
18 exceed Forty Thousand Dollars (\$40,000.00) within
19 three (3) years of the date of the first
20 incentive payment,
- 21 c. except as otherwise provided in subparagraph d of this
22 paragraph, in no event shall incentive payments,
23 cumulatively, exceed the estimated net direct state
24 benefits,

d. the net benefit rate shall be five percent (5%) for an establishment locating:

(1) in an opportunity zone located in a high-employment county, as such terms are defined in subsection G of Section 3604 of this title, or

(2) in a county in which:

(a) the per capita personal income, as determined by the Department, is eighty-five percent (85%) or less of the statewide average per capita personal income,

(b) the population has decreased over the previous ten (10) years, as determined by the Oklahoma Department of Commerce based on the most recent U.S. Department of Commerce data, or

(c) the unemployment rate exceeds the lesser of five percent (5%) or two percentage points above the state average unemployment rate as certified by the Oklahoma Employment Security Commission,

e. the net benefit rate shall not exceed six percent (6%) in connection with an establishment which:

(1) is, as of the date of application, receiving incentive payments pursuant to the Oklahoma

1 Quality Jobs Program Act and has been receiving
2 such payments for at least one (1) year prior to
3 the date of application, and

4 (2) expands its operations in this state by creating
5 additional new direct jobs which pay average
6 annualized wages which equal or exceed one
7 hundred fifty percent (150%) of the average
8 annualized wages of new direct jobs on which
9 incentive payments were received during the
10 preceding calendar year,

11 f. with respect to an establishment defined or classified
12 in the NAICS Manual under U.S. Industry No. 711211
13 (2007 version) or any establishment defined or
14 classified in the NAICS Manual as a U.S. Industry
15 Number which is not included within the definition of
16 "basic industry" as such term is defined in this
17 section on April 17, 2008, the net benefit rate shall
18 not exceed the highest rate of income tax imposed upon
19 the Oklahoma taxable income of individuals pursuant to
20 subparagraph (g) or subparagraph (h), as applicable,
21 of paragraph 1 and paragraph 2 of subsection B of
22 Section 2355 of this title. Any change in such
23 highest rate of individual income tax imposed pursuant
24 to the provisions of Section 2355 of this title shall

1 be applicable to the computation of incentive payments
2 to an establishment as described by this subparagraph
3 and shall be effective for purposes of incentive
4 payments based on payroll paid by such establishment
5 on or after January 1 of any applicable year for which
6 the net benefit rate is modified as required by this
7 subparagraph, and

8 g. the net benefit rate shall not exceed six percent (6%)
9 in connection with an establishment which employs
10 United States military veterans in at least ten
11 percent (10%) of its gross payroll. The net benefit
12 rate for an establishment which employs United States
13 military veterans in at least ten percent (10%) of its
14 payroll shall not be lower than five percent (5%).

15 Incentive payments made pursuant to the provisions of this
16 subparagraph shall be based upon payroll associated with such new
17 direct jobs. For purposes of this subparagraph, the amount of
18 health insurance premiums or other benefits paid by the
19 establishment shall not be included for purposes of computation of
20 the average annualized wage;

21 8. "Gross payroll" means wages, as defined in Section 2385.1 of
22 this title for new direct jobs;

23 9. a. "Establishment" means any business or governmental
24 entity, no matter what legal form, including, but not

1 limited to, a sole proprietorship; partnership;
2 limited liability company; corporation or combination
3 of corporations which have a central parent
4 corporation which makes corporate management decisions
5 such as those involving consolidation, acquisition,
6 merger or expansion; federal agency; political
7 subdivision of the State of Oklahoma; or trust
8 authority; provided, distinct, identifiable subunits
9 of such entities may be determined to be an
10 establishment, for all purposes of the Oklahoma
11 Quality Jobs Program Act, by the Department subject to
12 the following conditions:

13 (1) within three (3) years of the first complete
14 calendar quarter following the start date, the
15 entity must have a minimum payroll of Two Million
16 Five Hundred Thousand Dollars (\$2,500,000.00) and
17 the subunit must also have or will have a minimum
18 payroll of Two Million Five Hundred Thousand
19 Dollars (\$2,500,000.00),

20 (2) the subunit is engaged in an activity or service
21 or produces a product which is demonstratively
22 independent and separate from the entity's other
23 activities, services or products and could be
24

1 conducted or produced in the absence of any other
2 activity, service or production of the entity,
3 (3) has an accounting system capable of tracking or
4 facilitating an audit of the subunit's payroll,
5 expenses, revenue and production. Limited
6 interunit overlap of administrative and
7 purchasing functions shall not disqualify a
8 subunit from consideration as an establishment by
9 the Department,

10 (4) the entity has not previously had a subunit
11 determined to be an establishment pursuant to
12 this section; provided, the restriction set forth
13 in this division shall not apply to subunits
14 which qualify pursuant to the provisions of
15 subparagraph b of paragraph 7 of this subsection,
16 and

17 (5) it is determined by the Department that the
18 entity will have a probable net gain in total
19 employment within the incentive period.

20 b. The Department may promulgate rules to further limit
21 the circumstances under which a subunit may be
22 considered an establishment. The Department shall
23 promulgate rules to determine whether a subunit of an
24 entity achieves a net gain in total employment. The

1 Department shall establish criteria for determining
2 the period of time within which such gain must be
3 demonstrated and a method for determining net gain in
4 total employment;

5 10. "NAICS Manual" means any manual, book or other publication
6 containing the North American Industry Classification System, United
7 States, 1997, promulgated by the Office of Management and Budget of
8 the United States of America, or the latest revised edition;

9 11. "Qualified federal contract" means a contract between an
10 agency or instrumentality of the United States government, including
11 but not limited to the Department of Defense or any branch of the
12 United States Armed Forces, but exclusive of any contract performed
13 for the Federal Emergency Management Agency as a direct result of a
14 natural disaster declared by the Governor or the President of the
15 United States with respect to damage to property located in Oklahoma
16 or loss of life or personal injury to persons in Oklahoma, and a
17 lawfully recognized business entity, whether or not the business
18 entity is organized under the laws of the State of Oklahoma or
19 whether or not the principal place of business of the business
20 entity is located within the State of Oklahoma, for the performance
21 of services, including but not limited to testing, research,
22 development, consulting or other services in a basic industry, if
23 the contract involves the performance of such services performed on
24 or after July 1, 2009, by the employees of the business entity

1 within the State of Oklahoma or if the contract involves the
2 performance of such services performed on or after July 1, 2009, by
3 employees of a lawfully recognized business entity that is a
4 subcontractor of the business entity with which the prime contract
5 has been formed. A qualified federal contract described in this
6 paragraph shall not qualify unless both the qualified federal
7 contractor and any subcontractors originally involved in the work or
8 added subsequently during the period of performance verify to the
9 qualified federal contractor verifier that it offers, or will offer
10 within one hundred eighty (180) days of employment of its respective
11 employees, a basic health benefits plan as described in subparagraph
12 b of paragraph 1 of this subsection to individuals who perform
13 qualified labor hours in this state;

14 12. "Qualified federal contractor verifier" means a nonprofit
15 entity organized under the laws of the State of Oklahoma, having an
16 affiliation with a comprehensive university which is part of The
17 Oklahoma State System of Higher Education, and having the following
18 characteristics:

- 19 a. established multiyear classified and unclassified
20 indefinite-delivery/indefinite-quantity federal
21 contract vehicles in excess of Fifty Million Dollars
22 (\$50,000,000.00),
- 23 b. current capability to sponsor and maintain personnel
24 security clearances and authorized by the federal

- 1 government to handle and perform classified work up to
2 the Top Secret Sensitive Compartmented Information
3 levels,
- 4 c. at least one on-site federally certified Sensitive
5 Compartmented Information Facility,
- 6 d. on-site secure mass data storage complex with the
7 capability of isolating, segregating and protecting
8 corporate proprietary and classified information,
- 9 e. trusted agent status by maintaining no ownership of,
10 vested interest in, nor royalty production from any
11 intellectual property,
- 12 f. at least one hundred thousand (100,000) square feet of
13 configurable laboratory and support space,
- 14 g. the direct access to restricted air space through a
15 formalized memorandum of agreement with the Department
16 of Defense,
- 17 h. at least five thousand (5,000) acres available for
18 outdoor testing and training facilities, and
- 19 i. the ability to house state-of-the-art surety
20 facilities, including chemical, biological,
21 radiological, explosives, electronics, and unmanned
22 systems laboratories and ranges;
- 23
24

1 13. "SIC Manual" means the 1987 revision to the Standard
2 Industrial Classification Manual, promulgated by the Office of
3 Management and Budget of the United States of America;

4 14. "Start date" means the date on which an establishment may
5 begin accruing benefits for the creation of new direct jobs, which
6 date shall be determined by the Department;

7 15. "Effective date" means the date of approval of a contract
8 under which incentive payments will be made pursuant to the Oklahoma
9 Quality Jobs Program Act, which shall be the date the signed and
10 accepted incentive contract is received by the Department; provided,
11 an approved project may have a start date which is different from
12 the effective date;

13 16. "Total qualified labor hours" means the reimbursed payment
14 amount for hours of work performed by the State of Oklahoma
15 workforce of a qualified federal contractor or the State of Oklahoma
16 workforce of a subcontractor of a qualified federal contractor and
17 which are required for the full performance of a qualified federal
18 contract;

19 17. "Qualified labor rate" means the fully reimbursed labor
20 rate paid through a qualified federal contract for qualified labor
21 hours to the qualified federal contractor or subcontractor;

22 18. "Qualified federal contractor" means a business entity:
23
24

- a. maintaining a prime contract with the federal government as defined in paragraph 11 of this subsection,
- b. providing notice of intent to apply to the Department within one hundred eighty (180) days of July 1, 2010, or one hundred eighty (180) days of the date of the award of a qualified federal contract or award of a new qualified subcontract under an existing qualified federal contract, and
- c. adding substantively to the contract by performing at least eight percent (8%) of the total labor whether qualified and nonqualified labor as determined by the federal contractor verifier on a direct contract or individual task order or delivery order on an indefinite-delivery/indefinite-quantity or other blanket contract vehicle.

Should a prime contractor provide notice to the Department of its intent not to apply for incentive for a qualified federal contract or fails to qualify under the criteria above, subcontractors in order of tier ranking as determined by the federal contract verifier may assume the role of the prime and apply to become a qualified federal contractor provided the entity meets the same criteria above with the exception that notice of intent to apply with the Department must be provided within sixty (60) days of

1 the prime's disqualification or one hundred eighty (180) days of the
2 award of its subcontract, whichever is later; and

3 19. "Proxy establishment" means a public trust which:

- 4 a. is organized and existing under Section 176 of Title
5 60 of the Oklahoma Statutes for the benefit of a
6 geographic area which includes a city or county or
7 some combination thereof, and
- 8 b. benefits a geographic area where new direct jobs which
9 meet the requirements of the Oklahoma Quality Jobs
10 Program Act are created by an establishment, other
11 than the proxy establishment, which is a branch of the
12 Armed Forces of the United States.

13 A proxy establishment may be determined to be an establishment
14 for all purposes of the Oklahoma Quality Jobs Program Act by the
15 Department and incentive payments may be made to such proxy
16 establishment for new direct jobs otherwise qualified pursuant to
17 the Oklahoma Quality Jobs Program Act. The Department may
18 promulgate rules to further specify the circumstances under which a
19 proxy establishment may be considered an establishment for the
20 purposes of making application for incentive payments pursuant to
21 the Oklahoma Quality Jobs Program Act. Provided however, that with
22 respect to any data on qualifying direct new jobs from a branch of
23 the Armed Forces of the United States, such rules shall only require
24 a proxy establishment to provide such data as would otherwise be

publicly releasable by the branch of the Armed Forces of the United States.

B. The Incentive Approval Committee is hereby created and shall consist of the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services, the Director of the Department and one member of the Oklahoma Tax Commission appointed by the Tax Commission, or a designee from each agency approved by such member. It shall be the duty of the Committee to determine the eligibility of all applicants for the Oklahoma Quality Jobs Program Act, subject to the applicable requirements.

C. For an establishment defined as a "basic industry" pursuant to division (4) of subparagraph a of paragraph 1 of subsection A of this section, the Incentive Approval Committee shall consist of the members provided by subsection B of this section and the Executive Director of the Oklahoma Center for the Advancement of Science and Technology, or a designee from the Center appointed by the Executive Director.

SECTION 531. AMENDATORY 68 O.S. 2021, Section 3625, is amended to read as follows:

Section 3625. A. There is hereby created in the State Treasury a revolving fund for the Oklahoma Tax Commission to be designated the "Oklahoma Film Enhancement Rebate Program Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Tax

Commission which are specifically required by law to be deposited in the fund, any public or private donations, contributions, and gifts received for the benefit of the fund and any amounts appropriated by the Oklahoma Legislature. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Tax Commission for the purpose of paying rebates as provided in this act. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

B. The Oklahoma Tax Commission shall apportion, from the revenues which would otherwise be apportioned to the General Revenue Fund pursuant to subparagraph a of paragraph 1 of Section 2352 of this title, an amount that the Commission estimates to be necessary to pay the rebates provided by Section 3624 of this title to the Oklahoma Film Enhancement Rebate Program Revolving Fund.

SECTION 532. AMENDATORY 68 O.S. 2021, Section 3639, is amended to read as follows:

Section 3639. A. There is hereby created in the State Treasury a revolving fund for the Oklahoma Tax Commission to be designated the "Filmed in Oklahoma Program Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Tax Commission which are specifically required by law to be deposited in the fund, any public

1 or private donations, contributions and gifts received for the
2 benefit of the fund and any amounts appropriated by the Oklahoma
3 Legislature. All monies accruing to the credit of the fund are
4 hereby appropriated and may be budgeted and expended by the Tax
5 Commission for the purpose of paying rebates as provided in this
6 act. Expenditures from the fund shall be made upon warrants issued
7 by the State Treasurer against claims filed as prescribed by law
8 with the ~~Director~~ Chief Operating Officer of the Office of
9 Management and Enterprise Services for approval and payment.

10 B. Any unencumbered funds remaining in the Filmed in Oklahoma
11 Program Revolving Fund upon the expiration of this act as provided
12 in Section 11 of this act shall be transferred to the State
13 Treasurer for deposit in the General Revenue Fund.

14 SECTION 533. AMENDATORY Section 6, Chapter 380, O.S.L.
15 2025 (68 O.S. Supp. 2025, Section 3642.6), is amended to read as
16 follows:

17 Section 3642.6. A. There is hereby created in the State
18 Treasury a revolving fund for the Oklahoma Tax Commission to be
19 designated the "Bringing Sitcoms Home from Hollywood Pilot Program
20 Revolving Fund". The fund shall be a continuing fund, not subject
21 to fiscal year limitations, and shall consist of all monies received
22 by the Tax Commission which are specifically required by law to be
23 deposited in the fund, any public or private donations,
24 contributions and gifts received for the benefit of the fund and any

amounts appropriated by the Oklahoma Legislature. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Tax Commission for the purpose of paying rebates as provided in this act. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

B. Funds from the Bringing Sitcoms Home from Hollywood Pilot Program Revolving Fund shall only be used for the purpose of live audience episodic series filmed in Oklahoma with a live studio audience.

C. Any unencumbered funds remaining in the Bringing Sitcoms Home from Hollywood Pilot Program Revolving Fund, upon the expiration of this act, shall be transferred to the State Treasurer for deposit in the General Revenue Fund.

SECTION 534. AMENDATORY Section 6, Chapter 66, O.S.L. 2022, as amended by Section 2, Chapter 1, O.S.L. 2023 (68 O.S. Supp. 2025, Section 3645.6), is amended to read as follows:

Section 3645.6. A. There is hereby created in the State Treasury a fund for the Oklahoma Tax Commission to be designated the "Large-scale Economic Activity and Development Fund", also known as the "LEAD Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies

1 designated for deposit to the fund by law. All monies accruing to
2 the credit of the fund are hereby appropriated and may be budgeted
3 and expended by the Tax Commission for the purpose of paying rebates
4 as provided in the Large-scale Economic Activity and Development Act
5 of 2022. Expenditures from such fund shall be made upon warrants
6 issued by the State Treasurer against claims filed as prescribed by
7 law with the ~~Director~~ Chief Operating Officer of the Office of
8 Management and Enterprise Services for approval and payment.

9 B. All unencumbered funds remaining in the Large-scale Economic
10 Activity and Development Fund upon the expiration of the Large-scale
11 Economic Activity and Development Act of 2022 shall be transferred
12 to the State Treasurer for deposit in the General Revenue Fund.

13 C. If the Oklahoma Department of Commerce has not received a
14 binding commitment from a primary establishment for an investment
15 determined by the Department to qualify for payment under the
16 provisions of division (1) of subparagraph a of paragraph 1 of
17 subsection E of Section 3645.4 of this title by April 15, 2023, all
18 unencumbered funds remaining in the Large-scale Economic Activity
19 and Development Fund shall be transferred to the State Treasurer for
20 deposit in the General Revenue Fund of the State Treasury for the
21 fiscal year ending June 30, 2022.

22 SECTION 535. AMENDATORY Section 5, Chapter 309, O.S.L.
23 2025 (68 O.S. Supp. 2025, Section 3647.5), is amended to read as
24 follows:

1 Section 3647.5. A. There is hereby created in the State
2 Treasury a revolving fund for the State Treasurer to be designated
3 the "ROA-25 Revolving Fund". The fund shall be a continuing fund,
4 not subject to fiscal year limitations, and shall consist of all
5 monies lawfully directed for deposit to the fund. All monies
6 accruing to the credit of said fund are hereby appropriated and upon
7 communication from the Department of Commerce of a satisfactory
8 feasibility study of such project participating in the
9 Reindustrialize Oklahoma Act of 2025, shall be budgeted and expended
10 by the State Treasurer for the purpose of purchasing or acquiring an
11 annuity or materially similar financial instrument which shall
12 provide to the ROA-25 Beneficiary Revolving Fund created by
13 subsection B of this section equal annual distributions of monies
14 over a fifteen-year period. Expenditures, transfers, and
15 distributions from said fund shall be made upon warrants issued by
16 the State Treasurer against claims filed as prescribed by law with
17 the ~~Director~~ Chief Operating Officer of the Office of Management and
18 Enterprise Services for approval and payment, or as otherwise
19 required to satisfy the requirements of this section.

20 B. There is hereby created in the State Treasury a beneficiary
21 revolving fund for the Oklahoma Department of Commerce to be
22 designated the "ROA-25 Beneficiary Revolving Fund". The fund shall
23 be a continuing fund, not subject to fiscal year limitations, and
24 shall consist of all distributions of the financial instrument

1 financed through subsection A of this section. All monies accruing
2 to the credit of said beneficiary revolving fund are hereby
3 appropriated and shall be budgeted, expended, and distributed by the
4 Oklahoma Department of Commerce in accordance with the provisions of
5 the Reindustrialize Oklahoma Act of 2025. Expenditures, transfers,
6 and distributions from said fund shall be made upon warrants issued
7 by the State Treasurer against claims filed as prescribed by law
8 with the ~~Director~~ Chief Operating Officer of the Office of
9 Management and Enterprise Services for approval and payment.

10 C. The State Treasurer is authorized to establish a custodial
11 account within the Treasury, and enter a contractual relationship
12 for custodial account services with a private institution as needed,
13 to administer the provisions of this section.

14 D. All unencumbered funds remaining in the Funds created in
15 subsections A and B of this section on or after the expiration of
16 the Reindustrialize Oklahoma Act of 2025 shall be transferred to the
17 State Treasurer for deposit in the General Revenue Fund.

18 SECTION 536. AMENDATORY 68 O.S. 2021, Section 6512, is
19 amended to read as follows:

20 Section 6512. There is hereby created in the State Treasury a
21 revolving fund for the Oklahoma Department of Transportation to be
22 designated the "Driving on Road Infrastructure with Vehicles of
23 Electricity (DRIVE) Revolving Fund". The fund shall be a continuing
24 fund, not subject to fiscal year limitations, and shall consist of

1 all monies received by the Department of Transportation from sources
2 provided by law. All monies accruing to the credit of said fund are
3 hereby appropriated and may be budgeted and expended by the
4 Department of Transportation for the purpose of administering the
5 provisions of this act. Expenditures from said fund shall be made
6 upon warrants issued by the State Treasurer against claims filed as
7 prescribed by law with the ~~Director~~ Chief Operating Officer of the
8 Office of Management and Enterprise Services for approval and
9 payment.

10 SECTION 537. AMENDATORY 68 O.S. 2021, Section 50001, is
11 amended to read as follows:

12 Section 50001. A. There is hereby levied upon percentages of
13 fire insurance gross premiums from a sum of the following lines of
14 insurance: fire, allied, homeowners multiperil, commercial
15 multiperil, growing crops, ocean marine, inland marine, auto
16 physical damage (including collision), and aircraft physical damage,
17 less returns and dividends to policyholders, which is issued in this
18 state by companies doing business in this state a tax of five-
19 sixteenths of one percent (5/16 of 1%). The percentages of fire
20 insurance gross premiums to be considered for taxation shall be
21 determined annually by the Commissioner. This tax shall be
22 collected annually, by the last day of February, from companies
23 collecting such premiums and shall be collected by the Insurance
24 Commissioner as other taxes on insurance are collected. The

1 Insurance Commissioner shall keep a separate account of all such
2 monies received and shall pay the same to the State Treasurer.

3 B. There is hereby created in the State Treasury a fund for the
4 Fire Marshal Commission and the State Fire Marshal to be designated
5 the "Fire Marshal Fund". The fund shall consist of all monies
6 collected pursuant to the provisions of this section and shall be
7 used in the performance of duties imposed by law upon the Fire
8 Marshal Commission and the Office of the State Fire Marshal.

9 Expenditures from the Fire Marshal Fund shall be made upon warrants
10 issued by the State Treasurer against claims filed as prescribed by
11 law with the ~~Director~~ Chief Operating Officer of the Office of
12 Management and Enterprise Services for approval and payment.

13 Beginning July 1, 1982, all expenditures from the Fire Marshal Fund
14 shall be made pursuant only to legislative appropriation.

15 C. All monies annually collected pursuant to the provisions of
16 this section shall be apportioned as follows:

17 1. For the fiscal year beginning July 1, 2017, the first One
18 Million Six Hundred Thousand Dollars (\$1,600,000.00) shall be
19 deposited in the State Fire Marshal Revolving Fund as defined in
20 Section 324.20b of Title 74 of the Oklahoma Statutes; provided, that
21 ten percent (10%) of the first One Million Six Hundred Thousand
22 Dollars (\$1,600,000.00) shall be paid into the General Revenue Fund
23 of this state;

2. For the fiscal year beginning July 1, 2018, and for every subsequent fiscal year thereafter, the first Two Million Dollars (\$2,000,000.00) shall be deposited in the Fire Marshal Fund; provided, that ten percent (10%) of the first Two Million Dollars (\$2,000,000.00) shall be paid into the General Revenue Fund of this state; and

3. Any remaining monies not apportioned pursuant to paragraphs 1 and 2 of this subsection shall be deposited into the General Revenue Fund of this state.

D. Employees of the Office of State Fire Marshal, other than the State Fire Marshal, shall have salaries commensurate with those fixed by the Merit System of Personnel Administration. All salaries shall be payable monthly from funds available to the State Fire Marshal. The State Fire Marshal, subject to confirmation by the Fire Marshal Commission, shall appoint and fix the salaries of such employees as are necessary to fulfill the duties of his office.

SECTION 538. AMENDATORY 68 O.S. 2021, Section 50014, is amended to read as follows:

Section 50014. A. 1. There is hereby created in the State Treasury a revolving fund for the Oklahoma Tourism and Recreation Department, to be designated the "Oklahoma Tourism Promotion Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Oklahoma Tourism and Recreation Department and apportioned to

1 such fund pursuant to the provisions of Sections 1353 and 1403 of
2 this title and such other monies accredited to the fund pursuant to
3 law.

4 2. All monies accruing to the credit of the fund are hereby
5 appropriated and may be budgeted and expended by the Oklahoma
6 Tourism and Recreation Department for the purpose of Oklahoma
7 tourism promotion, as defined by Section 50011 of this title,
8 provided that the Department shall ensure that all areas of the
9 state will be adequately promoted, and all monies expended from the
10 fund shall reflect a consistent brand and image in the promotion of
11 Oklahoma tourism.

12 3. No monies from this revolving fund shall be transferred for
13 any purpose to any other state agency or be used for the purpose of
14 contracting with any other state agency or reimbursing any other
15 state agency for any expense with the exception of contracting and
16 payment for research work completed by an institution of The
17 Oklahoma State System of Higher Education. No monies from this
18 revolving fund shall be expended for any wage or salary of any
19 employee of any state agency. Expenditures from the fund shall be
20 made upon warrants issued by the State Treasurer against claims
21 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
22 of the Office of Management and Enterprise Services for approval and
23 payment.

1 B. 1. There is hereby created in the State Treasury a
2 revolving fund for the Oklahoma Tourism and Recreation Department,
3 to be designated the "Oklahoma Tourism Capital Improvement Revolving
4 Fund". The fund shall be a continuing fund, not subject to fiscal
5 year limitations, and shall consist of all monies received by the
6 Oklahoma Tourism and Recreation Department and apportioned to such
7 fund pursuant to the provisions of Sections 1353 and 1403 of this
8 title and such other monies accredited to the fund pursuant to law.

9 2. All monies accruing to the credit of the fund are hereby
10 appropriated and may be budgeted and expended by the Oklahoma
11 Tourism and Recreation Department for the purpose of funding capital
12 improvement projects or operations at state parks and tourist
13 information centers; provided, no more than twenty percent (20%) of
14 the amount accruing annually shall be expended for the purpose of
15 funding operations.

16 3. No monies from this revolving fund shall be transferred for
17 any purpose to any other state agency. Expenditures from the fund
18 shall be made upon warrants issued by the State Treasurer against
19 claims filed as prescribed by law with the ~~Director~~ Chief Operating
20 Officer of the Office of Management and Enterprise Services for
21 approval and payment.

22 SECTION 539. AMENDATORY 69 O.S. 2021, Section 404, is
23 amended to read as follows:
24

1 Section 404. A. There is hereby created in the State Treasury
2 a revolving fund for the Department of Transportation to be
3 designated the "State Infrastructure Bank Revolving Fund". The fund
4 shall be a continuing fund, not subject to fiscal year limitations,
5 and shall consist of the following:

6 1. All monies received by the Department of Transportation as
7 provided in Section 403 of this title;

8 2. All monies received pursuant and subject to the provisions
9 of the National Highway System Designation Act of 1995 and the
10 Transportation Infrastructure Finance and Innovation Act of 1998
11 which are eligible for use in state revolving loan funds established
12 to meet the requirements of that act;

13 3. All monies appropriated to this fund;

14 4. Payments of principal and interest and penalty payments on
15 loans made directly from federal monies and appropriated monies in
16 this fund;

17 5. Annual state administration fees of one-half percent (1/2%)
18 on the outstanding loan balance; and

19 6. Any other sums designated for deposit to this fund from any
20 source, public or private.

21 All monies accruing to the credit of the fund are hereby
22 appropriated and may be budgeted and expended by the Department of
23 Transportation for the purposes of effectuating the provisions of
24 this act. Expenditures from the fund shall be made upon warrants

1 issued by the State Treasurer against claims filed as prescribed by
2 law with the ~~Director~~ Chief Operating Officer of the Office of
3 Management and Enterprise Services for approval and payment.

4 B. The monies placed in the State Infrastructure Bank Revolving
5 Fund shall be invested by the State Treasurer as prescribed by
6 Section 89.2 of Title 62 of the Oklahoma Statutes. Any interest
7 earned by the State Treasurer shall be deposited to the credit of
8 the State Infrastructure Bank Revolving Fund. Monies invested by
9 the State Treasurer shall be available to meet the program funding
10 needs established by the Department of Transportation pursuant to
11 this act.

12 SECTION 540. AMENDATORY 69 O.S. 2021, Section 506, is
13 amended to read as follows:

14 Section 506. A. There is hereby created in the State Treasury
15 a revolving fund to be known as the "High Priority State Bridge
16 Revolving Fund". The fund shall be a continuing fund, not subject
17 to fiscal year limitations, and shall consist of all appropriations
18 and transfers made by the Legislature and the apportionments made
19 pursuant to Sections 500.6 and 500.7 of Title 68 of the Oklahoma
20 Statutes. All monies accruing to the credit of said fund are hereby
21 appropriated and may be budgeted and expended beginning with the
22 fiscal year ending June 30, 2008, and each fiscal year thereafter
23 pursuant to subsection B of this section. Expenditures from said
24 fund shall be made upon warrants issued by the State Treasurer

1 against claims filed as prescribed by law with the ~~Director~~ Chief
2 Operating Officer of the Office of Management and Enterprise
3 Services for approval and payment.

4 B. The funds shall be used for the sole purpose of construction
5 or reconstruction of bridges on the state highway system that are of
6 the highest priority as defined by the Transportation Commission.
7 The fund shall be invested in whatever instruments are authorized by
8 law for investments by the State Treasurer and the interest earned
9 by any investment of monies from the fund shall be credited to the
10 fund which shall earn the same, if there is any unexpended balance
11 of such fund to which to credit the interest.

12 SECTION 541. AMENDATORY 69 O.S. 2021, Section 507, is
13 amended to read as follows:

14 Section 507. A. There is hereby created in the State Treasury
15 a revolving fund to be known as the "County Improvements for Roads
16 and Bridges Fund". The fund shall be a continuing fund, not subject
17 to fiscal year limitations, and shall consist of all appropriations
18 and transfers made by the Legislature and the apportionments made
19 pursuant to subsection L of Section 1104 of Title 47 of the Oklahoma
20 Statutes. All monies accruing to the credit of said fund are hereby
21 appropriated and may be budgeted and expended beginning with the
22 fiscal year ending June 30, 2008, and each fiscal year thereafter
23 pursuant to subsection B of this section. Expenditures from said
24 fund shall be made upon warrants issued by the State Treasurer

1 against claims filed as prescribed by law with the ~~Director~~ Chief
2 Operating Officer of the Office of Management and Enterprise
3 Services for approval and payment.

4 B. The funds apportioned pursuant to subsection L of Section
5 1104 of Title 47 of the Oklahoma Statutes shall be in equal amounts
6 to the various Transportation Commission districts. The funds shall
7 be used for the sole purpose of construction or reconstruction of
8 county roads or bridges on the county highway system that are of the
9 highest priority as defined by the Transportation Commission.

10 Counties may accumulate annual funding for a period of up to five
11 (5) years for a specific project, with such funding to be held by
12 the Transportation Commission to the credit of the county project.
13 The Transportation Commission shall promulgate rules for the
14 administration of the process and the development of criteria for
15 determining the level of priority for projects and include such
16 projects in a five-year construction plan that will be updated
17 annually. Projects in the five-year construction plan shall be
18 contracted as provided by law and awarded by the Transportation
19 Commission.

20 C. The fund shall be invested in whatever instruments are
21 authorized by law for investments by the State Treasurer and the
22 interest earned by any investment of monies from the fund shall be
23 credited to the fund which shall earn the same, if there is any
24 unexpended balance of such fund to which to credit the interest.

1 The interest credited herein shall be expended pursuant to this
2 section.

3 SECTION 542. AMENDATORY Section 1, Chapter 490, O.S.L.
4 2025 (69 O.S. Supp. 2025, Section 508), is amended to read as
5 follows:

6 Section 508. A. There is hereby created in the State Treasury
7 a revolving fund to be designated as the "Preserving and Advancing
8 County Transportation Fund" (PACT Fund). The fund shall be a
9 continuing fund, not subject to fiscal year limitations, and shall
10 consist of all monies directed for deposit to the fund by law
11 including, but not limited to, apportionments made pursuant to
12 paragraph 10 of subsection B of Section 1004 of Title 68 of the
13 Oklahoma Statutes. All monies accruing to the credit of said fund
14 are hereby appropriated and may be allocated, budgeted, and expended
15 pursuant to subsection B of this section. Expenditures from said
16 fund shall be made upon warrants issued by the State Treasurer
17 against claims filed as prescribed by law with the ~~Director~~ Chief
18 Operating Officer of the Office of Management and Enterprise
19 Services for approval and payment.

20 B. 1. Two-thirds (2/3) of the monies deposited to the credit
21 of the PACT Fund shall be allocated as follows:

22 a. to the various counties in a manner that increases a
23 county's per county mile highway construction and
24 maintenance ratio to a target ratio of Four Thousand

Dollars (\$4,000.00) per county road mile, prioritizing counties with the lowest such ratio, until all of the various counties reach such target ratio, and

b. any remaining amounts as follows:

(1) fifty percent (50%) shall be allocated to the various counties in the proportion which the certified county road miles of each county bears to the sum of county road miles in the state, and

(2) fifty percent (50%) shall be allocated to the various counties in the proportion which the number of county bridges in each county according to the most recent ODOT Bridge Summary Report for County Bridges bears to the total sum of county bridges in the state according to such report.

Each county treasurer shall deposit such funds to the county's county highway fund and such funds shall be used for constructing and maintaining the county highway system.

2. One-third (1/3) of the monies deposited to the credit of the PACT Fund shall be used as necessary for the reconstruction of county bridges on the portion of the county highway system defined as major collector routes in accordance with the provisions of Section 654 of Title 69 of the Oklahoma Statutes. Prior to any funds for such projects being allocated, the counties shall submit the proposed projects to the Department of Transportation, which

1 shall evaluate and confirm whether the proposed projects are in
2 accordance with the criteria provided for in this subsection.
3 Bridges proposed for reconstruction will be generally evaluated
4 based on the state of project innovation, readiness, structural
5 adequacy, safety, serviceability, functional obsolescence,
6 essentiality for public use, structural deficiency ranking as
7 captured in the most recent ODOT Bridge Summary Report at the time
8 of submission, and special reductions for characteristics such as
9 detour length, traffic safety features, and current school bus
10 routes. Upon confirmation by the Department of Transportation that
11 a proposed project is in accordance with the criteria provided for
12 in this subsection, funds shall be allocated to the county for use
13 in such project.

14 SECTION 543. AMENDATORY 69 O.S. 2021, Section 636.3, is
15 amended to read as follows:

16 Section 636.3. A. Counties shall enter into lease or lease-
17 purchase contracts for road machinery and equipment pursuant to the
18 provisions of Sections 636.1 through 636.7 of this title or pursuant
19 to the provisions of Sections 1500 through 1505 of Title 19 of the
20 Oklahoma Statutes and may not otherwise lease road machinery or
21 equipment except in the case of an emergency, when specialized road
22 machinery or equipment for projects of short durations is required
23 for periods not to exceed thirty (30) days.

1 B. A county shall be eligible to enter into a lease or lease-
2 purchase contract with the Department of Transportation for road
3 machinery and equipment on a priority basis determined by the county
4 funding classification designation during any fiscal year for the
5 purchase of road machinery and equipment. The county funding
6 classification designation shall be developed by the Department of
7 Transportation and the Oklahoma Cooperative Circuit Engineering
8 Districts Board and approved by the Oklahoma Department of
9 Transportation County Advisory Board. Upon approval by the
10 Department of Transportation County Advisory Board, the funding
11 classification designation shall be submitted to the Transportation
12 Commission for final approval. The counties receiving the least
13 appropriations per mile of road may receive the highest priority
14 rating. A county may also enter into a full warranty lease contract
15 for road machinery and equipment pursuant to the provisions of
16 subsection F of this section. Nothing in Sections 636.1 through
17 636.7 of this title shall prohibit a county from purchasing road
18 machinery and equipment if it has adequate funds appropriated during
19 any fiscal year for such purpose.

20 C. Whenever a county desires to lease or lease-purchase road
21 machinery and equipment with funds from the County Road Machinery
22 and Equipment Revolving Fund, it shall notify the Department of
23 Transportation of its requirements and specifications and shall
24

1 provide a list of vendors from which bids will be requested for the
2 lease or lease-purchase agreements.

3 D. Upon receiving such notification from a county, the
4 Department shall be authorized to purchase requested road machinery
5 or equipment for lease or lease-purchase to that county or may lease
6 or lease-purchase surplus or used road machinery and equipment to a
7 county provided such road machinery or equipment meets the
8 requirements and specifications of the requesting county.

9 E. If there are no funds available in the County Road Machinery
10 and Equipment Revolving Fund, the Department of Transportation, upon
11 notification that a county desires to lease or lease-purchase road
12 machinery or equipment, shall certify to the county that there are
13 no funds available in the County Road Machinery and Equipment
14 Revolving Fund for such purposes. The county may then request the
15 Purchasing ~~Director~~ Chief Operating Officer of the Office of
16 Management and Enterprise Services to solicit bids or request bids
17 pursuant to the provisions of Section 1500 et seq. of Title 19 of
18 the Oklahoma Statutes to lease or lease-purchase the requested road
19 machinery or equipment.

20 F. When funds are available in the County Road Machinery and
21 Equipment Revolving Fund the Department of Transportation shall,
22 after receiving notification from a county desiring to lease or
23 lease-purchase equipment, authorize the county to request bids
24 pursuant to the provisions of this act and allocate funds equal to

1 the estimated cost of the equipment or machinery requested.
2 However, if the lowest and best bid received by the county exceeds
3 the estimated purchase price of the equipment or machinery, the
4 county shall pay any difference above the estimated purchase price
5 if accepted. The county shall use the bid procedure provided for in
6 Section 1500 et seq. of Title 19 of the Oklahoma Statutes. The
7 county shall forward the lowest and best bid received to the
8 Department of Transportation which shall authorize the lease or
9 lease-purchase of the equipment or machinery.

10 G. A county may enter into a full warranty lease contract for
11 road machinery and equipment if the county has adequate funds
12 appropriated during any fiscal year for such purpose. Whenever a
13 county desires to enter into a full warranty lease contract for road
14 machinery or equipment, the county must notify the State Auditor and
15 Inspector of its intent and must provide the State Auditor and
16 Inspector with its requirements and specifications along with the
17 proper documentation to be advertised for bids. Upon receiving the
18 notification and documentation from a county, the State Auditor and
19 Inspector shall review the documentation and, upon approval, shall
20 forward the documentation and specifications to the State Purchasing
21 Division of the Office of Management and Enterprise Services. The
22 Purchasing Director of the Office of Management and Enterprise
23 Services shall solicit bids to lease the requested road machinery or
24 equipment according to the documentation and specifications of the

1 county as approved by the State Auditor and Inspector. The term of
2 any full warranty lease contract authorized pursuant to this
3 subsection may be for any period up to one (1) year, provided the
4 term shall not extend beyond the end of any fiscal year, with an
5 option to renew such lease subject to the requirement that adequate
6 funds are appropriated during the fiscal year by the county for such
7 purpose. The State Auditor and Inspector shall prescribe the lease
8 forms and other documentation necessary for implementing the
9 provisions of this subsection.

10 H. Except as provided in subsection G of this section, the
11 Department of Transportation shall promulgate such rules and
12 regulations and is authorized to require from the counties such
13 information, forms and reports as are necessary for properly and
14 efficiently administering Sections 636.1 through 636.7 of this
15 title.

16 SECTION 544. AMENDATORY 69 O.S. 2021, Section 687.2, is
17 amended to read as follows:

18 Section 687.2. There is hereby created in the State Treasury a
19 revolving fund for the State Treasurer to be designated the
20 "Statewide Circuit Engineering District Revolving Fund". The fund
21 shall be a continuing fund, not subject to fiscal year limitations,
22 and shall consist of all monies received by the State Treasurer
23 pursuant to the provisions of Section 227.3 of Title 74 of the
24 Oklahoma Statutes and any other monies designated by law for deposit

thereto. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the State Treasurer solely for the purpose of funding the statewide circuit engineering board organized pursuant to Section 687.1 of this title. The State Auditor and Inspector shall audit the Statewide Circuit Engineering District on a yearly basis, and the statewide circuit engineering district board shall be responsible for the cost of the audit. Expenditures from the fund shall be made once each month upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 545. AMENDATORY 69 O.S. 2021, Section 687.3, is amended to read as follows:

Section 687.3. A. There is hereby created in the State Treasury a revolving fund to be designated the "Emergency and Transportation Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by any donations, deposits designated by law, or appropriations. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by any qualified county or counties pursuant to subsection B of this section for the purpose of funding emergency or transportation projects of a county that are reimbursable and subsection C of this

1 section for the purpose of funding loans to purchase compressed
2 natural gas vehicles or convert fleet vehicles to compressed natural
3 gas. No more than fifty percent (50%) of the fund's balance at the
4 beginning of each fiscal year shall be expended pursuant to
5 subsection C of this section. The fund shall be invested in
6 whatever instruments are authorized by law for investments by the
7 State Treasurer and the interest earned by any investment of monies
8 from the fund shall be credited to the Statewide Circuit Engineering
9 District Revolving Fund created pursuant to Section 687.2 of this
10 title for expenditure as provided by law. Expenditures from the
11 Emergency and Transportation Revolving Fund shall be made upon
12 warrants issued by the State Treasurer against claims filed as
13 prescribed by law with the ~~Director~~ Chief Operating Officer of the
14 Office of Management and Enterprise Services for approval and
15 payment.

16 B. The Statewide Circuit Engineering Board shall develop and
17 adopt rules governing the application and qualification procedures
18 for counties seeking funding pursuant to subsection A of this
19 section. Such rules shall also specify criteria in determining
20 reimbursable projects and the procedures for reimbursement of the
21 fund upon completion of projects.

22 C. 1. The Statewide Circuit Engineering Board shall develop
23 and adopt rules governing application and qualification procedures
24 for counties requesting a loan pursuant to subsection A of this

1 section to purchase compressed natural gas vehicles or convert
2 existing fleet vehicles to compressed natural gas.

3 2. Loans shall be provided at no interest for a maximum term of
4 five (5) years.

5 3. Counties that borrow funds for the purpose of purchasing
6 compressed natural gas vehicles shall provide documentation showing
7 that an amount of gas- or diesel-powered vehicles equal to or
8 greater than those purchased have been sold or disposed of.

9 SECTION 546. AMENDATORY 69 O.S. 2021, Section 708.2, is
10 amended to read as follows:

11 Section 708.2. A. The Department of Transportation and the
12 Oklahoma Turnpike Authority shall each compile a list of all persons
13 and entities interested in and capable of performing construction
14 management and design consultant services specific to the
15 transportation industry. The consultant list shall include, but
16 shall not be limited to, qualified construction managers and design
17 consultants capable of performing such services as solicited from
18 the Office of Management and Enterprise Services file on an annual
19 basis. The Department and the Authority shall each determine the
20 qualifications of the prospective construction managers and design
21 consultants. The construction managers and design consultants shall
22 be selected at the discretion of the Department or the Authority.

23 B. The Department or the Authority shall issue a solicitation
24 to construction managers or design consultants capable of providing

1 the services desired. The solicitation shall, at a minimum,
2 contain:

3 1. A description and scope of the projects;

4 2. An estimated construction cost, anticipated starting date,
5 and completion date the Department or the Authority desires for the
6 project;

7 3. A certification of funds available for the construction
8 manager or design consultant fee, including federal, state or other
9 participation;

10 4. The closing date for construction manager or design
11 consultant to give notice of interest; and

12 5. Additional data the Department or the Authority requires
13 from the construction manager or design consultant. The closing
14 date for submission of construction manager or design consultant
15 notice of interest for consideration shall be within thirty (30)
16 days of the date the notice is issued by the Department or the
17 Authority.

18 C. The Department or the Authority shall review the
19 qualifications of the entities on the consultant list and shall
20 select no less than three and no more than five consultants per
21 contract for further consideration. The review shall include
22 consideration of the following information:

23 1. Professional qualifications for the type of work
24 contemplated;

2. Capacity for completing the project in the specified time period;

3. Past performance on projects of a similar nature; and

4. Percentage of work to be performed by residents of Oklahoma.

D. The Department and the Authority shall each establish a committee which will evaluate the construction managers or design consultants selected for consideration and rank the construction managers or design consultants in order of preference.

E. The Department or the Authority shall enter into negotiations with the first-choice consultant. If the Department or Authority and the first-choice consultant cannot reach an agreement, their negotiations shall be terminated and negotiations with the second-choice consultant shall commence. If the Department or the Authority and the second-choice consultant cannot reach an agreement, their negotiations shall be terminated and negotiations with the third-choice consultant shall commence. If the Department or the Authority and the third-choice consultant cannot reach an agreement, then all negotiations shall be terminated. Should the Department or the Authority be unable to negotiate a satisfactory contract with any of the three selected consultants, the Department or the Authority shall reevaluate the proposed work and send out a new notice.

F. As provided for in the Transportation Commission rules or by Authority resolutions, the Department or the Authority shall perform

1 a written evaluation of the services provided by the consultant.
2 This evaluation shall become a part of the Department's and the
3 Authority's consultant file. Failure of the consultant to perform
4 the prescribed work in a timely and accurate manner shall be grounds
5 for exclusion from the list of qualified construction managers or
6 design consultants until such time as the consultant can reasonably
7 document and demonstrate performance improvement to the satisfaction
8 of the Department or the Authority.

9 G. As provided for in the Transportation Commission rules or by
10 Authority resolutions, the Department or the Authority may enter
11 into demand services contracts for consultant services to provide a
12 specific project work type or activity for unspecified projects or
13 facilities on an as-needed basis. When soliciting and securing such
14 services, the Department and the Authority shall utilize the
15 procedure as set forth in this section.

16 SECTION 547. AMENDATORY 69 O.S. 2021, Section 1507, is
17 amended to read as follows:

18 Section 1507. The Department shall file budget estimates with
19 the ~~Director~~ Chief Operating Officer of the Office of Management and
20 Enterprise Services in the manner prescribed and at the time
21 required by law, for each fiscal year of the ensuing biennium
22 following each regular session of the Legislature. Planning of road
23 programs shall be on a fiscal year basis and shall show the
24

1 estimated amount of revenue available to finance such budget from
2 existing revenue laws.

3 SECTION 548. AMENDATORY 69 O.S. 2021, Section 1512, is
4 amended to read as follows:

5 Section 1512. No obligation shall be incurred by the Department
6 of Transportation against the State Highway Construction and
7 Maintenance Fund during any fiscal year in excess of the total
8 amount of monies accruing to said fund during such fiscal year.

9 Construction contracts and purchase orders issued by the Department
10 of Transportation, setting forth the actual or estimated cost of
11 construction as consideration for the cost of work to be done or
12 services, supplies and equipment to be furnished, shall constitute
13 obligations within the meaning of this act. Monthly, bimonthly or
14 weekly payrolls of the Department of Transportation shall constitute
15 current charges and shall become obligations against the State
16 Highway Construction and Maintenance Fund at the time the payrolls
17 are filed with the ~~Director~~ Chief Operating Officer of the Office of
18 Management and Enterprise Services for payment.

19 SECTION 549. AMENDATORY 69 O.S. 2021, Section 1521, as
20 amended by Section 1, Chapter 460, O.S.L. 2025 (69 O.S. Supp. 2025,
21 Section 1521), is amended to read as follows:

22 Section 1521. A. There is hereby created in the State Treasury
23 a fund to be known as the "Rebuilding Oklahoma Access and Driver
24 Safety Fund". The fund shall be a continuing fund, not subject to

1 fiscal year limitations, and shall consist of all appropriations and
2 transfers made by the Legislature. All monies accruing to the
3 credit of the fund are hereby appropriated and may be budgeted and
4 expended by the Department of Transportation for the purposes
5 authorized by subsection D of this section in amounts as authorized
6 by the Oklahoma Legislature. Expenditures from the fund shall be
7 made upon warrants issued by the State Treasurer against claims
8 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
9 of the Office of Management and Enterprise Services for approval and
10 payment.

11 B. Beginning July 1, 2021, except for an amount equivalent to
12 the amount of revenue apportioned to the Rebuilding Oklahoma Access
13 and Driver Safety Fund pursuant to Section 500.4B of Title 68 and
14 Section 1104 of Title 47 of the Oklahoma Statutes and from other
15 sources apportioned to the Fund by law, there shall be apportioned
16 to the funds specified in this subsection from the monies that would
17 otherwise be apportioned to the General Revenue Fund by Section 2352
18 of Title 68 of the Oklahoma Statutes from the revenues derived
19 pursuant to subsections A, B and E of Section 2355 of Title 68 of
20 the Oklahoma Statutes amounts as follows:

21 1. Subject to any reductions required by subsection C of this
22 section, there shall be apportioned to the Rebuilding Oklahoma
23 Access and Driver Safety Fund:
24

- a. for the fiscal year beginning July 1, 2021, and for each fiscal year thereafter, Eighty Million Dollars (\$80,000,000.00), which shall be allocated and used by the Department of Transportation first for the purpose of making any required payments for principal, interest or other costs of borrowing with respect to the obligations issued pursuant to Section 341 of Title 73 of the Oklahoma Statutes and after any such required payment has been made then for the purposes otherwise authorized by this section, plus
- b. the total amount apportioned to the Rebuilding Oklahoma Access and Driver Safety Fund for the preceding fiscal year which, except for the amount prescribed by subparagraph a of this paragraph, shall be apportioned before any other amount is apportioned pursuant to Section 2352 of Title 68 of the Oklahoma Statutes, plus
- c. an additional amount that is required in order for the total apportionment to the Rebuilding Oklahoma Access and Driver Safety Fund from all sources for such fiscal year to equal:
- (1) Five Hundred Seventy-five Million Dollars (\$575,000,000.00) for the fiscal year beginning July 1, 2021,

(2) Five Hundred Ninety Million Dollars

(\$590,000,000.00) for the fiscal year beginning July 1, 2022, and

(3) Six Hundred Ten Million Dollars (\$610,000,000.00)

for the fiscal year beginning July 1, 2025, and for each fiscal year thereafter.

All amounts apportioned pursuant to this paragraph shall be divided into twelve equal amounts to be apportioned each month during the fiscal year except the amount specified in subparagraph a of this paragraph which amount shall be allocated in its full amount in cash not later than July 30 each year or such later date as may be required in order for the amount to be allocated in cash; and

2. For each fiscal year after the apportionments required by paragraph 1 of this subsection have been made:

a. the next Two Million Dollars (\$2,000,000.00) shall be apportioned to the Oklahoma Tourism and Passenger Rail Revolving Fund created pursuant to Section 325 of Title 66 of the Oklahoma Statutes to be used for capital and operating costs for the "Heartland Flyer" rail project, and

b. the next Three Million Dollars (\$3,000,000.00) shall be apportioned to the Public Transit Revolving Fund created pursuant to Section 4031 of this title to be

1 used for purposes authorized by law other than the
2 purpose described by subparagraph a of this paragraph.

3 All amounts apportioned pursuant to this paragraph shall be
4 divided into twelve equal amounts to be apportioned each month
5 during the fiscal year.

6 C. In the event that the ~~Director~~ Chief Operating Officer of
7 the Office of Management and Enterprise Services declares a General
8 Revenue Fund revenue failure pursuant to Section 34.49 of Title 62
9 of the Oklahoma Statutes, and agency allocations are reduced
10 pursuant to the provisions of Section 34.49 of Title 62 of the
11 Oklahoma Statutes, the amounts that would otherwise be apportioned
12 to the ROADS Fund by:

13 1. Subparagraph a of paragraph 1 of subsection B of this
14 section, only to the extent that the amount is not required for debt
15 service related to the obligations authorized pursuant to Section
16 341 of Title 73 of the Oklahoma Statutes, Section 350 of Title 73 of
17 the Oklahoma Statutes and Section 1 of Enrolled House Bill No. 2896
18 of the 1st Session of the 58th Oklahoma Legislature;

19 2. Subparagraphs b and c of paragraph 1 of subsection B of this
20 section; and

21 3. Subparagraphs a and b of paragraph 2 of subsection B of this
22 section,
23 shall be reduced by a percentage equal to that required of the
24 General Revenue Fund appropriations to state agencies and such

1 reductions shall occur during the entire fiscal year and for any
2 month during which such reductions are required by the Office of
3 Management and Enterprise Services and by the same percentage as
4 that required of the agencies for such General Revenue Fund
5 appropriations.

6 D. The Department of Transportation shall use the monies in the
7 Rebuilding Oklahoma Access and Driver Safety Fund for:

8 1. The construction and maintenance of state roads, bridges and
9 highways;

10 2. The direct expenses of operating and maintaining the state
11 highway system, including bridges;

12 3. Direct expenses incurred in constructing, repairing, and
13 maintaining state highways, farm-to-market roads, county highways
14 and bridges as authorized by law;

15 4. Matching federal funds;

16 5. The purchase of materials, tools, machinery, motor vehicles,
17 and equipment necessary or convenient for the construction and
18 maintenance of the state highway system and bridges;

19 6. Debt service incurred prior to January 1, 2006, for Capital
20 Improvement Program bonds sold pursuant to Section 2001 of this
21 title;

22 7. Debt service incurred on or after July 1, 2009, with respect
23 to obligations authorized to be issued pursuant to Section 341 of
24 Title 73 of the Oklahoma Statutes, Section 350 of Title 73 of the

Oklahoma Statutes and Section 1 of Enrolled House Bill No. 2896 of the 1st Session of the 58th Oklahoma Legislature; and

8. For fiscal years beginning on or after July 1, 2025, and ending on or prior to June 30, 2033, Twenty Million Dollars (\$20,000,000.00) per fiscal year for the construction, repair, and maintenance of weigh stations on the state highway system.

E. From the monies allocated pursuant to the provisions of subparagraph a of paragraph 1 of subsection B of this section each fiscal year, the Department of Transportation shall make payments required for the payment of principal, interest and other costs related to the obligations issued by the Oklahoma Capitol Improvement Authority as authorized by Section 341 of Title 73 of the Oklahoma Statutes, Section 350 of Title 73 of the Oklahoma Statutes and Section 1 of Enrolled House Bill No. 2896 of the 1st Session of the 58th Oklahoma Legislature, and such payments shall be made by the Department each fiscal year before such monies are used for any other purpose.

SECTION 550. AMENDATORY 69 O.S. 2021, Section 1736, is amended to read as follows:

Section 1736. There is hereby created in the State Treasury a revolving fund for the Oklahoma Turnpike Authority to be designated the "Honor the Fallen Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies deposited to the credit of the fund by law.

1 All monies accruing to the credit of the fund are hereby
2 appropriated and may be budgeted and expended by the Oklahoma
3 Turnpike Authority for the purpose of repaying turnpike tolls for
4 the funeral procession of any member of the United States Armed
5 Forces, including the National Guard or Armed Forces Reserve, who is
6 either killed in the line of duty in a combat zone or dies of wounds
7 inflicted in a combat zone and who, at the time of death, was a
8 resident of this state. Expenditures from the fund shall be made
9 upon warrants issued by the State Treasurer against claims filed as
10 prescribed by law with the ~~Director~~ Chief Operating Officer of the
11 Office of Management and Enterprise Services for approval and
12 payment.

13 SECTION 551. AMENDATORY 69 O.S. 2021, Section 4031, is
14 amended to read as follows:

15 Section 4031. There is hereby created in the State Treasury a
16 revolving fund for the Department of Transportation, to be
17 designated the "Public Transit Revolving Fund". The fund shall be a
18 continuing fund, not subject to fiscal year limitations, and shall
19 consist of all monies received by the Department for deposit in the
20 fund. All monies accruing to the credit of said fund are hereby
21 appropriated and may be budgeted and expended by the Department for
22 the purpose of establishing, expanding, improving, and maintaining
23 rural and urban public mass transportation services. Expenditures
24 from said fund shall be made upon warrants issued by the State

1 Treasurer against claims filed as prescribed by law with the
2 ~~Director~~ Chief Operating Officer of the Office of Management and
3 Enterprise Services for approval and payment.

4 SECTION 552. AMENDATORY 70 O.S. 2021, Section 1-123, is
5 amended to read as follows:

6 Section 1-123. A. There is hereby created in the State
7 Treasury a revolving fund for the State Board of Education to be
8 designated the "Public School Classroom Support Revolving Fund".
9 The fund shall be a continuing fund, not subject to fiscal year
10 limitations, and shall consist of all monies received by the State
11 Board of Education from the state income tax checkoff as provided
12 for in Section 1-122 of this title, any state-appropriated funds,
13 federal funds, donations, grants, contributions, and gifts from any
14 public or private source. All monies accruing to the credit of the
15 fund are hereby appropriated and may be budgeted and expended by the
16 State Board of Education for the purposes of providing grants to
17 public school classroom teachers as provided for in subsection B of
18 this section. Expenditures from the fund shall be made upon
19 warrants issued by the State Treasurer against claims filed as
20 prescribed by law with the ~~Director~~ Chief Operating Officer of the
21 Office of Management and Enterprise Services for approval and
22 payment.

23 B. Contingent upon the amount of funds available in the Public
24 School Classroom Support Revolving Fund, the State Board of

1 Education shall award one or more grants annually to classroom
2 teachers. The grants shall be used by the classroom teacher for
3 supplies, materials, or equipment for the class or classes taught by
4 the teacher. The Board shall determine the criteria for and
5 establish a process for the submission of grants applications. The
6 applications shall be considered on a statewide competitive basis.
7 The Board shall promulgate rules for the implementation of the
8 grants issued pursuant to this section.

9 SECTION 553. AMENDATORY 70 O.S. 2021, Section 3-104.11,
10 is amended to read as follows:

11 Section 3-104.11. There is hereby created in the State Treasury
12 a revolving fund for the State Department of Education to be
13 designated the "Imagination Library Revolving Fund". The fund shall
14 be a continuing fund, not subject to fiscal year limitations, and
15 shall consist of all monies received by the State Department of
16 Education from appropriations, gifts, grants, donations and
17 bequests. All monies accruing to the credit of the fund are hereby
18 appropriated and may be budgeted and expended by the State
19 Department of Education for the purpose of implementing the
20 provisions of Section 1 of this act. Expenditures from the fund
21 shall be made upon warrants issued by the State Treasurer against
22 claims filed as prescribed by law with the ~~Director~~ Chief Operating
23 Officer of the Office of Management and Enterprise Services for
24 approval and payment.

SECTION 554. AMENDATORY 70 O.S. 2021, Section 3-109, is amended to read as follows:

Section 3-109. There is hereby created in the State Treasury a revolving fund for the State Board of Education, to be designated the "Curriculum Materials Revolving Fund". The fund shall consist of curriculum guides fees paid to the Board pursuant to law. The revolving fund shall be a continuing fund not subject to fiscal year limitations and shall be under the control and management of the administrative authority of the State Board of Education. Expenditures from said fund shall be made for the purpose of maintaining the curriculum guides process and for any other purpose as designated by the Legislature. Warrants for expenditure shall be drawn by the State Treasurer on claims by an authorized employee of the State Board of Education and approved by the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services.

SECTION 555. AMENDATORY 70 O.S. 2021, Section 3-118, is amended to read as follows:

Section 3-118. The Secretary of Education shall:

1. Oversee the Office of Educational Quality and Accountability;

2. Employ necessary personnel according to procedures established for the employment of personnel by the Office of Management and Enterprise Services;

3. Monitor the efforts of the public school districts to comply with the provisions of this act and of Enrolled Senate Bill No. 183 of the 1st Session of the 42nd Oklahoma Legislature which relate to common education;

4. Identify districts not making satisfactory progress toward compliance with the provisions and recommend appropriate corrective actions to the State Board of Education concerning each district so identified;

5. Have executive responsibility for the Oklahoma Educational Indicators Program and the annual report required pursuant to Section 1210.531 of this title;

6. Review and make periodic public comment on the progress and effectiveness of the State Board and State Department of Education, the Office of the State Superintendent of Public Instruction, other bodies created by this act, and the public schools of this state concerning the implementation of the provisions of this act and of Enrolled Senate Bill No. 183 of the 1st Session of the 42nd Oklahoma Legislature which relate to common education;

7. Analyze the revenues for all systems of education and the expenditure of common education revenue, giving close attention to

expenditures for administrative expenses relating to the common schools;

8. Make reports to the public concerning these matters whenever appropriate; and

9. Submit recommendations regarding funding for education or statutory changes to the Speaker of the House of Representatives, the President Pro Tempore of the Senate and the Governor whenever appropriate.

SECTION 556. AMENDATORY Section 1, Chapter 323, O.S.L. 2023 (70 O.S. Supp. 2025, Section 3-132.1), is amended to read as follows:

Section 3-132.1. A. There is hereby created the Statewide Charter School Board. Beginning July 1, 2024, the Board shall have the sole authority to sponsor statewide virtual charter schools in this state and may sponsor charter schools in this state. The Board shall be composed of nine (9) voting members as follows:

1. Three members appointed by the Governor;

2. Two members appointed by the President Pro Tempore of the Senate;

3. Two members appointed by the Speaker of the House of Representatives;

4. The Superintendent of Public Instruction or his or her designee; and

5. The State Auditor and Inspector or his or her designee.

1 B. Initial appointments shall be made by October 31, 2023. The
2 President Pro Tempore of the Senate and the Speaker of the House of
3 Representatives shall each appoint one member for one (1) year and
4 one member for two (2) years. The Governor shall appoint one member
5 for one (1) year and two members for two (2) years. Members shall
6 serve until their successors are duly appointed for a term of three
7 (3) years. Appointments shall be made by and take effect on July 31
8 of the year in which the appointment is made. Annually by December
9 30 the Board shall elect from its membership a chair and vice chair.

10 C. A member may be removed from the Board by the appointing
11 authority for cause which shall include but not be limited to:

12 1. Being found guilty by a court of competent jurisdiction of a
13 felony or any offense involving moral turpitude;

14 2. Being found guilty of malfeasance, misfeasance, or
15 nonfeasance in relation to Board duties;

16 3. Being found mentally incompetent by a court of competent
17 jurisdiction; or

18 4. Failing to attend three successive meetings of the Board
19 without just cause, as determined by the Board.

20 D. Vacancies shall be filled by the appointing authority.

21 E. No member of the Senate or House of Representatives may be
22 appointed to the Board while serving as a member of the Legislature
23 or for two (2) full years following the expiration of the term of
24 office.

1 F. Members of the Statewide Charter School Board shall not
2 receive compensation but shall be reimbursed for necessary travel
3 expenses pursuant to the provisions of the State Travel
4 Reimbursement Act.

5 G. The Statewide Charter School Board shall meet at the call of
6 the chair. The first meeting of the Board shall be held no later
7 than sixty (60) days after the effective date of this act.

8 H. Five members of the Board shall constitute a quorum, and an
9 affirmative vote of at least five members shall be required for the
10 Board to take any final action.

11 I. Beginning July 1, 2024, statewide virtual charter schools
12 shall be sponsored only by the Statewide Charter School Board
13 created pursuant to this section. Effective July 1, 2024, the
14 Statewide Virtual Charter School Board shall be abolished and the
15 Statewide Charter School Board shall succeed to any contractual
16 rights and responsibilities and settlement agreements incurred by
17 the Statewide Virtual Charter School Board in a virtual charter
18 school sponsorship contract executed prior to July 1, 2024.

19 1. All powers, duties, responsibilities, policies, personnel,
20 property, equipment, supplies, records, assets, funds, current and
21 future liabilities, encumbrances, obligations, and indebtedness of
22 the Statewide Virtual Charter School Board or associated with a
23 virtual charter school sponsorship contract entered into by the
24 Statewide Virtual Charter School Board prior to July 1, 2024, shall

1 be transferred to the Statewide Charter School Board. No items
2 shall be expended or used for any purpose other than the performance
3 of duties and responsibilities as directed and required in this act.
4 Appropriate conveyances and other documents shall be executed to
5 effectuate the transfer of property associated with a sponsorship
6 contract. The Statewide Charter School Board may contract for
7 additional legal and administrative services as necessary to
8 effectuate the transfers provided in this subsection.

9 2. The ~~Director~~ Chief Operating Officer of the Office of
10 Management and Enterprise Services shall coordinate the transfer of
11 funds, allotments, purchase orders, and outstanding financial
12 obligations and encumbrances relating to the regulation of virtual
13 charter schools as transferred pursuant to the provisions of this
14 act.

15 3. Upon succession of sponsorship contracts, the Statewide
16 Charter School Board shall assume sponsorship of the virtual charter
17 schools for the remainder of the term of the contracts. Prior to
18 the end of the current term of the contract, the Statewide Charter
19 School Board shall allow a virtual charter school to apply for
20 renewal of the sponsorship contract in accordance with the renewal
21 procedures established pursuant to Section 3-137 of Title 70 of the
22 Oklahoma Statutes.

23 4. Effective July 1, 2024, all administrative rules promulgated
24 by the Statewide Virtual Charter School Board relating to the

1 implementation and enforcement of the Oklahoma Charter Schools Act
2 shall be enforceable by the Statewide Charter School Board. The
3 rules shall continue in force and effect and the Statewide Charter
4 School Board shall have authority to amend, repeal, recodify, or
5 make additions to the rules pursuant to the Administrative
6 Procedures Act.

7 J. Effective July 1, 2024, the Statewide Charter School Board
8 shall succeed to any contractual rights and responsibilities and
9 settlement agreements incurred by the State Board of Education in a
10 charter school sponsorship contract executed prior to July 1, 2024.
11 All property, equipment, supplies, records, assets, funds, current
12 and future liabilities, encumbrances, obligations, and indebtedness
13 associated with a charter school sponsorship contract entered into
14 by the State Board of Education prior to July 1, 2024, shall be
15 transferred to the Statewide Charter School Board. Appropriate
16 conveyances and other documents shall be executed to effectuate the
17 transfer of property associated with a sponsorship contract. Upon
18 succession of sponsorship contracts, the Statewide Charter School
19 Board shall assume sponsorship of the charter schools for the
20 remainder of the term of the contracts. Prior to the end of the
21 current term of the contract, the Statewide Charter School Board
22 shall allow a charter school to apply for renewal of the sponsorship
23 contract in accordance with the renewal procedures established
24 pursuant to Section 3-137 of Title 70 of the Oklahoma Statutes.

1 K. Beginning July 1, 2024, at the end of the current term of a
2 charter school sponsorship contract with a school district, an
3 accredited comprehensive or regional institution that is a member of
4 The Oklahoma State System of Higher Education, a community college,
5 or a federally recognized Indian tribe, a charter school may apply
6 for contract renewal with the Statewide Charter School Board for
7 sponsorship.

8 SECTION 557. AMENDATORY Section 3, Chapter 323, O.S.L.
9 2023 (70 O.S. Supp. 2025, Section 3-132.3), is amended to read as
10 follows:

11 Section 3-132.3. There is hereby created in the State Treasury
12 a revolving fund for the Statewide Charter School Board to be
13 designated the "Statewide Charter School Board Revolving Fund". The
14 fund shall be a continuing fund, not subject to fiscal year
15 limitations, and shall consist of all monies received by the
16 Statewide Charter School Board from state appropriations. All
17 monies accruing to the credit of the fund are hereby appropriated
18 and may be budgeted and expended by the Statewide Charter School
19 Board for the purposes set forth in Section 2 of this act.
20 Expenditures from the fund shall be made upon warrants issued by the
21 State Treasurer against claims filed as prescribed by law with the
22 ~~Director~~ Chief Operating Officer of the Office of Management and
23 Enterprise Services for approval and payment.
24

SECTION 558. AMENDATORY 70 O.S. 2021, Section 3-145.7, as amended by Section 15, Chapter 323, O.S.L. 2023 (70 O.S. Supp. 2025, Section 3-145.7), is amended to read as follows:

Section 3-145.7. A. Until July 1, 2024, there is hereby created in the State Treasury a revolving fund for the Statewide Virtual Charter School Board to be designated the "Statewide Virtual Charter School Board Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Statewide Virtual Charter School Board from State Aid pursuant to Section 3-145.3 of this title or any other state appropriation. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Statewide Virtual Charter School Board for the purpose of supporting the mission of the Statewide Virtual Charter School Board. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

B. On July 1, 2024, the Statewide Virtual Charter School Board shall transfer any unencumbered funds in the Statewide Virtual Charter School Board Revolving Fund to the Statewide Charter School Board Revolving Fund created pursuant to Section 3 of this act. Any

funds which are unexpended on January 1, 2025, shall be transferred to the Statewide Charter School Board Revolving Fund.

SECTION 559. AMENDATORY Section 2, Chapter 281, O.S.L. 2023, as amended by Section 2, Chapter 408, O.S.L. 2024 (70 O.S. Supp. 2025, Section 5-148.2), is amended to read as follows:

Section 5-148.2. A. There is hereby created in the State Treasury a revolving fund for the State Department of Education to be designated the "School Security Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the State Department of Education from:

1. Reimbursements, grants, or other monies received from other state agencies and entities for school security;

2. Reimbursements, grants, or other monies received from the United States government obligated to school security projects;

3. Gifts, donations, and bequests; and

4. Monies appropriated or apportioned by the Legislature.

B. All monies accruing to the credit of the School Security Revolving Fund are hereby appropriated and may be budgeted and expended by the State Department of Education for the purposes of:

1. Establishing and maintaining a School Resource Officer Program; and

2. Providing physical security enhancements for schools including, but not limited to, school resource officers, cameras,

1 gates, lighting, locks, doors, windows, security geofencing,
2 ballistic storm shelters, and mobile panic alert systems.

3 Monies in the School Security Revolving Fund shall supplement
4 and not supplant existing school security funding.

5 C. Expenditures from the School Security Revolving Fund shall
6 be made upon warrants issued by the State Treasurer against claims
7 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
8 of the Office of Management and Enterprise Services for approval and
9 payment. Expenditures from the School Security Revolving Fund shall
10 not exceed Fifty Million Dollars (\$50,000,000.00) in any fiscal year
11 and shall be divided equally among every public school district in
12 the state.

13 SECTION 560. AMENDATORY Section 7, Chapter 291, O.S.L.
14 2023 (70 O.S. Supp. 2025, Section 6-104.9), is amended to read as
15 follows:

16 Section 6-104.9. A. There is hereby created in the State
17 Treasury a revolving fund for the State Board of Education to be
18 designated the "Public School Paid Maternity Leave Revolving Fund".
19 The fund shall be a continuing fund, not subject to fiscal year
20 limitations, and shall consist of all monies received by the State
21 Board of Education from state appropriations. All monies accruing
22 to the credit of the fund are hereby appropriated and may be
23 budgeted and expended by the State Board of Education for the
24 purpose of reimbursing school districts for expenses related to

1 providing paid maternity leave as provided for in subsection B of
2 this section. Expenditures from the fund shall be made upon
3 warrants issued by the State Treasurer against claims filed as
4 prescribed by law with the ~~Director~~ Chief Operating Officer of the
5 Office of Management and Enterprise Services for approval and
6 payment.

7 B. School districts in this state shall file claims with the
8 State Board of Education for reimbursement of expenses related to
9 providing eligible employees with paid maternity leave as provided
10 for in Section 1 of this act.

11 SECTION 561. AMENDATORY Section 8, Chapter 291, O.S.L.
12 2023 (70 O.S. Supp. 2025, Section 6-104.10), is amended to read as
13 follows:

14 Section 6-104.10. A. There is hereby created in the State
15 Treasury a revolving fund for the Office of Management and
16 Enterprise Services to be designated the "Education Employee Paid
17 Maternity Leave Revolving Fund". The fund shall be a continuing
18 fund, not subject to fiscal year limitations, and shall consist of
19 all monies received by the Office of Management and Enterprise
20 Services from state appropriations. All monies accruing to the
21 credit of the fund are hereby appropriated and may be budgeted and
22 expended by the Office of Management and Enterprise Services for the
23 purpose of reimbursing agencies for expenses related to providing
24 paid maternity leave as provided for in subsection B of this

1 section. Expenditures from the fund shall be made upon warrants
2 issued by the State Treasurer against claims filed as prescribed by
3 law with the ~~Director~~ Chief Operating Officer of the Office of
4 Management and Enterprise Services for approval and payment.

5 B. The Oklahoma Department of Career and Technology Education,
6 State Department of Rehabilitation Services, the Department of
7 Corrections, and the Office of Juvenile Affairs shall file claims
8 with the ~~Director~~ Chief Operating Officer of the Office of
9 Management and Enterprise Services for reimbursement of expenses
10 related to providing eligible employees with paid maternity leave as
11 provided for in Section 1 of this act.

12 SECTION 562. AMENDATORY 70 O.S. 2021, Section 6-132, is
13 amended to read as follows:

14 Section 6-132. A. Twenty Dollars (\$20.00) of the fee
15 authorized by Section 1 of Enrolled Senate Bill No. 14 of the 1st
16 Session of the 56th Oklahoma Legislature, for Oklahoma License to
17 Educate license plates shall be deposited to the Oklahoma Teacher
18 Recruitment Revolving Fund created in subsection B of this section.

19 B. There is hereby created in the State Treasury a revolving
20 fund for the State Department of Education to be designated the
21 "Oklahoma Teacher Recruitment Revolving Fund". The fund shall be a
22 continuing fund, not subject to fiscal year limitations, and shall
23 consist of all monies received by the State Department of Education
24 pursuant to the provisions of subsection A of this section and any

1 donations, grants and gifts from any public or private source. All
2 monies accruing to the credit of the fund are hereby appropriated
3 and may be budgeted and expended by the State Department of
4 Education for the purpose of operating teacher recruitment programs.
5 Expenditures from the fund shall be made upon warrants issued by the
6 State Treasurer against claims filed as prescribed by law with the
7 ~~Director~~ Chief Operating Officer of the Office of Management and
8 Enterprise Services for approval and payment.

9 SECTION 563. AMENDATORY 70 O.S. 2021, Section 6-187C, is
10 amended to read as follows:

11 Section 6-187C. There is hereby created in the State Treasury a
12 revolving fund for the Office of Educational Quality and
13 Accountability to be designated the "Teaching Certification
14 Scholarship Revolving Fund". The fund shall be a continuing fund,
15 not subject to fiscal year limitations, and shall consist of all
16 monies received by the Office of Educational Quality and
17 Accountability from the Legislature and any donations, grants and
18 gifts from any public or private source. All monies accruing to the
19 credit of the fund are hereby appropriated and may be budgeted and
20 expended by the Office of Educational Quality and Accountability for
21 the purpose of implementing the Teaching Certification Scholarship
22 Program. Expenditures from the fund shall be made upon warrants
23 issued by the State Treasurer against claims filed as prescribed by
24

1 law with the ~~Director~~ Chief Operating Officer of the Office of
2 Management and Enterprise Services for approval and payment.

3 SECTION 564. AMENDATORY 70 O.S. 2021, Section 6-191, is
4 amended to read as follows:

5 Section 6-191. Until July 1, 1998, there is created in the
6 State Treasury a revolving fund for the State Board of Education, to
7 be designated the "Teachers' Curriculum Examination Revolving Fund".
8 The fund shall consist of curriculum examination fees paid to the
9 Board pursuant to statutory authority. The revolving fund shall be
10 a continuing fund not subject to fiscal year limitations and shall
11 be under the control and management of the administrative authority
12 of the State Board of Education. Expenditures from said fund shall
13 be made to maintain the curriculum examination process as set out in
14 this act. Warrants for expenditure shall be drawn by the State
15 Treasurer on claims signed by an authorized employee or employees of
16 the State Board of Education and approved by the ~~Director~~ Chief
17 Operating Officer of the Office of Management and Enterprise
18 Services.

19 On July 1, 1997, the State Board of Education shall transfer any
20 unencumbered funds in the Teachers' Curriculum Examination Revolving
21 Fund to the Teachers' Competency Examination Revolving Fund. Any
22 funds which are unexpended on January 1, 1998, shall be transferred
23 to the Teachers' Competency Examination Revolving Fund. On July 1,
24 1997, there shall be created in the State Treasury a revolving fund

1 for the Oklahoma Commission for Teacher Preparation, to be
2 designated the "Teachers' Competency Examination Revolving Fund".
3 The fund shall consist of all monies received by the Commission from
4 competency examination fees paid pursuant to statutory authority.
5 The revolving fund shall be a continuing fund not subject to fiscal
6 year limitations and shall be under the control and management of
7 the administrative authority of the Oklahoma Commission for Teacher
8 Preparation. Expenditures from said fund shall be made to maintain
9 the competency examination process set out in the Oklahoma Teacher
10 Preparation Act. Warrants for expenditure shall be drawn by the
11 State Treasurer on claims signed by an authorized employee or
12 employees of the Oklahoma Commission for Teacher Preparation and
13 approved by the ~~Director~~ Chief Operating Officer of the Office of
14 Management and Enterprise Services.

15 SECTION 565. AMENDATORY 70 O.S. 2021, Section 6-204.3,
16 is amended to read as follows:

17 Section 6-204.3. There is hereby created in the State Treasury
18 a revolving fund for the Oklahoma Commission for Teacher Preparation
19 to be designated the "Education Leadership Oklahoma Revolving Fund".
20 The fund shall be a continuing fund, not subject to fiscal year
21 limitations, and shall consist of all monies appropriated or
22 transferred to the fund by the Legislature. All monies accruing to
23 the credit of the fund are hereby appropriated and may be budgeted
24 and expended by the Oklahoma Commission for Teacher Preparation to

1 provide assistance and scholarships for candidates seeking National
2 Board certification. Expenditures from the fund shall be made upon
3 warrants issued by the State Treasurer against claims filed as
4 prescribed by law with the ~~Director~~ Chief Operating Officer of the
5 Office of Management and Enterprise Services for approval and
6 payment.

7 SECTION 566. AMENDATORY 70 O.S. 2021, Section 6-204.4,
8 is amended to read as follows:

9 Section 6-204.4. There is hereby created in the State Treasury
10 a revolving fund for the State Board of Education to be designated
11 the "Oklahoma National Board Certification Revolving Fund". The
12 fund shall be a continuing fund, not subject to fiscal year
13 limitations, and shall consist of all monies appropriated or
14 transferred to the fund by the Legislature. All monies accruing to
15 the credit of the fund are hereby appropriated and may be budgeted
16 and expended by the State Board of Education to provide an annual
17 bonus for those teachers possessing National Board certification.
18 Expenditures from the fund shall be made upon warrants issued by the
19 State Treasurer against claims filed as prescribed by law with the
20 ~~Director~~ Chief Operating Officer of the Office of Management and
21 Enterprise Services for approval and payment. The State Board of
22 Education shall transfer all funds deposited into the Oklahoma
23 National Board Certification Revolving Fund for the fiscal year
24 ending June 30, 1998, to the Education Leadership Oklahoma Revolving

Fund, created in Section 6-204.3 of this title, less expenditures and encumbrances as adjusted by transfer on July 1, 1998.

SECTION 567. AMENDATORY 70 O.S. 2021, Section 6-204.5, is amended to read as follows:

Section 6-204.5. There is hereby created in the State Treasury a revolving fund for the Oklahoma Commission for Teacher Preparation to be designated the "Professional Development Institutes Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies appropriated or transferred to the fund by the Legislature. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Oklahoma Commission for Teacher Preparation to develop and administer professional development programs for teachers and administrators and training for residency committee members. Expenditures shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 568. AMENDATORY 70 O.S. 2021, Section 6-206.1, is amended to read as follows:

Section 6-206.1. There is hereby created in the State Treasury a revolving fund for the State Board of Education to be designated the "Oklahoma School Psychologist, Speech-Language Pathologist, and Audiologist National Certification Revolving Fund". The fund shall

1 be a continuing fund, not subject to fiscal year limitations, and
2 shall consist of all monies appropriated or transferred to the fund
3 by the Legislature. All monies accruing to the credit of the fund
4 are hereby appropriated and may be budgeted and expended by the
5 State Board of Education to provide an annual bonus for individuals
6 meeting the requirements of Section 6-206 of this title.
7 Expenditures from the fund shall be made upon warrants issued by the
8 State Treasurer against claims filed as prescribed by law with the
9 ~~Director~~ Chief Operating Officer of the Office of Management and
10 Enterprise Services for approval and payment.

11 SECTION 569. AMENDATORY 70 O.S. 2021, Section 9-119, is
12 amended to read as follows:

13 Section 9-119. A. There is hereby created in the State
14 Treasury a revolving fund for the State Board of Education to be
15 designated the "Cameras for School Bus Stops Revolving Fund". The
16 fund shall be a continuing fund, not subject to fiscal year
17 limitations, and shall consist of all monies received by the State
18 Board of Education from fines collected from school bus stop
19 violations pursuant to Section 11-705 of Title 47 of the Oklahoma
20 Statutes, any state-appropriated funds, federal funds, donations,
21 grants, contributions, and gifts from any public or private source.
22 All monies accruing to the credit of the fund are hereby
23 appropriated and may be budgeted and expended by the State Board of
24 Education for the purposes of providing grants to public school

districts as provided for in subsection B of this section.

Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

B. Contingent upon the amount of funds available in the Cameras for School Bus Stops Revolving Fund, the State Board of Education shall award one or more grants annually to public school districts in the state. The grants shall be used by the districts for installation of camera equipment on buses to aid in identifying drivers violating the provisions of Section 11-705 of Title 47 of the Oklahoma Statutes. The Board shall determine the criteria for and establish a process for the submission of grant applications. The applications shall be considered on a statewide competitive basis. The Board shall promulgate rules for the implementation of the grants issued pursuant to this section.

SECTION 570. AMENDATORY 70 O.S. 2021, Section 11-103.6h-1, as amended by Section 3, Chapter 264, O.S.L. 2024 (70 O.S. Supp. 2025, Section 11-103.6h-1), is amended to read as follows:

Section 11-103.6h-1. There is hereby created in the State Treasury a revolving fund for the State Department of Education to be designated the "Personal Financial Literacy Education Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies directed to be

1 deposited in the fund pursuant to Section 3-211 of Title 14A of the
2 Oklahoma Statutes and any other monies received by the Department
3 for such purpose from any other public or private source. All
4 monies accruing to the credit of the fund are hereby appropriated
5 and may be budgeted and expended by the Department for the purposes
6 set forth in Section 11-103.6h of this title. Expenditures from the
7 fund shall be made upon warrants issued by the State Treasurer
8 against claims filed as prescribed by law with the ~~Director~~ Chief
9 Operating Officer of the Office of Management and Enterprise
10 Services for approval and payment.

11 SECTION 571. AMENDATORY 70 O.S. 2021, Section 11-103.14,
12 is amended to read as follows:

13 Section 11-103.14. There is hereby created in the State
14 Treasury a revolving fund for the State Department of Education to
15 be designated the "Health Education Revolving Fund". The fund shall
16 be a continuing fund, not subject to fiscal year limitations, and
17 shall consist of all monies received by the State Department of
18 Education from appropriations, gifts, donations and bequests. All
19 monies accruing to the credit of the fund are hereby appropriated
20 and may be budgeted and expended by the State Department of
21 Education for the purpose set forth in this act. Expenditures from
22 the fund shall be made upon warrants issued by the State Treasurer
23 against claims filed as prescribed by law with the ~~Director~~ Chief
24

1 Operating Officer of the Office of Management and Enterprise
2 Services for approval and payment.

3 SECTION 572. AMENDATORY 70 O.S. 2021, Section 13-114.1,
4 is amended to read as follows:

5 Section 13-114.1. There is hereby created in the State Treasury
6 a revolving fund for the State Board of Education to be designated
7 the "Oklahoma Special Education Assistance Fund". The fund shall be
8 a continuing fund not subject to fiscal year limitations, and shall
9 consist of all monies appropriated or transferred to the fund by the
10 Legislature. Except as otherwise provided in this section, all
11 monies accruing to the credit of said fund are hereby appropriated
12 and may be budgeted and expended by the State Board of Education for
13 the purpose of providing financial assistance to local school
14 districts pursuant to Sections 13-114.2 through 13-114.4 of this
15 title. For the 1992-93 school year, monies may be expended from
16 this fund for the local and state-supported financial support of
17 public schools. Expenditures from said fund shall be made on
18 warrants issued by the State Treasurer against claims filed as
19 prescribed by law with the ~~Director~~ Chief Operating Officer of the
20 Office of Management and Enterprise Services for approval and
21 payment.

22 SECTION 573. AMENDATORY 70 O.S. 2021, Section 13-124.1,
23 is amended to read as follows:
24

Section 13-124.1. There is hereby created in the State Treasury a revolving fund for the State Department of Education to be designated the "Oklahoma Early Intervention Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of those monies appropriated to the fund by law or deposited in the fund pursuant to direction or authorization by the joint funding plan required in Section 13-124 of this title. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the State Department of Education for the purpose of providing early intervention services to children with disabilities in accordance with Part C of the Individuals with Disabilities Education Act (IDEA) and the Oklahoma Early Intervention Act. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 574. AMENDATORY 70 O.S. 2021, Section 14-130, is amended to read as follows:

Section 14-130. A. On July 1, 2014, all powers, duties, functions, and responsibilities of the State Board of Education that relate to adult education shall be transferred to the State Board of Career and Technology Education. The transfer shall include all equipment, supplies, records, assets, current and future

liabilities, fund balances, encumbrances, obligations, and indebtedness associated with the State Board of Education that relate to adult education.

B. Any monies accruing to or in the name of the State Board of Education on and after the effective date of this act that relate to adult education, or any monies that accrue in any funds or accounts or are maintained for the benefit of the State Board of Education on and after the effective date of this act that relate to adult education shall be transferred to the State Board of Career and Technology Education.

C. The State Board of Career and Technology Education shall succeed to any contractual rights and responsibilities incurred by the State Board of Education.

D. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services is hereby directed to coordinate the transfer of funds, allotments, purchase orders, and outstanding financial obligations or encumbrances as provided for in this section.

SECTION 575. AMENDATORY 70 O.S. 2021, Section 14-133, is amended to read as follows:

Section 14-133. There is hereby created in the State Treasury a revolving fund for the State Board of Career and Technology Education to be designated the "Adult Education Revolving Fund". The fund shall consist of fees paid to the Board for the oversight

1 and management of the high school equivalency test as administered
2 by the Board pursuant to law. The revolving fund shall be a
3 continuing fund, not subject to fiscal year limitations, and shall
4 be under the control and management of the administrative authority
5 of the State Board of Career and Technology Education. Expenditures
6 from the fund shall be made to maintain the high school equivalency
7 testing process. Warrants for expenditure shall be drawn by the
8 State Treasurer on claims by an authorized employee of the State
9 Board of Career and Technology Education and approved by the
10 ~~Director~~ Chief Operating Officer of the Office of Management and
11 Enterprise Services.

12 SECTION 576. AMENDATORY Section 2, Chapter 390, O.S.L.
13 2025 (70 O.S. Supp. 2025, Section 14-141), is amended to read as
14 follows:

15 Section 14-141. There is hereby created in the State Treasury a
16 revolving fund for the State Board of Career and Technology
17 Education to be designated the "Oklahoma National Guard CareerTech
18 Assistance Revolving Fund". The fund shall be a continuing fund,
19 not subject to fiscal year limitations, and shall consist of all
20 monies received by the State Board of Career and Technology
21 Education from state appropriations provided for the purpose of
22 implementing the provisions of Section 1 of this act. All monies
23 accruing to the credit of the fund are hereby appropriated and may
24 be budgeted and expended by the State Board of Career and Technology

1 Education for the purpose of providing assistance to eligible Guard
2 members pursuant to the provisions of Section 1 of this act.
3 Expenditures from the fund shall be made upon warrants issued by the
4 State Treasurer against claims filed as prescribed by law with the
5 ~~Director~~ Chief Operating Officer of the Office of Management and
6 Enterprise Services for approval and payment.

7 SECTION 577. AMENDATORY Section 22, Chapter 344, O.S.L.
8 2025 (70 O.S. Supp. 2025, Section 14-143), is amended to read as
9 follows:

10 Section 14-143. There is hereby created in the State Treasury a
11 revolving fund for the State Board of Career and Technology
12 Education to be designated the "Oklahoma National Guard CareerTech
13 Assistance Revolving Fund". The fund shall be a continuing fund,
14 not subject to fiscal year limitations, and shall consist of all
15 monies received by the State Board of Career and Technology
16 Education from state appropriations provided for the purpose of
17 implementing the provisions of Sections 18 and 19 of this act. All
18 monies accruing to the credit of the fund are hereby appropriated
19 and may be budgeted and expended by the State Board of Career and
20 Technology Education for the purpose of providing assistance to
21 eligible Guard members pursuant to the provisions of Section 19 of
22 this act. Expenditures from the fund shall be made upon warrants
23 issued by the State Treasurer against claims filed as prescribed by
24

1 law with the ~~Director~~ Chief Operating Officer of the Office of
2 Management and Enterprise Services for approval and payment.

3 SECTION 578. AMENDATORY 70 O.S. 2021, Section 17-106, is
4 amended to read as follows:

5 Section 17-106. (1) The general administration and
6 responsibility for the proper operation of the retirement system and
7 for making effective the provisions of the act are hereby vested in
8 a Board of Trustees which shall be known as the Board of Trustees
9 and shall be organized immediately after a majority of the trustees
10 provided for in this section shall have qualified and taken the oath
11 of office.

12 (2) The Board shall consist of the following members and all
13 appointees shall serve their terms at the pleasure of the appointing
14 authority and may be removed or replaced without cause:

15 (a) The State Superintendent of Public Instruction, ex officio
16 or a designee.

17 (b) The ~~Director~~ Chief Operating Officer of the Office of
18 Management and Enterprise Services, ex officio or a designee.

19 (c) The Director of the Oklahoma Department of Career and
20 Technology Education, ex officio, or his or her designee.

21 (d) The State Treasurer, ex officio, or his or her designee.

22 (e) One member appointed by the Governor whose initial term of
23 office shall expire on January 14, 1991. The members thereafter
24 appointed by the Governor shall serve a term of office of four (4)

1 years which is coterminous with the term of office of the office of
2 the appointing authority.

3 (f) Two members shall be appointed by the Governor of the State
4 of Oklahoma and approved by the Senate. The two members shall be:

5 1. a representative of a school of higher education in
6 Oklahoma whose term of office shall initially be one
7 (1) year, and

8 2. a member of the System of the nonclassified optional
9 personnel status whose initial term of office shall be
10 two (2) years.

11 After the initial terms of office the terms of the members shall be
12 four (4) years.

13 (g) Upon the expiration of the term of office of the
14 stockbroker member of the Board, the Governor shall appoint a member
15 to the Board whose initial term of office shall expire on January
16 14, 1991. The members thereafter appointed by the Governor shall
17 serve a term of office of four (4) years which is coterminous with
18 the term of office of the office of the appointing authority.

19 (h) Upon the expiration of the term of office of the
20 representative of the insurance industry member of the Board, the
21 Governor shall appoint a member to the Board whose initial term of
22 office shall expire on January 14, 1991. The members thereafter
23 appointed by the Governor shall serve a term of office of four (4)
24

1 years which is coterminous with the term of office of the office of
2 the appointing authority.

3 (i) Upon the expiration of the term of office of the investment
4 counselor member of the Board, the Governor shall appoint a member
5 to the Board whose initial term of office shall expire on January
6 14, 1991. The members thereafter appointed by the Governor shall
7 serve a term of office of four (4) years which is coterminous with
8 the term of office of the office of the appointing authority.

9 (j) Upon the expiration of the term of office of the active
10 classroom teacher member of the Board, the President Pro Tempore of
11 the Senate shall appoint a member to the Board, who shall be an
12 active classroom teacher and whose initial term of office shall
13 expire on January 8, 1991. The members thereafter appointed by the
14 President Pro Tempore of the Senate shall serve a term of office of
15 four (4) years.

16 (k) Upon the expiration of the term of office of the retired
17 classroom teacher member of the Board, the Speaker of the House of
18 Representatives shall appoint a member to the Board, who shall be a
19 retired member of the System and whose initial term of office shall
20 expire on January 8, 1991. The members thereafter appointed by the
21 Speaker of the House of Representatives shall serve a term of office
22 of four (4) years.

23 (l) The Speaker of the House of Representatives shall appoint a
24 member to the Board, who shall be an active classroom teacher and

1 whose initial term of office shall expire on January 3, 1989. The
2 members thereafter appointed by the Speaker of the House of
3 Representatives shall serve a term of office of four (4) years.

4 (m) The President Pro Tempore of the Senate shall appoint a
5 member to the Board, who shall be a retired member of the System and
6 whose initial term of office shall expire on January 3, 1989. The
7 members thereafter appointed by the President Pro Tempore of the
8 Senate shall serve a term of office of four (4) years.

9 (n) A statewide organization representing retired educators
10 shall appoint a member to the Board who shall be a nonvoting member.

11 (3) Persons who are appointed to the Board of Trustees by the
12 Governor pursuant to paragraphs (e), (g), (h) and (i) of subsection
13 (2) of this section shall:

14 (a) have demonstrated professional experience in investment or
15 funds management, public funds management, public or private pension
16 fund management or retirement system management; or

17 (b) have demonstrated experience in the banking profession and
18 have demonstrated professional experience in investment or funds
19 management; or

20 (c) be licensed to practice law in this state and have
21 demonstrated professional experience in commercial matters; or

22 (d) be licensed by the Oklahoma Accountancy Board to practice
23 in this state as a public accountant or a certified public
24 accountant.

1 The appointing authorities, in making appointments that conform
2 to the requirements of this subsection, shall give due consideration
3 to balancing the appointments among the criteria specified in
4 paragraphs (a) through (d) of this subsection.

5 (4) No member of the Board of Trustees shall be a lobbyist
6 registered in this state as provided by law.

7 (5) If a vacancy occurs in the office of a trustee, the vacancy
8 shall be filled for the unexpired term in the same manner as the
9 office was previously filled.

10 (6) Each of the trustees, except those who are state officials
11 serving ex officio, shall receive travel expenses in accordance with
12 the State Travel Reimbursement Act.

13 (7) Each trustee shall, within ten (10) days after his or her
14 appointment or election, take an oath of office that, so far as it
15 devolves upon him or her, the trustee will diligently and honestly
16 administer the affairs of the Board of Trustees and that he or she
17 will not knowingly violate or willingly permit to be violated any of
18 the provisions of law applicable to the retirement system. Such
19 oath shall be subscribed to by the member making it, certified by
20 the officer before whom it is taken, and immediately filed in the
21 office of the Secretary of State.

22 (8) Each trustee shall be entitled to one vote on the Board of
23 Trustees. Eight votes shall be necessary for a decision by the
24 trustees at any meeting of the Board.

1 (9) Subject to the limitations of this act, the Board of
2 Trustees shall, from time to time, establish rules and regulations
3 for the administration of the funds created by this act and for the
4 transaction of its business. Provided that such rules and
5 regulations may include rules and regulations providing for the
6 withholding from the retirement allowance due a retired person under
7 the provisions of this act an amount requested in writing by the
8 retiree for the purpose of paying:

9 (a) monthly premiums on group hospital and surgical insurance
10 programs to which such retiree belongs, and for the transmitting of
11 the sums so withheld to the insurance carrier designated by the
12 retiree; and

13 (b) membership dues in any statewide association limited to
14 retired educator membership with a minimum membership of one
15 thousand (1,000) dues-paying members and for the transmitting of the
16 sums so withheld.

17 (10) The Board of Trustees shall elect from its membership a
18 chair, vice-chair and secretary by a majority vote of all of its
19 members. The Board shall employ an executive director and shall
20 engage such actuarial and other service as shall be required to
21 transact the business of the retirement system. The compensation of
22 all persons engaged by the Board and all other expenses of the Board
23 necessary for the operation of the retirement system shall be paid
24 at such rates and in such amounts as the Board shall approve.

1 (11) The members of the Board of Trustees, the Executive
2 Director and the employees of the System shall not accept gifts or
3 gratuities from an individual organization with a value in excess of
4 Fifty Dollars (\$50.00) per year. The provisions of this section
5 shall not be construed to prevent the members of the Board of
6 Trustees, the Executive Director or the employees of the System from
7 attending educational seminars, conferences, meetings or similar
8 functions which are paid for, directly or indirectly, by more than
9 one organization.

10 (12) The Board of Trustees shall keep in convenient form such
11 data as shall be necessary for actuarial valuation of the various
12 funds of the retirement system and for checking the experience of
13 the system.

14 (13) The Board of Trustees shall keep a record of all of its
15 proceedings which shall be open to public inspection. It shall
16 publish annually a report showing the fiscal transactions of the
17 retirement system for the preceding fiscal year, the amount of the
18 accumulated cash and securities of the system, and the last balance
19 sheet showing the financial condition of the system by means of an
20 actuarial valuation of the assets and liabilities of the retirement
21 system and a detailed accounting of its administrative expenses.

22 (14) The Board of Trustees shall retain an attorney who is
23 licensed to practice law in this state. The attorney shall serve at
24 the pleasure of the Board of Trustees for such compensation as may

1 be provided by the Board of Trustees. The attorney shall advise the
2 Board of Trustees and perform legal services for the Board of
3 Trustees with respect to any matters properly before the Board of
4 Trustees. When requested by the Board of Trustees, the Attorney
5 General of the state also shall render legal services to the Board
6 of Trustees. In addition to the above, the Board of Trustees may
7 employ hearing examiners to conduct administrative grievance
8 hearings under the provisions of the Administrative Procedures Act.

9 (15) Suitable offices shall be furnished by the Office of
10 Management and Enterprise Services. Upon the failure or inability
11 of the Office of Management and Enterprise Services to provide
12 adequate facilities, the Board of Trustees may contract for
13 necessary office space in suitable quarters.

14 (16) The Board of Trustees shall designate a Medical Board to
15 be composed of three physicians not eligible to participate in the
16 retirement system. The physicians so appointed by the Board of
17 Trustees shall be legally qualified to practice medicine in Oklahoma
18 or the state in which they reside and shall be physicians of good
19 standing in the medical profession. The Board of Trustees may have
20 more than one Medical Board and each Board shall have the same
21 duties and authority under the statutes. If required, other
22 physicians may be employed to report on special cases. The Medical
23 Board shall pass upon all medical examinations required under the
24 provisions of this act and shall investigate all essential

1 statements and certificates by or on behalf of a member in
2 connection with an application for disability retirement and shall
3 report in writing to the Board of Trustees its conclusion and
4 recommendation upon all the matters referred to it. The Board of
5 Trustees shall adopt such rules and regulations as may be necessary
6 to properly administer this benefit.

7 (17) The Board of Trustees shall retain an actuarial firm that
8 shall be technical advisors of the Board of Trustees on matters
9 regarding the operation of funds created by the provisions of this
10 act and shall perform such other duties as are required in
11 connection therewith.

12 (18) At least once each five (5) years the Board of Trustees
13 shall use an actuarial firm to make an actuarial investigation of
14 the experience of the retirement system, including the mortality,
15 service and compensation experience of members and beneficiaries.
16 Based on the results of such investigation the actuarial firm shall
17 recommend for adoption by the Board of Trustees such tables and
18 rates as are required for the operation of the retirement system and
19 for the preparation of annual actuarial valuations.

20 (19) On the basis of such tables and rates as the Board of
21 Trustees shall adopt, the actuarial firm shall prepare an annual
22 actuarial valuation of the assets and liabilities of the retirement
23 system and certify the rates of contribution payable by the state
24

1 under the provisions of law concerning the Teachers' Retirement
2 System.

3 SECTION 579. AMENDATORY 70 O.S. 2021, Section 17-121, is
4 amended to read as follows:

5 Section 17-121. A. Effective July 1, 1999, for each active
6 contributing member of the Teachers' Retirement System of Oklahoma,
7 who is making contributions of at least Twenty-five Dollars (\$25.00)
8 per month to a plan account maintained by the Teachers' Retirement
9 System of Oklahoma pursuant to Section 403(b) of Title 26 of the
10 United States Code, 26 U.S.C. Section 403(b), the Teachers'
11 Retirement System shall pay each month from funds appropriated to
12 the Oklahoma Teachers' Deferred Savings Incentive Plan Fund created
13 pursuant to this section the sum of Twenty-five Dollars (\$25.00) to
14 a plan established pursuant to the Internal Revenue Code, Section
15 401(a), for the benefit of the participant.

16 B. If monies in the Oklahoma Teachers' Deferred Savings
17 Incentive Plan Fund are insufficient to fully fund the contributions
18 in any month, payments shall be suspended until such time as
19 sufficient monies are available.

20 C. The Teachers' Retirement System shall be responsible for
21 establishing rules and plan documents for administration of the
22 contributions authorized by this section. Funds so credited shall
23 be held and invested in the same manner as funds managed in accounts
24

of members contributing to an account established pursuant to Section 403(b) of the Internal Revenue Code of 1986, as amended.

D. There is hereby created in the State Treasury a revolving fund to be designated the "Oklahoma Teachers' Deferred Savings Incentive Plan Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of any monies the Legislature may appropriate or transfer to the fund and any monies contributed for the fund from any other sources, public or private. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Teachers' Retirement System of Oklahoma for the matching of deferred compensation contributions pursuant to this section and in accordance with rules promulgated by the Teachers' Retirement System of Oklahoma. Expenditures from the fund shall be made by warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 580. AMENDATORY 70 O.S. 2021, Section 18-105, is amended to read as follows:

Section 18-105. The State Board of Education shall furnish the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services with a copy of the apportionments made from the funds appropriated for each fiscal year to each of the several school districts of the state, and warrants shall be drawn by the

1 State Treasurer against appropriations for each fiscal year in
2 accordance with such apportionments only upon the order of the State
3 Board of Education through the ~~Director~~ Chief Operating Officer of
4 the Office of Management and Enterprise Services. The warrants for
5 the payments to the several school districts of any county shall be
6 forwarded by the State Board of Education through the ~~Director~~ Chief
7 Operating Officer of the Office of Management and Enterprise
8 Services directly to the treasurer of each school district.

9 SECTION 581. AMENDATORY 70 O.S. 2021, Section 18-118.1,
10 is amended to read as follows:

11 Section 18-118.1. A. When a bond is forfeited due to illegal
12 activity of a school district officer or employee and an audit
13 performed by the Office of the State Auditor and Inspector reported
14 the illegal activity, the school district shall forward ten percent
15 (10%) of the amount of the forfeited bond to the State Board of
16 Education for deposit to the School Investigative Audit Revolving
17 Fund.

18 B. 1. Every person convicted of the crime of theft,
19 embezzlement, conversion, or misappropriation of school district
20 funds shall be assessed an amount equivalent to ten percent (10%) of
21 any court-ordered restitution costs.

22 2. The assessment shall be mandatory and in addition to and not
23 in lieu of any fines, restitution costs, other assessments, or
24 forfeitures authorized or required by law for the offense. The

assessment required by this subsection shall not be subject to any order of suspension. The court shall order either a lump-sum payment or establish a payment schedule.

3. Willful failure of the offender to comply with the payment schedule shall be considered contempt of court.

4. For purposes of collection, the assessment order shall not expire until paid in full, nor shall the assessment order be limited by the term of imprisonment prescribed by law for the offense, nor by any term of imprisonment imposed against the offender, whether suspended or actually served.

5. The assessment provided for in this subsection shall be collected by the court clerk as provided for collection of fines and costs. When assessment payments are collected by the court clerk pursuant to court order, the funds shall be forwarded to the State Board of Education for deposit into the School Investigative Audit Revolving Fund created by this section.

C. 1. There is hereby created in the State Treasury a revolving fund for the State Board of Education to be designated the "School Investigative Audit Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies paid to and received by the State Board of Education from school districts, officers, or employees for the performance of audits, for the forfeiture of bonds, or for assessments ordered in addition to court-ordered restitution costs,

1 and monies appropriated or transferred to the fund by the
2 Legislature.

3 2. All monies accruing to the credit of the fund are hereby
4 appropriated and may be budgeted and expended by the State Board of
5 Education to reimburse the Office of the State Auditor and Inspector
6 for costs incurred in the performance of special audits conducted
7 pursuant to the provisions of Section 213 of Title 74 of the
8 Oklahoma Statutes.

9 3. Prior to approval of any payment from this fund, the State
10 Board of Education shall determine that a school district that is
11 liable for expenses incurred due to the performance of an audit is
12 unable to pay such expenses. Payments from this fund shall only be
13 made to the extent that monies are available in the fund.
14 Expenditures from the fund shall be made upon warrants issued by the
15 State Treasurer against claims filed as prescribed by law with the
16 ~~Director~~ Chief Operating Officer of the Office of Management and
17 Enterprise Services for approval and payment.

18 SECTION 582. AMENDATORY 70 O.S. 2021, Section 18-162, is
19 amended to read as follows:

20 Section 18-162. No later than the first day of October of each
21 year, the State Board of Education shall submit with the itemized
22 budget request and estimates for the ensuing fiscal year, a Schools
23 Capital Improvements Budget. Such Schools Capital Improvements
24 Budget shall be submitted to the ~~Director~~ Chief Operating Officer of

1 the Office of Management and Enterprise Services, the Director of
2 the Legislative Service Bureau and the Oklahoma Development Finance
3 Authority.

4 SECTION 583. AMENDATORY 70 O.S. 2021, Section 18-400, is
5 amended to read as follows:

6 Section 18-400. There is hereby created in the State Treasury a
7 revolving fund for the State Board of Education to be designated the
8 "Education Reform Revolving Fund". The fund shall be a continuing
9 fund, not subject to fiscal year limitations, and shall consist of
10 all appropriations and transfers made by the Legislature. All
11 monies accruing to the credit of said fund are hereby appropriated
12 and may be budgeted and expended beginning with the fiscal year
13 ending June 30, 1993, by the State Board of Education for the
14 purposes of implementing reforms contained in Enrolled House Bill
15 No. 1017 of the First Extraordinary Session of the 42nd Oklahoma
16 Legislature. Expenditures from said fund shall be made upon
17 warrants issued by the State Treasurer against claims filed as
18 prescribed by law with the ~~Director~~ Chief Operating Officer of the
19 Office of Management and Enterprise Services for approval and
20 payment.

21 SECTION 584. AMENDATORY 70 O.S. 2021, Section 21-116, is
22 amended to read as follows:

23 Section 21-116. There is hereby created in the State Treasury a
24 revolving fund for the Oklahoma Board of Private Vocational Schools

1 to be designated the "Oklahoma Board of Private Vocational Schools
2 Revolving Fund". The fund shall be a continuing fund, not subject
3 to fiscal year limitations, and shall consist of all monies received
4 by the Oklahoma Board of Private Vocational Schools from all fees
5 and penalties collected by the Board pursuant to this act or rules
6 promulgated and any other funds obtained or received by the Board.
7 All monies in the fund shall be used exclusively for the purpose of
8 operations and functions of the Oklahoma Board of Private Vocational
9 Schools. All monies accruing to the credit of the fund are hereby
10 appropriated and may be budgeted and expended by the Oklahoma Board
11 of Private Vocational Schools. Expenditures from the fund shall be
12 made upon warrants issued by the State Treasurer against claims
13 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
14 of the Office of Management and Enterprise Services for approval and
15 payment.

16 SECTION 585. AMENDATORY 70 O.S. 2021, Section 23-126, is
17 amended to read as follows:

18 Section 23-126. Purchases made by the Oklahoma Educational
19 Television Authority from sources other than state-appropriated
20 funds for the acquisition of television programs shall be excluded
21 from the provisions of Section 85.7 of Title 74 of the Oklahoma
22 Statutes. The said Authority is hereby authorized to make such
23 purchases against special authorization orders submitted to,
24 approved and encumbered by, the ~~Director~~ Chief Operating Officer of

1 the Office of Management and Enterprise Services. Contracts for the
2 purchase of television programs entered into by the Oklahoma
3 Educational Television Authority and charged against a special
4 authorization order as herein provided shall be maintained as a
5 permanent record of the Authority for a period of not less than
6 three (3) years after liquidation of the contract.

7 SECTION 586. AMENDATORY 70 O.S. 2021, Section 625.4a, as
8 amended by Section 10, Chapter 407, O.S.L. 2022 (70 O.S. Supp. 2025,
9 Section 625.4a), is amended to read as follows:

10 Section 625.4a. There is hereby created in the State Treasury a
11 revolving fund for the Health Care Workforce Training Commission to
12 be designated the "Health Care Workforce Training Commission
13 Revolving Fund". The fund shall be a continuing fund, not subject
14 to fiscal year limitations and shall consist of all payments
15 received by the Commission pursuant to Sections 625.3 and 625.10a of
16 this title. All monies accruing to the credit of the fund are
17 hereby appropriated and may be budgeted and expended by the Health
18 Care Workforce Training Commission for any expenses incurred in the
19 implementation of its duties. Expenditures from the fund shall be
20 made upon warrants issued by the State Treasurer against claims
21 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
22 of the Office of Management and Enterprise Services for approval and
23 payment.

1 SECTION 587. AMENDATORY 70 O.S. 2021, Section 697.7, as
2 amended by Section 21, Chapter 407, O.S.L. 2022 (70 O.S. Supp. 2025,
3 Section 697.7), is amended to read as follows:

4 Section 697.7. The Health Care Workforce Training Commission is
5 hereby authorized to enter into contractual arrangements with
6 residency training programs at the University of Oklahoma College of
7 Medicine, University of Oklahoma-Tulsa Medical College, or the
8 Oklahoma College of Osteopathic Medicine and Surgery, in order to
9 enhance available funding for the training of primary care residents
10 and to pay the cost of the salary stipend and expenses of the
11 resident physician for the period of time spent in the residency
12 programs. Monies received by the Commission from the participating
13 residency training program under the provisions of this section
14 shall be deposited to, and disbursed from, the "Residency Revolving
15 Fund" hereby created in the State Treasury. The fund shall be a
16 continuing fund not subject to legislative appropriation or fiscal
17 year limitations. Expenditures from the fund shall be made on
18 warrants issued by the State Treasurer against claims filed by the
19 Commission with the ~~Director~~ Chief Operating Officer of the Office
20 of Management and Enterprise Services for approval and payment.

21 SECTION 588. AMENDATORY 70 O.S. 2021, Section 697.8, as
22 amended by Section 22, Chapter 407, O.S.L. 2022 (70 O.S. Supp. 2025,
23 Section 697.8), is amended to read as follows:
24

1 Section 697.8. A community may enter into a contract with a
2 resident physician in training whereby the resident agrees to
3 establish a practice in the community upon the completion of the
4 individual's residency. The Health Care Workforce Training
5 Commission shall have the authority to receive funds direct from
6 that community for the purpose of paying the resident involved to
7 the extent of the contractual arrangements. Monies received by the
8 Commission under the provisions of this section shall be deposited
9 to, and disbursed from, the "Community Residency Revolving Fund"
10 hereby created in the State Treasury. The fund shall be a
11 continuing fund not subject to legislative appropriation or fiscal
12 year limitations. Expenditures from said fund shall be made on
13 warrants issued by the State Treasurer against claims filed by the
14 Commission with the ~~Director~~ Chief Operating Officer of the Office
15 of Management and Enterprise Services for approval and payment.

16 SECTION 589. AMENDATORY 70 O.S. 2021, Section 697.10, as
17 amended by Section 24, Chapter 407, O.S.L. 2022 (70 O.S. Supp. 2025,
18 Section 697.10), is amended to read as follows:

19 Section 697.10. A. The Health Care Workforce Training
20 Commission is authorized to enter into contractual arrangements with
21 individual hospitals and clinical programs for the reimbursement of
22 intern or resident salary cost not to exceed the limits established
23 by Section 697.2 of this title. Provided, that residency and
24 internship positions created prior to the spring semester 1975 shall

1 be eligible for participation in the cost-sharing program for
2 internship and residency training as established by Sections 697.1
3 through 697.8 of this title, only if partial funding of said
4 positions will allow the creation of additional positions in whole
5 or in part at the participating hospital or clinical situation. The
6 participating hospital or clinical situation shall document in a
7 manner specified by the Commission the extent to which funding of a
8 previously created and established position contributes directly to
9 the creation of additional positions at the participating hospital
10 or clinical situation.

11 B. The Commission is authorized, in cooperation with the
12 Oklahoma Health Care Authority, to enter into contractual
13 arrangements with the University of Oklahoma College of Medicine and
14 the Oklahoma State University College of Osteopathic Medicine for
15 the reimbursement of intern and resident professional liability
16 insurance cost which shall not be subject to the limits established
17 in Section 697.2 of this title. Any and all intern and resident
18 positions are eligible for reimbursement of intern and resident
19 professional liability insurance cost.

20 C. There is hereby created in the State Treasury a revolving
21 fund for the Health Care Workforce Training Commission to be
22 designated the "Intern and Residents Professional Liability
23 Insurance Fund". The fund shall be a continuing fund, not subject
24 to fiscal year limitations, and shall consist of all monies received

1 by the Health Care Workforce Training Commission for reimbursement
2 of intern and residency professional liability insurance costs. All
3 monies accruing to the credit of the fund are hereby appropriated
4 and may be budgeted and expended by the Health Care Workforce
5 Training Commission for such costs. Expenditures from the fund
6 shall be made upon warrants issued by the State Treasurer against
7 claims filed as prescribed by law with the ~~Director~~ Chief Operating
8 Officer of the Office of Management and Enterprise Services for
9 approval and payment.

10 SECTION 590. AMENDATORY 70 O.S. 2021, Section 697.11, as
11 amended by Section 25, Chapter 407, O.S.L. 2022 (70 O.S. Supp. 2025,
12 Section 697.11), is amended to read as follows:

13 Section 697.11. A. In addition to internship and residency
14 programs previously established and funded, it is the intent of the
15 Legislature that the Health Care Workforce Training Commission, in
16 cooperation with the Oklahoma Health Care Authority, establish a
17 Critical Need Internship and Residency Program. The purpose of the
18 Program is to fund internship and residency programs across the
19 state in areas of critical need. The determination of areas of
20 critical need shall be made through a cooperative effort between the
21 University of Oklahoma College of Medicine and the Oklahoma State
22 University College of Osteopathic Medicine. The findings shall be
23 reported to the Commission by July 1, 2006, and every three (3)
24 years thereafter.

1 B. The University of Oklahoma College of Medicine and the
2 Oklahoma State University College of Osteopathic Medicine shall
3 annually provide to the Commission a report outlining the areas of
4 physician shortages in each specialty area. The report shall be the
5 basis for the cooperative funding of critical need physician
6 specialties for the current fiscal year.

7 C. There is hereby created in the State Treasury a revolving
8 fund for the Health Care Workforce Training Commission to be
9 designated the "Critical Need Internship and Residency Fund". The
10 fund shall be a continuing fund, not subject to fiscal year
11 limitations, and shall consist of all monies received by the Health
12 Care Workforce Training Commission for funding internship and
13 residency programs in areas of critical need. All monies accruing
14 to the credit of the fund are hereby appropriated and may be
15 budgeted and expended by the Health Care Workforce Training
16 Commission for such costs. Expenditures from the fund shall be made
17 upon warrants issued by the State Treasurer against claims filed as
18 prescribed by law with the ~~Director~~ Chief Operating Officer of the
19 Office of Management and Enterprise Services for approval and
20 payment.

21 SECTION 591. AMENDATORY 70 O.S. 2021, Section 697.17, as
22 amended by Section 29, Chapter 407, O.S.L. 2022 (70 O.S. Supp. 2025,
23 Section 697.17), is amended to read as follows:
24

1 Section 697.17. A. There is hereby established the Nursing
2 Student Assistance Program which shall be administered by the Health
3 Care Workforce Training Commission. The purpose of the program
4 shall be to encourage persons to enter nursing education programs
5 and to practice in areas of this state in which there is an urgent
6 need for nursing services or in institutions or agencies of this
7 state which provide funds on a matching basis with the Health Care
8 Workforce Training Commission for the support of nursing students.
9 The Nursing Student Assistance Program shall be administered by
10 rules adopted by the Health Care Workforce Training Commission.

11 B. Only students who are residents of this state shall be
12 eligible to participate in the Nursing Student Assistance Program.

13 C. If a person receiving Nursing Student Assistance Program
14 funds fails to fully comply with the provisions of the contract for
15 the funds, the person shall refund to the Health Care Workforce
16 Training Commission all monies received by the person pursuant to
17 the provisions of the contract plus a one-time liquidated damages
18 assessment of five percent (5%) of the total amount dispersed to the
19 person in lieu of interest. The Commission shall prorate the amount
20 to be repaid in the event the obligation was partially fulfilled.

21 D. There is hereby created in the State Treasury a revolving
22 fund for the Health Care Workforce Training Commission to be
23 designated the "Nursing Student Assistance Fund". The fund shall be
24 a continuing fund, not subject to fiscal year limitations, and shall

1 consist of all nonappropriated monies, including community match
2 money of appropriated funds, grants, gifts, and repayment of
3 scholarships received by the Health Care Workforce Training
4 Commission. All monies accruing to the credit of the fund are
5 hereby appropriated and may be budgeted and expended by the Health
6 Care Workforce Training Commission for such scholarships as may be
7 provided for pursuant to the Nursing Student Assistance Program.
8 Expenditures from the fund shall be made upon warrants issued by the
9 State Treasurer against claims filed as prescribed by law with the
10 ~~Director~~ Chief Operating Officer of the Office of Management and
11 Enterprise Services for approval and payment.

12 SECTION 592. AMENDATORY 70 O.S. 2021, Section 697.18, as
13 amended by Section 30, Chapter 407, O.S.L. 2022 (70 O.S. Supp. 2025,
14 Section 697.18), is amended to read as follows:

15 Section 697.18. A community may enter into a contract with a
16 physician who is a graduate from an accredited medical school
17 whereby such physician agrees to establish a practice in that
18 community. The Health Care Workforce Training Commission shall have
19 the authority to receive funds direct from that community for the
20 purpose of paying the physician involved to the extent of the
21 contractual arrangement. Monies received by the Commission under
22 the provisions of this section shall be deposited to and disbursed
23 from, the "Community Match Revolving Fund" hereby created in the
24 State Treasury. The fund shall be a continuing fund not subject to

1 legislative appropriation of fiscal year limitations. Expenditures
2 from said fund shall be made on warrants issued by the State
3 Treasurer against claims filed by the Commission with the ~~Director~~
4 Chief Operating Officer of the Office of Management and Enterprise
5 Services for approval and payment.

6 SECTION 593. AMENDATORY 70 O.S. 2021, Section 697.19, as
7 amended by Section 31, Chapter 407, O.S.L. 2022 (70 O.S. Supp. 2025,
8 Section 697.19), is amended to read as follows:

9 Section 697.19. A. There is hereby established the Omnibus
10 Budget Reconciliation Act Program (OBRA) which shall be administered
11 by the Health Care Workforce Training Commission. The purpose of
12 the program shall be to encourage persons to enter nursing education
13 programs and to practice in nursing homes of this state in which
14 there is an urgent need for nursing services which provide funds on
15 a matching basis with the Health Care Workforce Training Commission
16 for the support of nursing students. The OBRA Program shall be
17 administered by rules under the Oklahoma Nursing Student Assistance
18 Program adopted by the Health Care Workforce Training Commission.

19 B. Only students who are residents of this state shall be
20 eligible to participate in the OBRA Program.

21 C. If a person receiving OBRA Program funds fails to fully
22 comply with the provisions of the contract for said funds, the
23 person shall refund to the Health Care Workforce Training Commission
24 all monies received by the person pursuant to the provisions of the

1 contract plus interest at the rate of twelve percent (12%) from the
2 date of disbursement of said funds and shall be liable for any other
3 liquidated damages as specified in the contract.

4 D. There is hereby created in the State Treasury a revolving
5 fund for the Health Care Workforce Training Commission to be
6 designated the "OBRA Fund". The fund shall be a continuing fund,
7 not subject to fiscal year limitations, and shall consist of all
8 nonappropriated monies, including local nursing home association
9 match money of appropriated funds, grants, gifts, and repayment of
10 scholarships received by the Health Care Workforce Training
11 Commission. All monies accruing to the credit of said fund are
12 hereby appropriated and may be budgeted and expended by the Health
13 Care Workforce Training Commission for such scholarships as may be
14 provided for pursuant to the OBRA Program. Expenditures from said
15 fund shall be made upon warrants issued by the State Treasurer
16 against claims filed as prescribed by law with the ~~Director~~ Chief
17 Operating Officer of the Office of Management and Enterprise
18 Services for approval and payment.

19 SECTION 594. AMENDATORY 70 O.S. 2021, Section 697.21, as
20 amended by Section 33, Chapter 407, O.S.L. 2022 (70 O.S. Supp. 2025,
21 Section 697.21), is amended to read as follows:

22 Section 697.21. A. There is hereby established the Physician
23 Assistant Scholarship Program. The purpose of the program is to
24 encourage persons to enter physician assistant education programs

1 and to practice in rural and medically underserved areas of this
2 state. The Physician Assistant Scholarship Program shall be
3 administered by the Health Care Workforce Training Commission
4 pursuant to rules promulgated by the Commission and shall be funded
5 based on an annual estimate of need as determined by the Commission.
6 Awards made pursuant to this Program shall be subject to the
7 availability of funds. The number of and amount of each award shall
8 be determined by the Commission based on the availability of funds.

9 B. Only students who have been admitted as a student in an
10 accredited physician assistant program shall be eligible to
11 participate in the Physician Assistant Scholarship Program.

12 C. If a person receiving Physician Assistant Scholarship
13 Program monies fails to fully comply with the provisions of the
14 contract for the monies, the person shall refund to the Health Care
15 Workforce Training Commission all monies received by the person
16 pursuant to the provisions of the contract plus interest at a rate
17 that equals the prime interest rate plus one percent (1%) from the
18 date of disbursement of the funds and shall be liable for any other
19 liquidated damages as specified in the contract.

20 D. There is hereby created in the State Treasury a revolving
21 fund for the Health Care Workforce Training Commission to be
22 designated the "Physician Assistant Scholarship Fund". The fund
23 shall be a continuing fund, not subject to fiscal year limitations,
24 and shall consist of all monies received by the Health Care

1 Workforce Training Commission for implementation of the Physician
2 Assistant Scholarship Program. All monies accruing to the credit of
3 the fund are hereby appropriated and may be budgeted and expended by
4 the Health Care Workforce Training Commission for such scholarships
5 as may be provided for pursuant to the Physician Assistant
6 Scholarship Program. Expenditures from the fund shall be made upon
7 warrants issued by the State Treasurer against claims filed as
8 prescribed by law with the ~~Director~~ Chief Operating Officer of the
9 Office of Management and Enterprise Services for approval and
10 payment.

11 SECTION 595. AMENDATORY Section 2, Chapter 407, O.S.L.
12 2022 (70 O.S. Supp. 2025, Section 697.21b), is amended to read as
13 follows:

14 Section 697.21b. A. There is hereby created in the State
15 Treasury until July 1, 2027, a revolving fund for the Health Care
16 Workforce Training Commission to be designated the "Health Care
17 Workforce Development Revolving Fund". The fund shall be a
18 continuing fund, not subject to fiscal year limitations, and shall
19 consist of all available monies:

20 1. Received by the state as Coronavirus State and Local Fiscal
21 Recovery Funds pursuant to Section 9901 of the American Rescue Plan
22 Act of 2021, Pub. L. No. 117-2;
23
24

2. Directed to the state by the federal government for the purpose of recruiting, educating, and stabilizing Oklahoma's health care workforce;

3. Derived as interest and income from deposits and investments of fund assets; and

4. Designated for deposit by law.

B. 1. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Health Care Workforce Training Commission for authorized purposes as provided in paragraph 2 of this subsection. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

2. All monies accruing to the credit of said fund shall be utilized for the purpose of recruiting, educating, and stabilizing Oklahoma's health care workforce, including the costs and expenses of operating such programs.

3. All monies accruing to the credit of the fund shall be budgeted or encumbered no later than December 31, 2024, and shall be expended no later than December 31, 2026.

4. All monies accruing to the credit of the fund shall be budgeted, expended, and transferred in strict accordance with

applicable state and federal law and guidance providing for and limiting the utilization of such funds.

SECTION 596. AMENDATORY Section 2, Chapter 493, O.S.L. 2025 (70 O.S. Supp. 2025, Section 698.5), is amended to read as follows:

Section 698.5. There is hereby created in the State Treasury a revolving fund for the State Board of Education to be designated the "Grow Your Own Educator Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the State Board of Education from legislative appropriations provided for the purpose of implementing the Grow Your Own Educator Program created in Section 1 of this act. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Board for the purpose provided for in this section. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 597. AMENDATORY 70 O.S. 2021, Section 1210.402, is amended to read as follows:

Section 1210.402. There is hereby created in the State Treasury a revolving fund for the Oklahoma School of Science and Mathematics, to be designated the "Oklahoma School of Science and Mathematics

Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Board of Trustees of the Oklahoma School of Science and Mathematics, from all sources. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Board of Trustees of the Oklahoma School of Science and Mathematics for the purpose of developing the Oklahoma School of Science and Mathematics. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 598. AMENDATORY Section 1, Chapter 411, O.S.L. 2024, as amended by Section 4, Chapter 297, O.S.L. 2025 (70 O.S. Supp. 2025, Section 1210.508I), is amended to read as follows:

Section 1210.508I. A. There is hereby created in the State Treasury a revolving fund for the Oklahoma State Regents for Higher Education to be designated the "Statewide Literacy Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the State Regents from state appropriations provided for the purpose of implementing the provisions of subsection B of this section. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the State Regents for the

purpose provided for in this subsection. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

B. Subject to the availability of funding, the Oklahoma State Regents for Higher Education shall utilize the Statewide Literacy Revolving Fund created in subsection A of this section to:

1. Implement training in the science of reading in early childhood education, elementary education, and special education teacher preparation programs accredited by the Commission for Educational Quality and Accountability. For the purposes of this section, training in the science of reading includes providing explicit and systematic instruction in phonological awareness, decoding, fluency, vocabulary, and comprehension and implementing reading strategies that research has shown to be successful in improving reading among students with reading difficulties. Beginning with students entering an early childhood education, elementary education, or special education teacher preparation program accredited by the Commission for Educational Quality and Accountability in the 2025-2026 academic year, completion of training required by this paragraph shall lead to a micro-credential in the science of reading which shall be reflected on teaching certificates awarded to such individuals; and

2. Support teacher preparation programs accredited by the Commission for Educational Quality and Accountability in developing and implementing a micro-credential in the science of reading for certified teachers employed by school districts and charter schools in this state. A micro-credential awarded pursuant to this paragraph shall be reflected on a teacher's certificate to teach.

SECTION 599. AMENDATORY Section 7, Chapter 492, O.S.L. 2025 (70 O.S. Supp. 2025, Section 1210.906), is amended to read as follows:

Section 1210.906. A. There is hereby created in the State Treasury a revolving fund for the Oklahoma State Regents for Higher Education to be designated the "Statewide Mathematics Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the State Regents from state appropriations provided for the purpose of implementing the provisions of subsection B of this section. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the State Regents for the purpose provided for in this subsection. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

1 B. Subject to the availability of funding, the Oklahoma State
2 Regents for Higher Education shall utilize the Statewide Mathematics
3 Revolving Fund created in subsection A of this section to:

4 1. Implement training for a scientifically research-based math
5 program in teacher education programs accredited by the Commission
6 for Educational Quality and Accountability. For the purposes of
7 this section, training in a scientifically research-based math
8 program includes providing explicit and systematic instruction in
9 real-world problem-solving skills, procedural fluency, conceptual
10 understanding, and productive dispositions, and implementing
11 instructional strategies that research has shown to be successful in
12 improving mathematics achievement among students with learning
13 difficulties in math. Beginning with students entering a teacher
14 education program accredited by the Commission for Educational
15 Quality and Accountability in the 2026-2027 academic year,
16 completion of training required by this paragraph shall lead to a
17 micro-credential in mathematics, which shall be reflected on
18 teaching certificates awarded to such individuals; and

19 2. Support teacher education programs accredited by the
20 Commission for Educational Quality and Accountability in developing
21 and implementing a micro-credential in mathematics for certified
22 teachers employed by school districts and charter schools in this
23 state. A micro-credential awarded pursuant to this paragraph shall
24 be reflected on a teacher's certificate to teach.

SECTION 600. AMENDATORY 70 O.S. 2021, Section 3210, is amended to read as follows:

Section 3210. (a) All appropriations made by the Legislature for state educational institutions of the State System shall be made to the State Regents in consolidated form, indicating the amount appropriated from the General Revenue Fund and each special fund, without reference to the amount appropriated to any particular institution. On April 1 of each year, or as soon thereafter as possible, but not later than June 15 of each year, the State Regents shall certify to the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services such portions of the consolidated appropriation as they shall have allocated to each institution from the General Revenue Fund and each special fund for the next fiscal year and the amount of the allocation for each institution which is to be reserved for the purpose authorized by subsection B of Section 34.53 of Title 62 of the Oklahoma Statutes. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services shall allocate the revenue deposited in the State Treasury to the credit of the General Revenue Fund to a cash account for each institution or special appropriation, and to any unallocated portion of such consolidated appropriations, on a percentage basis in the same manner as provided by law for allocations of cash to Legislative appropriations for other departments and institutions.

(b) The State Regents may make additional allocations from the consolidated appropriation to any institution during the year but they shall not decrease the amount allocated to any institution during the year. Where an additional allocation is made to an institution, the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services shall make such adjustment by decreasing the consolidated appropriation balance and increasing the appropriation of the institution or institutions to which the additional allocation is made. At the same time he shall make an adjustment between the cash accounts by reducing the consolidated cash account and increasing the institution's cash account, giving the institution or institutions credit in cash for that portion of revenue which has already been allocated to that portion of the consolidated appropriation transferred, thereby transferring the percentage of cash which belongs to the additional allocation made from the consolidated appropriation. Thereafter, the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services shall increase the revenue allocations to each of the educational institutions which have received additional allocations so that such allocations shall take into consideration the original allocation plus the additional allocation from the consolidated appropriation. The State Regents may make additional allocations each month of the fiscal year but such allocations for all institutions shall be certified to the ~~Director~~ Chief Operating

1 Officer of the Office of Management and Enterprise Services at the
2 same time and shall not take effect until the first day of the month
3 following the month in which such additional allocations are
4 certified to the ~~Director~~ Chief Operating Officer of the Office of
5 Management and Enterprise Services. The cash allocated to all of
6 the institutions shall never exceed the amount of revenue which
7 would have been allocated to the consolidated appropriation had such
8 consolidated appropriation never been divided. The division of cash
9 among the several institutions shall be considered a division of the
10 revenue which would have been allocated to the consolidated account.

11 (c) Both the cash allocations and the appropriation allotments
12 shall be considered cumulative in that the balance unexpended or
13 unencumbered at the end of any month of the fiscal year shall add to
14 the amount allocated during the subsequent months so that the fiscal
15 year shall be considered as a unit.

16 (d) The appropriations allocated by the State Regents to each
17 institution for the year on June 15 shall be set up in the same
18 manner as other departments and institutions for contractual
19 purposes except as otherwise provided in this section.

20 (e) Financial documents arising from the appropriation
21 allocations to each institution shall be filed with the ~~Director~~
22 Chief Operating Officer of the Office of Management and Enterprise
23 Services in the same manner and at the same time as is now provided
24 by law.

1 (f) Nothing contained in this section shall be construed to
2 change existing laws relating to the apportionment of cash to
3 Section 13 or New College Funds for each of the institutions which
4 under present laws receive monies from such sources. Provided, that
5 nothing herein shall be construed to give the State Regents
6 authority to take money from the revolving fund of one institution
7 and give it to another institution. Revolving funds of all of the
8 constituent institutions shall operate as a continuing appropriation
9 under the law creating each such revolving fund which allocates the
10 revenue collected by each such institution to the revolving fund of
11 that institution. None of such institutions shall incur obligations
12 against such revolving fund in excess of the unencumbered balance of
13 surplus cash on hand. Such revolving funds shall be nonfiscal year
14 appropriations, and shall be disbursed by warrants issued by the
15 State Treasurer.

16 (g) No expenditure from any of the revolving funds of the
17 various institutions shall be made for any purpose, except that for
18 which said portion of said fund was specifically collected;
19 provided, that when any portion of any of such revolving funds shall
20 not be needed for the purpose for which the same was collected, the
21 State Regents may, upon the request of the Board of Regents of any
22 institution, authorize such Board of Regents to expend such unneeded
23 balance of such revolving fund for any other purpose which, in the
24

1 opinion of the State Regents, shall be necessary or desirable in the
2 conduct of such institution.

3 (h) The ~~Director~~ Chief Operating Officer of the Office of
4 Management and Enterprise Services shall make monthly reports to the
5 institutions and agencies comprising the State System indicating, by
6 classification of funds, the amounts allotted by the State Regents,
7 the cumulative expenditures at the end of each month, the unexpended
8 balances, the encumbrances outstanding, and the unencumbered
9 balances at the end of the month.

10 (i) The State Regents shall direct the disposition of such
11 funds as the Legislature shall appropriate, which funds shall be
12 allocated to the state educational institutions entitled thereto
13 under the provisions of, and in accordance with, the Enabling Act
14 and the Constitution of the State of Oklahoma, for the support of
15 such state educational institutions.

16 SECTION 601. AMENDATORY Section 2, Chapter 24, O.S.L.
17 2022 (70 O.S. Supp. 2025, Section 3232), is amended to read as
18 follows:

19 Section 3232. There is hereby created in the State Treasury a
20 revolving fund for the Oklahoma State Regents for Higher Education
21 to be designated the "Oklahoma National Guard Educational Assistance
22 Revolving Fund". The fund shall be a continuing fund, not subject
23 to fiscal year limitations, and shall consist of all monies received
24 by the Oklahoma State Regents for Higher Education from state

1 appropriations. All monies accruing to the credit of the fund are
2 hereby appropriated and may be budgeted and expended by the Oklahoma
3 State Regents for Higher Education for the purpose of providing
4 assistance to eligible Guard members pursuant to the provisions of
5 Section 1 of this act. Expenditures from the fund shall be made
6 upon warrants issued by the State Treasurer against claims filed as
7 prescribed by law with the ~~Director~~ Chief Operating Officer of the
8 Office of Management and Enterprise Services for approval and
9 payment.

10 SECTION 602. AMENDATORY 70 O.S. 2021, Section 3311.3, is
11 amended to read as follows:

12 Section 3311.3. There is hereby created a petty cash fund not
13 to exceed One Thousand Dollars (\$1,000.00) for the Council on Law
14 Enforcement Education and Training to be used as a cash drawer
15 change fund and for the purchase of or reimbursement for
16 expenditures of less than One Hundred Dollars (\$100.00) pursuant to
17 the rules and procedures established by the ~~Director~~ Chief Operating
18 Officer of the Office of Management and Enterprise Services.

19 SECTION 603. AMENDATORY 70 O.S. 2021, Section 3311.6, is
20 amended to read as follows:

21 Section 3311.6. There is hereby created in the State Treasury a
22 revolving fund for the Council on Law Enforcement Education and
23 Training to be designated the "C.L.E.E.T. Training Center Revolving
24 Fund". The fund shall be a continuing fund, not subject to fiscal

1 year limitations, and shall consist of all monies deposited to the
2 credit of the fund pursuant to subsection D of Section 1313.2 of
3 Title 20 of the Oklahoma Statutes. All monies accruing to the
4 credit of the fund are hereby appropriated and may be budgeted and
5 expended by the Council on Law Enforcement Education and Training
6 for the purpose of acquiring and constructing a statewide law
7 enforcement training center and for operation and maintenance of
8 such center. Expenditures from the fund shall be made upon warrants
9 issued by the State Treasurer against claims filed as prescribed by
10 law with the ~~Director~~ Chief Operating Officer of the Office of
11 Management and Enterprise Services for approval and payment.

12 SECTION 604. AMENDATORY 70 O.S. 2021, Section 3311.7, is
13 amended to read as follows:

14 Section 3311.7. A. There is hereby created in the State
15 Treasury a fund for the Council on Law Enforcement Education and
16 Training to be designated the "Peace Officer Revolving Fund".

17 B. The fund shall be a continuing fund, not subject to fiscal
18 year limitations, and shall consist of any monies received from
19 public, private, state or federal sources, grants or award monies,
20 to include any state matching funds required by the federal
21 government which are not designated for deposit in the C.L.E.E.T.
22 Fund created pursuant to Section 1313.2 of Title 20 of the Oklahoma
23 Statutes.

1 C. All monies accruing to the credit of said fund are hereby
2 appropriated and may be budgeted and expended by the Council on Law
3 Enforcement Education and Training for the purpose of fulfilling any
4 grant or award provisions, providing special training programs and
5 attendant equipment and supplies, and providing facility
6 construction and furnishings and/or rental of facilities for special
7 training programs.

8 D. Expenditures from said fund shall be made upon warrants
9 issued by the State Treasurer against claims filed as prescribed by
10 law with the ~~Director~~ Chief Operating Officer of the Office of
11 Management and Enterprise Services for approval and payment.

12 SECTION 605. AMENDATORY 70 O.S. 2021, Section 3311.8, is
13 amended to read as follows:

14 Section 3311.8. There is hereby created in the State Treasury a
15 revolving fund for the Council on Law Enforcement Education and
16 Training to be designated the "CLEET Cafeteria Revolving Fund". The
17 fund shall be a continuing fund, not subject to fiscal year
18 limitations, and shall consist of all monies received by the Council
19 on Law Enforcement Education and Training from cafeteria food sales.
20 All monies accruing to the credit of said fund are hereby
21 appropriated and may be budgeted and expended by the Council on Law
22 Enforcement Education and Training for the purpose of operating a
23 cafeteria. Expenditures from said fund shall be made upon warrants
24 issued by the State Treasurer against claims filed as prescribed by

1 law with the ~~Director~~ Chief Operating Officer of the Office of
2 Management and Enterprise Services for approval and payment.

3 SECTION 606. AMENDATORY 70 O.S. 2021, Section 3311.13,
4 is amended to read as follows:

5 Section 3311.13. There is hereby created in the State Treasury
6 a revolving fund for the Council on Law Enforcement Education and
7 Training to be designated the "CLEET Private Security Revolving
8 Fund". The fund shall be a continuing fund, not subject to fiscal
9 year limitations, and shall consist of all monies received by the
10 Council on Law Enforcement Education and Training from the issuance
11 of licenses to security guards, security guard agencies, private
12 investigators and private investigative agencies. All monies
13 accruing to the credit of said fund are hereby appropriated and may
14 be budgeted and expended by the Council on Law Enforcement Education
15 and Training for the purpose of fulfilling all statutory obligations
16 pursuant to the provisions of the Oklahoma Security Guard and
17 Private Investigator Act and providing training and education
18 programs for security guards, security guard agencies, private
19 investigators and private investigative agencies. Expenditures from
20 said fund shall be made upon warrants issued by the State Treasurer
21 against claims filed as prescribed by law with the ~~Director~~ Chief
22 Operating Officer of the Office of Management and Enterprise
23 Services for approval and payment.

SECTION 607. AMENDATORY 70 O.S. 2021, Section 3426, is amended to read as follows:

Section 3426. There is hereby created in the State Treasury a revolving fund for the Oklahoma State Regents for Higher Education to be designated the "George Nigh Rehabilitation Institute Revolving Fund". The fund shall be a continuing fund not subject to fiscal year limitations and shall consist of all monies received by the Oklahoma State Regents for Higher Education from any gifts, contributions, bequests, individual reimbursements and other sources of revenue, for the care or support of persons who have been admitted and cared for at the Institute and any other monies directed by law to be placed in the fund. Monies accruing to the fund may be expended by the Oklahoma State Regents for Higher Education for operation, maintenance and capital improvement of the facility. Expenditures from the fund shall be made on warrants issued by the State Treasurer against claims filed with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 608. AMENDATORY 70 O.S. 2021, Section 3509, is amended to read as follows:

Section 3509. The Board of Regents of Oklahoma Colleges created by Article XIII-B of the Constitution of Oklahoma shall be a body corporate, and shall adopt and use an official seal. It shall annually elect a president who shall also be known as chairman, a

1 vice president who shall also be known as vice-chairman, and a
2 secretary, each of whom shall serve for a term of one (1) fiscal
3 year and until his successor is elected and qualified, and who shall
4 perform such duties as the Board directs. The Board shall adopt
5 rules and regulations as it deems necessary for the governing of the
6 Board and the discharge of its duties, and shall cause to be kept
7 the minutes of all meetings and transactions considered at each
8 meeting, in a suitable book to be obtained and kept for such
9 purpose. The Board shall not hold an executive meeting unless the
10 same is ordered by a unanimous vote of the Board. The office of the
11 Board shall be located in quarters provided by the Oklahoma Capitol
12 Improvement Authority for which the Board shall pay an appropriate
13 rental charge. Until such time as space can be provided by the
14 Oklahoma Capitol Improvement Authority the Office of Management and
15 Enterprise Services shall provide quarters for said Board without
16 rental charge.

17 SECTION 609. AMENDATORY 70 O.S. 2021, Section 3903, is
18 amended to read as follows:

19 Section 3903. (a) The Oklahoma State System of Higher
20 Education shall operate an allotment system similar to the procedure
21 set out in the Oklahoma State Finance Act, Section 34 et seq. of
22 Title 62 of the Oklahoma Statutes, for other agencies of the state
23 except that the State Regents shall be substituted for the ~~Director~~
24 Chief Operating Officer of the Office of Management and Enterprise

Services in connection with approving allotment requests of the constituent institutions and agencies comprising the State System. The account classification for the State System shall conform as nearly as possible with the classification of accounts recommended by the publications of the National Association of College and University Business Officers. The State Regents shall allocate to each institution and agency in the State System, from the consolidated or lump-sum appropriation made by the Legislature, an amount sufficient to meet the needs and functions of the institution or agency for the entire year. Upon such allocation, monies appropriated for educational and general purposes shall be transferred to the Educational and General Operations Revolving Fund of the institution or agency and monies appropriated for capital improvement purposes shall be transferred to the Capital Improvement Revolving Fund of the institution or agency. The amount allocated to an institution or agency for each fiscal year shall be made in a lump sum without regard to uniform budget or accounting classifications, but shall not be available for expenditure until subsequently allotted by the State Regents.

(b) The State Regents, with the approval of the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services, may allot money to any such institution or agency to establish and operate a petty cash fund at the institution or agency; said fund shall only be reimbursed upon the filing of claims

1 showing the purposes for which the money was expended. No single
2 expenditure from any petty cash fund so established and operated
3 shall exceed Five Hundred Dollars (\$500.00). Splitting of invoices
4 for the purpose of avoiding this limitation is prohibited. Except
5 for payments to sports officials, research participants, refunds to
6 students, competition judges, and temporary farm crews employed at
7 Oklahoma Agricultural Experiment Stations, expenditures from such
8 fund for personal services, travel reimbursement, or professional
9 services are prohibited. Further, the exemption for payments to
10 sports officials and refunds to students is limited to only those
11 institutions which have previously been authorized to participate in
12 both the "Alternate Claims Processing", by the ~~Director~~ Chief
13 Operating Officer of the Office of Management and Enterprise
14 Services, and "Remote Warrant Printing", by the State Treasurer.
15 The Oklahoma State Regents for Higher Education shall publish
16 uniform guidelines applicable to all institutions of higher
17 education for expenditures from petty cash funds, which shall be
18 strictly adhered to.

19 (c) Governing boards of control are integral parts of
20 institutions under their respective jurisdiction; therefore, the
21 expenses of boards in carrying out their respective duties shall be
22 paid from the operating budgets of the institutions and other budget
23 agencies under their jurisdiction. In cases where a board is the
24 governing board for two or more institutions and/or other budget

1 agencies, the board shall prorate its operating expenses among the
2 institutions and/or other budget agencies so governed. Prior to the
3 beginning of the fiscal year, each board shall prepare a budget,
4 setting out in detail its necessary expenses for the entire fiscal
5 year and shall, not later than July 1, file a copy of its budget
6 with the President Pro Tempore of the Senate, the Speaker of the
7 House of Representatives, the ~~Director~~ Chief Operating Officer of
8 the Office of Management and Enterprise Services and the Legislative
9 Service Bureau. Said budget shall include all full-time-equivalent
10 positions in each activity or division and an itemization of all
11 sources of income used for operations and programs. Each board
12 shall revise its budget, if necessary, and provide said revisions to
13 the President Pro Tempore of the Senate, the Speaker of the House of
14 Representatives, the ~~Director~~ Chief Operating Officer of the Office
15 of Management and Enterprise Services, and the Legislative Service
16 Bureau not later than January 1 of each year. In cases where a
17 board has jurisdiction over two or more institutions or budget
18 agencies, it shall, not later than July 1, notify the President of
19 each institution as to the amount of its pro rata share of the
20 board's expense budget that will be assessed against the institution
21 and/or other budget agency during the fiscal year.

22 (d) Prior to the beginning of the fiscal year, the coordinating
23 board of the Oklahoma State Regents for Higher Education shall
24 prepare a budget setting out in detail its necessary expenses for

1 the entire fiscal year, and, not later than July 1, shall file a
2 copy of its budget with the ~~Director~~ Chief Operating Officer of the
3 Office of Management and Enterprise Services and the Legislative
4 Service Bureau. The State Regents shall allocate the money required
5 to fund its budget prior to making distribution of appropriated
6 monies to the various institutions of The Oklahoma State System of
7 Higher Education.

8 (e) The Division of Central Accounting and Reporting shall make
9 cash allocations of revenue in accordance with Section 23 of Article
10 X of the Oklahoma Constitution, to each institution and agency,
11 considering the total allocation made by the State Regents from the
12 lump-sum legislative appropriation as the total appropriation for
13 the institution or agency, in lieu of legislative appropriations.
14 All income available to an institution or agency for educational and
15 general purposes, as defined in the uniform budget and accounting
16 classifications recommended by the publications of the National
17 Association of College and University Business Officers, and
18 including income defined by law as revolving fund income, shall
19 operate as a continuing nonfiscal appropriation which may be
20 expended for any educational and general purpose for which
21 appropriated funds may be expended, if allocated and allotted in
22 accordance with the Oklahoma State Finance Act, as provided in this
23 section; provided that no obligation shall be incurred in excess of
24 the unencumbered balance of cash on hand.

(f) At least thirty (30) days prior to the beginning of each fiscal year, each of the constituent institutions and agencies shall file with the State Regents its request for appropriation allotments for each of the purposes for which expenditures are to be made. Such requests shall be in conformity with the uniform budget or accounting classifications recommended by the publications of the National Association of College and University Business Officers. Each request for appropriation allotments shall show the amount required to finance each item of the request for the entire year and for each quarter or each six-month period within the fiscal year, as required by the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services. The State Regents, or their designated official or employee who has been authorized to approve itemized allotment requests, shall consider the allotment requests for the purpose of making a determination that: (1) the current financial requirements of the institution or agency concerned justify the allotment to be made; (2) the accounting classification is sufficient to reflect the purpose for which expenditures are to be made and that such classification is in accordance with the budget classifications adopted by the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services and the State Regents, which shall conform as nearly as possible to the account classification recommended by the publications of the National Association of College and University Business Officers;

1 and (3) the realization of estimated revenues determined by the
2 ~~Director~~ Chief Operating Officer of the Office of Management and
3 Enterprise Services is sufficient to allow the commitments to be
4 made. In allotting appropriations and other funds, and approving
5 subsequent allotments, which may be required by each institution and
6 agency the State Regents shall follow the same general procedure as
7 other agencies of the state not under the control of the State
8 Regents, except as otherwise provided in this section. All forms
9 and account classifications shall be mutually agreed upon by the
10 ~~Director~~ Chief Operating Officer of the Office of Management and
11 Enterprise Services and the State Regents. The State Regents shall
12 file approved requests of constituent institutions and agencies with
13 the Division of Central Accounting and Reporting. The State Regents
14 and the ~~Director~~ Chief Operating Officer of the Office of Management
15 and Enterprise Services shall approve any request from the
16 administrative head of a constituent institution or agency for
17 amendment of the approved schedule of positions and salaries or
18 transfers between items, so long as the currently approved allotment
19 for such purposes is not exceeded and each such amendment shall be
20 filed with the ~~Director~~ Chief Operating Officer of the Office of
21 Management and Enterprise Services, in such detail as he may
22 require, prior to the date on which the first payroll or other
23 disbursement affected by such amendments is submitted for payment.
24 In the event that the realization of estimated revenues at any time

1 during the fiscal year indicates that the total revenue from that
2 fiscal year to any state fund will be insufficient at the end of the
3 fiscal year to meet the total appropriations from that fund, the
4 ~~Director~~ Chief Operating Officer of the Office of Management and
5 Enterprise Services shall notify the State Regents as to the amount
6 of reduction necessary against the consolidated, or lump-sum
7 appropriation, made to the State Regents.

8 (g) The State Regents in making itemized allotments during the
9 fiscal year, may reserve an amount sufficient to meet a reasonable
10 failure of revenue until receipt of notice from the ~~Director~~ Chief
11 Operating Officer of the Office of Management and Enterprise
12 Services that the realization of estimated revenues indicates that
13 the total appropriations may be allotted for expenditure. Upon
14 receipt of notice from the ~~Director~~ Chief Operating Officer of the
15 Office of Management and Enterprise Services of a necessary
16 reduction in the consolidated, or lump-sum appropriation, to meet a
17 failure in revenue, the State Regents shall immediately take action
18 to control the approval of subsequent allotment requests sufficient
19 to make the aggregate reduction in allotments of all constituent
20 institutions under their control equal the amount of reduction
21 ordered against the lump-sum appropriation made by the Legislature.
22 Such reductions against the lump-sum appropriation shall not exceed
23 the percentage reduction ordered against other agencies of the
24

1 state, in accordance with Section 23 of Article X of the Oklahoma
2 Constitution.

3 SECTION 610. AMENDATORY 70 O.S. 2021, Section 3905, is
4 amended to read as follows:

5 Section 3905. Institutions, agencies, and boards in The
6 Oklahoma State System of Higher Education may withhold from the
7 compensation payable for the employee's services, with the consent
8 of the employee, amounts necessary for participation in the Oklahoma
9 Teachers' Retirement System, hospital and medical benefits,
10 accident, health and life insurance, annuities, United States
11 Savings Bonds and other programs authorized by such institutions,
12 agencies, and boards; and it shall be the duty of the ~~Director~~ Chief
13 Operating Officer of the Office of Management and Enterprise
14 Services and the State Treasurer to process amounts so withheld in
15 accordance with existing laws.

16 SECTION 611. AMENDATORY 70 O.S. 2021, Section 3953.1, as
17 amended by Section 4, Chapter 330, O.S.L. 2024 (70 O.S. Supp. 2025,
18 Section 3953.1), is amended to read as follows:

19 Section 3953.1. A. There is hereby created a trust fund to be
20 known as the "Oklahoma Higher Learning Access Trust Fund". The
21 Oklahoma State Regents for Higher Education shall be the trustees of
22 the Trust Fund.
23
24

1 B. The State Regents shall utilize the Trust Fund to implement
2 the provisions of Sections 2601 through 2605 of this title and
3 Sections 1 through 3 of this act.

4 C. The Trust Fund principal shall consist of monies the
5 Legislature appropriates or transfers to the Oklahoma State Regents
6 for Higher Education for the Trust Fund and any monies or assets
7 contributed to the Trust Fund from any other source, public or
8 private. All monies accruing to the credit of the fund are hereby
9 appropriated and may be budgeted and expended by the State Regents.
10 Expenditures from the fund shall be made upon warrants issued by the
11 State Treasurer against claims filed as prescribed by law with the
12 ~~Director~~ Chief Operating Officer of the Office of Management and
13 Enterprise Services for approval and payment.

14 D. Notwithstanding other provisions of law, income and
15 investment return on Trust Fund principal shall accrue to the Trust
16 Fund for use as provided by authorization of the trustees for the
17 purposes provided in Sections 2601 through 2605 of this title and
18 Sections 1 through 3 of this act. The State Regents may also
19 utilize the Trust Fund principal for the purposes provided in
20 Sections 2601 through 2605 of this title and Sections 1 through 3 of
21 this act. Except as otherwise provided by law, no such income or
22 investment return or principal shall be used for administrative
23 expenses; expenses incurred by the State Regents in the
24 administration of the Trust Fund and of the Oklahoma Higher Learning

Access Program established by the Oklahoma Higher Learning Access Act and the Oklahoma Access and Achievement Program established by the Oklahoma Access and Achievement Act shall be paid from monies appropriated to the State Regents coordinating board for their general operating budget.

E. The State Regents shall adopt rules for accomplishing transfer of funds from the Oklahoma Higher Learning Access Trust Fund to the appropriate institutional Educational and General Operations Revolving Funds, as provided in Section 3901 of this title, to private institutions, and to the appropriate technology center school district to cover general enrollment fees or tuition for eligible students pursuant to the Oklahoma Higher Learning Access Act and the Oklahoma Access and Achievement Act. Allocations from the Trust Fund may be made only for the purpose of covering the general enrollment fees or tuition of eligible students. No portion of the Trust Fund may be used or allocated for administrative or operating expenses of any higher education institution or technology center school.

SECTION 612. AMENDATORY Section 2, Chapter 122, O.S.L. 2023 (70 O.S. Supp. 2025, Section 4103.1), is amended to read as follows:

Section 4103.1. There is hereby created in the State Treasury a revolving fund for the Oklahoma State Regents for Higher Education to be designated the "Tuition Recovery Revolving Fund". The fund

1 shall be a continuing fund, not subject to fiscal year limitations,
2 and shall consist of all monies received by the State Regents from
3 fees collected pursuant to Section 4103 of Title 70 of the Oklahoma
4 Statutes. All monies accruing to the credit of the fund are hereby
5 appropriated and may be budgeted and expended by the State Regents
6 for the purpose of offsetting student tuition losses in the event
7 that an institution authorized pursuant to Section 4103 of Title 70
8 of the Oklahoma Statutes closes or ceases operations. Expenditures
9 from the fund shall be made upon warrants issued by the State
10 Treasurer against claims filed as prescribed by law with the
11 ~~Director~~ Chief Operating Officer of the Office of Management and
12 Enterprise Services for approval and payment.

13 SECTION 613. AMENDATORY 70 O.S. 2021, Section 4713, is
14 amended to read as follows:

15 Section 4713. There is hereby created in the State Treasury a
16 revolving fund for the Office of the State Regents for Higher
17 Education to be designated the "Funds for Excellence Fund". The
18 fund shall be a continuing fund, not subject to fiscal year
19 limitations and shall consist of all monies received by the Office
20 of the State Regents for Higher Education from all funds
21 appropriated for that purpose by the Legislature and allocated
22 thereto by the State Regents and all private contributions, grants,
23 and donations of monies made for the purposes of Sections 4712
24 through 4715 of this title. All monies accruing to the credit of

1 said fund are hereby appropriated and may be budgeted and expended
2 by the Office of the State Regents for Higher Education for the
3 purposes specified in Sections 4712 through 4715 of this title and
4 for administering the provisions of Sections 4712 through 4715 of
5 this title; however, such monies expended for such administrative
6 costs shall not exceed five percent (5%) of the total amount of
7 monies in said fund. Expenditures from said fund shall be made upon
8 warrants issued by the State Treasurer against claims filed as
9 prescribed by law with the ~~Director~~ Chief Operating Officer of the
10 Office of Management and Enterprise Services for approval and
11 payment.

12 SECTION 614. AMENDATORY Section 8, Chapter 75, O.S.L.
13 2025 (70 O.S. Supp. 2025, Section 9108), is amended to read as
14 follows:

15 Section 9108. A. There is hereby created in the State Treasury
16 a revolving fund for the Oklahoma NCAA Division II Athletic
17 Conference Exploration Commission to be designated the "Oklahoma
18 NCAA Division II Athletic Conference Exploration Commission
19 Revolving Fund". The fund shall be a continuing fund, not subject
20 to fiscal year limitations, and shall consist of all monies received
21 by the Oklahoma NCAA Division II Athletic Conference Exploration
22 Commission from appropriations, gifts, grants, donations, and
23 bequests. All monies accruing to the credit of the fund are hereby
24 appropriated and may be budgeted and expended by the Oklahoma NCAA

1 Division II Athletic Conference Exploration Commission for the
2 purpose of implementing the provisions of this act. Expenditures
3 from the fund shall be made upon warrants issued by the State
4 Treasurer against claims filed as prescribed by law with the
5 ~~Director~~ Chief Operating Officer of the Office of Management and
6 Enterprise Services for approval and payment.

7 B. The Commission may make expenditures from the Oklahoma NCAA
8 Division II Athletic Conference Exploration Commission Revolving
9 Fund to cover expenses related to studies, meetings, consultations,
10 and other necessary activities. Funding that is not expended by the
11 Commission may be used as necessary to perform the necessary
12 activities to create the Conference. These funds can be used for
13 both the initial operating costs of the Conference as well as funds
14 required by conference institutions to pay fees to exit their
15 current conference affiliation. Additional funding may be sought
16 from private or nonprofit sources, if necessary.

17 C. The Commission shall explore various funding sources,
18 including partnerships with private organizations, sponsorships, and
19 grants to help defray costs associated with the creation of the new
20 conference.

21 SECTION 615. AMENDATORY 71 O.S. 2021, Section 1-612, as
22 amended by Section 41, Chapter 77, O.S.L. 2022 (71 O.S. Supp. 2025,
23 Section 1-612), is amended to read as follows:
24

Section 1-612. A. Unless otherwise provided for by law, the following shall be the fees charged pursuant to the provisions of this act:

1. Broker-dealer registration fee or
renewal fee.....\$300.00
2. Broker-dealer or issuer agent or
broker-dealer principal
registration fee or renewal fee.....\$50.00
3. Broker-dealer agent on an inactive
basis, renewal fee.....\$10.00
4. Investment adviser registration fee
or renewal fee.....\$300.00
5. Investment adviser annual notice
filing fee.....\$300.00
6. Investment adviser representative
registration fee or renewal fee.....\$50.00
7. Mass transfer fee.....\$10.00 per
transferee
8. Mailing list fee.....\$30.00 per year
9. Review of sales literature package.....\$50.00
10. Broker-dealer or investment adviser
financial or operating reports.....\$50.00
11. Issuer sales reports.....\$50.00

12. Notice of exemption filing or
request for order of exemption.....\$250.00
13. Interpretive opinion or no-action
request.....\$250.00
14. Affidavit request.....\$10.00
15. Service of process upon the
Administrator.....\$10.00
16. Amendments to registration
statements or notice filings
pursuant to Section 1-302 of this
title involving changes to the
issuer's application or notice
filing form:
 - a. examination fee.....\$50.00, and
 - b. a filing fee computed in the same
manner as the filing fee required
pursuant to of subsection B of
this section for any additional
securities being registered.
17. Copying fee.
 - a. 8 1/2" by 14" or smaller.....\$.25 per page
 - b. Larger than 8 1/2" by 14".....\$1.00 per page
 - c. Certified copy 8 1/2" by 14"
or smaller.....\$1.00 per page

d. Certified copy larger than 8

1/2" by 14".....\$2.00 per page

18. Document search fee for commercial

purpose.....\$20.00 per hour

19. Notice filing fee for a federal

covered security under Section

18(b)(4)(D)(ii) and (b)(4)(F) of

the Securities Act of 1933 (15

U.S.C. Section 77r(b)(4)(D)(ii)

and (b)(4)(F).....\$250.00

20. Late fee for late notice filing for

a federal covered security under

Section 18(b)(4)(F) of the

Securities Act of 1933 (15 U.S.C.

Section 77r(b)(4)(F).....\$250.00

B. For the purpose of registering securities under this act,
any person filing a registration statement shall pay an examination
fee of Two Hundred Dollars (\$200.00) and a filing fee computed upon
the aggregate offering price of the securities sought to be
registered in Oklahoma as follows:

a fee equal to one-tenth of one percent (1/10 of 1%)

of said price; provided, in no event shall the filing

fee be less than Two Hundred Dollars (\$200.00) or more

than Two Thousand Five Hundred Dollars (\$2,500.00).

1 C. Any person making a notice filing pursuant to subsection A
2 of Section 1-302 of this title, or renewing such a filing, shall pay
3 a filing fee of Five Hundred Dollars (\$500.00) with each such notice
4 or renewal filed.

5 D. A person required to pay a filing or notice fee under this
6 section may transmit the fee through or to a person designated by
7 rule adopted or order issued under this act. All fees and other
8 charges collected by the Administrator shall be deposited in the
9 General Revenue Fund with the State Treasurer, except for the fees
10 deposited in the Oklahoma Department of Securities Revolving Fund
11 and the amounts deposited in the Oklahoma Department of Securities
12 Investor Education Revolving Fund.

13 E. There is hereby created in the State Treasury a revolving
14 fund for the Oklahoma Department of Securities to be designated the
15 "Oklahoma Department of Securities Revolving Fund". The fund shall
16 be a continuing fund, not subject to fiscal year limitations, and
17 shall consist of fees and other charges collected by the
18 Administrator as follows:

19 1. The fees collected pursuant to paragraphs 1, 4, 5, 8, 14,
20 15, 17 and 18 of subsection A of this section;

21 2. The fees collected pursuant to the provisions of Section 1-
22 504 of this title as provided in paragraph 9 of subsection A of this
23 section;

1 3. The examination fees designated in paragraph 16 of
2 subsection A and in subsection B of this section;

3 4. The amounts collected pursuant to subsection D of Section 1-
4 605 of this title set forth in paragraph 13 of subsection A of this
5 section; and

6 5. One Hundred Fifty Dollars (\$150.00) of each filing fee
7 collected pursuant to subsection C of this section.

8 The Oklahoma Department of Securities Revolving Fund shall be a
9 continuing fund, not subject to fiscal year limitations.

10 Expenditures from the Oklahoma Department of Securities Revolving
11 Fund shall be made pursuant to the laws of this state and the
12 statutes relating to the Oklahoma Department of Securities, and
13 without legislative appropriation. Expenditures from the Oklahoma
14 Department of Securities Revolving Fund shall be made upon warrants
15 issued by the State Treasurer against claims filed as prescribed by
16 law with the ~~Director~~ Chief Operating Officer of the Office of
17 Management and Enterprise Services for approval and payment.

18 F. There is hereby created in the State Treasury a revolving
19 fund for the Oklahoma Department of Securities to be designated the
20 "Oklahoma Department of Securities Investor Education Revolving
21 Fund". The fund shall be a continuing fund, not subject to fiscal
22 year limitations, and shall consist of all amounts collected
23 pursuant to court order or judgment in actions brought by the
24 Administrator, and amounts received in multistate settlements

1 participated in by the Department, and interest attributable to the
2 investment of the fund that shall be deposited in the Oklahoma
3 Department of Securities Investor Education Revolving Fund. The
4 Fund may be invested in any investment instrument allowed by
5 Oklahoma Statutes to the State Treasurer for the investment of state
6 funds. Any amounts received from any court settlement in excess of
7 One Million Dollars (\$1,000,000.00) shall be transferred to the
8 General Fund. The Administrator shall use the moneys in this fund
9 exclusively for the specific purposes of research for education and
10 education of Oklahoma residents in matters concerning securities
11 laws and general investor protection. The Oklahoma Department of
12 Securities Investor Education Revolving Fund shall be a continuing
13 fund, not subject to fiscal year limitations. Expenditures from the
14 Oklahoma Department of Securities Investor Education Revolving Fund
15 shall be made pursuant to the laws of this state and the statutes
16 relating to the Oklahoma Department of Securities, and without
17 legislative appropriation. Expenditures from the Oklahoma
18 Department of Securities Investor Education Revolving Fund shall be
19 made upon warrants issued by the State Treasurer against claims
20 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
21 of the Office of Management and Enterprise Services for approval and
22 payment.

23 G. There is hereby created a petty cash fund for the Oklahoma
24 Department of Securities. The ~~Director~~ Chief Operating Officer of

1 the Office of Management and Enterprise Services and the
2 Administrator are hereby authorized and it shall be their duty to
3 fix the maximum amount of the petty cash fund, not to exceed Five
4 Hundred Dollars (\$500.00). The ~~Director~~ Chief Operating Officer of
5 the Office of Management and Enterprise Services shall prescribe all
6 forms, systems, and procedures for administering the petty cash
7 fund. The fund shall be used solely to pay:

8 1. Examination, investigation and litigation expenses of the
9 Department, including, but not limited to, court costs, filing fees,
10 copying fees, and witness fees; and

11 2. Incidental operating expenses of the Department not to
12 exceed One Hundred Dollars (\$100.00) per transaction.

13 H. Once paid, fees shall be nonrefundable.

14 I. Section 211 of Title 62 of the Oklahoma Statutes shall not
15 apply to the Oklahoma Department of Securities or the Oklahoma
16 Securities Commission.

17 SECTION 616. AMENDATORY Section 1, Chapter 79, O.S.L.
18 2022 (72 O.S. Supp. 2025, Section 35), is amended to read as
19 follows:

20 Section 35. A. There is hereby created in the State Treasury a
21 fund for the Oklahoma Department of Veterans Affairs to be
22 designated the "K-I-A Reinterment Fund". The fund balance shall not
23 exceed Three Hundred Thousand Dollars (\$300,000.00) and shall
24 consist of:

1 1. All monies apportioned or allocated to the fund pursuant to
2 law;

3 2. Any amounts appropriated by the Legislature to the fund; and

4 3. Gifts, grants, and other donations received for the fund.

5 B. All monies accruing to the credit of the fund are hereby
6 appropriated and may be budgeted and expended by the Department of
7 Veterans Affairs for the purposes of disinterring those who were
8 killed in action while in combat with a hostile force and
9 reinterment in a State Veterans Cemetery. Expenditures from the
10 fund shall be made upon warrants issued by the State Treasurer
11 against claims filed as prescribed by law with the ~~Director~~ Chief
12 Operating Officer of the Office of Management and Enterprise
13 Services for approval and payment.

14 C. The Director of the Department of Veterans Affairs shall
15 establish the application procedure and the criteria for awarding
16 financial assistance.

17 D. All applications for reinterment shall be approved by the
18 Oklahoma Veterans Commission.

19 SECTION 617. AMENDATORY 72 O.S. 2021, Section 63.16, is
20 amended to read as follows:

21 Section 63.16. A. The Oklahoma Department of Veterans Affairs
22 shall not, either in conjunction with the Oklahoma Veterans
23 Commission or any other state agency, board or commission or in
24 conjunction with any public trust, issue or cause to be issued by a

1 public trust any bond or other evidence of indebtedness after July
2 1, 2008.

3 B. Except as required for purposes of refinancing or refunding
4 an existing issue of indebtedness, from and after July 1, 2008,
5 neither the Oklahoma Department of Veterans Affairs nor the Oklahoma
6 Veterans Commission shall be authorized to enter into agreements
7 with public trusts in connection with an issuance of evidence of
8 indebtedness by such public trusts.

9 C. No provision of this section shall affect the obligations
10 incurred or agreements entered into by the Oklahoma Department of
11 Veterans Affairs or the Oklahoma Veterans Commission with any public
12 trust if such obligations were incurred or agreements were entered
13 into or are year to year continuations of agreements or leases
14 entered into prior to June 25, 1986. No provision of this section
15 shall be construed as a limitation on the authority of the Oklahoma
16 Department of Veterans Affairs or the Oklahoma Veterans Commission
17 to enter into other agreements not prohibited by this section.

18 D. There is hereby created in the State Treasury a trust fund
19 for the Oklahoma Department of Veterans Affairs to be designated the
20 "Department of Veterans Affairs Trust Fund". The fund shall be a
21 continuing fund, not subject to fiscal year limitations, and shall
22 consist of all monies authorized for expenditure as provided by this
23 section. All monies accruing to the credit of said fund are hereby
24 appropriated and may be budgeted and expended by the Oklahoma

1 Department of Veterans Affairs for the purpose of retiring
2 indebtedness evidenced by bonds, whether such bonds are part of an
3 original issue or part of a refunding issue, in the manner
4 prescribed by this section. Expenditures from said fund shall be
5 made upon warrants issued by the State Treasurer against claims
6 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
7 of the Office of Management and Enterprise Services for approval and
8 payment.

9 E. The Oklahoma Department of Veterans Affairs shall make
10 deposits into the Department of Veterans Affairs Trust Fund
11 established by this section from the Department of Veterans Affairs
12 Revolving Fund, and from such other monies as may be lawfully
13 expended for the purposes specified by this section.

14 F. For all fiscal years in which an outstanding balance of
15 bonded indebtedness exists which the Oklahoma Department of Veterans
16 Affairs has caused to be issued through agreements with public
17 trusts, the Oklahoma Department of Veterans Affairs shall at or
18 prior to the end of each fiscal year quarter make money deposits in
19 the Department of Veterans Affairs Trust Fund in amounts sufficient
20 to meet three (3) months' debt service on any public trust bonded
21 indebtedness which the Department has caused to be issued. The
22 Department of Veterans Affairs Trust Fund deposits required by this
23 subsection shall be from any funds available to the Oklahoma
24 Department of Veterans Affairs which may be legally expended for the

purposes specified by this section. However, a minimum of an amount equal to one percent (1%) of the Department of Veterans Affairs Budget Work Program for the applicable fiscal year must be transferred from the Oklahoma Department of Veterans Affairs Revolving Fund and included in the total deposits required in each fiscal year.

G. Payments from the fund established pursuant to subsection D of this section shall be made by the Oklahoma Department of Veterans Affairs only upon the authorization of the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services and the Oklahoma Veterans Commission.

H. The Oklahoma Department of Veterans Affairs is hereby authorized to deposit in the fund created in subsection D of this section all federal grant monies which it receives in conjunction with projects which it has caused to be financed through revenue bonds issued by public trusts.

SECTION 618. AMENDATORY 72 O.S. 2021, Section 63.19, is amended to read as follows:

Section 63.19. A. The Oklahoma Tax Commission shall include on each state individual income tax return form for tax years beginning after December 31, 2001, and each state corporate tax return form for tax years beginning after December 31, 2001, an opportunity for the taxpayer to donate from a tax refund for the benefit of the

Oklahoma Department of Veterans Affairs Equipment and Capital Improvement Program.

B. The monies generated from donations made pursuant to subsection A of this section shall be used by the Oklahoma Department of Veterans Affairs to purchase equipment and develop capital improvement projects and to acquire properties for expanding or improving existing projects, or for future projects to include site acquisition, architectural plan development and construction.

C. Except as otherwise provided for in this section, all monies generated pursuant to subsection A of this section shall be paid to the State Treasurer and placed to the credit of the Capital Improvement Program Revolving Fund.

D. There is hereby created in the State Treasury a revolving fund for the Oklahoma Department of Veterans Affairs to be designated "Capital Improvement Program Revolving Fund". The fund shall be a continuing fund not subject to fiscal year limitations and shall consist of all monies received pursuant to the provisions of this section. The Oklahoma Department of Veterans Affairs is hereby authorized to invest all or part of the monies of the fund in securities and any interest or dividends accruing from the investments and any monies generated at the time of redemption of the investments shall be deposited in the Capital Improvement Program Revolving Fund. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the

Oklahoma Department of Veterans Affairs for the purposes stated in subsection B of this section. Any monies withdrawn from the fund by the Oklahoma Department of Veterans Affairs for investment pursuant to this section shall be deemed to be for the purpose of equipment purchases or enhancing the veterans capital improvement programs of the State of Oklahoma. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

E. If a taxpayer makes a donation pursuant to subsection A of this section in error, the taxpayer may file a claim for refund at any time within three (3) years from the due date of the tax return. Such claims shall be filed pursuant to the provisions of Section 2373 of Title 68 of the Oklahoma Statutes and, if allowed, shall be paid pursuant to the provisions of said section. Prior to the apportionment set forth in subsection C of this section, an amount equal to the total amount of refunds made pursuant to this subsection during any one (1) year shall be deducted during the following year, and the amount deducted shall be paid to the State Treasurer and placed to the credit of the Income Tax Withholding Refund Account.

SECTION 619. AMENDATORY 72 O.S. 2021, Section 65.1, is amended to read as follows:

1 Section 65.1. A. The Oklahoma Department of Veterans Affairs
2 shall be required to proceed with construction projects at veterans
3 centers under the control of the Oklahoma Veterans Commission from
4 funds designated for these purposes.

5 B. Projects shall be constructed in the order designated by
6 United States Department of Veterans Affairs priorities.

7 C. Federal matching funds received for these projects shall
8 continue to be deposited in the federal matching fund designated for
9 the Oklahoma Department of Veterans Affairs by the ~~Director~~ Chief
10 Operating Officer of the Office of Management and Enterprise
11 Services and shall be considered as available funds for projects,
12 unless otherwise encumbered.

13 SECTION 620. AMENDATORY 72 O.S. 2021, Section 222, as
14 amended by Section 2, Chapter 42, O.S.L. 2024 (72 O.S. Supp. 2025,
15 Section 222), is amended to read as follows:

16 Section 222. A. There is hereby created in the State Treasury
17 a revolving fund for the Oklahoma Department of Veterans Affairs to
18 be known as the "Oklahoma Department of Veterans Affairs Revolving
19 Fund". The revolving fund shall consist of all funds and monies
20 received by the Oklahoma Department of Veterans Affairs, its
21 constituent institutions, and/or the Oklahoma Veterans Commission,
22 from any gifts, contributions, bequests, individual reimbursements
23 except as otherwise provided by law, and other sources of revenue,
24 for the care or support of war veterans discharged other than under

1 dishonorable conditions, who have been admitted and cared for at the
2 Oklahoma Department of Veterans Affairs Centers at Ardmore,
3 Claremore, Clinton, Lawton/Ft. Sill, Norman, Sulphur or Sallisaw.
4 Provided, no grants-in-aid, reimbursements, or other revenue from
5 the United States government or any instrumentality of the United
6 States government shall be deposited in the fund. Provided further,
7 nothing contained herein prohibits the establishment and utilization
8 of special agency accounts by the Oklahoma Department of Veterans
9 Affairs and its constituent institutions, as may be approved by the
10 ~~Director~~ Chief Operating Officer of the Office of Management and
11 Enterprise Services, for receipt and disbursement of the personal
12 funds of Veteran Center patients and members and/or for receipt and
13 disbursement of charitable contributions and donations for use by
14 and for patients and members.

15 B. The revolving fund herein created shall be used by the
16 Oklahoma Department of Veterans Affairs to pay for the care of war
17 veterans discharged other than under dishonorable conditions, in
18 Veterans Centers, to pay the general operating expenses of the
19 Veterans Centers, including the payment of salaries and wages of
20 officials and employees, to pay for the employee safety programs and
21 incentive awards provided for in Section 63.10a of this title, and
22 to remodel, repair, construct, build additions, modernize, or add
23 improvements of domiciliary or hospital buildings necessary for the
24 care of veterans, including tuberculosis, mentally ill or

1 neuropsychiatric patients, but not excluding others; and
2 architectural plans, specifications, or other costs pertinent
3 thereto.

4 C. The Oklahoma Department of Veterans Affairs may transfer
5 monies from the revolving fund created in this section to the W.V.C.
6 Revolving Fund in the State Treasury.

7 D. All expenditures from the revolving fund shall be made upon
8 warrants issued by the State Treasurer based upon claims approved by
9 the Oklahoma Department of Veterans Affairs, as provided by law, and
10 filed with the ~~Director~~ Chief Operating Officer of the Office of
11 Management and Enterprise Services for approval and payment.

12 SECTION 621. AMENDATORY 72 O.S. 2021, Section 240, as
13 last amended by Section 5, Chapter 42, O.S.L. 2024 (72 O.S. Supp.
14 2025, Section 240), is amended to read as follows:

15 Section 240. There is hereby created a petty cash fund at the
16 Oklahoma Department of Veterans Affairs, at the State Veterans Home,
17 Ardmore, Oklahoma, at the State Veterans Home, Clinton, Oklahoma, at
18 the State Veterans Home, Sulphur, Oklahoma, at the State Veterans
19 Home, Sallisaw, Oklahoma, at the State Veterans Home, Norman,
20 Oklahoma, at the State Veterans Home, Claremore, Oklahoma, and at
21 the State Veterans Home, Lawton/Ft. Sill, Oklahoma. The ~~Director~~
22 Chief Operating Officer of the Office of Management and Enterprise
23 Services and the Director of the Oklahoma Department of Veterans
24 Affairs are authorized to fix the maximum amount of these petty cash

1 funds and the ~~Director~~ Chief Operating Officer of the Office of
2 Management and Enterprise Services shall prescribe the rules and
3 procedures for the administration of these petty cash funds.

4 SECTION 622. AMENDATORY 72 O.S. 2021, Section 403, is
5 amended to read as follows:

6 Section 403. A. Oklahoma state agencies are hereby authorized
7 to employ special disabled veterans who are legal residents of the
8 state in competitive and noncompetitive jobs. Such veterans shall
9 be exempt from entrance examinations and hiring procedures
10 administered by the Office of Management and Enterprise Services
11 pursuant to Sections 840-4.12 and 840-4.13 of Title 74 of the
12 Oklahoma Statutes.

13 B. Special disabled veterans hired pursuant to subsection A of
14 this section shall be appointed for a probationary period of one (1)
15 year, except that the appointing authority may waive in writing the
16 remainder of the probationary period at any time after a
17 probationary employee has served six (6) months; provided, however,
18 that the disabled veteran and the ~~Director~~ Chief Operating Officer
19 of the Office of Management and Enterprise Services shall be
20 notified in writing as to such action and the reason therefor. At
21 the end of the probationary period and if the work of said veterans
22 is satisfactorily performed, the veterans shall acquire permanent
23 status.

1 C. Upon acquiring permanent status, special disabled veterans
2 shall be subject to the rules and regulations of the Office of
3 Management and Enterprise Services.

4 SECTION 623. AMENDATORY 72 O.S. 2021, Section 411, is
5 amended to read as follows:

6 Section 411. There is hereby created in the State Treasury a
7 revolving fund for the Oklahoma Department of Veterans Affairs to be
8 designated the "Oklahoma Veteran Housing Program Revolving Fund".
9 The fund shall be a continuing fund, not subject to fiscal year
10 limitations, and shall consist of all monies received by the
11 Oklahoma Department of Veterans Affairs in the form of donations,
12 appropriations or other monies for such fund. All monies accruing
13 to the credit of the fund are hereby appropriated and may be
14 budgeted and expended by the Department for the purpose of providing
15 grants to eligible veterans as provided by law. Expenditures from
16 the fund shall be made upon warrants issued by the State Treasurer
17 against claims filed as prescribed by law with the ~~Director~~ Chief
18 Operating Officer of the Office of Management and Enterprise
19 Services for approval and payment.

20 SECTION 624. AMENDATORY 73 O.S. 2021, Section 19, is
21 amended to read as follows:

22 Section 19. A. There is hereby created in the State Treasury a
23 fund for the Office of Management and Enterprise Services to be
24 known as the "Oklahoma State Capitol Building Repair and Restoration

1 Fund". The fund shall be a continuing fund, not subject to fiscal
2 year limitations, and shall consist of all monies deposited to the
3 fund pursuant to law. All monies accruing to the credit of said
4 fund are hereby appropriated and may be budgeted and expended only
5 for the purposes authorized by subsection B of this section.
6 Expenditures from said fund shall be made upon warrants issued by
7 the State Treasurer against claims filed as prescribed by law with
8 the ~~Director~~ Chief Operating Officer of the Office of Management and
9 Enterprise Services for approval and payment.

10 B. Monies in the Oklahoma State Capitol Building Repair and
11 Restoration Fund shall be expended for the repair and restoration of
12 the Oklahoma State Capitol building upon the recommendation of the
13 Long-Range Capital Planning Commission and separate from the annual
14 capital budget as referenced in Section 901 of Title 62 of the
15 Oklahoma Statutes. Upon the Legislature's determination that the
16 repair and restoration of the Oklahoma State Capitol building is
17 complete, any remaining monies in the Oklahoma State Capitol
18 Building Repair and Restoration Fund shall be transferred to the
19 Maintenance of State Buildings Revolving Fund established in Section
20 61.7 of Title 74 of the Oklahoma Statutes.

21 C. Notwithstanding any other provision of law, there shall be
22 apportioned to the Oklahoma State Capitol Building Repair and
23 Restoration Fund from the monies that would otherwise be apportioned
24 pursuant to the provisions of Section 2352 of Title 68 of the

Oklahoma Statutes, revenue derived pursuant to subsections B, C and D of Section 2355 of Title 68 of the Oklahoma Statutes, a sum of Sixty Million Dollars (\$60,000,000.00) for each of the fiscal years beginning on July 1, 2013, and July 1, 2014. Such apportionment shall be made in amounts and at such times as it is requested by the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services.

SECTION 625. AMENDATORY 73 O.S. 2021, Section 62.2, is amended to read as follows:

Section 62.2. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services is hereby authorized to enter into a written agreement with the Post Office Department of the United States permitting said Department to occupy and use adequate quarters in the State Capitol for a post office free of cost to the United States. If additional space is needed, the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services is hereby authorized to enter into written agreements providing such additional space in the State Capitol. The Office of Management and Enterprise Services shall also be authorized to agree to furnish light, heat, water, janitor service for said post office, and a safe receptacle in which to keep property of the United States.

SECTION 626. AMENDATORY 73 O.S. 2021, Section 83.1, as last amended by Section 1, Chapter 16, O.S.L. 2025 (73 O.S. Supp. 2025, Section 83.1), is amended to read as follows:

Section 83.1. A. There is hereby re-created to continue until July 1, 2030, in accordance with the Oklahoma Sunset Law, a Capitol-Medical Center Improvement and Zoning Commission to exercise the functions and perform the duties hereinafter prescribed.

B. The Commission shall be composed of eleven (11) members as follows:

1. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services or his or her designee, who shall be ex officio chair of the Capitol-Medical Center Improvement and Zoning Commission;

2. The Director of the Transportation Commission or his or her designee;

3. The President of the University of Oklahoma or his or her designee;

4. Two members appointed by the President Pro Tempore of the Senate;

5. Two members appointed by the Speaker of the House of Representatives;

6. The Chair of the Planning Commission of Oklahoma City or his or her designee;

1 7. The Chair of the Long-Range Capital Planning Commission or
2 his or her designee; and

3 8. Two members of the Commission appointed by the Governor,
4 with the advice and consent of the State Senate, for four-year
5 staggered terms with one term expiring on January 31 of each even-
6 numbered year.

7 C. The Commission is authorized to appoint and hire a Director,
8 who shall serve as the chief administrative officer of the
9 Commission, and other necessary personnel. The Attorney General of
10 the State of Oklahoma shall be the legal advisor to the Commission
11 in the same capacity as he or she is to other boards and
12 commissions.

13 D. At least one of the members appointed by the President Pro
14 Tempore of the Senate and the Speaker of the House of
15 Representatives shall be a resident within the boundaries of the
16 Capitol-Medical Center Improvement and Zoning District as set forth
17 in Section 83 of this title.

18 SECTION 627. AMENDATORY 73 O.S. 2021, Section 96, is
19 amended to read as follows:

20 Section 96. The ~~Director~~ Chief Operating Officer of the Office
21 of Management and Enterprise Services is hereby authorized to
22 regulate parking of vehicles on the streets in the vicinity of the
23 State Capitol, the state office building, the State Historical
24 Building, the State Armory, and other public buildings on the State

1 Capitol grounds. Copies of such regulations, including amendments
2 thereto, shall be filed in the Office of the Secretary of State and
3 in the office of the city clerk of the City of Oklahoma City, and
4 copies thereof shall be transmitted to each officer, board or
5 commission having offices in said buildings. A reasonable amount of
6 parking space shall be reserved on the streets immediately adjacent
7 to each of said buildings for citizens, not officers or employees of
8 the state, having business to transact in such buildings. Parking
9 space on the streets and on the public grounds may also be reserved
10 for officers and employees. Such regulations may provide for
11 diagonal or parallel parking of vehicles, the time limit for parking
12 in spaces reserved, when such regulations shall be applicable, the
13 placing of appropriate signs and other markings as to the
14 availability of parking space, the issuance of appropriate stickers
15 identifying vehicles, reservation of space for bus stops, and such
16 other reasonable regulations as are deemed necessary to an orderly
17 system to prevent congestion of traffic and the abuse of parking
18 privileges on said streets. The Attorney General shall assist the
19 ~~Director~~ Chief Operating Officer of the Office of Management and
20 Enterprise Services in the preparation of said regulations. Such
21 regulations shall be enforced by the Highway Patrol Division of the
22 Department of Public Safety and by the police of the City of
23 Oklahoma City or other peace officers. The authority of the City of
24 Oklahoma City to regulate parking on the streets in the vicinity of

1 the above referred to buildings is hereby withdrawn, and the
2 ~~Director~~ Chief Operating Officer of the Office of Management and
3 Enterprise Services and the city manager of the City of Oklahoma
4 City shall cooperate to the extent necessary in specifically
5 defining the boundary or territorial limits of the respective
6 jurisdictions in respect to the subject matter of this section and
7 Section 97 of this title.

8 SECTION 628. AMENDATORY 73 O.S. 2021, Section 97, is
9 amended to read as follows:

10 Section 97. Complaints for the violation of any of said
11 regulations promulgated by the ~~Director~~ Chief Operating Officer of
12 the Office of Management and Enterprise Services shall be filed with
13 the municipal court of the City of Oklahoma City, and said court
14 shall exercise jurisdiction over the same. Any person found guilty
15 by said court of violating any of said regulations shall be punished
16 by a fine in a sum not exceeding Twenty Dollars (\$20.00), inclusive
17 of costs. Each violation shall constitute a separate and distinct
18 offense. Appeals may be taken in the same manner as appeals from
19 said court in cases involving violations of city ordinances. In
20 such cases the City of Oklahoma City shall receive One Dollar
21 (\$1.00) as costs, and one-half (1/2) of the fine collected. The
22 remaining one-half (1/2) of the fine shall be paid to the State
23 Treasurer and shall be placed in a fund which shall be used by the
24

Office of Management and Enterprise Services in the maintenance and upkeep of the Capitol grounds.

SECTION 629. AMENDATORY 73 O.S. 2021, Section 99.15, is amended to read as follows:

Section 99.15. A. There is hereby created in the State Treasury a revolving fund for the Oklahoma Capitol Complex and Centennial Commemoration Commission to be designated as the "Oklahoma Historic Capitols Preservation Act Revolving Fund".

B. The fund shall consist of all monies that are received by the Commission from appropriations or donations for historic capitol building projects pursuant to the Oklahoma Historic Capitols Preservation Act.

C. The fund shall be a continuing fund not subject to fiscal year limitations. Expenditures from the fund shall be for expenses related to any authorized activity of the Commission pursuant to the Oklahoma Historic Capitols Preservation Act and shall be made pursuant to law and without legislative appropriation. Warrants for the expenditures from the fund shall be issued by the State Treasurer against claims signed by an authorized employee of the Commission and approved for payment by the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services.

D. The Commission may use monies in the fund to provide matching grants to applicants that have jurisdiction over an historic capitol building for an historic capitol building project

1 or to provide the State Historic Preservation Officer, created by
2 Section 354 of Title 53 of the Oklahoma Statutes, funds to assist
3 the Commission in administering the program.

4 SECTION 630. AMENDATORY 73 O.S. 2021, Section 173, as
5 amended by Section 2, Chapter 429, O.S.L. 2024 (73 O.S. Supp. 2025,
6 Section 173), is amended to read as follows:

7 Section 173. A. The Oklahoma Capitol Improvement Authority may
8 contract with the Office of Management and Enterprise Services to
9 maintain grounds and for housekeeping, maintenance and repair of
10 properties under the jurisdiction of the Authority.

11 B. The Oklahoma Capitol Improvement Authority and the Office of
12 Management and Enterprise Services shall contract with the
13 Department of Public Safety for security and law enforcement
14 services in all facilities under the jurisdiction of the Authority
15 or Department within the State Capitol Park in Oklahoma City.

16 C. The Oklahoma Capitol Improvement Authority shall provide
17 office and operations space for Office of Management and Enterprise
18 Services functions.

19 D. The Office of Management and Enterprise Services shall
20 establish accounts for the Office of Management and Enterprise
21 Services, by building or other improvement, as the ~~Director~~ Chief
22 Operating Officer of the Office of Management and Enterprise
23 Services considers necessary to properly account and identify
24 receipts and expenditures related to construction, repair,

1 maintenance, insurance and other operating expenses of buildings and
2 improvements owned, used or occupied by or on behalf of the Oklahoma
3 Capitol Improvement Authority, where the services are carried out by
4 contract with the Authority.

5 SECTION 631. AMENDATORY 73 O.S. 2021, Section 179, is
6 amended to read as follows:

7 Section 179. A. There is hereby created in the State Treasury
8 a revolving fund for the Oklahoma Tourism and Recreation Department,
9 to be designated the "1995 Tourism Bond Revolving Fund". The fund
10 shall be a continuing fund, not subject to fiscal year limitations,
11 and shall consist of all revenues generated pursuant to the
12 provisions of Section 178 of this title, which are not otherwise
13 committed for other lawful purposes. All monies accruing to the
14 credit of the fund are hereby appropriated and may be budgeted and
15 expended by the Oklahoma Tourism and Recreation Department for
16 purposes of retiring the debt created pursuant to Section 178 of
17 this title. Expenditures from the fund shall be made upon warrants
18 issued by the State Treasurer against claims filed as prescribed by
19 law with the ~~Director~~ Chief Operating Officer of the Office of
20 Management and Enterprise Services for approval and payment.

21 B. Any revenues generated pursuant to Section 178 of this
22 title, and not expended for purposes of meeting the requirements of
23 subsection A of this section, may be expended for paying the
24

1 operations and maintenance expenses for facilities created pursuant
2 to Section 178 of this title.

3 C. The Oklahoma Tourism and Recreation Department shall submit
4 an annual report to the President Pro Tempore of the Senate, the
5 Speaker of the House of Representatives, and the Governor detailing
6 the revenues generated and detailing the operating and maintenance
7 expenses in the previous fiscal year which are attributable to the
8 repairs, refurbishments and improvements to Oklahoma Tourism and
9 Recreation Department properties pursuant to Section 178 of this
10 title. Such report shall be submitted before August 1 of each year.

11 SECTION 632. AMENDATORY Section 2, Chapter 1, 1st
12 Extraordinary Session, O.S.L. 2023, as amended by Section 1, Chapter
13 393, O.S.L. 2024 (73 O.S. Supp. 2025, Section 187B), is amended to
14 read as follows:

15 Section 187B. A. There is hereby created in the State Treasury
16 a revolving fund for the Oklahoma Capitol Improvement Authority to
17 be designated the "Legacy Capital Financing Fund". The fund shall
18 be a continuing fund, not subject to fiscal year limitations, and
19 shall consist of all monies received by the Oklahoma Capitol
20 Improvement Authority eligible under law and directed for deposit.
21 All monies accruing to the credit of said fund are hereby
22 appropriated and may be budgeted and expended by the Oklahoma
23 Capitol Improvement Authority for capital projects specifically and
24 exclusively as authorized by law. Such budgeting and expenditure

1 shall strictly adhere to the specific terms, limitations, purposes,
2 and requirements described in such authorizations and in this act.
3 Expenditures from said fund shall be made upon warrants issued by
4 the State Treasurer against claims filed as prescribed by law with
5 the ~~Director~~ Chief Operating Officer of the Office of Management and
6 Enterprise Services for approval and payment.

7 B. 1. The Oklahoma Capitol Improvement Authority shall be
8 authorized to enter into memoranda of understanding with agencies,
9 departments, and subdivisions of the state as provided by law and as
10 deemed necessary by the Authority to administer expenditures from
11 and deposits to the Legacy Capital Financing Fund; provided that
12 such memoranda of understanding do not conflict with or impede the
13 administration of capital projects specifically authorized by law.
14 Such memoranda of understanding shall not constitute a legal
15 obligation of the State of Oklahoma.

16 2. a. Unless specified otherwise in the applicable
17 authorizing legislation, all distributions from the
18 Legacy Capital Financing Fund shall be returned to the
19 Fund over a twenty-year period. Such distributions
20 shall be returned in the form of LCF Recapitalization
21 Payments as provided in subparagraph b of this
22 paragraph.

23 b. The annual LCF Recapitalization Payment required of
24 entities in receipt of Legacy Capital Financing Fund

distributions shall be equal to one-twentieth (1/20) of the amount distributed to the entity. Such payment shall be collected by the Oklahoma Capitol Improvement Authority in equal monthly installments and deposited to the Legacy Capital Financing Fund; provided, that in the year of initial distribution no monthly payment shall be made until the second month after such distribution. Upon such second month, all monthly payments for such state fiscal year up to that point shall become payable.

c. (1) By authorizing distributions from the Legacy Capital Financing Fund and making recipients of such funds responsible for LCF Recapitalization Payments, the Legislature voluntarily subjects itself to the moral obligation that the Legislature shall appropriate to recipient state agencies, otherwise receiving legislative appropriations, the first annual required LCF Recapitalization Payment for the state fiscal year for which the distribution was authorized, and that such appropriated amount shall remain in the agency's appropriation base for the duration of the LCF Recapitalization period for such project.

(2) The Legislature, as it deems necessary for the best interests of the state, may suspend or restructure for a period of time such LCF Recapitalization Payments through the adoption of a concurrent resolution.

C. Limited to the extent required for projects specifically authorized through the Legacy Capital Financing Act, the Oklahoma Capitol Improvement Authority shall be authorized to:

1. Acquire real property together with improvements located thereon and personal property;

2. Provide for the construction of improvements to real property and to provide funding for repairs, refurbishments, and improvements to real and personal property;

3. Hold title to property and improvements as necessary to comply with legal directives and authorizations; and

4. Lease, transfer, and otherwise legally dispose of property and improvements as necessary to comply with legal directives and authorizations.

D. No later than January 15 annually, the Oklahoma Capitol Improvement Authority shall submit electronically to the Governor, the Speaker of the Oklahoma House of Representatives, the President Pro Tempore of the Oklahoma State Senate, the Appropriations and Budget Chair of the Oklahoma House of Representatives, and the Appropriations Chair of the Oklahoma State Senate a report detailing

impacts to the balance of the Legacy Capital Financing Fund occurring in the prior calendar year, including, but not limited to, all distributions, expenditures, collections, deposits and investment returns of the Legacy Capital Financing Fund.

E. Notwithstanding any provision of law to the contrary, all interest and income derived from deposits to the Legacy Capital Financing Fund shall be credited to the Legacy Capital Financing Fund.

SECTION 633. AMENDATORY Section 2, Chapter 441, O.S.L. 2024, as amended by Section 3, Chapter 439, O.S.L. 2025 (73 O.S. Supp. 2025, Section 188B), is amended to read as follows:

Section 188B. A. There is hereby created in the State Treasury a revolving fund for the Oklahoma Capitol Improvement Authority to be designated the "Oklahoma Capital Assets Maintenance and Protection Fund" (OCAMP Fund). The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Oklahoma Capitol Improvement Authority eligible under law and directed for deposit to the fund. All monies accruing to the credit of the fund are hereby appropriated and, except for the transfer required pursuant to Enrolled Senate Bill No. 1125 of the 2nd Session of the 59th Oklahoma Legislature, may be allocated, budgeted, and expended by the Oklahoma Capitol Improvement Authority as directed by the Long-Range Capital Planning Commission. Such allocations, budgeting, and expenditures shall

1 strictly adhere to the specific terms, limitations, purposes, and
2 requirements described in the directive adopted by the Commission.
3 Expenditures from the fund shall be made upon warrants issued by the
4 State Treasurer against claims filed as prescribed by law with the
5 ~~Director~~ Chief Operating Officer of the Office of Management and
6 Enterprise Services for approval and payment.

7 B. The Oklahoma Capitol Improvement Authority shall be
8 authorized to enter into memoranda of understanding with agencies,
9 departments, and subdivisions of the state as provided by law and as
10 deemed necessary by the Authority to administer expenditures from
11 and allocations and deposits to and from the Oklahoma Capital Assets
12 Maintenance and Protection Fund, provided that such memoranda of
13 understanding do not conflict with or impede the administration of
14 capital projects specifically authorized by law or directed by the
15 Commission. Such memoranda of understanding shall not constitute a
16 legal obligation of this state.

17 C. Limited to the extent required for projects specifically
18 authorized under the provisions of the Oklahoma Capital Assets
19 Maintenance and Protection Act, the Oklahoma Capitol Improvement
20 Authority shall be authorized to:

- 21 1. Acquire real property together with improvements located
22 thereon and personal property;
- 23 2. Provide for the construction of improvements to real
24 property and to provide funding for repairs, refurbishments,

deferred maintenance, and improvements to real and personal property;

3. Hold title to property and improvements as necessary to comply with legal directives and authorizations; and

4. Lease, transfer, and otherwise legally dispose of property and improvements as necessary to comply with legal directives and authorizations.

D. No later than January 15 annually, the Oklahoma Capitol Improvement Authority shall submit electronically to the Governor, the President Pro Tempore of the Senate, the Speaker of the House of Representatives, the Chair of the Appropriations Committee of the Senate, and the Chair of the Appropriations and Budget Committee of the House of Representatives a report detailing impacts to the balance of the Oklahoma Capital Assets Maintenance and Protection Fund occurring in the prior calendar year, including, but not limited to, all distributions, expenditures, collections, and deposits of the Oklahoma Capital Assets Maintenance and Protection Fund.

SECTION 634. AMENDATORY 73 O.S. 2021, Section 301.1, is amended to read as follows:

Section 301.1. The Oklahoma Capitol Improvement Authority is hereby authorized to sell parcels of real property associated with the Lincoln Boulevard Renaissance Project in Oklahoma City, whether acquired from the proceeds of bonds issued pursuant to the

provisions of paragraph 4 of subsection A of Section 301 of this title or from other sources; provided:

1. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services, with advice from the Construction and Properties Division of the Office, determines the parcel or parcels of land to be not useful for construction of a state office building because of lot size, location or other applicable factors;

2. The sale of the parcel or parcels is approved by the Oklahoma Capitol Improvement Authority;

3. Restrictions are placed on the use of any such parcel sold to assure it will not conflict with or be detrimental to the development of the remainder of the Lincoln Boulevard Renaissance Project;

4. The parcel or parcels are sold in compliance with procedures for sale of state land set forth in Sections 327 and 327.1 of Title 61 of the Oklahoma Statutes, or the parcels may be transferred for the purpose of further development to the Commissioners of the Land Office for no less than the appraised value and no less than the amount required to fully satisfy the proportionate amount of outstanding bonds on the parcels to be transferred; and

5. In the opinion of the State Bond Advisor, the sale of such land will not adversely affect the tax-exempt status of the Oklahoma Capitol Improvement Authority State Facilities Revenue Bonds, Series

1 1999A or any other bond issue, the proceeds of which were used to
2 purchase or acquire such land.

3 SECTION 635. AMENDATORY 73 O.S. 2021, Section 304.2, is
4 amended to read as follows:

5 Section 304.2. A. In addition to any other authorization
6 provided by law, and under the conditions herein expressed, the
7 Oklahoma Capitol Improvement Authority (OCIA) is authorized to issue
8 additional obligations to provide funding for improvements to real
9 and personal property and for funding of further construction,
10 improvements, development and enhancement of the American Indian
11 Cultural Center and Museum (AICCM), to include personal property and
12 exhibits with debt retirement payments to be made as provided
13 herein; provided, however, that such obligations shall not be issued
14 until the ~~Director~~ Chief Operating Officer of the Office of
15 Management and Enterprise Services (OMES) has certified that at
16 least Ten Million Dollars (\$10,000,000.00), in accordance with the
17 requirements of paragraph 1 of subsection B of Section 1226.19 of
18 Title 74 of the Oklahoma Statutes, has been deposited in the
19 American Indian Cultural Center and Museum Completion Fund created
20 by Section 1226.20 of Title 74 of the Oklahoma Statutes.

21 B. The obligations authorized under this section shall be
22 repaid from lease payments to be made by the Native American
23 Cultural and Educational Authority (Authority) until its termination
24 and thereafter by the American Indian Cultural Center and Museum

1 Trust Authority (AICCMTA) created by Section 1226.21 of Title 74 of
2 the Oklahoma Statutes or another designated state agency for deposit
3 to the American Indian Cultural Center and Museum Postcompletion
4 Revolving Fund created by Section 1226.22 of Title 74 of the
5 Oklahoma Statutes, it being the express intent of the Legislature to
6 appropriate funds to such agencies in sufficient amount to make
7 lease payments which will provide for the repayment of such
8 obligations.

9 C. The obligations authorized under this section to provide
10 additional funding for the AICCM may be issued by OCIA, in one or
11 more series, in an aggregate amount sufficient to generate net
12 proceeds of Twenty-five Million Dollars (\$25,000,000.00) after
13 providing for costs of issuance, credit enhancement, reserves and
14 other associated expenses related to the financing. Net proceeds of
15 the financing will be deposited into a construction fund to provide
16 for the construction and acquisition of improvements described
17 herein. It is the intent of the Legislature to appropriate to the
18 Authority or, after its termination pursuant to Section 1226.2 of
19 Title 74 of the Oklahoma Statutes, to the AICCMTA or another
20 designated state agency for deposit to the American Indian Cultural
21 Center and Museum Postcompletion Revolving Fund, sufficient monies
22 to make payments for the purposes of retiring the obligations
23 created pursuant to this section. To the extent funds are available
24 from the proceeds of the borrowing authorized by this section, OCIA

1 shall provide for the payment of professional fees and associated
2 costs related to the projects authorized in subsection A of this
3 section.

4 D. OCIA is authorized to hire bond counsel, special tax
5 counsel, financial consultants and such other professionals as it
6 may deem necessary to provide for the efficient sale of the
7 obligations and may utilize a portion of the proceeds of any
8 borrowing to create such reserves as may be deemed necessary and to
9 pay costs associated with the issuance and administration of such
10 obligations.

11 E. The obligations authorized under this section may be sold at
12 either competitive or negotiated sale, as determined by OCIA, and in
13 such form and at such prices as may be authorized by OCIA. OCIA may
14 enter into agreements with such credit enhancers and liquidity
15 providers as may be determined necessary to efficiently market the
16 obligations. The obligations may mature and have such provisions
17 for redemption as shall be determined by OCIA, but in no event shall
18 the final maturity of such obligations occur later than thirty (30)
19 years from the first principal maturity date.

20 F. Any interest earnings on funds or accounts created for the
21 purposes of this section may be utilized as partial payment of the
22 annual debt service or for the purposes directed by OCIA.

23 G. The obligations issued under this section, the transfer
24 thereof and the interest earned on such obligations, including any

1 profit derived from the sale thereof, shall not be subject to
2 taxation of any kind by the State of Oklahoma, or by any county,
3 municipality or political subdivision therein.

4 H. OCIA may direct the investment of all monies in any funds or
5 accounts created in connection with the offering of the obligations
6 authorized under this section. Such investments shall be made in a
7 manner consistent with the investment guidelines of the State
8 Treasurer. OCIA may place additional restrictions on the investment
9 of such monies if necessary to enhance the marketability of the
10 obligations.

11 I. Insofar as they are not in conflict with the provisions of
12 this section, the provisions of Section 151 et seq. of this title
13 shall apply to this section.

14 J. The bonds or other obligations issued pursuant to this
15 section shall not at any time be deemed to constitute a debt of the
16 state or of any political subdivision thereof or a pledge of the
17 faith and credit of the state or of any such political subdivision.
18 Such bonds or other obligations shall contain on the face thereof a
19 statement that neither the faith and credit nor the taxing power of
20 the state or any political subdivision thereof is pledged, or may
21 hereafter be pledged, to the payment of the principal of or the
22 interest on such bonds.

23 K. The requirements for issuance of the additional obligations
24 described by this section shall be deemed to have been fully

1 satisfied by actions which include certification by the ~~Director~~
2 Chief Operating Officer of the Office of Management and Enterprise
3 Services that at least Ten Million Dollars (\$10,000,000.00) has been
4 deposited in the American Indian Cultural Center and Museum
5 Completion Fund, in accordance with the requirements of paragraph 1
6 of subsection B of Section 1226.19 of Title 74 of the Oklahoma
7 Statutes.

8 SECTION 636. AMENDATORY 73 O.S. 2021, Section 345, is
9 amended to read as follows:

10 Section 345. A. In addition to any other authorization
11 provided by law, the Oklahoma Capitol Improvement Authority is
12 authorized to issue obligations to acquire real property, together
13 with improvements located thereon, and personal property to
14 construct improvements to real property and to provide funding for
15 repairs, refurbishments and improvements to real and personal
16 property of the State Capitol Building in a total amount not to
17 exceed One Hundred Twenty Million Dollars (\$120,000,000.00). The
18 funds shall be used for the renovation, repair and remodeling of the
19 State Capitol Building.

20 B. The Authority may hold title to the property and
21 improvements until such time as any obligations issued for this
22 purpose are retired or defeased and may lease the property and
23 improvements to the Office of Management and Enterprise Services.
24 Upon final redemption or defeasance of the obligations created

1 pursuant to this section, title to the property and improvements
2 shall be transferred from the Oklahoma Capitol Improvement Authority
3 to the Office of Management and Enterprise Services.

4 C. For the purposes of paying the costs for construction of the
5 real property and improvements, and providing funding for the
6 project authorized in subsection A of this section, and for the
7 purpose authorized in subsection D of this section, the Authority is
8 hereby authorized to borrow monies on the credit of the income and
9 revenues to be derived from the leasing of such property and
10 improvements and, in anticipation of the collection of such income
11 and revenues, to issue negotiable obligations in a total amount not
12 to exceed One Hundred Twenty Million Dollars (\$120,000,000.00)
13 whether issued in one or more series. The Authority is authorized
14 to capitalize interest on the obligations issued pursuant to this
15 section for a period of not to exceed one (1) year from the date of
16 issuance. For subsequent fiscal years, it is the intent of the
17 Legislature to appropriate to the Office of Management and
18 Enterprise Services sufficient monies to make rental payments for
19 the purpose of retiring the obligations created pursuant to this
20 section. To the extent funds are available from the proceeds of the
21 borrowing authorized by this subsection, the Oklahoma Capitol
22 Improvement Authority shall provide for the payment of professional
23 fees and associated costs related to the project authorized in
24 subsection A of this section.

1 D. The Authority may issue obligations in one or more series
2 and in conjunction with other issues of the Authority. The
3 Authority is authorized to hire bond counsel, financial consultants,
4 and such other professionals as it may deem necessary to provide for
5 the efficient sale of the obligations and may utilize a portion of
6 the proceeds of any borrowing to create such reserves as may be
7 deemed necessary and to pay costs associated with the issuance and
8 administration of such obligations.

9 E. The obligations authorized under this section may be sold at
10 either competitive or negotiated sale, as determined by the
11 Authority, and in such form and at such prices as may be authorized
12 by the Authority. The Authority may enter into agreements with such
13 credit enhancers and liquidity providers as may be determined
14 necessary to efficiently market the obligations. The obligations
15 may mature and have such provisions for redemption as shall be
16 determined by the Authority, but in no event shall the final
17 maturity of such obligations occur later than ten (10) years from
18 the first principal maturity date.

19 F. Any interest earnings on funds or accounts created for the
20 purposes of this section may be utilized as partial payment of the
21 annual debt service or for the purposes directed by the Authority.

22 G. The obligations issued under this section, the transfer
23 thereof and the interest earned on such obligations, including any
24 profit derived from the sale thereof, shall not be subject to

1 taxation of any kind by the State of Oklahoma, or by any county,
2 municipality or political subdivision therein.

3 H. The Authority may direct the investment of all monies in any
4 funds or accounts created in connection with the offering of the
5 obligations authorized under this section. Such investments shall
6 be made in a manner consistent with the investment guidelines of the
7 State Treasurer. The Authority may place additional restrictions on
8 the investment of such monies if necessary to enhance the
9 marketability of the obligations.

10 I. There is hereby created a State Capitol Repair Expenditure
11 Oversight Committee. The proceeds from the sale of obligations
12 issued pursuant to the provisions of this section and Section 1 of
13 Enrolled House Bill No. 3168 of the 2nd Session of the 55th Oklahoma
14 Legislature that are needed for repairs to the interior and exterior
15 of the State Capitol shall be subject to the approval of the State
16 Capitol Repair Expenditure Oversight Committee; provided, however,
17 the expenditure of those proceeds shall be subject to a request for
18 proposal process.

19 The Committee shall be composed of nine (9) members as follows:

20 1. Three persons to be appointed by the Governor, one of whom
21 shall serve as chair of the Committee;

22 2. Three legislators to be appointed by the Speaker of the
23 House of Representatives, two of whom shall be members of the
24

majority political party and one of whom shall be a member of the minority political party; and

3. Three legislators to be appointed by the President Pro Tempore of the Senate, two of whom shall be members of the majority political party and one of whom shall be a member of the minority political party. Five members of the Committee shall constitute a quorum and the vote of five members shall be necessary for any action taken by the Committee. The Committee shall be staffed by employees of the Office of Management and Enterprise Services. The Committee shall be subject to the Oklahoma Open Meeting Act.

J. The Committee shall deliver a preliminary plan for the renovation, repair and remodeling of the State Capitol to the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services no later than December 31, 2014. The preliminary plan shall include the following components:

1. Establishment of the Office of Management and Enterprise Services' goal and criteria for use by the vendor; and

2. Selection criteria for the design-build team vendor to be selected through a Request For Proposal process.

K. Following receipt of the preliminary plan as approved by the Committee, the Office of Management and Enterprise Services shall solicit Requests For Proposals to select the vendor for the project.

L. The Committee shall deliver a final plan to the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise

Services no later than June 30, 2015. The final plan shall include the following components:

1. Approval of the final scope of work developed by the vendor;
- and
2. Approval of the project phasing developed by the vendor.

M. Following delivery of the final plan, the Committee shall continue to oversee the expenditure of proceeds from the sale of obligations issued pursuant to the provisions of this section and Section 1 of Enrolled House Bill No. 3168 of the 2nd Session of the 55th Legislature, until completion of the renovation, repair and remodeling of the State Capitol. The Committee may also propose and approve amendments to the plan as it deems appropriate.

N. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services shall have responsibility to substantially implement the plan as presented by the Committee; provided, the President Pro Tempore of the Senate or the Speaker of the House of Representatives shall approve all proposed designs related to renovation, repair and remodeling of space within the State Capitol Building under the management and control of the Legislature and allocated to that officer's house of the Legislature pursuant to the provisions of Section 15.1 of this title, and any subsequent changes to such plans. Joint approval of the President Pro Tempore of the Senate and the Speaker of the House of Representatives shall be required for such plans for space under the

1 management and control of the Legislature and not allocated to a
2 specific house of the Legislature. Such approval shall be in
3 writing.

4 O. Insofar as they are not in conflict with the provisions of
5 this section, the provisions of Section 151 et seq. of this title
6 shall apply to this section.

7 SECTION 637. AMENDATORY Section 2, Chapter 311, O.S.L.
8 2024 (73 O.S. Supp. 2025, Section 402), is amended to read as
9 follows:

10 Section 402. There is hereby created in the State Treasury a
11 revolving fund for the Office of Management and Enterprise Services
12 to be designated the "State Capitol Arch Maintenance Revolving
13 Fund". The fund shall be a continuing fund, not subject to fiscal
14 year limitations, and shall consist of all monies received by the
15 Office of Management and Enterprise Services from appropriations,
16 donations, gifts and bequests by individuals, corporations,
17 organizations, associations and foundations provided for the purpose
18 of maintenance of the State Capitol Arch. All monies accruing to
19 the credit of the fund are hereby appropriated and may be budgeted
20 and expended by the Office of Management and Enterprise Services for
21 the purpose provided for in this section. Expenditures from the
22 fund shall be made upon warrants issued by the State Treasurer
23 against claims filed as prescribed by law with the ~~Director~~ Chief
24

1 Operating Officer of the Office of Management and Enterprise
2 Services for approval and payment.

3 SECTION 638. AMENDATORY Section 1, Chapter 269, O.S.L.
4 2025 (73 O.S. Supp. 2025, Section 403), is amended to read as
5 follows:

6 Section 403. There is hereby created in the State Treasury a
7 revolving fund for the Office of Management and Enterprise Services
8 (OMES) to be designated the "State Capitol Arch Memorial Statue
9 Revolving Fund". The fund shall be a continuing fund, not subject
10 to fiscal year limitations, and shall consist of all monies received
11 by OMES from private donations, gifts, grants, or other sources of
12 private funding provided for the purpose of installing and
13 maintaining veteran memorial statues around the State Capitol Arch.
14 All monies accruing to the credit of the fund are hereby
15 appropriated and may be budgeted and expended by OMES for the
16 purpose provided for in this section. Expenditures from the fund
17 shall be made upon warrants issued by the State Treasurer against
18 claims filed as prescribed by law with the ~~Director~~ Chief Operating
19 Officer of the Office of Management and Enterprise Services for
20 approval and payment.

21 SECTION 639. AMENDATORY 74 O.S. 2021, Section 9.33, is
22 amended to read as follows:

23 Section 9.33. There is created in the State Treasury a
24 revolving fund for the Office of Disability Concerns to be

designated as the "Office of Disability Concerns Revolving Fund".
The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all nonfederal monies received by the Office of Disability Concerns, including receipts, from any state agency or institution, gifts, contributions, donations and bequests. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Office of Disability Concerns to perform duties as prescribed by law. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 640. AMENDATORY Section 1, Chapter 312, O.S.L. 2024 (74 O.S. Supp. 2025, Section 18q-1), is amended to read as follows:

Section 18q-1. A. There is hereby created in the State Treasury a revolving fund for the Office of the Attorney General to be designated the "Federal Overreach and Extraordinary Litigation Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies eligible and designated for deposit by law. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Office of the Attorney General for the purposes of addressing federal overreach. Expenditures from said fund shall be

1 made upon warrants issued by the State Treasurer against claims
2 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
3 of the Office of Management and Enterprise Services for approval and
4 payment.

5 B. For purposes of this section, the term "addressing federal
6 overreach" includes efforts by the Office of the Attorney General
7 related to:

8 1. Duties assigned pursuant to paragraph 24 of subsection A of
9 Section 18b of Title 74 of the Oklahoma Statutes;

10 2. The State Reserved Powers Protection Unit created pursuant
11 to Section 18q of Title 74 of the Oklahoma Statutes; and

12 3. Extraordinary litigation and other expenses related to any
13 of the following: foreign threats, interstate crime, terrorist
14 organizations, gross violations of public trust, and statewide
15 public safety.

16 SECTION 641. AMENDATORY 74 O.S. 2021, Section 19.1, is
17 amended to read as follows:

18 Section 19.1. There is hereby created in the State Treasury a
19 revolving fund for the Office of the Attorney General to be
20 designated the "Attorney General's Law Enforcement Revolving Fund".
21 The fund shall be a continuing fund, not subject to fiscal year
22 limitations, and shall consist of any monies received from the sale
23 of confiscated property, the seizure and forfeiture of confiscated
24 monies, property, gifts, bequests, revises or contributions, public

1 or private, including federal funds unless otherwise provided by
2 federal law or regulation. All monies accruing to the credit of
3 said fund are hereby appropriated and may be budgeted and expended
4 by the Attorney General for the purposes of investigation,
5 enforcement and prosecution of cases involving criminal and
6 forfeiture laws of this state and the United States of America or to
7 match federal grants. Expenditures from said fund shall be made
8 upon warrants issued by the State Treasurer against claims filed as
9 prescribed by law with the ~~Director~~ Chief Operating Officer of the
10 Office of Management and Enterprise Services for approval and
11 payment.

12 SECTION 642. AMENDATORY 74 O.S. 2021, Section 19.3, is
13 amended to read as follows:

14 Section 19.3. There is hereby created in the State Treasury a
15 revolving fund for the Office of the Attorney General, to be
16 designated the "Attorney General's Insurance Fraud Unit Revolving
17 Fund". The fund shall be a continuing fund, not subject to fiscal
18 limitations, and shall consist of any monies designated to the fund
19 by law. All monies accruing to the credit of said fund are hereby
20 appropriated and may be budgeted and expended by the Attorney
21 General for the purposes of investigation, civil action, criminal
22 action, or referral to the district attorney in cases involving
23 suspected insurance fraud. Expenditures from said fund shall be
24 made upon warrants issued by the State Treasurer against claims

1 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
2 of the Office of Management and Enterprise Services for approval and
3 payment.

4 SECTION 643. AMENDATORY 74 O.S. 2021, Section 20, as
5 amended by Section 1, Chapter 138, O.S.L. 2022 (74 O.S. Supp. 2025,
6 Section 20), is amended to read as follows:

7 Section 20. A. The Attorney General shall publish all written
8 opinions which he or she promulgates in connection with the
9 interpretation of the laws of this state in an electronic format
10 that is accessible to the public at no cost. The Attorney General
11 may print the written opinions in bound volumes at his or her
12 discretion.

13 B. The Attorney General may sell any surplus bound volumes and
14 requested individual copies of opinions to help cover the cost of
15 the publication, postal charges and other necessary expenses.
16 Proceeds of such sales shall be deposited into the fund established
17 pursuant to subsection C of this section.

18 C. There is hereby created in the State Treasury a revolving
19 fund for the Attorney General, to be designated the Attorney
20 General's Revolving Fund. The fund shall be a continuing fund, not
21 subject to fiscal year limitations, and shall consist of all monies
22 received from the sale of copies of surplus bound volumes and
23 requested individual copies of opinions and such other monies as are
24 provided for by law. Expenditures from the fund shall be made upon

warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 644. AMENDATORY Section 2, Chapter 394, O.S.L. 2024 (74 O.S. Supp. 2025, Section 20k-1B), is amended to read as follows:

Section 20k-1B. There is hereby created in the State Treasury a revolving fund for the Office of the Attorney General to be designated the "Oklahoma Sheriff's Office Funding Assistance Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies directed to the fund and eligible for deposit by law. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Office of the Attorney General exclusively for the purposes and in compliance with the Oklahoma Sheriff's Office Funding Assistance Grant Program, created in Section 1 of this act. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 645. AMENDATORY 74 O.S. 2021, Section 51.2, as last amended by Section 3, Chapter 257, O.S.L. 2024 (74 O.S. Supp. 2025, Section 51.2), is amended to read as follows:

1 Section 51.2. A. There is hereby created in the State Treasury
2 a revolving fund for the Office of Homeland Security to be
3 designated the "Oklahoma Homeland Security Revolving Fund". The
4 Oklahoma Homeland Security Revolving Fund shall be a continuing
5 fund, not subject to fiscal year limitations and shall consist of
6 monies received by the Office of Homeland Security or the Department
7 of Public Safety from:

8 1. Reimbursements from responsible parties for reasonable
9 actions taken and costs incurred by a regional team in response to
10 an incident or event involving a dangerous substance;

11 2. Reimbursements, grants, or other monies received from other
12 state agencies and entities of state government;

13 3. Reimbursements, grants, or other monies received by the
14 Office of Homeland Security or the Department of Public Safety from
15 the United States government or pursuant to proceedings in district
16 court to enforce claims initiated pursuant to the Oklahoma Homeland
17 Security Act or the Oklahoma Emergency Response Act;

18 4. Gifts, donations, and bequests;

19 5. Monies appropriated or apportioned by the state; and

20 6. Receipts from other ancillary services related to incidents
21 or events related to dangerous substances, not otherwise provided by
22 law.
23
24

B. All monies accruing to the credit of the Oklahoma Homeland Security Revolving Fund are hereby appropriated and may be budgeted and expended by the Office of Homeland Security for:

1. Operating expenses relating to homeland security expenses;

2. Administrative duties in support of homeland security functions;

3. Education and reimbursement for expenses of regional teams, including maintenance of equipment; and

4. Reimbursement, as provided in Section 51.4 of this title, of funeral expenses for any member of the state military forces who died in the line of duty while serving on state active duty, as defined in Section 801 of Title 44 of the Oklahoma Statutes.

C. Expenditures from the Oklahoma Homeland Security Revolving Fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 646. AMENDATORY 74 O.S. 2021, Section 51.2c, as last amended by Section 6, Chapter 257, O.S.L. 2024 (74 O.S. Supp. 2025, Section 51.2c), is amended to read as follows:

Section 51.2c. A. There is hereby created in the State Treasury a revolving fund for the Office of Homeland Security to be designated the "Oklahoma School Security Revolving Fund". The Oklahoma School Security Revolving Fund shall be a continuing fund,

not subject to fiscal year limitations, and shall consist of monies received by the Office of Homeland Security from:

1. Reimbursements, grants, or other monies received from other state agencies and entities of state government for school security;

2. Reimbursements, grants, or other monies received by the Office of Homeland Security from the United States government obligated to school security projects;

3. Gifts, donations, and bequests; and

4. Monies appropriated or apportioned by the state.

B. All monies accruing to the credit of the Oklahoma School Security Revolving Fund are hereby appropriated and may be budgeted and expended by the Office of Homeland Security for the administration of the Oklahoma School Security Grant Program. Contingent upon the availability of funding, the Office of Homeland Security may make grants each year to institutions of higher learning, technology center schools, public schools, and private schools as provided in Section 51.2b of this title.

C. Expenditures from the Oklahoma School Security Revolving Fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 647. AMENDATORY 74 O.S. 2021, Section 61.2, is amended to read as follows:

1 Section 61.2. Whenever the terms "Board of Affairs", "State
2 Board of Public Affairs", "Board" when used in reference to the
3 Board Of Public Affairs, "Office of Public Affairs", or "Department
4 of Central Services" appear in the Oklahoma Statutes they shall mean
5 the Office of Management and Enterprise Services. Whenever the term
6 "Director of Public Affairs" appears in the Oklahoma Statutes it
7 shall mean the ~~Director~~ Chief Operating Officer of the Office of
8 Management and Enterprise Services. Whenever the term "Director of
9 Central Services" appears in the Oklahoma Statutes it shall mean the
10 ~~Director~~ Chief Operating Officer of the Office of Management and
11 Enterprise Services or designee.

12 SECTION 648. AMENDATORY 74 O.S. 2021, Section 61.3, is
13 amended to read as follows:

14 Section 61.3. The ~~Director~~ Chief Operating Officer of the
15 Office of Management and Enterprise Services, with the approval of
16 the Governor, shall employ and make the appointment of such experts
17 and assistants as may be necessary in the performance of the
18 ~~Director's~~ Chief Operating Officer's duties as required by law. No
19 appointments to positions shall be made in excess of the positions
20 authorized by act of the Legislature for the Office of Management
21 and Enterprise Services.

22 SECTION 649. AMENDATORY 74 O.S. 2021, Section 61.4, is
23 amended to read as follows:

1 Section 61.4. The ~~Director~~ Chief Operating Officer of the
2 Office of Management and Enterprise Services shall employ an
3 attorney and one assistant attorney to serve as legal counsel for
4 the Office of Management and Enterprise Services. The attorney and
5 one assistant attorney shall be authorized to appear for and
6 represent the Office of Management and Enterprise Services in all
7 litigation that may arise from the discharge of its duties, except
8 as otherwise provided in this section, and shall advise it upon all
9 legal matters pertaining to the Office of Management and Enterprise
10 Services. The salary for the attorney and the assistant attorney
11 shall be fixed by the ~~Director~~ Chief Operating Officer. Any
12 litigation concerning the Comprehensive Professional Risk Management
13 Program of the Office of Management and Enterprise Services shall be
14 handled by the Attorney General of the State of Oklahoma; provided,
15 the ~~Director~~ Chief Operating Officer of the Office of Management and
16 Enterprise Services may employ private attorneys to handle any
17 litigation which involves entities covered by the Comprehensive
18 Professional Risk Management Program which are not state agencies.
19 The attorney, the assistant attorney and, in addition, the Attorney
20 General, are further authorized to appear for and represent officers
21 and employees of the Office of Management and Enterprise Services in
22 any civil suits brought against such officers and employees in their
23 individual capacities upon alleged causes of action which arose from
24

1 acts or omissions of such officers and employees within the scope of
2 their official duties.

3 SECTION 650. AMENDATORY 74 O.S. 2021, Section 61.8, as
4 amended by Section 1, Chapter 194, O.S.L. 2025 (74 O.S. Supp. 2025,
5 Section 61.8), is amended to read as follows:

6 Section 61.8. A. The Long-Range Capital Planning Commission
7 shall work to decrease the amount of property owned by Oklahoma
8 state government, return state-owned property to private sector
9 ownership, better maintain and utilize the state's needed capital
10 assets, and, whenever possible, eliminate the practice of state
11 agencies leasing real property not owned by the state.

12 B. Each year, the ~~Director~~ Chief Operating Officer of the
13 Office of Management and Enterprise Services, at the direction of
14 the Long-Range Capital Planning Commission, shall take action to
15 approve the privatization of state-owned real property as identified
16 pursuant to the Oklahoma State Government Asset Reduction and Cost
17 Savings Program. Proceeds from the liquidation of real properties
18 shall be deposited into the Maintenance of State Buildings Revolving
19 Fund.

20 C. Prior to entering into or renewing a lease for real
21 property, each state agency, board, commission, and public trust
22 having the state as a beneficiary shall receive approval for
23 entering into the lease from the Office of Management and Enterprise
24 Services.

1 D. Prior to making a purchase of real property or constructing
2 a building, each state agency, board, commission, and public trust
3 having the state as a beneficiary shall receive approval for the
4 purchase or construction from the ~~Director~~ Chief Operating Officer
5 of the Office of Management and Enterprise Services; provided, if
6 such purchase or construction is deemed by the ~~Director~~ Chief
7 Operating Officer of the Office of Management and Enterprise
8 Services to be within the authority of the Long-Range Capital
9 Planning Commission, the ~~Director~~ Chief Operating Officer shall not
10 approve the purchase or construction and shall refer the request to
11 the Commission for action.

12 E. Prior to approval or referral pursuant to subsection C or D
13 of this section, the Office of Management and Enterprise Services
14 shall determine if the applicant entity can utilize already existing
15 state-owned real property as an alternative to leasing non-state-
16 owned real property or purchasing or constructing new real property.
17 If such existing state-owned real property is owned by the Oklahoma
18 Historical Society, is listed on the National Register of Historic
19 Places or with the National Trust for Historic Preservation, or is
20 potentially of historical significance, the Office of Management and
21 Enterprise Services shall notify the Oklahoma Historical Society and
22 obtain its approval prior to approving an application for its reuse.

23 F. No state agency, board, commission, or public trust having
24 the state as its beneficiary shall transfer any real property owned

1 by the agency, board, commission, or trust to any other state
2 agency, board, commission, state beneficiary trust, or any public or
3 private entity unless the transfer is first approved by the Long-
4 Range Capital Planning Commission. Any transfer made without the
5 prior approval of the Long-Range Capital Planning Commission as
6 required by this subsection may be reversed by the Long-Range
7 Capital Planning Commission and if a transfer is reversed the
8 agency, board, commission, state beneficiary trust, or other state
9 government entity to which the real property has been impermissibly
10 transferred shall take such actions to convey the subject property
11 to the entity from which the asset was acquired not later than
12 thirty (30) days from the date an order for such transfer is entered
13 by the Long-Range Capital Planning Commission. The Commission shall
14 not approve any transfer unless proceeds from the sale shall be
15 deposited within the Maintenance of State Buildings Revolving Fund
16 as established by Section 908 of Title 62 of the Oklahoma Statutes.

17 G. By February 1 of each year, the Office of Management and
18 Enterprise Services shall publish a report for the preceding
19 calendar year listing the parcels of previously state-owned property
20 sold, detailing the reduction in the amount of space leased by the
21 state, describing the source of funds and expenditures from the
22 Maintenance of State Buildings Revolving Fund, and showing the
23 manner in which deferred maintenance needs are being met. The
24 report shall be provided to the Governor, Speaker of the House of

Representatives, and President Pro Tempore of the Senate and placed on the documents.ok.gov web portal.

H. This section shall not be applicable to the following or their lands, properties, buildings, funds, or revenue:

1. The Oklahoma Ordnance Works Authority;
2. The Commissioners of the Land Office;
3. The Department of Transportation;
4. The Oklahoma Turnpike Authority; and
5. The Grand River Dam Authority.

I. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services may make recommendations to the Long-Range Capital Planning Commission for liquidation of underutilized properties that have environmental issues, create a liability for the state, or create expenses that make the continued ownership of the underutilized property undesirable and the property has been offered through two public auctions or sealed bids and no viable bids were received. If the Long-Range Capital Planning Commission approves the liquidation of the property, the Office of Management and Enterprise Services may accept a bid of less than ninety percent (90%) of the appraised value in accordance with Section 327 of Title 61 of the Oklahoma Statutes.

SECTION 651. AMENDATORY 74 O.S. 2021, Section 62.2, is amended to read as follows:

Section 62.2. For purposes of the Oklahoma Surplus Property Act:

1. "Authorized entity" means a political subdivision, school, a multipurpose senior citizen center, as such term is defined in the federal Older Americans Act of 1965, group or organization eligible to acquire surplus property from a surplus property program;

2. "Surplus property" means items, commodities, materials, supplies or equipment a state agency owns and determines to be excess, obsolete, antiquated, unused or not needed;

3. "State agency" means any state board, bureau, commission, department, authority, public trust, interstate commission, the Judiciary, the Legislature, and the Office of the Governor;

4. "Office" means the Office of Management and Enterprise Services;

5. "~~Director~~ Chief Operating Officer" means the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services;

6. "Surplus property program" means programs the ~~Director~~ Chief Operating Officer establishes for the purchase, sale and disposal of surplus property;

7. "Sale" means methods the ~~Director~~ Chief Operating Officer uses to dispose of surplus property; and

1 8. "Minimal value" or "no value" means surplus property that
2 has less value than the costs the Office may incur to sell, trade or
3 dispose of the surplus property.

4 SECTION 652. AMENDATORY 74 O.S. 2021, Section 62.3, as
5 amended by Section 1, Chapter 384, O.S.L. 2025 (74 O.S. Supp. 2025,
6 Section 62.3), is amended to read as follows:

7 Section 62.3. A. The ~~Director~~ Chief Operating Officer of the
8 Office of Management and Enterprise Services shall promulgate rules
9 for use by state agencies and the Office of Management and
10 Enterprise Services to dispose of surplus property. The rules shall
11 include standards for recordkeeping, methods for removal or disposal
12 of surplus property, and acquisition by state agencies and
13 authorized entities of surplus property, and for Office management
14 of surplus property programs.

15 B. A state agency selling, trading, redistributing or otherwise
16 disposing of surplus property shall comply with the rules
17 promulgated by the ~~Director~~ Chief Operating Officer.

18 C. The Office shall make surplus property available to state
19 agencies and authorized entities, which shall include political
20 subdivisions, school districts, and nonprofit entities of this
21 state.

22 D. The provisions of the Oklahoma Surplus Property Act shall
23 not apply to institutions of higher education in this state, the
24 Oklahoma Historical Society, the University Hospitals Authority or

1 University Hospitals Trust or the Northeast Oklahoma Public
2 Facilities Authority. The Grand River Dam Authority shall be exempt
3 from the provisions of the Oklahoma Surplus Property Act for any
4 surplus property disposed of prior to November 1, 2006. CompSource
5 Oklahoma shall be exempt from the provisions of the Oklahoma Surplus
6 Property Act if CompSource Oklahoma is operating pursuant to a pilot
7 program authorized by Sections 3316 and 3317 of this title.

8 E. Notwithstanding the provisions of the Oklahoma Surplus
9 Property Act, the Oklahoma State Bureau of Investigation may,
10 pursuant to rules promulgated by the Oklahoma State Bureau of
11 Investigation Commission for that purpose, donate any surplus
12 property, as defined in Section 62.2 of this title, to any law
13 enforcement agency of any political subdivision of the State of
14 Oklahoma. The use of such donated equipment shall be limited to
15 valid and authorized law enforcement efforts by the receiving
16 agency.

17 F. Notwithstanding the provisions of the Oklahoma Surplus
18 Property Act, the Oklahoma Highway Patrol may, pursuant to rules
19 promulgated by the ~~Director~~ Chief Operating Officer of the Office of
20 Management and Enterprise Services, donate surplus Oklahoma Highway
21 Patrol vehicles driven over ninety thousand (90,000) miles to any
22 law enforcement agency of any political subdivision of the State of
23 Oklahoma in a county with a population of no more than one hundred
24 thousand (100,000) residents. The use of such donated vehicles

shall be limited to valid and authorized law enforcement efforts by the receiving agency.

SECTION 653. AMENDATORY 74 O.S. 2021, Section 63, as amended by Section 7, Chapter 199, O.S.L. 2025 (74 O.S. Supp. 2025, Section 63), is amended to read as follows:

Section 63. A. The Office of Management and Enterprise Services shall have power to promulgate rules not inconsistent with the laws of this state.

B. The Office of Management and Enterprise Services shall have charge of the construction, repair, maintenance, insurance, and operation of all buildings owned, used, or occupied by or on behalf of the state including buildings owned by the Oklahoma Capitol Improvement Authority where such services are carried out by contract with the Authority, except as otherwise provided by law. Whenever feasible, the Office of Management and Enterprise Services may utilize the Construction Division of the Department of Corrections for the construction and repair of buildings for the Department of Corrections.

C. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services shall have authority to purchase all material and perform all other duties necessary in the construction, repair, and maintenance of all buildings under its management or control, shall make all necessary contracts by or on behalf of the state for any buildings or rooms rented for the use of

1 the state or any of the officers thereof, and shall have charge of
2 the arrangement and allotment of space in such buildings among the
3 different state officers except as otherwise provided by law.

4 D. The Office of Management and Enterprise Services shall not
5 have any authority or responsibility for buildings, rooms or space
6 under the management or control of the University Hospitals
7 Authority.

8 E. The Office of Management and Enterprise Services shall have
9 the custody and control of all state property, and all other
10 property managed or used by the state, except military stores and
11 such property under the control of the State Banking Department and
12 the two houses of the State Legislature, shall procure all necessary
13 insurance thereon against loss and shall allot the use of the
14 property to the several offices of the state, and prescribe where
15 the property shall be kept for public use.

16 F. The Office of Management and Enterprise Services shall keep
17 an accurate account of all property purchased for the state or any
18 of the departments or officers thereof, except that purchased for
19 and by the two houses of the State Legislature. The two houses
20 shall have the exclusive use, care, and custody of their respective
21 chambers, committee rooms, furniture, and property, and shall keep
22 their respective records of said furniture and property.

23 G. The Office of Management and Enterprise Services shall not
24 have any authority or responsibility for property purchased for or

under the management or control of the University Hospitals Authority except as expressly provided by law.

SECTION 654. AMENDATORY 74 O.S. 2021, Section 63.1, is amended to read as follows:

Section 63.1. There is hereby created in the State Treasury, a revolving fund for the Office of Management and Enterprise Services to be designated the "Building and Facility Revolving Fund". The fund shall be a continuing fund not subject to fiscal year limitations and shall consist of all operation and maintenance charges paid to the Office by occupying agencies of the buildings operated and maintained by the Office. Monies accruing to the fund may be expended by the Office of Management and Enterprise Services for operation and maintenance of the facilities and expenses the Office incurs to support building and facilities operations. Expenditures from the fund shall be made on warrants issued by the State Treasurer against claims filed with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 655. AMENDATORY 74 O.S. 2021, Section 63.1a, is amended to read as follows:

Section 63.1a. There is hereby created a petty cash fund for the Office of Management and Enterprise Services. Said fund shall be used as an imprest cash fund for the Building Management Division.

1 The amount of the Building Management petty cash fund shall not
2 exceed Two Hundred Fifty Dollars (\$250.00) and the initial amount
3 shall be drawn by warrant from the Building and Facility Fund. The
4 ~~Director~~ Chief Operating Officer of the Office of Management and
5 Enterprise Services is authorized to prescribe forms, systems and
6 procedures for the administration of the Building Management petty
7 cash fund.

8 SECTION 656. AMENDATORY 74 O.S. 2021, Section 63.2, is
9 amended to read as follows:

10 Section 63.2. There is hereby created in the State Treasury a
11 revolving fund for the Office of Management and Enterprise Services,
12 to be designated the "Asbestos Abatement Revolving Fund". The fund
13 shall be a continuing fund, not subject to fiscal year limitations,
14 and shall consist of any monies paid to the Office of Management and
15 Enterprise Services for reimbursement of expenses for abatement of
16 asbestos hazards. All monies accruing to the credit of said fund
17 are hereby appropriated and may be budgeted and expended by the
18 Office of Management and Enterprise Services to perform the duties
19 of the Asbestos Abatement Division of the Office of Management and
20 Enterprise Services. Expenditures from said fund shall be made upon
21 warrants issued by the State Treasurer against claims filed as
22 prescribed by law with the ~~Director~~ Chief Operating Officer of the
23 Office of Management and Enterprise Services for approval and
24 payment.

SECTION 657. AMENDATORY 74 O.S. 2021, Section 63.4, is amended to read as follows:

Section 63.4. There is hereby created a petty cash fund for the Office of Management and Enterprise Services to be used for the State Surplus Auctions in the Property Reutilization Division.

The amount of the State Surplus Auction petty cash fund shall not exceed Two Hundred Fifty Dollars (\$250.00), and the initial amount shall be drawn by warrant from the State Surplus Property Revolving Fund. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services is authorized to prescribe forms, systems and procedures for the administration of the State Surplus Auction petty cash fund.

SECTION 658. AMENDATORY 74 O.S. 2021, Section 66, is amended to read as follows:

Section 66. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services is prohibited from engaging in any other business for compensation for personal services during the time of service as ~~Director~~ Chief Operating Officer. No contract shall be entered into by said ~~Director~~ Chief Operating Officer with any firm or corporation in which said ~~Director~~ Chief Operating Officer shall have any interest or shall be a stockholder, nor with any relative of said ~~Director~~ Chief Operating Officer either by blood or marriage within the third degree.

SECTION 659. AMENDATORY 74 O.S. 2021, Section 72, is amended to read as follows:

Section 72. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services and the Warden of the State Reformatory are authorized and directed to furnish to the said Oklahoma Historical Society and associated organizations such monuments and markers of granite as may be desired and ordered or requisitioned for the purposes pursuant to the provisions of this section at prices not exceeding the cost of production and delivery, which includes: Quarrying, squaring, facing, lettering prescribed inscriptions, crating, and delivering to the railway or other carrier.

SECTION 660. AMENDATORY 74 O.S. 2021, Section 75, is amended to read as follows:

Section 75. The Office of Management and Enterprise Services is hereby authorized to establish a revolving fund to be designated as the "Capitol Cafeteria Revolving Fund". The said fund may be used for the operation of cafeterias and other food service in state buildings in the State Capitol area and for acquisition of new equipment and furnishings and for maintenance, repair, and replacement of existing equipment and furnishings used in connection with the operation of such Capitol Cafeterias or food service. Said revolving fund shall consist of all revenues accruing through the operation of said cafeterias or food service or paid as rental to

1 the Office of Management and Enterprise Services by any operator-
2 lessee of such Capitol Cafeterias or food service facilities.
3 Expenditures from said revolving fund shall be made pursuant to
4 general laws for the purposes set forth in this section. Warrants
5 for said expenditures shall be drawn by the State Treasurer, based
6 on claims signed and approved for payment by the ~~Director~~ Chief
7 Operating Officer of the Office of Management and Enterprise
8 Services or his designee.

9 SECTION 661. AMENDATORY 74 O.S. 2021, Section 75a, is
10 amended to read as follows:

11 Section 75a. A. All cash on hand or available in the Capitol
12 cafeterias on the effective date of this act shall be deposited to
13 the Capitol Cafeteria Revolving Fund.

14 B. There is hereby created a petty cash fund for the Office of
15 Management and Enterprise Services. Said fund shall be used as a
16 cash drawer change fund for the Capitol cafeterias.

17 C. The amount of the Capitol cafeteria's petty cash fund shall
18 not exceed Two Thousand Dollars (\$2,000.00) and the initial amount
19 shall be drawn by warrant from the Capitol Cafeteria Revolving Fund.
20 Any adjustment to the amount retained in the Capitol cafeteria's
21 petty cash fund shall be by withdrawal and deposit to the Capitol
22 Cafeteria Revolving Fund. Purchases from the Capitol cafeteria's
23 petty cash fund are prohibited. The ~~Director~~ Chief Operating
24 Officer of the Office of Management and Enterprise Services is

1 authorized to prescribe forms, systems and procedures for the
2 administration of the Capitol cafeteria's petty cash fund.

3 SECTION 662. AMENDATORY 74 O.S. 2021, Section 76, is
4 amended to read as follows:

5 Section 76. The Office of Management and Enterprise Services is
6 authorized to initiate and operate a mailing service for the
7 agencies and departments of the state located in Oklahoma City. The
8 ~~Director~~ Chief Operating Officer of the Office of Management and
9 Enterprise Services shall promulgate and adopt such reasonable rules
10 and regulations as may be necessary for the efficient and economical
11 operation of a clearinghouse for interagency communications and for
12 the deposit of the state's mail with the United States Post Office.
13 The Office shall have the authority to employ such personnel and to
14 purchase and acquire such equipment, materials, and supplies as may
15 be necessary to carry out the provisions of Sections 76 through 76b
16 of this title. Every agency and department of the state located in
17 Oklahoma City shall be required to participate in the mailing
18 service, except the Department of Human Services, the Commission for
19 Human Services, the Oklahoma Tax Commission, the University of
20 Oklahoma Medical Center, the Oklahoma Employment Security
21 Commission, the Oklahoma Legislature, the Oklahoma Medical Center,
22 and the State Department of Health located in the Oklahoma Health
23 Sciences Center.

SECTION 663. AMENDATORY 74 O.S. 2021, Section 76b, is amended to read as follows:

Section 76b. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services shall furnish to the Governor and the Legislature at the close of each fiscal year a statement showing the financial condition of the mailing service, and such other information regarding the mailing service as may be necessary for a proper understanding thereof.

SECTION 664. AMENDATORY 74 O.S. 2021, Section 76c, is amended to read as follows:

Section 76c. There is hereby created in the State Treasury a revolving fund for the Office of Management and Enterprise Services, to be designated the "Postal Services Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Office of Management and Enterprise Services for providing postal services. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended to provide postal and interagency mail services and expenses the Office of Management and Enterprise Services incurs to support postal services operations. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 665. AMENDATORY 74 O.S. 2021, Section 77c, is amended to read as follows:

Section 77c. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services is hereby authorized to negotiate with the board of county commissioners, Pontotoc County, Oklahoma, to exchange surplus Department of Transportation buildings and properties presently owned by the Office of Management and Enterprise Services for property and machinery owned by the Pontotoc County Commissioners, for the purpose of servicing the East Central Oklahoma Health Social Services Center at Ada.

SECTION 666. AMENDATORY 74 O.S. 2021, Section 78, as amended by Section 1, Chapter 351, O.S.L. 2023 (74 O.S. Supp. 2025, Section 78), is amended to read as follows:

Section 78. A. There is hereby created and established within the Office of Management and Enterprise Services, the Fleet Management Division. The Division shall provide oversight of and advice to state agencies that own, operate and utilize motor vehicles. All agencies shall be subject to Fleet Management Division reporting requirements. The following agencies are exempt from Fleet Management Division oversight and advice, but are still subject to required reporting from Fleet Management Division to provide full transparency of the statewide fleet: Department of Public Safety, the Department of Transportation, the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control, the Military

1 Department of the State of Oklahoma, the Oklahoma State Bureau of
2 Investigation, the Commissioners of the Land Office and The Oklahoma
3 State System of Higher Education.

4 B. The ~~Director~~ Chief Operating Officer of the Office of
5 Management and Enterprise Services shall:

6 1. Appoint and fix duties and compensation for a Fleet Manager
7 who shall serve as the administrative head of the division;

8 2. Hire personnel as necessary to provide fleet services;

9 3. Acquire facilities to maintain vehicles;

10 4. Promulgate rules for efficient and economical operations to
11 provide fleet services; and

12 5. Report to the Governor, Speaker of the House of
13 Representatives, and President Pro Tempore of the Senate those
14 agencies that fail to comply with the provisions of law and the
15 rules of the Fleet Management Division regarding submission of
16 reports, vehicle use, and vehicle maintenance.

17 C. The rules shall include provisions to:

18 1. Establish uniform written vehicle acquisition, leasing,
19 maintenance, repairs, and disposal standards for use by all state
20 agencies to justify actual need for vehicles;

21 2. Establish standards for routine vehicle inspection and
22 maintenance;

23 3. Provide standards and forms for recordkeeping of fleet
24 operation, maintenance, and repair costs for mandatory use by all

1 state agencies to report the data to the Fleet Management Division
2 on a monthly basis;

3 4. Provide standards and utilize methods for disposal of
4 vehicles pursuant to the Oklahoma Surplus Property Act and any other
5 applicable state laws;

6 5. Establish mandatory maintenance contracts throughout the
7 state for all agencies to access for vehicle repairs and service at
8 discounted rates and parts;

9 6. Require all agencies with in-house repair and service
10 facilities to assign a value to the preventive maintenance services,
11 track those services with a dollar value, and report costs to the
12 Fleet Manager for the prior month no later than the twentieth day
13 following the close of each month;

14 7. Promulgate rules requiring all state-owned motor vehicles to
15 be marked in a uniform, highly visible manner, except for certain
16 vehicles driven by law enforcement agencies or other agencies
17 requiring confidentiality;

18 8. Require agencies to produce and maintain written
19 justification for any vehicle that travels fewer than twelve
20 thousand (12,000) miles annually and report to the Fleet Manager
21 such information by October 1 of each year; and

22 9. Address any other matter or practice which relates to the
23 responsibilities of the ~~Director~~ Chief Operating Officer of the
24 Office of Management and Enterprise Services.

D. The Fleet Manager shall:

1. Develop specifications for contracts for vehicle maintenance for state vehicles not serviced or maintained by state agencies;

2. Conduct on-site inspections to verify state agency or supplier compliance with Division standards for inspections, maintenance and recordkeeping;

3. Assess state agency needs for vehicles and types of vehicles;

4. Assign, transfer or lease vehicles to a state agency to meet the needs of the state agency;

5. Unless otherwise provided by law, determine whether a state agency may use or operate a vehicle without state identifying markings, bearing a license plate used by a privately owned vehicle to perform the duties of the state agency without hindrance;

6. Report to the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services occurrences of agencies failing to comply with the provisions of law and the rules of the Fleet Management Division regarding submission of reports, vehicle use, and vehicle maintenance;

7. Offer guidelines to agencies to assist in determining the most cost-effective and reasonable modes of travel for single trips from the following options: state vehicle, private rental, or mileage reimbursement; and

1 8. Provide, upon the request of the Governor, the President Pro
2 Tempore of the Senate or the Speaker of the House of
3 Representatives, reports from data the Fleet Manager collects.

4 E. The ~~Director~~ Chief Operating Officer of the Office of
5 Management and Enterprise Services may enter into agreements with
6 any political subdivision of this state for the purpose of providing
7 fleet services established by the Fleet Management Division pursuant
8 to this section and rules promulgated pursuant to this section.

9 F. The ~~Director~~ Chief Operating Officer of the Office of
10 Management and Enterprise Services, through the Fleet Management
11 Division, may enter into partnership agreements with political
12 subdivisions and private entities for the purposes of applying for,
13 participating in, and administering federal grant funds. The
14 partnership agreements and activities authorized in this subsection
15 are hereby declared to be a public purpose.

16 G. The Office may offer public access to alternative fueling
17 infrastructure owned and operated by the Office in areas of the
18 state in which access to an alternative fueling infrastructure is
19 not readily available to the public. The Office shall cease
20 allowing public access to an alternative fueling infrastructure
21 operated by the Office if a privately owned alternative fueling
22 infrastructure locates within a five-mile radius of the
23 infrastructure operated by the Department.

24 H. When used in relation to the Fleet Management Division:

1 1. "Alternative fueling infrastructure" shall mean a fill
2 station or charge station used to deliver or provide alternative
3 fuels as defined in Section 130.2 of this title; and

4 2. "Alternative fuel vehicle" shall mean a motor vehicle
5 originally designed by the manufacturer to operate lawfully and
6 principally on streets and highways which is propelled by an
7 alternative fuel as defined in Section 130.2 of this title.

8
9 SECTION 667. AMENDATORY 74 O.S. 2021, Section 78a, as
10 amended by Section 8, Chapter 199, O.S.L. 2025 (74 O.S. Supp. 2025,
11 Section 78a), is amended to read as follows:

12 Section 78a. A. State agencies with authority to own motor
13 vehicles shall submit a requisition to the ~~Director~~ Chief Operating
14 Officer of the Office of Management and Enterprise Services prior to
15 acquisition of a motor vehicle. The requisition shall state the
16 type of vehicle, the intended purpose of the vehicle, a statement
17 that the agency has actual need for the vehicle, the supplier of the
18 vehicle, that the state agency has sufficient funds to acquire and
19 maintain the vehicle and cite the statutory authority of the state
20 agency to acquire a vehicle.

21 B. The ~~Director~~ Chief Operating Officer of the Office of
22 Management and Enterprise Services shall review the requisition and
23 approve or deny the request of the state agency within fifteen (15)
24 days of receipt.

1 C. The provisions of subsections A and B of this section shall
2 not apply to the Department of Public Safety, the Commissioners of
3 the Land Office, the Oklahoma State Bureau of Narcotics and
4 Dangerous Drugs Control or the Oklahoma Military Department.

5 SECTION 668. AMENDATORY 74 O.S. 2021, Section 85.3, as
6 amended by Section 1, Chapter 136, O.S.L. 2024 (74 O.S. Supp. 2025,
7 Section 85.3), is amended to read as follows:

8 Section 85.3. A. There is hereby created and established in
9 the Office of Management and Enterprise Services a Purchasing
10 Division, the administrative head of which shall be the State
11 Purchasing Director.

12 B. The ~~Director~~ Chief Operating Officer of the Office of
13 Management and Enterprise Services shall hire the State Purchasing
14 Director. The State Purchasing Director shall:

15 1. Have a thorough knowledge of office practices and buying
16 procedures in volume purchasing; and

17 2. Be a graduate of an accredited college or university with at
18 least five (5) years' experience in commercial or governmental
19 purchasing, or, in lieu of such education, have at least ten (10)
20 years' experience in commercial or governmental purchasing.

21 C. The State Purchasing Director, with the approval of the
22 ~~Director~~ Chief Operating Officer of the Office of Management and
23 Enterprise Services, may employ such personnel as may be necessary
24

1 to exercise authority and perform duties under the Oklahoma Central
2 Purchasing Act.

3 D. All activities of any state agency, department, or
4 institution relating to purchasing shall be under the direction of
5 the Purchasing Division unless otherwise provided by the Oklahoma
6 Central Purchasing Act.

7 E. The Purchasing Division shall provide qualified personnel to
8 assist the purchasing activities of state agencies, departments, and
9 institutions, as required by the Oklahoma Central Purchasing Act.

10 F. Each state agency, department, and institution shall
11 designate personnel to coordinate its purchasing functions with the
12 Purchasing Division.

13 G. The Purchasing Division may, if the needs of a state agency,
14 department, or institution are such as to so require, employ, and
15 establish a buyer within a state agency. The state agency shall pay
16 all expenses incurred for any buyer required to be placed within its
17 agency.

18 H. Except as provided in Section 34.36 of Title 62 of the
19 Oklahoma Statutes, no state agency subject to the Oklahoma Central
20 Purchasing Act shall have or maintain a purchasing section without
21 the prior approval in writing of the Purchasing Division unless
22 otherwise provided in the Oklahoma Central Purchasing Act nor shall
23 such purchasing section perform purchasing functions for another
24 state agency.

1 I. The Purchasing Division shall make acquisitions from
2 industries operated by the Department of Corrections pursuant to the
3 provisions of Section 549.1 of Title 57 of the Oklahoma Statutes.

4 J. None of the personnel authorized by this section shall:

5 1. Sell to or otherwise provide acquisitions to any state
6 agency subject to the Oklahoma Central Purchasing Act;

7 2. Be employees, partners, associates, officers, or
8 stockholders in or with any business entity that sells to or
9 otherwise provides acquisitions to any state agency subject to the
10 Oklahoma Central Purchasing Act;

11 3. Be employed in any of the positions authorized by this
12 section if a spouse or child owns any stock in any business entity
13 which sells to or otherwise provides acquisitions to any agency
14 subject to the Oklahoma Central Purchasing Act;

15 4. Be employed in any of the positions authorized by this
16 section if a relative within the third degree of consanguinity or
17 affinity sells to or otherwise provides acquisitions to any state
18 agency subject to the Oklahoma Central Purchasing Act or is
19 interested in any business entity which does so, except that such
20 relative, excluding a spouse or child, may own Twenty-five Thousand
21 Dollars (\$25,000.00) worth or less, or one percent (1%) or less,
22 whichever amount is the lesser amount, of the stock of a corporation
23 or any business entity which sells to or otherwise provides
24

1 acquisitions to any state agency subject to the Oklahoma Central
2 Purchasing Act; or

3 5. Violate applicable rules of the Ethics Commission
4 promulgated pursuant to Article XXIX of the Oklahoma Constitution
5 that relate to accepting gifts from a vendor or a vendor's agent.

6 K. Any state agency, department, institution, or satellite
7 office thereof that is otherwise subject to the provisions of the
8 Oklahoma Central Purchasing Act, but is located in a county without
9 statewide contracted vendors, may elect to purchase necessary
10 equipment and supplies from a local business at or below state
11 contract pricing without first obtaining a waiver from or the
12 permission of the Purchasing Division after seventy-two (72) hours
13 from providing written or electronic notice to the Central
14 Purchasing Director of said purchase in an amount not to exceed Two
15 Thousand Five Hundred Dollars (\$2,500.00). Any state agency that
16 elects to make purchases from local vendors pursuant to this
17 subsection shall maintain a document file for each acquisition the
18 state agency makes, which shall include, at a minimum, justification
19 for the acquisition, supporting documentation, copies of all
20 contracts, if any, pertaining to the acquisition, evaluations,
21 written reports, if required by contract, and any other information
22 the State Purchasing Director requires.

SECTION 669. AMENDATORY 74 O.S. 2021, Section 85.5, as amended by Section 1, Chapter 102, O.S.L. 2024 (74 O.S. Supp. 2025, Section 85.5), is amended to read as follows:

Section 85.5. A. Except as otherwise provided in this section, the State Purchasing Director, under the supervision of the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services, shall have sole and exclusive authority and responsibility for all acquisitions by state agencies. In order to carry out the powers and duties of the Chief Information Officer and the Information Services Division, the Chief Information Officer shall have sole and exclusive authority and responsibility for all acquisitions of information and telecommunications technology, equipment, software, products and related peripherals and services by state agencies. Public construction contracts are awarded pursuant to Title 61 of the Oklahoma Statutes and are not subject to the Oklahoma Central Purchasing Act.

B. Every state agency shall determine its own quantitative needs for acquisitions and the general class or nature of the acquisitions. The State Purchasing Director, after consultation with the requisitioning state agency, shall have authority to determine the particular brand, model or other specific classification of each acquisition and to draft or invoke pursuant to the Oklahoma Central Purchasing Act specifications establishing the requirements for all necessary contracts or purchase orders.

1 C. The ~~Director~~ Chief Operating Officer of the Office of
2 Management and Enterprise Services shall have authority and
3 responsibility to promulgate rules in connection with provisions of
4 the Oklahoma Central Purchasing Act for:

5 1. The time, manner, authentication and form of making
6 requisitions for acquisitions;

7 2. Inspection, analysis and testing of acquisitions or samples
8 bidders submit prior to contract award;

9 3. The form and manner of submission for bids or proposals a
10 bidder submits and the manner of accepting and opening bids or
11 proposals;

12 4. The conditions under which the Office of Management and
13 Enterprise Services shall require written contracts for
14 acquisitions, the conditions under which acquisitions may be made on
15 an open account basis, and the conditions and manner of negotiating
16 such contracts;

17 5. Obtaining acquisitions produced by state institutions;

18 6. Conditions under which any of the rules herein authorized
19 may be waived;

20 7. The amounts of and deposits on any bond or other surety
21 required to be submitted with a bid or contract for the furnishing
22 of acquisitions and the conditions under which such bond or other
23 surety shall be required;

1 8. The manner and conditions of delivery, which shall include
2 the designation of the common carrier of property to be used to
3 transport acquisitions whenever a common carrier is used, and the
4 acceptance, or rejection, including check of quantities, of any
5 acquisitions;

6 9. The form of any estimate, order or other information
7 required in connection with an acquisition;

8 10. State agency acquisitions not exceeding the acquisition
9 threshold amount requiring competitive bid to ensure
10 competitiveness, fairness, compliance with the Oklahoma Central
11 Purchasing Act and Section 3001 et seq. of this title, which relates
12 to the State Use Committee. The rules shall include separate
13 provisions based on acquisition amounts as follows:

14 a. state agencies shall make acquisitions not exceeding
15 Twenty-five Thousand Dollars (\$25,000.00), provided
16 the acquisition process is fair and reasonable and is
17 conducted pursuant to rules authorized pursuant to
18 this section, and

19 b. state agencies with certified procurement officers and
20 internal purchasing procedures found compliant by the
21 State Purchasing Director may make acquisitions in
22 excess of the fair and reasonable acquisition
23 threshold amount provided for in this section and not
24 exceeding Two Hundred Fifty Thousand Dollars

1 (\$250,000.00), pursuant to rules authorized by this
2 section;

3 11. Training by the State Purchasing Director of state agency
4 procurement officers;

5 12. Review and audit by the State Purchasing Director of state
6 agency acquisitions;

7 13. The conditions for increasing acquisition limits for state
8 agencies which have had a prior reduction in acquisition limit by
9 the ~~Director~~ Chief Operating Officer of the Office of Management and
10 Enterprise Services;

11 14. Use of a state purchase card to make acquisitions;

12 15. Any other matter or practice which relates to the
13 responsibilities of the State Purchasing Director;

14 16. Conditions for determination and authorization of
15 acquisition threshold amounts of state agencies;

16 17. The form and manner of verification by suppliers that the
17 supplier is eligible to do business in the State of Oklahoma and has
18 obtained all necessary permits and licenses, pursuant to applicable
19 provisions of law; and

20 18. Payment procedure rules for state agencies to adhere to
21 regarding statewide contracts.

22 D. The State Purchasing Director shall provide training for
23 state agency procurement officials, and other procurement staff, and
24 is authorized to require retraining of such procurement personnel

found not to be in compliance with provisions of the Oklahoma Central Purchasing Act or associated rules. The training may include any matters related to state procurement practices. State agency purchasing officials that demonstrate proficiency shall be certified as "certified procurement officers" by the State Purchasing Director and shall be authorized to make acquisitions pursuant to provisions of the Oklahoma Central Purchasing Act and associated rules. The State Purchasing Director may assess a fee to state agencies for the training that does not exceed each state agency's pro rata share of the costs the State Purchasing Director incurs to provide the training.

E. The State Purchasing Director shall review state agency acquisitions for the purposes of:

1. Ensuring state agency compliance with provisions of the Oklahoma Central Purchasing Act;

2. Ensuring state agency compliance with rules promulgated by the Office of Management and Enterprise Services pursuant to the Oklahoma Central Purchasing Act;

3. Ensuring state agency compliance with provisions of Section 3001 et seq. of this title pertaining to the State Use Committee;

4. Reporting any acquisition by any state agency found not to be in compliance with those sections or rules to the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services;

1 5. A determination by the State Purchasing Director to reduce a
2 state agency's acquisition authority amount when the state agency is
3 found not to be in compliance with the Oklahoma Central Purchasing
4 Act or associated rules or requirements of the State Purchasing
5 Director pursuant to this section; and

6 6. A determination by the State Purchasing Director to increase
7 a state agency's acquisition authority amount after the agency cures
8 deficiencies in connection with a prior reduction in the authority
9 amount by the State Purchasing Director.

10 F. Based on written findings and when recommended by the State
11 Purchasing Director, the ~~Director~~ Chief Operating Officer of the
12 Office of Management and Enterprise Services may:

13 1. Transmit written findings by the State Purchasing Director
14 to the State Auditor and Inspector for further investigation,
15 indicating purchasing procedures that do not conform to the Oklahoma
16 Central Purchasing Act or associated rules; or

17 2. Transmit to the Attorney General or the State Auditor and
18 Inspector for further investigation a report made by the State
19 Purchasing Director that the ~~Director~~ Chief Operating Officer of the
20 Office of Management and Enterprise Services reasonably believes
21 indicates that an action that constitutes a criminal violation
22 pursuant to the Oklahoma Central Purchasing Act or other laws has
23 been taken by any state agency, state agency official, bidder or
24 supplier.

1 G. 1. Pursuant to the requirements of the Oklahoma Central
2 Purchasing Act, the State Purchasing Director shall have authority
3 to enter into any statewide, multistate or multigovernmental
4 contract. The state entity designated by law, as specified in
5 Section 1010.3 of Title 56 of the Oklahoma Statutes, shall
6 participate in the purchase of pharmaceuticals available through
7 such multistate or multigovernmental contracts entered into by the
8 State Purchasing Director.

9 2. Whenever it appears advantageous to the state or to any
10 state agency to purchase or otherwise acquire any acquisition which
11 may be offered for sale by the United States government or any
12 agency thereof, the State Purchasing Director may execute a contract
13 for the acquisition with the federal government or federal agency
14 and may also utilize contracts awarded by other governmental
15 agencies including, but not limited to, agencies of the United
16 States of America.

17 3. The State Purchasing Director may designate, for use by
18 state agencies, contracts described in this subsection and contracts
19 awarded on behalf of one or more state agencies.

20 4. Prior to exercising the authority to cancel a contract, the
21 State Purchasing Director may authorize renegotiation of an existing
22 contract with an incumbent supplier for the purposes of obtaining
23 more favorable terms for the state.
24

1 5. The State Purchasing Director shall have the authority to
2 designate certain contracts for state agencies as statewide
3 contracts and mandatory statewide contracts. In order to carry out
4 the powers and duties of the Chief Information Officer and
5 Information Services Division, the Chief Information Officer shall
6 have the authority to designate certain information technology and
7 telecommunication contracts as statewide contracts and mandatory
8 statewide contracts and may negotiate consolidation contracts,
9 enterprise agreements and high technology system contracts in lieu
10 of or in conjunction with competitive bidding procedures to reduce
11 acquisition cost.

12 6. The State Purchasing Director may publish such
13 specifications relating to materials, supplies, equipment and
14 services to be acquired for the state as may best promote
15 competition and apprise potential suppliers of the type of product
16 desired.

17 H. 1. The State Purchasing Director may develop and test new
18 contracting policies, procedures and innovations that hold potential
19 for making state procurement more effective and efficient and
20 identify, and make recommendations to the Legislature of, any
21 appropriate changes in law. Such development and testing, proof of
22 concept, pilot project or other similar test shall not be considered
23 an acquisition subject to the Oklahoma Central Purchasing Act.
24

2. The State Purchasing Director is authorized to explore and investigate cost savings in energy, resource usage and maintenance contracts and to identify and negotiate contract solutions including, but not limited to, pilot projects to achieve cost savings for this state.

I. The State Purchasing Director shall endeavor to satisfy state agencies in terms of cost, quality and timeliness of the delivery of acquisitions by using bidders who have a record of successful past performance, promoting competition, minimizing administrative operating costs and conducting business with integrity, fairness and openness.

J. The State Purchasing Director shall undertake the following:

1. The use of electronic commerce pursuant to the Oklahoma Online Bidding Act for solicitation, notification and other purchasing processes;

2. Monitoring rules promulgated pursuant to the Oklahoma Central Purchasing Act to ensure that the rules satisfy the interests of the state, are clear and succinct and encourage efficiency in purchasing processes;

3. A program to identify suppliers' performance records;

4. Development of criteria for the use of sealed bid contracting procedures, negotiated contracting procedures, selection of types of contracts, postaward administration of purchase orders

1 and contracts, addendums, termination of contracts and contract
2 pricing;

3 5. Continual improvement in the quality of the performance of
4 the Purchasing Division through training programs, management
5 seminars, development of benchmarks and key management indicators,
6 and development of standard provisions, clauses and forms;

7 6. The State Purchasing Director shall prescribe standardized
8 contract forms and all other forms or certifications requisite or
9 deemed necessary by the State Purchasing Director to effectuate the
10 provisions of the Oklahoma Central Purchasing Act and associated
11 rules;

12 7. Development of programs to improve customer relations
13 through training, improved communications and appointment of
14 technical representatives;

15 8. Provide for public two-way communication between procurement
16 officers and potential bidders who have questions regarding a
17 request for proposal or invitation to bid; and

18 9. Determine whether and to what extent information included in
19 a bid or similar offer is confidential and reject all requests to
20 disclose the information so designated.

21 K. The State Purchasing Director may utilize and authorize
22 state agencies to utilize reverse auctions to obtain acquisitions.

23 L. Prior to the award of a contract to a supplier, the State
24 Purchasing Director shall verify, pursuant to applicable provisions

1 of law, that the supplier is eligible to do business in this state
2 by confirming registration with the Secretary of State and franchise
3 tax payment status pursuant to Sections 1203 and 1204 of Title 68 of
4 the Oklahoma Statutes. The provisions of this subsection shall be
5 applicable only if the contract amount is Two Hundred Fifty Thousand
6 Dollars (\$250,000.00) or greater.

7 M. On an annual basis, the State Purchasing Director shall
8 transmit to the Governor, Speaker of the House of Representatives
9 and President Pro Tempore of the Senate a report documenting the
10 savings realized by each agency through the application of best
11 spend practices including the collection and tracking of spend data,
12 strategic sourcing programs and implementation of managed and
13 mandatory statewide contracts and include in the report information
14 regarding emergency acquisitions.

15 N. The acquisition threshold amount applicable to an
16 acquisition made pursuant to this act or associated rules shall not
17 apply to state agency purchases; provided, the State Purchasing
18 Director determines the agency has subject matter experts on staff
19 having the specialized expertise to purchase goods or services, the
20 agency possesses the necessary legal and procurement staff to
21 procure and monitor the contracts and provided the ~~Director~~ Chief
22 Operating Officer of the Office of Management and Enterprise
23 Services shall certify that the proposed purchase does not conflict
24 with consolidated statewide spend initiatives.

1 1. Nothing in this subsection shall give an agency authority to
2 issue statewide, multistate or multigovernmental contracts.

3 2. Agencies making purchases pursuant to this subsection shall:

4 a. be responsible for contracts awarded pursuant to this
5 subsection, which includes, but may not be limited to,
6 contract management, protest costs, all costs
7 connected with or incurred as a result of the
8 contract, including legal representation,

9 b. comply with rules and policies of the Office of
10 Management and Enterprise Services, and

11 c. report contracts issued pursuant to this subsection to
12 the Office of Management and Enterprise Services,
13 Central Purchasing Division, on a quarterly basis.

14 3. Purchases made in accordance with this subsection shall be
15 made pursuant to rules authorized by this section.

16 O. The State Purchasing Director, with approval by the ~~Director~~
17 Chief Operating Officer of the Office of Management and Enterprise
18 Services, is authorized to make use of any state laboratories for
19 the tests and analyses authorized in this section wherever
20 practicable and to use private laboratories or the laboratories of
21 another government agency if it is impracticable to use state
22 laboratories. The State Purchasing Director is further authorized
23 to cooperate in test and analysis programs or agreements with other
24 states or the United States government and to accept federal funds

1 and funds donated by private endowments or foundations for the
2 purpose of participation in such testing programs.

3 P. The State Purchasing Director shall require all contractors
4 or subcontractors who have entered into a contract with a public
5 employer to submit an affidavit that the contractor or subcontractor
6 is in compliance with the provisions of Section 1313 of Title 25 of
7 the Oklahoma Statutes. If the State Purchasing Director determines
8 that a contractor or subcontractor has knowingly submitted a false
9 affidavit:

10 1. The contractor or subcontractor shall be liable for an
11 administrative penalty of Five Thousand Dollars (\$5,000.00) for the
12 first offense, which shall increase by Two Thousand Dollars
13 (\$2,000.00) for each subsequent offense; and

14 2. The public employer or the Office of Management and
15 Enterprise Services may terminate the contract with the contractor
16 or subcontractor.

17 SECTION 670. AMENDATORY 74 O.S. 2021, Section 85.5.1, is
18 amended to read as follows:

19 Section 85.5.1. A. Privatization Projects.

20 The Office of Management and Enterprise Services shall establish
21 a repository of the best privatization practices, have expertise to
22 select projects or services for privatization, be capable of rapid
23 evaluation and response to privatization proposals and have the
24 ability to oversee the contracting for privatization opportunities.

1 B. The ~~Director~~ Chief Operating Officer of the Office of
2 Management and Enterprise Services shall report legislative
3 recommendations as the ~~Director~~ Chief Operating Officer deems
4 necessary to further implement the provisions of this section.

5 SECTION 671. AMENDATORY 74 O.S. 2021, Section 85.5a, is
6 amended to read as follows:

7 Section 85.5a. A. Except for the state fleet card, the state
8 purchase card program administered by the Purchasing Division is the
9 only card program authorized for use by state agencies.

10 B. On a monthly basis the State Purchasing Director and
11 institutions of higher education shall provide to the ~~Director~~ Chief
12 Operating Officer of the Office of Management and Enterprise
13 Services (OMES) a complete listing in electronic format of all
14 transactions paid by a state purchase card. The list shall contain
15 the name of the purchaser and purchasing agency, amount of purchase
16 and all available descriptions of items purchased.

17 C. Upon receipt of the list described in subsection B of this
18 section, the ~~Director~~ Chief Operating Officer of the OMES shall
19 allow the public access to the list in searchable format through its
20 website defined in Section 46 of Title 62 of the Oklahoma Statutes.

21 D. The State Purchasing Director may authorize the use of a
22 state purchase card for acquisitions within the following
23 parameters:

24 1. No limit on the amount of the transaction for the following:

- a. purchases from statewide contracts and from contracts awarded by the State Purchasing Director for the benefit of a state agency,
- b. utilities,
- c. interagency payments,
- d. emergency acquisitions; provided, requirements to establish an emergency pursuant to Section 5 of this act or other applicable statute or rule have been met, and
- e. professional services as defined in Section 803 of Title 18 of the Oklahoma Statutes; and

2. For any other transaction with a state purchase card, the transaction shall not exceed the greater of Five Thousand Dollars (\$5,000.00) or the limit determined by the State Purchasing Director, not to exceed the fair and reasonable acquisition threshold amount.

E. The State Purchasing Director may authorize personnel of the Department of Commerce, upon a finding by the Secretary of Commerce that such personnel have a legitimate need therefore, to utilize a state purchase card for acquisitions for programs, functions or services essential to the mission of the agency while traveling on Department of Commerce business in foreign locations with transaction limits not to exceed Thirty-five Thousand Dollars (\$35,000.00). The purchase cardholders are required to sign a

1 purchase card agreement prior to becoming a cardholder and to attend
2 purchase card procedure training. The Department of Commerce will
3 conduct quarterly internal auditing on all purchase card
4 transactions associated with business and travel in foreign
5 locations.

6 SECTION 672. AMENDATORY 74 O.S. 2021, Section 85.33, is
7 amended to read as follows:

8 Section 85.33. A. There is hereby created in the State
9 Treasury a revolving fund for the Office of Management and
10 Enterprise Services to be designated the "Registration of State
11 Vendors Revolving Fund". The fund shall consist of any monies
12 received from fees collected in accordance with subsection B of this
13 section. The revolving fund shall be a continuing fund, without
14 legislative appropriation, not subject to fiscal year limitations,
15 and shall be under the control and management of the Office of
16 Management and Enterprise Services. Expenditures from the
17 Registration of State Vendors Revolving Fund shall be budgeted and
18 expended pursuant to the laws of the state and the statutes relating
19 to public finance. The fund shall be used to defray the costs of
20 the Purchasing Division. Warrants for expenditures from the fund
21 shall be drawn by the State Treasurer, based on claims signed by an
22 authorized employee or employees of the Office, and approved for
23 payment by the ~~Director~~ Chief Operating Officer of the Office of
24 Management and Enterprise Services.

1 B. The Office of Management and Enterprise Services may collect
2 a fee of Twenty-five Dollars (\$25.00) to register suppliers that
3 desire to do business with this state through the Purchasing
4 Division. The suppliers shall register separately for each
5 commodity list. Each registration shall entitle the supplier to be
6 on that list for one (1) year, to receive all bid notices in that
7 classification for that period. All fees collected in accordance
8 with this subsection shall be deposited in the revolving fund
9 created in subsection A of this section.

10 SECTION 673. AMENDATORY 74 O.S. 2021, Section 85.33A, is
11 amended to read as follows:

12 Section 85.33A. A. There is hereby created in the State
13 Treasury a revolving fund for the Office of Management and
14 Enterprise Services to be designated the "Contract Management
15 Revolving Fund". The fund shall consist of any monies received from
16 fees, levies or rebates the Office receives in accordance with
17 subsection B of this section. The revolving fund shall be a
18 continuing fund, without legislative appropriation, not subject to
19 fiscal year limitations, and shall be under the control and
20 management of the Office of Management and Enterprise Services.
21 Expenditures from the Contract Management Revolving Fund shall be
22 budgeted and expended pursuant to the laws of the state and the
23 statutes relating to public finance. The fund shall be used to
24 defray the costs of the Purchasing Division. Warrants for

expenditures from the fund shall be drawn by the State Treasurer, based on claims signed by an authorized employee or employees of the Office, and approved for payment by the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services.

B. The State Purchasing Director may enter into or award contracts that provide a contract management fee, levy or rebate to the Office of Management and Enterprise Services. The State Purchasing Director shall ensure that a contract that provides a management fee, levy or rebate provides value to acquiring agencies exceeding open market acquisition costs.

SECTION 674. AMENDATORY 74 O.S. 2021, Section 85.44D.1, is amended to read as follows:

Section 85.44D.1. A. 1. A sole source acquisition is exempt from competitive bidding procedures as a sole source or requirements of this act, but a sole brand acquisition is subject to such competitive bidding requirements.

2. For each sole source or sole brand acquisition, the state agency shall retain in the state agency's acquisition file and attach to the requisition, a certification signed by the chief administrative officer of the state agency, in the following form:

SOLE SOURCE OR SOLE BRAND ACQUISITION

CERTIFICATION

STATE AGENCY _____

SUPPLIER NAME _____

SUPPLIER ADDRESS _____

SUPPLIER CONTACT INFORMATION _____

In connection with the attached requisition or contract, I
hereby affirm that

(Name of Supplier)

is the only business entity singularly qualified to provide the acquisition, or is the only brand satisfying the acquisition requirements, for the following reasons:

The following is a brief description of all efforts made to verify that the acquisition qualifies as a sole source or sole brand acquisition:

I understand that the signing of this certification knowing such information to be false may result in forfeiture of my position and

ineligibility for appointment to or employment in state service for a period of five (5) years following forfeiture of position.

(Chief administrative officer)

3. A court order requiring a particular acquisition, but which does not specify a brand or supplier shall not substitute for the certification required by this section or otherwise invalidate acquisition procedures required by the Oklahoma Central Purchasing Act.

4. Upon a determination by the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services that there are reasonable grounds to believe that a violation of this section has occurred, the ~~Director~~ Chief Operating Officer shall send findings to the Attorney General that support the determination. The Attorney General shall review the findings and determine whether to investigate or prosecute the person.

5. Prior to approving a requisition for a sole source or sole brand acquisition, the Purchasing Division shall require the signed certification documenting the need for a sole source or sole brand acquisition and shall retain the certification in accordance with state record retention requirements.

6. For a sole source or sole brand acquisitions exceeding the fair and reasonable acquisition threshold amount and not requiring submission of a requisition to the Purchasing Division, the state

1 agency's certified procurement officer shall retain, in the
2 acquisition file, the signed certification documenting the need for
3 the sole source or sole brand acquisition in accordance with state
4 record retention requirements.

5 B. By the fifteenth day of each month, or the first working day
6 thereafter, the Office of Management and Enterprise Services shall
7 provide a report to:

8 1. The Speaker of the House of Representatives and the
9 President Pro Tempore of the Senate; and

10 2. Any member of the Legislature requesting the report.

11 The report shall detail sole source and sole brand acquisitions
12 by state agencies for the month prior to the month preceding the
13 submission of the report. The report shall be titled "Monthly Sole
14 Source and Sole Brand Contracting Report of Oklahoma State Agencies"
15 and indicate the time period of the report. The report shall be
16 provided by the ~~Director~~ Chief Operating Officer of the Office of
17 Management and Enterprise Services or the Director's designee. The
18 report shall be in columnar database format and shall include at
19 least the following fields of information: state agency number;
20 state agency name; date created by the Office of Management and
21 Enterprise Services for the requisition; date of either approval or
22 disapproval of the requisition; if disapproved, the reason why such
23 contract requisition was disapproved; estimated amount of the
24 requisition acquisition; purchase order amount; purchase order

number; actual business name of supplier; supplier federal employer identification number; and the commodity classification listing at the appropriate level to distinguish between similar acquisitions. Information required by this subsection shall be reported and maintained on each report through the next reporting period after an acquisition is made. The applicable data in the fields of information specified in this subsection shall be listed even if the state agency requisition is disapproved.

SECTION 675. AMENDATORY 74 O.S. 2021, Section 85.44E, is amended to read as follows:

Section 85.44E. A. Disabled Veteran Businesses.

As used in this section:

1. "Service-disabled veteran" means any individual that is disabled as certified by the appropriate federal agency responsible for the administration of veterans' affairs; and

2. "Service-disabled veteran business" means a business:

- a. not less than fifty-one percent (51%) of which is owned by one or more service-disabled veterans or, in the case of any publicly owned business, not less than fifty-one percent (51%) of the stock of which is owned by one or more service-disabled veterans, and
- b. the management and daily business operations of which are controlled by one or more service-disabled veterans.

1 B. In awarding contracts for the performance of any job or
2 service, all agencies, departments, institutions and other entities
3 of this state and of each political subdivision of this state shall
4 give a three-percentage point bonus preference to service-disabled
5 veteran businesses doing business as Oklahoma firms, corporations or
6 individuals, or which maintain Oklahoma offices or places of
7 business.

8 C. In implementing the provisions of subsection B of this
9 section, the following shall apply:

10 1. The ~~Director~~ Chief Operating Officer of the Office of
11 Management and Enterprise Services shall have the goal of three
12 percent (3%) of all such contracts described in subsection B of this
13 section to be awarded to such veterans; and

14 2. If an insufficient number of such veterans doing business in
15 this state submit a bid or proposal for a contract by an agency,
16 department, institution or other entity of the state or a political
17 subdivision, such goal shall not be required and the provisions of
18 paragraph 1 of this subsection shall not apply.

19 D. The ~~Director~~ Chief Operating Officer of the Office of
20 Management and Enterprise Services may promulgate rules in order to
21 implement the provisions of this section.

22 SECTION 676. AMENDATORY 74 O.S. 2021, Section 85.45s, is
23 amended to read as follows:
24

1 Section 85.45s. The ~~Director~~ Chief Operating Officer of the
2 Office of Management and Enterprise Services shall promulgate rules
3 to implement the Oklahoma Online Bidding Act.

4 SECTION 677. AMENDATORY 74 O.S. 2021, Section 85.47b, is
5 amended to read as follows:

6 Section 85.47b. The Administrator shall be authorized to:

7 1. Use the services of other governmental agencies and public
8 trusts which are necessary to carry out the provisions of this act;

9 2. Contract for and accept, for use in carrying out the
10 provisions of this program, loans and grants from the federal
11 government and any of its agencies and instrumentalities and from
12 public trusts;

13 3. Acquire, manage, operate, dispose of, or otherwise deal with
14 property, take assignments of rentals and leases, and make
15 contracts, leases, agreements and arrangements that are necessary or
16 incidental to the performance of his duties;

17 4. Prescribe or approve the form of and terms and conditions in
18 applications, guarantee agreements or any other documents entered
19 into by the Administrator, principals or sureties in connection with
20 the program;

21 5. Acquire or take assignments of documents executed, obtained
22 or delivered in connection with any assistance provided under this
23 program; and
24

6. Fix, determine, charge and collect any premiums and fees pursuant to rules promulgated by the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services.

SECTION 678. AMENDATORY 74 O.S. 2021, Section 85.47c, is amended to read as follows:

Section 85.47c. A. There is hereby created in the State Treasury a revolving fund for the Small Business Surety Bond Guaranty Program to be designated the "Small Business Surety Bond Guaranty Fund". The fund shall be a continuing fund, not subject to fiscal year limitations and shall consist of:

1. Premiums, fees, and any other amounts received with respect to bonding assistance provided under this program;

2. Proceeds from the sale, lease, or other disposition of property or contracts held or acquired by the Office of Management and Enterprise Services pursuant to this program;

3. Income from investments that the State Treasurer makes from monies in the fund; and

4. Any other monies made available under this program.

B. The fund shall be used:

1. For the purposes provided for in this program; and

2. To pay part or all of the expenses of administering the program.

C. All monies accruing to the credit of the fund shall be deposited with the State Treasurer and invested and reinvested in

1 the same manner as other state funds, and any investment earnings
2 shall be paid into the fund. All monies accruing to the credit of
3 the fund are hereby appropriated and may be budgeted and expended
4 for the purposes provided in subsection B of this section.
5 Expenditures from said fund shall be made upon warrants issued by
6 the State Treasurer against claims filed as prescribed by law with
7 the ~~Director~~ Chief Operating Officer of the Office of Management and
8 Enterprise Services for approval and payment.

9
10 SECTION 679. AMENDATORY 74 O.S. 2021, Section 85.47f, is
11 amended to read as follows:

12 Section 85.47f. A. The Administrator may set reasonable
13 premiums and fees, not to exceed limits established by rules
14 promulgated by the ~~Director~~ Chief Operating Officer of the Office of
15 Management and Enterprise Services, to be paid for the purpose of
16 providing bonding assistance under this program.

17 B. The premiums and fees set by the Administrator shall be
18 payable in the amounts, at the time and in the manner that the
19 Administrator requires.

20 C. The premiums and fees need not be uniform among
21 transactions, and may vary in amount:

- 22 1. Among transactions; and
 - 23 2. At different stages during the terms of transactions.
- 24

SECTION 680. AMENDATORY 74 O.S. 2021, Section 85.47g, is amended to read as follows:

Section 85.47g. The Small Business Surety Bond Guaranty Program shall be a program of the Office of Management and Enterprise Services. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services is authorized to hire a Small Business Surety Bond Guaranty Program Administrator to administer the Small Business Surety Bond Guaranty Program. The Administrator shall hold a bachelor's degree or higher degree in business, accounting, mathematics, economics or engineering and shall have previous experience as a surety underwriter. The Administrator shall be in the unclassified service of this state.

SECTION 681. AMENDATORY 74 O.S. 2021, Section 85.47i, is amended to read as follows:

Section 85.47i. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services shall promulgate and adopt rules necessary to carry out the provisions of the Small Business Surety Bond Guaranty Program Act.

SECTION 682. AMENDATORY 74 O.S. 2021, Section 85.51, is amended to read as follows:

Section 85.51. As used in the Oklahoma State Recycling and Recycled Materials Procurement Act:

1. " Office" means the Office of Management and Enterprise Services;

1 2. "Paper recycling" means the processing of scrap paper or
2 other such recoverable waste paper into reusable products. Such
3 collection and recycling of recoverable waste paper shall be done in
4 an environmentally acceptable manner;

5 3. "State public entity" means the State Legislature, any
6 bureau, agency, board, commission, or authority of the state, the
7 office of the Governor, the judiciary, or any state university,
8 school district, or county of the state which is supported in whole
9 or in part by state funds;

10 4. "Recoverable waste paper" generated by businesses or
11 consumers, which has served its intended use and has been separated
12 from solid waste for purposes of collection and recycling, shall
13 include, but is not limited to, such paper as computer cards,
14 computer print-out papers, copy paper, white office papers, colored
15 office papers, corrugated boxes, newspapers, envelope coatings,
16 bindery trimmings, printing scrap and butt rolls. Mill broke
17 repulped internally within a paper manufacturing facility shall not
18 be considered recoverable waste paper;

19 5. "~~Director~~ Chief Operating Officer" means the ~~Director~~ Chief
20 Operating Officer of the Office of Management and Enterprise
21 Services;

22 6. "Division" means the Purchasing Division of the Office of
23 Management and Enterprise Services;
24

1 7. "Recycled paper products" means all paper products
2 manufactured from recoverable waste paper with not less than ten
3 percent (10%) of their total weight consisting of waste paper.

4 8. "Products manufactured with recycled materials" means
5 products that contain at least a minimum percentage of specified
6 materials recovered from the recycling of post-consumer products as
7 defined in rules and regulations promulgated by the Division;

8 9. "Recyclable materials" means materials or products which are
9 capable of being recycled, including but not limited to paper,
10 glass, plastics, metals, automobile oil, and batteries. Refuse-
11 derived fuel or other material that is destroyed by incineration is
12 not a recyclable material; and

13 10. "Uncoated" means not coated with plastic, clay, or other
14 material used to create a glossy finish.

15 SECTION 683. AMENDATORY 74 O.S. 2021, Section 85.52, is
16 amended to read as follows:

17 Section 85.52. A. It is the intent of the Legislature that all
18 state public entities comply with the provisions of the Oklahoma
19 State Recycling and Recycled Materials Procurement Act. All
20 political subdivisions of this state are encouraged to collect and
21 recycle recoverable waste paper and recyclable materials to the
22 greatest extent possible. The Office of Management and Enterprise
23 Services shall coordinate recycling efforts among the state public
24 entities. The ~~Director~~ Chief Operating Officer of the Office of

1 Management and Enterprise Services shall adopt such rules,
2 regulations, and orders as are necessary for the implementation of
3 the Oklahoma State Recycling and Recycled Materials Procurement Act.
4 The rules and regulations at a minimum shall establish procedures
5 for:

6 1. The identification, handling, hauling, storing, safety
7 factors, and disposition of recoverable waste paper and recyclable
8 materials;

9 2. The separation of recoverable waste paper and recyclable
10 materials from solid waste generated by state public entities;

11 3. A system for the collection of recoverable waste paper and
12 recyclable materials from solid waste generated by state public
13 entities;

14 4. Assuring that the recoverable waste paper and recyclable
15 materials are made available to private industries for collection
16 and recycling at the greatest economic value and to the greatest
17 extent feasible. The Office may execute multiple contracts as
18 necessary for purposes including but not limited to serving other
19 government entities and different geographic areas of the state. In
20 addition to the preference provisions of Section 85.53 of this
21 title, rules and regulations governing availability of recyclable
22 materials shall give preference to private recyclable materials
23 industries that operate in Oklahoma, and that will employ residents
24 of the state to handle, transport and sort such materials;

1 5. The purchase of uncoated office paper and printed paper
2 whenever practicable; and

3 6. Separating for the purpose of recycling all recyclable
4 materials including but not limited to lead acid batteries, waste
5 oil and major appliances that are generated as solid waste by state
6 public entities.

7 B. All state public entities shall comply with the procedures
8 and systems established pursuant to the Oklahoma State Recycling and
9 Recycled Materials Procurement Act.

10 C. 1. The ~~Director~~ Chief Operating Officer may exempt any
11 single activity or facility of any state public entity from
12 compliance with rules promulgated pursuant to the Oklahoma State
13 Recycling and Recycled Materials Procurement Act if the ~~Director~~
14 Chief Operating Officer determines there is a lack of market
15 availability or that it is not economically feasible to follow and
16 comply with the procedures and systems established by the ~~Director~~
17 Chief Operating Officer.

18 2. The exemption shall be for a period not in excess of one (1)
19 year, but additional exemptions may be granted for periods not to
20 exceed one (1) year.

21 3. The ~~Director~~ Chief Operating Officer shall make public all
22 exemptions together with the reasons for granting such exemptions.
23
24

SECTION 684. AMENDATORY 74 O.S. 2021, Section 85.54, is amended to read as follows:

Section 85.54. A. The Purchasing Division shall review the procurement specifications currently used by the Office of Management and Enterprise Services in order to eliminate, wherever economically feasible, discrimination against the procurement of recycled paper and other products manufactured with recycled materials.

B. The Division shall establish purchasing practices which, to the maximum extent economically feasible, assure purchase of recycled paper products.

C. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services shall review and incorporate, where appropriate, guidelines published in the Federal Register.

D. The ~~Director~~ Chief Operating Officer shall promulgate rules to encourage recycling and conservation of purchased products.

SECTION 685. AMENDATORY 74 O.S. 2021, Section 85.58A, as amended by Section 4, Chapter 245, O.S.L. 2024 (74 O.S. Supp. 2025, Section 85.58A), is amended to read as follows:

Section 85.58A. A. The Office of Management and Enterprise Services (OMES) shall establish for all state agencies, whether or not subject to the Oklahoma Central Purchasing Act, and other entities as provided by law a comprehensive professional risk management program which shall:

- 1 1. Identify and evaluate risks of loss and exposures to loss to
2 officers, employees and properties;
- 3 2. Minimize risks through loss-prevention and loss-control
4 programs;
- 5 3. Transfer risks, if economically advantageous to the state,
6 by acquiring commercial insurance, contractual pass through of
7 liability, or by other means;
- 8 4. Consolidate and administer risk management plans and
9 programs including self-insurance programs, except State Employees
10 Group Insurance;
- 11 5. Determine feasibility of and, if feasible, establish self-
12 insurance programs, considering whether a program may be self-
13 supporting to remain financially and actuarially sound;
- 14 6. Provide a system to allocate insurance and program costs to
15 determine payment for insurance coverage and program expenses
16 provided by the Office of Management and Enterprise Services;
- 17 7. When requested by a state retirement system or the Oklahoma
18 Employees Insurance and Benefits Board, assist in obtaining
19 insurance authorized by law. If requested by the Oklahoma State
20 Regents for Higher Education, assist trust funds for which the State
21 Regents serve as trustees in obtaining insurance authorized by law;
- 22 8. Assist state agencies and officers, employees, and members
23 thereof, charged with licensing authority, in obtaining insurance
24

1 for liability for judgments, based on the licensing authority,
2 rendered by any court pursuant to federal law;

3 9. When requested by a public trust established pursuant to
4 Title 60 of the Oklahoma Statutes of which the State of Oklahoma is
5 the beneficiary, obtain, provide or assist the public trust in
6 obtaining insurance authorized by law or trust indenture covering
7 any board member, trustee, official, officer, employee or volunteer
8 for errors and omissions or liability risks arising from the
9 performance of official duties pursuant to law or trust indenture;

10 10. When requested by the Oklahoma State Regents for Higher
11 Education, for the purpose of insuring real property required
12 pursuant to Section 4018 of Title 70 of the Oklahoma Statutes, of
13 which the Oklahoma State Regents for Higher Education is the
14 beneficiary, obtain, provide or assist the Oklahoma State Regents
15 for Higher Education in obtaining insurance for the real property
16 pursuant to the provisions of this section; and

17 11. Authorize the Risk Management Administrator to declare an
18 emergency for the purpose of mitigating damages to any state-owned
19 property insured under the comprehensive professional risk
20 management program administered by OMES.

21 B. The ~~Director~~ Chief Operating Officer of the Office of
22 Management and Enterprise Services may hire or contract for the
23 services of a Risk Management Administrator to supervise the
24 Comprehensive Professional Risk Management Program established

1 pursuant to this section. If appointed by the ~~Director~~ Chief
2 Operating Officer as a state employee, the Risk Management
3 Administrator shall be in the unclassified service.

4 C. The Risk Management Administrator shall evaluate insurance
5 coverage needs and in force for state agencies, whether or not
6 subject to the Oklahoma Central Purchasing Act, and other entities
7 as provided by law. All entities shall submit to the Risk
8 Management Administrator all information which the Risk Management
9 Administrator deems necessary to perform this duty.

10 D. The Risk Management Administrator in conjunction with the
11 State Purchasing Director under the authority of the ~~Director~~ Chief
12 Operating Officer of the Office of Management and Enterprise
13 Services may negotiate insurance coverage and insurance-related
14 services including, but not limited to, insurance brokerage and
15 consulting services. The State Purchasing Director shall ensure
16 open processes for solicitation and qualification of insurance
17 coverage and services providers. The State Purchasing Director
18 shall award contracts for insurance coverage and services to the
19 provider or providers which offer the best and final terms and
20 conditions. The State Purchasing Director may authorize the Risk
21 Management Administrator to bind for insurance coverage with
22 providers.

1 E. The school districts of this state may request the Risk
2 Management Administrator to advise for the purchase of insurance
3 coverage for the school districts.

4 F. A state agency, whether or not subject to the Oklahoma
5 Central Purchasing Act, that contemplates purchase of property and
6 casualty insurance, shall provide details of the proposed purchase
7 to the Risk Management Administrator for approval or disapproval
8 prior to the purchase.

9 G. The ~~Director~~ Chief Operating Officer of the Office of
10 Management and Enterprise Services shall promulgate rules to effect
11 the provisions of the comprehensive professional risk management
12 program.

13 H. 1. a. Any community action agency established pursuant to
14 Sections 5035 through 5040 of this title may
15 participate in the comprehensive professional risk
16 management program established pursuant to this
17 section for risks incurred as a result of operating a
18 Head Start program or providing transportation
19 services to the public. The Risk Management
20 Administrator shall obtain or provide for insurance
21 coverage for such community action agencies or bonding
22 for employees of such community action agencies. Any
23 liability insurance coverage obtained or provided
24 shall include expenses for administrative and legal

1 services obtained or provided by the Risk Management
2 Administrator.

3 b. The Risk Management Administrator shall determine
4 criteria for participation in the risk management
5 program by such community action agencies. In
6 addition, the Risk Management Administrator may
7 require each such community action agency to:

8 (1) provide adequate qualified personnel and suitable
9 facilities and equipment for operating a Head
10 Start program or providing transportation
11 services to the public, and

12 (2) comply with such standards as are necessary for
13 the protection of the clients it serves.

14 2. To receive coverage pursuant to this section, a community
15 action agency shall make payments for any insurance coverage and
16 shall otherwise comply with the provisions of this section and rules
17 promulgated by the Office pursuant to the provisions of this
18 section.

19 3. Requests for the insurance coverage provided pursuant to the
20 provisions of this subsection shall be submitted in writing to the
21 Risk Management Administrator by the community action agencies.

22 I. The Risk Management Administrator may provide or obtain for
23 any state agency, public trust with the state as a beneficiary and a
24 director, officer, employee or member thereof, insurance for

1 liability for loss, including judgments, awards, settlements, costs
2 and legal expenses, resulting from violations of rights or
3 privileges secured by the Constitution or laws of the United States
4 of America which occur while a director, officer, employee or member
5 is acting within the scope of service to the State of Oklahoma. The
6 insurance shall be for coverage in excess of the limits on liability
7 established by The Governmental Tort Claims Act but shall not limit
8 or waive any immunities now or hereafter available to the State of
9 Oklahoma or any state agency, any public trust with the state as a
10 beneficiary, or any ~~director~~, officer, employee or member thereof
11 including, but not limited to, any immunities under the Eleventh
12 Amendment to the Constitution of the United States, state sovereign
13 immunity, and any absolute or qualified immunity held by any
14 director, officer, employee or member.

15 SECTION 686. AMENDATORY 74 O.S. 2021, Section 85.58D, is
16 amended to read as follows:

17 Section 85.58D. There is hereby created in the State Treasury a
18 revolving fund for the Office of Management and Enterprise Services,
19 to be designated the "Risk Management Fire Protection Revolving
20 Fund". The fund shall be a continuing fund, not subject to fiscal
21 year limitations, and shall consist of any monies transferred
22 thereto by an act of the Legislature and any fees collected by the
23 Office of Management and Enterprise Services in accordance with the
24

provisions of Section 85.58B of this title. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Office of Management and Enterprise Services for the purposes of the Comprehensive Professional Risk Management Program provided for in Section 85.58A of this title, including the salaries and administrative expenses of support staff responsible for administering the fund and expenses the Office incurs to support program operations. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 687. AMENDATORY 74 O.S. 2021, Section 85.58G, is amended to read as follows:

Section 85.58G. There is hereby created in the State Treasury a revolving fund for the Office of Management and Enterprise Services, to be designated the "Risk Management Elderly and Handicapped Transportation Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of any monies transferred thereto by an act of the Legislature and any fees collected by the Office of Management and Enterprise Services in accordance with the provisions of Section 85.58E of this title. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Office of

1 Management and Enterprise Services for the purposes of the
2 Comprehensive Professional Risk Management Program provided for in
3 Section 85.58A of this title, including the salaries and
4 administrative expenses of support staff responsible for
5 administering said fund and expenses the Department incurs to
6 support program operations. Expenditures from said fund shall be
7 made upon warrants issued by the State Treasurer against claims
8 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
9 of the Office of Management and Enterprise Services for approval and
10 payment.

11 SECTION 688. AMENDATORY 74 O.S. 2021, Section 85.58H, as
12 amended by Section 240, Chapter 282, O.S.L. 2022 (74 O.S. Supp.
13 2025, Section 85.58H), is amended to read as follows:

14 Section 85.58H. A. Upon written certification by the ~~Director~~
15 Chief Operating Officer of the Office of Management and Enterprise
16 Services that errors and omissions liability insurance for licensed
17 operators and their employees is not reasonably available in the
18 private market at competitive rates, after taking into account the
19 administrative costs associated with such insurance, the Risk
20 Management Administrator pursuant to Section 85.58A of this title
21 may obtain or provide limited indemnity coverage for licensed
22 operators and the employees who are employed by such licensed
23 operators for any errors and omissions liability risks arising from
24 the performance of their official duties pursuant to law. Any such

1 certification by the ~~Director~~ Chief Operating Officer of the Office
2 of Management and Enterprise Services shall be effective for a
3 period of two (2) years. Any such limited indemnity coverage shall
4 be obtained or provided solely from funds available in the shared
5 risk pool authorized by this section and subject to the limitations
6 set out herein. The Risk Management Administrator shall establish
7 liability limits for such errors and omissions coverage on an annual
8 basis. Any such limits shall be based on the liquidity of the
9 shared risk pool resulting from the annual payments made pursuant to
10 subsection C of this section and any interest accrued thereon, after
11 deduction of such sums as may be necessary to pay all overhead and
12 administrative expenses associated with administering the pool.

13 B. The Risk Management Administrator is authorized to determine
14 eligibility criteria for participation in the Risk Management
15 Program for such licensed operators and employees of such licensed
16 operators. Any limited indemnity coverage provided for errors and
17 omissions pursuant to the provisions of this subsection shall only
18 cover errors or omissions made by a licensed operator or any
19 employee of such licensed operator occurring after July 1, 1990.

20 C. Except as otherwise provided in subsection G of this
21 section, licensed operators shall be required to make annual
22 payments of Forty Dollars (\$40.00) per licensed operator and Forty
23 Dollars (\$40.00) per employee of the licensed operator for such
24 limited indemnity coverage. The Risk Management Administrator is

1 authorized to assess an additional payment per year, not to exceed
2 Forty Dollars (\$40.00) per licensed operator and per employee of
3 such licensed operator, if the shared risk pool resulting from the
4 payment of the fees made pursuant to this subsection is not adequate
5 to cover any liability incurred.

6 D. Requests for the limited indemnity coverage provided
7 pursuant to the provisions of this section shall be submitted in
8 writing to the Risk Management Administrator by the licensed
9 operators.

10 E. All fees collected in accordance with the provisions of this
11 section shall be deposited in the Oklahoma Licensed Operator
12 Indemnity Fund.

13 F. In providing risk management services for any licensed
14 operator or employee of such licensed operator, it is the intention
15 of the Legislature to provide limited indemnification of licensed
16 operators or employees of such licensed operators for errors and
17 omissions, solely to the extent of assets in the shared risk pool
18 created by this section. The State of Oklahoma is not liable,
19 directly or indirectly, for the errors and omissions of any licensed
20 operator or any employee of such licensed operator in the
21 performance of official duties pursuant to law. The Risk Management
22 Administrator shall determine the extent of indemnification for
23 losses incurred by any such licensed operator or employee of such
24 licensed operator based upon the liquidity of the shared risk pool.

1 G. The Risk Management Administrator is authorized to establish
2 a system under which the extent of indemnity coverage may be
3 extended or reduced based upon an increase or decrease in the amount
4 of the payment required in subsection C of this section. Said
5 system shall only be established when the liquidity of the shared
6 risk pool is such that the system is feasible in the judgment of the
7 Administrator. Upon establishment of such a system, a licensed
8 operator may elect to increase or decrease the amount of the payment
9 required in subsection C of this section and correspondingly extend
10 or reduce coverage for losses incurred by the licensed operator or
11 employee of such licensed operator.

12 SECTION 689. AMENDATORY 74 O.S. 2021, Section 85.58J, is
13 amended to read as follows:

14 Section 85.58J. A. 1. The Risk Management Administrator may
15 obtain or otherwise provide for the insurance coverage specified by
16 this section for a foster family home providing foster care services
17 for children in the custody of the Department of Human Services
18 pursuant to the Oklahoma Children's Code or the Department of
19 Juvenile Justice pursuant to the Juvenile Justice Code.

20 2. Pursuant to the provisions of this section and Section
21 85.58A of this title, the Risk Management Administrator may obtain
22 or otherwise provide for property and casualty insurance for
23 injuries or damages arising from the foster care relationship and
24 the provision of foster care services, property damage or bodily

1 injury, as a result of the activities of the foster child, and
2 reasonable and necessary legal fees incurred in defense of civil
3 claims filed pursuant to this section, the Oklahoma Foster Care and
4 Out-of-Home Placement Act, the Oklahoma Children's Code or the
5 Juvenile Justice Code, and any judgments awarded as a result of such
6 claims. Any insurance coverage obtained or provided pursuant to the
7 provisions of this section shall include expenses for legal services
8 obtained or provided by the Risk Management Administrator.

9 B. The Risk Management Administrator is authorized to establish
10 qualifications for coverage and to determine eligibility criteria
11 and other standards for participation in the Risk Management Program
12 by the foster family homes. A foster family shall be approved for
13 participation in the Risk Management Program by the Risk Management
14 Administrator if the foster family meets the standards and
15 eligibility requirements established by the Risk Management
16 Administrator.

17 C. 1. A request for the insurance coverage provided pursuant
18 to this section shall be submitted in writing to the Department of
19 Human Services and the Department of Juvenile Justice by a foster
20 care family. The Department of Human Services and the Department of
21 Juvenile Justice shall provide a list of the names of all foster
22 family homes which wish to obtain insurance coverage specified by
23 this section to the Risk Management Administrators.
24

2. Upon obtaining insurance coverage as provided by this section, the Department of Human Services and the Department of Juvenile Justice shall provide notice to all foster family homes with whom the state agencies contract for foster care services.

D. The Risk Management Administrator shall establish liability limits for the insurance coverage authorized by this section on an annual basis based on the insurance carrier requirements or based on the liquidity of the shared risk pool in the Foster Families Protection Account resulting from the annual payments made pursuant to Section 85.58M of this title and any interest accrued thereon, after deduction of such sums as may be necessary to pay all overhead and administrative expenses associated with administering the pool.

E. A foster family shall be required to make payments for such insurance coverage or payments may be made from funds deposited on behalf of foster families by the Department of Human Services or the Department of Juvenile Justice if such funds are available. All fees collected in accordance with the provisions of this section shall be deposited in the Foster Families Protection Account. Claims against the insurance carrier or the pool shall be filed with either the Department of Human Services or the Department of Juvenile Justice, as appropriate, and shall be forwarded to the Risk Management Administrator.

F. 1. Any insurance or indemnity coverage shall be provided solely from funds in the Foster Families Protection Account and to

1 the extent of assets available in the shared risk pool established
2 pursuant to the provisions of this section. The Risk Management
3 Administrator shall determine the extent of indemnification for
4 losses incurred by any foster families based upon the liquidity of
5 the shared risk pool in the Foster Families Protection Account.

6 2. The State of Oklahoma is not liable, directly or indirectly,
7 for any liability incurred by a foster family in the performance of
8 foster care services.

9 G. 1. There is hereby created in the State Treasury a
10 revolving fund for the Office of Management and Enterprise Services,
11 to be designated the "Foster Families Protection Account". The
12 account shall be a continuing fund, not subject to fiscal year
13 limitations, and shall consist of any monies transferred thereto by
14 the Department of Human Services, the Department of Juvenile Justice
15 or any child-placing agency, and any fees collected by the Office of
16 Management and Enterprise Services and deposited pursuant to law.

17 2. All monies accruing to the credit of said fund shall be
18 expended by the Office of Management and Enterprise Services for the
19 specific purposes specified by this section and the salaries and
20 administrative expenses of support staff responsible for
21 administering the fund.

22 3. Expenditures from the fund shall be made upon warrants
23 issued by the State Treasurer against claims filed as prescribed by
24 law with the ~~Director~~ Chief Operating Officer of the Office of

1 Management and Enterprise Services for approval and payment. The
2 Foster Families Protection Account shall consist of:

3 a. all fees and other monies received pursuant to this

4 section, and

5 b. interest attributable to investment of monies in the

6 account.

7 H. 1. The monies deposited in the account shall at no time
8 become monies of the state and shall not become part of the general
9 budget of the Office of Management and Enterprise Services or any
10 other state agency. Except as otherwise authorized by this
11 subsection, no monies from the account shall be transferred for any
12 purpose to any other state agency or any account of the Office of
13 Management and Enterprise Services or be used for the purpose of
14 contracting with any other state agency or reimbursing any other
15 state agency for any expense.

16 2. Monies in the account shall only be expended for:

17 a. the purposes specified by this section, and

18 b. costs incurred by the Comprehensive Professional Risk
19 Management Program for the administration of this
20 section.

21 I. Any costs incurred by the Office of Management and
22 Enterprise Services pursuant to the provisions of this section shall
23 not exceed the actual expenditures made by the Office of Management
24 and Enterprise Services to implement the provisions of this section.

J. Payment of claims from the Foster Families Protection Account shall not become or be construed to be an obligation of this state. No claims submitted for reimbursement or payment from the account shall be paid with state monies.

SECTION 690. AMENDATORY 74 O.S. 2021, Section 85.58K, as amended by Section 1, Chapter 163, O.S.L. 2024 (74 O.S. Supp. 2025, Section 85.58K), is amended to read as follows:

Section 85.58K. A. There is hereby created in the State Treasury a revolving fund for the Office of Management and Enterprise Services, to be designated the "Risk Management Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of any monies transferred thereto by act of the Legislature and any monies which may be deposited thereto by the Office of Management and Enterprise Services as provided for by law. The money in the fund shall be invested by the Risk Management Administrator, as hired or contracted pursuant to Section 85.58A of this title, in the manner specified for making investments in Section 1305.1 of this title. Investment income of the fund shall be added to the fund.

B. Within the Risk Management Revolving Fund, there is hereby created the Property and Casualty Account, the Motor Vehicle Liability Account and the General Tort Liability Account. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services is authorized to establish such additional

accounts within the Risk Management Revolving Fund deemed necessary. The monies in each account shall be maintained actuarially separate to ensure that premiums or fees paid for specific insurance coverage are adequate to pay the expenses and claims for that coverage.

C. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Office of Management and Enterprise Services for the purposes of the Comprehensive Professional Risk Management Program provided for in Section 85.58A of this title, including but not limited to the salaries and administrative expenses of the Risk Management Administrator and support staff and expenses the Department incurs to support program operations. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 691. AMENDATORY 74 O.S. 2021, Section 85.58L, is amended to read as follows:

Section 85.58L. A. There is hereby created in the State Treasury a revolving fund for the Office of Management and Enterprise Services, to be designated the "Risk Management Political Subdivision Participation Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of any monies transferred thereto by an act of the

Legislature and any fees collected by the Office of Management and Enterprise Services and deposited pursuant to law. All monies accruing to the credit of said fund shall be expended by the Office of Management and Enterprise Services for the purposes specified by this section and the salaries and administrative expenses of support staff responsible for administering the fund and expenses the Office incurs to support program operations. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

B. Within the Risk Management Political Subdivision Participation Revolving Fund, there is hereby created the Conservation District Protection Account. The account shall be set apart as a separate, permanent and perpetual account not subject to fiscal year limitations and shall consist of:

1. All fees and other monies received pursuant to Section 85.58I of this title; and

2. Interest attributable to investment of monies in the account.

C. 1. The monies deposited in the Risk Management Political Subdivision Participation Revolving Fund shall at no time become monies of any other state agency. Except as otherwise authorized by this subsection, no monies from the Risk Management Political

Subdivision Participation Revolving Fund shall be transferred for any purpose to any other state agency or be used for the purpose of contracting with any other state agency or reimbursing any other state agency for any expense.

2. Monies in the Risk Management Political Subdivision Participation Revolving Fund shall only be expended for:

- a. the purposes specified by this section, and
- b. costs incurred by the Comprehensive Professional Risk Management Program for the administration of duties this section specifies and expenses the Department incurs to support program operations.

D. Any costs incurred by the Office of Management and Enterprise Services pursuant to the provisions of this section shall not exceed the actual expenditures made by the Office of Management and Enterprise Services to implement the provisions of this section.

E. Payment of claims from the Risk Management Political Subdivision Participation Revolving Fund shall not become or be construed to be an obligation of this state. No claims submitted for reimbursement or payment from the fund shall be paid with state monies.

SECTION 692. AMENDATORY 74 O.S. 2021, Section 85.58P, is amended to read as follows:

1 Section 85.58P. There is hereby created in the State Treasury a
2 revolving fund for the Office of Management and Enterprise Services,
3 to be designated the "Risk Management Public Transit Revolving
4 Fund". The fund shall be a continuing fund, not subject to fiscal
5 year limitations, and shall consist of any monies transferred
6 thereto by an act of the Legislature and any fees collected by the
7 Office of Management and Enterprise Services in accordance with the
8 provisions of Section 85.580 of this title. All monies accruing to
9 the credit of the fund are hereby appropriated and may be budgeted
10 and expended by the Office of Management and Enterprise Services for
11 the purposes of the Comprehensive Professional Risk Management
12 Program provided for in Section 85.58A of this title, including the
13 salaries and administrative expenses of support staff responsible
14 for administering the fund and expenses the Office incurs to support
15 program operations. Expenditures from said fund shall be made upon
16 warrants issued by the State Treasurer against claims filed as
17 prescribed by law with the ~~Director~~ Chief Operating Officer of the
18 Office of Management and Enterprise Services for approval and
19 payment.

20 SECTION 693. AMENDATORY 74 O.S. 2021, Section 85.58V, is
21 amended to read as follows:

22 Section 85.58V. A. Whenever any officer, statutory board,
23 commission, committee, department, authority, or any state agent or
24

1 agency by whatever name called, is authorized by any law of this
2 state to purchase any official bond, surety bond, blanket bond, or
3 surety contract upon any state officer or employee, the authority is
4 hereby transferred and conferred upon the Purchasing Division of the
5 Office of Management and Enterprise Services. The authority shall
6 be exercised by the Purchasing Division in the manner pursuant to
7 the provisions and requirements prescribed by Section 85.58A of this
8 title.

9 B. The premium for a bond will be invoiced to the Purchasing
10 Division and paid for by legislative appropriation set aside for
11 that specific purpose.

12 C. If the legislative appropriation is insufficient to meet the
13 cost of a bond, the State Purchasing Director in conjunction with
14 the State Risk Administrator shall assess each entity covered by the
15 bond a pro rata share of the excess cost amount.

16 D. A blanket bond shall be approved as to form and legal
17 sufficiency by the general counsel of the Office of Management and
18 Enterprise Services and shall be filed with the ~~Director~~ Chief
19 Operating Officer of the Office of Management and Enterprise
20 Services.

21 SECTION 694. AMENDATORY 85 O.S. 2021, Section 380, as
22 amended by Section 1, Chapter 256, O.S.L. 2024, and as renumbered by
23
24

Section 3, Chapter 256, O.S.L. 2024 (74 O.S. Supp. 2025, Section 85.70), is amended to read as follows:

Section 85.70. A. 1. Except as provided for in subsections E through I of this section, volunteer fire departments organized pursuant to state law may obtain workers' compensation insurance for volunteer firefighters through the Volunteer Firefighter Group Insurance Pool pursuant to requirements established by CompSource Mutual Insurance Company which shall administer the Pool. For the premium set by CompSource Mutual Insurance Company, the state shall provide Fifty-five Dollars (\$55.00) per firefighter per year.

Except as otherwise provided by subsection D of this section, the total amount paid by the state shall not exceed Three Hundred Twenty Thousand Three Hundred Thirty-eight Dollars (\$320,338.00) per year or so much thereof as may be necessary to fund the Volunteer Firefighter Group Insurance Pool.

2. CompSource Mutual Insurance Company shall collect the premium from state agencies, public trusts, and other instrumentalities of the state. Any funds received by CompSource Mutual Insurance Company from any state agency, public trust, or other instrumentality for purposes of workers' compensation insurance pursuant to this section shall be deposited to the credit of the Volunteer Firefighter Group Insurance Pool. CompSource Mutual Insurance Company shall collect premiums, pay claims, and provide for excess insurance as needed.

1 B. CompSource Mutual Insurance Company shall electronically
2 report, annually, to the Governor, the Speaker of the House of
3 Representatives, and the President Pro Tempore of the Senate the
4 number of enrollees in the Volunteer Firefighter Group Insurance
5 Pool, and the amount of any anticipated surplus or deficiency of the
6 Pool; and shall also provide to the Governor, the Speaker of the
7 House of Representatives and the President Pro Tempore of the Senate
8 sixty (60) days' advance notice of any proposed change in rates for
9 the Volunteer Firefighter Group Insurance Pool.

10 C. The amount of claims paid, claim expenses, underwriting
11 losses, loss ratio, or any other financial aspect of the Volunteer
12 Firefighter Group Insurance Pool shall not be considered when
13 determining or considering bids for the amount of any premiums,
14 rates, or expenses owed by, or any discounts, rebates, dividends, or
15 other financial benefits owed to any other policyholder of
16 CompSource Mutual Insurance Company.

17 D. Except as otherwise provided by law, any increase in the
18 state payment rate for volunteer firefighters under the Volunteer
19 Firefighter Group Insurance Pool shall not exceed five percent (5%)
20 per annum. Any proposed change in rates for the Volunteer
21 Firefighter Group Insurance Pool must be approved by the Board of
22 Directors of CompSource Mutual Insurance Company with notice
23 provided pursuant to subsection B of this section. CompSource
24

1 Mutual Insurance Company shall not increase premiums for the
2 Volunteer Firefighter Group Insurance Pool more than once per annum.

3 E. 1. The provisions of subsections A through D of this
4 section shall apply only to workers' compensation claims for
5 volunteer firefighters incurred prior to the effective date of this
6 act.

7 2. Not later than the effective date of this act, the Volunteer
8 Firefighter Group Insurance Pool shall be transferred to the Office
9 of Management and Enterprise Services Comprehensive Professional
10 Risk Management Program. Provided, existing reserves from the Pool
11 shall remain with CompSource Mutual Insurance Company for the
12 purpose of managing claims incurred prior to the effective date of
13 this act. All claims incurred on and after the effective date of
14 this act shall be administered by the Office of Management and
15 Enterprise Services (OMES).

16 3. OMES may contract with a third-party administrator or hire
17 not more than two full-time personnel for the purposes of
18 administering the Pool.

19 4. Nothing in this section shall be construed to permit OMES to
20 administer workers' compensation to a paid fire department as such
21 term is defined in Section 29-104.1 of Title 11 of the Oklahoma
22 Statutes.

23 F. 1. Volunteer fire departments organized pursuant to state
24 law may obtain workers' compensation insurance for volunteer

1 firefighters through the Volunteer Firefighter Group Insurance Pool
2 pursuant to requirements established by the Office of Management and
3 Enterprise Services Comprehensive Professional Risk Management
4 Program.

5 2. OMES shall collect a premium of One Hundred Twenty Dollars
6 (\$120.00) per firefighter per year from state agencies, public
7 trusts, and other instrumentalities of the state. Any funds
8 received by OMES from any state agency, public trust, or other
9 instrumentality for purposes of workers' compensation insurance
10 pursuant to this section shall be deposited to the credit of the
11 Volunteer Firefighter Group Insurance Pool. OMES shall collect
12 premiums, pay claims, and provide for excess insurance as needed.

13 G. OMES shall electronically report, annually, to the Governor,
14 the Speaker of the House of Representatives, and the President Pro
15 Tempore of the Senate the number of enrollees in the Volunteer
16 Firefighter Group Insurance Pool, and the amount of any anticipated
17 surplus or deficiency of the Pool; and shall also provide to the
18 Governor, the Speaker of the House of Representatives, and the
19 President Pro Tempore of the Senate sixty (60) days' advance notice
20 of any proposed change in rates for the Volunteer Firefighter Group
21 Insurance Pool.

22 H. The amount of claims paid, claim expenses, underwriting
23 losses, loss ratio, or any other financial aspect of the Volunteer
24 Firefighter Group Insurance Pool shall not be considered when

determining or considering bids for the amount of any premiums, rates, or expenses owed by, or any discounts, rebates, dividends, or other financial benefits owed to any other policyholder of OMES.

I. Except as otherwise provided by law, any increase in the state payment rate for volunteer firefighters under the Volunteer Firefighter Group Insurance Pool shall not exceed five percent (5%) per annum. Any proposed change in rates for the Volunteer Firefighter Group Insurance Pool must be approved by the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services with notice provided pursuant to subsection G of this section. OMES shall not increase premiums for the Volunteer Firefighter Group Insurance Pool more than once per annum.

J. For purposes of this section, the term "volunteer fire departments" includes those volunteer fire departments which have authorized voluntary or uncompensated workers rendering services as firefighters and are created by statute pursuant to Section 592 of Title 18 of the Oklahoma Statutes, Sections 29-201 through 29-206 of Title 11 of the Oklahoma Statutes, and those defined by Section 351 of Title 19 of the Oklahoma Statutes.

SECTION 695. AMENDATORY Section 2, Chapter 256, O.S.L. 2024 (74 O.S. Supp. 2025, Section 85.71), is amended to read as follows:

Section 85.71. There is hereby created in the State Treasury a revolving fund for the Office of Management and Enterprise Services

(OMES) to be designated the "Volunteer Firefighter Group Insurance Pool Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by OMES from appropriations provided for the purpose of administering the Volunteer Firefighter Group Insurance Pool in the event that no other funds are available. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by OMES for the purpose provided for in this section. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 696. AMENDATORY 74 O.S. 2021, Section 90.1, is amended to read as follows:

Section 90.1. A. Except as otherwise provided for in this section, any agency, as defined in the Administrative Procedures Act, which has an expenditure for postage of Two Thousand Dollars (\$2,000.00) or more for any one (1) fiscal year shall install a postage meter machine and have all purchases of postage recorded on that postage meter machine. Except, a field office or branch office of a state agency distantly located from the parent agency, and which office has an annual expenditure for postage of less than Two Thousand Dollars (\$2,000.00), may purchase postage stamps in the manner prescribed by Section 90.2 of this title and such purchases

1 shall not be subject to the provisions of subsection B of this
2 section.

3 B. Any agency, as defined in the Administrative Procedures Act,
4 not engaged in scientific research or community development, which
5 finds it necessary, in order to more efficiently and effectively
6 carry out certain programs or functions, is hereby authorized, upon
7 making application to the ~~Director~~ Chief Operating Officer of the
8 Office of Management and Enterprise Services showing sufficient need
9 and upon approval by said ~~Director~~ Chief Operating Officer, to
10 purchase not more than Two Thousand Dollars (\$2,000.00) worth of
11 postage stamps during any one (1) fiscal year in the manner
12 prescribed by Section 90.2 of this title, with a method of
13 accountability for the use thereof to be maintained and subject to
14 audit. Any agency of the state engaged in scientific research or
15 community development, which finds it necessary, in order to
16 effectively carry out such research or development, is hereby
17 authorized, upon making application to the ~~Director~~ Chief Operating
18 Officer of the Office of Management and Enterprise Services showing
19 sufficient need and upon approval by the ~~Director~~ Chief Operating
20 Officer, to purchase postage stamps in the amount demonstrated
21 necessary to pursue such research or development in the manner
22 prescribed by Section 90.2 of this title, with a method of
23 accountability for the use thereof to be maintained and subject to
24 audit. Provided, however, the finance officer of such state agency

1 shall keep and maintain a record of all postage stamp allocations
2 within the agency. For purposes of this section, "scientific
3 research" shall mean research conducted under formally sponsored
4 grants or contracts; "community development" shall mean development
5 conducted by a formally and permanently organized office for that
6 purpose.

7 C. Every state agency shall utilize business reply mail
8 accounts, bulk mailing accounts, postage due accounts, zip + 4
9 codes, mailer applied bar codes or such other services offered by
10 the United States Postal Service for the purpose of reducing postal
11 costs and promoting efficiency. The Office of Management and
12 Enterprise Services shall oversee the implementation of the
13 provisions of this subsection.

14 SECTION 697. AMENDATORY 74 O.S. 2021, Section 94, is
15 amended to read as follows:

16 Section 94. A. Except as otherwise provided by law, the Office
17 of Management and Enterprise Services shall have full and complete
18 authority to designate quarters for every department of state
19 government, and to determine what space shall be allotted.

20 B. The Office may lease adequate space in state buildings and
21 facilities to private vendors for the location of automatic teller
22 machines as determined necessary or appropriate by the ~~Director~~
23 Chief Operating Officer of the Office. The Office is hereby
24

1 authorized to fix the monthly amount to be paid by such vendors,
2 which shall be deposited in the General Revenue Fund.

3 SECTION 698. AMENDATORY 74 O.S. 2021, Section 110.1, is
4 amended to read as follows:

5 Section 110.1. A. The Office of Management and Enterprise
6 Services shall maintain a current inventory of tangible assets owned
7 by state boards, commissions, institutions, agencies and the
8 institutions comprising The Oklahoma State System of Higher
9 Education and the University Hospitals Authority.

10 B. The ~~Director~~ Chief Operating Officer of the Office of
11 Management and Enterprise Services shall have authority to
12 promulgate rules to implement the provisions of this section.

13 C. For entities included in subsection A of this section, the
14 ~~Director~~ Chief Operating Officer of the Office of Management and
15 Enterprise Services shall specify a tangible asset reporting
16 threshold for each entity, not to exceed the federal capitalization
17 rate specified in the Office of Management and Budget Circular A-21
18 or future federal circulars or regulations as amended. When
19 establishing the tangible asset reporting threshold for an entity,
20 the ~~Director~~ Chief Operating Officer of the Office of Management and
21 Enterprise Services shall consider the entity's capability to
22 provide tangible asset records, finance and accounting systems,
23 inventory accuracy and other pertinent factors.

1 D. Tangible assets shall consist of machinery, implements,
2 tools, furniture, livestock, vehicles and other apparatus that may
3 be used repeatedly without material impairment of its physical
4 condition and have a calculable period of service and a value
5 exceeding the reporting threshold the ~~Director~~ Chief Operating
6 Officer of the Office of Management and Enterprise Services
7 establishes for the entity.

8 E. Rules that the ~~Director~~ Chief Operating Officer of the
9 Office of Management and Enterprise Services promulgates shall cause
10 all tangible assets to be properly coded, tagged, or marked in such
11 a manner that they may be readily identified as property of the
12 State of Oklahoma and that statistical records may be maintained.

13 F. The Office of Management and Enterprise Services may make
14 periodic checks of tangible assets of entities listed in subsection
15 A of this section. All entities will make support personnel
16 available to the Office of Management and Enterprise Services to
17 report tangible asset acquisitions, assist with identification and
18 update inventories on a periodic basis.

19 G. The Office of Management and Enterprise Services shall
20 report missing tangible assets to state investigative or law
21 enforcement officials.
22
23
24

SECTION 699. AMENDATORY Section 1, Chapter 24, 1st Extraordinary Session, O.S.L. 2023 (74 O.S. Supp. 2025, Section 110.5), is amended to read as follows:

Section 110.5. A. There is hereby continued a Jim Thorpe Repair Expenditure Oversight Committee originally created in Section 382 of Title 73 of the Oklahoma Statutes. The authorized distributions from the Legacy Capital Financing Fund as described in Enrolled House Bill No. 1011 of the 1st Extraordinary Session of the 59th Oklahoma Legislature that are needed for repairs to the interior and exterior of the Jim Thorpe Office Building shall be subject to the approval of the Jim Thorpe Repair Expenditure Oversight Committee; provided, however, the expenditure of those proceeds shall be subject to a Request for Proposal process.

The Committee shall be composed of nine (9) members as follows:

1. Three persons to be appointed by the Governor, one of whom shall serve as chair of the Committee;

2. Three legislators to be appointed by the Speaker of the Oklahoma House of Representatives, two of whom shall be members of the majority political party and one of whom shall be a member of the minority political party; and

3. Three legislators to be appointed by the President Pro Tempore of the Oklahoma State Senate, two of whom shall be members of the majority political party and one of whom shall be a member of the minority political party. Five members of the Committee shall

1 constitute a quorum and the vote of five members shall be necessary
2 for any action taken by the Committee. The Committee shall be
3 staffed by employees of the Office of Management and Enterprise
4 Services. The Committee shall be subject to the Oklahoma Open
5 Meeting Act.

6 B. The Committee shall deliver a preliminary plan for the
7 renovation, repair, and remodeling of the Jim Thorpe Office Building
8 to the ~~Director~~ Chief Operating Officer of the Office of Management
9 and Enterprise Services no later than December 31, 2022. The
10 preliminary plan shall include the following components:

11 1. Establishment of the Office of Management and Enterprise
12 Services' goal and criteria for use by the vendor; and

13 2. Selection criteria for the design-build team vendor to be
14 selected through a Request for Proposal process.

15 C. Following receipt of the preliminary plan as approved by the
16 Committee, the Office of Management and Enterprise Services shall
17 solicit Requests for Proposals to select the vendor for the project.

18 D. The Committee shall deliver a final plan to the ~~Director~~
19 Chief Operating Officer of the Office of Management and Enterprise
20 Services no later than June 30, 2023. The final plan shall include
21 the following components:

22 1. Approval of the final scope of work developed by the vendor;
23 and

24 2. Approval of the project phasing developed by the vendor.

1 E. Following delivery of the final plan, the Committee shall
2 continue to oversee the expenditure of proceeds from the sale of
3 obligations issued pursuant to the provisions of this section until
4 completion of the renovation, repair, and remodeling of the Jim
5 Thorpe Office Building. The Committee may also propose and approve
6 amendments to the plan as it deems appropriate.

7 F. The ~~Director~~ Chief Operating Officer of the Office of
8 Management and Enterprise Services shall have responsibility to
9 substantially implement the plan as presented by the Committee.

10 G. The continuation of the Committee, as provided in this act,
11 shall be interpreted to result in no disruption to the current
12 operations and structure of the Committee.

13 SECTION 700. AMENDATORY 74 O.S. 2021, Section 121, is
14 amended to read as follows:

15 Section 121. The ~~Director~~ Chief Operating Officer of the Office
16 of Management and Enterprise Services, subject to the approval of
17 the Governor, is hereby authorized to employ, or to contract with,
18 an auditor or auditing company, to audit the books, records, and
19 files of all state commissions or departments. Such audit is to be
20 made by a certified accountant, or accountants or firm of certified
21 accountants, who shall be approved by the Governor of the State of
22 Oklahoma, contracts for such audit may be made with one or more
23 separate certified accountants, or firm of certified accountants,
24 for auditing of the several different departments or commissions.

SECTION 701. AMENDATORY 74 O.S. 2021, Section 130.4, is amended to read as follows:

Section 130.4. A. There is hereby created in the State Treasury a revolving fund for the Office of Management and Enterprise Services to be designated as the "Oklahoma Alternative Fuels Conversion Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Office of Management and Enterprise Services pursuant to Section 130.5 of this title.

B. All monies accruing to the credit of the revolving fund shall be expended by the Office of Management and Enterprise Services to reimburse expenses relative to the conversion of government vehicles and school vehicles to have the capability of being fueled or charged by alternative fuels and/or the expenses relative to the installation of a fill station or charge station. The maximum amount expended per vehicle shall be the actual cost of vehicle conversion or Ten Thousand Dollars (\$10,000.00), whichever is less. The maximum amount expended per fill station or charge station shall be the actual cost of the installation or Three Hundred Thousand Dollars (\$300,000.00), whichever is less. The balance on deposit in the fund shall never exceed the sum of Five Million Dollars (\$5,000,000.00).

1 C. Expenditures from the revolving fund shall be made upon
2 warrants issued by the State Treasurer against claims filed as
3 prescribed by law with the ~~Director~~ Chief Operating Officer of the
4 Office of Management and Enterprise Services for approval and
5 payment.

6 SECTION 702. AMENDATORY 74 O.S. 2021, Section 130.25, is
7 amended to read as follows:

8 Section 130.25. A. There is hereby created in the State
9 Treasury a revolving fund for the Department of Labor to be
10 designated as the "Compressed Natural Gas Conversion Safety and
11 Regulation Fund". The fund shall be a continuing fund, not subject
12 to fiscal year limitations, and shall consist of all monies received
13 by the Department of Labor pursuant to Section 2357.22 of Title 68
14 of the Oklahoma Statutes.

15 B. All monies accruing to the credit of the revolving fund
16 shall be expended by the Department of Labor to inspect, regulate
17 and enforce safety regulations of the conversion of motor vehicles
18 for operation on compressed natural gas.

19 C. Expenditures from the revolving fund shall be made upon
20 warrants issued by the State Treasurer against claims filed as
21 prescribed by law with the ~~Director~~ Chief Operating Officer of the
22 Office of Management and Enterprise Services for approval and
23 payment.
24

SECTION 703. AMENDATORY 74 O.S. 2021, Section 150.2, as amended by Section 1, Chapter 240, O.S.L. 2023 (74 O.S. Supp. 2025, Section 150.2), is amended to read as follows:

Section 150.2. A. The Oklahoma State Bureau of Investigation shall have the power and duty to:

1. Maintain a nationally accredited scientific laboratory to assist all law enforcement agencies in the discovery and detection of criminal activity;

2. Maintain fingerprint and other identification files including criminal history records, juvenile identification files, and DNA profiles;

3. Establish, coordinate and maintain the automated fingerprint identification system (AFIS) and the deoxyribonucleic acid (DNA) laboratory;

4. Operate teletype, mobile and fixed radio or other communications systems;

5. Conduct schools and training programs for the agents, peace officers, and technicians of this state charged with the enforcement of law and order and the investigation and detection of crime;

6. Assist the Director of the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control, the Chief Medical Examiner, and all law enforcement officers and district attorneys when such assistance is requested, in accordance with the policy determined by

1 the Oklahoma State Bureau of Investigation Commission established in
2 Section 150.3 of this title;

3 7. Investigate and detect criminal activity when directed to do
4 so by the Governor;

5 8. Investigate, detect, institute and maintain actions
6 involving vehicle theft pursuant to Section 150.7a of this title or
7 oil, gas or oil field equipment theft pursuant to Sections 152.2
8 through 152.9 of this title;

9 9. Investigate any criminal threat made to the physical safety
10 of elected or appointed officials of this state or any political
11 subdivision of the state and forward the results of that
12 investigation to the Department of Public Safety, and provide
13 security to foreign elected or appointed officials while they are in
14 this state on official business;

15 10. Investigate and detect violations of the Oklahoma Computer
16 Crimes Act;

17 11. Investigate and enforce all laws relating to any crime
18 listed in Section 571 of Title 57 of the Oklahoma Statutes that
19 occurs on the turnpikes;

20 12. Investigate and detect criminal activity involving files,
21 records, assets, properties, buildings or employees of the Oklahoma
22 State Bureau of Investigation. Nothing in this paragraph shall
23 limit or prevent any criminal investigation of the matter by the
24

1 sheriff of the county or any law enforcement agency of competent
2 jurisdiction; and

3 13. Contract with municipal or county law enforcement agencies
4 to conduct administrative reviews of law enforcement use-of-force
5 investigations for compliance with current investigative procedures,
6 standards and law. All funds received as a result of the contract
7 will be deposited in the OSBI Revolving Fund. Any review of use-of-
8 force investigation shall be done by a certified police officer.

9 B. There is hereby created in the State Treasury a revolving
10 fund for the Oklahoma State Bureau of Investigation to be designated
11 the "Alaunna Raffield Revolving Fund". The fund shall be a
12 continuing fund, not subject to fiscal year limitations, and shall
13 consist of all monies received by the Bureau from appropriations
14 designated for deposit in the fund. All monies accruing to the
15 credit of the fund are hereby appropriated and may be budgeted and
16 expended by the Bureau for the purpose of assisting law enforcement
17 partners with the cost of attending trainings facilitated by the
18 Bureau. Scholarship opportunities shall be afforded each year to
19 county and municipal law enforcement agencies to attend accredited
20 trainings conducted by the Bureau. Expenditures from the fund shall
21 be made upon warrants issued by the State Treasurer against claims
22 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
23 of the Office of Management and Enterprise Services for approval and
24 payment. The Bureau is authorized to promulgate agency rules for

1 the administration of the fund and determination of scholarship
2 awards.

3
4 SECTION 704. AMENDATORY 74 O.S. 2021, Section 150.19a,
5 is amended to read as follows:

6 Section 150.19a. There is hereby created in the State Treasury
7 a revolving fund for the Oklahoma State Bureau of Investigation to
8 be designated the "OSBI Revolving Fund". The fund shall be a
9 continuing fund, not subject to fiscal year limitations, and shall
10 consist of any monies received from the sale of surplus property,
11 fees and receipts collected pursuant to the Oklahoma Open Records
12 Act, fines, forfeitures, fees, charges, receipts, donations, gifts,
13 bequests, contributions, devises, interagency reimbursements,
14 federal funds unless otherwise provided by federal law or
15 regulation, or any other source. All monies accruing to the credit
16 of said fund are hereby appropriated and may be budgeted and
17 expended by the Oklahoma State Bureau of Investigation for operating
18 expenses of the Bureau, for the purpose of implementing the Oklahoma
19 Reward System pursuant to Section 150.18 of this title, and to
20 purchase equipment and provide training to law enforcement agencies
21 located in the state, pursuant to Section 62.9 of this title.
22 Expenditures from said fund shall be made upon warrants issued by
23 the State Treasurer against claims filed as prescribed by law with
24

1 the ~~Director~~ Chief Operating Officer of the Office of Management and
2 Enterprise Services for approval and payment.

3 SECTION 705. AMENDATORY Section 1, Chapter 38, 1st
4 Extraordinary Session, O.S.L. 2023 (74 O.S. Supp. 2025, Section
5 150.19b), is amended to read as follows:

6 Section 150.19b. There is hereby created in the State Treasury
7 a revolving fund for the Oklahoma State Bureau of Investigation to
8 be designated the "Oklahoma State Bureau of Investigation Centennial
9 Revolving Fund". The fund shall be a continuing fund, not subject
10 to fiscal year limitations, and shall consist of all monies received
11 by the Oklahoma State Bureau of Investigation from gifts, donations,
12 or any other source. All monies accruing to the credit of the fund
13 are hereby appropriated and may be budgeted and expended by the
14 Oklahoma State Bureau of Investigation for the purpose of
15 celebrating the centennial of the Oklahoma State Bureau of
16 Investigation. Expenditures from the fund shall be made upon
17 warrants issued by the State Treasurer against claims filed as
18 prescribed by law with the ~~Director~~ Chief Operating Officer of the
19 Office of Management and Enterprise Services for approval and
20 payment.

21 SECTION 706. AMENDATORY 74 O.S. 2021, Section 150.25, is
22 amended to read as follows:

23 Section 150.25. There is hereby created in the State Treasury a
24 revolving fund for the Oklahoma State Bureau of Investigation, to be

1 designated the "A.F.I.S. Fund". The fund shall be a continuing
2 fund, not subject to fiscal year limitations, and shall consist of
3 all monies received by the Oklahoma State Bureau of Investigation,
4 from appropriations, federal grants and assessments levied to said
5 fund pursuant to law. All monies accruing to the credit of said
6 fund are hereby appropriated and shall be budgeted and expended by
7 the Oklahoma State Bureau of Investigation for the purpose of
8 maintaining and operating the Automated Fingerprint Identification
9 System (A.F.I.S.) until the indebtedness for the purchase of the
10 automated fingerprint identification system equipment has been
11 satisfied and to purchase equipment and provide training to law
12 enforcement agencies located in the state, pursuant to Section 62.9
13 of this title. After the indebtedness has been satisfied, any
14 monies not necessary for the maintenance, operating and upgrading
15 expenses of the A.F.I.S. may be used for purchase, renovation or
16 leasing of buildings, upgrading of laboratory equipment, and other
17 capital expenditures of the Oklahoma State Bureau of Investigation
18 and to purchase equipment and provide training to law enforcement
19 agencies located in the state, pursuant to Section 62.9 of this
20 title. Expenditures from said fund shall be made upon warrants
21 issued by the State Treasurer against claims filed as prescribed by
22 law with the ~~Director~~ Chief Operating Officer of the Office of
23 Management and Enterprise Services for approval and payment.

SECTION 707. AMENDATORY 74 O.S. 2021, Section 150.32, is amended to read as follows:

Section 150.32. A. There is hereby established the "Firearms Laboratory Improvement Fund". The fund shall be a continuing fund for the Oklahoma State Bureau of Investigation. The fund shall not be subject to fiscal year limitations and shall consist of monies received from all state agencies which seize assets pursuant to the Uniform Controlled Dangerous Substances Act during the fiscal year ending June 30, 1994. Each agency's contribution shall be determined on a pro rata basis based on the percentage of forfeitures collected by the agency during the fiscal year ending June 30, 1993, in relation to the total monetary value of all forfeitures collected by all agencies contributing to the fund. The amount each agency is to contribute shall be determined by the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services and the Cabinet Secretary for Safety and Security. Funds shall be transferred pursuant to a time schedule established by the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services and the Cabinet Secretary for Safety and Security, but all such funds shall be transferred as available. The total amount of money to be paid into the fund shall not exceed One Hundred Forty-five Thousand Dollars (\$145,000.00). Funds collected in the Drugfire Project Fund during the 1994 fiscal year shall be carried over into the Firearms Laboratory Improvement

1 Fund. Expenditures from the fund shall be made upon warrants issued
2 by the State Treasurer against claims filed as prescribed by law
3 with the ~~Director~~ Chief Operating Officer of the Office of
4 Management and Enterprise Services for approval and payment.

5 B. The Firearms Laboratory Improvement Fund shall be used to
6 upgrade the firearms laboratory services of the Oklahoma State
7 Bureau of Investigation criminalistics laboratory. Expenditures
8 from the fund shall be used only for training of personnel, matching
9 funds for federal grants to obtain laboratory instrumentation, the
10 purchase of laboratory instrumentation and equipment, and to upgrade
11 existing laboratory instrumentation and equipment. If the Firearms
12 Laboratory Improvement Fund is not expended by June 30, 1996, funds
13 contributed by agencies shall be repaid to the agencies.

14 SECTION 708. AMENDATORY 74 O.S. 2021, Section 150.35, is
15 amended to read as follows:

16 Section 150.35. There is hereby created in the State Treasury a
17 revolving fund for the Oklahoma State Bureau of Investigation to be
18 designated the "Forensic Science Improvement Revolving Fund". The
19 fund shall be a continuing fund, not subject to fiscal year
20 limitations, and shall consist of all appropriated funds, any funds
21 from state, federal or other grants, the funds collected from
22 assessments provided by Section 1313.4 of Title 20 of the Oklahoma
23 Statutes, any monies transferred from the OSBI Revolving Fund; and
24 any other monies designated to or deposited to the benefit of this

fund. All monies accruing to the credit of this fund are hereby appropriated and may be budgeted and expended by the Oklahoma State Bureau of Investigation for the purpose of improvement of the forensic science services of the Oklahoma State Bureau of Investigation including, but not limited to:

1. Purchase, construction, renovation, financing or leasing of facilities and equipment;

2. Purchase, rental, upgrades, repair, and maintenance of instrumentation and equipment;

3. Salaries, benefits, training, equipment, supplies, and overhead expenses for agency personnel;

4. Education, training and development of OSBI personnel;

5. Destruction of seized property and chemicals;

6. Accreditation and quality assurance expenses;

7. Professional services contracts;

8. Purchase equipment and provide training to law enforcement agencies located in this state, pursuant to Section 62.9 of this title; and

9. Enhancement or implementation of forensic technologies.

Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 709. AMENDATORY 74 O.S. 2021, Section 152.5, is amended to read as follows:

Section 152.5. A. All monies received from fines and forfeitures for violations of the provisions of this act on behalf of the Bureau, when collected by the court clerk, shall be deposited by such clerk as follows:

1. Fifty percent (50%) thereof with the county treasurer to be credited to the general fund of the county and so reported; and

2. Fifty percent (50%) shall be transmitted to the Oil and Gas Theft Recovery Fund by cash voucher and so reported.

B. All transmittals of monies under this section shall be accompanied by a report showing the name of the court, the number of the case, the style of the case and the amount of fine and forfeiture in each separate instance.

C. There is hereby created in the State Treasury a revolving fund for the Bureau, to be designated the "Oil and Gas Theft Recovery Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Bureau, from fines and forfeitures received pursuant to this act. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Bureau for the purpose of effectuating the provisions of this act. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with

1 the ~~Director~~ Chief Operating Officer of the Office of Management and
2 Enterprise Services for approval and payment.

3 SECTION 710. AMENDATORY 74 O.S. 2021, Section 166.7, is
4 amended to read as follows:

5 Section 166.7. A. There is hereby created in the State
6 Treasury a revolving fund for the Commission on Rehabilitation
7 Services, to be designated the "Rehabilitation Services Disbursing
8 Fund" provided that the fund may be designated by fiscal year
9 designations as the Commission may determine. The fund shall be a
10 continuing fund, not subject to fiscal year limitations. The fund
11 shall consist of receipts from the federal government, monies
12 appropriated to the State Department of Rehabilitation Services by
13 the State Legislature, and other receipts of the State Department of
14 Rehabilitation Services as shall be directed by the Commission for
15 Rehabilitation Services. All monies accruing to the credit of the
16 fund are hereby appropriated and may be budgeted and expended by the
17 Commission for Rehabilitation Services as may be necessary in order
18 to carry out the duties imposed upon the Commission by law.

19 Expenditures from the Rehabilitation Services Disbursing Fund shall
20 be made upon warrants issued by the State Treasurer against claims
21 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
22 of the Office of Management and Enterprise Services for approval and
23 payment.

1 B. Appropriations, federal monies or any other monies collected
2 by or for the Department and monies from the current and prior
3 fiscal years may be transferred to and between the agency disbursing
4 funds for the current or prior fiscal years, the Medical and
5 Assistance Funds and any other funds authorized for the use by the
6 Department as necessary to carry out the duties of the Commission.
7 All transfer requests shall be in writing to the Office of
8 Management and Enterprise Services. Such monies transferred shall
9 be included in the Department's budget work program. The Department
10 shall maintain records of the transfers.

11 C. Receipt and expenditure of unanticipated federal funds
12 awarded to the Department after the commencement of the fiscal year
13 shall be exempt from expenditure limitations, provided that any such
14 funds are included in the Department's budget work program.

15 D. The Director of the Department may request through the
16 ~~Director~~ Chief Operating Officer of the Office of Management and
17 Enterprise Services the early transfer by the Oklahoma Tax
18 Commission of tax collection to the General Revenue Fund for the
19 purpose of early allocation to the Department's disbursing funds to
20 alleviate cash-flow problems.

21 E. The Department of Rehabilitation Services may direct all or
22 a portion of federal and state funds received and appropriated for
23 services to Older Individuals who are Blind (OIB) to qualified
24 community-based, nonprofit organizations accredited by the National

1 Accreditation Council for Blind and Low Vision Services to
2 administer, pursuant to contract, services for older individuals
3 with vision impairments including, but not limited to, assisting in
4 correcting or modifying visual disabilities including optical vision
5 aids, in-home training, orientation and mobility, Braille
6 instruction, adaptive skills training, information and referral,
7 peer counseling and other appropriate services designed to assist an
8 older individual who is blind with daily living activities.

9 F. Funds received by the Commission for OIB Rehabilitation
10 Services from the federal Rehabilitation Services Administration and
11 state matching funds may, in their entirety, be used to fund the
12 Independent Living Older Blind program as established in The
13 Rehabilitation Act of 1973, as amended.

14 G. Services provided by qualified Older Independent Blind
15 contractors may be dependent upon budget parameters and staffing.

16 SECTION 711. AMENDATORY 74 O.S. 2021, Section 166.9, is
17 amended to read as follows:

18 Section 166.9. A. Each state individual income tax return form
19 and each corporate income tax return form for tax years commencing
20 after December 31, 2001, shall contain a designation for donations
21 of tax refunds to the Oklahoma School for the Blind/Oklahoma School
22 for the Deaf.

23 B. The monies generated pursuant to subsection A of this
24 section shall be paid to the State Treasurer by the Oklahoma Tax

Commission and placed to the credit of the Oklahoma School for the Deaf/Oklahoma School for the Blind Revolving Fund.

C. There is hereby created in the State Treasury a revolving fund for the State Department of Rehabilitation Services to be designated the "Oklahoma School for the Deaf/Oklahoma School for the Blind Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies apportioned to the fund pursuant to the provisions of this section. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the State Department of Rehabilitation Services for the purpose of funding programs at the Oklahoma School for the Deaf and the Oklahoma School for the Blind. Such monies shall be equally divided between the two designated schools. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

D. If a taxpayer makes a donation pursuant to subsection A of this section in error, such taxpayer may file a claim for refund at any time within three (3) years from the due date of the tax return pursuant to Section 2373 of Title 68 of the Oklahoma Statutes. Prior to the apportionment set forth in this section, an amount equal to the total amount of refunds made pursuant to this

subsection during any one (1) year shall be deducted from the total donations received pursuant to this section during the following year and such amount deducted shall be paid to the State Treasurer and placed to the credit of the Income Tax Withholding Refund Account.

SECTION 712. AMENDATORY 74 O.S. 2021, Section 212A, is amended to read as follows:

Section 212A. A. 1. Except as otherwise provided by law, all government entities, as defined by the Governmental Accounting Standards Board, shall have an audit conducted in accordance with auditing standards generally accepted in the United States of America and Government Auditing Standards. Copies of any audit, performance audit, agreed-upon-procedures report, or other attestation engagement report produced by a person other than the State Auditor shall be filed with the State Auditor and Inspector by that person. The expense of the audit shall be paid by the government entity. For fiscal years ending after December 31, 1995, all government entities receiving public funds that are included in the reporting entity of the State of Oklahoma shall file a copy of the audit required by this paragraph with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services no later than four (4) months after the end of the fiscal year of the government entity. For purposes of this paragraph, the reporting entity of the State of Oklahoma includes all government

1 entities included in the State of Oklahoma Comprehensive Annual
2 Financial Report. The government entities included in the State of
3 Oklahoma reporting entity shall be determined by the ~~Director~~ Chief
4 Operating Officer of the Office of Management and Enterprise
5 Services using criteria set by the Governmental Accounting Standards
6 Board.

7 2. Any public accountant or certified public accountant filing
8 an audit, performance audit, agreed-upon-procedures report or other
9 attestation engagement report with the State Auditor and Inspector
10 pursuant to this section shall be required to pay a filing fee of
11 One Hundred Dollars (\$100.00) for the purposes of processing such
12 reports and ensuring compliance with the provisions of this section.
13 Such payments shall be deposited in the State Auditor and Inspector
14 Revolving Fund, created pursuant to Section 227.9 of this title.

15 B. All registrants, as defined in the Oklahoma Accountancy Act,
16 before entering into audit contracts required under this section,
17 shall satisfy the Oklahoma Accountancy Board and the State Auditor
18 and Inspector that such registrant meets Government Auditing
19 Standards and has a current permit to practice issued by the
20 Oklahoma Accountancy Board.

21 The State Auditor and Inspector shall receive annual reports
22 from the Oklahoma Accountancy Board of all registrants meeting the
23 requirements of this subsection. The Oklahoma Accountancy Board
24

1 shall provide changes and updates to the annual report to the State
2 Auditor and Inspector upon request.

3 C. Schedules of federal awards expended will be in a form
4 consistent with the guidance in the most recent audit guide for
5 state and local governments prepared by "The American Institute of
6 Certified Public Accountants". State agencies or other pass-through
7 grantors of federal awards expended will not place reporting
8 requirements on a grantee or subrecipients in addition to the
9 required federal compliance reports and schedules of federal awards
10 expended, without approval of the State Auditor and Inspector.

11 D. All governmental entities shall report grant funds received,
12 administered or used by the entity and all grant funds under the
13 direct or indirect control of the governmental entity or any of its
14 employees in their employment capacity. A copy of the report shall
15 be filed with the State Auditor and Inspector and the ~~Director~~ Chief
16 Operating Officer of the Office of Management and Enterprise
17 Services within four (4) months after the end of the fiscal year of
18 the governmental entity. The State Auditor and Inspector may audit
19 any funds reported. The cost of the audit shall be paid by the
20 governmental entity unless the grant provides for the cost of audits
21 from grant funds.

22
23 SECTION 713. AMENDATORY 74 O.S. 2021, Section 227.9, is
24 amended to read as follows:

1 Section 227.9. There is hereby created in the State Treasury a
2 revolving fund for the Office of the State Auditor and Inspector to
3 be designated the "State Auditor and Inspector Revolving Fund". The
4 fund shall be a continuing fund, not subject to fiscal year
5 limitations, and shall consist of all money paid to and received by
6 the State Auditor and Inspector from state agencies, boards and
7 commissions authorized by statute to pay the expense of audits and
8 consulting services, money received for performance of audits and
9 consulting services pursuant to contract entered into under the
10 authority of Section 227.8 of this title, funds received from state
11 agencies, boards and commissions receiving federal grants of funds
12 which require periodic audits under said grants or any federal
13 regulations, all money received from counties, cities, towns and
14 public trusts in payment of audit expense, funds appropriated to
15 state agencies, boards and commissions for payment of audit expense,
16 and fees collected pursuant to Section 212A of this title. All
17 monies accruing to the credit of said fund are hereby appropriated
18 and may be budgeted and expended by the Office of the State Auditor
19 and Inspector for expenses necessary for the performance of duties
20 imposed upon the Office of the State Auditor and Inspector by law.
21 Expenditures from said fund shall be made upon warrants issued by
22 the State Treasurer against claims filed as prescribed by law with
23 the ~~Director~~ Chief Operating Officer of the Office of Management and
24 Enterprise Services for approval and payment. The State Auditor and

Inspector shall at the close of each fiscal year pay into the General Revenue Fund of the state any unencumbered balance remaining in said revolving fund in excess of Eight Hundred Fifty Thousand Dollars (\$850,000.00).

SECTION 714. AMENDATORY 74 O.S. 2021, Section 291.2, is amended to read as follows:

Section 291.2. The Board on Legislative Compensation created by Section 21 of Article V of the Oklahoma Constitution shall meet on the third Tuesday of October in every odd-numbered year at nine o'clock a.m. in the State Capitol Building, at which meeting the Board shall review the compensation paid to members of the State Legislature and, if necessary, change the compensation. The Board may, at the call of its chairman or upon a majority vote of its membership, hold such additional meetings as are necessary to carry out its official duties. Any change in legislative compensation shall be made by the Board no later than the third Tuesday of November in said odd-numbered year. Five members of the Board shall constitute a quorum and a majority vote of such quorum shall be necessary for the Board to act. The appointed members of said Board shall serve terms which run concurrently with the terms of the respective appointing authorities and shall serve at their pleasure. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services shall serve as Secretary to the Board. The Board shall elect such other officers as they deem needed from their

membership. No member of the Board shall be a lobbyist as required to be registered pursuant to the Oklahoma Campaign Compliance and Ethical Standards Act.

SECTION 715. AMENDATORY 74 O.S. 2021, Section 292.12, is amended to read as follows:

Section 292.12. A. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services is hereby directed to implement a direct deposit system for employees who are subject to the provisions of the Oklahoma State Employees' Direct Deposit Act. There shall be no service charge of any type paid by the state employee at any time which shall decrease the net amount of the employee's salary deposited to the financial institution of the personal choice of the employee as a result of the implementation and administration of the Oklahoma State Employees' Direct Deposit Act.

1. Employees hired after December 31, 2004, shall participate in the direct deposit system. At the time the employee enters on duty, the employee shall identify a financial institution that will serve as a personal depository agent for the employee.

2. Employees hired before December 31, 2004, shall participate in the direct deposit system. No later than June 30, 2007, each employee hired before December 31, 2004, who is not a participant in the direct deposit system, shall identify a financial institution that will serve as a personal depository agent for the employee.

1 B. The ~~Director~~ Chief Operating Officer of the Office of
2 Management and Enterprise Services shall promulgate rules as
3 necessary for implementation and administration of the system, which
4 shall include limited exceptions to required participation by
5 employees.

6 C. All employers shall begin offering direct deposit to any
7 eligible employee not later than January 1, 1992.

8
9 SECTION 716. AMENDATORY 74 O.S. 2021, Section 324.20b,
10 as amended by Section 4, Chapter 311, O.S.L. 2022 (74 O.S. Supp.
11 2025, Section 324.20b), is amended to read as follows:

12 Section 324.20b. There is hereby created in the State Treasury
13 a revolving fund for the State Fire Marshal to be designated the
14 "State Fire Marshal Revolving Fund". The fund shall be a continuing
15 fund, not subject to fiscal year limitations, and shall consist of
16 monies received from the sale of surplus property, fees and receipts
17 collected pursuant to the Oklahoma Open Records Act, fines,
18 forfeitures, fees, charges, receipts, donations, gifts, bequests,
19 contributions, devises, interagency reimbursements, federal funds
20 unless otherwise provided by federal law or regulation, or any other
21 source. All monies accruing to the credit of the fund are hereby
22 appropriated and may be budgeted and expended by the State Fire
23 Marshal for authorized purposes. Expenditures from the fund shall
24 be made upon warrants issued by the State Treasurer against claims

1 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
2 of the Office of Management and Enterprise Services for approval and
3 payment.

4 SECTION 717. AMENDATORY 74 O.S. 2021, Section 325.4, is
5 amended to read as follows:

6 Section 325.4. There is hereby created in the State Treasury a
7 revolving fund for the Office of the State Fire Marshal to be
8 designated the "Firefighter Training Revolving Fund". The fund
9 shall be a continuing fund, not subject to fiscal year limitations,
10 and shall consist of monies received by the Office of the State Fire
11 Marshal from the General Revenue Fund or any source pursuant to the
12 provisions of any law or agreement. All monies accruing to the
13 credit of the fund are hereby appropriated and may be budgeted and
14 expended by the Office of the State Fire Marshal for payment of the
15 firefighter training programs through Oklahoma State University Fire
16 Service Training. Expenditures from the fund shall be made upon
17 warrants issued by the State Treasurer against claims filed as
18 prescribed by law with the ~~Director~~ Chief Operating Officer of the
19 Office of Management and Enterprise Services for approval and
20 payment.

21 SECTION 718. AMENDATORY 74 O.S. 2021, Section 500.2, as
22 amended by Section 1, Chapter 63, O.S.L. 2022 (74 O.S. Supp. 2025,
23 Section 500.2), is amended to read as follows:
24

1 Section 500.2. A. Officials and employees of the state,
2 traveling on authorized state business, may be reimbursed for
3 expenses incurred in such travel in accordance with the provisions
4 of the State Travel Reimbursement Act and existing statutes relating
5 to state travel. Persons who are not state employees, but who are
6 performing substantial and necessary services to the state which
7 have been directed or approved by the appropriate department
8 official, shall enjoy the protection of the sovereign immunity of
9 the state to the same extent as a paid employee. Such persons may
10 be reimbursed for expenses incurred during authorized official
11 travel under these same statutory provisions; provided, it is
12 indicated on the claim the person is not a state employee, a
13 description of services performed is entered, and the agency head by
14 approval of the claim certifies such services were substantial and
15 necessary, and germane to the duties and functions of the
16 reimbursing agency. Travel expenses incurred by a person during the
17 course of seeking employment with a state agency, unless such travel
18 is performed at the request of the employing agency, shall not be
19 considered expenses incurred in performing substantial and necessary
20 services to the state and shall not be reimbursed under the
21 provisions of the State Travel Reimbursement Act.

22 B. The chief administrative officer of the Department of Public
23 Safety, the Oklahoma State Bureau of Investigation, the Oklahoma
24 State Bureau of Narcotics and Dangerous Drugs Control, the Military

1 Department of the State of Oklahoma, the Department of Corrections,
2 the Office of Management and Enterprise Services, the Alcoholic
3 Beverage Laws Enforcement Commission, the Oklahoma Department of
4 Agriculture, Food, and Forestry, the Oklahoma Department of
5 Emergency Management, the State Fire Marshal, and the State
6 Department of Health may arrange for and charge meals and lodging
7 for a contingent of state personnel moved into an area for the
8 purpose of preserving the public health, safety, or welfare or for
9 the protection of life or property. The cost for meals or lodging
10 so charged shall not exceed the amount authorized in the State
11 Travel Reimbursement Act. The chief administrative officer of each
12 agency involved in such an operation shall require the vendor
13 furnishing meals, lodging, or both meals and lodging to submit an
14 itemized statement for payment. When a claim for lodging is made
15 for a contingent of state personnel, individual members of the
16 contingent may not submit a claim for lodging. When a claim for
17 meals is made for a contingent of state personnel, individual
18 members of the contingent may not submit a claim for meals.

19 C. The Oklahoma Department of Commerce, the Oklahoma Center for
20 the Advancement of Science and Technology, and the Oklahoma
21 Department of Agriculture, Food, and Forestry are hereby authorized
22 to enter into contracts and agreements for the payment of food,
23 lodging, meeting facility and beverage expenses as may be necessary
24 for sponsoring seminars and receptions relating to economic

1 development and science and technology issues. Such expenses may be
2 paid directly to the contracting agency or business establishment.
3 The Director of the Oklahoma Department of Commerce, the President
4 of the Oklahoma Center for the Advancement of Science and
5 Technology, and the Commissioner of Agriculture shall each provide a
6 quarterly report of such expenditures to the Governor, the Speaker
7 of the House of Representatives and the President Pro Tempore of the
8 Senate.

9 D. The Native American Cultural and Educational Authority is
10 hereby authorized to enter into contracts and agreements for the
11 payment of food, lodging, and meeting facility as may be necessary
12 to pursue the promotion of fundraising, marketing, and development
13 of Native American educational programs and cultural projects, or to
14 sponsor luncheons, seminars, and receptions relating to Native
15 American educational, cultural, museum, and economic development
16 issues. Such expenses may be paid directly to the contracting
17 agency or business establishment. The Executive Director of the
18 Native American Cultural and Educational Authority shall provide a
19 monthly report of expenditures to the Native American Cultural and
20 Educational Authority Board.

21 E. For purposes of this section:

22 1. "State agency" means any constitutionally or statutorily
23 created state board, commission, or department, including the
24 Legislature and the Courts;

1 2. State agencies are authorized to enter into contracts and
2 agreements for the payment of food and lodging expenses as may be
3 necessary for employees or other persons who are performing
4 substantial and necessary services to the state by attending
5 official conferences, meetings, seminars, workshops, or training
6 sessions or in the performance of their duties. Such expenses may
7 be paid directly to the contracting agency or business
8 establishment; provided the meeting qualifies for overnight travel
9 for the employees and the cost for food and lodging for each
10 employee shall not exceed the total daily rate as provided in the
11 State Travel Reimbursement Act;

12 3. State agencies are authorized to enter into contracts and
13 agreements for the payment of conference registration expenses as
14 may be necessary for employees or other persons who are performing
15 substantial and necessary services to the state by attending
16 official conferences, meetings, seminars, workshops, or training
17 sessions. Such expenses may be paid directly to the contracting
18 agency or business establishment; and

19 4. State agencies are authorized to enter into contracts and
20 agreements for the payment of food and lodging expenses as may be
21 necessary for employees attending an official course of instruction
22 or training conducted or sponsored by any state agency. Expenses
23 may be paid directly to the contracting agency or business
24 establishment. The cost for food and lodging for each employee

1 shall not exceed the total daily rate as provided in the State
2 Travel Reimbursement Act.

3 F. State agencies are authorized to make direct purchases of
4 commercial airline tickets for use by employees in approved out-of-
5 state travel. Each claim or invoice submitted to the ~~Director~~ Chief
6 Operating Officer of the Office of Management and Enterprise
7 Services for the payment of the purchase shall bear the airline
8 identifying ticket number, the name of the airline, total cost of
9 each ticket purchased, class of accommodation and name of the
10 employee for whom the ticket was purchased and shall be filed on
11 claim forms as prescribed by the ~~Director~~ Chief Operating Officer of
12 the Office of Management and Enterprise Services. The employee
13 shall sign an affidavit stating that the employee used a direct
14 purchase commercial airline ticket received for his or her approved
15 out-of-state travel, or in lieu of the affidavit, the employee may
16 file a travel claim in connection with said airline flight.

17 G. 1. The ~~Director~~ Chief Operating Officer of the Office of
18 Management and Enterprise Services is hereby authorized to enter
19 into contracts and agreements for the payment of food, lodging, and
20 other authorized expenses as may be necessary to host, conduct,
21 sponsor, or participate in conferences, meetings, or training
22 sessions. The ~~Director~~ Chief Operating Officer may establish
23 accounts as necessary for the collection and distribution of funds,
24 including funds of sponsors and registration fees, related to such

1 conferences, meetings, and training sessions. Expenses incurred may
2 be paid directly to the contracting agency or business
3 establishment.

4 2. The cost of food for persons attending any conferences,
5 meetings, and training sessions that do not require overnight travel
6 shall not exceed the total daily rate as provided in the State
7 Travel Reimbursement Act.

8 H. 1. The Commissioner of the Department of Mental Health and
9 Substance Abuse Services is hereby authorized to enter into
10 contracts and agreements for the payment of food, lodging, and other
11 authorized expenses as may be necessary to host, conduct, sponsor,
12 or participate in conferences, meetings, or training sessions. The
13 Commissioner may establish accounts as necessary for the collection
14 and distribution of funds, including funds of sponsors and
15 registration fees, related to such conferences, meetings, and
16 training sessions. Any expenses incurred may be paid directly to
17 the contracting agency or business establishment.

18 2. The cost of food for persons attending any conferences,
19 meetings, and training sessions that do not require overnight travel
20 shall not exceed the total daily rate as provided in the State
21 Travel Reimbursement Act.

22 I. The Oklahoma Indigent Defense System is hereby authorized to
23 enter into contracts and agreements for the payment of lodging as
24 necessary for employees to carry out their duties in representing

1 any client whom the System has been properly appointed to represent.
2 Such expenses may be paid directly to the contracting agency or
3 business establishment. The cost for lodging for each employee
4 shall not exceed the daily rate as provided in the State Travel
5 Reimbursement Act.

6 J. The Oklahoma Tourism and Recreation Department is hereby
7 authorized to enter into contracts and agreements for the payment of
8 food, lodging, and meeting facility and beverage expenses as may be
9 necessary for seminars and receptions relating to familiarization
10 tours and tourism development. The expenses may be paid directly to
11 the contracting agency or business establishment. The Executive
12 Director of the Oklahoma Tourism and Recreation Department shall
13 provide a monthly report of any such expenditures to the Oklahoma
14 Tourism and Recreation Commission.

15 K. The Oklahoma Tourism and Recreation Department is hereby
16 authorized to enter into contracts and agreements for the payment of
17 exhibitor fees and display space charges at expositions to promote
18 the Department's recreational facilities and the tourism and
19 recreation industry. The expenses may be paid directly to the
20 contracting agency or business establishment; provided that no
21 payment shall be made prior to the event unless it conveys a
22 property right to the state for future availability and use.

23 L. 1. The Oklahoma Highway Safety Office of the Department of
24 Public Safety is hereby authorized to enter into contracts and

1 agreements for the payment of food, lodging, and other authorized
2 expenses as may be necessary to host, conduct, sponsor, or
3 participate in highway-safety-related conferences, workshops,
4 seminars, meetings, or training sessions. The payments shall be for
5 all persons in attendance, including, but not limited to, employees
6 of political subdivisions or employees of the state or federal
7 government. For purposes specified in this paragraph, only federal
8 highway safety funds may be used in accordance with federal
9 guidelines and regulations, and no appropriated state funds shall be
10 used.

11 2. The cost of food for persons attending any highway safety
12 conferences, workshops, seminars, meetings, and training sessions
13 that do not require overnight travel shall not exceed the total
14 daily rate as provided in the State Travel Reimbursement Act.

15 M. 1. The Director of the Oklahoma State Bureau of
16 Investigation is hereby authorized to enter into contracts and
17 agreements for the payment of food, lodging and other authorized
18 expenses as may be necessary to host, conduct, sponsor or
19 participate in any conference, meeting, training session or
20 initiative to promote the mission and purposes of the Bureau. The
21 payments may be for all persons in attendance, including, but not
22 limited to, employees of political subdivisions or employees of the
23 state or federal government.

1 2. The cost of food for persons that do not require overnight
2 travel shall not exceed the total daily rate as provided in the
3 State Travel Reimbursement Act.

4 N. The Oklahoma Homeland Security Director is hereby authorized
5 to enter into contracts and agreements for the payment of food,
6 lodging and other authorized expenses as may be necessary to host,
7 conduct, sponsor, or participate in homeland-security-related
8 conferences, meetings, workshops, seminars, exercises or training
9 sessions. The expenses may be paid directly to the contracting
10 agency or business establishment.

11 O. The State Department of Education is hereby authorized to
12 enter into contracts and agreements for the payment of food, lodging
13 and other authorized expenses as may be necessary to host, conduct,
14 sponsor or participate in conferences, meetings or training
15 sessions. The State Department of Education may establish accounts
16 as necessary for the collection and distribution of funds, including
17 funds of sponsors and registration fees, related to such
18 conferences, meetings and training sessions. Any expenses incurred
19 may be paid directly to the contracting agency or business
20 establishment.

21 P. 1. The Insurance Commissioner of the Insurance Department
22 of the State of Oklahoma is hereby authorized to enter into
23 contracts and agreements for the payment of food, lodging, and other
24 authorized expenses as may be necessary to host, conduct, sponsor,

1 or participate in conferences, meetings, or training sessions. The
2 Commissioner may establish accounts as necessary for the collection
3 and distribution of funds, including funds of sponsors and
4 registration fees, related to such conferences, meetings, and
5 training sessions. Any expenses incurred may be paid directly to
6 the contracting agency or business establishment.

7 2. The cost of food for persons attending any conferences,
8 meetings, and training sessions that do not require overnight travel
9 shall not exceed the total daily rate as provided in the State
10 Travel Reimbursement Act.

11 Q. 1. The State Regents for Higher Education is hereby
12 authorized to enter into contracts and agreements for the payment of
13 food, lodging, and other authorized expenses as may be necessary to
14 host, conduct, sponsor, or participate in conferences, meetings, or
15 training sessions. The State Regents for Higher Education may
16 establish accounts as necessary for the collection and distribution
17 of funds, including funds of sponsors and registration fees, related
18 to such conferences, meetings, and training sessions. Any expenses
19 incurred may be paid directly to the contracting agency or business
20 establishment.

21 2. The cost of food for persons attending any conferences,
22 meetings, and training sessions that do not require overnight travel
23 shall not exceed the total daily rate as provided in the State
24 Travel Reimbursement Act.

1 R. 1. The Office of Educational Quality and Accountability is
2 hereby authorized to enter into contracts and agreements for the
3 payment of food, lodging, and other authorized expenses as may be
4 necessary to host, conduct, sponsor, or participate in conferences,
5 meetings, or training sessions. The Office of Educational Quality
6 and Accountability may establish accounts as necessary for the
7 collection and distribution of funds, including funds of sponsors
8 and registration fees, related to such conferences, meetings, and
9 training sessions. Any expenses incurred may be paid directly to
10 the contracting agency or business establishment.

11 2. The cost of food for persons attending any conferences,
12 meetings, and training sessions that do not require overnight travel
13 shall not exceed the total daily rate as provided in the State
14 Travel Reimbursement Act.

15 S. 1. The Department of Securities is hereby authorized to
16 enter into contracts and agreements for the payment of food,
17 lodging, meeting facility, facilitator fees and travel expenses,
18 exhibitor fees and other authorized expenses as may be necessary to
19 host, conduct, sponsor or participate in conferences, meetings,
20 training sessions or initiatives promoting or otherwise relating to
21 investor education. The Department of Securities may establish
22 accounts as necessary for the collection and distribution of funds,
23 including funds of sponsors and registration fees, related to such
24 conferences, meetings, training sessions or initiatives. The

1 payments may be for all persons in attendance, including, but not
2 limited to, employees of the state or federal government or
3 employees of political subdivisions of the state, including
4 employees of boards of public education. Expenses incurred may be
5 paid directly to the contracting agency or business establishment.

6 2. The cost of food for persons attending any conferences,
7 meetings and training sessions that do not require overnight travel
8 shall not exceed the total daily rate as provided in the State
9 Travel Reimbursement Act.

10 3. The Department of Securities is hereby authorized to pay
11 stipends to teachers participating in the investor education program
12 and monetary achievement awards to select participating students.
13 No appropriated state funds shall be used.

14 T. 1. The Oklahoma Department of Veterans Affairs is hereby
15 authorized to enter into contracts and agreements for the payment of
16 food, lodging, meeting facility, beverage and other authorized
17 expenses as may be necessary to host, conduct, sponsor or
18 participate in seminars, receptions, conferences, meetings or
19 training sessions related to the support of veterans and the
20 development of veterans' services. Expenses incurred may be paid
21 directly to the contracting agency or business establishment. The
22 Executive Director of the Oklahoma Department of Veterans Affairs
23 shall provide a monthly report of any such expenditures to the
24 Oklahoma Veterans Commission.

2. The cost of food for persons attending any conferences, meetings and training sessions that do not require overnight travel shall not exceed the total daily rate as provided in the State Travel Reimbursement Act.

U. Whenever possible it shall be the policy of each state agency to prepay airline fares and lodging expenses using a purchase card issued to the agency. This policy shall apply to instances where employees of the agency are traveling on behalf of state government.

SECTION 719. AMENDATORY 74 O.S. 2021, Section 500.9, as amended by Section 5, Chapter 63, O.S.L. 2022 (74 O.S. Supp. 2025, Section 500.9), is amended to read as follows:

Section 500.9. A. Reimbursement for overnight lodging, while in official travel status, may be made at an amount authorized by the provisions of the federal Government Services Administration (GSA) in its Federal Travel Regulation (FTR) 42 C.F.R. Section 300-1.1 et seq. and as updated in its FTR Bulletins for travel while away from home without additional documentation or the actual cost, if lower, per night except as provided in subsections B, C, E, and G of this section and Section 500.9A of this title. Receipts issued by the hotel, motel or other public lodging place shall accompany claims for reimbursement.

B. State officers or employees attending meetings, workshops, conferences or other objectives of trips which are conducted at a

1 designated hotel, motel or other public lodging place or where
2 lodging has been arranged for by the blocking of rooms or by rate
3 reductions for the participants by the sponsor as evidenced by the
4 announcement or notice of the meeting, workshop, conference or other
5 objective shall be reimbursed the actual lodging expense not to
6 exceed the single occupancy room rate charged by the designated
7 hotel, motel or other public lodging place; provided, that the
8 officials or employees are in official travel status approved by the
9 agency head or designee. Provided further, those state officers or
10 employees attending meetings, workshops, conferences or other
11 objectives of trips, which are conducted at a designated hotel,
12 motel or other public lodging place as provided by this subsection,
13 who choose to acquire less expensive lodging at another hotel, motel
14 or other public lodging place shall be reimbursed the actual lodging
15 expense not to exceed the single occupancy room rate charged by the
16 designated hotel, motel or other public lodging place. Provided
17 further, those state officers or employees so choosing this option
18 shall be reimbursed for local transportation costs incurred
19 traveling between such optional lodging and the designated hotel,
20 motel or other public lodging place not to exceed the difference
21 between the cost of the designated lodging and the cost of the
22 optional lodging. Receipts issued by the hotel, motel or other
23 public lodging place shall accompany claims for reimbursement.

1 C. State officers and employees who have been required to
2 attend hearings or meetings of any congressional committee or
3 subcommittee or any federal agency, board or commission shall be
4 reimbursed for their actual and necessary travel and lodging
5 expenses; however, the agency head must approve any claims in
6 connection with such expenses.

7 D. Reimbursement for meals and lodging on out-of-state trips
8 shall not begin more than one (1) calendar day before the meeting,
9 workshop, conference or other objective of trip begins and shall not
10 continue more than one (1) calendar day after said meeting,
11 workshop, conference or other objective of trip ends. This twenty-
12 four-hour limit shall also apply for in-state travel when the agency
13 determines that travel is of a duration where overnight travel prior
14 to or after the trip objective would be necessary.

15 E. Reimbursement for meals and lodging incurred in official
16 travel in areas outside of the United States to implement the
17 objectives of contracts, grants, agreements or gifts for which funds
18 from these sources are furnished shall be reimbursed from said funds
19 at actual cost not to exceed the amount authorized for United States
20 Government employees in its periodical publication entitled
21 "Standard Regulations (Government Civilians, Foreign Areas),
22 Department of State, Washington, DC". Provided, however,
23 reimbursement for travel to points outside of the United States,
24 whether performed under authority of contract, grant, agreement or

otherwise, shall not begin more than two (2) calendar days before or end more than two (2) calendar days after the objective of the trip.

F. Claims submitted to the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for payment under the provisions of this section shall be certified to by the principal fiscal officer or contract and grant administrator of each agency. Such officer shall certify that such claim complies with and is authorized under this section.

G. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services may authorize reimbursement for overnight lodging while in official travel status within the State of Oklahoma at a rate of up to one hundred fifty percent (150%) of the amount authorized in subsection A of this section if it is determined that no lodging was available at the maximum rate set out in subsection A of this section. Prior to authorizing such payment, the state officer or employee shall certify the efforts made to obtain lodging at the rate set out in subsection A of this section and the reasons why such lodging was not available within a reasonable distance from the state officer's or employee's work location.

SECTION 720. AMENDATORY 74 O.S. 2021, Section 500.14, is amended to read as follows:

Section 500.14. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services shall reject any travel

claim or voucher not in conformity with the provisions of this act or existing statutes relating to reimbursement for travel expenses.

SECTION 721. AMENDATORY 74 O.S. 2021, Section 500.16, as amended by Section 8, Chapter 63, O.S.L. 2022 (74 O.S. Supp. 2025, Section 500.16), is amended to read as follows:

Section 500.16. The method, forms, or systems for submitting a travel reimbursement claim shall be prescribed by the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services.

SECTION 722. AMENDATORY 74 O.S. 2021, Section 500.16A, is amended to read as follows:

Section 500.16A. A. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services shall establish a procedure to expedite payment for a proper claim of a state employee for expenses recompensable pursuant to the provisions of the State Travel Reimbursement Act.

B. The procedure provided for in subsection A of this section shall:

1. Require payment within forty-five (45) days from the date on which a proper claim is submitted by the employee to the appropriate office of the agency for which the expenses were incurred; and

2. Provide for the payment of interest from the thirtieth day after receipt by the appropriate office of a proper claim for which payment has not been mailed, transmitted or delivered to the

1 employee by the close of business on the forty-fifth day. Interest
2 shall be at an annualized rate as reported by the State Treasurer to
3 the ~~Director~~ Chief Operating Officer of the Office of Management and
4 Enterprise Services based on an average of the interest rate for
5 thirty-day time deposits of state funds during the last calendar
6 quarter of the last preceding fiscal year.

7 C. For purposes of this section, "proper claim" means a claim
8 for reimbursement of incurred expenses supported by all requisite
9 documentation and complete in all respects for processing for
10 payment.

11 D. Any employee, after the passage of the forty-five day limit
12 provided for in subsection B of this section, who is aggrieved by
13 the delay in payment of a proper claim with interest or who failed
14 to receive interest as provided for in this section may file a
15 grievance with the Office of the Governor. The grievance shall be
16 transmitted from the Office of the Governor to the ~~Director~~ Chief
17 Operating Officer of the Office of Management and Enterprise
18 Services who, within fifteen (15) days after receipt of the
19 grievance, shall:

- 20 1. Pay the claim with interest as provided for in this section;
21 or
22 2. Report to the Governor and the aggrieved employee why such
23 payment cannot be made.
24

SECTION 723. AMENDATORY 74 O.S. 2021, Section 588.1, is amended to read as follows:

Section 588.1. A. Before any agency contracts to privatize a function, program, service, unit, or division valued at One Million Dollars (\$1,000,000.00) or more, the agency must perform a cost analysis and provide a copy of the cost analysis report to the Office of Management and Enterprise Services.

B. The cost analysis shall include a provision for the protection and retention of third-party revenues currently being received for the performance of the function, program, service, unit or division sought to be privatized. Such protected third-party revenues shall include, but not be limited to, grants, contracts, federal matching programs, federal pass-through payments, sponsored programs and payment incentives currently being received as a result of the performance of the function, program, service, unit or division sought to be privatized.

C. The Office of Management and Enterprise Services shall review the cost analysis report and make a finding as to whether it fulfills the content requirements of the Oklahoma Privatization of State Functions Act and the rules of the Office. If the cost analysis report is found not to meet the requirements of the Oklahoma Privatization of State Functions Act or the rules of the Office, the Office shall return the cost analysis report to the agency with instructions.

1 D. The ~~Director~~ Chief Operating Officer of the Office of
2 Management and Enterprise Services shall promulgate rules necessary
3 to implement the provisions of the Oklahoma Privatization of State
4 Functions Act.

5 SECTION 724. AMENDATORY 74 O.S. 2021, Section 589, is
6 amended to read as follows:

7 Section 589. A. Upon a finding by the Office of Management and
8 Enterprise Services pursuant to Section 588.1 of this title that the
9 agency has complied with the requirements of the Oklahoma
10 Privatization of State Functions Act, and before any agency can
11 contract to privatize a function, program, service, unit or
12 division, the agency must provide:

13 1. Notification to employees impacted by the proposed
14 privatization by the agency of its intent to privatize a function,
15 program, service, unit, or division of the agency;

16 2. Notification to affected employees that they will have the
17 opportunity to submit cost-savings recommendations for improving the
18 operations, efficiency or organization of the entity being
19 considered for privatization; and

20 3. Notification by the agency simultaneously with the notice
21 required pursuant to paragraph 1 of this subsection, to the ~~Director~~
22 Chief Operating Officer of the Office of Management and Enterprise
23 Services of the intent of the agency to privatize a state function.
24

1 B. Upon a request by the affected employees, the agency shall
2 provide information about the delivery of services to its employees
3 as they develop recommendations to be considered. This information
4 shall include revenue expenditure data, wage and salary data, an
5 inventory of the supplies, equipment, and facilities associated with
6 the program being privatized, and the cost analysis performed by the
7 agency.

8 C. Any recommendations submitted by agency employees shall be
9 considered by the agency, separate and apart from the bid process,
10 with nonemployee bids. The agency shall make the final
11 determination whether to accept the winning nonemployee bid or
12 accept the employee recommendations in lieu of the winning bid.

13 D. After an agency has met the requirements of subsection A of
14 this section, the agency shall notify the ~~Director~~ Chief Operating
15 Officer of the Office of Management and Enterprise Services, the
16 Governor, the President Pro Tempore of the Senate, and the Speaker
17 of the House of Representatives of the intent of the agency to
18 solicit bids in accordance with this section.

19 E. The agency shall provide a comprehensive written analysis of
20 the contract cost based upon the designated bid, specifically
21 including the costs of transition from public to private operation,
22 severance payments to agency employees, and monitoring and otherwise
23 administering contract performance.

1 F. The agency shall require the following information prior to
2 entering into a contract to privatize a function, program, service,
3 unit, or division:

4 1. Financial stability of the vendor, past and present
5 litigation, and references related to past government contract
6 performance information; and

7 2. Detail how the vendor will perform the contract, including
8 staffing and equipment information.

9 G. The agency shall establish a plan and cost analysis on how
10 to return the privatized function, program, service, unit, or
11 division to the state if there is a contract cancellation.

12 H. Any contract with a vendor to privatize a function, program,
13 service, unit, or division shall require that the payment to the
14 contractor be linked to performance. The contract shall provide
15 that the amount agreed upon in the contract may be reduced if the
16 agency experiences a budget shortfall.

17 I. Each privatization contract shall contain provisions
18 requiring the contractor to offer available employee positions
19 pursuant to the contract to qualified regular employees of the
20 agency whose state employment is terminated because of the
21 privatization contract and who satisfy the hiring criteria of the
22 contractor.

23 SECTION 725. AMENDATORY 74 O.S. 2021, Section 669.1, is
24 amended to read as follows:

1 Section 669.1. There is hereby created in the State Treasury a
2 revolving fund for the Office of Management and Enterprise Services
3 designated the "Oklahoma Commission on the Status of Women Revolving
4 Fund". The fund shall be a continuing fund, not subject to fiscal
5 year limitations, and shall consist of all gifts and donations
6 contributed to support the work of the Oklahoma Commission on the
7 Status of Women. All monies accrued to the credit of the fund are
8 hereby appropriated and may be budgeted and expended by the ~~Director~~
9 Chief Operating Officer of the Office of Management and Enterprise
10 Services on behalf of the Oklahoma Commission on the Status of Women
11 for the purposes prescribed by the Legislature in creating the
12 Commission. Expenditures from the fund shall be made upon warrants
13 issued by the State Treasurer against claims filed as prescribed by
14 law with the ~~Director~~ Chief Operating Officer of the Office of
15 Management and Enterprise Services for approval and payment.

16 SECTION 726. AMENDATORY 74 O.S. 2021, Section 840-1.3,
17 as amended by Section 2, Chapter 243, O.S.L. 2022 (74 O.S. Supp.
18 2025, Section 840-1.3), is amended to read as follows:

19 Section 840-1.3. As used in this act, unless otherwise provided
20 in Sections 840-1.1 through 840-6.9 of this title:

21 1. "Agency" means any office, department, board, commission or
22 institution of the executive branch of state government;

23 2. "Employee" or "state employee" means an elected or appointed
24 officer or employee of an agency unless otherwise indicated;

1 3. "Appointing authority" means the chief administrative
2 officer of an agency;

3 4. "Job-related organization" means a membership association
4 which collects annual dues, conducts annual meetings and provides
5 job-related education for its members and which includes state
6 employees, including any association for which payroll deductions
7 for membership dues are authorized pursuant to paragraph 5 of
8 subsection B of Section 34.70 of Title 62 of the Oklahoma Statutes;

9 5. "Progressive discipline" means a system designed to ensure
10 the consistency, impartiality and predictability of discipline and
11 the flexibility to vary penalties if justified by aggravating or
12 mitigating conditions;

13 6. "Supervisor" means an officer or employee who has been
14 assigned authority and responsibility for evaluating the performance
15 of subordinates;

16 7. "~~Director~~ Chief Operating Officer" means the appointing
17 authority of the Office of Management and Enterprise Services;

18 8. "Office" means the Office of Management and Enterprise
19 Services; and

20 9. "Veteran" means a person who has been honorably discharged
21 from the Armed Forces of the United States.

22 SECTION 727. AMENDATORY 74 O.S. 2021, Section 840-1.6,
23 as amended by Section 3, Chapter 243, O.S.L. 2022 (74 O.S. Supp.
24 2025, Section 840-1.6), is amended to read as follows:

1 Section 840-1.6. A. The internal administrative organization
2 of the Office of Management and Enterprise Services shall be
3 determined by the ~~Director~~ Chief Operating Officer of the Office of
4 Management and Enterprise Services in such a manner as to promote
5 the efficient and effective enforcement of this act.

6 B. The ~~Director~~ Chief Operating Officer of the Office of
7 Management and Enterprise Services may employ attorneys, accountants
8 and other personnel as the ~~Director~~ Chief Operating Officer deems
9 necessary to carry out the duties imposed upon the Office.

10 SECTION 728. AMENDATORY 74 O.S. 2021, Section 840-1.6A,
11 as amended by Section 4, Chapter 243, O.S.L. 2022 (74 O.S. Supp.
12 2025, Section 840-1.6A), is amended to read as follows:

13 Section 840-1.6A. The Office of Personnel Management Division
14 of the Office of State Finance was consolidated into and renamed the
15 Office of Management and Enterprise Services. Where the term
16 "Office of Personnel Management" is used within the Oklahoma
17 Statutes, it shall mean the Office of Management and Enterprise
18 Services. The chief administrative officer shall be the ~~Director~~
19 Chief Operating Officer of the Office of Management and Enterprise
20 Services. In addition to the other duties imposed by law, the
21 ~~Director~~ Chief Operating Officer shall:

22 1. Be responsible for the development of an efficient and
23 effective system of personnel administration that meets the
24 management needs of the various agencies;

2. Organize the Office to provide both service and regulatory functions that are effective and efficient in meeting the management needs of various state agencies. The ~~Director~~ Chief Operating Officer is directed to establish an agency service function to assist agencies with human resource needs based upon the administrative capacity and resources of the various agencies;

3. Prepare, maintain, and revise a system of employment designed to ensure the impartial consideration of applicants for employment and to protect state employees from arbitrary dismissal or unfair treatment;

4. Develop and maintain a classification and compensation system for all positions in the executive branch of state government including those established by the Oklahoma Constitution;

5. Conduct an analysis of the rates of pay prevailing in the state in the public and private sectors for comparable jobs and report the findings to the Governor, the President Pro Tempore of the Senate, and the Speaker of the House of Representatives no later than December 1 of each year. Such analysis shall include all forms of compensation including fringe benefits. Information solicited by the Office of Management and Enterprise Services from public and private sector employers for such analysis, including but not limited to salaries, benefits, and compensation policies and procedures, shall be confidential and shall not be subject to disclosure under the Oklahoma Open Records Act;

1 6. Assist state agencies in implementing their duties and
2 obligations and provide standard forms to the agencies if necessary;

3 7. Develop, in cooperation with appointing authorities,
4 employee training programs, management training programs, a
5 certified public manager program, a recruiting program, and a system
6 of performance appraisals, and assist appointing authorities in the
7 setting of productivity goals. The ~~Director~~ Chief Operating Officer
8 may establish and collect fees for participation in training
9 programs. The ~~Director~~ Chief Operating Officer is authorized to
10 purchase awards for presentation to state employees as part of
11 employee recognition activities sponsored by the Office of
12 Management and Enterprise Services;

13 8. Establish rules for leave and pay including, but not limited
14 to, rules for leave, furloughs, performance pay increases, rates for
15 pay differentials, on-call pay, and other types of pay incentives
16 and salary adjustments consistent with this act and reduction-in-
17 force;

18 9. Be responsible for the development and maintenance of a
19 uniform occupation code system, grouped by job titles or duties, for
20 all state positions. The responsibility shall include the
21 establishment of rules governing the identification, tracking, and
22 reporting of all state positions as provided in Section 840-2.13 of
23 this title;

1 10. Be responsible for advising state agencies on personnel
2 policy and administration;

3 11. Establish standards for continuing training and
4 certification of personnel professionals in the executive branch of
5 state government, excluding institutions within The Oklahoma State
6 System of Higher Education. Employees appointed to professional
7 personnel positions shall complete an initial training program
8 within one (1) year after assuming the professional personnel
9 position. Thereafter, they shall complete annual training
10 requirements. Each appointing authority shall ensure that all
11 professional personnel employees are notified of, and scheduled to
12 attend, required training programs and shall make time available for
13 employees to complete the programs. The ~~Director~~ Chief Operating
14 Officer shall be authorized to bill agencies for the training of
15 personnel professionals pursuant to this paragraph to recover
16 reasonable costs associated with the training. Monies received for
17 such training shall be deposited in the Human Capital Management
18 Revolving Fund. Expenditure of such funds collected for the
19 training shall be exempt from any expenditure limit on the Office of
20 Management and Enterprise Services established by law;

21 12. Not less than once during each two-year period, conduct a
22 study identifying the following, by job family descriptors:

- 23 a. selected jobs with a turnover rate in excess of ten
24 percent (10%),

b. selected jobs identified by the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services with salaries and benefits that are ten percent (10%) or more below the market for such positions, and

c. selected jobs identified by the ~~Director~~ Chief Operating Officer in which recruitment efforts have yielded a low number of qualified applicants;

13. Establish a workforce planning function within the Office of Management and Enterprise Services to assist state agencies in analyzing the current workforce, determining future workforce needs, and implementing solutions so that agencies may accomplish their missions; and

14. Establish a quality management function within the Office of Management and Enterprise Services and shall assist state agencies in fully integrating quality management concepts and models into their business practices for the purpose of improving the overall efficiency and effectiveness of state government.

SECTION 729. AMENDATORY 74 O.S. 2021, Section 840-1.20, as amended by Section 7, Chapter 243, O.S.L. 2022 (74 O.S. Supp. 2025, Section 840-1.20), is amended to read as follows:

Section 840-1.20. A. There is hereby created in the State Treasury a revolving fund for the Office of Management and Enterprise Services to be designated the "Human Capital Management

1 Revolving Fund". The fund shall be a continuing fund, not subject
2 to fiscal year limitations, and shall consist of fees received by
3 the Office of Management and Enterprise Services for providing
4 training for a certified public managers program and all other
5 monies received by the Office of Management and Enterprise Services.
6 All monies accruing to the credit of the fund are hereby
7 appropriated and may be budgeted and expended by the Office of
8 Management and Enterprise Services for defraying the costs incurred
9 in performing the duties and functions of the Office. Expenditures
10 from the fund shall be made upon warrants issued by the State
11 Treasurer against claims filed as prescribed by law with the
12 ~~Director~~ Chief Operating Officer of the Office of Management and
13 Enterprise Services for approval and payment.

14 B. There is hereby created a petty cash fund not to exceed Two
15 Hundred Fifty Dollars (\$250.00) for the Office of Management and
16 Enterprise Services. The ~~Director~~ Chief Operating Officer of the
17 Office of Management and Enterprise Services shall prescribe the
18 rules and procedures for the administration of the petty cash fund.

19 C. Any monies in or obligations against the Employee Benefits
20 Revolving Fund and the Benefits Council Administration Revolving
21 Fund shall be transferred to the Human Capital Management Revolving
22 Fund. Funds previously designated for deposit into the Employee
23 Benefits Revolving Fund and the Benefits Council Administration
24

1 Revolving Fund shall be deposited into the Human Capital Management
2 Revolving Fund.

3 D. The Office of Management and Enterprise Services is hereby
4 directed to pay from the fund the costs of transcribing the record
5 of any proceeding before the Office of Management and Enterprise
6 Services, which record may be designated by an indigent respondent,
7 if such respondent first establishes indigent condition through
8 execution of an in forma pauperis affidavit upon a form approved by
9 the Office of Management and Enterprise Services; provided, that if
10 the indigent respondent has a financial recovery the fund shall be
11 reimbursed from the proceeds.

12 SECTION 730. AMENDATORY 74 O.S. 2021, Section 840-2.10a,
13 as amended by Section 9, Chapter 243, O.S.L. 2022 (74 O.S. Supp.
14 2025, Section 840-2.10a), is amended to read as follows:

15 Section 840-2.10a. A. State agencies shall provide or contract
16 to provide, through the State Employee Assistance Program,
17 debriefing and counseling services for state employees who are
18 involved in, witness or are otherwise exposed to a violent or
19 traumatic event in the workplace.

20 B. State employees who are affected by such events shall be
21 encouraged to participate in debriefing or counseling services and
22 paid administrative leave shall be provided. However, employees
23 shall have the option to refuse services offered.

1 C. The ~~Director~~ Chief Operating Officer of the Office of
2 Management and Enterprise Services shall promulgate rules to
3 implement the provisions of this section which, at a minimum, shall
4 specify the types of events which shall qualify state employees for
5 debriefing and counseling services.

6 SECTION 731. AMENDATORY 74 O.S. 2021, Section 840-2.13,
7 as amended by Section 10, Chapter 243, O.S.L. 2022 (74 O.S. Supp.
8 2025, Section 840-2.13), is amended to read as follows:

9 Section 840-2.13. A. The ~~Director~~ Chief Operating Officer of
10 the Office of Management and Enterprise Services shall establish a
11 Personnel Management Information System to provide various
12 management reports to facilitate decision making within agencies,
13 and to promote the efficient utilization of personnel resources by
14 providing a method for tracking, monitoring and reporting positions
15 and employee transactions. The System shall include information on
16 state service positions within the executive branch of government,
17 but shall not require institutions within The Oklahoma State System
18 of Higher Education to participate.

19 B. The ~~Director~~ Chief Operating Officer of the Office of
20 Management and Enterprise Services shall promulgate rules regarding
21 the Personnel Management Information System as necessary to
22 implement the provisions of this section. Such rules shall
23 establish a schedule to ensure the orderly implementation of such
24 Personnel Management Information System.

1 C. State agencies shall assist the Office of Management and
2 Enterprise Services as necessary to ensure the orderly completion of
3 implementation as provided for in this section.

4 D. Appointing authorities in the legislative or judicial
5 branches of state government may participate in the Personnel
6 Management Information System at their option.

7 SECTION 732. AMENDATORY 74 O.S. 2021, Section 840-2.17,
8 as amended by Section 13, Chapter 243, O.S.L. 2022 (74 O.S. Supp.
9 2025, Section 840-2.17), is amended to read as follows:

10 Section 840-2.17. Raises - Salary adjustments.

11 A. Unless otherwise provided by the Oklahoma Constitution,
12 statutory authority to set or fix compensation, pay or salary of
13 state officers and employees shall not be construed to authorize any
14 agency, board, commission, department, institution, bureau,
15 executive officer or other entity of the executive branch of state
16 government to award, grant, give, authorize, or promise any officer
17 or employee of the State of Oklahoma a raise that is inconsistent
18 with the compensation schedules established by the Office of
19 Management and Enterprise Services for all state officers and
20 employees in the executive branch, including, but not limited to, a
21 cost-of-living raise or any other type of raise that would be given
22 to state employees on an across-the-board basis, except as herein
23 provided. Such raises are prohibited unless authorized by the
24 Legislature and by rules promulgated by the ~~Director~~ Chief Operating

1 Officer. This prohibition applies to all officers and employees in
2 the executive branch of state government, excluding institutions
3 under the administrative authority of the Oklahoma State Regents for
4 Higher Education.

5 B. However, nothing in this section shall be construed to
6 prohibit the following actions if the action is made in good faith
7 and not for the purpose of circumventing subsection A of this
8 section, and if the appointing authority certifies that the action
9 can be implemented for the current fiscal year and the subsequent
10 fiscal year without the need for additional funding to increase the
11 personal services budget of the agency, and if the Office of
12 Management and Enterprise Services certifies that the action is
13 consistent with the compensation schedules established pursuant to
14 the provisions of this act:

15 1. Salary advancements on promotion;

16 2. Salary adjustments resulting from a pay change for a job
17 level adopted by the Office of Management and Enterprise Services;

18 3. Increases in longevity payments pursuant to Section 840-2.18
19 of this title;

20 4. Payment of overtime, special entrance rates, pay
21 differentials;

22 5. Payment of wages, salaries, or rates of pay established and
23 mandated by law;

24 6. Market adjustments for jobs tied to market competitiveness;

1 7. Skill-based adjustments;

2 8. Equity-based adjustments;

3 9. Performance-based adjustments; or

4 10. Career progression increases as an employee advances
5 through job levels.

6 C. Provided, however, any salary increase for one of the
7 purposes provided in subsection B of this section that would require
8 additional funding by the Legislature shall not be implemented
9 without approval of the Legislature.

10 D. Appointing authorities may implement the pay movement
11 mechanisms subject to the availability of funds within the agency's
12 budget for the current fiscal year and subsequent fiscal year
13 without the need for additional funding to increase the personal
14 services budget of the agency. Failure by the appointing authority
15 to follow the provisions of this subsection may cause the withdrawal
16 of the use of the pay movement mechanisms of this section within the
17 agency during the next appropriations cycle.

18 E. The Office of Management and Enterprise Services shall file
19 a quarterly report with the Offices of the Governor, President Pro
20 Tempore of the Senate and Speaker of the House of Representatives
21 listing, by agency, all increases in wages, salaries or rates of pay
22 and any changes to title or classification of each employee.

23 SECTION 733. AMENDATORY 74 O.S. 2021, Section 840-2.18,
24 as last amended by Section 1, Chapter 18, 1st Extraordinary Session,

O.S.L. 2023 (74 O.S. Supp. 2025, Section 840-2.18), is amended to read as follows:

Section 840-2.18. A. A longevity pay plan is hereby adopted.

This plan applies to all state employees, excluding members of boards and commissions, institutions under the administrative authority of the Oklahoma State Regents for Higher Education, employees of public school districts, and elected officials. The plan shall also apply to those employees of the Oklahoma School for the Blind and the Oklahoma School for the Deaf who qualify for longevity pay in accordance with subsection G of Section 1419 of Title 10 of the Oklahoma Statutes.

B. The Oklahoma Conservation Commission is hereby authorized to establish a longevity pay program for employees of the conservation districts employed under Section 3-3-103 of Title 27A of the Oklahoma Statutes. Such longevity pay program shall be consistent with the longevity pay program for state employees authorized under this title and payments shall be made in a manner consistent with procedures for reimbursement to conservation districts.

C. To be eligible for longevity pay, employees must have been continuously employed in the service of the state for a minimum of two (2) years in full-time status or in part-time status working more than one thousand (1,000) hours a year.

For purposes of this section, a break in service of thirty (30) calendar days or less shall not be considered an interruption of

continuous service; a break in service of more than thirty (30) calendar days shall mark an end to continuous service. The legislative session employees who have worked for two (2) years or more in part-time status and are eligible for state retirement benefits, but do not receive other longevity payments, shall be eligible and shall be considered to have been continuously employed for purposes of calculating longevity payments, notwithstanding the provisions of subsection E of this section.

D. 1. Longevity pay for the first twenty (20) years of service shall be determined pursuant to the following schedule:

Years of Service	Annual Longevity Payment
At least 2 years but less than 4 years	\$250.00
At least 4 years but less than 6 years	\$426.00
At least 6 years but less than 8 years	\$626.00
At least 8 years but less than 10 years	\$850.00
At least 10 years but less than 12 years	\$1,062.00
At least 12 years but less than 14 years	\$1,250.00

At least 14 years but	
less than 16 years	\$1,500.00
At least 16 years but	
less than 18 years	\$1,688.00
At least 18 years but	
less than 20 years	\$1,900.00
At least 20 years	\$2,000.00

2. For each additional two (2) years of service after the first twenty (20) years an additional Two Hundred Dollars (\$200.00) shall be added to the amount stated above for twenty (20) years of service.

The total amount of the annual longevity payment made to an employee by any and all state agencies in any year shall not exceed the amount shown on the table corresponding to that employee's years of service with the state, except as otherwise provided by Section 840-2.28 of this title. Further, no employee shall receive duplicating longevity payments for the same periods of service with any and all agencies, except as otherwise provided by Section 840-2.28 of this title.

E. To determine years of service, cumulative periods of full-time employment or part-time employment working more than one hundred fifty (150) hours per month with the state excluding service as specified in subsection A of this section are applicable. Part-time employment, working one hundred fifty (150) hours per month or

1 less for the state, excluding service as specified in subsection A
2 of this section, shall be counted only if:

3 1. The period of employment was continuous for at least five
4 (5) months; and

5 2. a. The person worked more than two-fifths (2/5) time.

6 Other employment shall not be counted as service for purposes of
7 longevity payments. Further, no period of employment with the
8 state, whether with one or more than one agency, shall be counted as
9 more than full-time service.

10 b. For purposes of the computation required by this
11 section, any service performed by a person during
12 which the person received compensation for duties
13 performed for the state shall be counted if payment
14 for such service was made using state fiscal
15 resources. The provisions of this paragraph shall not
16 apply to elected or appointed justices or judges,
17 including special judges, who perform services in the
18 trial or appellate courts. The provisions of this
19 section shall apply to persons who perform services as
20 an administrative law judge within the executive
21 department and employees of the judicial branch.

22 F. Years of service under the administrative authority of the
23 Oklahoma State Regents for Higher Education or the administrative
24 authority of the Oklahoma Department of Career and Technology

1 Education of any employee who is now employed in a job
2 classification which is eligible for longevity pay shall be included
3 in years of service for purposes of determining longevity pay.

4 G. Years of service shall be certified through the current
5 employing agency by the appointing authority on a form approved by
6 the Office of Management and Enterprise Services. The form shall be
7 completed and posted as directed by the ~~Director~~ Chief Operating
8 Officer of the Office of Management and Enterprise Services by the
9 current employing agency when the employee initially enters on duty
10 with the agency and thereafter whenever the employee's anniversary
11 date is changed.

12 H. Eligible employees, in full-time status or in part-time
13 status working more than one hundred fifty (150) hours per month,
14 shall receive one (1) lump-sum annual payment, in the amount
15 provided on the preceding schedule, during the month following the
16 anniversary date of the employee's most recent enter-on-duty day
17 with the state. Upon implementation of the statewide information
18 systems project, the lump-sum annual payment may be paid concurrent
19 with the final payroll of the month of the employee's anniversary
20 date. Eligible part-time employees who work one hundred fifty (150)
21 hours per month or less shall receive one (1) lump-sum annual
22 payment, based on the formula in subsection L of this section,
23 during the month following the anniversary date of the employee's
24 most recent enter-on-duty day with the state. To receive longevity

1 pay an employee must be in pay status on or after his or her
2 anniversary date.

3 Eligible employees who would not otherwise receive annual
4 longevity payments because their employment includes regular periods
5 of leave without pay in excess of thirty (30) calendar days shall
6 receive one (1) lump-sum annual payment, based on the formula in
7 subsection L of this section, during:

8 1. The month of August if the employee is in pay status on July
9 1; or

10 2. During the month following the employee's first return to
11 duty that fiscal year if the employee is not in pay status on July
12 1.

13 Except as otherwise provided by Section 840-2.28 of this title,
14 employees terminated as a result of a reduction-in-force or retiring
15 from state employment shall receive upon said termination or
16 retirement the proportionate share of any longevity payment which
17 may have accrued as of the date of termination or retirement.

18 Provided further that, the proportionate share of any longevity
19 payment which may have accrued as of the date of death of an
20 employee shall be made to the surviving spouse of the employee or if
21 there is no surviving spouse to the estate of the employee.

22 I. Periods of leave without pay taken in accordance with
23 Section 840-2.21 of this title shall be counted as service. Other
24

periods of nonpaid leave status in excess of thirty (30) calendar days shall not mark a break in service; however, they shall:

1. Not be used in calculating total months of service for longevity pay purposes; and

2. Extend the anniversary date for longevity pay by the total period of time on nonpaid leave status except as provided in subsection H of this section for employees whose conditions of employment include regular periods of leave without pay.

J. Employees currently receiving longevity pay who work for the Oklahoma Department of Career and Technology Education shall not be eligible for the longevity pay plan provided for in this section.

K. A break in service with the state in excess of thirty (30) days but which does not exceed two (2) years which was caused by a reduction-in-force shall be treated as if it were a period of nonpaid leave status as provided for in subsection I of this section for the purpose of calculating total months of service for longevity pay. This subsection shall only apply to state employees laid off after June 30, 1982.

L. Eligible part-time employees working less than one hundred fifty (150) hours per month and other eligible employees with regular annual periods of leave without pay of more than thirty (30) calendar days will receive a prorated share of the "Annual Longevity Payment" authorized in subsection D of this section. The prorated

1 amount of payment will be based on actual hours worked in the
2 immediately preceding twelve (12) months.

3 M. An employee shall not be entitled to retroactive longevity
4 payments as a result of amendments to this section unless
5 specifically authorized by law.

6 N. The ~~Director~~ Chief Operating Officer of the Office of
7 Management and Enterprise Services is authorized to promulgate such
8 Longevity Pay Plan Rules as he or she finds necessary to carry out
9 the provisions of this section.

10 O. As of July 1, 1998, years of service with a city-county
11 health department for employees who left a city-county health
12 department for employment with the Department of Environmental
13 Quality or the Oklahoma Department of Agriculture, Food, and
14 Forestry, between July 1, 1993, and July 1, 1998, and who are now
15 employed in a job classification that is eligible for longevity pay
16 pursuant to this section, shall be included in years of service for
17 purposes of determining longevity pay subsequent to July 1, 1998.

18 P. As of July 1, 2003, years of service with a local
19 conservation district shall be included in years of service for
20 purposes of determining longevity pay for local conservation
21 district employees transferred to the Oklahoma Conservation
22 Commission pursuant to the provisions of this section.

SECTION 734. AMENDATORY 74 O.S. 2021, Section 840-2.19, as amended by Section 15, Chapter 243, O.S.L. 2022 (74 O.S. Supp. 2025, Section 840-2.19), is amended to read as follows:

Section 840-2.19. A. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services shall not approve any payroll claim for payment for any agency unless said claim contains or is accompanied by the certification by the administrative head of said agency or an authorized employee of said agency that the persons named in said claim have been appointed and employed in accordance with the law and the rules and orders promulgated thereunder. For purposes of this section, "payroll claim" shall also include longevity payments made pursuant to Section 840-2.18 of this title.

B. If, as a result of a payroll audit, the Office of Management and Enterprise Services finds that an agency has made payments of salaries or wages contrary to the provisions and rules promulgated pursuant to the provisions of this act:

1. Audit findings shall be promptly transmitted to the appointing authority of the agency certifying the payroll claim or claims involved;

2. An audit conference with said agency shall be scheduled within fifteen (15) days, at which time the audit exceptions will be resolved or become a determination of error unless the parties to the conference agree to a further review;

1 3. If underpayments or overpayments made by said agency are
2 deemed to be the result of administrative error, the agency which
3 certified the payroll claim or claims in error shall refund to the
4 employee the balance of the actual amounts due and owing to the
5 payee or shall seek repayment from the payee of any amount paid in
6 excess of the actual amount due and owing the payee;

7 4. If an agency neglects or refuses to seek repayment after a
8 determination that an error in payroll amount or amounts has been
9 made, or to properly adjust a then current salary or wage, the
10 ~~Director~~ Chief Operating Officer of the Office of Management and
11 Enterprise Services shall note an unresolved audit exception stating
12 the agency involved and the person to whom said exception refers;

13 5. Upon receipt of notification that a procedure to initiate
14 repayment has been instituted by the certifying agency, said notice
15 shall be withdrawn or waived by the ~~Director~~ Chief Operating Officer
16 of the Office of Management and Enterprise Services. Implementation
17 of procedures provided in this section shall not operate to deny or
18 delay payment of proper salaries or wages to any employee of this
19 state;

20 6. The provisions of this section regarding collections of any
21 overpayment of salaries or wages by any agency to any state employee
22 or officer shall not include any such overpayment made prior to July
23 1, 1983;

1 7. Recovery of overpayments from an employee shall include all
2 overpayments occurring within one (1) year prior to the
3 determination of error. Disbursement of underpayments to an
4 employee shall include all underpayments made within a period of two
5 (2) years prior to the determination of error; and

6 8. If an agency discovers overpayment or underpayment errors
7 through an internal audit, the agency shall recover overpayments
8 from the employee or disburse underpayment amounts in accordance
9 with this section. Prior to initiation of recovery of overpayments
10 from an employee, the agency shall provide the employee with
11 adequate notice and an opportunity to respond.

12 C. The ~~Director~~ Chief Operating Officer of the Office of
13 Management and Enterprise Services shall not approve any payroll
14 claim for payment for any agency for which a notification of an
15 unresolved audit exception pursuant to this section has been filed,
16 unless the person named in the audit exception has been removed from
17 the payroll by the certifying agency, the overpayment has been
18 converted by the agency, or the exception has been withdrawn or
19 waived in writing by the Office of Management and Enterprise
20 Services.

21 D. Any sum on a payroll claim found to have been paid in excess
22 of the actual amount due and owing may be recovered from the payee
23 through the following procedures:
24

1 1. Upon the determination that an error in payroll amount has
2 been made, the agency which certified the claim or claims shall
3 notify the payee in writing within ten (10) days from said
4 determination. The notice to the payee shall contain:

- 5 a. the amounts paid in error,
- 6 b. the dates of said payments,
- 7 c. the options available for repayment, and
- 8 d. the right of the payee to protest the findings.

9 Said notice shall also provide space for the payee to indicate
10 an election of a repayment option or to protest the findings. Said
11 election shall be required within thirty (30) days after the
12 notification;

13 2. If the payee is, at the time of said notification, an
14 officer or employee of the agency seeking repayment, options
15 available for repayment shall be by:

- 16 a. lump-sum cash repayment,
- 17 b. reduction of the corrected current salary or
18 miscellaneous payroll deduction in a lump sum or in
19 installments over a term not to exceed the term in
20 which the erroneous payments were made,
- 21 c. reduction in accrued annual leave by an amount of time
22 at the then current correct salary level equal in
23 value to the total of the amount or amounts to be
24 repaid, or

d. any combination thereof;

3. If the payee is, at the time of said notification, an officer or employee of an agency of the state other than the agency seeking repayment, the options provided by paragraph 2 of this subsection may be exercised by the payee with the approval of the then current employing agency. Payment of amounts deducted or charged against annual leave shall be paid to the agency seeking repayment by an appropriate miscellaneous claim for interagency payment. If a payroll deduction is elected pursuant to the provisions of this paragraph and employment is subsequently terminated, any balance remaining shall be deducted from any final payment otherwise due to the employee;

4. If the payee is no longer an employee of the state but agrees to repay the amount or amounts paid in error, repayment may be accepted:

a. by lump-sum cash repayment, or

b. in installments over a period not to exceed twelve (12) months;

5. If the payee is no longer an employee of the state, and does not respond or cannot be located within ten (10) days after mailing of the determination of error, or refuses repayment, the agency seeking repayment shall present the facts in writing to the Attorney General and shall send a copy to the Office of Management and

Enterprise Services. The Attorney General shall determine what action may be taken to recover said amount; and

6. Repayments other than by reduction in present salary or reduction in accrued annual leave for a payee currently employed by the agency seeking repayment shall be deposited in the General Revenue Fund unless the fund to which the amount in error was originally charged can be identified and was other than a General Revenue Fund appropriation. Said deposits shall be treated as nonrevenue receipts.

SECTION 735. AMENDATORY 74 O.S. 2021, Section 840-2.20, as last amended by Section 172, Chapter 452, O.S.L. 2024 (74 O.S. Supp. 2025, Section 840-2.20), is amended to read as follows:

Section 840-2.20. A. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services shall promulgate such emergency and permanent rules regarding leave and holiday leave as are necessary to assist the state and its agencies.

The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services, in adopting new rules, amending rules and repealing rules, shall ensure that the following provisions are incorporated:

1. Eligible employees who enter on duty or who are reinstated after a break in service shall receive leave benefits in accordance with the schedule outlined below. Leave shall be accrued based upon hours worked, paid leave, and holidays, but excluding overtime, not

to exceed the total possible work hours for the pay period. Years of service shall be based on cumulative periods of employment calculated in the manner that cumulative service is determined for longevity purposes pursuant to Section 840-2.18 of this title. Employees may accumulate more than the maximum annual leave accumulation limits shown in the schedule below provided that such excess is used during the same calendar year in which it accrues or within twelve (12) months of the date on which it accrues, at the discretion of the appointing authority. If an employee whose job duties include providing fire protection services, law enforcement services or services with the Department of Corrections is unable to use excess leave as provided for in this paragraph because the employee's request for leave is denied by the employee's appointing authority and the denial of leave is due to extraordinary circumstances such that taking leave could pose a threat to public safety, health or welfare, the employee shall receive compensation at the employee's regular rate of pay for the amount of excess leave the employee is unable to use. Such compensation shall be paid at the end of the time period during which the excess leave was required to have been used;

2. On and after the effective date of this act, the following accrual rates and accumulation limits apply to eligible employees as follows:

ACCRUAL RATES

ACCUMULATION

LIMITS

Cumulative

Years of Service	Annual Leave	Sick Leave	Annual Leave
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Persons employed 0-5 yrs	= 15 day/yr	15 days/yr	30 days
5-10 yrs	= 18 day/yr	15 days/yr	80 days
10-20 yrs	= 20 day/yr	15 days/yr	80 days
over 20 yrs	= 25 day/yr	15 days/yr	80 days

Following an emergency declaration as described in Section 683.8 of Title 63 of the Oklahoma Statutes, the accumulation limits for annual leave shall temporarily increase and shall carryover to the end of the fiscal year following the year in which the emergency declaration ended.

All annual leave that accrued or expired during the period of the emergency declarations issued by the Governor in 2020 and 2021 in response to the novel coronavirus (COVID-19) shall carry over to the end of the fiscal year following the year in which the emergency declaration ended regardless of regulatory provisions that establish a maximum amount of annual leave that may be accumulated by an employee of this state. Expired annual leave governed by this subsection shall be reinstated as of May 7, 2021, and accumulation limits for annual leave shall not apply to amounts accrued or reinstated pursuant to this subsection. Eligibility for

1 reinstatement of annual leave is limited to employees currently
2 employed by this state on May 7, 2021;

3 3. Temporary employees and other limited term employees are
4 ineligible to accrue, use, or be paid for sick leave and annual
5 leave. Such employees shall be eligible for paid holiday leave at
6 the discretion of the appointing authority;

7 4. Except as provided in paragraph 2 of this subsection,
8 employees shall not be entitled to retroactive accumulation of leave
9 as a result of amendments to this section;

10 5. The ~~Director~~ Chief Operating Officer of the Office of
11 Management and Enterprise Services shall assist agencies in
12 developing policies to prevent violence in state government
13 workplaces without abridging the rights of state employees. Such
14 policies shall include a paid administrative leave provision as a
15 cooling-off period which the ~~Director~~ Chief Operating Officer of the
16 Office of Management and Enterprise Services is authorized to
17 provide pursuant to the Administrative Procedures Act. Such leave
18 shall not be charged to annual or sick leave accumulations;

19 6. State employees who terminated their employment in the state
20 service on or after October 1, 1992, may be eligible to have sick
21 leave accrued at the time of termination of employment restored if
22 they return to state employment provided that the state employees'
23 enter-on-duty dates for reemployment occur on or before two (2)
24

1 years after their termination of employment and they are eligible to
2 accrue sick leave before the two (2) years expire;

3 7. Employees who are volunteer firefighters pursuant to the
4 Oklahoma Volunteer Firefighters Act and who are called to fight a
5 fire shall not have to use any accrued leave or need to make up any
6 time due to the performance of their volunteer firefighter duties;

7 8. Employees who are reserve municipal police officers pursuant
8 to Section 34-101 of Title 11 of the Oklahoma Statutes and who miss
9 work in performing their duties in cases of emergency shall not have
10 to use any accrued leave or need to make up any time due to the
11 performance of their reserve municipal police officer duties;

12 9. Employees who are reserve deputy sheriffs pursuant to
13 Section 547 of Title 19 of the Oklahoma Statutes and who miss work
14 in performing their duties in case of emergency shall not have to
15 use any accrued leave or need to make up any time due to the
16 performance of their reserve deputy sheriff duties;

17 10. For purposes of the computation required by this section,
18 any service performed by a person during which the person received
19 compensation for duties performed for the state shall be counted if
20 payment for such service was made using state fiscal resources. The
21 provisions of this section shall not apply to elected or appointed
22 justices or judges, including special judges, who perform service in
23 the trial or appellate courts. The provisions of this section shall
24 apply to persons who perform services as an administrative law judge

1 within the executive department and employees of the judicial
2 branch; and

3 11. Eligible employees shall be entitled to paid maternity
4 leave as provided for in Section 840-2.20D of this title.

5 B. Nothing in law is intended to prevent or discourage an
6 appointing authority from disciplining or terminating an employee
7 due to abuse of leave benefits or absenteeism. Appointing
8 authorities are encouraged to consider attendance of employees in
9 making decisions regarding promotions, pay increases, and
10 discipline.

11 C. Upon the transfer of a function in state government to an
12 entity outside state government, employees may, with the agreement
13 of the outside entity, waive any payment for leave accumulations to
14 which the employee is entitled and authorize the transfer of the
15 leave accumulations or a portion thereof to the outside entity.

16 D. All permanent employees of the state shall be eligible to
17 carry over a maximum of six hundred forty (640) hours of annual
18 leave each year. Additionally, all employees shall be paid up to a
19 maximum of six hundred forty (640) hours of annual leave upon
20 separation from state service.

21 SECTION 736. AMENDATORY 74 O.S. 2021, Section 840-2.20A,
22 is amended to read as follows:

23 Section 840-2.20A. A. When an agency of the State of Oklahoma
24 or part of such an agency is closed because of an imminent peril

1 threatening the public health, safety, or welfare of state employees
2 or the public, the appointing authority shall place employees who
3 are scheduled to work in the closed area on paid administrative
4 leave or shall assign them to work in another location. Employees
5 who are on paid administrative leave shall be in standby or on-call
6 status during their normal scheduled duty hours. The appointing
7 authority may call such employees to return to their normal duties
8 and work location or respond to the demands of the situation as
9 necessary.

10 B. When the Governor or a designee of the Governor authorizes
11 agencies or parts of agencies to maintain basic minimum services
12 because hazardous weather conditions impede or delay the movement of
13 employees to and from work, employees responsible for providing such
14 basic minimum services shall report to work. Appointing authorities
15 of agencies shall be responsible for determining essential agency
16 functions and ensuring that employees who staff such functions are
17 so informed. Leave alternatives for those employees not responsible
18 for basic minimum services shall be established by the ~~Director~~
19 Chief Operating Officer of the Office of Management and Enterprise
20 Services.

21 C. Appointing authorities of affected agencies shall notify the
22 Office of Management and Enterprise Services of agency closings and
23 reductions in services pursuant to this section.
24

1 D. The provisions of this section are applicable to agencies
2 and employees in the executive department of state government,
3 including those on temporary and other limited term appointments.
4 The provisions of this section shall not be applicable to employees
5 of institutions within The Oklahoma State System of Higher
6 Education.

7 E. The ~~Director~~ Chief Operating Officer of the Office of
8 Management and Enterprise Services shall adopt rules necessary to
9 implement the provisions of this section.

10 SECTION 737. AMENDATORY 74 O.S. 2021, Section 840-2.20C,
11 is amended to read as follows:

12 Section 840-2.20C. A. Each agency, as defined by Section 840-
13 1.3 of this title, shall provide a written notice to any employee of
14 such agency who will be furloughed by the agency at least thirty
15 (30) days prior to the first date that the furlough period is
16 scheduled to begin. The notice shall provide information about the
17 anticipated first date of the furlough period and an estimate of the
18 duration of the furlough or the day or days during which the
19 furlough will be in effect.

20 B. The furlough notice shall be provided to the ~~Director~~ Chief
21 Operating Officer of the Office of Management and Enterprise
22 Services and any state employee association representing state
23 employees at such time.

1 C. Subsection A of this section shall not apply to disruptions
2 in funding to state agencies caused by actions at the federal level.

3 SECTION 738. AMENDATORY Section 1, Chapter 32, 1st
4 Extraordinary Session, O.S.L. 2023 (74 O.S. Supp. 2025, Section 840-
5 2.20D), is amended to read as follows:

6 Section 840-2.20D. A. Any full-time employee of this state who
7 has been employed by the state agency for at least two (2) years
8 prior to the request for leave shall be entitled to six (6) weeks of
9 paid maternity leave following the birth or adoption of the
10 employee's child.

11 B. Paid maternity leave pursuant to this section shall be in
12 addition to and not in place of sick leave due to pregnancy, as
13 authorized by Section 840-2.20 of Title 74 of the Oklahoma Statutes.

14 C. An employee who is granted maternity leave pursuant to the
15 provisions of this section shall receive the employee's annual
16 salary without interruption during the maternity leave. For
17 purposes of determining seniority, pay or pay advancement, and
18 performance awards, and for the receipt of any benefit that may be
19 affected by maternity leave, the service of the employee shall be
20 considered uninterrupted by the maternity leave.

21 D. The ~~Director~~ Chief Operating Officer of the Office of
22 Management and Enterprise Services may promulgate rules to implement
23 the provisions of this section.

SECTION 739. AMENDATORY 74 O.S. 2021, Section 840-2.21, as amended by Section 17, Chapter 243, O.S.L. 2022 (74 O.S. Supp. 2025, Section 840-2.21), is amended to read as follows:

Section 840-2.21. A. If a state employee is absent because of an illness or injury arising out of and sustained in the course of his or her employment with the state, and for which workers' compensation benefits have been filed, the employing agency shall place the employee on leave without pay if the employee so requests; provided, leave without pay pursuant to this section shall not for any purpose be considered a break in service.

B. An employee who sustains an illness or injury arising out of and sustained in the course of employment with the State of Oklahoma shall not be required to use either accumulated sick or annual leave during such period prior to being placed on leave without pay pursuant to this section.

C. An employee placed on leave without pay pursuant to the provisions of this section shall continue receiving basic plan insurance coverage as defined in Section 1363 of this title and dependent insurance benefit allowance pursuant to paragraph 2 of subsection C of Section 1370 of this title paid by the agency during the leave without pay.

D. An employee on leave without pay pursuant to the provisions of this section shall have the right to be returned to his or her original position in accordance with rules promulgated by the Office

1 of Management and Enterprise Services. If it is found necessary for
2 the good of the state to fill the position during the period the
3 employee is on leave without pay the employee filling the position
4 shall vacate the position upon the return of the employee on leave
5 without pay, subject to layoff, transfer or demotion rights earned
6 under law and rules of the Office of Management and Enterprise
7 Services. The right to return to the original position shall expire
8 one (1) year from the date of the start of leave without pay. The
9 employee may be separated in accordance with the Office of
10 Management and Enterprise Services Rules if the employee has not
11 returned to the original position of the employee or some other
12 position within the agency within one (1) year from the date of the
13 start of leave without pay.

14 E. An employee on leave without pay pursuant to the provisions
15 of this section shall provide a medical statement as to his or her
16 ability to perform the duties of the position to the appointing
17 authority at least every three (3) months.

18 F. If the employee becomes medically able with reasonable
19 accommodation to perform the duties of his or her original position,
20 the employee shall be returned to such position. If the employee is
21 unable to perform the duties of the original position with
22 reasonable accommodation, but is medically able with reasonable
23 accommodation to perform the duties of any other position within the
24 agency for which the employee is qualified, and appointment to such

1 other position does not constitute a promotion, the employee shall
2 have first preference for any such position which becomes vacant
3 within the agency, notwithstanding any other preference provisions
4 of laws of the State of Oklahoma. An employee accepting another
5 position pursuant to this subsection shall not forfeit his or her
6 right to be returned to the original position within twelve (12)
7 months after the start of leave without pay pursuant to the
8 provisions of subsection D of this section.

9 G. An ill or injured employee shall be eligible to participate
10 in the Disability Insurance Program established pursuant to the
11 provisions of Section 1331 et seq. of this title in accordance with
12 rules promulgated by the Office of Management and Enterprise
13 Services.

14 H. All benefits, rights, and obligations contained in this
15 section shall continue during the time the employee remains on leave
16 without pay status, for a continuous period not to exceed twelve
17 (12) months. However, if a workers' compensation claim based on
18 such illness or injury is denied during the twelve-month period, all
19 benefits, rights and obligations conferred upon an employee pursuant
20 to this section shall cease and be discontinued immediately.

21 I. A state employee who is separated pursuant to subsection D
22 of this section shall be eligible for reinstatement to employment
23 with any state agency for twelve (12) months after the date of
24 separation. Nothing in this subsection shall be construed to compel

1 or require any agency of the state to reinstate a former employee
2 who is separated pursuant to subsection D of this section. Further,
3 nothing in this subsection shall be construed as limiting or
4 reducing a former employee's eligibility for reinstatement pursuant
5 to other general reinstatement or reemployment provisions in rules
6 promulgated by the ~~Director~~ Chief Operating Officer.

7 SECTION 740. AMENDATORY 74 O.S. 2021, Section 840-2.22,
8 is amended to read as follows:

9 Section 840-2.22. The ~~Director~~ Chief Operating Officer of the
10 Office of Management and Enterprise Services shall promulgate
11 emergency and permanent leave rules as necessary to implement the
12 federal Family and Medical Leave Act of 1993 and rules thereto.
13 Such leave rules shall permit an employee to select any one or a
14 combination of the following types of leave to account for
15 authorized absences covered by the Family and Medical Leave Act of
16 1993: leave without pay; annual and sick leave accumulated by the
17 employee; and annual and sick leave donated by other state
18 employees; and compensatory time.

19 SECTION 741. AMENDATORY 74 O.S. 2021, Section 840-2.26,
20 is amended to read as follows:

21 Section 840-2.26. A. In order to provide increased services to
22 the public, to assist state employees in meeting the needs of their
23 families, improve employee morale and productivity, appointing
24

authorities are encouraged to consider the adoption of flextime attendance policies and alternative work schedules.

B. For purposes of this section, "flextime" means a regular, eight-hour-day work schedule that permits the use of alternative starting and ending times within limits set by the appointing authority and that includes a common work period during which all employees are expected to be present.

C. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services shall provide technical assistance to agencies in developing flextime policies and alternative work schedules and shall promulgate rules pursuant to the Administrative Procedures Act as necessary for such policies.

SECTION 742. AMENDATORY 74 O.S. 2021, Section 840-2.27C, as last amended by Section 1, Chapter 341, O.S.L. 2024 (74 O.S. Supp. 2025, Section 840-2.27C), is amended to read as follows:

Section 840-2.27C. A. At least thirty (30) days before the scheduled beginning of reduction-in-force separations or as otherwise provided by law, the appointing authority shall post in each office of executive branch agencies affected by the proposed reduction-in-force notice that a reduction-in-force will be conducted. The reduction-in-force implementation plan shall be provided to the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services and any state employee association representing state employees at such time. The notice

1 shall not be posted unless approved by the cabinet secretary for the
2 agency conducting the reduction-in-force. If there is no incumbent
3 cabinet secretary for the agency, the cabinet-secretary-notice-
4 approval requirement shall not be applicable. If the appointing
5 authority is governed by an elected official, the cabinet-secretary-
6 notice-approval requirement shall not be applicable. The approved
7 notice shall be posted in each office affected by the proposed plan
8 for five (5) days. The appointing authority shall provide a copy of
9 the notice to the Administrator. A reduction-in-force shall not be
10 used as a disciplinary or retaliatory action; provided, that a low
11 job performance evaluation, within the past twelve (12) months, may
12 be a factor considered by the appointing authority during a
13 reduction-in-force.

14 B. The reduction-in-force implementation plan shall:

- 15 1. Provide for the appointing authority to determine the
16 specific position or positions to be abolished within specified
17 units, divisions, facilities, agency-wide or any parts thereof; and
- 18 2. Provide outplacement assistance and employment counseling
19 from the Oklahoma Employment Security Commission and any other
20 outplacement assistance and employment counseling made available by
21 the agency to affected employees regarding the options available
22 pursuant to the State Government Reduction-in-Force and Severance
23 Benefits Act prior to the date that a reduction-in-force is
24 implemented.

1 C. The ~~Director~~ Chief Operating Officer of the Office of
2 Management and Enterprise Services shall review the fiscal
3 components of the reduction-in-force implementation plan and within
4 five (5) business days of receipt reject any plan that does not:

5 1. Demonstrate that funds are available to cover projected
6 costs; and

7 2. Contain an estimate of the cost savings or reduced
8 expenditures likely to be achieved by the agency.

9 If the reduction-in-force is conducted pursuant to a
10 reorganization, the fiscal components of the reduction-in-force
11 implementation plan shall contain reasons for the reorganization,
12 which may include, but not be limited to, increased efficiency,
13 improved service delivery, or enhanced quality of service.

14 D. When the Legislature is not in session, the Contingency
15 Review Board may, upon the request of the Governor, direct agencies,
16 boards and commissions to reduce the number of employees working for
17 the agency, board or commission whenever it is deemed necessary and
18 proper. Such reduction shall be made pursuant to reduction-in-force
19 plans as provided in this section.

20 E. 1. When the Legislature is not in session, the Contingency
21 Review Board may, upon the request of the Governor, direct and
22 require mandatory furloughs for all state employees whenever it is
23 deemed necessary and proper. The Contingency Review Board shall
24 specify the effective dates for furloughs and shall note any

1 exceptions to state employees affected by the same. All employees,
2 including those employees of agencies or offices established by
3 statute or the Constitution, shall be affected by such actions.

4 2. Mandatory furlough means the involuntary temporary reduction
5 of work hours or the placement of an employee on involuntary leave
6 without pay. Rules governing leave, longevity pay and participation
7 in the State Employees Group Health, Dental, Disability, and Life
8 Insurance program shall not be affected by mandatory furloughs.

9 Furlough, as provided for in this section or by rules adopted by the
10 ~~Director~~ Chief Operating Officer of the Office of Management and
11 Enterprise Services, shall not be appealable under the provisions of
12 this act.

13 3. Notwithstanding existing laws or provisions to the contrary,
14 members of state boards and commissions shall not receive per diem
15 expenses during periods of mandatory furlough. The Contingency
16 Review Board shall additionally call upon elected officials, members
17 of the judiciary, and other public officers whose salary or
18 emoluments cannot be altered during current terms of office, to
19 voluntarily donate to the General Revenue Fund any portion of their
20 salary which would otherwise have been affected by a mandatory
21 furlough.

22 F. All agencies directed by the Contingency Review Board to
23 terminate or furlough employees, shall report the cumulative cost
24 savings achieved by the reductions-in-force or furloughs to the

Governor, President Pro Tempore of the Senate and Speaker of the House of Representatives on a quarterly basis for one (1) year following the effective date of the action.

G. The appointing authority of an agency which has an approved reduction-in-force plan pursuant to the State Government Reduction-in-Force and Severance Benefits Act may request the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services to appoint an interagency advisory task force for the purpose of assisting the agency and its employees with the implementation of the reduction-in-force. The appointing authority of state agencies requested by the Administrator to participate on a task force shall assign appropriate administrative personnel necessary to facilitate the necessary assistance required for the efficient implementation of the approved reduction-in-force.

SECTION 743. AMENDATORY 74 O.S. 2021, Section 840-2.27D, as last amended by Section 2, Chapter 341, O.S.L. 2024 (74 O.S. Supp. 2025, Section 840-2.27D), is amended to read as follows:

Section 840-2.27D. A. Agencies shall provide severance benefits to affected state employees who are separated from the state service as a result of a reduction-in-force due to a reorganization or any other action by an agency which results in affected positions being abolished and affected employees being severed from the state service. Severance benefits shall be given to permanent affected employees; provided, however, affected

employees of the University Hospitals Authority must have been continuously employed in the state service since, on, or before January 1, 1995, to receive severance benefits. Affected employees who qualify for severance benefits pursuant to this section, in addition to the payment of any compensable accrued leave or other benefits an affected employee is eligible to receive upon separation from the state service, shall receive severance benefits consisting of the following elements:

1. All agency severance benefits shall provide the following:

- a. payment equal to the affected employee's current health insurance premium for the affected employee only for eighteen (18) months based on the cost of the premium at the time of the reduction-in-force. The appointing authority of the agency can ask the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services to waive the severance benefit provision in this subparagraph or to reduce the length of coverage or subsequent severance benefit payment upon demonstration of the agency's inability to fund the full benefit,
- b. a longevity payment, as prescribed by Section 840-2.18 of this title, in the amount which would otherwise be paid to the affected employee on the affected employee's next anniversary date, and

1 c. outplacement assistance and employment counseling
2 prior to and after the reduction-in-force from the
3 Oklahoma Employment Security Commission and other
4 state or private entities that the entity may contract
5 with to assist individuals who may be impacted by a
6 reduction-in-force;

7 2. In addition to the severance benefits provided by paragraph
8 1 of this subsection, agencies shall give affected employees
9 severance benefit packages based on the following options; provided
10 that all affected employees are accorded uniform treatment:

- 11 a. up to one (1) week of pay, calculated by dividing the
12 affected employee's current annual salary by the whole
13 number fifty-two (52), for each year of service,
14 b. a lump-sum payment of Five Thousand Dollars
15 (\$5,000.00), or
16 c. payment for accumulated sick leave or extended illness
17 benefits at up to one-half (1/2) of the affected
18 employee's hourly rate not otherwise used pursuant to
19 law for conversion to credited retirement credit; and

20 3. Agencies shall also be allowed to provide the severance
21 benefits to separating employees not subject to the Civil Service
22 and Human Capital Modernization Act and rules promulgated thereunder
23 or whose position is not subject to an imminent reduction-in-force
24

1 in exchange for executing a release of all claims against the agency
2 and this state as required by Section 840-2.27E of this title.

3 B. Part-time affected employees shall receive benefits pursuant
4 to this section on a prorated basis. Part-time employees shall have
5 been compensated for at least one thousand (1,000) hours during the
6 twelve (12) months immediately preceding the effective date of the
7 reduction-in-force to be eligible for severance benefits pursuant to
8 the State Government Reduction-in-Force and Severance Benefits Act.

9 SECTION 744. AMENDATORY 74 O.S. 2021, Section 840-2.27E,
10 is amended to read as follows:

11 Section 840-2.27E. Any affected employee who receives severance
12 benefits pursuant to the State Government Reduction-in-Force and
13 Severance Benefits Act shall execute a separation agreement with the
14 employing agency, on forms to be prescribed by the ~~Director~~ Chief
15 Operating Officer of the Office of Management and Enterprise
16 Services. The forms shall comply with applicable federal laws and
17 may include but not be limited to the following elements:

18 1. Agreement by the affected employee that the receipt of the
19 benefits is in lieu of continued employment with the agency or other
20 severance benefits related to the current reduction-in-force;

21 2. Agreement by the affected employee that, to the extent
22 allowed by federal or state law, respectively, the affected employee
23 releases the State of Oklahoma and the agency from all claims,
24 liabilities, demands and causes of action known or unknown, fixed or

1 contingent, equitable, legal or administrative, except unemployment
2 insurance;

3 3. Agreement by the affected employee that, to the extent
4 allowed by federal or state law, respectively, the affected employee
5 releases the State of Oklahoma and the agency from any claim or
6 cause of action which might arise under federal or state laws
7 governing the employment relationship; and

8 4. Agreement by the affected employee that the affected
9 employee knows and understands that the receipt of severance
10 benefits is in exchange, to the extent allowed by federal or state
11 law, for any rights the affected employee may have had to:

- 12 a. continued employment with any agency, and
13 b. future employment with the agency from which separated
14 for a period of one (1) year from the date of the
15 agreement, provided that nothing in this subparagraph
16 shall prohibit an appointing authority of any agency
17 from employing an affected employee who has received a
18 severance benefit.

19 The provisions of this section shall not prohibit any affected
20 employee from accepting severance benefits from more than one agency
21 during employment with the State of Oklahoma.

22 SECTION 745. AMENDATORY 74 O.S. 2021, Section 840-3.1,
23 is amended to read as follows:
24

1 Section 840-3.1. A. Each supervisor employed as of January 1,
2 1993, by a state agency, board or commission in the executive branch
3 of state government, excluding those within The Oklahoma State
4 System of Higher Education, shall attend, prior to December 31,
5 1993, a training program for supervisory personnel. The training
6 program shall be established pursuant to subsection C of this
7 section.

8 B. Employees appointed to supervisory positions after January
9 1, 1993, shall complete twenty-four (24) hours of training pursuant
10 to subsection C of this section within twelve (12) months of
11 assuming such supervisory position. Thereafter, supervisors are
12 required to complete twelve (12) hours of training pursuant to
13 subsection C of this section each year. The appointing authority of
14 each agency shall ensure each supervisory employee is notified and
15 scheduled to attend such required training and shall make time
16 available for each such employee to complete the training.

17 C. 1. The ~~Director~~ Chief Operating Officer of the Office of
18 Management and Enterprise Services shall promulgate any rules
19 necessary to develop and implement training programs for supervisory
20 personnel which shall include courses related to the effective
21 performance of an agency manager or supervisor. Rules authorized by
22 this subsection shall require supervisors to attend such training
23 within a reasonable period of time determined by the ~~Director~~ Chief
24 Operating Officer.

2. Training programs for supervisors under this section may be approved by the Office of Management and Enterprise Services; provided, however, such programs shall be subject to standards developed by the Office of Management and Enterprise Services. All state agencies, boards and commissions may participate in any such government employee training program established by an institution that is a member of The Oklahoma State System of Higher Education and approved by the Office of Management and Enterprise Services as provided for in this paragraph.

SECTION 746. AMENDATORY 74 O.S. 2021, Section 840-4.6, as amended by Section 2, Chapter 244, O.S.L. 2022 (74 O.S. Supp. 2025, Section 840-4.6), is amended to read as follows:

Section 840-4.6. A. The State of Oklahoma, to recruit, retain and motivate a quality workforce for the purpose of providing quality services to the citizens of Oklahoma, shall provide a compensation structure based on internal equity and external competitiveness balanced by the state's fiscal conditions. The state's goal shall be to provide a flexible and adaptable state employee compensation system based on the market data found in relevant public and private sector markets.

B. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services shall develop a compensation schedule for all positions within the executive branch, excluding institutions under the administrative authority of the Oklahoma

1 State Regents for Higher Education. The Office may develop market-
2 based occupational compensation structures. The compensation
3 structures established pursuant to this section for all positions
4 shall be initially established and published by January 1, 2015, and
5 shall thereafter be reviewed for revision annually. The provisions
6 of this section are not subject to the provisions of Article I of
7 the Administrative Procedures Act.

8 C. Beginning in fiscal year 2023, a study shall be funded to
9 examine the overall compensation for all positions covered by the
10 Office of Management and Enterprise Services under the Civil Service
11 and Human Capital Management Act. The study shall include an
12 analysis of the overall state workforce and make recommendations for
13 any increase or decrease in specific areas of the workforce. The
14 study shall be completed and the findings submitted to the Offices
15 of the Governor, the Speaker of the Oklahoma House of
16 Representatives, and the President Pro Tempore of the Oklahoma State
17 Senate by December 31, 2022. The study shall be funded and
18 performed every four (4) years thereafter.

19 D. Beginning in fiscal year 2023, a study shall be funded to
20 examine the overall human resources functions throughout the state.
21 The study shall include an analysis of how the statewide human
22 resources functions can be consolidated and recommendations on how
23 to consolidate such functions.

1 E. Nothing in this section shall prohibit the state from
2 contracting for the studies set forth in subsections C and D of this
3 section with one vendor or under one contract.

4 SECTION 747. AMENDATORY 74 O.S. 2021, Section 842, is
5 amended to read as follows:

6 Section 842. A. Effective July 1, 2003, state agencies shall
7 allow product vendors that have an authorized payroll deduction for
8 state employees pursuant to Section 7.10 of Title 62 of the Oklahoma
9 Statutes reasonable access to state employees in order to provide
10 information concerning their products. In cooperation with the
11 individual state agencies, vendors shall be allowed, at a minimum,
12 annual access to state employees for such purpose. This access
13 shall only occur during scheduled breaks or during periods
14 immediately before or after normal work hours and must not disrupt
15 or interfere with the business of the agency. For those state
16 government facilities that operate twenty-four (24) hours a day,
17 vendors shall be allowed access for each shift. State funds shall
18 not be utilized to accommodate this access.

19 B. The ~~Director~~ Chief Operating Officer of the Office of
20 Management and Enterprise Services may promulgate rules necessary to
21 implement this section.

22 SECTION 748. AMENDATORY 74 O.S. 2021, Section 845, is
23 amended to read as follows:
24

1 Section 845. A. State agencies shall allow employee
2 organizations the following privileges:

3 1. Holding meetings on state property in a location that does
4 not disrupt the operations of agency business. Employees may attend
5 such meetings as long as meetings are conducted before or after
6 working hours, or during employee lunch periods; and

7 2. Allowing employee organizations to provide information to
8 state agencies to be included in new employee packets.

9 B. The ~~Director~~ Chief Operating Officer of the Office of
10 Management and Enterprise Services shall promulgate rules governing
11 the annual distribution of employee organization materials by state
12 agencies.

13 C. Nothing in the State Employee Advocacy Rights Act shall be
14 construed to conflict with the rules of the Ethics Commission
15 regarding the use of public facilities for political purposes.

16 SECTION 749. AMENDATORY 74 O.S. 2021, Section 865, is
17 amended to read as follows:

18 Section 865. The accounts and books of the Authority, including
19 its receipts, disbursements, contracts, mortgages, investments and
20 other matters relating to its finances, operations and affairs shall
21 be examined and audited annually by the State Auditor and Inspector
22 as provided by law. The audit shall be filed with the ~~Director~~
23 Chief Operating Officer of the Office of Management and Enterprise
24

Services in accordance with the requirements for financial statement audits in Section 212A of this title.

SECTION 750. AMENDATORY 74 O.S. 2021, Section 905, is amended to read as follows:

Section 905. (1) There shall be a Board of Trustees which shall consist of fourteen (14) members as follows and all appointees shall serve their terms at the pleasure of the appointing authority and may be removed or replaced without cause: a member of the Corporation Commission or the Commission's designee selected by the Corporation Commission, the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services or the Director's designee, the State Insurance Commissioner or the Commissioner's designee, the Director of Human Capital Management of the Office of Management and Enterprise Services, a member of the Oklahoma Tax Commission selected by the Tax Commission, the State Treasurer or the Treasurer's designee, three members appointed by the Governor, one member appointed by the Supreme Court, two members appointed by the Speaker of the House of Representatives and two members appointed by the President Pro Tempore of the State Senate. One member appointed by the Governor shall be an active member of the System. One member appointed by the Speaker shall be an active member of the System. One member appointed by the President Pro Tempore shall be a retired member of the System.

1 (2) The member of the Board of Trustees on July 1, 1988, who
2 was appointed by the Supreme Court shall complete the term of office
3 for which the member was appointed. The members thereafter
4 appointed by the Supreme Court shall serve terms of office of four
5 (4) years.

6 (3) Members of the Board of Trustees on July 1, 1988, who were
7 appointed by the Speaker of the House of Representatives or by the
8 President Pro Tempore of the Senate shall complete their term of
9 office for which they were appointed. The initial term of office of
10 members appointed thereafter shall expire on January 8, 1991. The
11 members thereafter appointed by the Speaker of the House of
12 Representatives and by the President Pro Tempore of the Senate shall
13 serve terms of office of four (4) years.

14 (4) The initial term of office of the members appointed by the
15 Governor shall expire on January 14, 1991. The members thereafter
16 appointed by the Governor shall serve a term of office of four (4)
17 years which is coterminous with the term of office of the office of
18 the appointing authority.

19 (5) One of the members appointed to the Board by the Speaker of
20 the House of Representatives and by the President Pro Tempore of the
21 Senate and two members appointed to the Board by the Governor shall:

- 22 (a) have demonstrated professional experience in
23 investment or funds management, public funds
24

management, public or private pension fund management
or retirement system management,

(b) have demonstrated experience in the banking profession
and have demonstrated professional experience in
investment or funds management,

(c) be licensed to practice law in this state and have
demonstrated professional experience in commercial
matters, or

(d) be licensed by the Oklahoma Accountancy Board to
practice in this state as a public accountant or a
certified public accountant.

The appointing authorities, in making appointments that conform
to the requirements of this subsection, shall give due consideration
to balancing the appointments among the criteria specified in
paragraphs (a) through (d) of this subsection.

(6) No member of the Board of Trustees shall be a lobbyist
registered in this state as provided by law.

(7) Any vacancy that occurs on the Board of Trustees shall be
filled for the unexpired term in the same manner as the office was
previously filled.

(8) Notwithstanding any of the provisions of this section to
the contrary, any person serving as an appointed member of the Board
on July 1, 1988, shall be eligible for reappointment when the term
of office of the member expires.

(9) The Board shall elect one of its members as Chairman of the Board at its annual meeting. He shall preside over meetings of the Board and perform such other duties as may be required by the Board.

(10) The Board shall also elect another member to serve as Vice Chairman, and the Vice Chairman shall perform duties of Chairman in the absence of the latter or upon his inability or refusal to act.

SECTION 751. AMENDATORY 74 O.S. 2021, Section 941, is amended to read as follows:

Section 941. A. There is hereby created the Oklahoma State Pension Commission. The Commission shall consist of seven (7) members as follows:

1. The State Auditor and Inspector or that person's designee;
2. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services or that person's designee;
3. The State Treasurer or that person's designee;
4. One member who shall be appointed by the President Pro Tempore of the Senate who shall serve at the pleasure of the appointing authority and who shall have demonstrated experience in the investment of private or public funds;
5. One member who shall be appointed by the Speaker of the House of Representatives who shall serve at the pleasure of the appointing authority and who shall have demonstrated experience in the investment of private or public funds;

1 6. One person to be appointed by the Governor who shall have at
2 least ten (10) years of demonstrated experience in the financial
3 services industry; and

4 7. One person to be appointed by the Governor who shall have at
5 least ten (10) years of experience in retirement planning, including
6 demonstrated experience with retirement plan designs.

7 No member of the governing body of a state retirement system shall
8 be eligible to be appointed to the Commission.

9 B. The Commission shall hold regular meetings at least once
10 each quarter, the dates, time and place to be set by the Commission.
11 The Commission shall hold its first meeting prior to September 30,
12 1988.

13 C. The Office of the State Auditor and Inspector shall provide
14 the administrative support required by the Commission.

15 D. The cost of providing the administrative support shall be
16 apportioned by the State Auditor and Inspector among the Oklahoma
17 Firefighters Pension and Retirement System, the Oklahoma Police
18 Pension and Retirement System, the Uniform Retirement System for
19 Justices and Judges, the Oklahoma Law Enforcement Retirement System,
20 the Teachers' Retirement System of Oklahoma, the Oklahoma Public
21 Employees Retirement System and the Department of Wildlife
22 Conservation on behalf of the retirement plan adopted by the
23 Wildlife Conservation Commission in proportion to the percentage
24

1 that the assets of each system at the end of the preceding fiscal
2 year were to the combined total of the assets of the systems.

3 SECTION 752. AMENDATORY 74 O.S. 2021, Section 943, is
4 amended to read as follows:

5 Section 943. There is hereby created in the State Treasury a
6 revolving fund to be designated the "Oklahoma State Pension
7 Commission Revolving Fund" which shall consist of all monies
8 received by the Commission as provided by law. The fund shall be a
9 continuing fund not subject to fiscal year limitations. Monies
10 accruing to the credit of the fund are hereby appropriated and may
11 be expended by the Oklahoma State Pension Commission for
12 implementing its duties. Expenditures from the fund shall be made
13 upon warrants issued by the State Treasurer against claims submitted
14 by the Commission to the ~~Director~~ Chief Operating Officer of the
15 Office of Management and Enterprise Services for audit and payment.

16 SECTION 753. AMENDATORY 74 O.S. 2021, Section 1222A, is
17 amended to read as follows:

18 Section 1222A. A. There is hereby created in the State
19 Treasury a revolving fund for the Office of Management and
20 Enterprise Services to be designated the "State-Tribal Litigation
21 Revolving Fund". The fund shall be a continuing fund, not subject
22 to fiscal year limitations, and shall consist of all monies
23 designated for deposit by law. All monies accruing to the credit of
24 said fund are hereby appropriated and may be budgeted and expended,

1 as otherwise provided in this act, by the Office of Management and
2 Enterprise Services for the purpose of hiring legal counsel and
3 paying legal expenses of the state related to legal controversies
4 between the State of Oklahoma and tribal governments.

5 B. Expenditures from said fund shall only be made for legal
6 services relating to cases and controversies that the Joint
7 Committee on State-Tribal Relations, (created pursuant to Section
8 1222 of Title 74 of the Oklahoma Statutes), has formally recommended
9 the State of Oklahoma pursue or litigate.

10 C. Expenditures from said fund for the reimbursement of
11 services by third-party legal counsel shall only be made if the
12 contract for such services was formally approved by the Joint
13 Committee on State-Tribal Relations, (created pursuant to Section
14 1222 of Title 74 of the Oklahoma Statutes), prior to the performance
15 of such services.

16 D. Expenditures from said fund shall be made upon warrants
17 issued by the State Treasurer against claims filed as prescribed by
18 law with the ~~Director~~ Chief Operating Officer of the Office of
19 Management and Enterprise Services for approval and payment.

20 E. If any of the provisions of this section are determined by a
21 court of competent jurisdiction to be unconstitutional, any
22 unexpended balance remaining in the State-Tribal Litigation
23 Revolving Fund created pursuant to this section shall revert to the
24 General Revenue Fund of this state and shall be used for general

1 expenses of state government to be paid out pursuant to direct
2 appropriation of the Legislature.

3 SECTION 754. AMENDATORY 74 O.S. 2021, Section 1226.2, is
4 amended to read as follows:

5 Section 1226.2. A. There is hereby created a body corporate
6 and politic to be known as the "Native American Cultural and
7 Educational Authority" (Authority), and by that name the Authority
8 may sue and be sued, and plead and be impleaded. The Authority is
9 hereby constituted an agency of the state, and the exercise by the
10 Authority of the powers conferred by Section 1226 et seq. of this
11 title shall be deemed to be essential governmental functions of the
12 state with all the attributes thereof. Provided, however, the
13 Authority is authorized to carry liability insurance to the extent
14 authorized by the Authority, and in addition thereto it shall be
15 subject to the workers' compensation laws of the State of Oklahoma
16 the same as a private employer. The Office of Management and
17 Enterprise Services (OMES) shall assist the Authority in fulfilling
18 the responsibilities of Section 1226 et seq. of this title, as
19 requested by the Authority.

20 B. 1. The Legislature hereby finds and it is hereby declared
21 to be the public policy of the State of Oklahoma that the completion
22 and operation of the American Indian Cultural Center and Museum
23 (AICCM) and the transfer of responsibility for operation and
24 maintenance of the AICCM to the City of Oklahoma City (together with

any designee thereof, hereinafter referred to as the "City") or its designee will produce significant benefits to the state and the citizens of the state, which benefits include, but are not limited to:

- a. savings by reason of the state not being required to pay operation and maintenance cost of the AICCM,
- b. savings to the state by reason of the state not being required to appropriate funds for the general operations of the Authority,
- c. sales and other taxes projected to be derived from operation of the AICCM and the surrounding commercial development, as well as derived as a result of the existence of the AICCM and the surrounding commercial development,
- d. increases in employment and the benefits derived by the state from such employment, including income and other taxes, and
- e. other direct and indirect benefits to the state.

The Legislature further finds and declares that the State of Oklahoma and its citizens will be best served by the soonest possible completion of the AICCM and transfer of the Authority's unimproved property to the City for a complementary commercial development, with lease revenues therefrom to supply revenues to support the operations of the AICCM. The Legislature further finds

1 that the State of Oklahoma will be best served by transferring
2 responsibility for operations and maintenance of the AICCM to the
3 City, and in furtherance of such purposes and intent, hereby adopts
4 Section 1226 et seq. of this title.

5 2. As contemplated by the existing Amended and Restated Ground
6 Lease Agreement between the Authority and the Oklahoma Capitol
7 Improvement Authority (OCIA), but only upon the execution of the
8 agreement described in paragraph 5 of this subsection, all of the
9 unimproved real property of the Authority, which is all of the real
10 property held by the Authority less and except the real property
11 described as provided for by subsection C of Section 1226.18 of this
12 title, shall be transferred to the City. Such transfer shall be for
13 the purpose of enabling the development of commercial facilities on
14 such unimproved property, lease revenues of which shall be used to
15 support the operations of the AICCM upon its completion. The
16 ~~Director~~ Chief Operating Officer of the Office of Management and
17 Enterprise Services (OMES) is hereby authorized and directed to
18 coordinate the transfer of such real property in accordance with the
19 provisions of Section 1226 et seq. of this title.

20 3. The Authority shall be terminated no later than the first
21 day the AICCM is open to the public. The Office of Management and
22 Enterprise Services (OMES) shall make the determination of whether
23 AICCM is open to the public for purposes of this paragraph. For
24 purposes of this subsection, the AICCM shall mean the museum and

1 cultural center and associated improvements constructed upon the
2 real property described as provided for by subsection C of Section
3 1226.18 of this title. If the AICCM has not been opened to the
4 public by July 1, 2020, the ~~Director~~ Chief Operating Officer of OMES
5 may certify that all building and site construction is complete, and
6 upon such certification the statutory entity created by subsection C
7 of this section shall be terminated, irrespective of whether all
8 museum content and exhibits have been completed. Upon the
9 termination of the Authority the functions of the Authority,
10 including the leasing of the AICCM, the right to acquire clear title
11 to the AICCM upon payment of all bonds, and the requirement to make
12 lease payments to pay debt service on all bonds previously or
13 hereafter issued by OCIA shall be transferred from the Authority to
14 the American Indian Cultural Center and Museum Trust Authority
15 (AICCMTA) created pursuant to Section 1226.21 of this title. Upon
16 the termination of the Authority the remaining assets of the
17 Authority shall be transferred to the AICCMTA; provided, that any
18 unexpended funds held by the Authority for operational expenses of
19 the Authority or to enable the payment of principal and interest on
20 bonds or other obligations issued for the benefit of the Authority
21 or the AICCM shall be specifically transferred as provided by
22 paragraph 4 of this subsection. Assets to be transferred to the
23 AICCMTA shall include, but not be limited to, all remaining real
24 property and improvements, personal property, intellectual property,

1 intangible property, rights and obligations pursuant to contract and
2 any other assets, which assets shall be made available to the City
3 to enable the City to exercise its rights and fulfill its
4 obligations under the agreements contemplated by paragraph 5 of this
5 subsection. Notwithstanding any other provision of law, the
6 ~~Director~~ Chief Operating Officer of OMES is hereby authorized and
7 directed to coordinate with the City, the Authority and the AICCMTA
8 to make such assets available for use by the City, for at least the
9 life of outstanding bonds, by management agreement, license or
10 otherwise, for the consideration contemplated by paragraph 5 of this
11 subsection, and to take all steps necessary to effectuate the
12 purpose of Section 1226 et seq. of this title. The AICCMTA, in
13 consultation with OMES, is hereby authorized to transfer to the City
14 any assets obtained by the Authority prior to its termination,
15 including real property, personal property, intellectual property
16 and intangible property, provided that measures are taken to ensure
17 the tax-exempt status of outstanding bonds, and provided further
18 that no such transfers shall take place in advance of the execution
19 of the agreement contemplated by paragraph 5 of this subsection.
20 For purposes of this paragraph, "outstanding bonds" shall include
21 any bonds or other obligations issued by OCIA pursuant to Section
22 304.2 of Title 73 of the Oklahoma Statutes.

23 4. Unexpended funds held by the Authority for operational
24 expenses of the Authority or to enable the payment of principal and

1 interest on bonds or other obligations issued for the benefit of the
2 Authority or the AICCM shall, upon termination of the Authority,
3 transfer to the American Indian Cultural Center and Museum
4 Postcompletion Revolving Fund created by Section 1226.22 of this
5 title.

6 5. With the exception of Section 1226.20 of this title, Section
7 1226 et seq. of this title shall be null and void unless, prior to
8 January 15, 2016, or not later than the expiration of sixty (60)
9 days from such date with the approval of an extension of time, which
10 may be less than sixty (60) days, by the ~~Director~~ Chief Operating
11 Officer of the Office of Management and Enterprise Services upon a
12 showing by the parties that such extension is likely to result in
13 the execution of a final agreement, the Authority, the City and OMES
14 enter into a written agreement with the following minimum
15 provisions:

- 16 a. with the exception of funds provided pursuant to law
17 for the fiscal year ending June 30, 2016, neither the
18 State of Oklahoma, the Authority nor any other state
19 governmental entity shall have any responsibility for
20 providing funds for operation or maintenance of the
21 AICCM,
- 22 b. the City shall utilize all revenues derived from
23 admissions, event income, merchandise sales, food and
24 beverage sales at the AICCM and revenue from leases of

the real property transferred to the City by paragraph 2 of this subsection, for the operation, administration, management and maintenance of the AICCM, for repairs and capital improvements thereto, for the repair, maintenance, development and operation of exhibits and cultural programs, and to provide reserve funds for such purposes,

c. fifty percent (50%) of the total revenues in excess of Seven Million Dollars (\$7,000,000.00) each fiscal year derived from each and all of the following sources shall be credited to the General Revenue Fund of the State Treasury until the total amount paid pursuant to this subparagraph equals Twenty-five Million Dollars (\$25,000,000.00):

- (1) profits received by the City or its designee from food and beverage sales occurring at AICCM,
- (2) profits received by the City or its designee from merchandise sales occurring at AICCM,
- (3) profits received by the City or its designee from events conducted at the AICCM,
- (4) gross revenues derived from admissions to the AICCM facility, and
- (5) gross revenues derived from the lease of real property transferred from the Authority to the

City pursuant to the provisions of paragraph 2 of
this subsection.

The amount of Seven Million Dollars (\$7,000,000.00)
prescribed by this subparagraph shall be adjusted, not
less often than once each five (5) years, based upon
increases, if any, in the Consumer Price Index-All
Urban Consumers (CPI-U) or its successor index, as
published by the United States Bureau of Labor
Statistics. The first adjustment shall be made on
July 1, 2020. The Office of Management and Enterprise
Services shall be responsible for monitoring and
auditing the payments required by the provisions of
this paragraph and may require the City to provide
such documentation regarding the accuracy and timing
of the payments as OMES may request. OMES shall
ensure that the agreement required by subparagraph f
of this paragraph contains enforceable provisions to
allow OMES to monitor and audit the payments required
by this subparagraph,

- d. no later than the transfers provided for in paragraph
3 of this subsection, the City shall make payment to
the American Indian Cultural Center and Museum
Completion Fund created pursuant to Section 1226.20 of

- 1 this title in the amount of Nine Million Dollars
2 (\$9,000,000.00) toward completion of the AICCM,
3 e. the agreement shall specify a plan for completion that
4 will result in the opening of the AICCM to the public
5 using a combination of funds provided or committed by
6 the state, the City and the other contributors to the
7 project,
8 f. the City, the Authority or its successor and OMES
9 shall enter into a separate operation, maintenance and
10 management agreement concerning the real property
11 described by the survey conducted pursuant to
12 subsection C of Section 1226.18 of this title and the
13 improvements constructed thereon, which separate
14 operation, maintenance and management agreement shall
15 be executed prior to the termination of the Authority
16 and include the following minimum terms:
17 (1) the term of the agreement shall be no less than
18 the remaining term of outstanding bonds,
19 including any bonds or other obligations issued
20 by OCIA pursuant to Section 304.2 of Title 73 of
21 the Oklahoma Statutes, or thirty (30) years,
22 whichever is longer,
23 (2) the City shall operate and manage the AICCM or
24 shall cause it to be operated and managed,

- (3) the state shall have no responsibility for the operations and maintenance costs of the AICCM,
- (4) the Authority or its successor shall deliver possession of the AICCM to the City,
- (5) the City shall have the right to make such alterations and further improvements as it deems necessary or desirable to further the success of the AICCM and the surrounding commercial development,
- (6) the City shall have the right to assign its rights under this agreement to a designee and to engage third parties to fulfill its obligations under this agreement,
- (7) the City shall use its revenues from the AICCM and the surrounding commercial development as provided by this section, and
- (8) within five (5) years after the date on which all outstanding bonds, including any bonds or other obligations issued by OCIA pursuant to Section 304.2 of Title 73 of the Oklahoma Statutes, issued for the AICCM have been retired, the City shall accept title of the AICCM and the real property upon which it is located from the Authority or its successor, and

g. after execution of the agreement described by this paragraph, the ~~Director~~ Chief Operating Officer of OMES shall provide a copy of the executed version of the agreement to the Governor, the Speaker of the Oklahoma House of Representatives and the President Pro Tempore of the Oklahoma State Senate.

6. Notwithstanding anything herein provided, the City shall be authorized to transfer any assets, rights or responsibilities transferred to it pursuant to Section 1226 et seq. of this title to any of its instrumentalities, public trusts or designees as appropriate and, with respect to the real property described as provided for by subsection C of Section 1226.18 of this title and improvements thereon, to contract with such public and private entities as it deems proper for the purpose of exercising its rights and carrying out its obligations pursuant to agreements contemplated by Section 1226 et seq. of this title between the State of Oklahoma and the City, and with respect to the property transferred by paragraph 2 of this subsection to contract with such public and private entities, including the leasing or transfer of property to such public or private entities, as it deems proper for the purpose of carrying out the commercial development of the unimproved property.

7. Contracts and privileges which have been issued, made, granted or allowed to become effective by the statutory entity that

1 may be terminated by the provisions of Section 1226 et seq. of this
2 title or by any provision of law affected by Section 1226 et seq. of
3 this title shall continue in effect according to their terms until
4 terminated or modified by operation of law; provided, that the City
5 shall, upon termination of the Authority, be permitted to assume the
6 Authority's interest in such contracts.

7 8. Notwithstanding any other provision of law, any lease
8 revenue bonds or other obligations issued prior to or after
9 September 1, 2015, by OCIA or other state instrumentalities for the
10 benefit of the Authority and/or completion of the AICCM shall remain
11 in full force and effect, and any obligation, moral or otherwise, to
12 make payments under the lease or other agreements or to service the
13 lease revenue bonds or other obligations shall remain unaffected and
14 in full force and effect. It is the intent of the Legislature to
15 appropriate sufficient monies to the Authority or its successor for
16 deposit in the American Indian Cultural Center and Museum
17 Postcompletion Revolving Fund created by Section 1226.22 of this
18 title to cover the payment of all lease and other scheduled payments
19 for the purpose of retiring such lease revenue bonds or other
20 obligations.

21 C. The Authority shall consist of seven appointed members who
22 are members of a federally recognized American Indian Tribe located
23 within this state, six ex officio members and four appointed members
24 from the business community. Each appointed member, excluding ex

officio members, shall have one vote for purposes of conducting the business of the Authority. Except for the members appointed pursuant to paragraph 3 of this subsection, the appointed members shall be residents of the state, and shall have been qualified electors therein for a period of at least one (1) year preceding their appointment. Any member of the Authority shall be eligible for reappointment, and no member shall be removed from office except for good cause shown. Good cause may be shown in evidence of excessive failure to attend three consecutive regular Board meetings of the Authority. The chair of the Authority shall have the right to remove any member pursuant to good cause. At the expiration of any term, the person holding such office shall continue to serve until such person's duly appointed successor shall be appointed and qualified.

1. Seven members appointed to serve shall serve overlapping terms and shall be chosen as follows: three members shall be appointed by the Governor; two members shall be appointed by the President Pro Tempore of the Senate; and two members shall be appointed by the Speaker of the House of Representatives. Each of these members shall be a member of a federally recognized American Indian tribe located within this state. Such tribal membership shall be determined by the respective tribes. Appointments shall be made from names provided by tribal governments, councils or other recognized tribal entities. Appointments shall be restricted to not

1 more than one representative of any tribe. Such appointed members
2 initially appointed shall continue in office for terms of from three
3 (3) to seven (7) years, respectively, from the date of their
4 appointment, with the term of each initially appointed member to be
5 designated by the Governor at the time of the appointment, with one
6 member to be appointed to a three-year term, two members to be
7 appointed to a four-year term, one member to be appointed to a five-
8 year term, one member to be appointed to a six-year term, and two
9 members to be appointed to a seven-year term. Any person appointed
10 to fill a vacancy shall serve only for the unexpired term. Upon the
11 expiration of a term, on or after July 1, 2000, any succeeding term
12 shall be for four (4) years.

13 2. The six ex officio members shall be as follows: the
14 Oklahoma Native American Liaison, or the designee of the same; the
15 Lieutenant Governor, or the designee of same; the Director of the
16 Oklahoma Historical Society, or the designee of same; the Secretary
17 of Commerce, or the designee of same; the Executive Director of the
18 Oklahoma Arts Council, or the designee of same; and the Executive
19 Director of the Oklahoma Tourism and Recreation Department, or the
20 designee of the same.

21 3. The four appointed members from the business community shall
22 be chosen as follows: two members shall be appointed by the
23 Governor; one member shall be appointed by the Speaker of the House
24 of Representatives; and one member shall be appointed by the

1 President Pro Tempore of the Senate. Each member shall have at
2 least fifteen (15) years of experience in business, banking, finance
3 or corporate law, and shall have demonstrated outstanding ability in
4 business or industry. However, in lieu of appointing a member with
5 such experience, one of the two members appointed by the Governor
6 may be a person who has exhibited at least three (3) years of
7 outstanding leadership and involvement in recognized Native American
8 organizations and activities. Upon the expiration of a term, on or
9 after July 1, 2000, any succeeding term shall be for four (4) years.
10 Any person appointed to fill a vacancy shall serve only for the
11 unexpired term.

12 D. The Authority shall elect one of its members as chairperson,
13 and another as vice-chairperson, and also shall elect a secretary,
14 treasurer and such other officers as the Authority may deem
15 appropriate. A majority of the members of the Authority (exclusive
16 of vacancies) shall constitute a quorum and the vote of a majority
17 of the members (exclusive of vacancies) shall be necessary for any
18 action taken by the Authority. No vacancy in the membership of the
19 Authority shall impair the right of a quorum to exercise all the
20 rights and perform all the duties of the Authority.

21 E. Before the issuance of any revenue bonds under the
22 provisions of Section 1226 et seq. of this title, each member of the
23 Authority shall execute a surety bond in the penal sum of Twenty-
24 five Thousand Dollars (\$25,000.00) and the secretary and treasurer

1 shall execute a surety bond in the penal sum of One Hundred Thousand
2 Dollars (\$100,000.00), each such surety bond to be conditioned upon
3 the faithful performance of the duties of his or her office, to be
4 executed by a surety company authorized to transact business in the
5 State of Oklahoma as surety, and to be filed in the office of the
6 Secretary of State.

7 F. The members of the Authority shall not be entitled to
8 compensation for their services, but each member shall be reimbursed
9 for actual expenses necessarily incurred in the performance of
10 duties on behalf of the Authority; provided, that members of the
11 Authority shall be compensated for their travel expenses pursuant to
12 the State Travel Reimbursement Act. All expenses incurred in
13 carrying out the provisions of Section 1226 et seq. of this title
14 shall be payable solely from funds provided under the authority of
15 Section 1226 et seq. of this title and no liability or obligation
16 shall be incurred by the Authority hereunder beyond the extent to
17 which monies shall have been provided under the authority of Section
18 1226 et seq. of this title. With the exception of funds
19 appropriated to the Authority for the fiscal year ending June 30,
20 2016, no further appropriations shall be made to the Authority, or
21 to any successor state entity owning some interest in the AICCM, for
22 the purpose of operating the AICCM; provided, however, that
23 appropriations to pay debt service on revenue bonds or other
24 obligations issued heretofore or hereafter by OCIA or other state

1 agencies for the benefit of the Authority will continue until all
2 such bonds or other obligations are fully paid.

3 G. The Authority is authorized to establish subcommittees as
4 necessary to perform its functions and duties. A subcommittee may
5 be composed of Authority members and/or nonmembers and shall not
6 have more than five members. Nonmembers of a subcommittee shall be
7 reimbursed by the Authority in accordance with the State Travel
8 Reimbursement Act.

9 H. Members of the Authority shall be exempt from the provisions
10 of Section 6 of Title 51 of the Oklahoma Statutes, which prohibits
11 the holding of any other office during the member's term of office
12 on the Authority.

13 I. The Directors and staff of the Authority employed to perform
14 the duties of Section 1226 et seq. of this title shall be considered
15 employees of the Authority. The employees of the Authority shall be
16 entitled to be reimbursed for actual and necessary expenses incurred
17 in the performance of duties on behalf of the Authority. Such
18 compensation for travel expenses shall be paid pursuant to the State
19 Travel Reimbursement Act.

20 J. Real property transferred by the Authority to any person,
21 firm, partnership, corporation, limited liability company, express
22 private trust, public trust or any other lawfully recognized entity
23 shall be subject to the same restrictions regarding the use of such
24 real property as contained in the instrument of conveyance by which

1 the Authority acquired title to such real property, including, but
2 not limited to, any restriction regarding gambling activity upon
3 such real property.

4 SECTION 755. AMENDATORY 74 O.S. 2021, Section 1226.17,
5 is amended to read as follows:

6 Section 1226.17. There is hereby created in the State Treasury
7 a revolving fund for the Office of Management and Enterprise
8 Services (OMES) to be designated the "Native American Cultural and
9 Educational Authority Fund". The fund shall be a continuing fund,
10 not subject to fiscal year limitations. The fund shall consist of
11 all monies authorized by law for deposit in such fund including but
12 not limited to appropriations, gifts, grants, private donations, fee
13 revenues and funds by governmental or tribal government entities.
14 Monies deposited or apportioned to the credit of the fund may be
15 expended for the purposes authorized by law. All monies accruing to
16 the credit of the fund are hereby appropriated and may be budgeted
17 and expended by the Office of Management and Enterprise Services
18 (OMES). Expenditures from the fund shall be made upon warrants
19 issued by the State Treasurer against claims submitted to the
20 ~~Director~~ Chief Operating Officer of the Office of Management and
21 Enterprise Services.

22 SECTION 756. AMENDATORY 74 O.S. 2021, Section 1226.18,
23 is amended to read as follows:

Section 1226.18. A. On July 1, 2020, or on the first day the American Indian Cultural Center and Museum (AICCM) is open to the public, whichever is sooner, the determination of which shall be made by the ~~Director~~ Chief Operating Officer of OMES, the authority of the Native American Cultural and Educational Authority (Authority) to hold, use and dispose of real property and improvements thereon shall be terminated, and title to the following generally described real property and rights to improvements thereon shall transfer to the American Indian Cultural Center and Museum Trust Authority (AICCMTA):

1. A tract of land being a part of the East Half of Section 2, Township 11 North, Range 3 West of the Indian Meridian, Oklahoma County, Oklahoma, and being more particularly described as follows:

Commencing at the Northeast Corner of said Section 2,

Thence South $00^{\circ}29'24''$ West along the East line of said Section 2, a distance of 1958.26 feet,

Thence North $89^{\circ}30'36''$ West, a distance of 1240.19 feet to the POINT OF BEGINNING,

Thence South $23^{\circ}33'16''$ West a distance of 93.48 feet,

Thence on a nontangent curve to the right, having a radius of 340.91 feet, a chord bearing of South $38^{\circ}38'40''$ East, a chord distance of 187.41 feet, for an arc distance of 189.86 feet to a point of tangency,

Thence South $22^{\circ}41'33''$ East, a distance of 102.54 feet,

1 Thence on a nontangent curve to the right, having a radius of
2 859.19 feet, a chord bearing of South 19°48'33" West, a chord
3 distance of 546.60 feet, for an arc distance of 556.26 feet,
4 Thence South 00°00'00" East, a distance of 169.81 feet,
5 Thence North 90°00'00" West, a distance of 258.96 feet,
6 Thence North 44°58'52" West, a distance of 208.81 feet,
7 Thence South 83°35'02" West, a distance of 229.85 feet to a
8 point of curvature,

9 Thence on a curve to the right, having a radius of 602.79 feet,
10 chord bearing of North 11°33'34" East, a chord distance of
11 1146.73 feet, for an arc distance of 2271.94 feet to a point of
12 tangency,

13 Thence South 60°27'53" East, a distance of 374.31 feet,
14 Thence South 70°57'26" East, a distance of 153.94 feet to the
15 POINT OF BEGINNING.

16 Said tract of land contains 33.62 acres, more or less; and

17 2. The basis of bearing of the description provided in this
18 section is derived from the Oklahoma State Plane Coordinate System
19 NAD83, Zone Oklahoma North with the East line of NE/4 of Section 2-
20 11N-3W having a bearing of South 00°29'26" West.

21 B. The legal description provided in subsection A of this
22 section is intended to include the real property upon which the
23 museum and cultural center improvements exist, including the
24 following specific elements:

1. Hall of the People;
2. East Wing, including the Performance Facility;
3. North Gallery;
4. South Gallery;
5. Central Plant;
6. Promontory Mound; and
7. Visitor Center.

C. The instrument of conveyance as contemplated by subsection A of this section shall reflect a legal description determined by a current survey which ensures that the elements described in subsection B of this section are included, and shall further reflect a separate legal description for the sewer lift station.

D. The Office of Management and Enterprise Services (OMES), the AICCMTA and, for so long as the Authority exists, the Authority are hereby authorized and directed to grant such access and other temporary and permanent easements upon and across the real property described in this section as are necessary or desirable to promote or ensure the successful development of the commercial property transferred to the City of Oklahoma City (City) pursuant to paragraph 2 of subsection B of Section 1226.2 of Title 74 of the Oklahoma Statutes, and in connection therewith the Legislature finds and hereby declares that the commitments entered into by the City as contemplated by paragraph 5 of subsection B of Section 1226.2 of Title 74 of the Oklahoma Statutes shall be adequate consideration.

1 E. The AICCMTA and the ~~Director~~ Chief Operating Officer of OMES
2 are hereby authorized and directed to take all steps necessary to
3 effectuate the provisions of this act.

4 F. Real property transferred to AICCMTA by the Authority shall
5 be subject to the same restrictions regarding the use of such real
6 property as contained in the instrument of conveyance by which the
7 Authority acquired title to such real property, including, but not
8 limited to, any restriction regarding gambling activity upon such
9 real property.

10 SECTION 757. AMENDATORY 74 O.S. 2021, Section 1321V2, as
11 last amended by Section 29, Chapter 379, O.S.L. 2025 (74 O.S. Supp.
12 2025, Section 1321V2), is amended to read as follows:

13 Section 1321. A. The Oklahoma Health Care Authority shall have
14 the authority to determine all rates and life, dental and health
15 benefits. All rates shall be compiled in a comprehensive Schedule
16 of Benefits. The Schedule of Benefits shall be available for
17 inspection during regular business hours at the Oklahoma Health Care
18 Authority. The Authority shall have the authority to annually
19 adjust the rates and benefits based on claim experience.

20 B. The premiums for such insurance plans offered for the next
21 plan year shall be established as follows:

22 1. For active employees and their dependents, the Authority's
23 premium determination shall be made no later than the bid submission
24 date for health maintenance organizations set by the Oklahoma

Employees Insurance and Benefits Board, which shall be set in August no later than the third Friday of that month; and

2. For all other covered members and dependents, the Authority's and the health maintenance organizations' premium determinations shall be no later than the fourth Friday of September.

C. The CEO of the Authority shall review for approval all rates and life, dental, and health benefits for the state sponsored plans recommended by the Oklahoma Employees Insurance and Benefits Board. If approved by the CEO of the Authority, those rates and benefits along with the final health maintenance organizations' rates and benefits shall be sent to the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for final approval.

D. The Office may approve a mid-year adjustment requested by the Authority provided the need for an adjustment is substantiated by an actuarial determination or more current experience rating. The only publication or notice requirements that shall apply to the Schedule of Benefits shall be those requirements provided in the Oklahoma Open Meeting Act and within this section. It is the intent of the Legislature that the benefits provided not include cosmetic dental procedures except for certain orthodontic procedures as adopted by the Chief Executive Officer of the Authority.

SECTION 758. AMENDATORY 74 O.S. 2021, Section 1372, is amended to read as follows:

1 Section 1372. The Office of Management and Enterprise Services
2 shall be responsible for making all determinations as to the rights
3 of any participant or any beneficiary of a participant to receive
4 amounts under the flexible spending account benefits plan. The
5 Office shall prescribe forms and procedures for making claims for
6 flexible spending account benefits under the plan. Each person
7 making a claim for benefits under the flexible spending account
8 benefits plan shall also furnish the Office with such documents,
9 evidence, data or information in support of such claim as the
10 Oklahoma Employees Insurance and Benefits Board considers necessary
11 or desirable. If any claim for the flexible spending account
12 benefits plan is wholly or partially denied, the claimant shall be
13 given notice in writing of such denial within a reasonable period of
14 time, but no later than forty-five (45) days after the claim is
15 filed.

16 A claimant whose claim is denied shall have the right to a
17 hearing before the ~~Director~~ Chief Operating Officer of the Office of
18 Management and Enterprise Services or hearing officer designated by
19 the ~~Director~~ Chief Operating Officer. Written notification by a
20 claimant for a hearing must be received by the executive director
21 within ten (10) business days of notification of claim denial. The
22 hearing shall be conducted within thirty (30) days in accordance
23 with the provisions of the Administrative Procedures Act. The
24 Office shall promulgate administrative rules establishing policies

1 and procedures specific to the notice of denial, request for
2 explanation, and hearing for flexible spending account benefit
3 claims denial.

4 SECTION 759. AMENDATORY 74 O.S. 2021, Section 1375, is
5 amended to read as follows:

6 Section 1375. The Oklahoma Employees Insurance and Benefits
7 Board of the Office of Management and Enterprise Services shall make
8 the pretax health savings account authorized by the provisions of
9 the Health Savings Account Act established in Section 6060.14 of
10 Title 36 of the Oklahoma Statutes available by offering a high
11 deductible health plan to all persons who are eligible employees for
12 purposes of any health care insurance offered through or under the
13 supervision of the Office. The high deductible health plan shall be
14 offered no later than January 1, 2009. Any employee who elects to
15 participate in a high deductible health plan offered through the
16 Office of Management and Enterprise Services may establish a health
17 savings account (HSA) as defined in Section 223 of the Internal
18 Revenue Code. The ~~Director~~ Chief Operating Officer of the Office of
19 Management and Enterprise Services shall form a working group to
20 study the Oklahoma Employees Insurance and Benefits Plan structure,
21 including, but not limited to, future recommendations for the state
22 employee flexible benefits allowance and the potential of funding on
23 employee health savings accounts. The ~~Director~~ Chief Operating
24 Officer shall provide a report of the working group study and

1 recommendations to the Legislature and Governor no later than
2 December 31, 2012.

3 SECTION 760. AMENDATORY 74 O.S. 2021, Section 1705, is
4 amended to read as follows:

5 Section 1705. There is hereby created in the State Treasury a
6 revolving fund for the Oklahoma State Employees Deferred
7 Compensation Plan. The fund shall be designated "The Oklahoma State
8 Employees Deferred Compensation Plan Fund". The revolving fund
9 shall be a continuing fund and shall consist of all monies other
10 than appropriated funds received by the Oklahoma State Employees
11 Deferred Compensation Plan pursuant to statutory authority. Monies
12 accruing to the fund may be expended by the Oklahoma Public
13 Employees Retirement System pursuant to the laws of this state.
14 Disbursements from the fund created herein shall be made on warrants
15 issued by the State Treasurer against claims submitted to the
16 ~~Director~~ Chief Operating Officer of the Office of Management and
17 Enterprise Services for payment.

18 SECTION 761. AMENDATORY 74 O.S. 2021, Section 1707, is
19 amended to read as follows:

20 Section 1707. A. Effective January 1, 1998, for each qualified
21 participant as defined in this section who is a state employee as
22 defined in this section, the Oklahoma Public Employees Retirement
23 System shall pay each month from funds appropriated or deposited to
24 the Oklahoma State Employees Deferred Savings Incentive Plan Fund

1 created pursuant to this section the sum of Twenty-five Dollars
2 (\$25.00) to a plan established pursuant to the Internal Revenue
3 Code, Section 401(a), for the benefit of the employee; provided, if
4 monies in the fund are insufficient to fully fund the contributions
5 in any month, payments shall be suspended until such time as
6 sufficient monies are available. Employees receiving payroll other
7 than monthly shall have an amount contributed which is equivalent to
8 Twenty-five Dollars (\$25.00) per month.

9 B. For the purposes of this section, "qualified participant"
10 means a state employee as defined in this section who is an active
11 participant in the Oklahoma State Employees Deferred Compensation
12 Plan making deferrals of at least Twenty-five Dollars (\$25.00) per
13 month. A qualified participant shall not include an employee who
14 participates in the defined contribution system administered by the
15 Oklahoma Public Employees Retirement System on or after November 1,
16 2015. Effective July 1, 2000, each qualified participant shall be
17 eligible for a contribution of Twenty-five Dollars (\$25.00) to the
18 Oklahoma State Employees Deferred Savings Incentive Plan beginning
19 with the first employee deferral into the Oklahoma State Employees
20 Deferred Compensation Plan. The ~~Director~~ Chief Operating Officer of
21 the Office of Management and Enterprise Services shall be
22 responsible for the provision of such information and assistance as
23 may be necessary to determine which employees are qualified
24 participants and shall provide for appropriate payroll transactions

1 to accomplish contributions to the Oklahoma State Employees Deferred
2 Savings Incentive Plan and the Oklahoma State Employees Deferred
3 Compensation Plan. The Oklahoma Public Employees Retirement System
4 shall be responsible for establishing rules and plan documents for
5 administration of such contributions. Funds so credited shall be
6 held and invested in the same manner as the Oklahoma State Employees
7 Deferred Compensation Plan, as provided in Section 1701 of this
8 title.

9 C. For the purposes of this section, "state employee" means any
10 officer or employee of the executive, legislative, or judicial
11 branches of the government of this state who is an active member of
12 a public retirement system of this state, but does not include:

13 1. Employees of the public elementary, secondary, or area
14 vocational school districts;

15 2. Employees of The Oklahoma State System of Higher Education
16 except employees of the Oklahoma State Regents of Higher Education,
17 employees of the governing boards and employees of the Board of
18 Regents of the University of Oklahoma who are participating members
19 of the Oklahoma Public Employees Retirement System;

20 3. Persons on temporary, student, internship, or other limited-
21 term appointments except for Executive Fellows in the Carl Albert
22 Public Internship Program created in Section 840-3.4 of this title;
23 or
24

1 4. Persons employed pursuant to Section 1.6a of Title 53 of the
2 Oklahoma Statutes.

3 D. No public official shall be able to make contributions to
4 the Section 401(a) plan described by this section during a term of
5 office which commenced prior to July 1, 1997. A public official may
6 make contributions to the Section 401(a) plan described by this
7 section during a term of office which commences after July 1, 1997.
8 No legislator shall be eligible to make contributions to the Section
9 401(a) plan described by this section until such contributions have
10 been approved by the Board on Legislative Compensation. The
11 provisions of this subsection shall be applicable only in the event
12 that the Plan permits employee contributions.

13 E. There is hereby created in the State Treasury a revolving
14 fund to be designated the "Oklahoma State Employees Deferred Savings
15 Incentive Plan Fund". The fund shall be a continuing fund, not
16 subject to fiscal year limitations, and shall consist of any monies
17 the Legislature may appropriate or transfer to the fund and any
18 monies contributed for the fund from any other sources, public or
19 private. All monies accruing to the credit of said fund are hereby
20 appropriated and may be budgeted and expended by the Oklahoma Public
21 Employees Retirement System for the matching of deferred
22 compensation contributions pursuant to this section and in
23 accordance with rules promulgated by the Oklahoma Public Employees
24 Retirement System and for reimbursement of expenses for

1 administration of the Deferred Savings Incentive Plan and the
2 Oklahoma State Employees Deferred Compensation Plan. Expenditures
3 from the fund shall be made by warrants issued by the State
4 Treasurer against claims filed as prescribed by law with the
5 ~~Director~~ Chief Operating Officer of the Office of Management and
6 Enterprise Services for approval and payment.

7 F. Effective July 1, 2000, every employer which has state
8 employees participating in the Oklahoma State Employees Deferred
9 Savings Incentive Plan shall pay to the Fund an amount equal to
10 Twenty-five Dollars (\$25.00) each month for each qualified
11 participant as defined in this section, along with an amount to
12 reimburse the cost of administration of the Oklahoma State Employees
13 Deferred Savings Incentive Plan and the Oklahoma State Employees
14 Deferred Compensation Plan for each qualified participant, as
15 determined by the Board.

16 1. The Board shall certify each year to the Office of
17 Management and Enterprise Services the determined amount for the
18 administrative cost of the Oklahoma State Deferred Savings Incentive
19 Plan and the Oklahoma State Employees Deferred Compensation Plan
20 which will be required to be paid for each qualified participant.
21 The Board of Trustees shall promulgate such rules as are necessary
22 to implement the provisions of this subsection and provide the
23 methodology for the determination.
24

2. Each employer shall pay at least monthly to the Fund the sum sufficient to satisfy the obligation under this section as certified by the Board.

3. Each employer is hereby authorized to pay the employer's contribution from the same fund that the compensation for which said contribution is paid from or from any other funds available to it for such purpose.

SECTION 762. AMENDATORY 74 O.S. 2021, Section 2251, is amended to read as follows:

Section 2251. There is hereby created in the State Treasury a revolving fund for the Department to be designated the "Oklahoma Tourism and Recreation Department Revolving Fund". The fund shall consist of all monies received by the Department pursuant to the provisions of this act, monies derived from the sale or conveyance of real property under the jurisdiction of the Commission, and interest attributable to investment of money in the fund. The revolving fund shall be a continuing fund not subject to fiscal year limitations and shall be under the administrative direction of the Department. Expenditures from the fund created by this section shall be for the administration, operation, and maintenance expenses of the Department, for purchase of real property, and shall be made pursuant to the laws of this state and the statutes relating to the Department. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by

1 law with the ~~Director~~ Chief Operating Officer of the Office of
2 Management and Enterprise Services for approval and payment.

3 SECTION 763. AMENDATORY 74 O.S. 2021, Section 2252, is
4 amended to read as follows:

5 Section 2252. There is hereby created in the State Treasury a
6 revolving fund for the Department to be designated the "Oklahoma
7 Today Magazine Revolving Fund". The fund shall be a continuing
8 fund, not subject to fiscal year limitations, and shall consist of
9 all monies received by the Department from donations, gifts and
10 bequests by individuals, corporations, organizations, associations
11 and foundations specifying that such monies be expended on "Oklahoma
12 Today Magazine" and its ancillary products and activities. No state
13 monies shall be deposited in this fund. From monies deposited in
14 this fund, the Executive Director may reimburse the publisher of
15 "Oklahoma Today Magazine" and its staff for all actual and necessary
16 expenses for travel, subsistence and entertainment in order to gain
17 advertising and promotion for "Oklahoma Today Magazine", pursuant to
18 Section 500.18 of this title. All monies accruing to the credit of
19 said fund are hereby appropriated and may be budgeted and expended
20 by the Department for the purpose of supporting and promoting
21 "Oklahoma Today Magazine" and its ancillary products and activities,
22 and for soliciting contributions for other expenses for "Oklahoma
23 Today Magazine", so that the magazine can become self-supporting and
24 not dependent on state-appropriated funds in the future.

Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 764. AMENDATORY 74 O.S. 2021, Section 2253, is amended to read as follows:

Section 2253. There is hereby created in the State Treasury a revolving fund for the Oklahoma Tourism and Recreation Department to be designated the "Tourism and Recreation Environmental Loan Proceeds Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received from the State Revolving Fund loan programs as administered by the Oklahoma Water Resources Board designated specifically for the purposes of reimbursements, construction, repair, remediation, or improvement of eligible facilities under the jurisdiction of the Oklahoma Tourism and Recreation Commission. The fund shall be under the administrative direction of the Oklahoma Tourism and Recreation Department. All monies accruing to the credit of the fund may be budgeted and expended by the Oklahoma Tourism and Recreation Department for the purpose of constructing, repairing, remediating, improving loan eligible projects, reimbursing the Department for eligible planning and design expenses, or paying for associated loan financing requirements. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as

1 prescribed by law with the ~~Director~~ Chief Operating Officer of the
2 Office of Management and Enterprise Services for approval and
3 payment.

4 SECTION 765. AMENDATORY 74 O.S. 2021, Section 2254, is
5 amended to read as follows:

6 Section 2254. There is hereby created in the State Treasury a
7 revolving fund for the Oklahoma Tourism and Recreation Department to
8 be designated the "State Park System Improvement Revolving Fund".
9 The fund shall be a continuing fund not subject to fiscal year
10 limitations. The fund shall consist of all monies that are received
11 by the Department, from all entrance or day-use charges for the
12 state park system, including charges for an annual pass for visitors
13 to the state parks. All monies accruing to the fund are hereby
14 appropriated and may be expended by the Department at the state park
15 where the charges were collected as authorized by Section 2220 of
16 this title. Expenditures from the fund shall be made upon warrants
17 issued by the State Treasurer against claims filed as prescribed by
18 law with the ~~Director~~ Chief Operating Officer of the Office of
19 Management and Enterprise Services for approval and payment.

20 SECTION 766. AMENDATORY 74 O.S. 2021, Section 2254.1, is
21 amended to read as follows:

22 Section 2254.1. A. There is hereby created in the State
23 Treasury a revolving fund for the Oklahoma Tourism and Recreation
24

Department to be designated the "Oklahoma Tourism and Recreation Department Capital Expenditure Revolving Fund".

B. The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Oklahoma Tourism and Recreation Department from the apportionment of gross production tax revenues as prescribed by Section 1004 of Title 68 of the Oklahoma Statutes.

C. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Oklahoma Tourism and Recreation Department for the purpose of one-time capital expenditures for capital assets owned, managed or controlled by the Oklahoma Tourism and Recreation Department.

D. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

E. No monies in the fund shall be used for the payment of administrative expenses, salary or any other continuing obligation of the Oklahoma Tourism and Recreation Department.

SECTION 767. AMENDATORY 74 O.S. 2021, Section 2254.2, is amended to read as follows:

Section 2254.2. A. There is hereby created in the State Treasury a revolving fund for the Oklahoma Tourism and Recreation Department to be designated the "Oklahoma Tourism and Recreation

Department Reimbursement and Donation Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of donations, insurance reimbursements, Federal Emergency Management Agency (FEMA) payments and other reimbursement monies received by the Oklahoma Tourism and Recreation Department.

B. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Oklahoma Tourism and Recreation Department.

C. No monies from this revolving fund shall be transferred for any purpose to any other state agency. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 768. AMENDATORY 74 O.S. 2021, Section 2255, is amended to read as follows:

Section 2255. A. There is hereby created a petty cash fund in the revolving fund of each of the properties or activities with sales under the control of the Oklahoma Tourism and Recreation Department. The petty cash funds shall be such amounts as are determined to be necessary by the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services and the Executive Director of the Department. Petty cash funds may be expended for the payment of emergency purchases, for postage due,

1 for bank charges, for resale merchandise and firewood purchases
2 under One Hundred Dollars (\$100.00), for refund of charges for
3 returned merchandise, for refund of advance deposits, to reimburse
4 lease concessions, for purchases charged to guests' statements of
5 account, to reimburse employees for gratuities charged to guests'
6 statements of account, to pay artisans the net proceeds resulting
7 from the sale of consignment arts and crafts products, to purchase
8 beverage and vending licenses, and pursuant to the Oklahoma
9 Alcoholic Beverage Control Act and any amendments thereto, pursuant
10 to Title 37A of the Oklahoma Statutes, for Alcoholic Beverage Laws
11 Enforcement Commission (ABLE) licenses to purchase alcoholic
12 beverages, as defined in Section 1-103 of Title 37A of the Oklahoma
13 Statutes, from licensed wine and spirit wholesalers and beer
14 distributors.

15 B. The petty cash funds may be reimbursed by the State
16 Treasurer upon the filing of a claim with the proper receipts or
17 from the agency clearing account if the petty cash disbursement was
18 a refund of erroneous or excessive collections or credits. Petty
19 cash funds may be reimbursed from the agency clearing account for
20 shortages accruing to the account. Reimbursements are to be made
21 from the revolving fund. The ~~Director~~ Chief Operating Officer of
22 the Office of Management and Enterprise Services shall prescribe all
23 forms, systems and procedures for administering the petty cash funds
24

1 of the various properties or activities with sales under the control
2 of the Department.

3 SECTION 769. AMENDATORY Section 1, Chapter 425, O.S.L.
4 2024, as amended by Section 1, Chapter 245, O.S.L. 2025 (74 O.S.
5 Supp. 2025, Section 2294.1), is amended to read as follows:

6 Section 2294.1. There is hereby created in the State Treasury a
7 revolving fund for the Oklahoma Historical Society, to be designated
8 the "Oklahoma Museum of Popular Culture Supplemental Revolving
9 Fund". The fund shall be a continuing fund, not subject to fiscal
10 year limitations, and shall consist of all monies received by the
11 Oklahoma Historical Society from appropriations of the Legislature
12 designated for deposit in this fund. All monies accruing to the
13 credit of the fund are hereby appropriated and shall be budgeted and
14 expended to provide funding for repairs, planning, staging,
15 refurbishments, and improvements to real and personal property, and
16 funding for construction of the Oklahoma Museum of Popular Culture.
17 No expenditures shall be made from the fund until the State
18 Treasurer determines that funds provided by local and county
19 governments, the federal government, or through monetary donations
20 or enforceable pledges for monetary donations in the amount of
21 Eighteen Million Dollars (\$18,000,000.00) are made for repairs,
22 planning, staging, refurbishments, and improvements to real and
23 personal property, and funding for construction of the Oklahoma
24 Museum of Popular Culture; provided, no funds collected or received

prior to May 25, 2021, shall be counted toward the amount.

Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment. On November 15, 2025, if no determination is made by the State Treasurer pursuant to the provisions of this section authorizing expenditures from this fund, all unencumbered funds remaining in the Oklahoma Museum of Popular Culture Supplemental Revolving Fund shall be transferred to the State Treasurer for deposit in the General Revenue Fund of the State Treasury for the fiscal year ending June 30, 2024.

SECTION 770. AMENDATORY 74 O.S. 2021, Section 3001, as amended by Section 1, Chapter 252, O.S.L. 2022 (74 O.S. Supp. 2025, Section 3001), is amended to read as follows:

Section 3001. State Use Advisory Council- Members - Purpose.

A. There is hereby created in the Office of Management and Enterprise Services an advisory council to be known as the "State Use Advisory Council". The Council shall consist of seven (7) members:

1. A private citizen conversant with the employment needs of people with significant disabilities who shall be appointed by and serve at the pleasure of the Governor to act as an advocate for the employment needs of people with significant disabilities;

1 2. The ~~Director~~ Chief Operating Officer of the Office of
2 Management and Enterprise Services or designee;

3 3. The Director of the Department of Rehabilitation Services,
4 or designee;

5 4. One member who shall be a state use provider who shall be
6 appointed by the President Pro Tempore of the Senate;

7 5. An individual or a parent or guardian of an individual with
8 significant disabilities who participates in vocational programming
9 through a qualified nonprofit agency for individuals with
10 disabilities, to be appointed by the Speaker of the House of
11 Representatives;

12 6. The Director of Human Services, or designee; and

13 7. A person employed by the Office of Management and Enterprise
14 Services Central Purchasing Division as a contracting officer,
15 appointed by the State Purchasing Director.

16 B. The private citizens on the Council shall serve for a period
17 of two (2) years and may be reappointed by the appointing authority.
18 Any private citizen appointed pursuant to this section to fill a
19 vacancy occurring prior to the expiration of the term for which the
20 predecessor was appointed shall be appointed only for the remainder
21 of the term.

22 The State Use Advisory Council shall meet a minimum of twice a
23 year for the purpose of exchanging ideas to market and improve the
24 State Use Program.

SECTION 771. AMENDATORY Section 2, Chapter 252, O.S.L. 2022 (74 O.S. Supp. 2025, Section 3001.1), is amended to read as follows:

Section 3001.1. The State Purchasing Director, under the supervision of the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services, shall have authority and responsibility to administer and oversee the State Use Program including but not limited to:

1. Promulgating rules relating to the program;
2. Qualification of organizations participating in the program;
3. Contracting with qualified organizations for products and services to be included on the procurement schedule;
4. Determination of fair market price of all products and services to be included on the procurement schedule; and
5. Designation and publication of a procurement schedule.

SECTION 772. AMENDATORY 74 O.S. 2021, Section 3004.2, as amended by Section 6, Chapter 252, O.S.L. 2022 (74 O.S. Supp. 2025, Section 3004.2), is amended to read as follows:

Section 3004.2. There is hereby created in the State Treasury a revolving fund for the Office of Management and Enterprise Services to be designated the "State Use Advisory Council Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all proceeds from the management fee or levy on contracts for purchases of products or services of

1 people with significant disabilities, as provided in Section 3004.1
2 of this title. The fund shall be invested in any of the types of
3 instruments in which the State Treasurer is authorized by law to
4 invest. Interest earned shall be retained by the fund. All monies
5 accruing to the credit of the fund are hereby appropriated and may
6 be budgeted and expended by the Office of Management and Enterprise
7 Services for the salary and other administrative expenses of the
8 buyer and clerical and technical support in the Central Purchasing
9 Division of the Office of Management and Enterprise Services
10 responsible for contracts for the products and services of people
11 with significant disabilities and expenses the Office incurs to
12 support State Use operations including services of the Centralized
13 Non-Profit Agency (CNA). Expenditures from the fund shall be made
14 upon warrants issued by the State Treasurer against claims filed as
15 prescribed by law with the ~~Director~~ Chief Operating Officer of the
16 Office of Management and Enterprise Services for approval and
17 payment.

18 SECTION 773. AMENDATORY 74 O.S. 2021, Section 3200.2, is
19 amended to read as follows:

20 Section 3200.2. A. There is hereby created the Health Care
21 Workforce Resources Board whose purpose shall be to govern the
22 Health Care Workforce Resources Center promoting the purposes for
23 which the Health Care Workforce Resources Center was created in the
24 Health Care Workforce Resources Act.

1 B. 1. The Board shall consist of nineteen (19) members as
2 follows:

- 3 a. two members of the Oklahoma State Senate. One member
4 shall be appointed by the President Pro Tempore of the
5 Senate and one member shall be appointed by the
6 minority leader of the Senate,
- 7 b. two members of the Oklahoma House of Representatives.
8 One member shall be appointed by the Speaker of the
9 House of Representatives and one member shall be
10 appointed by the minority leader of the House of
11 Representatives,
- 12 c. the Chancellor of the Oklahoma State Regents for
13 Higher Education or a designee,
- 14 d. the Director of the Oklahoma Department of Career and
15 Technology Education or a designee,
- 16 e. the State Superintendent of Public Instruction or a
17 designee,
- 18 f. the Secretary of Health or a designee,
- 19 g. the Commissioner of Health or a designee,
- 20 h. a representative of the Governor's Council for
21 Workforce and Economic Development,
- 22 i. a representative of the University of Oklahoma Health
23 Sciences Center, designated by the president of that
24 institution,

- j. a representative of the Office of Management and Enterprise Services, designated by the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services, and
- k. a representative of the Oklahoma State University Center for Health Sciences, designated by the president of that institution.

2. Six members shall be appointed by the Governor as follows:

- a. one member of a statewide association representing urban and rural hospitals,
- b. one member of a statewide association representing nurses,
- c. one member of a statewide association representing allopathic physicians,
- d. one member of a statewide association representing osteopathic physicians,
- e. one member representing the long-term care industry chosen from a list of at least three names submitted by a statewide association representing urban and rural nursing homes, and
- f. one lay member who shall represent the general public.

3. All designated members shall serve at the pleasure of their designators. The initial appointments of the Governor shall be for the following terms:

- a. the initial term of the member of a statewide association representing urban and rural hospitals shall be for a three-year term,
- b. the initial term of the member of a statewide association representing nurses shall be for a three-year term,
- c. the initial term of the member of a statewide association representing allopathic physicians shall be for a two-year term,
- d. the initial term of the member of a statewide association representing osteopathic physicians shall be for a two-year term,
- e. the initial term of the member representing the long-term care industry shall be for a one-year term, and
- f. the initial term of the lay member representing the general public shall be for a one-year term.

4. After the initial terms, all other terms of members appointed by the Governor shall be for four-year terms. Members appointed by the Governor may be removed by the Governor for cause. A vacancy of an appointed member shall be filled in the same manner as the original appointment for the unexpired portion of the term.

5. The Board shall elect from among its membership a chair and a vice-chair and shall adopt procedures for the governance of its operations. Ten members shall constitute a quorum for the

1 transaction of business. The Board shall meet at such times as it
2 deems appropriate.

3 6. Members of the Board shall receive no compensation for their
4 services but may be reimbursed for reasonable and necessary travel
5 expenses incurred in the performance of their duties by their
6 respective legislative house or state agency pursuant to the
7 provisions of the State Travel Reimbursement Act. Members appointed
8 by the Governor shall be reimbursed by the Oklahoma State Regents
9 for Higher Education pursuant to the provisions of the State Travel
10 Reimbursement Act.

11 7. Until such time as private or public funds become available,
12 administrative support for the Board, including, but not limited to,
13 personnel necessary to ensure the proper performance of the duties
14 and responsibilities of the Board shall be provided by the Oklahoma
15 State Regents for Higher Education and the Oklahoma Department of
16 Health. All represented agencies shall provide any additional
17 administrative support requested by the Board.

18 C. The duties of the Health Care Workforce Resources Board
19 shall include, but not be limited to, the hiring of, or contracting
20 for, an Executive Director of the Health Care Workforce Resources
21 Center as private or public funds become available. The Executive
22 Director shall report to the Board and be responsible for the hiring
23 of staff and activities of the Health Care Workforce Resources
24 Center as stated in the Health Care Workforce Resources Act. These

activities include contracting for services including, but not limited to, data collection and analysis and Web support. Until such time as private or public funds become available to hire an Executive Director, the Board shall be responsible for activities of the Health Care Workforce Resources Center.

SECTION 774. AMENDATORY 74 O.S. 2021, Section 3605, is amended to read as follows:

Section 3605. A. There is hereby re-created, the Contingency Review Board consisting of the following ex officio voting members:

1. The Governor;
2. The Speaker of the House of Representatives;
3. The President Pro Tempore of the Senate; and
4. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services shall be an ex officio nonvoting member of the Board.

B. The Governor shall act as Chair of the Board. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services shall be the Executive Secretary of the Board and shall perform all the duties pertaining to such position.

C. A simple majority of the total voting membership shall be required to constitute a quorum and shall be necessary for any official action of the Board.

1 D. The Board shall hold such meetings as are necessary to carry
2 out the purposes of this act. The Board shall meet at the call of
3 the Governor.

4 SECTION 775. AMENDATORY 74 O.S. 2021, Section 4103, is
5 amended to read as follows:

6 Section 4103. A. The State Capitol Preservation Commission
7 shall be composed of fifteen (15) members as follows:

8 1. Three members shall be appointed by the Governor;

9 2. Three members shall be appointed by the President Pro
10 Tempore of the Senate;

11 3. Three members shall be appointed by the Speaker of the House
12 of Representatives;

13 4. One member shall be appointed by the Chief Justice of the
14 Oklahoma Supreme Court; and

15 5. The following shall be ex officio members:

16 a. Chairman of the Oklahoma Arts Council,

17 b. President of the Oklahoma Historical Society,

18 c. Capitol Architect and Curator,

19 d. Superintendent of the Capitol, and

20 e. ~~Director~~ Chief Operating Officer of the Office of
21 Management and Enterprise Services or a designee.

22 B. The initial term of office of the appointed members shall be
23 as follows:
24

1 1. One of the members appointed by the Governor, the President
2 Pro Tempore of the Senate, the Speaker of the House of
3 Representatives, and the member appointed by the Chief Justice of
4 the Oklahoma Supreme Court shall serve a one-year term;

5 2. One of the members appointed by the Governor, the President
6 Pro Tempore of the Senate, and the Speaker of the House of
7 Representatives shall serve a three-year term; and

8 3. One of the members appointed by the Governor, the President
9 Pro Tempore of the Senate, and the Speaker of the House of
10 Representatives shall serve a five-year term.

11 The term of office for each successor shall be for five (5)
12 years. Any member of the Legislature who is appointed to the
13 Commission shall serve only as long as the member is a member of the
14 respective house from which the member was appointed.

15 C. The Commission shall elect a chair and a vice-chair from its
16 membership to serve for a period of two (2) years. Members of the
17 Commission shall not be compensated except for reimbursement as
18 provided in the State Travel Reimbursement Act.

19 D. The Office of Management and Enterprise Services shall make
20 the necessary arrangements for support services for the State
21 Capitol Preservation Commission.

22 SECTION 776. AMENDATORY 74 O.S. 2021, Section 4105, is
23 amended to read as follows:
24

Section 4105. There is hereby established the position of the Capitol Architect and Curator who shall:

1. Develop the technical plans and programs for consideration by the State Capitol Preservation Commission and the Long-Range Capital Planning Commission with regard to restoration, renovation, and preservation of the Capitol and the Governor's Mansion;

2. Develop and enforce standards adopted for acquisition and display of works of art in and surrounding the Capitol and the Governor's Mansion;

3. Coordinate space demands of the various agencies in the Capitol and the Governor's Mansion;

4. Maintain a record of all structural and decor changes made in the Capitol and the Governor's Mansion; and

5. Make recommendations to the State Capitol Preservation Commission of necessary action on proposed modifications in decor or design to ensure preservation and maintenance of the cultural and historic integrity of the Capitol and the Governor's Mansion.

The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services may contract for the services of a Capitol Architect and Curator or employ such an individual on either a full- or part-time basis. Compensation for the position will be in accord with similar professional positions in state government.

SECTION 777. AMENDATORY 74 O.S. 2021, Section 4109, is amended to read as follows:

1 Section 4109. By the order of the ~~Director~~ Chief Operating
2 Officer of the Office of Management and Enterprise Services,
3 restoration and preservation projects of the State Capitol Building
4 or of the Governor's Mansion may be exempted from the provisions of
5 the Public Competitive Bidding Act of 1974, Section 101 et seq. of
6 Title 61 of the Oklahoma Statutes. For exempted State Capitol
7 Building or Governor's Mansion construction projects, the Office of
8 Management and Enterprise Services shall select among contractors
9 qualified by past experience to conduct historical preservation
10 projects.

11 SECTION 778. AMENDATORY 74 O.S. 2021, Section 4121, is
12 amended to read as follows:

13 Section 4121. A. In order to establish a public employee
14 benefit program to encourage outstanding performance in the
15 workplace, the ~~Director~~ Chief Operating Officer of the Office of
16 Management and Enterprise Services is hereby directed to establish
17 an on-the-job employee performance recognition program which
18 encourages outstanding job performance and productivity.

19 B. In order to promote excellence in job performance and
20 provide recognition for work units with exceptional performance,
21 state agencies are authorized to expend from monies available in the
22 agency's operating funds so much thereof as may be necessary for the
23 purchase of recognition awards for presentation to the members of
24 work units or individual employees with exceptional job performance

1 records or for other significant contributions to the operation of
2 the agency. State agencies may also provide for such recognition
3 awards to be cash awards.

4 C. Recognition awards may be presented to members of work units
5 or individual employees having exceptional job performance records
6 or other significant contributions and such awards may be presented
7 at a formal or informal ceremony, banquet or reception, the cost of
8 which may be expended from monies available in the agency's
9 operating funds.

10 D. 1. Recognition awards may consist of distinctive wearing
11 apparel, service pins, plaques, writing pens, or other distinguished
12 awards of a value not exceeding One Hundred Fifty Dollars (\$150.00)
13 per recognized employee each fiscal year to recognize the
14 achievement of the work unit or individual employee.

15 2. In addition to recognition awards listed in paragraph 1 of
16 this subsection, the agency may establish an employee cash
17 recognition program not to exceed Five Hundred Dollars (\$500.00) per
18 recognized employee each fiscal year.

19 SECTION 779. AMENDATORY 74 O.S. 2021, Section 4190, is
20 amended to read as follows:

21 Section 4190. A. The ~~Director~~ Chief Operating Officer of the
22 Office of Management and Enterprise Services is authorized to
23 approve and administer child care centers for minor dependents of
24

1 state employees, and may provide consultation to state agencies
2 regarding child care centers.

3 B. The Office of Management and Enterprise Services, the
4 Department of Human Services, and the Oklahoma State Department of
5 Health are directed to assist the ~~Director~~ Chief Operating Officer
6 of the Office of Management and Enterprise Services in the
7 implementation of Sections 4190 through 4192 of this title.

8 C. The ~~Director~~ Chief Operating Officer is authorized to
9 promulgate any rules necessary for the establishment and
10 implementation of Sections 4190 through 4192 of this title.

11 D. Licensed spaces in the child care centers shall be open to
12 all eligible children, including those individuals not employed by
13 the State of Oklahoma and those financially eligible for Department
14 of Human Services child care assistance. However, minor dependents
15 of state employees shall be given highest priority and children
16 financially eligible for Department of Human Services child care
17 assistance second priority for all vacant spaces.

18 E. The ~~Director~~ Chief Operating Officer shall approve rates for
19 child care consistent with the rates of the industry within the
20 geographic area.

21 SECTION 780. AMENDATORY 74 O.S. 2021, Section 4191, is
22 amended to read as follows:
23
24

1 Section 4191. A. The ~~Director~~ Chief Operating Officer of the
2 Office of Management and Enterprise Services shall establish and
3 administer child care centers with funds available for that purpose.

4 B. The ~~Director~~ Chief Operating Officer of the Office of
5 Management and Enterprise Services may approve a consortium,
6 partnership, cooperative or agreement to provide child care centers
7 with other public or private employers.

8 C. The child care centers shall be operated through a contract
9 with child care providers. Specifications for a contract shall be
10 developed with the assistance of, and subject to the approval of,
11 the ~~Director~~ Chief Operating Officer of the Office of Management and
12 Enterprise Services. Any such contract shall be made through the
13 Central Purchasing Division of the Office of Management and
14 Enterprise Services. The low bid will not be the single qualifier.
15 Any child care provider shall be required to carry sufficient
16 liability insurance coverage which will pay damages incurred as a
17 result of the negligent acts or omissions of an employee of the
18 child care provider within the scope of the employment of such
19 person. Any child care provider shall meet or exceed applicable
20 state child care facilities licensure standards.

21 D. Nothing in this section shall prevent the ~~Director~~ Chief
22 Operating Officer from utilizing paragraph 13 of Section 85.5 of
23 this title and paragraph 3 of subsection A of Section 85.7 of this
24 title to continue the operation of a child care center with

1 emergency contracts when the service provider's contract is canceled
2 or terminated before another qualified service provider is procured.
3 The employees of the Office of Management and Enterprise Services
4 shall not be employed to operate the centers.

5 E. Any parent utilizing the services of a child care center
6 shall be responsible for the charges assessed by the child care
7 provider for child care services.

8 SECTION 781. AMENDATORY 74 O.S. 2021, Section 4192, is
9 amended to read as follows:

10 Section 4192. There is hereby created in the State Treasury a
11 revolving fund for the Office of Management and Enterprise Services,
12 to be designated the "Child Care Revolving Fund". The fund shall be
13 a continuing fund, not subject to fiscal year limitations, and shall
14 consist of all monies received by the Office of Management and
15 Enterprise Services, from appropriations or fees. All monies
16 accruing to the credit of said fund are hereby appropriated and may
17 be budgeted and expended by the Office of Management and Enterprise
18 Services for the purpose of establishing and administering child
19 care centers. All expenditures from said revolving fund shall be
20 made upon warrants issued by the State Treasurer against claims
21 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
22 of the Office of Management and Enterprise Services for approval and
23 payment.
24

SECTION 782. AMENDATORY 74 O.S. 2021, Section 4258, is amended to read as follows:

Section 4258. A. There is hereby created in the State Treasury a revolving fund for the Ethics Commission to be designated the "Ethics Commission Fund". The Ethics Commission Fund shall be a continuing fund, not subject to fiscal year limitations, and deposits to the fund shall consist of the first One Hundred Fifty Thousand Dollars (\$150,000.00) of fees received by the Commission each fiscal year. Fees collected each fiscal year in excess of One Hundred Fifty Thousand Dollars (\$150,000.00) shall be placed to the credit of the Ethics Commission Online Filing Revolving Fund created pursuant to Section 2 of this act.

B. All monies accruing to the credit of the Ethics Commission Fund are hereby appropriated and may be budgeted and expended by the Commission for any expenses incurred in the implementation of its duties as provided by law. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 783. AMENDATORY 74 O.S. 2021, Section 4258.1, as amended by Section 1, Chapter 477, O.S.L. 2025 (74 O.S. Supp. 2025, Section 4258.1), is amended to read as follows:

1 Section 4258.1. There is hereby created in the State Treasury a
2 revolving fund for the Ethics Commission to be designated the
3 "Political Subdivisions Enforcement Fund". The fund shall be a
4 continuing fund, not subject to fiscal year limitations, and shall
5 consist of all funds appropriated by the Legislature to the fund and
6 all late filing fees, fines from settlement agreements and fines
7 assessed by the District Court for violations of the County Campaign
8 Finance and Financial Disclosure Act, the Municipal Campaign Finance
9 and Financial Disclosure Act, and the Technology Center District and
10 Independent School District Campaign Finance and Financial
11 Disclosure Act. All monies accruing to the credit of the fund are
12 hereby appropriated and may be budgeted and expended by the
13 Commission for any expenses incurred by the Political Subdivisions
14 Enforcement Division. Expenditures from the fund shall be made upon
15 warrants issued by the State Treasurer against claims filed as
16 prescribed by law with the ~~Director~~ Chief Operating Officer of the
17 Office of Management and Enterprise Services for approval and
18 payment. No later than January 31, 2016, and every year thereafter,
19 the State Treasurer shall transfer to the General Revenue Fund of
20 the state any monies in the fund in excess of Four Hundred Fifty
21 Thousand Dollars (\$450,000.00). If at any time the amount of money
22 in the fund is less than One Hundred Thousand Dollars (\$100,000.00),
23 the Executive Director of the Commission may order that there be no
24 further enforcement by the Political Subdivisions Enforcement

Division until the amount of money in the fund is more than One Hundred Thousand Dollars (\$100,000.00).

SECTION 784. AMENDATORY 74 O.S. 2021, Section 4258.2, is amended to read as follows:

Section 4258.2. A. There is hereby created in the State Treasury a revolving fund for the Ethics Commission to be designated the "Ethics Commission Online Filing Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and deposits to the fund shall consist of the first Two Hundred Thousand Dollars (\$200,000.00) of monies designated for deposit to the fund pursuant to the provisions of Section 4258 of Title 74 of the Oklahoma Statutes each fiscal year and all monies appropriated to the fund pursuant to an act of the Legislature.

B. Monies designated for deposit to the fund in excess of Two Hundred Thousand Dollars (\$200,000.00) each fiscal year shall be placed to the credit of the General Revenue Fund. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Commission for the purpose of:

1. Developing, maintaining and administering the Commission's online filing system; and

2. The payment of fees and charges to other state agencies for information technology services.

Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with

1 the ~~Director~~ Chief Operating Officer of the Office of Management and
2 Enterprise Services for approval and payment.

3 SECTION 785. AMENDATORY Section 1, Chapter 424, O.S.L.
4 2024 (74 O.S. Supp. 2025, Section 4258.3), is amended to read as
5 follows:

6 Section 4258.3. There is hereby created in the State Treasury a
7 revolving fund for the Ethics Commission to be designated the
8 "Ethics Commission Electronic Filing System Replacement Fund". The
9 fund shall be a continuing fund, not subject to fiscal year
10 limitations, and shall consist of all monies received by the Ethics
11 Commission from legislative appropriations provided for the purpose
12 of replacing the Ethics Commission's electronic filing system. All
13 monies accruing to the credit of the fund are hereby appropriated
14 and may be budgeted and expended by the Ethics Commission for the
15 purpose provided for in this section. Expenditures from the fund
16 shall be made upon warrants issued by the State Treasurer against
17 claims filed as prescribed by law with the ~~Director~~ Chief Operating
18 Officer of the Office of Management and Enterprise Services for
19 approval and payment.

20 SECTION 786. AMENDATORY 74 O.S. 2021, Section 5001, is
21 amended to read as follows:

22 Section 5001. A. The Oklahoma Economic Development Commission,
23 the Office of the Governor - Department of Economic Development, and
24

1 the Department of Economic and Community Affairs are hereby
2 abolished.

3 B. All powers, duties, responsibilities, property, personnel,
4 assets, liabilities, fund balances, encumbrances and obligations of
5 the Oklahoma Economic Development Commission, the Office of the
6 Governor - Department of Economic Development, and the Department of
7 Economic and Community Affairs are hereby transferred to the
8 Oklahoma Department of Commerce or other appropriate governmental
9 entity as provided for in this act. As soon as possible the offices
10 and staff of the Oklahoma Department of Commerce shall be moved to a
11 common location.

12 C. The current Tulsa field office of the Department of Commerce
13 shall be designated as the Tulsa Division of the Department of
14 Commerce. The Tulsa Division shall include, but not be limited to
15 the following services: film industry promotion, international
16 trade recruitment and export assistance, trade reference, business
17 expansion and start-up, small business assistance, economic and
18 community development financing, and economic and community
19 development.

20 All powers, duties, responsibilities, property, personnel, and
21 assets of the Division of Waterways of the Department of Commerce
22 abolished by this act are hereby transferred to the Department of
23 Transportation.

1 The Department of Commerce shall transfer only those employees
2 requesting to be transferred to the Tulsa Division, provided the
3 employee meets the criteria established by the Department for
4 positions to be placed in the Tulsa Division, and shall fill any
5 remaining positions at the Tulsa Division through accrued vacancies
6 within the Department of Commerce.

7 D. All powers, duties, responsibilities, property, personnel,
8 assets, liabilities, fund balances, encumbrances and obligations of
9 the film industry program in the Marketing Division of the Oklahoma
10 Department of Tourism and Recreation are hereby transferred to the
11 Oklahoma Department of Commerce.

12 E. The ~~Director~~ Chief Operating Officer of the Office of
13 Management and Enterprise Services shall coordinate the transfers
14 made pursuant to subsections B and D of this section.

15 SECTION 787. AMENDATORY 74 O.S. 2021, Section 5012, is
16 amended to read as follows:

17 Section 5012. A. There is hereby created the "Oklahoma
18 Department of Commerce Revolving Fund". The fund shall consist of
19 all monies, other than appropriated monies, received by the
20 Department which are not directed to be placed into another fund.
21 The fund shall be a continuing fund not subject to fiscal year
22 limitations and shall be subject to the administrative direction of
23 the Oklahoma Department of Commerce. Expenditures from the fund
24 shall be made upon warrants issued by the State Treasurer against

1 claims submitted to the ~~Director~~ Chief Operating Officer of the
2 Office of Management and Enterprise Services. Monies in the fund
3 may be expended for the operating expenses of the Department and
4 shall be made pursuant to the laws of this state.

5 B. On July 1, 1986, any unallotted cash balance in the funds
6 created in Sections 678 and 2008 of this title shall be transferred
7 to the Oklahoma Department of Commerce Revolving Fund. All
8 outstanding financial obligations and encumbrances of the funds
9 created in Sections 678 and 2008 of this title are hereby
10 transferred to the Oklahoma Department of Commerce. After November
11 15, 1986, any unexpended balance in the funds created in Sections
12 678 and 2008 of this title shall be transferred to the Oklahoma
13 Department of Commerce Revolving Fund.

14 SECTION 788. AMENDATORY 74 O.S. 2021, Section 5013, is
15 amended to read as follows:

16 Section 5013. A. There is hereby created the "Community
17 Planning Project Revolving Fund". The fund shall consist of any
18 monies appropriated thereto and any monies payable to the Oklahoma
19 Department of Commerce by the United States Federal Government or
20 cities, towns, or counties of the State of Oklahoma for assistance
21 in communities' planning projects. The fund shall be a continuing
22 fund not subject to fiscal year limitations and shall be subject to
23 the administrative direction of the Oklahoma Department of Commerce.
24 Expenditures from the fund shall be made upon warrants issued by the

1 State Treasurer against claims submitted to the ~~Director~~ Chief
2 Operating Officer of the Office of Management and Enterprise
3 Services. The monies deposited in the revolving fund shall be
4 expended by the Oklahoma Department of Commerce to pay the cost of
5 providing these services for the various planning projects.

6 B. On July 1, 1986, any unallotted cash balance in the fund
7 created in Section 686 of this title shall be transferred to the
8 Community Planning Project Revolving Fund. All outstanding
9 financial obligations and encumbrances of the fund created in
10 Section 686 of this title are hereby transferred to the Oklahoma
11 Department of Commerce. After November 15, 1986, any unexpended
12 balance in the fund created in Section 686 of this title shall be
13 transferred to the Community Planning Project Revolving Fund created
14 in this section.

15 SECTION 789. AMENDATORY 74 O.S. 2021, Section 5013, is
16 amended to read as follows:

17 Section 5013. There is hereby created in the State Treasury a
18 revolving fund for the Oklahoma Department of Commerce to be
19 designated the "Minority Business Development Program Fund". The
20 fund shall be a continuing fund, not subject to fiscal year
21 limitations. The fund shall consist of all monies authorized by law
22 for deposit in such fund including, but not limited to
23 appropriations, gifts, grants, private donations, fee revenues and
24 funds by governmental entities authorized to provide funding for the

purposes authorized for the use of the fund. Monies deposited or apportioned to the credit of the fund may be expended for the purposes of job creation and enhancement and business creation and expansion of Oklahoma minority owned businesses pursuant to law. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Oklahoma Department of Commerce for purposes authorized by law. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 790. AMENDATORY 74 O.S. 2021, Section 5013.3, is amended to read as follows:

Section 5013.3. There is hereby created the "Capital Improvement Program Revolving Fund". The fund shall consist of any monies appropriated thereto. The fund shall be a continuing fund, not subject to fiscal year limitations, and shall be subject to the administrative direction of the Oklahoma Department of Commerce. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims submitted to the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services. The monies deposited in the revolving fund shall be expended by the Oklahoma Department of Commerce to pay the cost of

1 providing services for the various capital improvement planning
2 projects.

3 SECTION 791. AMENDATORY 74 O.S. 2021, Section 5020.1, is
4 amended to read as follows:

5 Section 5020.1. There is hereby created in the State Treasury a
6 revolving fund for the Oklahoma Department of Commerce to be
7 designated the "Community Development Centers Program Fund". The
8 fund shall be a continuing fund, not subject to fiscal year
9 limitations. The fund shall consist of all monies authorized by law
10 for deposit in such fund including, but not limited to
11 appropriations, gifts, grants, private donations, fee revenues and
12 funds by governmental entities authorized to provide funding for the
13 purposes authorized for the use of the fund. Monies deposited or
14 apportioned or donated to the credit of the fund may be expended for
15 the purposes of community development centers, with emphasis on
16 aging and elderly citizen interests pursuant to law. All monies
17 accruing to the credit of said fund are hereby appropriated and may
18 be budgeted and expended by the Oklahoma Department of Commerce for
19 purposes authorized by law. Expenditures from said fund shall be
20 made upon warrants issued by the State Treasurer against claims
21 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
22 of the Office of Management and Enterprise Services for approval and
23 payment.

SECTION 792. AMENDATORY 74 O.S. 2021, Section 5028, as amended by Section 5, Chapter 375, O.S.L. 2024 (74 O.S. Supp. 2025, Section 5028), is amended to read as follows:

Section 5028. There is hereby created in the State Treasury a special fund for the State Department of Health to be designated the "County Jail Improvement Fund". The fund shall be a continuing fund, not subject to fiscal year limitations. All monies appropriated to the fund may be budgeted and expended by the State Department of Health for the purpose of providing matching funds to counties to renovate existing or to construct new jail facilities in accordance with state-approved jail standards. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 793. AMENDATORY 74 O.S. 2021, Section 5030, is amended to read as follows:

Section 5030. A. There is hereby created in the State Treasury a revolving fund to be designated as the "Weatherization Revolving Fund", which shall consist of all monies appropriated or transferred to the fund. Said revolving fund shall be a continuing fund not subject to fiscal year limitations and shall be under the administration of the Oklahoma Department of Commerce and may be disbursed without legislative appropriation. Warrants for

1 expenditures from said revolving fund shall be drawn by the State
2 Treasurer, based on claims signed by an authorized employee or
3 employees of the Oklahoma Department of Commerce and approved for
4 payment by the ~~Director~~ Chief Operating Officer of the Office of
5 Management and Enterprise Services. It is hereby declared that
6 energy conservation is in the interest of the State of Oklahoma.
7 The purpose of this fund is to provide monies to be used for the
8 purpose of weatherizing households in Oklahoma thereby conserving
9 the oil and natural gas resources of the state.

10 B. On July 1, 1986, any unallotted cash balance in the
11 Weatherization Revolving Fund created in Section 1537.1 of this
12 title shall be transferred to the Weatherization Revolving Fund
13 created in this section. All outstanding financial obligations and
14 encumbrances of the Weatherization Revolving Fund created in Section
15 1537.1 of this title are hereby transferred to the Oklahoma
16 Department of Commerce. After November 15, 1986, any unexpended
17 balance in the Weatherization Revolving Fund created in Section
18 1537.1 of this title shall be transferred to the Weatherization
19 Revolving Fund created in this section.

20 SECTION 794. AMENDATORY 74 O.S. 2021, Section 5060.11,
21 is amended to read as follows:

22 Section 5060.11. There is hereby created in the State Treasury
23 a revolving fund for the Oklahoma Center for the Advancement of
24 Science and Technology to be designated the "Research Support

Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations. The fund shall consist of all monies authorized by law for deposit in such fund including, but not limited to, gifts, grants, private donations, fee revenues and funds by government entities authorized to provide funding for the purposes authorized for the use of the fund. Monies deposited or apportioned to the credit of the fund in excess of that required for implementation of the program or programs for which expenditures from the fund are authorized may be transferred to any other fund under the control of the Center. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Oklahoma Center for the Advancement of Science and Technology for purposes authorized by law. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 795. AMENDATORY 74 O.S. 2021, Section 5060.21, is amended to read as follows:

Section 5060.21. A. There is hereby created in the State Treasury a revolving fund for the Oklahoma Center for the Advancement of Science and Technology to be designated the "Seed-Capital Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations. The fund shall consist of all

monies authorized by law for deposit in the fund including but not limited to gifts, grants, private donations and funds by government entities authorized to provide funding for the purposes authorized for use of the fund and with payments on loans made from the fund, rents, dividends paid on shares of stock purchased with monies from the fund, royalty proceeds, or any other form of return on authorized investments made by the Center. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Oklahoma Center for the Advancement of Science and Technology for use as seed-capital for enterprises and for the purposes set forth in this section, and shall not be used for administrative, management, or operating expenses of the Center. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

B. The Seed-Capital Revolving Fund shall be managed consistent with the long-term goal that revenues earned from investment of the fund be used to cover administrative costs of the fund. The Center may contract with the Commercialization Center or another entity to manage the Seed-Capital Revolving Fund and to carry out the activities set forth in this section.

C. The Center may use the Seed-Capital Revolving Fund to provide seed-capital to enterprises and to carry out the purposes of

1 the Oklahoma Science and Technology Research and Development Act
2 through authorized investments, including:

- 3 1. Loans, loans convertible to equity, and equity;
- 4 2. Leaseholds;
- 5 3. Management or consultant service agreements;
- 6 4. Loans with stock subscription or similar warrants that are
7 beneficially owned by the Center;

- 8 5. Loans with stock subscription or similar warrants that are
9 beneficially owned by a party other than the Center;

- 10 6. Any other contractual arrangement in which the Center is
11 providing scientific and technological services to any federal,
12 state, county or municipal agency, or to any individual,
13 corporation, enterprise, association or any other entity involving
14 science and technology. The Center, in connection with the
15 provision of any form of financial assistance, may enter into
16 royalty agreements with an enterprise;

- 17 7. Participation as a general or limited partner in other seed-
18 capital funds or participation as a limited partner in individual
19 cases as authorized by the board of directors;

- 20 8. Royalty or other interests in patents, licenses, trade
21 secrets or other technology; and

- 22 9. All other seed-capital investments and qualified securities
23 as defined in the Oklahoma Science and Technology Research and
24 Development Act.

1 D. The Center may use the Seed-Capital Revolving Fund to
2 purchase qualified securities issued by enterprises engaged in new
3 product or process innovations subject to the conditions set forth
4 in this section.

5 E. The Center may use the Seed-Capital Revolving Fund to make
6 loans for business incubator facilities in exchange for interests in
7 the enterprises.

8 F. The Center shall make authorized seed-capital investments in
9 enterprises engaged in new product or process innovations only
10 after:

11 1. Receipt of an application from the enterprise which
12 contains:

- 13 a. a business plan including a description of the
14 enterprise and its management, product and market,
- 15 b. a statement of the amount, timing and projected use of
16 the capital required,
- 17 c. a statement of the potential economic impact of the
18 enterprise, including the number, location and types
19 of jobs expected to be created, and
- 20 d. such other information as the Center board of
21 directors shall request; and

22 2. Approval of the investment by the Center. Such approval may
23 be made after the board of directors finds, based upon the
24 application submitted by the enterprise and such additional

1 investigation as the staff of the Center shall make and incorporate
2 in its minutes, or based on the recommendation of the fund manager,
3 if the Center contracts with the Commercialization Center or another
4 entity to manage the Seed-Capital Revolving Fund, that:

- 5 a. the proceeds of the investment or financial assistance
6 will be used only to cover the seed-capital needs of
7 the enterprise except as authorized by this section,
- 8 b. the enterprise has a reasonable chance of success,
- 9 c. the Center's participation is instrumental to the
10 success of the enterprise and will assist in its
11 retention within the state,
- 12 d. the Center's investment is leveraged by at least one
13 additional equity or near-equity investor,
- 14 e. the enterprise has the reasonable potential to enhance
15 employment opportunities within the state,
- 16 f. the entrepreneur and other founders of the enterprise
17 have already made or are contractually committed to
18 make an appropriate financial and time commitment to
19 the enterprise,
- 20 g. any securities to be purchased are qualified
21 securities,
- 22 h. there is a reasonable possibility that the Center will
23 recoup at least its initial investment or financial
24 commitment, and

i. binding commitments have been made to the Center by the enterprise for adequate reporting of financial data to the Center, which shall include a requirement for an annual report, or if required by the board, an annual audit of the financial and operational records of the enterprise, and for such control on the part of the Center as the board of directors shall consider prudent over the management of the enterprise, so as to protect the investment or financial commitment of the Center, including in the discretion of the board and without limitation, right of access to financial and other records of the enterprise, and membership or representation on the board of directors of the enterprise.

G. The board of directors shall create an investment committee to assist in evaluating potential investments in qualified securities and provision of other forms of authorized financial assistance. The membership of this investment committee shall serve at the pleasure of the board and shall consist of:

1. No more than two members of the board of directors, neither of whom serves on any advisory committee to the Center; and

2. Persons drawn from sources other than the Center who meet standards similar to those applying to the board of directors and who are recognized by their peers for outstanding knowledge and

1 leadership in their fields, all of whom shall serve at the pleasure
2 of the board.

3 H. The Center shall not make investments in qualified
4 securities issued by enterprises in excess of the amount necessary
5 to own more than forty-nine percent (49%) of qualified securities in
6 any one enterprise at the time such securities are purchased by the
7 Center, after giving effect to the conversion of all outstanding
8 convertible qualified securities of the enterprise; however, in the
9 event of severe financial difficulty of the enterprise, threatening,
10 in the judgment of the board of directors, the investment of the
11 Center therein, a greater percentage of such securities may be owned
12 by the Center.

13 SECTION 796. AMENDATORY 74 O.S. 2021, Section 5060.24,
14 is amended to read as follows:

15 Section 5060.24. There is hereby created in the State Treasury
16 a revolving fund for the Oklahoma Center for the Advancement of
17 Science and Technology to be designated the "Administration and Data
18 Processing Revolving Fund". The fund shall be a continuing fund,
19 not subject to fiscal year limitations. The fund shall consist of
20 all monies authorized by law for deposit therein, grants, donations
21 or reimbursements that the President of the Center may direct to be
22 deposited therein, proceeds from the sale of surplus property,
23 insurance payments to the agency, receipts pursuant to the Oklahoma
24 Open Records Act, and transfers from other revolving funds of the

Center as the President may direct. Monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Center for the administrative costs of all programs of the Center, including all personal and other operating expenses. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 797. AMENDATORY 74 O.S. 2021, Section 5060.30, is amended to read as follows:

Section 5060.30. A. The "Oklahoma Technology Trust Fund" is hereby created. The trust fund shall be administered as follows:

1. The trustees of the trust fund shall consist of seven members of the Oklahoma Science and Technology Research and Development Board who are the presidents of Oklahoma State University, the University of Oklahoma, and the private university offering graduate engineering degrees and the four chief executive officers or senior executive officers of corporations or foundations. The chair of the board of trustees shall be elected by the trustees from among the four chief executive officers or senior executive officers who also serve on the Oklahoma Science and Technology Research and Development Board.

2. After January 1, 2003, the board of trustees may by unanimous vote expand the number of trustees at any time. No more

1 than three members added by the board of trustees may serve
2 concurrently. The members added by the board of trustees shall be
3 representatives of industries, shall have full voting rights, and
4 shall serve four-year terms. A position added by the board of
5 trustees may be filled at the end of the term by vote of the
6 trustees. A position not filled by the trustees at the end of the
7 term shall be considered abolished.

8 3. The trust fund principal shall consist of monies received
9 from any monies the Legislature appropriates for, or transfers to,
10 the trust fund and any monies or assets contributed to the trust
11 fund from any other source, public or private. Notwithstanding
12 other provisions of law, income and investment return on trust fund
13 principal shall accrue to the trust fund and may be authorized upon
14 a majority vote of the trustees for use and expenditure by the
15 Oklahoma Science and Technology Research and Development Board. Use
16 of the trust fund principal may be authorized upon a vote of three-
17 fourths of the trustees for use and expenditure by the Oklahoma
18 Science and Technology Research and Development Board.

19 4. The trustees shall develop procedures for accomplishing
20 transfer of income and investment return to appropriate accounts set
21 up in the Office of the State Treasurer.

22 5. The trust fund may be dissolved upon an act approved by
23 three-fourths (3/4) of both houses of the Legislature or pursuant to
24 a plan for use of the principal, leading to dissolution of the trust

1 fund, over a ten-year period that has been proposed by the trustees
2 and approved by the Legislature and the Governor. Upon the trust
3 fund's dissolution, any funds in the trust fund shall be placed in
4 the state general revenue fund, unless the Legislature specifically
5 provides otherwise.

6 B. There is hereby created in the State Treasury a fund for the
7 Oklahoma Center for the Advancement of Science and Technology to be
8 designated the "Oklahoma Technology Fund". The fund shall be a
9 continuing fund, not subject to fiscal year limitations, and shall
10 consist of any monies received by the Center from the Legislature or
11 other sources for the fund. All monies accruing to the credit of
12 the fund are hereby appropriated and may be budgeted and expended by
13 the Oklahoma Science and Technology Research and Development Board
14 for the purposes of the Center. Expenditures from the fund shall be
15 made upon warrants issued by the State Treasurer against claims
16 filed as prescribed by law with the ~~Director~~ Chief Operating Officer
17 of the Office of Management and Enterprise Services for approval and
18 payment. The Oklahoma Science and Technology Research and
19 Development Board shall develop procedures for setting up accounts
20 within the fund as necessary in the Office of the State Treasurer.
21 The Board shall place only funds appropriated for or otherwise
22 received for the Center in the accounts for the Center and shall not
23 commingle funds that are not appropriated or otherwise received for
24

1 the Center with funds appropriated or received for any other purpose
2 of the Center.

3 SECTION 798. AMENDATORY Section 1, Chapter 21, 1st
4 Extraordinary Session, O.S.L. 2023 (74 O.S. Supp. 2025, Section
5 5060.45), is amended to read as follows:

6 Section 5060.45. A. There is hereby established the Oklahoma
7 Accelerator Program at the Oklahoma Center for the Advancement of
8 Science and Technology, to be administered by the Center as a
9 continuation of the accelerator program previously administered by
10 the Oklahoma Department of Commerce. The program shall utilize
11 appropriated funding to leverage private capital for the purpose of
12 stimulating growth of early-stage startup companies throughout the
13 state by connecting such companies with the global entrepreneurial
14 ecosystems required to enhance business talent and investment
15 opportunities.

16 B. There is hereby created in the State Treasury a revolving
17 fund for the Oklahoma Center for the Advancement of Science and
18 Technology to be designated the "Oklahoma Accelerator Revolving
19 Fund". The fund shall be a continuing fund, not subject to fiscal
20 year limitations. The fund shall consist of all monies authorized
21 by law for deposit in such fund including, but not limited to,
22 gifts, grants, private donations, private equity contributions, and
23 fee revenues and funds by government entities authorized to provide
24 funding for the purposes authorized for the use of the fund. All

monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Oklahoma Center for the Advancement of Science and Technology for purposes authorized by law to implement the Oklahoma Accelerator Program. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 799. AMENDATORY 74 O.S. 2021, Section 5063.17, is amended to read as follows:

Section 5063.17. A. Before the commencement of each legislative session, the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services shall determine the estimated amount required during the next fiscal year for payment of the debt service on the bonds issued under this act, after making deductions therefrom of estimated monies to be available to the Fund from other sources therefor, and shall certify such estimated amount to the Governor. The Governor shall thereupon promptly prepare and submit to the Legislature his request for an appropriation to meet the debt service on the bonds during such fiscal year. The Legislature shall appropriate funds and provide for timely payment of the maturing debt service of bonds issued under this act.

B. The Authority shall have the power to establish and maintain reserve funds to provide for payment of debt service on the bonds.

Monies credited to the reserve funds shall be used only for the purpose of paying debt service on the bonds, either at maturity or on redemption prior to maturity. The reserve funds shall be held and used to ensure prompt payment of debt service on the bonds in such manner and pursuant to such conditions as may be specified by the Authority in the resolution or trust indenture authorizing or securing such bonds. Monies in the reserve funds over and above the amounts necessary to ensure the prompt payment of debt service on the bonds, and the establishment and maintenance of a reserve fund, may be used for the redemption of bonds prior to maturity in the manner and in accordance with the provisions pertaining to redemption prior to maturity, as set forth in the resolution or trust indenture authorizing or securing such bonds.

SECTION 800. AMENDATORY 74 O.S. 2021, Section 5064.8, is amended to read as follows:

Section 5064.8. A. There is hereby created in the State Treasury a separate revolving fund for the Oklahoma Department of Commerce, to be designated the "Inventors and Entrepreneurs Program Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Department for implementation of this act from all funds appropriated thereto by the Legislature, all fees received pursuant to this act, any federal funds, gifts, private and matching funds and all contributions dedicated thereto from private, state, federal

1 or whatever source. All monies accruing to the credit of said fund
2 are hereby appropriated and may be budgeted and expended by the
3 Department for the purpose of implementing this act; however, monies
4 expended for administrative costs shall not exceed five percent (5%)
5 of the total amount of monies in said fund. Any amount in said fund
6 not directly needed to implement the provisions of this act shall go
7 to the General Revenue Fund of the state. Expenditures from said
8 fund shall be made upon warrants issued by the State Treasurer
9 against claims filed as prescribed by law with the ~~Director~~ Chief
10 Operating Officer of the Office of Management and Enterprise
11 Services for approval and payment.

12 B. On July 1, 1998, the Inventors and Entrepreneurs Program
13 Fund shall be abolished and any unencumbered funds remaining in the
14 Inventors and Entrepreneurs Program Fund shall be transferred to the
15 credit of the OCAST Research Support Revolving Fund. Any unexpended
16 funds remaining in the Inventors and Entrepreneurs Program Fund
17 after November 1, 1998, shall be transferred to the credit of the
18 OCAST Research Support Revolving Fund.

19 SECTION 801. AMENDATORY 74 O.S. 2021, Section 5066.6, is
20 amended to read as follows:

21 Section 5066.6. There is hereby created in the State Treasury a
22 separate revolving fund for the Oklahoma Department of Commerce to
23 be designated as the "Product Development Program Fund". The fund
24 shall be a continuing fund, not subject to fiscal year limitations

1 and shall consist of all monies received by the Department for
2 implementation of the Product Development Act from all funds
3 appropriated thereto by the Oklahoma State Legislature, all fees
4 received pursuant to this act, any federal funds, gifts, private and
5 matching funds and all contributions dedicated thereto from any
6 source. All monies accruing to the credit of said fund are hereby
7 appropriated and may be budgeted and expended by the Department for
8 the purposes of this act. Any amount in said fund not directly
9 needed to implement the provisions of this act shall go to the
10 General Revenue Fund of the state. Expenditures from said fund
11 shall be made upon warrants issued by the State Treasurer against
12 claims filed as prescribed by law with the ~~Director~~ Chief Operating
13 Officer of the Office of Management and Enterprise Services for
14 approval and payment.

15 SECTION 802. AMENDATORY 74 O.S. 2021, Section 5085.11,
16 as amended by Section 5, Chapter 155, O.S.L. 2025 (74 O.S. Supp.
17 2025, Section 5085.11), is amended to read as follows:

18 Section 5085.11. A. There is hereby created in the State
19 Treasury a revolving fund for the Oklahoma Center for the
20 Advancement of Science and Technology to be designated the "Oklahoma
21 Capital Formation Revolving Fund". The fund shall be a continuing
22 fund, not subject to fiscal year limitations, and shall consist of
23 appropriated funds. All monies accruing to the credit of the fund
24 are hereby appropriated and, as authorized by the Oklahoma Science

1 and Technology Research and Development Board, shall be expended by
2 the Oklahoma Center for the Advancement of Science and Technology to
3 perform the duties imposed upon the Board by law. Expenditures of
4 appropriated funds from the fund shall be made upon warrants issued
5 by the State Treasurer against claims filed as prescribed by law
6 with the ~~Director~~ Chief Operating Officer of the Office of
7 Management and Enterprise Services for approval and payment.

8 B. On July 1, 1991, any unencumbered funds remaining in the
9 Oklahoma Capital Investment Board Revolving Fund shall be
10 transferred to the credit of the Oklahoma Capital Formation
11 Revolving Fund. Any unexpended funds remaining in the Oklahoma
12 Capital Investment Board Revolving Fund after November 15, 1991,
13 shall be transferred to the credit of the Oklahoma Capital Formation
14 Revolving Fund.

15 SECTION 803. AMENDATORY 74 O.S. 2021, Section 5152, is
16 amended to read as follows:

17 Section 5152. A. As used in the Oklahoma Public and Private
18 Facilities and Infrastructure Act:

19 1. "Contract" means any purchase and sale agreement, lease,
20 service agreement, franchise agreement, concession agreement or
21 other written agreement entered into under the Oklahoma Public and
22 Private Facilities and Infrastructure Act with respect to the
23 provision of a public service and any project related thereto;
24

1 2. "Improvement" means any instruction, reconstruction,
2 rehabilitation, renovation, installation, improvement, enlargement
3 or extension of property or improvements to property;

4 3. "Partnership Committee" means a committee consisting of nine
5 (9) members, three members appointed by the President Pro Tempore of
6 the Senate, three members appointed by the Speaker of the House of
7 Representatives, two representatives of the Office of Management and
8 Enterprise Services (OMES), and a representative of the Department
9 of Commerce, to be appointed by the Governor. Five members of the
10 Partnership Committee shall constitute a quorum. The Partnership
11 Committee shall act only upon a decision of a majority of appointed
12 members;

13 4. "Private sector entity" means any corporation, whether for
14 profit or not for profit, limited liability company, partnership,
15 limited liability partnership, sole proprietorship, business trust,
16 joint venture or other entity, but shall not mean the state, a
17 political subdivision of the state, or a public or governmental
18 entity, agency or instrumentality of the state;

19 5. "Project" means real or personal property, or both, and
20 improvements thereto or in support thereof, including undivided and
21 other interests therein, used for or in the provision of a public
22 service;

23 6. "Proposer" means a private sector entity, a local or
24 regional public entity or agency, or any group or combination

thereof, submitting qualifications or a proposal for a public-private partnership contract;

7. "Public service" means a service provided for a public purpose of a responsible state agency and identified in an invitation for qualifications or proposals under the Oklahoma Public and Private Facilities and Infrastructure Act; and

8. "Responsible state agency" means the agency, department, commission, authority or other instrumentality of the state responsible for the provision of the public service which is or is proposed to be the subject of a contract. Any such agency that is subject to The Oklahoma Central Purchasing Act, the Public Competitive Bidding Act, the Oklahoma State Finance Act and the Oklahoma Privatization of the State Functions Act shall comply with these laws.

B. The Oklahoma Department of Transportation and the Oklahoma Turnpike Authority shall be exempt from the Oklahoma Public and Private Facilities and Infrastructure Act. However, the Oklahoma Department of Transportation and the Oklahoma Turnpike Authority may utilize the general provisions and process described herein to develop a public-private partnership contract for a transportation improvement in consultation with the ~~Director~~ Chief Operating Officer of OMES and subject to the approval of the Oklahoma Transportation Commission or the Oklahoma Turnpike Authority Board as applicable.

SECTION 804. AMENDATORY 74 O.S. 2021, Section 5154, is amended to read as follows:

Section 5154. A. The Partnership Committee shall have the ability to identify potential public-private partnerships, to review and endorse a short list of qualified bidders, to approve requests for proposals and to approve template contracts before they are sent to bidders. The Partnership Committee shall operate with the assistance of the Office of Public-Private Partnerships. In order to protect the Separation of Power set out in Article IV of the Oklahoma Constitution, the Partnership Committee shall not have the power to enter into any contract, nor shall it have the power to block any contract negotiated by the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services (OMES) and the authorized representative of any responsible state agency.

B. There shall be established within OMES an Office of Public-Private Partnerships, which shall have the authority to charge fees for services it shall render as part of the procedures to establish partnerships in accordance with this act and to receive money to cover its operating expenses and to accomplish the purposes of this act.

C. The ~~Director~~ Chief Operating Officer of OMES and the authorized representative of a responsible state agency shall jointly take any action and execute any public-private partnership contract, authorized under this act, for the provision of a public

1 service in order to more efficiently and effectively provide public
2 services, including by generating additional resources in support of
3 those public services and related projects.

4 SECTION 805. AMENDATORY 74 O.S. 2021, Section 5155, is
5 amended to read as follows:

6 Section 5155. A. Selection of Projects. Any proposer or
7 responsible state agency may submit to the Partnership Committee one
8 or more proposals for partnership projects in connection with any
9 public service. The Partnership Committee shall identify potential
10 projects and public services for which a public-private partnership
11 may be appropriate from those received from a proposer, a
12 responsible state agency or those identified by the Partnership
13 Committee itself. The Partnership Committee shall select such
14 projects based on the partnership's potential to improve public
15 operational efficiencies, improve environmental performance, promote
16 public safety, attract private investment in the state and minimize
17 governmental liabilities.

18 B. Public-Sector Comparators. After the Partnership Committee
19 identifies a potential partnership for a public project or public
20 service, the Office of Public-Private Partnerships shall conduct a
21 public-sector comparator study of the potential partnership. The
22 Partnership Committee shall determine the scope of each public
23 sector comparator, which scope shall depend on the type of proposed
24 partnership and the nature of the public service under consideration

1 for the partnership. The following issues shall be considered as
2 components of a public sector comparator:

3 1. The definition of the need served by the proposed
4 partnership;

5 2. The cost required to meet the public need served by the
6 public service under traditional procurements or traditional state
7 agency operations;

8 3. An analysis of alternative methods for providing the public
9 services under consideration, including but not limited to design-
10 build, design-build-finance, design-build-finance-operate-maintain,
11 service contracts or leases and how the alternative method(s) would
12 meet the need served by the public service; and

13 4. An evaluation of the cost/benefit of using an alternative
14 method or public-private partnership to render a public service,
15 which cost/benefit analysis shall include:

- 16 a. the potential cost of utilizing an alternative method,
- 17 b. the operational and technological risks involved in
18 utilizing an alternative method,
- 19 c. a comparative analysis of rendering the public service
20 by allowing the responsible state agency to utilize
21 traditional methods,
- 22 d. the financial impact the partnership will have on the
23 responsible state agency, and
24

1 e. the impact a partnership would have on job formation,
2 economic growth and the community in which the public
3 service is to be rendered.

4 C. The Partnership Committee shall use the results of the
5 public sector comparator to determine which public services and
6 projects are appropriate for partnership. The Office of Public-
7 Private Partnerships shall publish on its website the public sector
8 comparator for each project to provide a public service for which a
9 request for qualifications is initiated.

10 D. The Office of Public-Private Partnerships shall publish
11 notice of the intent to enter into a contract for a partnership for
12 public service or related project and shall prepare a request for
13 qualifications for private sector entities interested in serving as
14 proposers for the partnership. The notice shall notify interested
15 parties of the opportunity to submit their qualifications for
16 consideration and shall be published at least sixty (60) days prior
17 to the deadline for submitting those qualifications. The Office
18 also may advertise the information contained in the notice in
19 appropriate trade journals and otherwise notify parties believed to
20 be interested in providing the public service and in any related
21 project.

22 E. After inviting proposers to bid on the project, the
23 Partnership Committee shall evaluate the qualifications submitted
24 and may hold discussions with proposers to further explore their

1 qualifications. Following this evaluation, the Partnership
2 Committee may determine a list of qualified proposers based on
3 criteria in the invitation and invite only those proposers to submit
4 a proposal.

5 F. The Office of Public-Private Partnerships shall prepare a
6 request for proposal, which may include proposal stipends and the
7 proposed partnership contract, both of which shall be approved by
8 the Partnership Committee. After the Partnership Committee's
9 approval of the request for proposal and the partnership contract,
10 the project shall be deemed an Approved Partnership Procurement.

11 G. Partnership contracts may contain the terms and conditions
12 to carry out and effect the purposes of this act, including the
13 duration of the contract, which shall not exceed ninety-nine (99)
14 years, rates or fees for the public services to be provided or
15 methods or procedures for the determination of such rates or fees,
16 standards for the public services to be provided, responsibilities
17 and standards for operation and maintenance of any related project,
18 required financial assurances, financial and other data reporting
19 requirements, bases and procedures for termination of the contract
20 and retaking of possession or title to the project, and events of
21 default and remedies upon default, including mandamus, a suit in
22 equity, an action at law or any combination of those remedial
23 actions. Partnership contracts may also include a requirement for
24 the delivery of performance and payment bonds required for all

1 construction activities and letters of credit, surety bonds or other
2 security in connection with the development or operation of the
3 qualifying project in the forms and amounts satisfactory to the
4 responsible governmental entity.

5 H. After proposals are received, the Office of Public-Private
6 Partnerships, using the criteria established in the request for
7 proposal by the Partnership Committee, shall evaluate the proposals
8 submitted and may hold discussions with proposers to further explore
9 their proposals, the scope and nature of the public service(s) they
10 would provide and the various technical approaches they may take
11 regarding the public service and any related project. Following
12 this evaluation, the Partnership Committee shall select and rank no
13 fewer than three proposers that the Partnership Committee considers
14 to be the most qualified to enter into the contract, except when the
15 Partnership Committee determines that fewer than three qualified
16 proposers are available, in which case the Partnership Committee
17 shall select and rank them.

18 I. After the proposers have been ranked by the Partnership
19 Committee, the ~~Director~~ Chief Operating Officer of the Office of
20 Management and Enterprise Services (OMES) and the authorized
21 representative of the responsible state agency shall negotiate the
22 contract with the proposer ranked most qualified to provide the
23 public service at a compensation determined in writing to be fair
24

1 and reasonable and to purchase, lease or otherwise take a legal
2 interest in the project.

3 J. Upon failure to negotiate a contract with the proposer
4 ranked most qualified, the ~~Director~~ Chief Operating Officer of OMES
5 shall inform the proposer in writing of the termination of
6 negotiations and may enter, with the responsible state agency, into
7 negotiations with the proposer ranked next most qualified. If
8 negotiations again fail, the same procedure may be followed with
9 each next most qualified proposer selected and ranked, in order of
10 ranking, until a contract is negotiated and executed or the request
11 for proposal is withdrawn.

12 K. If the ~~Director~~ Chief Operating Officer of OMES and the
13 authorized representative of the responsible state agency fail to
14 negotiate a contract with any of the ranked proposers, the ~~Director~~
15 Chief Operating Officer of OMES, in consultation with the
16 responsible state agency, may terminate the process or select and
17 rank additional proposers based on their qualifications or
18 proposals, and negotiations shall continue as with the proposers
19 selected and ranked initially until a contract is negotiated.

20 L. The ~~Director~~ Chief Operating Officer of OMES and the
21 authorized representative of the responsible state agency may
22 jointly reject any and all submissions of qualifications or
23 proposals and may jointly terminate the procurement process at any
24 point.

1 M. The ~~Director~~ Chief Operating Officer of OMES and the
2 authorized representative of the responsible state agency shall have
3 the authority to make commercially reasonable changes to the
4 partnership contract approved by the Partnership Committee. Any
5 such contract may contain the terms and conditions to carry out and
6 effect the purposes of this act.

7 N. Any submission not selected by the responsible state agency
8 shall be considered intellectual property that shall remain the
9 property of the proposer.

10 SECTION 806. AMENDATORY 74 O.S. 2021, Section 5156, is
11 amended to read as follows:

12 Section 5156. A. Partnership contracts shall be signed by both
13 the ~~Director~~ Chief Operating Officer of the Office of Management and
14 Enterprise Services (OMES) and the authorized representative of the
15 responsible state agency for which the public service at issue in
16 the contract relates.

17 B. The ~~Director~~ Chief Operating Officer of OMES is authorized
18 to receive and deposit any money received under the contract. Any
19 such contract shall be sufficient to effect its purpose
20 notwithstanding any provision of law to the contrary, including
21 other laws governing the sale, lease or other disposition of
22 property or interests therein, service contracts or financial
23 transactions by or for the state.

1 C. The Office of Public-Private Partnerships shall provide a
2 report to the Speaker of the House of Representatives and the
3 President Pro Tempore of the Senate explaining the value of the
4 contract to the state and describing the procurement process by
5 which the contract was reached.

6 SECTION 807. AMENDATORY 74 O.S. 2021, Section 5158, is
7 amended to read as follows:

8 Section 5158. The ~~Director~~ Chief Operating Officer of the
9 Office of Management and Enterprise Services (OMES), in consultation
10 with the responsible state agency, may retain or contract for the
11 services of commercial appraisers, engineers, investment bankers,
12 financial advisers, accounting experts and other consultants,
13 independent contractors or providers of professional services as are
14 necessary in the judgment of the ~~Director~~ Chief Operating Officer to
15 carry out the ~~Director's~~ Chief Operating Officer's powers and duties
16 under this act. This may include the identification of public
17 services and any related projects to be subject to invitations for
18 qualifications or proposals under this act, the development of those
19 invitations and related evaluation criteria, the evaluation of those
20 invitations and the negotiation of any contract under this act.

21 SECTION 808. AMENDATORY 74 O.S. 2021, Section 7005, as
22 amended by Section 1, Chapter 70, O.S.L. 2023 (74 O.S. Supp. 2025,
23 Section 7005), is amended to read as follows:
24

1 Section 7005. A. The Oversight Committee for State Employee
2 Charitable Contributions shall be composed of the ~~Director~~ Chief
3 Operating Officer of the Office of Management and Enterprise
4 Services, or designee, and six (6) state employees, of which two
5 shall be appointed by the Governor, two shall be appointed by the
6 President Pro Tempore of the Oklahoma State Senate and two shall be
7 appointed by the Speaker of the Oklahoma House of Representatives.
8 Members shall serve at the pleasure of their appointing authorities.
9 The provisions of Section 6 of Title 51 of the Oklahoma Statutes
10 shall not apply to appointments to the Committee. The Committee is
11 re-created to continue until July 1, 2028, in accordance with the
12 provisions of the Oklahoma Sunset Law.

13 B. The Committee annually shall elect a chair from its
14 membership. The ~~Director~~ Chief Operating Officer of the Office of
15 Management and Enterprise Services shall serve as chair until the
16 first such election.

17 C. The Oversight Committee for State Employee Charitable
18 Contributions shall have the following duties and responsibilities:

19 1. Arrange for publication of information about the application
20 process;

21 2. Review applications of federations electing to participate
22 in the State Charitable Campaign and certify that a federation and
23 each of its member agencies meet the eligibility criteria set forth
24 in Sections 7009 and 7010 of this title;

1 3. Notify in writing each of the applying federations of its
2 acceptance or rejection. Provided, if a federation is rejected, the
3 Committee shall provide the reason for rejection of each of the
4 member agencies of the federation;

5 4. Hear appeals of rejected agencies;

6 5. Delegate to the principal combined fundraising organization
7 the primary responsibility for the staffing and the financial
8 obligations necessary to comply with the provisions of this
9 subsection;

10 6. Develop a pledge card to be used throughout the State
11 Charitable Campaign;

12 7. Select a principal combined fundraising organization to
13 assist the Committee in gathering and accumulating the applications;
14 and

15 8. Promulgate rules to implement the provisions of the Oklahoma
16 State Employee Charitable Contribution Act.

17 D. The Office of Management and Enterprise Services shall
18 provide such staff support as is required by the Committee.

19 E. The Oversight Committee for State Employee Charitable
20 Contributions is authorized to appoint such advisory councils and
21 task forces as it deems necessary for counsel, advice, and review
22 concerning the formulation and administration of the rules,
23 application review process, and the implementation of the Oklahoma
24 State Employee Charitable Contribution Act.

SECTION 809. AMENDATORY 74 O.S. 2021, Section 8207, is amended to read as follows:

Section 8207. A. There is hereby created in the State Treasury a revolving fund for the Oklahoma Historical Society to be designated the "1921 Tulsa Race Riot Centennial Memorial Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Oklahoma Historical Society from appropriations, donations or any other source and designated for the purpose set forth in this section. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Oklahoma Historical Society for the purpose of commemoration of the centennial of the 1921 Tulsa Race Riot. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

B. Any funds in the revolving fund created in Section 8201.2 of Title 74 of the Oklahoma Statutes on the effective date of this act shall be transferred to the 1921 Tulsa Race Riot Centennial Memorial Revolving Fund.

SECTION 810. AMENDATORY 74 O.S. 2021, Section 8403, is amended to read as follows:

1 Section 8403. A. There is hereby created the African-American
2 Centennial Plaza Design Committee. The purpose of the Committee
3 shall be to recommend the design of the African-American Centennial
4 Plaza and to provide oversight and advice to the Oklahoma Historical
5 Society in the design, construction, and funding sources of the
6 Plaza which shall be located in the median of Lincoln Boulevard
7 between 18th Street and the State Capitol Building; provided,
8 however, such construction shall begin only when the total amount of
9 non-state-appropriated funds necessary to complete the Plaza has
10 been raised or secured. Should the total amount of non-state-
11 appropriated funds not be raised or secured within two (2) years
12 after the effective date of this act, the site referred to in this
13 section shall no longer be reserved for the Plaza.

14 B. The Committee shall consist of seven (7) members as follows:

- 15 1. The President Pro Tempore of the Senate, or a designee;
- 16 2. The Speaker of the House of Representatives, or a designee;
- 17 3. The Governor, or a designee;
- 18 4. The Lieutenant Governor, or a designee;
- 19 5. The Executive Director of the Oklahoma Historical Society,
20 or a designee;
- 21 6. The ~~Director~~ Chief Operating Officer of the Office of
22 Management and Enterprise Services, or a designee; and
- 23 7. The Executive Director of the Oklahoma Arts Council, or a
24 designee.

1 C. The President Pro Tempore of the Senate and the Speaker of
2 the House of Representatives shall annually appoint a chair and a
3 vice-chair, respectively, from among the membership. The Committee
4 may elect other officers as deemed necessary. Meetings of the
5 Committee shall be subject to the provisions of the Oklahoma Open
6 Meeting Act and the Oklahoma Open Records Act.

7 D. Members of the Committee shall receive no compensation for
8 their service on the Committee, but may receive travel reimbursement
9 as follows:

10 1. Legislative members of the Committee may be reimbursed for
11 necessary travel expenses incurred in the performance of their
12 duties in accordance with the provisions of Section 456 of Title 74
13 of the Oklahoma Statutes;

14 2. Nonlegislative state agency members of the Committee may be
15 reimbursed by their agencies pursuant to the provisions of the State
16 Travel Reimbursement Act; and

17 3. Other members of the Committee may be reimbursed by the
18 Oklahoma Historical Society pursuant to the provisions of the State
19 Travel Reimbursement Act.

20 E. Staffing for the Committee shall be provided by the staffs
21 of the:

22 1. Oklahoma Historical Society;

23 2. Oklahoma State Senate; and

24 3. Oklahoma House of Representatives.

F. The duties of the Committee shall be to:

1. Develop criteria for and solicit public comment and input on the development and design of the Plaza;

2. Develop and implement criteria for a design competition which shall include, but not be limited to, solicitation of designs from appropriate persons or entities, and incorporation of any work that may already have been initiated on the design of the Plaza.

The Committee shall select three designs as finalists from among the designs submitted through the competition and shall present the selected designs to the public for comment and input. The Committee shall give due consideration to the comments received from the public in choosing the design that, in the opinion of a majority of the Committee members, is most appropriate to commemorate the unique history and contributions of African Americans in Oklahoma;

3. From the three finalists, select the design winner and an alternate whose designs shall be forwarded to the Executive Director of the Oklahoma Historical Society; and

4. Provide oversight and advice to the Oklahoma Historical Society during the design and construction of the Plaza.

G. The ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services shall be responsible for awarding all contracts related to the construction of the Plaza. The ~~Director~~ Chief Operating Officer, in consultation with the Committee, may elect to use the alternate design or recommend the

1 reopening of the award process if the winning design construction
2 exceeds the anticipated budget for the Plaza.

3 H. Upon completion of the Plaza, the Office of Management and
4 Enterprise Services shall be responsible for the maintenance and
5 upkeep of the Plaza.

6 SECTION 811. AMENDATORY 74 O.S. 2021, Section 9030.3, is
7 amended to read as follows:

8 Section 9030.3. A. The Oklahoma Arts Council may create an Art
9 in Public Places Division to administer the Oklahoma Art in Public
10 Places Act.

11 B. There is hereby created an Art in Public Places Oversight
12 Committee comprised of:

13 1. The ~~Director~~ Chief Operating Officer of the Office of
14 Management and Enterprise Services, or designee;

15 2. The Director of the Oklahoma Arts Council, or designee;

16 3. The Director of the Oklahoma Historical Society, or
17 designee;

18 4. The Director of the Department of Transportation, or
19 designee;

20 5. The Chancellor of the Oklahoma State Regents for Higher
21 Education, or designee;

22 6. One artist appointed by the Director of the Oklahoma Arts
23 Council;

1 7. One architect appointed by the ~~Director~~ Chief Operating
2 Officer of the Office of Management and Enterprise Services;

3 8. One engineer appointed by the ~~Director~~ Chief Operating
4 Officer of the Office of Management and Enterprise Services; and

5 9. One museum director/curator appointed by the Director of the
6 Oklahoma Arts Council.

7 C. 1. All appointed members shall serve a term of three (3)
8 years and may be reappointed for one additional three-year term.

9 2. The officers of the Committee shall be a chair, a vice-
10 chair, and a secretary elected at the last meeting of each fiscal
11 year. Appointments to fill officer vacancies shall be made by the
12 chair between elections.

13 3. Meetings shall be held at the call of the chair, and for the
14 initial appointments, a majority of the members present shall
15 constitute a quorum.

16 D. Except as provided for in subsections E and G of this
17 section, the Oversight Committee is empowered with overseeing each
18 of the following phases of the development and management of the
19 Oklahoma Art in Public Places Act:

20 1. Develop job specifications for a Division Director of the
21 Art in Public Places Division, who shall not be subject to the Merit
22 System of Personnel Administration;

2. Make recommendations for the implementation of the Art in Public Places Program to the Executive Director of the Oklahoma Arts Council; and

3. Develop methods of selection of artists, criteria for selection, final approval of site projects, maintenance and repair of works of art, and periodic evaluation of the Program.

E. Artwork or art restoration projects in the administrative control of the Oversight Committee pursuant to the Oklahoma Art in Public Places Act shall not be subject to The Oklahoma Central Purchasing Act, but the projects shall be subject to a call for entries process established by the Oversight Committee.

F. Members shall be reimbursed for necessary travel expenses in accordance with the State Travel Reimbursement Act.

G. The State Capitol Preservation Commission shall retain its administrative control over art projects for the Capitol and the Governor's Mansion as provided for in Section 4104 of Title 74 of the Oklahoma Statutes.

H. The governing boards for institutions of higher education or local boards of trustees shall perform the duties of the Oversight Committee for art projects on the campuses that they oversee.

SECTION 812. AMENDATORY 74 O.S. 2021, Section 9030.6, is amended to read as follows:

Section 9030.6. A. 1. There is hereby created in the State Treasury a revolving fund for the Oklahoma Arts Council to be

1 designated the "Commissioning of Art in Public Places Revolving
2 Fund". The fund shall be a continuing fund, not subject to fiscal
3 year limitations, and shall consist of all monies received by the
4 Council from the sources provided for in Section 9030.5 of this
5 title.

6 2. The Council shall establish a separate subaccount for each
7 project. Monies in these subaccounts may be used to match monies
8 from other private and public sources for commissioning art in
9 accordance with the Oklahoma Art in Public Places Act.

10 3. All monies accruing to the credit of the fund are hereby
11 appropriated and may be budgeted and expended by the Oklahoma Arts
12 Council for the commissioning of art and insurance for the art in
13 accordance with the Oklahoma Art in Public Places Act.

14 4. Expenditures from the fund shall be made upon warrants
15 issued by the State Treasurer against claims filed as prescribed by
16 law with the ~~Director~~ Chief Operating Officer of the Office of
17 Management and Enterprise Services for approval and payment.

18 B. If there are monies from a project for the commissioning of
19 art not spent, those monies may be pooled in the fund for the
20 commissioning of art in, on, or near other state buildings.

21 SECTION 813. AMENDATORY 74 O.S. 2021, Section 9030.7, is
22 amended to read as follows:

23 Section 9030.7. A. 1. There is hereby created in the State
24 Treasury a revolving fund for the Oklahoma Arts Council to be

1 designated the "Art in Public Places Administrative and Maintenance
2 Revolving Fund". All monies accruing to the credit of said fund are
3 hereby appropriated and may be budgeted and expended by the Council.
4 The fund shall be a continuing fund, not subject to fiscal year
5 limitations, and shall consist of all monies received by the Council
6 from the sources provided for in Section 9030.5 of this title.

7 2. This fund shall consist of two subaccounts, one account for
8 maintenance and repair purposes and one account for administrative
9 and education purposes. Monies accruing to the credit of the
10 subaccount for maintenance and repair shall be used for the purpose
11 of restoring art in all state public buildings including, but not
12 limited to, public buildings at institutions within The Oklahoma
13 State System of Higher Education.

14 3. Expenditures from the fund shall be made upon warrants
15 issued by the State Treasurer against claims filed as prescribed by
16 law with the ~~Director~~ Chief Operating Officer of the Office of
17 Management and Enterprise Services for approval and payment.

18 B. Whenever the unencumbered balance in this fund exceeds One
19 Million Dollars (\$1,000,000.00), the assessment shall be placed in
20 the Commissioning of Art in Public Places Revolving Fund to the
21 credit of the subaccount established for the project upon which the
22 assessment was made.

23 SECTION 814. AMENDATORY 74 O.S. 2021, Section 9030.8, is
24 amended to read as follows:

1 Section 9030.8. A. On the effective date of this act, all
2 powers, duties, responsibilities, records and equipment of the
3 Oklahoma Historical Society relating exclusively to the
4 implementation and administration of the Oklahoma Art in Public
5 Places Act are hereby transferred and shall be placed under the
6 authority of the Oklahoma Arts Council. To the extent practicable,
7 the transfer shall include all computer hardware and software used
8 in regulating the functions listed in this subsection.

9 B. The Oklahoma Historical Society and the Oklahoma Arts
10 Council may contract for additional legal and administrative
11 services as necessary to effectuate the transfers as provided for in
12 this section.

13 C. 1. All unexpended funds, property, furnishings, equipment,
14 supplies, records, and outstanding financial obligations and
15 encumbrances of the Oklahoma Historical Society relating to the
16 implementation and administration of the Oklahoma Art in Public
17 Places Act shall be transferred to the Oklahoma Arts Council for the
18 continuing performance of duties relating to the implementation and
19 administration of the Oklahoma Art in Public Places Act. No funds,
20 property, furnishings, equipment, supplies or records may be
21 expended or used for any purpose other than the performance of
22 duties and responsibilities as directed and required in this act.

23 2. Any funds, properties, furnishings, equipment, supplies, or
24 records related in any manner to the implementation and

1 administration of the Oklahoma Art in Public Places Act which may
2 not be in the current possession of the Oklahoma Historical Society
3 on the effective date of this act, but which come into the
4 possession of the Oklahoma Historical Society after the transfer of
5 authority to the Oklahoma Arts Council as provided in this act,
6 shall immediately be transferred to the Oklahoma Arts Council.

7 D. The Oklahoma Historical Society shall not enter into any
8 contract or agreement relating to the implementation and
9 administration of the Oklahoma Art in Public Places Act extending
10 beyond the effective date of the transfer without approval by the
11 Oklahoma Arts Council.

12 E. The ~~Director~~ Chief Operating Officer of the Office of
13 Management and Enterprise Services shall coordinate the transfer of
14 funds, purchase orders and outstanding financial obligations and
15 encumbrances relating to the implementation and administration of
16 the Oklahoma Art in Public Places Act as transferred pursuant to the
17 provisions of this act.

18 F. Upon the effective date of this act, all administrative
19 rules promulgated by the Oklahoma Historical Society relating to the
20 implementation and administration of the Oklahoma Art in Public
21 Places Act shall be enforceable by the Oklahoma Arts Council. The
22 rules shall continue in force and effect after the effective date of
23 this act, and the Oklahoma Arts Council shall have authority to
24

1 amend, repeal, recodify or make additions to the rules pursuant to
2 the Administrative Procedures Act.

3 SECTION 815. AMENDATORY Section 2, Chapter 165, O.S.L.
4 2022, as amended by Section 2, Chapter 397, O.S.L. 2025 (74 O.S.
5 Supp. 2025, Section 9102), is amended to read as follows:

6 Section 9102. There is hereby created in the State Treasury a
7 revolving fund for the Department of Public Safety on behalf of the
8 Mental Wellness Division of the Department of Public Safety to be
9 designated the "Mental Wellness Division Revolving Fund". The fund
10 shall be a continuing fund, not subject to fiscal year limitations,
11 and shall consist of those monies appropriated to the fund by law or
12 deposited in the fund as provided pursuant to the provisions of
13 Section 9103 of this title. All monies accruing to the credit of
14 the fund are hereby appropriated and may be budgeted and expended by
15 the Mental Wellness Division for the purpose of providing mental
16 wellness services and programs to public safety personnel and
17 retirees thereof. Expenditures from the fund shall be made upon
18 warrants issued by the State Treasurer against claims filed as
19 prescribed by law with the ~~Director~~ Chief Operating Officer of the
20 Office of Management and Enterprise Services for approval and
21 payment.

22 SECTION 816. AMENDATORY Section 8, Chapter 229, O.S.L.
23 2022, as amended by Section 1, Chapter 208, O.S.L. 2023 (74 O.S.
24 Supp. 2025, Section 9207), is amended to read as follows:

1 Section 9207. A. By December 31, 2022, the Executive Director
2 of the Oklahoma Broadband Office shall identify all programs,
3 personnel, and assets within state government that are duplicative
4 or complementary to the mission of the Office and of such recommend
5 which programs, personnel, and assets the Executive Director
6 identifies as needing to be transferred to the Office, except as
7 provided in subsections C and D of this section.

8 B. Upon the receipt of the recommendation provided for in
9 subsection A of this section, the ~~Director~~ Chief Operating Officer
10 of the Office of Management and Enterprise Services is authorized to
11 transfer such programs, personnel, and assets to the Office.

12 C. The following shall be exempt from the provisions of
13 subsections A and B of this section:

14 1. Those assets or personnel associated with broadband and
15 Internet connectivity at the Corporation Commission;

16 2. Those assets or personnel associated with the Oklahoma
17 Universal Service Fund located at the Corporation Commission; and

18 3. Assets owned by the Department of Transportation and the
19 Oklahoma Turnpike Authority and the staff required to operate said
20 assets.

21 D. Programs, personnel, and assets of the Oklahoma State
22 Regents for Higher Education, identified by the Executive Director
23 as duplicative or complementary to the mission of the Office, shall
24 be made available as agreed to in contracts between the Office and

the Oklahoma State Regents for Higher Education following a recommendation by the Executive Director to the Oklahoma State Regents for Higher Education. Should the Office and the Oklahoma State Regents for Higher Education fail to reach contractual agreements within ninety (90) days of the Executive Director's recommendation, the Executive Director shall provide written notification of a failure to reach contractual agreement to the Broadband Governing Board, the Speaker of the House of Representatives, and the President Pro Tempore of the Senate.

SECTION 817. AMENDATORY Section 26, Chapter 243, O.S.L. 2022 (75 O.S. Supp. 2025, Section 311.2), is amended to read as follows:

Section 311.2. A. The Civil Service ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services may delegate the authority to issue a final agency order adverse to a party to an agency administrative law judge if:

1. The administrative law judge has a general knowledge of the Civil Service and Human Capital Modernization Act and rules promulgated thereto;

2. The administrative law judge:

a. is currently licensed to practice law by the Supreme Court of this state,

- b. has a working knowledge of the Administrative Procedures Act and administrative rules of the Office of Management and Enterprise Services,
- c. is not an owner, stockholder, employee, or officer of, nor has any other business relationship with, any corporation, partnership, or other business or entity that is subject to regulation by the Office of Management and Enterprise Services,
- d. is separate and apart from the legal division or office of general counsel of the Office of Management and Enterprise Services,
- e. is not responsible to or subject to the supervision or direction of an employee or agent engaged in the performance of investigative or prosecuting functions for the Office of Management and Enterprise Services, and
- f. has not been engaged in the performance of investigative or prosecuting functions for the Office of Management and Enterprise Services regarding the party receiving the final agency order; and

3. The Civil Service Director in delegating the authority to issue final agency orders adverse to a party pursuant to this section specifically designates by written agency policy and

1 procedure the type or category of final agency order which may be
2 issued by the administrative law judge.

3 B. The provisions of this section shall not be construed to
4 authorize or allow restraints on the authority of the Civil Service
5 Director to adopt, reject, review, modify, or correct the findings
6 of fact and conclusions of law or any proposed order issued by the
7 administrative law judge.

8 C. When the administrative law judge issues a final agency
9 order, that order becomes the final order of the Office of
10 Management and Enterprise Services, Civil Service Division without
11 further proceeding unless there is a request for rehearing,
12 reopening, or reconsideration pursuant to Section 317 of Title 75 of
13 the Oklahoma Statutes or a filing for judicial review pursuant to
14 Section 318 of Title 75 of the Oklahoma Statutes.

15 SECTION 818. AMENDATORY 80 O.S. 2021, Section 34.2, is
16 amended to read as follows:

17 Section 34.2. A. The ~~Director~~ Chief Operating Officer of the
18 Office of Management and Enterprise Services shall appoint and fix
19 the duties and compensation of a Surplus Property Agent. The
20 Purchasing Division of the Office of Management and Enterprise
21 Services shall purchase for the Surplus Property Agent a bond
22 payable to the State of Oklahoma in the sum of Fifty Thousand
23 Dollars (\$50,000.00), conditioned for the faithful performance of
24 the duties of the Surplus Property Agent.

1 B. Pursuant to the provisions of Sections 34.1 through 34.6 of
2 this title, the ~~Director~~ Chief Operating Officer of the Office of
3 Management and Enterprise Services shall promulgate rules for
4 acquisition of surplus property by the Surplus Property Agent, state
5 departments, institutions and agencies, and other authorized
6 entities. The rules shall provide for the determination of a
7 reasonable fee to assess the state departments, institutions and
8 agencies, and other authorized entities for surplus property. The
9 fee determination shall include costs the Surplus Property Agent
10 incurs to acquire, warehouse, distribute, and other administrative
11 costs and expenses.

12 SECTION 819. AMENDATORY 80 O.S. 2021, Section 34.3, is
13 amended to read as follows:

14 Section 34.3. A. The Surplus Property Agent shall, under the
15 supervision and direction of the ~~Director~~ Chief Operating Officer of
16 the Office of Management and Enterprise Services:

17 1. Ascertain from the federal government through any of its
18 agencies, any surplus property available for sale, lease, or
19 donation either within or outside this state and shall notify the
20 state departments, boards, commissions, institutions, and agencies,
21 counties, cities, and towns, and school districts of the
22 availability of such property as is deemed necessary according to
23 the types and quantities of property available;
24

1 2. Secure from state departments, boards, commissions,
2 institutions, and agencies and from counties, cities, and towns, and
3 school districts, estimates of their needs for surplus property and
4 keep federal agencies informed of such needs;

5 3. Purchase, or accept as gifts or donations, any surplus
6 property from the federal government, its departments or agencies
7 for redistribution, by sale or donation to any state department,
8 board, commission, institution, or agency and to counties, cities,
9 or towns, and school districts, and provide for the care and
10 handling, transportation, and warehousing of property if necessary;

11 4. Distribute surplus property to state departments, boards,
12 commissions, institutions, and agencies and to counties, cities,
13 towns, school districts, and other entities authorized by the
14 federal government to receive federal surplus property, provided,
15 the entity reimburses the Surplus Property Agent for the purchase
16 price and expenses incurred in connection with acquiring,
17 warehousing, and distributing the surplus property;

18 5. With the approval of the ~~Director~~ Chief Operating Officer of
19 the Office of Management and Enterprise Services, employ such
20 employees and assistants as may be necessary to carry out the
21 purposes of Sections 34.1 through 34.6 of this title;

22 6. Make acquisition of surplus automobiles in a manner
23 consistent with other applicable sections of law in this state; and
24

1 7. Perform other duties as are necessary for the purposes of
2 Sections 34.1 through 34.6 of this title.

3 B. The surplus property agent may participate in programs
4 through which the Government of the United States offers to provide
5 surplus military equipment, including weapons, protective clothing
6 and transportation devices.

7 SECTION 820. AMENDATORY 80 O.S. 2021, Section 34.6, is
8 amended to read as follows:

9 Section 34.6. There is hereby created in the State Treasury a
10 revolving fund to be designated as the "State Surplus Property
11 Revolving Fund" which shall consist of all monies appropriated
12 thereto by the Legislature and all monies received by the Surplus
13 Property Agent from state departments, boards, commissions,
14 institutions, and agencies and from counties, cities, and towns, and
15 school districts and other authorized program participants as a
16 reimbursement to the state of monies spent in acquiring surplus
17 property for such entities, and for services to the entities. The
18 State Surplus Property Revolving Fund shall be a continuing fund,
19 not subject to fiscal year limitations, and shall be expended by the
20 Surplus Property Agent, under the supervision of the ~~Director~~ Chief
21 Operating Officer of the Office of Management and Enterprise
22 Services, for any expense incurred in the handling, transportation,
23 warehousing, distribution of surplus property received by purchase
24 or donation, including the purchase of trucks and equipment, the

1 salary of the Surplus Property Agent and other employees' salaries,
2 other necessary expenses incurred in program administration and
3 operation and expenses the Office of Management and Enterprise
4 Services incurs to support program operations. Expenditures shall
5 be made from the fund on claims signed by the Surplus Property Agent
6 and approved for payment by the ~~Director~~ Chief Operating Officer of
7 the Office of Management and Enterprise Services. Excess funds
8 above the operational needs may be invested in any of the types of
9 instruments in which the State Treasurer is authorized by law to
10 invest. Interest earned shall be retained by the State Surplus
11 Property Revolving Fund, and the funds may be expended by the Office
12 of Management and Enterprise Services to acquire, improve, or
13 maintain state agency surplus property facilities.

14 SECTION 821. AMENDATORY 82 O.S. 2021, Section 866, is
15 amended to read as follows:

16 Section 866. The domicile of the district shall be in the
17 County of Mayes, where the district shall maintain its principal
18 office in charge of its Chief Executive Officer, until otherwise
19 designated by the affirmative vote of four directors. The district
20 shall cause to be kept complete and accurate accounts conforming to
21 any generally accepted accounting principles. The accounts and all
22 contracts, documents and records of the district shall be kept at
23 the principal office. The accounts and contracts shall be open to
24 public inspection at all reasonable times. The Board shall cause to

1 be made and completed within ninety (90) days after the end of each
2 calendar year an audit of the books of account and financial records
3 of the district for such calendar year, such audit to be made by an
4 independent certified public accountant or firm of certified public
5 accountants. Electronic copies of the audit report, certified to by
6 the accountant or accountants, shall be placed and kept on file with
7 the Governor, the State Treasurer, Oklahoma Department of Libraries
8 and the State Auditor and Inspector, and at the principal office,
9 and shall be open to public inspection at all reasonable times. The
10 audit shall also be filed with the ~~Director~~ Chief Operating Officer
11 of the Office of Management and Enterprise Services, in accordance
12 with the requirements set forth for financial statement audits in
13 Section 212A of Title 74 of the Oklahoma Statutes.

14 SECTION 822. AMENDATORY 82 O.S. 2021, Section 1085.7A,
15 is amended to read as follows:

16 Section 1085.7A. A. There is hereby created in the State
17 Treasury a revolving fund for the Oklahoma Water Resources Board to
18 be designated the "Community Water Infrastructure Development
19 Revolving Fund".

20 B. The fund shall be a continuing fund, not subject to fiscal
21 year limitations, and shall consist of all monies received by the
22 Oklahoma Water Resources Board from the apportionment of gross
23 production tax revenues as prescribed by Section 1004 of Title 68 of
24 the Oklahoma Statutes.

1 C. All monies accruing to the credit of said fund are hereby
2 appropriated and may be budgeted and expended by the Oklahoma Water
3 Resources Board for the purpose of establishing and maintaining
4 critical water infrastructure in all areas of the state, including
5 projects to implement the recommendations of the Oklahoma
6 Comprehensive Water Plan.

7 D. Expenditures from said fund shall be made upon warrants
8 issued by the State Treasurer against claims filed as prescribed by
9 law with the ~~Director~~ Chief Operating Officer of the Office of
10 Management and Enterprise Services for approval and payment.

11 SECTION 823. AMENDATORY 82 O.S. 2021, Section 1085.7C,
12 is amended to read as follows:

13 Section 1085.7C. A. There is hereby created in the State
14 Treasury a revolving fund for the Oklahoma Water Resources Board to
15 be designated the "Phase II Arbuckle-Simpson Hydrology Study
16 Revolving Fund".

17 B. The fund shall be a continuing fund, not subject to fiscal
18 year limitations, and shall consist of all monies received by the
19 Oklahoma Water Resources Board from the appropriations,
20 apportionments, donations, federal grants and fee revenues
21 designated for the purposes of completing in coordination with
22 relevant state and federal agencies, specifically including the
23 United States Geological Survey, data collection and development of
24 an enhanced hydrologic framework and modeling of the eastern

1 Arbuckle-Simpson Groundwater Basin necessary for purposes of
2 implementing the requirements of subsection A of Section 1020.9 of
3 Title 82 of the Oklahoma Statutes, or as otherwise appropriate for
4 the Board's performance of its lawful function, which work is
5 necessary for completion of Phase II of the Arbuckle-Simpson
6 Hydrology Study.

7 C. All monies accruing to the credit of the fund are hereby
8 appropriated and may be budgeted and expended by the Oklahoma Water
9 Resources Board for the purpose of implementing Phase II of the
10 Arbuckle-Simpson Hydrology Study. The Board shall coordinate with
11 East Central University and the United States Geological Survey for
12 the purpose of defining the study scope and conducting the work
13 necessary to complete data collection and the development of an
14 enhanced hydrologic framework and modeling of the eastern Arbuckle-
15 Simpson Groundwater Basin necessary for purposes of implementing the
16 requirements of subsection A of Section 1020.9 of Title 82 of the
17 Oklahoma Statutes, or as otherwise appropriate for the Board's
18 performance of its lawful function. The Board may coordinate with
19 other relevant state and federal agencies necessary for the purposes
20 of this fund.

21 D. Expenditures from the fund shall be made upon warrants
22 issued by the State Treasurer against claims filed as prescribed by
23 law with the ~~Director~~ Chief Operating Officer of the Office of
24 Management and Enterprise Services for approval and payment.

SECTION 824. AMENDATORY 82 O.S. 2021, Section 1085.93,
as amended by Section 3, Chapter 138, O.S.L. 2023 (82 O.S. Supp.
2025, Section 1085.93), is amended to read as follows:

Section 1085.93. A. There is hereby created in the State
Treasury a revolving fund for the Oklahoma Water Resources Board to
be designated the "Hazard Mitigation Financial Assistance Fund".
The fund shall be a continuing fund, not subject to fiscal year
limitations, and shall consist of all monies received by the
Oklahoma Water Resources Board from appropriations, dedicated
revenues, fees or other sources as provided by law. All monies
accruing to the credit of said fund are hereby appropriated and may
be budgeted and expended by the Oklahoma Water Resources Board for
the purpose of providing loans and grants for hazard mitigation.
Expenditures from said fund shall be made upon warrants issued by
the State Treasurer against claims filed as prescribed by law with
the ~~Director~~ Chief Operating Officer of the Office of Management and
Enterprise Services for approval and payment.

B. In addition to other lawful purposes, monies placed in the
Fund, exclusive of such amounts of interest derived from investment
deposits necessary to maintain the grant account, may be used by the
Board to implement hazard mitigation planning and projects,
including but not limited to, providing grants or loans to eligible
entities to:

1 1. Develop a federal/state approved local/regional hazard
2 mitigation planning document;

3 2. Acquire land or a conservation easement from a willing
4 seller or grantor in order to mitigate hazards; or

5 3. Implement voluntary, incentive-based hazard mitigation
6 measures in order to facilitate compliance with state or national
7 regulations.

8 C. Monies in, or investment income derived from, the Hazard
9 Mitigation Financial Assistance Fund which is used to match any
10 grant funds provided by the Federal Emergency Management Agency or
11 any other federal agencies shall be restricted and used consistent
12 with federal agencies procedures or guidance or regulations
13 promulgated thereunder for hazard mitigation projects.

14 D. Monies in the Hazard Mitigation Financial Assistance Fund,
15 or investment income derived therefrom, shall be used by the
16 Oklahoma Water Resources Board and the Oklahoma Department of
17 Emergency Management and Homeland Security in carrying out their
18 responsibilities as provided in a written annual joint operating
19 agreement which shall include, among other matters, a budget for
20 administering the Oklahoma Hazard Mitigation Program.

21 E. The monies placed in the Hazard Mitigation Financial
22 Assistance Fund may be invested by the State Treasurer in an
23 adequately collateralized manner and as prescribed by Section 89.2
24 of Title 62 of the Oklahoma Statutes or pursuant to investment

1 contracts or agreements with entities maintaining a rating in the
2 top two categories by a nationally recognized municipal bond rating
3 agency, all in a manner consistent with promulgated regulations.
4 The Board may transfer to the Hazard Mitigation Financial Assistance
5 Fund income derived from investment of the fund. Monies invested by
6 the State Treasurer shall be available to implement hazard
7 mitigation projects.

8 F. The Board shall cause to be completed an annual audit of any
9 expenditures from the Hazard Mitigation Financial Assistance Fund,
10 and such audit cost shall be included in the budget for
11 administering the Oklahoma Hazard Mitigation Program.

12 SECTION 825. AMENDATORY 82 O.S. 2021, Section 1087.6, is
13 amended to read as follows:

14 Section 1087.6. A. The Board may, subject to any limitations
15 otherwise imposed by law, receive and accept for and in the name of
16 the state any funds which may be offered or become available from
17 federal grants or appropriations, private gifts, donations or
18 bequests, or from any other source, and may expend such funds,
19 unless their use is restricted and subject to any limitations
20 otherwise provided by law, for the administration of this act for
21 operations and research and for the encouragement of research and
22 development by a state or public or private agency, either by direct
23 grant, by contract or other cooperative means.
24

1 B. All monies received by the Board and derived from all
2 license and permit fees authorized and contemplated under the
3 provisions of this act or derived from all additional sources
4 referred to in subsection A of this section shall be deposited with
5 the State Treasurer and credited, apportioned and appropriated to a
6 separate and distinct fund to be known as the Oklahoma Weather
7 Modification Revolving Fund to be used to enforce, administer and
8 implement the weather modification powers, duties and
9 responsibilities of the Board. The Oklahoma Weather Modification
10 Revolving Fund herein created shall be a continuing fund not subject
11 to fiscal year limitations. No monies shall be paid out of the
12 Oklahoma Weather Modification Revolving Fund until the claim
13 therefor has been itemized and verified by the Board and the
14 ~~Director~~ Chief Operating Officer of the Office of Management and
15 Enterprise Services as provided by law. When so approved, the State
16 Treasurer shall draw his warrant therefor upon the State Treasurer
17 and the same shall be paid out of the Oklahoma Weather Modification
18 Revolving Fund hereby created.

19 SECTION 826. AMENDATORY 82 O.S. 2021, Section 1141, as
20 amended by Section 1, Chapter 351, O.S.L. 2024 (82 O.S. Supp. 2025,
21 Section 1141), is amended to read as follows:

22 Section 1141. A. There is hereby created in the State Treasury
23 a revolving fund for the Department of Transportation to be
24 designated the "Oklahoma Ports Infrastructure Revolving Fund

(OPIRF)". The fund shall be a continuing fund, not subject to fiscal year limitations, for the purpose of pooling all monies received by the Department of Transportation from appropriations, dedicated revenues, federal funds, private contributions or other sources authorized by law dedicated to the McClellan-Kerr Arkansas River Navigation System (MKARNS) or the waterway ports of this state. Such monies shall include but not be limited to:

1. Monies received by the Department of Transportation for waterway projects or infrastructure projects at waterway ports;
2. Principal and interest and penalty payments on loans made directly from appropriated monies in the fund; and
3. Any other sums deposited into the fund from any public or private source.

All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Department of Transportation for qualified projects upon review by the Department of Transportation and approval from the Transportation Commission. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

B. The monies placed in the OPIRF shall be invested by the State Treasurer as prescribed by Section 89.2 of Title 62 of the Oklahoma Statutes. Notwithstanding any other provision of law,

1 income and earnings on the fund shall accrue to the fund and may be
2 used for the purposes provided for in this section. Any interest
3 earned by the State Treasurer from such funds invested shall be
4 deposited in the OPIRF.

5 C. As used in this section, a "qualified project" shall:

6 1. Enhance the safe and efficient operation of the commercial
7 waterway systems of this state; or

8 2. Repair, improve, or construct waterway or industrial park
9 infrastructure located at or within waterway ports of this state
10 that are determined to provide a public benefit.

11 Such projects shall be developed in consultation with the United
12 States Army Corps of Engineers and all Indian tribes with an
13 ownership interest in the riverbed of the Arkansas River when
14 necessary.

15 D. The OPIRF may be utilized by port authorities which have
16 active waterway ports in this state for pooling available federal,
17 private, and state monies for capital projects at their ports for
18 purposes authorized by Section 1106 of this title.

19 E. The Department of Transportation shall:

20 1. Grant or make loans from the OPIRF for qualified projects in
21 order to implement the provisions of this section;

22 2. Grant an amount not to exceed twenty percent (20%) of the
23 funds available in the OPIRF during any one (1) year for qualified
24 projects; and

1 3. Loan an amount not to exceed thirty-five percent (35%) of
2 the funds available in the OPIRF during any one (1) year for
3 qualified projects.

4 No less than ten percent (10%) of the funds available in the
5 OPIRF during any one (1) year shall be reserved for emergency
6 repairs to ports or waterway infrastructure as authorized by the
7 Transportation Commission. Such determination of ten percent (10%)
8 shall be made based off of the funds available in the OPIRF at the
9 start of each calendar year.

10 F. The Department of Transportation shall promulgate rules
11 necessary to effectuate the provisions of this section. The
12 Department of Transportation shall also promulgate rules to ensure
13 that any grants or loans made from the OPIRF are made at market-
14 competitive terms.

15 SECTION 827. AMENDATORY 82 O.S. 2021, Section 1501-
16 205.2, is amended to read as follows:

17 Section 1501-205.2. A. There is hereby created in the State
18 Treasury a revolving fund to be designated as the "Geographic
19 Information Revolving Fund", which shall be under the control and
20 supervision of the Oklahoma Conservation Commission, and subject to
21 the recommendations of the State Geographic Information Council.

22 B. The fund shall be a continuing fund not subject to fiscal
23 year limitations, and shall consist of all monies specifically
24 appropriated to the fund by the Legislature within the Oklahoma

1 Conservation Commission appropriation. The fund may obtain
2 additional monies through donation by any private entity, obtained
3 by grants or designated by any federal, state or local government
4 agency, as recommended by the State Geographic Information Council
5 and approved by the Executive Director of the Oklahoma Conservation
6 Commission, with specific intention for the purposes of carrying out
7 the duties of the Office of Geographic Information including, but
8 not limited to, the development and maintenance of base map
9 Geographic Information System (GIS) data layers.

10 C. Monies accruing to the fund may be expended by the
11 Conservation Commission for expenses associated with the Office of
12 Geographic Information.

13 D. Expenditures from the fund shall be made upon warrants
14 issued by the State Treasurer against claims filed with the ~~Director~~
15 Chief Operating Officer of the Office of Management and Enterprise
16 Services for approval and payment.

17 SECTION 828. AMENDATORY 82 O.S. 2021, Section 1801.4, is
18 amended to read as follows:

19 Section 1801.4. A. Funding to administer the provisions of the
20 Oklahoma Weather Modification Act shall be provided by an
21 appropriation of up to One Million Dollars (\$1,000,000.00) made
22 pursuant to law. In addition, voluntary participation by insurance
23 companies and other interested persons, firms or corporations to
24 reach a goal of Two Million Dollars (\$2,000,000.00) for a total of

1 Three Million Dollars (\$3,000,000.00) for the first year of the
2 program. Goals for successive years will be Three Million Dollars
3 (\$3,000,000.00) from the insurance companies and other interested
4 parties. Voluntary assessments for insurance companies pursuant to
5 this section shall be based on the amount of insurance premiums
6 written in this state on property insurance, as defined in Section
7 704 of Title 36 of the Oklahoma Statutes, and casualty insurance as
8 defined in Section 707 of Title 36 of the Oklahoma Statutes,
9 excluding accident and health insurance, workers' compensation
10 insurance, burglary and theft insurance, leakage and fire
11 extinguishing equipment insurance, credit insurance, malpractice
12 insurance, and entertainments insurance.

13 B. Funding assessments to the insurance companies related to
14 the provisions of this section shall be administered by the State
15 Insurance Department. The Insurance Department shall be authorized
16 to employ one additional full-time employee to perform these duties,
17 funding for which shall be provided by proceeds derived from the
18 provisions of this act. The State Insurance Department is hereby
19 authorized to promulgate rules necessary to implement the provisions
20 of this section.

21 C. There is hereby created an account within the Oklahoma
22 Weather Modification Revolving Fund created pursuant to Section
23 1085.6 of this title. The account shall be designated as the
24 "Voluntary Participation Account" and shall consist of all monies

received on behalf of the Oklahoma Weather Modification program pursuant to this act. All monies accruing to the credit of the account are hereby appropriated and may be budgeted and expended by the Oklahoma Weather Modification Advisory Board for expenses relating to administration, duties, operations, maintenance, special projects and acquisitions for the Weather Modification Program. Expenditures from the account shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 829. AMENDATORY 85A O.S. 2021, Section 28.1, is amended to read as follows:

Section 28.1. There is hereby created in the State Treasury a revolving fund for the Workers' Compensation Commission to be designated the "Workers' Compensation Commission Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Workers' Compensation Commission from the revenues apportioned pursuant to Section 122 of Title 85A of the Oklahoma Statutes and such other sources as may be provided by law. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Workers' Compensation Commission for the purpose of funding the operations of the Commission and administering the Administrative Workers' Compensation Act and for

any other purposes related to the Administrative Workers' Compensation Act that the Commission deems appropriate. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the ~~Director~~ Chief Operating Officer of the Office of Management and Enterprise Services for approval and payment.

SECTION 830. AMENDATORY 85A O.S. 2021, Section 124, is amended to read as follows:

Section 124. A. 1. All unexpended funds, assets, property, records, personnel and any outstanding financial obligations and encumbrances of the Workers' Compensation Court before February 1, 2014, are hereby transferred to the Workers' Compensation Commission. The personnel transferred shall retain leave, sick and annual time earned and any retirement and longevity benefits which have accrued during their employment with the state. The salaries of employees who are transferred shall not be reduced as a direct and immediate result of the transfer. There shall be no reduction-in-force as a result of the transfer.

2. Any unexpended funds, including interest thereon, held by the State Treasurer in an interest-bearing division special account maintained by the Workers' Compensation Court before February 1, 2014, from which a self-insured employer's workers' compensation obligations are paid following nonpayment by the self-insured employer for any reason, including insolvency, shall be transferred

1 to the Workers' Compensation Commission. Such funds shall be
2 expended by the Commission only for the purpose of paying workers'
3 compensation obligations of the self-insured employer, and costs
4 related to the administration of such obligations, to the extent of
5 the availability of such funds.

6 B. 1. All unexpended funds, assets, property, and records and
7 any outstanding financial obligations and encumbrances of the
8 Workers' Compensation Self-insurance Guaranty Fund Board before
9 February 1, 2014, are hereby transferred to the Self-insurance
10 Guaranty Fund Board created in the Administrative Workers'
11 Compensation Act.

12 2. Any unexpended funds, including interest thereon, held by
13 the State Treasurer in the Workers' Compensation Self-insurance
14 Guaranty Fund before February 1, 2014, shall be transferred to the
15 Self-insurance Guaranty Fund Board created by the Administrative
16 Workers' Compensation Act. Such funds shall be expended by the
17 Board only as authorized in the Administrative Workers' Compensation
18 Act.

19 3. Any claim existing or action or proceeding pending by,
20 against or before the Workers' Compensation Self-insurance Guaranty
21 Fund Board when the Board ceased existence may be continued as if
22 the Self-insurance Guaranty Fund Board was not created, or the Self-
23 insurance Guaranty Fund Board may be substituted in the matter. The
24 Self-insurance Guaranty Fund Board shall be responsible and liable

1 for all liabilities and obligations of the Workers' Compensation
2 Self-insurance Guaranty Fund Board.

3 C. All property and records of the Physician Advisory Committee
4 before February 1, 2014, are hereby transferred to the Physician
5 Advisory Committee created in the Administrative Workers'
6 Compensation Act.

7 D. All property and records of the Advisory Council on Workers'
8 Compensation before February 1, 2014, are hereby transferred to the
9 Advisory Council on Workers' Compensation created in the
10 Administrative Workers' Compensation Act.

11 E. All unexpended funds, assets, property, records, personnel
12 and any outstanding financial obligations and encumbrances of the
13 Multiple Injury Trust Fund before February 1, 2014, are hereby
14 transferred to the Multiple Injury Trust Fund created in the
15 Administrative Workers' Compensation Act. The personnel transferred
16 shall retain leave, sick and annual time earned and any retirement
17 and longevity benefits which have accrued during their employment
18 with the state. The salaries of employees who are transferred shall
19 not be reduced as a direct and immediate result of the transfer.
20 There shall be no reduction-in-force as a result of the transfer.

21 F. The ~~Director~~ Chief Operating Officer of the Office of
22 Management and Enterprise Services is hereby directed to coordinate
23 the transfer of funds, allotments, purchase orders, outstanding
24 financial obligations or encumbrances provided for in subsections A

1 and E of this section, and the transfer of funds, outstanding
2 financial obligations or encumbrances provided for in subsection B
3 of this section.

4 SECTION 831. AMENDATORY 85A O.S. 2021, Section 401, as
5 amended by Section 4, Chapter 279, O.S.L. 2024 (85A O.S. Supp. 2025,
6 Section 401), is amended to read as follows:

7 Section 401. All monies received by the Workers' Compensation
8 Court of Existing Claims (CEC) from all filing fees, fees related to
9 the preparation of appeals from the CEC, records search fees, and
10 penalties and fines imposed by the CEC trial judge and collected by
11 the Administrator of the Workers' Compensation Commission shall be
12 deposited in the Workers' Compensation Commission Revolving Fund.
13 All monies accruing to the credit of the fund are hereby
14 appropriated and may be budgeted and expended by the Commission for
15 the necessary expenses of the Commission in performing
16 administrative duties on behalf of the Workers' Compensation Court
17 of Existing Claims including filing new claims, docketing,
18 maintaining records, preparing records for appeal, and preparation
19 of orders. Expenditures from the fund shall be made upon warrants
20 issued by the State Treasurer against claims filed as prescribed by
21 law with the ~~Director~~ Chief Operating Officer of the Office of
22 Management and Enterprise Services for approval and payment.
23
24

1 SECTION 832. AMENDATORY 85A O.S. 2021, Section 401.1, as
2 amended by Section 5, Chapter 279, O.S.L. 2024 (85A O.S. Supp. 2025,
3 Section 401.1), is amended to read as follows:

4 Section 401.1. There is hereby created in the State Treasury a
5 revolving fund for the Workers' Compensation Court of Existing
6 Claims (CEC) to be designated the "Workers' Compensation Court of
7 Existing Claims Administrative Fund (CECAF)". The fund shall be a
8 continuing fund, not subject to fiscal year limitations, and shall
9 consist of all monies received by the CEC from revenues apportioned
10 pursuant to Section 122 of this title prior to the effective date of
11 this act. All monies accruing to the credit of the fund are hereby
12 appropriated and may be budgeted and expended by the Administrative
13 Director of the Courts to fund the operations and all expenses
14 associated with the CEC trial judge and all three-judge en banc
15 panel appeals adjudicated by the CEC Division of the Court of Civil
16 Appeals and to administer the provisions of Titles 85 and 85A of the
17 Oklahoma Statutes. Expenditures from the fund shall be made upon
18 warrants issued by the State Treasurer against claims filed as
19 prescribed by law with the ~~Director~~ Chief Operating Officer of the
20 Office of Management and Enterprise Services for approval and
21 payment.

22 SECTION 833. This act shall become effective July 1, 2026.
23
24

SECTION 834. It being immediately necessary for the
preservation of the public peace, health or safety, an emergency is
hereby declared to exist, by reason whereof this act shall take
effect and be in full force from and after its passage and approval.

60-2-17188 MAH 03/22/26